

CASES DECIDED
IN THE
COURT OF APPEALS
OF THE
STATE OF NEW YORK

[146 NE3d 1164, 124 NYS3d 5]

STEVEN PLAVIN, Appellant, v GROUP HEALTH INCORPORATED, Respondent.

Argued February 11, 2020; decided March 24, 2020

SUMMARY

PROCEEDING, pursuant to NY Constitution, article VI, § 3 (b) (9) and Rules of the Court of Appeals (22 NYCRR) § 500.27, to review questions certified to the New York State Court of Appeals by the United States Court of Appeals for the Third Circuit. The following questions were certified by the United States Court of Appeals and accepted by the New York State Court of Appeals:

“Where a contract of insurance is negotiated by sophisticated parties such as the City of New York and an insurance company, and where hundreds of thousands of City employees and retirees are third-party beneficiaries of that contract, and where the insurance company’s policy created pursuant to the contract is one of several health insurance policies from which employees and retirees can select, has the insurance company engaged in ‘consumer-oriented conduct’ under the GBL when:

“(1) The insurance company drafts summary plan information that allegedly contains materially misleading misrepresentations and/or omissions about the coverage and benefits of the insurance policy and sends these summary materials to the City, and the City does not check or edit these materials before sending them on to the City employees and retirees; OR

“(2) The insurance company directs City employees and retirees to information on the insurance company’s website

that allegedly contains materially misleading misrepresentations and/or omissions about the coverage and benefits of the insurance policy?”

HEADNOTE

Consumer Protection — Deceptive Acts and Practices — Consumer-Oriented Conduct

Plaintiff insured sufficiently alleged consumer-oriented conduct to assert claims under General Business Law §§ 349 and 350 for damages incurred due to defendant insurance company's alleged materially misleading representations made directly to the City of New York's employees and retirees about the terms of its insurance plan to induce them to select its plan from among the 11 health insurance plans made available to over 600,000 current and former City employees. Although there was an underlying insurance contract negotiated by defendant and nonparty employer, both of whom were sophisticated entities, neither plaintiff, nor any of the other hundreds of thousands of employees and retirees who participated in defendant's plan, were participants in its negotiation and, critically, that negotiation was followed by an open enrollment period which exposed the employees and retirees to marketing resembling a traditional consumer sales environment. The open enrollment period, during which defendant allegedly leveraged its information advantage in order to gain the business of the employees and retirees over other insurers, resembled the sort of sales marketplace that General Business Law claims were intended to address. Further, the complaint alleged claims that arose from the allegedly deceptive marketing materials distributed to plaintiff and other employees in order to induce them to select defendant's plan over the other options available. Defendant's alleged dissemination of information to hundreds of thousands of employees in order to solicit their selection of its plan was precisely the sort of consumer-oriented conduct that is targeted by General Business Law §§ 349 and 350. Finally, there was no requirement under General Business Law §§ 349 and 350 that the consumer-oriented conduct be directed at all members of the public.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d Consumer and Borrower Protection §§ 274, 280, 292.

McKINNEY'S, General Business Law §§ 349, 350.

NY JUR 2d Consumer and Borrower Protection §§ 6–9, 16.

ANNOTATION REFERENCE

Who is a “consumer” entitled to protection of state deceptive trade practice and consumer protection acts. 63 ALR5th 1.

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POINTS OF COUNSEL

Selendy & Gay PLLC, New York City (*Caitlin Halligan* and *Margaret Larkin* of counsel), and *Susman Godfrey L.L.P.*, New York City (*William Christopher Carmody*, *Arun Subramanian*, *Halley W. Josephs* and *Nicholas C. Carullo* of counsel), for appellant. I. General Business Law §§ 349 and 350 reach all deceptive practices that impede consumers' ability to evaluate market options. (*Karlin v IVF Am.*, 93 NY2d 282; *Sheth v New York Life Ins. Co.*, 273 AD2d 72; *Teller v Bill Hayes, Ltd.*, 213 AD2d 141; *Donnenfeld v Petro, Inc.*, 333 F Supp 3d 208; *Oswego Laborers' Local 214 Pension Fund v Marine Midland Bank*, 85 NY2d 20; *Genesco Entertainment, a Div. of Lymutt Indus., Inc. v Koch*, 593 F Supp 743; *North State Autobahn, Inc. v Progressive Ins. Group Co.*, 102 AD3d 5; *Ural v Encompass Ins. Co. of Am.*, 97 AD3d 562; *Elacqua v Physicians' Reciprocal Insurers*, 52 AD3d 886; *M.V.B. Collision, Inc. v Allstate Ins. Co.*, 728 F Supp 2d 205.) II. Respondent's representations in its summary plan information and on its website are consumer-oriented conduct for purposes of General Business Law §§ 349 and 350. (*Mayfield v Asta Funding, Inc.*, 95 F Supp 3d 685; *Accredited Aides Plus, Inc. v Program Risk Mgt., Inc.*, 147 AD3d 122; *Donnenfeld v Petro, Inc.*, 333 F Supp 3d 208; *Casper Sleep, Inc. v Mitcham*, 204 F Supp 3d 632.) III. Respondent's cramped reading of General Business Law §§ 349 and 350 would substantially undermine the goals of New York's consumer protection laws. (*Karlin v IVF Am.*, 93 NY2d 282; *Gaidon v Guardian Life Ins. Co. of Am.*, 94 NY2d 330; *Matter of People v Orbital Publ. Goup, Inc.*, 169 AD3d 564; *Oswego Laborers' Local 214 Pension Fund v Marine Midland Bank*, 85 NY2d 20; *North State Autobahn, Inc. v Progressive Ins. Group Co.*, 102 AD3d 5; *Elacqua v Physicians' Reciprocal Insurers*, 52 AD3d 886.)

Debevoise & Plimpton LLP, New York City (*John Gleeson*, *Maura K. Monaghan* and *Jared I. Kagan* of counsel), for respondent. I. The General Business Law does not govern private contracts negotiated between sophisticated parties with equal bargaining power. (*Carlson v American Intl. Group, Inc.*, 30 NY3d 288; *Oswego Laborers' Local 214 Pension Fund v Marine Midland Bank*, 85 NY2d 20; *Teller v Bill Hayes, Ltd.*, 213 AD2d 141; *People v Volkswagen of Am.*, 47 AD2d 868; *Interested Underwriters at Lloyd's of London Subscribing to Policy No.*

991361018 *v Church Loans & Invs. Trust*, 432 F Supp 2d 330; *New York Univ. v Continental Ins. Co.*, 87 NY2d 308; *Fleisher v Phoenix Life Ins. Co.*, 858 F Supp 2d 290; *Karlin v IVF Am.*, 93 NY2d 282; *Graham v Eagle Distrib. Co.*, 224 AD2d 921; *Guggenheimer v Ginzburg*, 43 NY2d 268.) II. The GHI Plan does not implicate consumer-oriented conduct because it is a private contract of insurance negotiated by sophisticated parties. (*New York Univ. v Continental Ins. Co.*, 87 NY2d 308; *Denenberg v Rosen*, 71 AD3d 187; *Teller v Bill Hayes, Ltd.*, 213 AD2d 141; *Exxonmobil Inter-America, Inc. v Advanced Info. Eng'g Servs., Inc.*, 328 F Supp 2d 443; *Matter of Civil Serv. Bar Assn., Local 237, Intl. Bhd. of Teamsters v City of New York*, 64 NY2d 188; *Matter of City of Watertown v State of N.Y. Pub. Empl. Relations Bd.*, 95 NY2d 73; *Guggenheimer v Ginzburg*, 43 NY2d 268; *North State Autobahn, Inc. v Progressive Ins. Group Co.*, 102 AD3d 5; *Elacqua v Physicians' Reciprocal Insurers*, 52 AD3d 886; *Koch v Greenberg*, 14 F Supp 3d 247.)

Stroock & Stroock & Lavan LLP, New York City (Alan M. Klinger and Dina Kolker of counsel), and *Greenberg Burzichelli Greenberg P.C.*, Lake Success (Harry Greenburg of counsel), for New York City Municipal Labor Committee, amicus curiae. General Business Law §§ 349 and 350 apply to communications authored solely by insurance companies, and aimed at government-employee consumers, about the scope of the coverage of government employer-sponsored plans. (*Gaidon v Guardian Life Ins. Co. of Am.*, 94 NY2d 330; *Oswego Laborers' Local 214 Pension Fund v Marine Midland Bank*, 85 NY2d 20; *North State Autobahn, Inc. v Progressive Ins. Group Co.*, 102 AD3d 5; *Accredited Aides Plus, Inc. v Program Risk Mgt., Inc.*, 147 AD3d 122; *Shebar v Metropolitan Life Ins. Co.*, 25 AD3d 858; *Genesco Entertainment, a Div. of Lymutt Indus., Inc. v Koch*, 593 F Supp 743; *New York Univ. v Continental Ins. Co.*, 87 NY2d 308; *United Teamster Fund v MagnaCare Admin. Servs., LLC*, 39 F Supp 3d 461; *Teller v Bill Hayes, Ltd.*, 213 AD2d 141; *Glassman v Glassman*, 309 NY 436.)

Letitia James, Attorney General, New York City (Mark S. Grube, Barbara D. Underwood and Steven C. Wu of counsel), for New York State Office of the Attorney General, amicus curiae. I. The New York City Municipal Labor Committee and The Citywide Health Program. II. The New York City Municipal Labor Committee—City Technical Committees.

OPINION OF THE COURT

STEIN, J.

The United States Court of Appeals for the Third Circuit has asked us to decide, in essence, whether plaintiff has sufficiently alleged consumer-oriented conduct to assert claims under General Business Law §§ 349 and 350 for damages incurred due to an insurance company’s alleged materially misleading representations made directly to the City of New York’s employees and retirees about the terms of its insurance plan to induce them to select its plan from among the 11 health insurance plans made available to over 600,000 current and former City employees. Because the complaint sufficiently alleged consumer-oriented conduct, we answer in the affirmative.

I.

The City offers its employees and retirees their choice of health insurance plans as part of their compensation and retirement packages. Plaintiff is a retired New York City police officer, who received health insurance coverage through the health care plan of defendant Group Health Incorporated (GHI). GHI is a not-for-profit corporation, operating as an indemnity insurer, that offers City employees its “Comprehensive Benefits Plan,” which provides in-network coverage and partial reimbursement for out-of-network services (the GHI Plan or Plan).

Plaintiff alleged that, at all relevant times, the GHI Plan was among 11 plans the City offered to approximately 600,000 employees and retirees on an annual or biannual basis.¹ The terms of these plans were negotiated between the City, the insurance vendors, and the New York City Municipal Labor Committee, which was comprised of various employee unions. Prior to an open enrollment period, the New York City Office of Labor Relations, on behalf of the City, assembled and distributed to employees and retirees a summary program description, which contained health plan descriptions prepared by each insurer. Plaintiff alleged that this document—the content of which was

1. This case arises from a motion to dismiss in federal district court and comes to us in the context of our acceptance of certified questions from the United States Court of Appeals for the Third Circuit. In certifying these questions, the Third Circuit stated that it would “take all well-pled allegations of the complaint as true, and . . . draw all inferences in favor of [plaintiff]” (2019 WL 1965741, *1 n 4, 2019 US App LEXIS 13573, *3 n 4, citing *McTernan v City of York, Penn.*, 577 F3d 521, 526 [3d Cir 2009]).

not reviewed by the City or Municipal Labor Committee—was the only one distributed to City employees and retirees regarding the GHI Plan before they were required to select a plan. In addition, as pertinent to plaintiff’s claims, GHI created its own online summary of benefits and coverage, which was available on its website. If an employee or retiree selected the GHI Plan, the City sponsored and paid the entire cost of the premiums therefor.

As relevant here, the complaint alleges that the summary program description and online summary (collectively, the summary materials) represented the GHI Plan as furnishing its members with extensive out-of-network coverage subject to deductibles and coinsurance, and “the freedom to choose any provider worldwide.” Further, the summary materials stated that the GHI Plan contained “additional Catastrophic Coverage” for “100% of the Catastrophic Allowed Charge as determined by GHI” if a member’s out-of-network expenses for predominantly in-hospital care exceeded \$1,500, and also represented that the Plan offered its members an optional rider, at an additional cost, that would provide enhanced coverage for certain services, increasing out-of-network reimbursements “on average, by 75%.” Relatedly, GHI stated in the materials that the out-of-network reimbursement fee schedule was “originally based on 1983 procedure allowances,” and that some of the rates would be updated “periodically.”

As further alleged in the complaint, beginning in 1984, plaintiff annually selected the GHI Plan and optional rider as his family’s health insurance plan, yet he was not provided with a certificate of insurance or a reimbursement schedule. From 2014 through 2015, plaintiff’s wife received numerous medical services, which GHI determined were out-of-network. As a result, contrary to plaintiff’s expectations based on the summary materials provided or available to him, GHI covered only a modicum of the medical claims, leaving plaintiff responsible for payment of the balance. For example, one medical provider billed \$512.66 for services, for which GHI ultimately allowed reimbursement of \$21.

Plaintiff commenced the underlying action in the United States District Court for the Middle District of Pennsylvania claiming, among other things, violations of General Business Law §§ 349 and 350 based on GHI’s allegedly misleading representations to City employees and retirees about the terms of its Plan. Plaintiff alleged that GHI made misleading state-

ments and omissions in its summary materials regarding the Plan’s out-of-network reimbursement rates, how often the reimbursement rate schedule was updated, the catastrophic coverage reimbursement rate, and the breadth of coverage of the optional rider—in order to induce plaintiff, and others similarly situated, to select the GHI Plan.² Additionally, plaintiff averred that GHI was the sole creator of its summary materials, and that the role of the New York City Office of Labor Relations was limited to assembling and distributing the program description.

GHI filed a pre-answer motion to dismiss the complaint for failure to state a claim, pursuant to Federal Rules of Civil Procedure rule 12 (b) (6). The District Court concluded that plaintiff had not adequately pleaded that, among other things, GHI’s conduct was consumer-oriented (*see* 323 F Supp 3d 684, 695-698 [MD Pa 2018]).³ Initially, the court rejected plaintiff’s argument that GHI’s alleged misconduct was consumer-oriented simply because it affected numerous City employees and retirees, reasoning that “the fact that a large class of members is affected [did] not automatically transform the plan into something that has ‘a broader impact on consumers at large’” (*id.* at 696, quoting *Oswego Laborers’ Local 214 Pension Fund v Marine Midland Bank*, 85 NY2d 20, 25 [1995]). However, the court noted that, by virtue of the large number of City employees, the City was “a powerful party in negotiations with insurance companies such as [GHI]” (*id.*). The court then opined that “the alleged deception [arose] out of a private contract negotiated between” GHI and the City—“two sophisticated institutions” (*id.*)—and, comparing this case to *New York*

2. Prior to plaintiff’s commencement of this action, the New York State Attorney General conducted an investigation, and concluded that GHI’s representations in connection with its summary materials—substantially similar as those at issue here—repeatedly violated General Business Law §§ 349 and 350. The Attorney General reasoned that GHI’s representations were harmful because City “employees and retirees cannot make well-informed decisions in selecting the appropriate health plan, if they are not afforded adequate information regarding the substantial out-of-pocket costs they may incur if they receive services from out-of-network providers.” As a result, in 2014, GHI entered into an Assurance of Discontinuance, wherein GHI did not admit guilt, but agreed to several remedial measures, including modification of all of its “consumer-facing materials” to “ensure that NYC employees and retirees are presented with clear information.”

3. The District Court further concluded that plaintiff’s “[General Business Law] claims separately fail[ed] because the [c]omplaint [had] not alleged materially misleading statements” (323 F Supp 3d 684, 703 [2018]).

Univ. v Continental Ins. Co. (NYU) (87 NY2d 308 [1995]), concluded that plaintiff was “not a mere consumer of the public” because the City had contracted with GHI on behalf of its employees and, therefore, “[t]he contract was aimed to benefit only a circumscribed class of individuals” (*id.*). Thus, the court held that

“[b]ecause there is no indication in the [c]omplaint that the plan would have been available to anyone who was not an employee of the City of New York, and because it is undisputed that [plaintiff’s] receipt of benefits from [GHI] arises from a contractual policy, [plaintiff’s General Business Law] claims fail to plead consumer-oriented conduct” (*id.* at 698).

Upon plaintiff’s appeal, the United States Court of Appeals for the Third Circuit determined that the dispositive issue was whether GHI had engaged in consumer-oriented conduct.⁴ Because, in its view, existing New York law did not clearly dictate the outcome of that issue, the Circuit Court certified the following questions:

“Where a contract of insurance is negotiated by sophisticated parties such as the City of New York and an insurance company, and where hundreds of thousands of City employees and retirees are third-party beneficiaries of that contract, and where the insurance company’s policy created pursuant to the contract is one of several health insurance policies from which employees and retirees can select, has the insurance company engaged in ‘consumer-oriented conduct’ under the GBL when:

“(1) The insurance company drafts summary plan information that allegedly contains materially misleading misrepresentations and/or omissions about the coverage and benefits of the insurance policy and sends these summary materials to the City, and the City does not check or edit these

4. In making this determination, the Third Circuit concluded that, if the alleged conduct was consumer-oriented, “the dismissal [would] not be affirmed because GHI’s statements and omissions, as alleged, [were] materially misleading” (2019 WL 1965741, *3, 2019 US App LEXIS 13573, *8). That issue was not the subject of these certified questions and, therefore, is not before this Court.

materials before sending them on to the City employees and retirees; OR

“(2) The insurance company directs City employees and retirees to information on the insurance company’s website that allegedly contains materially misleading misrepresentations and/or omissions about the coverage and benefits of the insurance policy?” (2019 WL 1965741, *3-4, 2019 US App LEXIS 13573, *8-9.)

We accepted these certified questions (33 NY3d 998 [2019]), and now answer them in the affirmative.

II.

In 1970, the legislature enacted General Business Law § 349, which declared unlawful any “[d]eceptive acts or practices in the conduct of any business, trade or commerce or in the furnishing of any service in this state” (General Business Law § 349 [a]). Similarly, General Business Law § 350, enacted in 1963, states that “[f]alse advertising in the conduct of any business, trade or commerce or in the furnishing of any service in this state” shall be unlawful. These consumer protection laws were passed in response to an “urgent need for legislation striking down all forms of deceptive acts and practices” (L 1970, ch 43, Attorney General’s Mem, 1970 NY Legis Ann at 92; *see* Letter from NY Dept of Law at 1, Bill Jacket, L 1963, ch 813 [section 350 was enacted “to provide needed authority to cope with the numerous, ever-changing types of false and deceptive business practices which plague consumers in our State”]). Although initially only the Attorney General’s Office could sue to enforce the statutes, the legislature subsequently amended both section 349 and 350 to add a private right of action for “any person who has been injured by reason of any violation of th[ese] section[s],” allowing injunctive relief and damages, as well as reasonable attorney’s fees (General Business Law § 349 [h]; *see* § 350-e [3]; *see also* L 1980, chs 345, 346; Governor’s Approval Mem, Bill Jacket, L 1980, ch 345).

This Court has recognized that General Business Law §§ 349 and 350 “on their face apply to virtually all economic activity, and their application has been correspondingly broad” (*Karlin v IVF Am.*, 93 NY2d 282, 290 [1999] [footnote omitted]); *accord Blue Cross & Blue Shield of N.J., Inc. v Philip Morris USA Inc.*, 3 NY3d 200, 205 [2004]; *Goshen v Mutual Life Ins. Co. of N.Y.*, 98 NY2d 314, 324 [2002]; *Small v Lorillard Tobacco Co.*,

94 NY2d 43, 55 [1999]). We have explained that, to state a claim under sections 349 or 350, “a plaintiff must allege that a defendant has engaged in (1) consumer-oriented conduct that is (2) materially misleading and that (3) plaintiff suffered injury as a result of the allegedly deceptive act or practice” (*Koch v Acker, Merrall & Condit Co.*, 18 NY3d 940, 941 [2012]; see *Goshen*, 98 NY2d at 324 n 1). Thus, a plaintiff claiming the benefit of either section 349 or 350 “must charge conduct of the defendant that is consumer-oriented” or, in other words, “demonstrate that the acts or practices have a broader impact on consumers at large” (*Oswego*, 85 NY2d at 25).

In *Oswego Laborers’ Local 214 Pension Fund v Marine Midland Bank*, which first described the scope of consumer-oriented conduct for purposes of these statutes, the defendant bank provided forms and advice to the plaintiffs—not-for-profit associations that opened savings accounts—that were also supplied to anyone who came into the bank seeking to open certain savings accounts (see *id.* at 23). However, the defendant did not disclose that it was opening accounts for the plaintiffs that capped the amount of principal on which interest would be paid, even though the plaintiffs qualified for not-for-profit accounts, which had no such cap; nor did the defendant initially reveal that interest would not be paid on deposits in excess of \$100,000 (see *id.*). Only after their accounts had been open for seven years did defendant inform plaintiffs that it had not been paying interest over the cap (see *id.* at 24). This Court concluded that the defendant’s conduct was “consumer-oriented” because the defendant “dealt with plaintiffs’ representative as any customer entering the bank to open a savings account, furnishing the [plaintiffs] with standard documents presented to customers upon the opening of accounts” (*id.* at 26). Additionally, the account openings were not “private in nature or a single shot transaction” (*id.* [internal quotation marks and citation omitted]). Thus, we held that the plaintiffs “satisfied the threshold test in that the acts they complain[ed] of [were] consumer-oriented in the sense that they potentially affect[ed] similarly situated consumers” (*id.* at 26-27).

In *Gaidon v Guardian Life Ins. Co. of Am.*, the defendant insurance companies had given the plaintiffs a standard marketing presentation and prepared for each of them a personalized illustration demonstrating that the life insurance policy the defendants offered eventually would result in a “vanishing premium”—namely, “that out-of-pocket premium payments

would vanish within a stated period of time” (94 NY2d 330, 338 [1999]). The illustrations, the plaintiffs contended, “were premised on dividend projections that [defendants] knew or should have known were untenable” (*id.* at 339). We held that the defendants’ conduct was consumer-oriented because, “[i]n contrast to a private contract dispute as to policy coverage, the practices before us involved an extensive marketing scheme that had ‘a broader impact on consumers at large’ ” (*id.* at 344 [citation omitted], quoting *Oswego*, 85 NY2d at 25). Similarly, in *Karlin v IVF Am.*, we applied General Business Law §§ 349 and 350 to medical service providers and held that a plaintiff can sustain consumer protection claims based on “deceptive acts and false advertising” concurrently with medical malpractice claims, so long as the consumer protection claims “alleged conduct beyond the purview” of malpractice (92 NY2d at 292-293). We explained that the “[d]efendants’ alleged multi-media dissemination of information to the public [was] precisely the sort of consumer-oriented conduct that is targeted by General Business Law §§ 349 and 350 . . . even though the subject of the conduct was *in vitro* fertilization” (*id.* at 293).

In contrast, we concluded in *NYU* that a General Business Law § 349 claim does not lie when the plaintiff alleges only “a private contract dispute over policy coverage and the processing of a claim which is unique to the[] parties, not conduct which affects the consuming public at large” (87 NY2d at 321 [internal quotation marks omitted]). We observed that the parties in question “were a major university acting through its director of insurance, and a large national insurance company,” and “[t]he sale was handled by one of the largest brokerages in the Nation, . . . which managed, through negotiation, to obtain several enhancements to the policy for plaintiff’s benefit and assisted it in presenting its loss claim to [defendant]” (*id.*). Additionally, we noted that the contract in *NYU* was not “the modest type of transaction the statute was primarily intended to reach” (*id.* [internal quotation marks and citation omitted]). Juxtaposing the facts of *Oswego*—where the bank forms and the advice had been supplied to “the consuming public at large, and in which the parties occupied disparate bargaining positions”—we held that the plaintiff in *NYU* had “not met the threshold requirement because defendants’ acts in selling [the] policy and handling the claim under it [did] not constitute consumer-oriented conduct” (*id.*).

III.

Here, although there was an underlying insurance contract negotiated by sophisticated entities—only one of which is a party to this action—neither plaintiff, nor any of the other hundreds of thousands of employees and retirees who participated in the GHI Plan, were participants in its negotiation and, critically, that negotiation was followed by an open enrollment period, which exposed City employees and retirees to marketing resembling a traditional consumer sales environment. During the open enrollment period, the employees and retirees could select only one of 11 previously-negotiated health insurance plans offered as part of their compensation and retirement packages from the City, and the insurers were able to market their health care plans directly to the employees and retirees. Significantly, it is the allegedly misleading summary materials that are the subject of plaintiff's case—not the contract between the City and GHI, which purportedly was never provided to City employees and retirees. Plaintiff alleged that GHI created misleading benefit and coverage summaries, which it published on its website and caused to be distributed by the City to all similarly situated employees and retirees, and that this marketing was critical to GHI's effort to induce City employees and retirees to select its Plan. Plaintiff asserted that GHI collected premiums only for its Plan, and it was, therefore, in GHI's financial interest for individual City employees and retirees to choose its Plan over the other available options. Simply put, plaintiff alleged that GHI was incentivized by the competition created during the open enrollment period to leverage its information advantage in order to gain the business of the employees and retirees over other insurers. In that manner, the open enrollment period resembles the sort of sales marketplace—characterized by groups of similarly-situated consumers subjected to the competitive tactics of a relatively more powerful business—that General Business Law claims were intended to address.

Plaintiff further claimed that he relied on the summary materials in selecting GHI's Plan and rider which, according to plaintiff, did not cover out-of-network procedures to the extent that the summary materials led him to expect, thereby causing plaintiff's alleged damages. Thus, plaintiff's complaint alleged claims that arose from the allegedly deceptive marketing materials distributed to plaintiff and the other City employees in order to induce them to select the GHI Plan over the other

options available to them, as well as to pay additional premiums for the allegedly worthless out-of-network rider. Under these circumstances, “plaintiff[] ha[s] satisfied the threshold test” by alleging that the marketing actions “are consumer-oriented in the sense that they potentially affect similarly situated consumers” (*Oswego*, 85 NY2d at 26-27). That is, GHI’s alleged “dissemination of information to” hundreds of thousands of City employees in order to solicit their selection of its plan “is precisely the sort of consumer-oriented conduct that is targeted by General Business Law §§ 349 and 350” (*Karlin*, 93 NY2d at 293).

Finally, we note that the General Business Law provisions at issue do not impose a requirement that consumer-oriented conduct be directed to *all* members of the public and, indeed, we have never implied that such a requirement exists. Here, by providing a choice of 11 options, the City created a health insurance marketplace for its approximately 600,000 employees and retirees, who were not direct parties to the contracts negotiated between the City and insurance vendors. GHI’s summary materials, prepared and edited solely by GHI, contained the only information provided to City employees and retirees when determining whether to select GHI’s Plan. Under these circumstances, we hold that the complaint adequately alleged consumer-oriented conduct (*see Gaidon*, 94 NY2d at 344; *Karlin*, 93 NY2d at 293; *Oswego*, 85 NY2d at 25; *cf. NYU*, 87 NY2d at 321).

Accordingly, the certified questions should be answered in the affirmative.

Chief Judge DiFiore and Judges Rivera, Fahey, Garcia, Wilson and Feinman concur.

Following certification of questions by the United States Court of Appeals for the Third Circuit and acceptance of the questions by this Court pursuant to section 500.27 of the Rules of the Court of Appeals (22 NYCRR), and after hearing argument by counsel for the parties and consideration of the briefs and the record submitted, certified questions answered in the affirmative.

[146 NE3d 1171, 124 NYS3d 12]

In the Matter of the Claim of SANDRA L. O'DONNELL, Respondent, v ERIE COUNTY et al., Appellants. WORKERS' COMPENSATION BOARD, Respondent.

Argued February 11, 2020; decided March 26, 2020

SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Third Judicial Department, entered June 14, 2018. The Appellate Division affirmed (1) a decision of a panel of the Workers' Compensation Board, filed August 18, 2016, which had determined, among other things, that claimant involuntarily withdrew from the labor market; and (2) an amended decision of that Board panel, filed July 19, 2017, which had determined, after consideration of issues raised in the employer's application for discretionary full board review, that (a) full Board review was not warranted; and (b) the August 18, 2016 Board panel decision should be amended to indicate that claimant was not required to demonstrate an ongoing attachment to the labor market.

Matter of O'Donnell v Erie County, 162 AD3d 1278, reversed.

HEADNOTES

Workers' Compensation — Reduced Earning Benefits — Permanent Partial Disability — Requirement to Demonstrate Ongoing Attachment to Labor Market

1. A 2017 amendment to Workers' Compensation Law § 15 (3) (w) eliminated any post-classification obligation on the part of a permanent partial disability claimant who was eligible for benefits when classified to demonstrate ongoing attachment to the labor market, but did not change the statutory framework pre-classification or the pre-classification application of the holding in *Matter of Zamora v New York Neurologic Assoc.* (19 NY3d 186 [2012]). A claimant who suffers a permanent partial disability may receive a reduced earnings award under section 15 (3) (w) upon proving that there exists a causal link between the claimant's disability and reduced earning capacity. However, under *Zamora*, the Workers' Compensation Board must find that the reduction in income is due to the disability and not to an unwillingness to work again. If the Board determines that a claimant classified with a permanent partial disability involuntarily retired from his or her job due to that disability, the Board may, but need not, draw an inference that the claimant's reduced future earnings resulted from the disability rather than from unwillingness to work. The language of the statutory amendment, speaking of "continuance of such permanent partial disability" and "ongoing attachment," made clear that it addressed the period after classification. The canon disfavoring interpreting statutes so as to overrule the

common law weighed in favor of retaining the part of the court-imposed rule that requires a claimant to show labor-market attachment at the time of classification.

Workers' Compensation — Reduced Earning Benefits — Permanent Partial Disability — Requirement to Demonstrate Ongoing Attachment to Labor Market

2. In a workers' compensation case in which it was undisputed that claimant, who was injured as a result of a slip and fall in the course of her job with respondent County, was permanently partially disabled and that her retirement was involuntary, the Workers' Compensation Board's change of position, after leave to appeal to the Court of Appeals had been granted, regarding claimant's need to demonstrate attachment to the labor market required remittal of the matter, without decision, to the Appellate Division for further remand to the Board. Respondents had challenged claimant's labor-market attachment because claimant testified at the hearing that since her retirement she had not looked for work, gone back to school or sought retraining. While respondents' request for full Board review was pending, Workers' Compensation Law § 15 (3) (w) was amended to eliminate any post-classification obligation on the part of a permanent partial disability claimant who was eligible for benefits when classified to demonstrate ongoing attachment to the labor market, but did not change the statutory framework pre-classification or the pre-classification application of common law. The Board, having initially concluded, based on that amendment, that claimant was not obligated to demonstrate an ongoing attachment to the labor market during the continuance of her permanent partial disability, subsequently argued that it departed from its established purported precedent requiring claimant to establish efforts to work or retrain, or provide evidence explaining her failure to do so. Under the circumstances, remittal of the matter was appropriate to allow the Board to develop a record of its purported precedent as applied to claimant and clarify its determination, and to permit claimant to challenge any adverse decision.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d Workers' Compensation §§ 29, 119, 360–362, 376–377, 381, 389, 527.
CARMODY-WAIT 2d Appeals to the Appellate Division § 72:134.
COUCH ON INSURANCE (3d ed) §§ 147:161, 173:7, 173:11–173:12, 173:28–173:29, 173:76, 174:28, 182:33.
McKINNEY'S, Workers' Compensation Law § 15 (3) (w).
NY JUR 2d Workers' Compensation §§ 14, 586, 728, 732, 902, 904–905, 910–911, 917, 925.

ANNOTATION REFERENCE

Workmen's compensation: right to compensation as affected by refusal to accept, or failure to seek, other employment, or by entering into business for oneself after injury. 63 ALR 1241.

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Query: work! /3 comp! & “permanent partial disability” &
ongoing /3 attach!

POINTS OF COUNSEL

Hamberger & Weiss, Buffalo (*Matthew M. Hoffman* of counsel), for appellants. I. The Workers’ Compensation Board erred by finding the claimant entitled to wage replacement benefits following her retirement and, therefore, she was not entitled to benefits at the time of her classification with a permanent partial disability. (*Burns v Varriale*, 9 NY3d 207; *Matter of Zamora v New York Neurologic Assoc.*, 19 NY3d 186; *Matter of Tipping v National Surface Cleaning Mgt., Inc.*, 29 AD3d 1200; *Matter of Ballou v Southworth-Milton, Inc.*, 107 AD3d 1084; *Matter of Jordan v Decorative Co.*, 230 NY 522; *Becker v General Elec. Co.*, 210 App Div 495; *Matter of Rigatti v Lollo & Sons*, 31 AD2d 871; *Matter of Yamonaco v Union Carbide Corp.*, 42 AD2d 1014; *Matter of Miller v Pan Am. World Airways*, 46 AD2d 718.) II. The Appellate Division erred by finding the April 2017 amendment to Workers’ Compensation Law § 15 (3) (w) applicable as the claimant conceded she failed to search for employment at the time she was classified with a permanent partial disability. (*Matter of Canales v Pinnacle Foods Group LLC*, 117 AD3d 1271; *Matter of Rosales v Eugene J. Felice Landscaping*, 144 AD3d 1206.)

Hurwitz, Whitcher & Molloy, Buffalo (*Robert E. Grey* of counsel), for Sandra L. O’Donnell, respondent. I. Upon finding that claimant-respondent did not voluntarily withdraw from the labor market, the Workers’ Compensation Board properly inferred that her loss of wages was caused by her permanent partial disability. (*Matter of Needleman v Queensboro Med. Group*, 31 AD2d 383; *Matter of Waters v Taylor Co.*, 218 NY 248; *Matter of Marhoffer v Marhoffer*, 220 NY 543; *Matter of Roberts v General Elec. Co.*, 6 AD2d 43; *Matter of Holman v Hyde Park Nursing Home*, 268 AD2d 705; *Matter of Mazziotto v Brookfield Constr. Co.*, 40 AD2d 245; *Matter of Peluso v Fairview Fire Dist.*, 269 AD2d 623; *Matter of Topf v American Character Doll & Toy Co.*, 62 AD2d 1111; *Matter of Jiminez v Waldbaums*, 9 AD3d 99; *Matter of Leeber v LILCO*, 29 AD3d 1198.) II. The decision in this case did not depend upon the 2017 amendment to Workers’ Compensation Law § 15 (3) (w).

III. The 2017 amendment to Workers' Compensation Law § 15 (3) (w) is applicable retroactively. (*Matter of Raynor v Landmark Chrysler*, 18 NY3d 48; *American Economy Ins. Co. v State of New York*, 30 NY3d 136; *Becker v Huss Co.*, 43 NY2d 527; *Majewski v Broadalbin-Perth Cent. School Dist.*, 91 NY2d 577; *Matter of Alonzo M. v New York City Dept. of Probation*, 72 NY2d 662; *Keene Corp. v United States*, 508 US 200.)

Letitia James, Attorney General, Albany (Patrick A. Woods, Barbara D. Underwood and Andrea Oser of counsel), for Workers' Compensation Board, respondent. The Court of Appeals should annul the amended determination as inconsistent with the Workers' Compensation Board's administrative precedent. (*Matter of Jordan v Decorative Co.*, 230 NY 522; *Matter of Charles A. Field Delivery Serv. [Roberts]*, 66 NY2d 516; *Matter of Terrace Ct., LLC v New York State Div. of Hous. & Community Renewal*, 18 NY3d 446; *People v Brown*, 28 NY3d 392; *Ellington v EMI Music, Inc.*, 24 NY3d 239; *Bingham v New York City Tr. Auth.*, 99 NY2d 355; *Matter of Mancini v Office of Children & Family Servs.*, 32 NY3d 521; *Matter of Avella v City of New York*, 29 NY3d 425; *El-Dehdan v El-Dehdan*, 26 NY3d 19; *Pajak v Pajak*, 56 NY2d 394.)

OPINION OF THE COURT

RIVERA, J.

Employer Erie County and its workers' compensation carrier challenge a Workers' Compensation Board decision upholding claimant's award for loss of post-accident earnings on the ground that, at the time of her disability classification, claimant failed to establish that she attempted to and could not find work commensurate with her abilities. In a shift of position, the Board now maintains that it departed from its administrative precedent by applying a discretionary inference in favor of claimant as permitted by *Matter of Zamora v New York Neurologic Assoc.* (19 NY3d 186 [2012]), without first requiring claimant to present evidence of her efforts to obtain work or get retrained. All parties agree that pursuant to *Zamora* the Board may, but need not, infer from the fact that a claimant involuntarily retired due to claimant's permanent partial disability that the claimant's reduced post-accident earnings resulted from that disability (*id.* at 191). All parties also agree that once initially so classified, a claimant entitled under Workers' Compensation Law § 15 (3) (w) to compensation for the disability-related loss of wage-earning capacity

need not demonstrate ongoing efforts to work or retrain for work after classification under the 2017 amendment to that provision. Given the parties' agreement on the applicable law, and the Board's representation that it departed from its purported precedent without explanation, we reverse and remit so that the Board may clarify its rationale and issue a decision in accordance with *Zamora*, which should include an explanation if it chooses to depart from an evidentiary requirement imposed on similarly situated claimants in prior proceedings.

I.

It is undisputed that claimant Sandra O'Donnell worked for respondent Erie County in various capacities for more than 28 years. While working as a probation officer, she slipped and fell in the course of her job, injuring her back, knees, and elbows. She returned to work but was unable to perform her duties fully—particularly after the County transferred her from juvenile probation to adult probation, over claimant's protests of the increased pain associated with her new duties, which required more standing and walking. She applied for and was granted disability retirement from the County and has not worked since that time.

After a hearing, a Workers' Compensation Law judge (WCLJ) found claimant involuntarily retired, classified her as having a nonschedule permanent partial disability under Workers' Compensation Law § 15 (3) (w), which entitled her to compensation for any disability-related loss of wage-earning capacity, and excused her from establishing efforts to work. On administrative appeal, the Board modified the decision by reducing claimant's percentage of loss of wage-earning capacity, and otherwise affirmed the WCLJ's decision. The Board rejected the argument, advanced by the County and its workers' compensation coverage administrator, FCS Administrators (hereinafter respondents), that claimant had not adequately shown that her lack of employment was a result of her work-related disability, rather than her preference not to work, within the meaning of *Zamora* (see 19 NY3d 186).

Respondents petitioned for review by the full Board. While that request was pending, the legislature amended Workers' Compensation Law § 15 (3) (w) to provide "[c]ompensation . . . during the continuance of such permanent partial disability, without the necessity for the claimant who is entitled to

benefits at the time of classification to demonstrate ongoing attachment to the labor market” (see L 2017, ch 59, § 1, part NNN, § 1, subpart A, § 1). The Board panel, among other things, reaffirmed claimant’s modified award, and further concluded that under Workers’ Compensation Law § 15 (3) (w), as amended, claimant “is not obligated to demonstrate an ongoing attachment to the labor market during the continuance of her permanent partial disability.”

The Appellate Division unanimously affirmed the Board’s decision (162 AD3d 1278 [3d Dept 2018]). We granted respondents leave to appeal (32 NY3d 907 [2018]). Thereafter, the Board moved to dismiss the appeal and for other relief, arguing that it had inadvertently strayed from its administrative precedent in this matter. We denied that motion (33 NY3d 1057 [2019]). In its brief on the merits, the Board continues to press the argument that its decision below was out of step with its precedent.

II.

The Workers’ Compensation Law provides a mechanism for compensation of workers who lose their earning power as a result of employment-related accidents (see *Matter of Marhofer v Marhoffer*, 220 NY 543, 546-548 [1917]). As relevant here, it is the Board’s obligation to determine whether the claimant suffered a work-related disability and the disability caused a wage-earning loss (see Workers’ Compensation Law § 20). A claimant who suffers a permanent partial disability—meaning the claimant is rendered less than totally disabled—“may receive a reduced earnings award” under Workers’ Compensation Law § 15 (3) (w) if the claimant “demonstrates that [their] reduced earnings are related to the partial disability” (*Burns v Varriale*, 9 NY3d 207, 216 [2007]). However, the Board must find that the reduction in income is due to the disability and not to an “unwillingness to work again” (*Zamora*, 19 NY3d at 191). In other words, the claimant is entitled to a statutory award upon proving that there exists a causal link between the claimant’s disability and reduced earning capacity (see *id.*; *Matter of Jordan v Decorative Co.*, 230 NY 522 [1921]).

As this Court explained in *Zamora*, “a central question for the Board to resolve, before awarding wage replacement benefits in a nonschedule permanent partial disability case, is ‘whether a claimant has maintained a sufficient attachment to the labor market,’ ” meaning that the claimant is willing to

work “consistent with [the claimant’s] physical limitations” (19 NY3d at 191, quoting *Burns*, 9 NY3d at 216). If the Board determines that a claimant classified with a permanent partial disability involuntarily “‘retired from [the claimant’s] job due to that disability,’” the Board “may” draw an inference that the claimant’s reduced future earnings resulted from the disability rather than from unwillingness to work (*id.* at 191-192 [emphasis omitted], quoting *Burns*, 9 NY3d at 216). *Zamora* expressly rejected the approach espoused in a line of Appellate Division cases that the inference was mandatory or presumed rather than permissible (see e.g. *Matter of Leeber v LILCO*, 29 AD3d 1198, 1199 [3d Dept 2006]; *Matter of Pittman v ABM Indus., Inc.*, 24 AD3d 1056, 1057 [3d Dept 2005]). The central holding of *Zamora* is that a determination of an involuntary retirement due to a permanent partial disability does not require a finding that the claimant automatically satisfied the causation prong of the claimant’s burden of proof. However, the Board may infer as much, based on its analysis of “the nature of the disability and the nature of the claimant’s work” in the specific case (*Zamora*, 19 NY3d at 192). *Zamora* further explained that if the Board declines to draw such an inference, the claimant may nevertheless establish through other evidence that the lost earning capacity resulted from the claimant’s disability and not from unwillingness to work, for example “[b]y finding alternative work consistent with [the claimant’s] limitations, or at least showing reasonable efforts at finding such work” (*id.* at 191).

[1] Here, the parties agree that claimant is permanently partially disabled and that her retirement was involuntary, but they dispute whether claimant’s loss of earnings was caused by her disability, and thus makes her eligible for loss of wage compensation under Workers’ Compensation Law § 15 (3) (w), as amended. All parties further agree that the 2017 amendment to Workers’ Compensation Law § 15 (3) (w) eliminated any post-classification obligation on the part of a permanent partial disability claimant who was eligible for benefits when classified to demonstrate ongoing attachment to the labor market, and does not change the statutory framework pre-classification. We agree this interpretation is correct. However, claimant’s further contention that the amendment to Workers’ Compensation Law § 15 (3) (w) changed the pre-classification application of the Court’s holding in *Zamora* is incorrect.

“[W]e begin our analysis with the language of the statute, recognizing that ‘our primary consideration is to ascertain and

give effect to the intention of the Legislature' ” (*Beck Chevrolet Co., Inc. v General Motors LLC*, 27 NY3d 379, 389 [2016], quoting *People v Ballman*, 15 NY3d 68, 72 [2010]). “In this endeavor we are guided by the principle that ‘the text of a provision is the clearest indicator of legislative intent and courts should construe unambiguous language to give effect to its plain meaning’ ” (*id.* at 390 [some internal quotation marks omitted], quoting *Matter of Albany Law School v New York State Off. of Mental Retardation & Dev. Disabilities*, 19 NY3d 106, 120 [2012]). The language of the amendment to Workers’ Compensation Law § 15 (3) (w), which speaks of “*continuance* of such permanent partial disability” and “*ongoing* attachment,” makes clear that it addresses the period after classification (Workers’ Compensation Law § 15 [3] [w] [emphasis added]). Thus, for this section to relieve a claimant of the former burden to demonstrate ongoing attachment, the claimant must have been classified initially as permanently partially disabled and found to be entitled to a loss of wage earnings compensation award. The Board General Counsel’s interpretation of the proposed amendment to Workers’ Compensation Law § 15 (3) (w) lends additional support to our understanding of the amendment’s purpose (Letter from David F. Wertheim, Workers’ Compensation Board General Counsel, May 23, 2017, Bill Jacket, L 2017, ch 59 at 29 [“It will be important for the Board to make labor market attachment determinations at the time of classification as claimants ‘entitled to benefits’ at that time . . . will have no continuing obligation to show labor market attachment under WCL § 15(3)(w)”]). Further, the canon disfavoring interpreting statutes so as to overrule the common law weighs in favor of retaining the part of the court-imposed rule that requires a claimant to show labor-market attachment at the time of classification, even though it plainly overrules the part of the rule requiring ongoing attachment thereafter (see *Oden v Chemung County Indus. Dev. Agency*, 87 NY2d 81, 86 [1995] [“(A) statute enacted in derogation of the common law . . . is to be construed in the narrowest sense that its words and underlying purposes permit”]).

III.

Respondents claim the Board improperly inferred labor-market attachment under *Zamora* and the Workers’ Compensation Law in this case. The Board argues that we should not address that issue on the record before us. According to the Board,

its post-*Zamora* practice has been to infer continuing labor-market attachment from an involuntary retirement “only when the employer does not dispute labor-market attachment.” If the employer does challenge the claimant’s labor-market attachment, the Board says it rejects the inference and demands a showing of evidence by the claimant that would satisfy the labor-market attachment requirement without the benefit of the inference, such as, for example, evidence that the claimant made “efforts to obtain or train for alternate employment,” or that the claimant’s doctor ordered the claimant not to return to work.

Here, respondents challenged claimant’s labor-market attachment because claimant testified at the hearing that since her retirement she had not looked for work, gone back to school or sought retraining. According to the Board, it implicitly inferred that claimant remained attached to the labor market. Although it previously defended that decision, the Board has changed course and now requests that we remand because it did not follow or explain its departure from its purported administrative precedent that requires claimant to establish efforts to work or retrain, or provide evidence explaining her failure to do so.

[2] Given the procedural posture of this appeal—where the Board changed position after we granted leave and now represents that it departed from its established purported precedent, and the parties agree on the meaning of Workers’ Compensation Law § 15 (3) (w) as amended and applied to claimant’s case post-classification—a ruling from us at this juncture would be limited to these unique facts and to an administrative action that the Board claims is not its normal practice. Under the circumstances, we conclude the better course is to remit this matter to the Appellate Division for further remand to the Board. We do not take any position on this appeal as to whether the Board’s decision below in fact violated a line of internal administrative precedent, nor whether any such precedent or purported “evidentiary requirement” comports with the law, including *Zamora*, as those questions are not properly before us.

To be clear, by remitting without deciding whether the Board violated internal precedent, we do not hold that in another case, an agency’s bare representation that it failed to follow internal precedent would be grounds for vacatur and remand to the agency. However, here, remittal will permit the Board to

develop a record of its purported precedent as applied to claimant and clarify its determination whether to draw an inference in accordance with *Zamora*'s core holding. It also permits claimant an opportunity to challenge any adverse decision if she believes, as she now argues, that the Board has misapplied *Zamora* or other applicable law.

The order of the Appellate Division should be reversed, with costs, and the matter remitted to that Court with instructions to remand to the Board for further proceedings in accordance with this opinion.

Chief Judge DiFIORE and Judges STEIN, FAHEY, GARCIA, WILSON and FEINMAN concur.

Order reversed, with costs, and matter remitted to the Appellate Division, Third Department, with directions to remand to the Workers' Compensation Board for further proceedings in accordance with the opinion herein.

[147 NE3d 1131, 124 NYS3d 593]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v CAD-
MAN WILLIAMS, Appellant.

Argued February 12, 2020; decided March 31, 2020

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered February 8, 2018. The Appellate Division affirmed a judgment of the Supreme Court, Bronx County (Dominic R. Massaro, J.), which had convicted defendant, upon a jury verdict, of manslaughter in the first degree and criminal possession of a weapon in the second degree.

People v Williams, 158 AD3d 471, affirmed.

HEADNOTES

Crimes — Evidence — DNA Identification Tests — Admission of Low Copy Number DNA Evidence and Analysis Using Forensic Statistical Tool without *Frye* Hearing

1. In a criminal prosecution, the trial court abused its discretion as a matter of law in admitting low copy number (LCN) DNA evidence and the results of an analysis conducted using the proprietary forensic statistical tool (FST) developed and controlled by the New York City Office of Chief Medical Examiner (OCME) linking defendant to the gun used in a fatal shooting without first holding a *Frye* hearing. Judicial precedent finding that LCN testing, as performed by OCME, was generally accepted as reliable in the forensic scientific community was based on review of what was OCME's own, internal support for its process, as well as evidence reflecting that such methodology had been used worldwide. Therefore, the analysis did not adequately assess whether OCME's LCN testing was generally accepted within the relevant scientific community. Defendant was not required to establish, in his motion papers, that LCN evidence was generally not accepted by the relevant scientific community in order to obtain a hearing to resolve the question of general acceptance. Defendant's submissions raised sufficient questions regarding the general acceptance of the LCN evidence, based on its lack of use by other laboratories, the absence of prior meaningful review, and the scientific articles proffered by defendant questioning the reliability of the evidence for criminal prosecution. Similarly, the insular endorsement of FST by the DNA Subcommittee of the New York State Commission on Forensic Science was no substitute for the scrutiny of the relevant scientific community. The FST should be supported by those with no professional interest in its acceptance. *Frye* demands an objective, unbiased review.

Crimes — Harmless and Prejudicial Error — Admission of Low Copy Number DNA Evidence and Analysis Using Forensic Statistical Tool without *Frye* Hearing — Overwhelming Evidence of Guilt

2. In a criminal prosecution, the trial court's errors in admitting expert testimony with respect to low copy number DNA evidence and forensic

statistical tool results linking defendant to the gun used in a fatal shooting without first holding a *Frye* hearing were harmless, as the evidence of defendant's guilt was overwhelming and there was no significant probability that the jury would have acquitted defendant had it not been for the errors. The People presented video evidence of the shooting, eyewitness testimony identifying defendant as the shooter, and testimony of defendant's former girlfriend explaining that defendant forced her to stow the gun used in the shooting in her apartment immediately after the incident and admitted to her that "he had just shot somebody."

Crimes — Right to Counsel — Effective Representation — Failure to Advance Argument with Little Chance of Success — Justification Defense

3. In defendant's prosecution arising from an altercation in which he fatally shot the victim after the victim swung a baseball bat at another person involved in the dispute, trial counsel was not ineffective for failing to object to the instruction that the jury must determine whether the use of deadly physical force was justified with respect to each of the two gunshots that struck the victim. An objection on that point was unlikely to have succeeded, and trial counsel cannot be ineffective for failing to advance an argument that has little or no chance of success. Defendant argued that because the People's medical expert testified that each of the two gunshots that struck the victim was fatal, the second gunshot necessarily was academic with respect to the justification analysis because the first shot killed the victim. The jury, however, was free to reject the testimony of that expert with respect to the conclusion that the victim could have been killed solely by the first gunshot. To the extent the jury believed the second gunshot was at least partially responsible for the victim's death, the challenged jury instruction would have been appropriate.

Crimes — Right to Counsel — Effective Representation — Failure to Advance Argument with Little Chance of Success — Initial Aggressor Exception to Justification Defense

4. In defendant's prosecution arising from an altercation in which he fatally shot the victim after the victim swung a baseball bat at another person involved in the dispute, trial counsel was not ineffective for failing to object to the part of the jury instruction containing the "initial aggressor" exception to the justification defense. A person may not use physical force upon another person to defend himself or herself when that person is the initial aggressor. Where there is a reasonable view of the evidence that the defendant is the initial aggressor, the court may instruct the jury with respect to that exception to the justification defense. The People adduced testimony that defendant shot the victim after the baseball bat held by the victim had shattered and no longer presented a threat, meaning that the initial aggressor instruction was appropriate. Inasmuch as an objection to that instruction was unlikely to succeed, and inasmuch as trial counsel cannot be ineffective for failing to make a motion that has little or no chance of success, defendant's contention with respect to ineffective assistance of counsel lacked merit.

Crimes — Evidence — Tape Recordings — Admission of Recording of Telephone Call Made by Defendant while Incarcerated

5. The trial court in defendant's criminal prosecution did not abuse its discretion as a matter of law in admitting into evidence a recording of a telephone call defendant made while incarcerated before trial. Defendants who use the public telephone system in a correctional facility while warned

of the potential that such calls may be recorded impliedly consent to the taping of those conversations.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d Appellate Review §§ 610, 615, 622, 658; AM JUR 2d Criminal Law §§ 1111–1116; AM JUR 2d Evidence §§ 994, 1013.

CARMODY-WAIT 2d Right to Counsel §§ 184:253, 184:262, 184:271; CARMODY-WAIT 2d Particular Types of Evidence §§ 194:64, 194:65, 194:200, 194:209, 194:258; CARMODY-WAIT 2d Appeals in Criminal Cases § 207:125.

LAFAVE, ET AL., CRIMINAL PROCEDURE (4th ed) §§ 11.10, 24.4.

NY JUR 2d Criminal Law: Procedure 867, 872, 889, 2219, 2261, 2264, 3672, 3673, 3676, 3677.

ANNOTATION REFERENCE

See ALR Index under Attorneys; DNA; Frye Test; Harmless and Prejudicial Error; Instructions to Jury; Justification or Excuse; Sound Recordings.

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POINTS OF COUNSEL

Robert S. Dean, Center for Appellate Litigation, New York City (Mark W. Zeno of counsel), for appellant. I. Where the court declined to hold a *Frye* hearing to assess whether the New York City Office of Chief Medical Examiner's novel high-sensitivity low copy number DNA testing and its forensic statistical tool produced results that were generally accepted as reliable in the scientific community, and instead relied on conclusions reached by two trial-level decisions finding general acceptance, it was error depriving appellant of due process to admit the results of those processes, which purported to provide very strong support for the People's contention that appellant had handled the alleged murder weapon. (*Frye v United States*, 293 F 1013; *People v LeGrand*, 8 NY3d 449; *People v Wesley*, 83 NY2d 417; *United States v Addison*, 498 F2d 741; *People v Middleton*, 54 NY2d 42; *Marso v Novak*, 42 AD3d 377; *People v*

Lee, 96 NY2d 157; *Jones v United States*, 548 A2d 35; *Matter of Lahey v Kelly*, 71 NY2d 135; *People v Magri*, 3 NY2d 562.) II. Because the deceased sustained two gunshot wounds, each independently fatal, counsel was ineffective for permitting the court to charge, without objection, that in assessing appellant's justification defense, the jury had to determine whether each shot was justified, and that appellant could not be justified if he was the "initial aggressor." (*People v Del-Debbio*, 244 AD2d 195; *People v Reeder*, 209 AD2d 551; *People v Delin*, 145 AD3d 566; *People v Carrera*, 282 AD2d 614; *Crane v Kentucky*, 476 US 683; *People v Valentin*, 29 NY3d 57; *People v Ozarowski*, 38 NY2d 481; *People v Walker*, 26 NY3d 170; *People v Andujas*, 79 NY2d 113; *People v Petty*, 7 NY3d 277.) III. Because appellant's recorded call, made while he was in pretrial detention on Rikers Island, contravened the wiretapping laws, the court should have excluded it from evidence. (*People v Johnson*, 27 NY3d 199; *United States v Amen*, 831 F2d 373; *United States v Daniels*, 902 F2d 1238; *Villa v Maricopa County*, 865 F3d 1224; *United States v Cheely*, 814 F Supp 1430; *Watkins v L.M. Berry & Co.*, 704 F2d 577; *People v Diaz*, 149 AD3d 974; *People v Lopez*, 16 NY3d 375; *People v Crimmins*, 36 NY2d 230.)

Darcel D. Clark, District Attorney, Bronx (*Robert C. McIver*, *Nancy D. Killian* and *Peter D. Coddington* of counsel), for respondent. I. The court below properly determined that the New York City Office of Chief Medical Examiner's low copy number testing and forensic statistic tool methodology are generally accepted by the scientific community. Any error on this point is harmless. (*People v Iannelli*, 69 NY2d 684; *People v Wesley*, 83 NY2d 417; *People v Assi*, 63 AD3d 19, 14 NY3d 335; *People v LeGrand*, 8 NY3d 449; *People v Bedessie*, 19 NY3d 147; *People v Lee*, 96 NY2d 157; *Parker v Mobil Oil Corp.*, 7 NY3d 434; *People v Brooks*, 31 NY3d 939; *People v Byrd*, 51 AD3d 267; *People v Hall*, 266 AD2d 160.) II. Defense counsel provided meaningful representation and was not ineffective for failing to request that the trial court deviate from accepted justification charges. (*People v Del-Debbio*, 244 AD2d 195; *People v Martinez*, 127 AD3d 551; *People v Blake*, 24 NY3d 78; *People v Baldi*, 54 NY2d 137; *People v Caban*, 5 NY3d 143; *People v Turner*, 5 NY3d 476; *People v McGee*, 20 NY3d 513; *People v Brunner*, 16 NY3d 820; *People v Borrell*, 12 NY3d 365; *People v Howard*, 22 NY3d 388.) III. The court below properly admitted a recording of defendant's Rikers Island telephone call. (*People v Johnson*, 27 NY3d 199.)

Weil, Gotshal & Manges LLP, New York City (*Konrad Cailteux* and *Carolyn R. Davis* of counsel), and *Innocence Project, Inc.*, New York City (*M. Chris Fabricant* of counsel), for The Innocence Project, amicus curiae. I. New York courts applying *Frye v United States* (293 F 1013 [DC Cir 1923]) should not use the “novelty test” to avoid further analysis of scientific evidence. (*People v Wesley*, 83 NY2d 417; *People v LeGrand*, 8 NY3d 449; *Commonwealth v Foley*, 38 A3d 882; *People v Calabro*, 161 AD2d 375; *Compare Marso v Novak*, 42 AD3d 377; *People v Garcia*, 39 Misc 3d 482.) II. New York courts should not mistake legal precedent for an analysis of reliability in evaluating scientific evidence under *Frye v United States* (293 F 1013 [DC Cir 1923]). (*Cornell v 360 W. 51st St. Realty, LLC*, 22 NY3d 762; *Daubert v Merrell Dow Pharmaceuticals, Inc.*, 509 US 579; *Parker v Mobil Oil Corp.*, 7 NY3d 434; *People v Foster-Bey*, 158 AD3d 641.) III. This Court should provide guidance on the appropriate scope of the “relevant scientific community.” (*People v Garcia*, 39 Misc 3d 482; *People v Collins*, 49 Misc 3d 595; *Cornell v 360 W. 51st St. Realty, LLC*, 22 NY3d 762; *People v Wesley*, 83 NY2d 417; *People v Smith*, 63 NY2d 41; *Starks v City of Waukegan*, 123 F Supp 3d 1036; *Frye v United States*, 293 F 1013; *Reed v State*, 391 A2d 364; *Melendez-Diaz v Massachusetts*, 557 US 305; *People v John*, 27 NY3d 294.) IV. New York’s interest in effectively scrutinizing scientific evidence for reliability could be aided by using the factors discussed in *Daubert v Merrell Dow Pharmaceuticals, Inc.* (509 US 579 [1993]) to conduct a *Frye* analysis. (*Motorola Inc. v Murray*, 147 A3d 751; *People v Calabro*, 161 AD2d 375; *Parker v Mobil Oil Corp.*, 7 NY3d 434; *People v Vining*, 28 NY3d 686; *People v Johnson*, 27 NY3d 199; *People v Boone*, 30 NY3d 521.)

Jones Day, New York City (*Meir Feder* and *Donald L.R. Goodson* of counsel), for Office of the Appellate Defender, Inc. and others, amici curiae. I. The lower courts misapplied this Court’s precedents to permit unreliable science to reach the jury. (*People v Wesley*, 83 NY2d 417; *People v LeGrand*, 8 NY3d 449; *Jones v United States*, 548 A2d 35; *People v Foster-Bey*, 158 AD3d 641; *People v Garcia*, 39 Misc 3d 482; *People v Collins*, 49 Misc 3d 595; *People v Megnath*, 27 Misc 3d 405; *People v Gonzalez*, 155 AD3d 507; *People v Jeter*, 80 NY2d 818.) II. *People v Foster-Bey* (158 AD3d 641 [2d Dept 2018]) and *People v Williams* (158 AD3d 471 [1st Dept 2018]) are not isolated mistakes: courts have made the same errors in other contexts. (*Matter of Nicole V.*, 71 NY2d 112; *Matter of Bethany F. [Michael F.]*, 85 AD3d 1588; *Commonwealth v Dunkle*, 602 A2d

830; *State v J.L.G.*, 190 A3d 442; *Matter of Lou R.*, 131 Misc 2d 138; *Matter of Antoine J.*, 185 AD2d 925; *People v Yates*, 290 AD2d 888; *People v Flores-Estrada*, 55 Misc 3d 1015; *People v Thomas*, 46 Misc 3d 945; *People v Bailey*, 144 AD3d 1562.) III. The Court should clarify the standard for relying on earlier *Frye* rulings. (*Jones v United States*, 548 A2d 35; *Matter of Lahay v Kelly*, 71 NY2d 135; *People v Middleton*, 54 NY2d 42; *People v Wesley*, 83 NY2d 417; *People v Seda*, 139 Misc 2d 834; *People v Boone*, 30 NY3d 521; *People v Foster-Bey*, 158 AD3d 641; *People v Gonzalez*, 155 AD3d 507; *People v Magri*, 3 NY2d 562.)

The Legal Aid Society, New York City (*David Loftis, J. David Pollock* and *Terri S. Rosenblatt* of counsel), and *Hughes Hubbard & Reed LLP*, New York City (*William Beausoleil, Marc Weinstein, Miles Orton* and *Sabrina Tribié* of counsel), for The Legal Aid Society, amicus curiae. I. The New York City Office of Chief Medical Examiner's low copy number DNA testing and forensic statistical tool are novel techniques that have not gained general acceptance in the relevant scientific community. (*People v Foster-Bey*, 158 AD3d 641; *People v Wesley*, 83 NY2d 417; *Frye v United States*, 293 F 1013; *People v LeGrand*, 8 NY3d 449; *Parker v Mobil Oil Corp.*, 7 NY3d 434; *Stajic v City of New York*, 214 F Supp 3d 230; *People v Collins*, 49 Misc 3d 595; *People v Garcia*, 39 Misc 3d 482; *People v Bullard-Daniel*, 54 Misc 3d 177.) II. Lower courts require guidance on determining the admissibility of novel scientific methods.

OPINION OF THE COURT

FAHEY, J.

Over 150 years ago the science of genetics was born. It grew out of the beloved garden of Gregor Mendel's pea plants. It has come to be as important to our perception of the modern world as the atom or the byte. This revolution in our understanding of biology extends to most aspects of medical science.

In the criminal justice system, it has provided forensic science with one of the most powerful tools for identification yet seen. DNA testing has become the "gold standard" of this process.

For this reason, more than any other, courts must use the tools available to make sure that the highest standards of reliability are maintained.

The primary issue on this appeal is whether the trial court should have held a *Frye* hearing (*see Frye v United States*, 293

F 1013 [DC Cir 1923]) with respect to the admissibility of low copy number (LCN) DNA evidence and the results of a statistical analysis conducted using the proprietary forensic statistical tool (FST) developed and controlled by the New York City Office of Chief Medical Examiner (OCME). Under the circumstances of this case, we conclude that the trial court abused its discretion as a matter of law in admitting that evidence without holding such a hearing. However, inasmuch as the error is harmless, and inasmuch as defendant's other contentions lack merit, we ultimately conclude that the judgment should not be disturbed.

Facts

A.

In May 2008 the victim and his brother had a dispute with several teenagers in the Bronx. That dispute ended in the death of the victim following an incident in which he swung a baseball bat at one of the teenagers. The use of the bat apparently prompted defendant, who was present with the group of teenagers, to grab a gun and fire four bullets at the victim.

Two of those bullets struck the victim, who subsequently staggered into the lobby of a nearby apartment building and died a short time later. The medical examiner determined that one of the bullets entered the left side of the victim's face, and that the second projectile punctured the right side of his back. The examiner also concluded that each of the wounds was fatal.

Defendant escaped the scene of the shooting and had the gun hidden in the apartment of a former girlfriend before he fled to neighboring states. Defendant eventually was arrested in Brooklyn several months later, and the gun in question was recovered from a covered wall cavity in the aforementioned apartment prior to his prosecution. At trial, the People presented evidence with respect to those facts, including eyewitness testimony identifying defendant as the shooter and video footage placing him at the scene of that incident. The People also presented testimony from defendant's former girlfriend explaining that defendant forced her to stow the gun used in the shooting in her apartment immediately after that incident and admitted to her that "he had just shot somebody."

Trial also saw the People present evidence with respect to DNA testing that was conducted with the goal of providing a

scientific link between defendant and the subject gun. That DNA testing revealed that there was a mixture of DNA from at least two contributors on the firearm. OCME initially was unable to link defendant's DNA profile to the DNA found on the gun through "standard" DNA testing.¹ Eventually, though, what an expert for the People characterized as a "sensitive" form of traditional DNA review (that is, the LCN testing) and a proprietary "calculator" (that is, the FST)² yielded the conclusion that it was millions of times more likely that the DNA mixture found on the gun contained contributions from defendant and one unknown, unrelated person, rather than from two unknown, unrelated people.³

1. In this context, "standard" DNA testing generally refers to the polymerase chain reaction, or PCR, technique involving 28 amplification cycles of DNA loci (*see generally People v John*, 27 NY3d 294, 298 [2016]). In the PCR process, a specific region of DNA is replicated over and over again to yield many copies of a particular sequence, which permits minute amounts of DNA to be examined (John M. Butler, *Fundamentals of Forensic DNA Typing* at 7, 125, 126 [2009]).

2. The addendum to this opinion contains a more detailed explanation of the nature of the LCN evidence and the FST calculations in question on this appeal.

3. OCME's findings were the culmination of a series of four reports issued over a period of approximately seven months in which OCME, respectively,

1. used PCR DNA testing to determine that mixtures of DNA from at least two people were present on the trigger and grip areas of the gun, but that the DNA profiles of individual contributors to the mixture could not be determined;

2. determined that, based on a DNA profile developed from a buccal swab sample and a PCR analysis, defendant could not be excluded as a contributor to the mixtures found on the grip and trigger areas of the gun;

3. determined that, based on LCN testing and an FST analysis, it was (a) 4.13 million times more probable that the DNA mixture found on the handle area of the gun originated from defendant and one unknown, unrelated person than from two unknown, unrelated contributors, and (b) 131,000 times more probable that the DNA mixture found on the trigger area of the gun originated from defendant and one unknown, unrelated person than from two unknown, unrelated contributors; and, finally,

4. following a recalculation based on additional LCN testing and FST analysis, ultimately concluded that it was (a) 125 million times more probable that the DNA mixture found on the handle area of the gun originated from defendant and one unknown, unrelated person than from two unknown, unrelated contributors, and (b) 1.97 million times more probable that the DNA mixture found on the trigger area of the gun originated from defendant and one unknown, unrelated person than from two unknown, unrelated contributors.

B.

The LCN and FST evidence did not reach the jury without protest. Prior to trial defendant had moved for an order precluding the People from introducing expert testimony regarding any conclusion reached by either the use of LCN testing or the FST on the ground that such methods were not generally accepted as reliable by the relevant scientific community. In the alternative, defendant sought an order directing that a *Frye* hearing be held with respect to the reliability of any proposed evidence generated through LCN and FST review. That application is the focal point of this appeal.

Defendant's Support for the *Frye* Motion

The LCN testing process, as noted in the addendum, obtains DNA profiles from a very minute amount of genetic material by increasing the number of amplification cycles (28 in a “standard” test, and 31 using this method) used to copy that DNA. In support of the *Frye* motion defendant put before the motion court, among other things, evidence in the form of an expert averment that “no generally accepted guidelines for the testing, analysis, or interpretation of LCN [had] been agreed upon by the forensic community,” and that “[t]he use of LCN testing [was] still highly debated within the forensic community due [to] the unreliability of the LCN profiles generated.” The same expert did “not believe that profiles generated from LCN testing [were] reproducible, reliable or valid for the implementation for DNA testing associated with criminal casework” and noted that LCN testing was “not implemented within” the out-of-state laboratory in which he was employed.⁴

Supplementing that sworn expert submission were 10 scholarly articles and comments questioning the validity and robustness of LCN analysis. One of those texts explained that “it is fair to say that LCN typing is the subject of great dispute among some of the leading lights of the forensic community,” while another noted “the acknowledged lack of consensus in interpretation” of LCN tests, the “unlikel[i]hood that LCN tests . . . [would] be embraced by crime laboratories in the [United States],” and the likelihood “that such results would be deemed to be [in]admissible if they were challenged.” Other parts of those materials discussed the “highly charged debate in the

4. That expert worked as a Forensic Scientific Examiner in the Nuclear DNA Casework Unit of the Connecticut Forensic Lab.

science and law-enforcement communities about [LCN] analysis.”

The evidence defendant put before the motion court with respect to the LCN question also indicated that only one publicly funded laboratory—located at the University of North Texas Health Science Center (UNTHSC)—performed LCN testing. “For purposes of admissibility in a court proceeding,” defendant cautioned, “the UNTHS[C] lab only perform[ed] LCN testing for missing persons identification.”

Interestingly, the executive director of applied genetics at UNTHSC and perhaps “the father of American DNA analysis” (*People v Collins*, 49 Misc 3d 595, 608 [Sup Ct, Kings County 2015]), Dr. Bruce Budowle, coauthored one of the scholarly articles tendered to the motion court in support of the *Frye* motion. That article noted that a “[c]laim[] ha[d] been made recently” in *People v Megnath* (27 Misc 3d 405 [Sup Ct, Queens County 2010]) “that LCN typing is generally accepted as being reliable.” Dr. Budowle and his coauthors, however, believed that conclusion “difficult to substantiate . . . because of the inherent lack of reproducibility of the current LCN method(s).” The conclusion to that article explained that Dr. Budowle and his coauthors would not endorse OCME’s “flawed” LCN testing practices, which the writers believed to be “inconsistently applied [to overstate] the weight of the evidence.” The title the authors chose for that article distilled those points and neatly summarized defendant’s case with respect to the LCN question; the authors labeled this piece, *Low Copy Number Typing Has Yet to Achieve “General Acceptance.”*

Defendant’s case with respect to the FST was thinner, but with good reason. Defendant characterized the FST as a program “developed by the OCME itself” that had “not been adequately subjected either to validation or peer review by anyone else in the relevant scientific community.” Outside validation, defendant suggested, would have been impossible because OCME had not “shared” the software. That black box approach, defendant continued, was contrary to the tack recommended by the Committee on DNA Technology in Forensic Science of the National Research Council, which had concluded that “[q]uality-assurance programs in individual laboratories alone are insufficient to assure high standards” and recom-

mended “[e]xternal mechanisms . . . to ensure adherence to the practices of quality assurance.”⁵

The People’s Opposition to the *Frye* Motion

In opposing the motion, the People contended that LCN evidence could be admitted in the absence of a *Frye* hearing because OCME had “submitted extensive validation studies detailing [its] protocols and procedures,” which had been examined and certified by the New York State Commission on Forensic Science. Along those lines, the People noted that “OCME has long been recognized as the gold standard of forensic institutions not only in all of the United States, but indeed in the world,” and that OMCE is subject to yearly audits conducted by outside agencies such as the National Forensic Science Technology Center, which employ auditors trained by the FBI.

The People also noted that, at the time of this motion practice, LCN evidence had “been admitted 140 times in New York State Supreme Court” and in at least 12 foreign courts. Although OCME was the only government facility in the United States “issuing results of LCN testing,” the People added that there were “many private laboratories and universities both [domestically] and abroad performing [such] testing and reporting results, including the [UNTHSC], where defense DNA expert [Dr.] Bruce Budowle [taught].”

Finally, at least with respect to the LCN question, the People noted that the LCN procedure was “not based on new or novel scientific techniques,” and was not newly applied to forensic casework inasmuch as “[t]he procedures and protocols used to extract the DNA and make comparisons [had] been around for over 25 years.” And “[b]ecause [LCN] testing employs no different scientific process to examine and analyze smaller amounts of DNA than the established and universally accepted PCR [DNA testing, the People characterized it as] an acceptable science that falls outside the strictures of a *Frye* hearing.”

With respect to the FST issue, the People similarly maintained that such evidence should be admitted without a *Frye*

5. Based on, among other things, counsels’ review of *Frye* applications in other matters considering the use of LCN analysis and the FST, defendant also questioned the accuracy of the likelihood calculations produced by the FST. Defendant asserted that such calculation improperly assumed allelic drop-out, which occurs when a piece of DNA is not seen in a DNA result, even though it is known to be in a sample (*see* addendum to this opinion).

hearing because “numerous articles published in peer-reviewed scientific journals” supported the point that “the analytical software employs well-established principles such as Bayesian statistics and likelihood ratios which are used in many areas of science including forensics, medicine and social sciences.”⁶ The People added that “FST does not change the results of the DNA tests performed in a case” and that, given both the thorough review of the FST by the DNA Subcommittee of the New York State Commission on Forensic Science and the exhaustive validation of that tool by OCME, the relevant scientific community had accepted the FST as reliable.

C.

At the time this motion practice was initiated no court had completed a *Frye* hearing with respect to the FST, and only one court—namely, the *Megnath* (27 Misc 3d 405) court questioned by Dr. Budowle—had conducted such a hearing with respect to LCN testing. Nevertheless, by order rendered March 5, 2014, the motion court denied the application in its entirety. With respect to the LCN issue, the court relied almost exclusively on *Megnath* (27 Misc 3d 405), quoting that decision’s conclusion that LCN analysis “‘is basically the same method of DNA testing that occurs with [traditional high copy number review]’” inasmuch as “‘[t]he only difference [in approach] is that the LCN method can test smaller amounts of DNA by increasing the amplification cycles’” (*id.* at 410).

With respect to the FST issue, the court relied on the approval of such tool by the “Subcommittee on DNA Evidence,” reasoning that because the Subcommittee “itself is a distinguished cross-section of the scientific community,” that body’s approval of the FST “can easily be equated with general acceptance of this methodology in the relevant scientific [society].” In that vein, the court referred to *People v Rodriguez* (Sup Ct, NY County, Oct. 24, 2013, Carruthers, J., indictment No. 5471/2009), which was decided during the pendency of this motion practice and which concluded following a *Frye* hearing that FST evidence was admissible based on an internal validation by OCME and approval by the DNA Subcommittee of the New

6. That is, the People essentially contended that because the mathematical and analytical tools built into the FST software are accepted in other areas of use, so too should they be deemed generally accepted here and exempted from the scrutiny of a *Frye* hearing.

York State Commission on Forensic Science. The court also pointed to *People v Garcia* (39 Misc 3d 482 [Sup Ct, Bronx County 2013]), which had concluded that “a *Frye* hearing is [not] required before the prosecution can introduce . . . testimony concerning the [FST] used to calculate likelihood probability ratios when testing a mixture containing several DNA profiles” (*id.* at 483).

The result was the same when defendant moved to renew and/or reargue the application in November 2014. The rekindling of the motion was prompted by a ruling of Supreme Court, Kings County, rendered following a lengthy *Frye* hearing in *People v Collins*. That court concluded, among other things, that “neither LCN nor FST are generally accepted in the scientific community.”⁷

The expert affidavit offered in support of defendant’s motion in this case was also put before the hearing court in *Collins*. (In point of fact, the expert submission in the case actually bears the caption for the *Collins* case.) Still, the court here denied the renewed application through a written decision and order entered May 26, 2015 in which it “simply decline[d] to follow” *Collins* and instead relied on 10 trial-level decisions in which “many of [the court’s] colleagues [had] similarly ruled.” Those decisions have a common touchstone: *People v Megnath* (27 Misc 3d 405 [Sup Ct, Queens County 2010]).

7. The *Collins* ruling initially was an oral one. The transcript of that decision was put before the motion court in this case on the application to renew and/or reargue, and the minutes of the *Collins* bench decision reflect that the court acknowledged “that there [was nothing] that [it could] say [was] wrong with [LCN] or . . . FST and [that] it is a big temptation and a big mistake in a *Frye* hearing situation for a judge ultimately to decide which scientific techniques he [or she] thinks work.” The “job” of the court, instead, was “to see whether or not there is essentially general agreement in the scientific community as to the challenged scientific principles.” Inasmuch as the FBI refused to use LCN results and “pioneers in the field like Dr. Budowle” did not “trust [LCN] in criminal courtroom situations,” the *Collins* court concluded “that it was inconsistent with *Frye* to give it to a jury when so many of the experts in the field don’t think that is appropriate.”

Collins’s FST analysis was similar. Essentially, based on “the defense position . . . that there is difficulty in approving of the methods through which the drop in and drop out rates and other stochastic effects are considered in the FST,” the *Collins* court again took a measured approach and refused to admit FST evidence on the ground “that the *Frye* test ha[d] [not] been satisfied.” Those conclusions were reiterated in a lengthy written opinion rendered July 2, 2015 (*People v Collins*, 49 Misc 3d 595 [Sup Ct, Kings County 2015, Dwyer, J.]).

D.

Eventually, on appeal, the Appellate Division refused to disturb the trial court’s determination of the *Frye* motion (158 AD3d 471 [1st Dept 2018]). The Court noted only that it had “considered and rejected defendant’s arguments concerning [LCN] and [FST] evidence” (*id.* at 472-473, citing *People v Gonzalez*, 155 AD3d 507 [1st Dept 2017] [relying on *Megnath* (27 Misc 3d at 413) in concluding that the trial court in that case did not abuse its discretion in refusing to hold a *Frye* hearing on expert testimony relating to LCN testing], *lv denied* 30 NY3d 1115 [2018], *denied reconsideration* 31 NY3d 1148 [2018]). A Judge of this Court granted defendant leave to appeal (32 NY3d 942 [2018]).

Analysis of the Primary Issue

“*Science is the organized skepticism in the reliability of expert opinion.*”⁸—American theoretical physicist Richard P. Feynman.

A.

“The long-recognized rule of *Frye* . . . is that expert testimony based on scientific principles or procedures is admissible but only after a principle or procedure has ‘gained general acceptance’ in its specified field” (*People v Wesley*, 83 NY2d 417, 422 [1994], quoting *Frye*, 293 F at 1014). “The process is meant to assess ‘whether the accepted techniques, when properly performed, generate results accepted as reliable within the scientific community generally’ ” (*People v Brooks*, 31 NY3d 939, 941 [2018], quoting *Wesley*, 83 NY2d at 422).

“Although unanimity is not required, the proponent [of the disputed evidence] must show consensus in the scientific community as to [the methodology’s] reliability” (*Sean R. v BMW of N. Am., LLC*, 26 NY3d 801, 809 [2016] [internal quotation marks omitted]). That consensus has been described as “a surrogate for determining the reliability of a purported scientific methodology” (Michael M. Martin, Daniel J. Capra & Faust F. Rossi, *New York Evidence Handbook* § 7.2.3 at 644 [1997]). A showing that an expert’s opinion has “some support” is not sufficient to establish general acceptance in the relevant scientific community (*see Cornell v 360 W. 51st St. Realty, LLC*, 22 NY3d 762, 783 [2014]).

The determination whether a trial court erred in admitting disputed scientific evidence in the absence of a *Frye* hearing

8. Lee Smolin, *The Trouble with Physics* 309 (2006), quoting Feynman.

turns on whether the court abused its discretion as a matter of law (*see generally People v Boone*, 30 NY3d 521, 530-531 [2017]). “[T]he mere fact that a court is the first to evaluate novel scientific evidence does not mean the evidence is unreliable,” but it does “increase[] the task of the hearing court” (*Wesley*, 83 NY2d at 437 [Kaye, Ch. J., concurring]). Certain materials, including texts, laboratory standards, and articles issued with respect to the technique in question, may, under appropriate circumstances, support a conclusion that such technique is generally accepted as reliable (*see id.*).

Judicial precedent may also support a conclusion with respect to the general reliability of a disputed scientific technique short of a hearing (*see id.*; *People v LeGrand*, 8 NY3d 449, 457 [2007]; *Matter of Lahey v Kelly*, 71 NY2d 135, 144 [1987]). In the absence of such materials and support, the hearing court may take expert testimony on the subject. Review of a *Frye* determination must be based on the state of scientific knowledge and opinion at the time of the ruling (*see Cornell*, 22 NY3d at 784-785 [“a *Frye* ruling on lack of general causation hinges on the scientific literature in the record before the trial court in the particular case”]).

B.

[1] Against that backdrop we turn to the question whether the trial court abused its discretion as a matter of law in permitting the admission of the LCN evidence without holding a *Frye* hearing. Under the circumstances of this case, we conclude that there was an abuse of discretion as a matter of law.

In deciding not to evaluate the reliability of LCN evidence in a *Frye* hearing, the motion court relied heavily on the prior judicial opinion in *Megnath* (27 Misc 3d 405). That court had ruled, among other things, that LCN testing, as performed by OCME, was “generally accepted as reliable in the forensic scientific community” (*Megnath*, 27 Misc 3d at 411). That conclusion, however, was based on the court’s review of what was OCME’s *own, internal support* for its process (*see id.* at 407-410), as well as upon evidence reflecting that such methodology had “been used worldwide for over 10 years and [was] currently used in many other countries” (*id.* at 408).

By the time the motion court in this case determined the application to renew and/or reargue, there were approximately 10 decisions of various trial courts of this state that purportedly

supported the determination in this case.⁹ Underlying those determinations, however, was the ruling in *Megnath*, and underlying the *Megnath* ruling was an analysis that did not adequately assess whether OCME’s LCN testing was generally accepted within the relevant scientific community. The repetition of a single, questionable judicial determination does not strengthen or add validity to such ruling, and it defies logic that an error, because it is oft-repeated, somehow is made right (see David H. Kaye et al., *The New Wigmore: Expert Evidence, Limiting Strict Scrutiny by Methodology, Novelty, or Type of Case* § 9.5.1 [2018] [concluding that where a trial court relies on the findings of a previous hearing, that court should be convinced that the hearing was fair and thorough given the possibility that an early hearing with respect to a given technique may not be balanced]). Scientific community approval, not judicial fiat, is the litmus test for the admission of expert evidence generated from a scientific principle or procedure, and it is not to be assumed that one hearing is automatically “enough” to hurdle a *Frye* inquiry in a different matter. Significantly, the People were unable to cite any New York appellate cases, or out-of-state case law, assessing the general acceptance of LCN evidence (cf. *People v Middleton*, 54 NY2d 42, 49-50 [1981]; *People v Magri*, 3 NY2d 562, 566 [1958]).

Moreover, the fact remains that there was “marked conflict” with respect to the reliability of LCN DNA within the relevant scientific community at the time the LCN issue was litigated in this case (see generally *People v Jeter*, 80 NY2d 818, 820-821 [1992]). The evidence tendered by defendant included OCME’s admission that “traditional” DNA testing involved 28 amplification cycles of DNA loci, whereas LCN testing applied additional amplification—31 cycles—when traditional testing could not yield an adequate DNA profile. In assuming that the additional reproduction cycles gave rise to no distinction between “traditional” and LCN testing, the People simply ignored the opinion of defendant’s expert that LCN’s enhancements “increase[] the sensitivity of detection [of genetic markers in

9. Although the point is not essential to our conclusion with respect to the LCN evidence, it bears repeating that, at the time the *Frye* motion here was reargued, the trial court in *Collins* had concluded that LCN testing results could not be admitted into evidence without first surviving the scrutiny of a *Frye* hearing. That determination, which was well-articulated in a bench decision put before this motion court on the application to renew and/or reargue, was based in part on *the same expert affidavit that defendant offered in support of this Frye motion practice*.

tested material] and may result in inaccurate genetic profiles which do not reliably reflect the condition of the evidence . . . [and] generat[e] invalid results.” The People’s bald assumption of accord between traditional and LCN methods, and the deference shown by the motion court to that faulty point, similarly ignored the chorus of defendant’s scholarly voices accepting of traditional DNA testing but sounding suspicion with respect to the LCN methodology.

Additionally, contrary to the People’s suggestion and the motion court’s conclusion, the fact that LCN evidence had been used in foreign courts should have been of no consequence inasmuch as there was no indication that the threshold for admissibility in those bodies contains the same exacting standards to be applied in courts of this state. Defendant was not required to establish, in his motion papers, that LCN evidence was generally not accepted by the relevant scientific community in order to obtain a hearing to resolve the very question of general acceptance. Here, defendant’s submissions raised sufficient questions regarding the general acceptance of the LCN evidence, based on its lack of use by other laboratories, the absence of prior meaningful review, and the scientific articles proffered by defendant questioning the reliability of the evidence for criminal prosecution. As the proponent of the LCN evidence, the People ultimately bore the burden of establishing its general acceptance by the relevant scientific community (*see LeGrand*, 8 NY3d at 458; *Sean R.*, 26 NY3d at 809), and defendant was entitled to have the People put to that burden.

C.

Our conclusion—that the court abused its discretion as a matter of law in failing to hold a *Frye* hearing—is the same with respect to the FST evidence. The logic underlying the admission of FST evidence not subjected to *Frye* scrutiny hinged principally on two points: the “strength” of *Garcia* (39 Misc 3d 482) and the observation that FST technology basically uses the building blocks of existing mathematical formulas to calculate the likelihood that a person contributed to one part of a DNA mixture. If the analysis was as simple as determining whether FST is comprised of existing mathematical formulas that are individually accepted as generally reliable within the relevant scientific community, then FST evidence probably would be admissible even in the absence of a *Frye* hearing.

The point remains, however, that FST is a proprietary program exclusively developed and controlled by OCME. The sole developer and the sole user are the same. That is not “an appropriate substitute for the thoughtful exchange of ideas . . . envisioned by *Frye*” (*Wesley*, 83 NY2d at 441 [Kaye, Ch. J., concurring]). It is an invitation to bias.

It may well be that what the People say is accurate; to paraphrase their words, FST technology is based on an aggregation of generally accepted tools and therefore should be deemed generally accepted itself. The tool has, as the People noted, been vetted and approved by “the distinguished scientists making up the DNA Subcommittee of the New York State Forensic Science Committee.” The Subcommittee’s approval is certainly relevant and may constitute some evidence of general acceptance at a *Frye* hearing. But that insular endorsement is no substitute for the scrutiny of the relevant scientific community. To rely solely on the Subcommittee’s approval as dispositive of the general acceptance would be to supplant the courts’ obligation to ensure, under *Frye*, that scientific techniques and methods are sufficiently reliable to be admitted into evidence in a criminal proceeding.

Indeed, here, defendant was hamstrung in demonstrating the existence of conflicting scientific opinions in order to show the need for *Frye* review of the FST based on the “black box” nature of that program, but his papers adequately showed that OCME’s secretive approach to the FST was inconsistent with quality assurance standards within the relevant scientific community. Those papers also showed that facts adduced in challenges to the FST made in *Frye* applications in other proceedings suggested that the accuracy calculations of that program may be flawed.

Neither *People v Rodriguez* (Sup Ct, NY County, Oct. 24, 2013) nor *Garcia* (39 Misc 3d 482) supported a different result. The court in *Rodriguez* concluded, following a *Frye* hearing, that FST evidence was admissible based on internal validation by OCME and approval of the tool by the DNA Subcommittee of the New York State Commission on Forensic Science. Approval by that narrow class of reviewers, some of whom were employed by the very agency that developed the technology, is no substitute for community review.

By contrast, in *Garcia* (39 Misc 3d 482), the court skirted a *Frye* hearing, reasoning that the FST is not “new or novel sci-

ence that requires a *Frye* hearing” (*id.* at 490) based on what essentially was the “aggregation” theory advanced by the People here. That is, the *Garcia* court concluded that “[c]omputer software programs that allow for drop-in and drop-out rates when calculating likelihood ratios are not new or novel in the scientific community,” and that the application of “accepted mathematical formulas to already existing data previously created by LCN DNA techniques” was a generally reliable technique in the relevant scientific community (*id.* at 488-489). That decision, however, did not adequately account for either the proprietary nature of the FST or the relatively narrow subsection of the relevant scientific community able to examine and endorse that tool. Moreover, to the extent that the FST had not been used by OCME for a significantly long period of time prior to its use in defendant’s case, and because the particulars of the program were not readily available to the general scientific community so as to facilitate meaningful review and criticism, the People’s claim that defendant failed to proffer sufficient evidence that the program was not generally accepted is unavailing.

In short, the FST should be supported by those with no professional interest in its acceptance. *Frye* demands an objective, unbiased review.¹⁰

D.

[2] The errors in admitting expert testimony with respect to LCN and FST results in the absence of a *Frye* hearing are significant. In this case, however, the errors also are harmless under our standard for errors of nonconstitutional magnitude. Here, in sum, the People presented video evidence of the shooting, the eyewitness testimony identifying defendant as the shooter, and the testimony of defendant’s former girlfriend with respect to the events that followed that incident—including the girlfriend’s account of defendant’s handling of the subject gun and the forced secretion of that device. Based on all of that proof, we conclude that the evidence of defendant’s

10. In so concluding we acknowledge the possibility that there may be circumstances in which a scientific field is so small that there are no knowledgeable scientists who are completely disinterested in the technology in question. A *Frye* challenge raised in such a scenario may yield a result different from that produced through the analysis of the FST issue in this case, which considers the markedly different question of the general acceptance of proprietary, black box technology.

guilt is overwhelming and that there is no significant probability that the jury would have acquitted defendant had it not been for these errors (*see generally People v Crimmins*, 36 NY2d 230, 241-242 [1975]).

E.

Our conclusion that the trial court abused its discretion as a matter of law in denying a *Frye* hearing is not the only important point. We have said that a *Frye* hearing is generally unwarranted “[a]bsent a novel or experimental scientific theory” (*Brooks*, 31 NY3d at 941). That teaching, of course, leaves room for such a hearing even where the scientific principle in question is neither novel nor experimental. The recoil with respect to previously accepted techniques demonstrates the importance of the space accorded trial courts to conduct a *Frye* hearing even with respect to a scientific approach that may have become common over time.

Familiarity does not always breed accuracy, and our *Frye* jurisprudence accounts for the fact that evolving views and opinions in a scientific community may occasionally require the scrutiny of a *Frye* hearing with respect to a familiar technique. There is no absolute rule as to when a *Frye* hearing should or should not be granted, and courts should be guided by the current state of scientific knowledge and opinion in making such determinations.

Indeed, admissibility even after a finding of general acceptance through a *Frye* hearing is not always automatic. Recent questioning of previously accepted techniques related to hair comparisons, fire origin, comparative bullet lead analysis, bite mark matching, and bloodstain-pattern analysis illustrates that point; all of those analyses have long been accepted within their relevant scientific communities but recently have come into varying degrees of question (*see e.g.* Innocence Project, *Overturing Wrongful Convictions Involving Misapplied Forensics*, available at <https://www.innocenceproject.org/overturing-wrongful-convictions-involving-flawed-forensics/> [last accessed Feb. 21, 2020]; Heather Murphy, *A Leading Cause for Wrongful Convictions: Experts Overstating Forensic Results*, NY Times, Apr. 20, 2019; Leora Smith, *How a Dubious Forensic Science Spread Like a Virus*, ProPublica, Dec. 13, 2018, available at <https://features.propublica.org/blood-spatter-analysis/herbert-macdonell-forensic-evidence-judges-and-courts/> [last accessed Feb. 21, 2020]). Those points, and the lessons of this case,

reinforce the importance of judicial caution in the admission of developing scientific evidence in proceedings that may result in the deprivation or limitation of liberty.¹¹

There is one additional point to be drawn from this case. When pressed to a literal extreme, some of our precedent may be interpreted to suggest that a *single* decision or *single* court opinion with respect to the general acceptance of a disputed scientific technique or process may not support the admission of such evidence in the absence of a *Frye* hearing (see *LeGrand*, 8 NY3d at 458 [“A court need not hold a *Frye* hearing where it can rely upon previous rulings in other court proceedings as an aid in determining the admissibility of the proffered testimony” (emphasis added)]; *Wesley*, 83 NY2d at 437 [Kaye, Ch. J., concurring] [“If no court *opinions*, texts, laboratory standards or scholarly articles have been issued on the technique—the types of materials relevant to a determination of general acceptability—(a) court may . . . take the testimony of expert witnesses” (emphasis added and citations omitted)]). This decision should not be read to suggest that a trial court can *never* rely on a single prior judicial ruling in concluding that expert testimony based on scientific procedures or principles has gained general acceptance in its specified field, or that multiple judicial determinations to that effect are required for admission in the absence of a *Frye* hearing. Hearing courts retain the flexibility to admit such evidence in the absence of a *Frye*

11. The epilogue to this case, although immaterial to the question whether the record establishes that the motion court abused its discretion as a matter of law in refusing to hold a *Frye* hearing, well illustrates the need for caution in the area of the admission of inculpatory scientific evidence in criminal proceedings. The leading judicial dissenter with respect to the reliability of LCN DNA has been Justice Mark Dwyer of Supreme Court, Kings County, who, as noted, refused to admit LCN DNA analysis into evidence following a *Frye* hearing held in *People v Collins* (49 Misc 3d 595 [Sup Ct, Kings County 2015]). That ruling followed a proceeding in which five biologists or geneticists, including Dr. Bruce Budowle, generally objected to OCME’s procedures in the LCN area (see *id.* at 609-610). That testimony revealed that LCN is used in only two laboratories in the United States (OCME and UNTHSC), and that only OCME develops such DNA for use in criminal matters. That testimony also showed that the FBI refuses to use high sensitivity analysis, and that the national Combined DNA Index System will not upload profiles created with high sensitivity analysis.

Most importantly, though, in that case, a former member of the DNA Subcommittee of the New York State Commission on Forensic Science, which had approved OCME’s LCN analysis, “defected” and testified for the defense (see *id.* at 611-613). Since that time, OCME also has abandoned LCN testing, and it is doubtful that the People would defend an application seeking a *Frye* hearing on that issue today.

inquiry based on a single, sound, prior judicial opinion on a consonant question.

Analysis of the Remaining Issues

Defendant advances three additional contentions on appeal. None of those contentions has merit.

[3] *First*, defendant contends that trial counsel was ineffective for failing to object to the instruction that the jury must determine whether the use of deadly physical force was justified with respect to each of the gunshots that struck the victim (*cf. People v Del-Debbio*, 244 AD2d 195, 195 [1st Dept 1997] [“Even if a defendant is justified in using deadly physical force at the beginning of a single, ongoing encounter with an assailant, his right to use that force terminates at the point he can no longer reasonably believe the assailant still poses a threat to him”], *lv denied* 91 NY2d 925 [1998]). An objection on that point, however, was unlikely to have succeeded, and trial counsel cannot be ineffective for failing to advance an argument that has little or no chance of success (*see People v Caban*, 5 NY3d 143, 152 [2005]; *People v Stultz*, 2 NY3d 277, 287 [2004], *rearg denied* 3 NY3d 702 [2004]). Defendant essentially contends that because the People’s medical expert testified that each of the two gunshots that struck the victim was fatal, the second gunshot necessarily is academic with respect to the justification analysis because the first shot killed the victim. That contention, however, overlooks the point that the jury was free to reject the testimony of that expert with respect to the conclusion that the victim could have been killed solely by the first gunshot (*see People v Drake*, 7 NY3d 28, 33 [2006]). The victim, after all, was alive when he was shot a second time, and for a short while thereafter. To the extent the jury believed the second gunshot was at least partially responsible for the victim’s death, the challenged jury instruction would have been appropriate.

[4] *Second*, defendant contends that trial counsel was ineffective for failing to object to the part of the jury instruction containing the “initial aggressor” exception to the justification defense. A person may not use physical force upon another person to defend himself when that person is the initial aggressor (*see Penal Law § 35.15 [1] [b]*; *People v Petty*, 7 NY3d 277, 284-285 [2006]). Where there is a reasonable view of the evidence that the defendant is the initial aggressor, the court may instruct the jury with respect to that exception to the

justification defense (*see generally People v Valentin*, 29 NY3d 57, 61 [2017]). Here, the People adduced testimony that defendant shot the victim *after* the baseball bat held by the victim had shattered and no longer presented a threat, meaning that the initial aggressor instruction was appropriate. Inasmuch as an objection to that instruction was unlikely to succeed, and inasmuch as trial counsel cannot be ineffective for failing to make a motion that has little or no chance of success (*see Caban*, 5 NY3d at 152; *Stultz*, 2 NY3d at 287), this contention with respect to ineffective assistance of counsel lacks merit.

[5] *Third*, defendant contends that the trial court abused its discretion as a matter of law in admitting into evidence a recording of a telephone call defendant made while incarcerated before trial at Rikers Island. This issue was raised in a brief filed before we decided *People v Diaz* (33 NY3d 92 [2019]) and *People v Cisse* (32 NY3d 1198 [2019]). In those cases, we concluded that defendants who use the “public” telephone system at Rikers Island while warned of the potential that such calls may be recorded impliedly consent to the “taping” of those conversations. Those cases are controlling here.

Accordingly, the Appellate Division order should be affirmed.

Addendum

Low Copy Number (LCN) DNA Testing

“DNA,” or deoxyribonucleic acid, “is found in the chromosomes of every cell and contains coded information that provides the genetic blueprint for all living things” (Michael M. Martin, Daniel J. Capra & Faust F. Rossi, *New York Evidence Handbook* § 7.2.3 at 647-648 [1997]). “[C]ertain regions of DNA contain DNA sequences that [are] repeated over and over again next to each other” (John M. Butler, *Fundamentals of Forensic DNA Typing* at 4 [2009]).¹²

Today, DNA typing typically analyzes “STR”—or “short tandem repeat”—markers, or certain DNA regions with short repeat units that are highly variable between individuals (*id.* at 5). The utility of DNA profiling arises from the point that, with the exception of identical twins, the genome (that is, the complete genetic composition) of each human being is different

12. The United State Supreme Court has recognized the value of Butler’s overview of DNA evidence, citing that work as authoritative in *Maryland v King* (569 US 435, 442 [2013]).

(*id.* at 6). A person inherits a single allele—or section of DNA at a particular genetic location—from each parent, providing two alleles at a given location (referred to as a locus), and an STR analysis involves the examination of 13 or more different loci to establish a profile of which alleles appear at which locus.

The copying of specific regions of DNA from its cells—through technique known as polymerase chain reaction, or PCR—produces millions of reproductions of each DNA segment of interest and therefore permits very small amounts of DNA to be examined (*see id.* at 7, 191). In a criminal investigation, after that copying or amplification, the PCR products typically are separated based on their size, and the alleles in that material are compared to the alleles in a known sample to determine whether the tested material contains a DNA profile that matches that of the control sample (*see id.* at 7-9). In the event of a similar profile—which frequently is characterized as a “match”—the odds that a random person (who did not give a sample for testing) would have the same DNA profile as that which appears on the sample tested are determined.

At issue here is low copy number DNA testing. That process was developed as a means of obtaining DNA profiles from even smaller amounts of DNA by increasing the PCR amplification cycles to essentially make more copies of the DNA segments to allow for analysis. That is, where there is a minute amount of available genetic material the LCN technique generates many more copies of DNA molecules and enables STR typing to obtain results from those small samples (*id.* at 330-331; *see* NY City Office of Chief Medical Examiner, High Sensitivity DNA Testing, http://www.nyc.gov/html/ocme/downloads/pdf/HISENS_brochure.pdf [last accessed Feb. 21, 2020] [also referring to LCN analysis as “high sensitivity,” “low level,” and “touch” DNA testing]).

The Forensic Statistical Tool (FST)

In the People’s words, FST, or forensic statistical tool, “is a computer software program developed by OCME which is used to calculate likelihood ratios.” That “application,” the People say, “is simply [a] math . . . software program that performs calculations that could not be done by hand in a human time frame.” Programs such as FST are particularly useful where there is a DNA mixture inasmuch as they account for the possibility of allelic “drop out” and “drop in.”

Allelic “drop out” occurs when a piece of DNA is not seen in a DNA result, even though it is known to be in a sample. For

example, when a minute amount of DNA is tested, the testing process may not pick up all of the pieces of DNA in the profile and refer only to those that were identified. The pieces not picked up or identified are said to have “dropped out” because, although they are part of the original sample, they will not be shown or represented in the result. Drop out also may occur when a DNA sample is degraded and some pieces deteriorate and are not detected during the testing process, and therefore “drop out” of the results.

Allelic “drop in” occurs when a minute piece of DNA or allele is seen in the sample but cannot be attributed to the contributors in the sample. Drop in may result from, among other things, “stutter”—which is essentially a byproduct of the testing process and which generally presents as peaks much shorter than a true allele—and contamination of the sample.

The People claim that “[w]hat sets the FST apart [as an estimation program] is that FST uses empirically established drop-out and drop-in rates generated by thousands of tests.” Along those lines, the People maintain that “FST is not a method” (emphasis omitted) and instead “is a name for a software program that is being applied after the testing is completed.”

According to the People, “scientists can predict with a reasonable degree of scientific certainty the likelihood of a piece of DNA dropping out, or not being seen, at every location that is tested.” Consequently, the dropout rates can be estimated (as, apparently, can drop in rates) through mathematical calculations performed through the FST.

The People characterize likelihood ratios generated by the FST as “statistics relating to the likelihood of one scenario over another.” According to the People, the likelihood ratio “is not a statement that the defendant’s profile is part of the DNA mixture present on evidence” (emphasis omitted). Rather, “the likelihood ratio is a standard statistical calculation used in all areas of science” and simply says “that given the composition of the mixture it is more likely than not that the defendant is a contributor to the DNA mixture.”

Chief Judge DiFiore (concurring). I concur that the issues joined in this 2014 motion practice raised the existence of a credible dispute among scientists in the relevant scientific community that was ripe for a *Frye* hearing (*Frye v United States*, 293 F 1013 [DC Cir 1923]), and the denial of the same was an

abuse of discretion. I write separately because I cannot join the majority's pejorative view of the New York City Office of Chief Medical Examiner's (OCME's) low copy number (LCN) DNA typing technique and its use of a forensic statistical tool (FST), a probabilistic genotyping software program, to determine likelihood ratios for the interpretation of DNA typing in multiple source samples. I also write to emphasize the paramount importance of the Commission on Forensic Science (CFS) and its highly credentialed DNA Subcommittee and the significance of their joint approval of the OCME's validated techniques for generating and interpreting LCN DNA typing.

The narrowly disputed issue presented to the trial court concerned challenges to the relatively new internal validation studies conducted by OCME to support its LCN DNA typing interpretation protocols to address the conceded increased stochastic effects and allelic dropout associated with multiple contributor samples. Here, the People alleged that the interpretation protocols of the DNA testing tools at issue—i.e., the LCN DNA typing and FST techniques—were validated by empirical evidence through extensive testing. The validation studies did not lack “[e]xternal mechanisms” of quality assurance as the majority asserts (majority op at 33-34), and that is a conclusion that completely ignores the comprehensive oversight, regulation and approval of the subject DNA testing techniques by the legislatively created CFS and DNA Subcommittee.¹ Ignored by the majority as well is OCME's reliance on

1. In direct response to this Court's green light in *People v Wesley* (83 NY2d 417 [1994]) for the introduction of DNA profile evidence after it survived a *Frye* challenge similar to that raised here, in 1994, our State Legislature preemptively established the independent CFS and its DNA Subcommittee (Executive Law § 995-b). These entities are charged with accreditation and regulation of DNA laboratories and personnel and full vetting of the DNA testing tools at issue—requiring them to establish minimum standards for program accreditation, forensic laboratory personnel and performance of forensic DNA methodologies, all of which shall be designed to “ensure that forensic analyses, including forensic DNA testing, are performed in accordance with the highest scientific standards practicable” (Executive Law § 995-b [1], [2] [a], [b]). DNA Subcommittee members are appointed from a cross section of the relevant scientific disciplines, including molecular biology, population genetics, laboratory standards, quality assurance regulation and monitoring and forensic science (*id.* § 995-b [13]). Hardly an “insular” or “narrow class of reviewers” (majority op at 41), the DNA subcommittee consists of “world-class scientists in various disciplines relevant to DNA analysis” (*People v Carter*, 50 Misc 3d 1210[A], 2016 NY Slip Op 50067[U], *3 [Sup Ct, Queens County 2016], quoting *People v Collins*, 49 Misc 3d 595, 612 [Sup Ct, Kings County 2015]; see also *United States v*

(n. cont'd)

the guidelines of the Scientific Working Group on DNA Analysis Methods (SWGDM)—a group of federal, state and local scientists representing forensic DNA laboratories that meets under the FBI’s guidance and proposes and recommends revisions to the FBI’s Quality Assurance Standards (QAS) for DNA analysis—in performing its validation studies² (*United States v Morgan*, 53 F Supp 3d 732, 737-738 n 6 [SD NY 2014], *affd* 675 Fed Appx 53 [2d Cir 2017], *cert denied* 583 US —, 138 S Ct 176 [2017]). OCME’s adherence to the national QAS, and the approval of those studies by CFS, demonstrates the rigorous nature of OCME’s validation process and should not be simply discounted by a court as only an “insular endorsement” of the subject test methodologies (majority op at 41).³

Despite my view that CFS certification, in the absence of countervailing empirical evidence, weighs heavily in favor of finding that the subject DNA testing methodologies themselves were scientifically accepted by the relevant community, of particular concern here is whether OCME’s interpretation protocols encompassed the proffered test results, as the DNA sample sizes appear to have fallen outside validated parameters. To be sure, the parties did not dispute that LCN DNA testing essentially replicates the procedures used in the well-accepted polymerase chain reaction short tandem repeat (PCR/STR) process and that it includes three additional PCR amplification cycles to account for the use of smaller DNA sample sizes. It was also undisputed that increased PCR

Jones, 2018 WL 2684101, *4, 2018 US Dist LEXIS 94791, *9 [SD NY, June 5, 2018, S4 15-CR-153 (VSB)] [DNA Subcommittee consists of a group of “well-known,” “respected” and “distinguished experts” in the field of DNA analysis]; Letter from St Dept of Health, July 25, 1994 at 1, Bill Jacket, L 1994, ch 737 at 13 [involvement of scientists and geneticists with expertise in DNA technology on DNA subcommittee “will enhance the effectiveness and accuracy of DNA tests performed by state and local forensic laboratories”]). The statute also contains strict parameters for laboratory accreditation by the DNA Subcommittee, including minimum levels of proficiency testing, inspections, quality assurance, validation procedures and corrective action (*see Executive Law § 995-b* [3]).

2. Dr. Budowle was the former chair of SWGDAM and one of the original architects of the Combined DNA Index System (*see Collins*, 49 Misc 3d at 608).

3. In DWI prosecutions, for example, a breathalyzer test result is scientific evidence that is admissible at trial without expert testimony on its general acceptance where the evidence is created by technologies regulated by state agencies (*see e.g. People v Boscic*, 15 NY3d 494, 497-500 [2010] [results of breath alcohol detection machines, which are regulated, evaluated and approved by the Department of Health, have long been considered scientifically reliable]; *see also People v Hampe*, 181 AD2d 238, 240 [3d Dept 1992]).

amplification cycles increase the risk of stochastic effects and allelic dropout when low copy mixture samples are used, thereby affecting the DNA typing profiles. The People alleged, though, that OCME accounted for these known effects in its conservative interpretation protocols and conducted extensive validation studies on known DNA samples to prove their hypothesis.⁴ The crux of the dispute among scientists pertains to the precise manner in which they translated the results of their studies into protocols to account for stochastic effects (*see Collins*, 49 Misc 3d at 605). As one commentator has explained, “[t]he issue is not whether the tools by which LCN testing is undertaken are identical to those for conventional STR testing, but rather whether the methodology and protocols have been validated for low levels of DNA” (4 David L. Faigman et al., *Modern Scientific Evidence: The Law and Science of Expert Testimony* § 30:32 at n 19 [2019-2020 ed]). Thus, the People had the burden to demonstrate that the interpretation of the DNA typing profiles derived from increased amplification of the

4. The majority relies heavily on the criticisms of LCN and FST contained in the numerous articles proffered by the defense (*see* majority op at 32-33). Although the majority claims the articles identify disputes as to the underlying scientific methods of LCN and FST per se, closer inspection reveals they do not support such a broad rejection of those techniques. Instead, they sound the alarm that the use of these techniques with smaller DNA samples and increased amplification cycles lead to increased stochastic effects—no surprise. However, none of the articles address the fact that OCME accounted for those stochastic effects in developing interpretation protocols after running thousands of validation studies in accordance with SWGDAM guidelines, and none offer contrary empirical proof discounting the interpretation protocols adopted by OCME. Indeed, studied review of the nine attachments reveals that, far from providing a “chorus of . . . scholarly voices . . . sounding suspicion with respect to the LCN methodology” (majority op at 40), a number of the annexed writings are not appropriately considered in this context at all. Fundamentally, in evaluating the positions advanced by scientists, we must ensure that their opinions are supported by empirical data. In a case like this one, where the underlying PCR/STR technology was already scientifically accepted for certain uses, it was necessary to inquire whether the scientists attempting to stretch its use to new applications, and those who were disputing the reliability of such use, could back up their positions with empirical proof. Most importantly, none of the articles annexed to defendant’s papers addressed the import of the external validation of OCME’s use of LCN by the CFS and DNA Subcommittee and SWGDAM, including through oversight, approvals and regulation. Indeed, careful attention must be paid to the exact procedures the articles address, as “LCN” has been used to describe various types of high-sensitivity testing, including one type using 34 PCR amplification cycles, and in various settings, including commercial laboratories that are not regulated in the same manner or with the same rigor as the processes certified for OCME’s use.

DNA sample was admissible because it was appropriately derived using OCME's protocols.

It is not clear whether, in 2014, OCME's extensive empirical studies supporting its interpretation protocols to account for stochastic effects and allelic dropout in the LCN DNA typing had been validated and consequently approved by CFS for multiple contributor samples falling below what appears to have been—according to the People's own submissions—a 25 picogram threshold. That floor was not met on one of the samples here, as only 17.2 picograms of DNA was recovered from the gun trigger swab. An interrelated concern existed as to the range of the validation studies for OCME's interpretation protocols as to LCN DNA multiple contributor samples consisting of two or more unknown contributors. Accordingly, an important focus for the *Frye* court was to determine whether the interpretation protocols to account for stochastic effects and allelic dropout on LCN DNA samples were properly utilized in analyzing the particular DNA mixture samples in this case. A *Frye* hearing was needed to resolve these disputes.

As for FST, CFS approved that software program for OCME's use in analyzing DNA mixtures in July 2011, and the first report generated in this case by the FST was issued the same month, making it “possible,” as OCME's witness testified at trial, that defendant's first FST report was one of the first that OCME had ever issued for use in a criminal case. At the time of the motions, use of probability ratios to explain the results of DNA typing evidence by use of Bayesian mathematical principles was not uncommon, and “[t]he validity of the math in the probability analysis underlying the FST software” was not in issue (*Collins*, 49 Misc 3d at 601). However, OCME's newly minted proprietary software had not been shared publicly, and defendant reasonably complained that there was “no basis on which the external forensic DNA community [was] capable of determining whether OCME's methodology and procedures are adequate to assure the reliability and the accuracy of the results” relating to this defendant. The LCN DNA profiles drive the FST analysis, and FST results are only as reliable as the predicate assumptions integrated into the FST software program. The People did not meet their burden of establishing the validity of the empirical data used to fuel the calculations performed by this statistical model, including the manner of accounting for the occurrence of the stochastic effect and allelic dropout in a multiple contributor

sample of less than 25 picograms, in a manner sufficient to bypass a *Frye* hearing. Fundamentally, the combined use of that statistical tool with DNA typing on samples that fell beneath validated thresholds may have impacted the reliability of the results, raising a valid challenge to the admissibility of that evidence in a criminal prosecution.

When sufficiently challenged, a laboratory’s validation studies, conducted at the nascent stages for the acceptability of the scientific methodology, require a *Frye* court to answer the admissibility inquiry with more than “unanalyzed, rote reliance” on the conclusions of the initial decisions of other courts (*United States v Wilbern*, 2019 WL 5204829, *4, 2019 US Dist LEXIS 152353, *9 [WD NY, Oct. 16, 2019, 17-CR-6017 CJS]). At a minimum, an independent review of the underlying factual support for the previously litigated competing positions was warranted (*see Wilbern*, 2019 WL 5204829, *3, 2019 US Dist LEXIS 152353, *7, citing *Morgan*, 675 Fed Appx at 54-56; *Jones*, 2018 WL 2684101, *7, 2018 US Dist LEXIS 94791, *19). Since a more thorough inquiry as identified above was warranted at the time of defendant’s motions, complete deference to the decisions in *People v Megnath* (27 Misc 3d 405 [Sup Ct, Queens County 2010]) and *People v Rodriguez* (Sup Ct, NY County, Oct. 24, 2013, Carruthers, J., indictment No. 5471/2009) was not an appropriate substitute for the more critical analysis of the LCN and FST evidence that should have been undertaken in a *Frye* hearing (*see People v Jeter*, 80 NY2d 818, 820-821 [1992]). Nonetheless, I cannot join the unfair characterization of the court’s analysis in *Megnath* as “questionable” (majority op at 39), given that we have before us neither the *Frye* hearing transcript nor the underlying arguments of the parties, which certainly framed the issues for that court.⁵

5. The courts in *Megnath* and *Collins* conducted *Frye* hearings to address the same narrow issue that warranted a *Frye* hearing in this case—whether OCME’s protocols to account for and interpret increased stochastic effects and allelic dropout arising from additional amplification cycles of LCN DNA samples were scientifically reliable. Those courts reached opposite conclusions, based largely on the value each court gave to OCME’s validation studies and certification by the CFS. The *Collins* court did “not seek to state whether the People [were] correct” that “OCME’s protocols create conservative interpretations of the test data and ensure trustworthy and sound scientific conclusions” (49 Misc 3d at 605). It opted instead to consider whether the relevant scientific community generally accepts the OCME protocols and further held, with respect to CFS approval, “that no state subcommittee can be equated with the general membership of the relevant scientific com-

(n. cont’d)

The issue before the trial court warranted a *Frye* hearing to afford an opportunity for more scrutiny based upon actual evidence and to determine if the so-called “organized skepticism” (majority op at 37)⁶ was even predicated on validated empirical data. Despite the error in denying the *Frye* hearing, I concur in the majority’s affirmance of the judgment on the ground of harmless error, as the evidence of defendant’s use of the handgun involved in the murder—including defendant’s own trial testimony admitting he shot the victim in addition to the proof cited by the majority—was overwhelming.

Judges RIVERA, STEIN, and WILSON concur; Chief Judge DiFiore concurs in result in an opinion in which Judges GARCIA and FEINMAN concur.

Order affirmed.

munity” (49 Misc 3d at 613). By contrast, *Megnath* found that OCME’s validation studies “were reviewed by the DNA subcommittee of the [CFS] and were implicitly found to be scientifically reliable and reproducible” and concluded that “OCME has properly developed interpretation protocols for LCN DNA testing based upon its extensive validation studies and that when correctly performed these protocols consistently yield reliable and reproducible results” (27 Misc 3d at 408, 411).

6. Although it has been stated that “[t]he *Frye* test emphasizes ‘counting scientists’ votes, rather than on verifying the soundness of a scientific conclusion’ ” (*Wesley*, 83 NY2d at 439 [Kaye, Ch. J., concurring], quoting *Jones v United States*, 548 A2d 35, 42 [DC 1988]; see also *Parker v Mobil Oil Corp.*, 7 NY3d 434, 447 [2006]), that paradigm incorrectly suggests that whether a *Frye* hearing is required will depend on the mere number of voices disputing the efficacy of a particular scientific methodology. Such a proposition is not consistent with the axiom that reproducibility is the linchpin of a reliable methodology. The more exact inquiry should be whether the dissenting voices are from scientists who have empirical proof to refute the validated empirical evidence and thus substantiate their competing hypotheses.

[148 NE3d 513, 125 NYS3d 49]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v DAVID
M. HOLZ, Appellant.

Submitted April 28, 2020; decided May 7, 2020

SUMMARY

APPEAL, by permission of a Justice of the Appellate Division of the Supreme Court in the Fourth Judicial Department, from an order of that Court, entered December 21, 2018. The Appellate Division affirmed a judgment of the Supreme Court, Monroe County (Francis A. Affronti, J.), which had convicted defendant, upon his plea of guilty, of burglary in the second degree.

People v Holz, 167 AD3d 1417, reversed.

HEADNOTE

Crimes — Appeal — Matters Reviewable — Suppression Order Related to Satisfied Count within Same Accusatory Instrument as Count to Which Defendant Pleaded Guilty

CPL 710.70 (2) grants a defendant the right to review of a suppression order “upon an appeal from an ensuing judgment of conviction” entered upon a guilty plea, notwithstanding that the order related exclusively to a count that was satisfied by a guilty plea but was not one to which the defendant pleaded guilty. Accordingly, in a criminal prosecution in which defendant pleaded guilty to one burglary count related to a laptop computer in satisfaction of a second burglary count in the same indictment related to jewelry taken from the same dwelling on a different date, the Appellate Division erred in holding that Supreme Court’s denial of defendant’s motion to suppress the jewelry was not reviewable because the judgment of conviction on appeal did not ensue from the denial of the motion to suppress. In using the word “ensuing” in CPL 710.70 (2), the legislature chose the broadest of relational terms to convey the connection between the suppression order and the judgment of conviction. To now inject the requirement of a narrow causal relationship between suppression order and guilty plea into the statute would conflict with the broad language of the statute. Moreover, to conclude that the Appellate Division lacks jurisdiction to review a trial court’s determination on a suppression matter when the evidence in question is not directly related to the count of conviction would insulate erroneous decisions from review and could lead to a proliferation of unreviewable legal errors at the trial level.

RESEARCH REFERENCES

By the Publisher’s Editorial Staff

AM JUR 2d Appellate Review § 213; AM JUR 2d Criminal
Law §§ 643, 644.
CARMODY-WAIT 2d Pleas and Plea Bargaining § 182:31;

CARMODY-WAIT 2d Pretrial Motions § 189:282;
CARMODY-WAIT 2d Appeals in Criminal Cases § 207:22.
LAFAVE, ET AL., CRIMINAL PROCEDURE (4th ed) § 27.5.
MCKINNEY'S, CPL 710.70 (2).
NY JUR 2d Criminal Law: Procedure §§ 1531, 1658, 3701.

ANNOTATION REFERENCE

See ALR Index under Appeal and Error; Exclusion of Evidence; Guilty Plea.

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POINTS OF COUNSEL

Lana M. Ulrich, Philadelphia, Pennsylvania, and *Timothy P. Donaher*, Public Defender, Rochester, for appellant. I. The Appellate Division erred in finding that it was jurisdictionally precluded from reviewing David Holz's suppression claim. (*People v Fernandez*, 67 NY2d 686; *People v Taylor*, 65 NY2d 1; *People v Elmer*, 19 NY3d 501; *People v Manini*, 79 NY2d 561; *Riley v County of Broome*, 95 NY2d 455; *People v Golo*, 26 NY3d 358; *People v Kisina*, 14 NY3d 153; *Matter of Sinkler [Sweeney]*, 89 NY2d 485; *Pajak v Pajak*, 56 NY2d 394; *Matter of Cintron v Calogero*, 15 NY3d 347.) II. The Supreme Court erred as a matter of law in denying David Holz's motion to suppress jewelry police obtained from him upon stopping him; the only reasonable inference to be drawn is that the police did not have reasonable suspicion to stop Mr. Holz. (*People v Morales*, 42 NY2d 129; *People v Oden*, 36 NY2d 382; *People v Hicks*, 68 NY2d 234; *People v McRay*, 51 NY2d 594; *People v Clements*, 37 NY2d 675; *People v Carney*, 58 NY2d 51; *People v Russ*, 61 NY2d 693; *People v Cantor*, 36 NY2d 106; *People v Sobotker*, 43 NY2d 559; *People v Woods*, 98 NY2d 627.)

Sandra Doorley, District Attorney, Rochester (*Leah R. Mervine* of counsel), for respondent. I. Criminal Procedure Law § 710.70 (2) does not apply to charges taken in satisfaction of an indictment, thus an appellate court may not review suppression decisions on counts to which a defendant has not pleaded guilty. (*People v Dorsey*, 122 AD2d 393; *People v Stevens*, 91 NY2d 270; *People v Smith*, 27 NY3d 643; *People v Fer-*

nandez, 67 NY2d 686; *People v Corti*, 88 AD2d 345; *People v Creighton*, 298 AD2d 774, 99 NY2d 613; *People v Suits*, 158 AD3d 949; *People v Miller*, 91 NY2d 372; *People v Gray*, 84 NY2d 709; *People v Rivera*, 57 AD2d 811.) II. In addition to the bar imposed by Criminal Procedure Law § 710.70 (2), this court should also determine that it cannot reach this claim, as it involves a mixed question of law and fact not reached by the Appellate Division. (*People v Wharton*, 46 NY2d 924; *People v Parker*, 32 NY3d 49; *People v Cisse*, 32 NY3d 1198; *People v Perez*, 31 NY3d 964; *People v Barksdale*, 26 NY3d 139; *People v Ingram*, 18 NY3d 948.)

OPINION OF THE COURT

FAHEY, J.

The Criminal Procedure Law sets out an appeals process that provides a right to first-tier, direct appellate review of all factual determinations. Particularly relevant here, Criminal Procedure Law § 710.70 (2) grants a defendant the right to review of a suppression order “upon an appeal from an ensuing judgment of conviction notwithstanding the fact that such judgment is entered upon a plea of guilty.” We must determine whether that provision grants a defendant the right to review of a suppression decision when the order related exclusively to a count that was satisfied by a guilty plea but was not one to which the defendant pleaded guilty. We hold that it does.

I.

On October 3, 2014, the Irondequoit Police Department received a tip indicating that a man walking near the site of a burglary two days earlier may have been involved in the crime. A laptop computer had been stolen. Acting on the tip, a police officer stopped defendant, who matched the description provided. The officer directed defendant to remove his hands from his pockets and saw that there was something in defendant’s right hand. The officer asked defendant what he was holding, and defendant revealed a plastic bag, containing jewelry, which the officer seized. Defendant claimed he had bought the jewelry at a nearby yard sale and agreed to accompany the officer and two others who had arrived on the scene to that house to confirm the purchase. The homeowner, however, denied owning or selling the jewelry. Approximately 30 minutes after the initial stop, defendant was arrested.

Defendant was charged by indictment with two counts of burglary in the second degree (Penal Law § 140.25 [2]). The

first count related to the laptop computer, taken from a dwelling on October 1, 2014; the second count related to the jewelry, which was taken from the same dwelling on October 3, 2014, the day of the arrest.

Defendant moved to suppress the jewelry, contending that his detention and the seizure of the jewelry violated his right to freedom from unreasonable searches and seizures (*see People v De Bour*, 40 NY2d 210 [1976]). Following a suppression hearing, with testimony from two of the police officers present at the arrest, Supreme Court denied defendant's motion, concluding that the police had "reasonable suspicion that a crime had been committed and that the defendant was the perpetrator."

Defendant, a predicate felony offender who was facing a maximum sentence of 30 years in prison if convicted of both counts of burglary, pleaded guilty to one count of burglary in the second degree, in satisfaction of the entire indictment. After some confusion regarding which burglary count defendant was pleading to,¹ defendant pleaded guilty to the October 1 burglary, as charged in the count pertaining to the theft of the laptop computer, in satisfaction of the count charging the October 3 burglary of jewelry, which was the subject of his motion to suppress. Supreme Court imposed the agreed-upon sentence of six years' incarceration plus five years' postrelease supervision.

Defendant appealed from the judgment, contending that Supreme Court had erred in denying his motion to suppress the jewelry.

The Appellate Division affirmed, holding that "the judgment of conviction on appeal here did not ensue from the denial of the motion to suppress and the latter is, therefore, not reviewable pursuant to CPL 710.70 (2)" (*People v Holz*, 167 AD3d 1417, 1418 [4th Dept 2018] [internal quotation marks, citations, and emphasis omitted]).

The cited statute provides that "[a]n order finally denying a motion to suppress evidence may be reviewed upon an appeal from an *ensuing judgment of conviction* notwithstanding the fact that such judgment is entered upon a plea of guilty" (CPL

1. The certificate of conviction also contained an error, stating that defendant had pleaded guilty to an October 3 burglary and that the October 1 count was satisfied by the plea, whereas in fact the reverse was true. The certificate was ultimately corrected upon the order of the Appellate Division (*People v Holz*, 167 AD3d 1417, 1421 [4th Dept 2018]).

710.70 [2] [emphasis added]). According to the Appellate Division, defendant's plea did not "ensue from" the suppression order because the evidence sought to be suppressed related only to the jewelry count, to which defendant did not plead guilty (*id.* at 1418-1419 [emphasis omitted]). The Appellate Division majority did not address the merits of defendant's suppression order challenge.

A single Justice dissented, asserting that whether a guilty plea "ensues from" a suppression order depends on whether there is a "reasonable possibility that the [alleged suppression] error contributed to the plea" (*id.* at 1422 [Whalen, P.J., dissenting] [internal quotation marks omitted]). The dissenting Justice would have reached the merits of defendant's challenge to the suppression determination (*see id.* at 1425-1427).

The dissenting Justice granted defendant leave to appeal to this Court, and we now reverse.

II.

Defendant initially contends that the Appellate Division erred by holding it was jurisdictionally precluded from reviewing the suppression order of Supreme Court. We agree with defendant. Both the plain meaning of CPL 710.70 (2) and relevant legislative history demonstrate that the Appellate Division may review an order denying a motion to suppress evidence where, as here, the contested evidence pertained to a count—contained in the same accusatory instrument as the count defendant pleaded guilty to—that was satisfied by the plea.

A governing principle of statutory construction is that courts must attempt "to effectuate the intent of the Legislature, and when the statutory language is clear and unambiguous, it should be construed so as to give effect to the plain meaning of the words used" (*People v Williams*, 19 NY3d 100, 103 [2012]).

What is meant by "ensuing judgment of conviction" in CPL 710.70 (2)? The term is not defined in the statute. In the absence of a statutory definition, "dictionary definitions serve as useful guideposts in determining the word's ordinary and commonly understood meaning. This follows from the principle that, generally, unless a contrary intent is clear, lawmakers employ words as they are commonly or ordinarily employed" (*People v Aleynikov*, 31 NY3d 383, 397 [2018] [internal quotation marks and citations omitted]). Dictionaries commonly define the verb "ensue" to mean "to take place afterward or as

a result” (Webster’s New Collegiate Dictionary 380 [1977]). In other words, “ensue” may simply mean “[t]o occur or arise subsequently” (Oxford English Dictionary Online [Oxford University Press 2020], ensue [5] [b] [<http://www.oed.com> (last accessed Apr. 14, 2020)]) or it may mean “[t]o follow as a result” (Oxford English Dictionary Online [Oxford University Press 2020], ensue [6] [b] [<http://www.oed.com> (last accessed Apr. 14, 2020)]).

In using the word “ensuing,” the legislature chose the broadest of relational terms to convey the connection between the suppression order and the judgment of conviction. Moreover, if the legislature had intended to limit appellate review to suppression orders specifically pertaining to the evidence underlying the count to which the defendant pleaded guilty, it easily could have said so (*compare Matter of Sinker [Sweeney]*, 89 NY2d 485, 487-488 [1997] [holding that the legislature’s use of the term “in connection with” indicates its intent for a broad application because a more narrow term could have been used to restrict the scope of Labor Law § 593 (4)]). Here, the legislature used a broad term, “ensuing,” making clear that CPL 710.70 (2) provides for appellate review of a suppression order relating to a count in an accusatory instrument satisfied by a guilty plea.

The legislative history of CPL 710.70 (2) supports this construction. A defendant’s right to appellate review of a suppression order was first granted in 1962 when the legislature added a subdivision to the former Code of Criminal Procedure stating that, “[i]f the [suppression] motion is denied, the order denying such may be reviewed on appeal from a judgment of conviction notwithstanding the fact that such judgment of conviction is predicated upon a plea of guilty” (Code Crim Pro § 813-c; *see* Bill Jacket, L 1962, ch 954). Notably, the original provision granting this right to appellate review did not contain the term “ensuing” or place *any* restriction on the relation between the suppression order and the judgment of conviction.

When the Code of Criminal Procedure was repealed, effective September 1, 1971, and replaced by the Criminal Procedure Law (*see* Bill Jacket, L 1970, ch 996), one aspect of the code that remained unchanged was a defendant’s right to appellate review of a suppression order despite pleading guilty. The Temporary Commission on Revision of the Penal Law and

Criminal Code noted that what is now CPL 710.70 (2) “is largely derived from Criminal Code § 813-c, which also authorizes a review of an order denying the motion upon an appeal from a judgment predicated upon a plea of guilty” (Staff Comment of Temp St Commn on Rev of Penal Law and Crim Code, 1970 Proposed CPL 375.70 at 423). Nothing from the legislative history indicates that a narrow causal relationship was added or the right to appellate review was otherwise restricted when Criminal Procedure Law § 710.70 (2) was enacted.

Consistent with that legislative intent to provide a broad right of review, this Court previously “ha[s] countenanced a forfeiture of this statutory right [to appeal] only where a defendant pleaded guilty ‘before the hearing on his suppression motion,’ thereby foreclosing appellate review for lack of a sufficient factual record” (*People v Elmer*, 19 NY3d 501, 509 [2012], quoting *People v Fernandez*, 67 NY2d 686, 688 [1986]). To now inject the requirement of a narrow causal relationship between suppression order and guilty plea into the statute would conflict with the broad language of the statute. “[W]hen a conviction is based on a plea of guilty an appellate court will rarely, if ever, be able to determine whether an erroneous denial of a motion to suppress contributed to the defendant’s decision, unless at the time of the plea he states or reveals his reason for pleading guilty” (*People v Grant*, 45 NY2d 366, 379-380 [1978]; see also *People v Wells*, 21 NY3d 716, 718-719 [2013]). More fundamentally, “the interplay between the evidence and the various related charges in an indictment cannot readily be traced” (*Matter of Forte v Supreme Ct. of State of N.Y.*, 48 NY2d 179, 187-188 [1979]).

The threshold question of whether a suppression order is reviewable on appeal must be distinguished from the question whether an error in the suppression order is harmless. Harmless error analysis occurs, if at all, only after a court has determined that it has jurisdiction to review an order. It is not the appropriate method for deciding reviewability. To suppose that an erroneous suppression determination directly related to one count has no effect on a defendant’s plea to another count in the same indictment would ignore the practical realities of plea bargaining. The distinction between counts pleaded to and counts satisfied by the plea may be less significant than

the fact that the number of charges against a defendant has been reduced and the prosecution has ended.²

A defendant who pleads guilty to one count will invariably take into consideration that other counts are satisfied by the plea. Importantly, a count satisfied by a guilty plea bears the double jeopardy consequences of a judgment of conviction. The judgment in this case prevents the People from prosecuting defendant again for the October 3, 2014 burglary, even though defendant did not plead to that count (*see Holz*, 167 AD3d at 1423 [Whalen, P.J., dissenting], citing CPL 40.20 [1]; 40.30 [1] [a]; 220.30 [2]).

The People assert that a count satisfied by a guilty plea, but not directly reflected in the judgment of conviction, does not fall within the meaning of CPL 710.70 (2). Specifically, the People observe that the term “judgment of conviction” does not include counts merely satisfied by a guilty plea. The question before us, however, is not whether a satisfied count should be considered part of a judgment of conviction. Instead, we must decide whether a suppression order related exclusively to a satisfied count “ensues in” or “results in” the judgment of conviction, within the meaning of the statute. We conclude that it does. CPL 710.70 (2) does not exclude review of suppression orders that are related to satisfied counts within the same accusatory instrument as the counts to which the defendant pleaded guilty.³

Finally, policy considerations are consistent with our broad reading of the statute. To conclude that the Appellate Division lacks jurisdiction to review a trial court’s determination on a suppression matter when the evidence in question is not directly related to the count of conviction would insulate erroneous decisions from review and could lead to a proliferation of unreviewable legal errors at the trial level. The People, as part of a plea offer, may “obtain[] [a] concession from the de-

2. Indeed, the confusion as to which count defendant was pleading guilty to during the plea colloquy and the initial error in the certificate of conviction illustrate this proposition. Defendant’s focus was likely on eliminating the risk of consecutive sentences.

3. The count defendant pleaded guilty to here was contained in the same indictment as the count that the suppression order involved. Accordingly, we do not opine on, and this decision should not be read to address, whether the right to appellate review under CPL 710.70 (2) extends to suppression orders related to a satisfied count when the accusatory instrument containing the satisfied count is separate from the instrument containing the count to which a defendant pleaded guilty.

fendant at the time of the plea” that the denial of the suppression motion did not influence the defendant’s decision to plead guilty, or may “negotiate a waiver of the defendant’s right to appeal” with regard to the denial of the motion to suppress (*People v Coles*, 62 NY2d 908, 910 [1984]). Lacking such a concession here, defendant’s right to appellate review of Supreme Court’s suppression order is secured by CPL 710.70 (2).

III.

Defendant further asks this Court to grant his motion to suppress, contending that Supreme Court erred in holding that the police officer had reasonable suspicion to justify the detention and seizure of the jewelry. Here, the Appellate Division did not reach the underlying suppression question and we remit to the Appellate Division to make its determination on the merits.

Accordingly, the order of the Appellate Division should be reversed and the case remitted to that court for further proceedings in accordance with this opinion.

Chief Judge DiFiore and Judges Rivera, Stein, Garcia, Wilson and Feinman concur.

Order reversed and case remitted to the Appellate Division, Fourth Department, for further proceedings in accordance with the opinion herein.

[149 NE3d 33, 125 NYS3d 340]

AMERICAN INTERNATIONAL SPECIALTY LINES INSURANCE COMPANY, Respondent, v ALLIED CAPITAL CORPORATION et al., Appellants.

Argued March 17, 2020; decided April 30, 2020

SUMMARY

APPEAL, by permission of the Appellate Division of the Supreme Court in the First Judicial Department, from an order of that Court, entered October 25, 2018. The Appellate Division (1) reversed, on the law, an order and judgment (one paper) of the Supreme Court, New York County (Barbara Jaffe, J.; op 2017 NY Slip Op 32936[U] [2017]), which, to the extent appealed from as limited by the briefs, had denied the petition (a) to vacate a corrected partial final arbitration award dated August 18, 2016, and a final arbitration award dated April 6, 2017; and (b) to confirm a partial final arbitration award dated March 8, 2016; (2) granted the petition; (3) vacated the arbitration awards dated August 18, 2016, and April 6, 2017; and (4) confirmed the partial final arbitration award dated March 8, 2016. The following question was certified by the Appellate Division: “Was the order of this Court, which reversed the Order of the Supreme Court, properly made?”

American Intl. Specialty Lines Ins. Co. v Allied Capital Corp., 167 AD3d 142, reversed.

HEADNOTE

Arbitration — Confirming or Vacating Award — Reconsideration of Prior Partial Final Award

In an arbitration arising out of an insurance coverage dispute in which the arbitration panel issued a “partial final award” resolving the issue of liability but ordered an evidentiary hearing as to defense costs, the arbitration panel acted within its authority by reconsidering its initial determination and issuing a “corrected partial final award,” where the record was devoid of evidence that the parties to the arbitration mutually agreed to the issuance of a partial decision that would have the effect of a final award. The doctrine of *functus officio*, which restricts the authority of arbitrators by precluding them from taking additional actions after issuing a final award, applies only to final awards. In New York, final awards are those that are coextensive with the issues submitted to the arbitrators by the parties. Judicial review of arbitration awards is typically limited to final determinations upon the matters submitted to the arbitrators. Under federal case law, partial determinations may be treated as final awards where the parties expressly agree both that certain issues submitted to the arbitrators should be decided in separate partial awards and that such awards will be considered final. Plaintiff never

consented to bifurcate the proceeding or agreed that any resulting partial decision would be treated as a final award. Neither the parties nor the arbitrators ever discussed or otherwise demonstrated any mutual understanding regarding whether the proposed severance of the calculation of defense costs would result in a partial final award. Absent an express, mutual agreement between the parties to the issuance of a partial and final award, the *functus officio* doctrine did not apply.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d Alternative Dispute Resolution §§ 179, 188, 189.

CARMODY-WAIT 2d Arbitration §§ 141:239, 141:240, 141:249, 141:250.

NY JUR 2d Arbitration and Award §§ 184, 198.

ANNOTATION REFERENCE

See ALR Index under Arbitration.

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Query: arbitration & reconsider! & partial /4 award

POINTS OF COUNSEL

Reed Smith LLP, New York City (*Brian A. Sutherland* of counsel) and Washington, D.C. (*Todd S. Kim*, of the District of Columbia bar and the California bar, admitted pro hac vice, and *John W. Schryber* of counsel), for appellants. I. The parties' written agreement authorized the arbitrators to issue only one final decision and award and did not limit their authority to reconsider partial rulings. (*Matter of Silverman [Benmor Coats]*, 61 NY2d 299; *Matter of Board of Educ. of Dover Union Free School Dist. v Dover-Wingdale Teachers' Assn.*, 61 NY2d 913; *Matter of National Cash Register Co. [Wilson]*, 8 NY2d 377; *Dolman v United States Trust Co. of N.Y.*, 2 NY2d 110; *Mobil Oil Indonesia v Asamera Oil [Indonesia]*, 43 NY2d 276; *Ott v Schroepfel*, 5 NY 482; *Stolt-Nielsen S. A. v AnimalFeeds Int'l Corp.*, 559 US 662; *Miller v Schloss*, 218 NY 400; *Jemzura v Jemzura*, 36 NY2d 496; *Brigham v Duany*, 241 NY 435.) II. In any event, the parties submitted the issue of whether the arbitrators had authority to reconsider their partial ruling to the arbitrators. (*Matter of Smith Barney Shearson v Sacharow*, 91 NY2d 39; *Benihana, Inc. v Benihana of Tokyo, LLC*, 784

F3d 887; *United Broth. of Carpenters & Joiners of Am. v Tappan Zee Constructors, LLC*, 804 F3d 270; *T.Co Metals, LLC v Dempsey Pipe & Supply, Inc.*, 592 F3d 329.) III. The arbitrators acted well within the scope of their authority in ruling on the reconsideration issue. (*Matter of Silverman [Benmor Coats]*, 61 NY2d 299; *Wien & Malkin LLP v Helmsley-Spear, Inc.*, 6 NY3d 471; *Matter of New York City Tr. Auth. v Transport Workers' Union of Am., Local 100, AFL-CIO*, 6 NY3d 332.)

Selendy & Gay PLLC, New York City (Caitlin J. Halligan of counsel), and *Gordon & Rees Scully Mansukhani, LLP*, Harrison (Lorraine M. Girolamo of counsel), and Glastonbury, Connecticut (*Dennis O. Brown*, of the Connecticut bar, the Michigan bar, and the Pennsylvania bar, admitted pro hac vice, and *Greil Roberts*, of the Connecticut bar and the Massachusetts bar, admitted pro hac vice, of counsel), for respondent. I. Under both federal and New York law, arbitrators may issue, and cannot later revise, partial final awards. (*Matter of Mahn v Major, Lindsey, & Africa, LLC*, 159 AD3d 546; *N.J.R. Assoc. v Tausend*, 19 NY3d 597; *Matter of Diamond Waterproofing Sys., Inc. v 55 Liberty Owners Corp.*, 4 NY3d 247; *Allied-Bruce Terminix Cos. v Dobson*, 513 US 265; *Preston v Ferrer*, 552 US 346; *Wien & Malkin LLP v Helmsley-Spear, Inc.*, 6 NY3d 471; *Utica Mut. Ins. Co. v Gulf Ins. Co.*, 306 AD2d 877; *Citizens Bank v Alafabco, Inc.*, 539 US 52; *Matter of Smith Barney, Harris Upham & Co. v Luckie*, 85 NY2d 193; *Volt Information Sciences, Inc. v Board of Trustees of Leland Stanford Junior Univ.*, 489 US 468.) II. The tribunal issued a valid partial final award on liability, rendering it *functus officio* on that issue. (*Stolt-Nielsen S. A. v AnimalFeeds Int'l Corp.*, 559 US 662; *Mastrobuono v Shearson Lehman Hutton, Inc.*, 514 US 52; *Jones v Welwood*, 71 NY 208; *Trade & Transp., Inc. v Natural Petroleum Charterers Inc.*, 931 F2d 191; *Andrea Doreen, Ltd. v Building Material Local Union 282*, 250 F Supp 2d 107; *McGregor Van De Moere, Inc. v Paychex, Inc.*, 927 F Supp 616; *Matter of Wendt v Bond-Factor Co., LLC*, 169 AD3d 808; *Global Gold Min. LLC v Caldera Resources, Inc.*, 941 F Supp 2d 374; *Bingham v New York City Tr. Auth.*, 99 NY2d 355; *Colonial Penn Ins. Co. v Omaha Indem. Co.*, 943 F2d 327.) III. Appellants' proposed new rule would significantly undermine arbitration and this Court should reject it. (*Stark v Molod Spitz DeSantis & Stark, P.C.*, 9 NY3d 59; *Matter of Board of Educ. of Dover Union Free School Dist. v Dover-Wingdale Teachers' Assn.*, 61 NY2d 913; *Publicis Communication v True N. Communications, Inc.*, 206 F3d 725; *Zeiler v Deutsch*, 500 F3d 157; *Matter of Smith Barney*,

Harris Upham & Co. v Luckie, 85 NY2d 193; *Preston v Ferrer*, 552 US 346; *Matter of Diamond Waterproofing Sys., Inc. v 55 Liberty Owners Corp.*, 4 NY3d 247.)

OPINION OF THE COURT

STEIN, J.

This appeal requires us to determine whether an arbitration panel exceeded its authority by reconsidering an initial determination—denominated a “Partial Final Award”—that addressed some, but not all, of the issues submitted for arbitration. Inasmuch as the record is devoid of any evidence that the parties to the arbitration mutually agreed to the issuance of a partial decision that would have the effect of a final award, we hold that the arbitration panel acted within the bounds of its broad authority by reconsidering the Partial Final Award.

I.

Ciena Capital LLC and Allied Capital Corporation reached a settlement with the federal government resolving a federal qui tam action involving allegations of their participation in loan origination fraud. As part of the settlement, Ciena agreed to pay the federal government \$10.1 million and Allied Capital—which owned 94.9% of the voting stock of Ciena—agreed to release a portion of its secured interest in Ciena, which was then facing bankruptcy, in order to facilitate Ciena’s payment of the settlement.

Ciena and Allied Capital (hereinafter collectively referred to as the insureds) sought payment of their defense costs for the federal action and indemnification for the resultant settlement under two insurance policies issued by petitioner American International Specialty Lines Insurance Company (hereinafter AISLIC). After AISLIC denied coverage, the insureds demanded arbitration under the broadly worded arbitration clauses contained in the policies. As relevant here, the insureds sought damages for AISLIC’s alleged breach of the insurance policies by refusing to defend the insureds in the federal action and indemnify them for the \$10.1 million settlement. In response, AISLIC asserted, among other things, that the settlement was not a “loss” within the meaning of the insurance policies, and that the insureds could not prove their entitlement to the defense costs claimed because the relevant invoices showed that the alleged costs arose, in part, from unrelated legal work that was not covered by the policies.

Eventually, the insureds and AISLIC moved for summary disposition of the arbitration proceeding. In their submissions to the arbitration panel,¹ the insureds noted that the precise amount of defense costs to which they were entitled could be the subject of a separate evidentiary hearing before the panel if it determined that AISLIC was liable for such costs. At oral argument on the parties' applications for summary disposition, one of the arbitrators inquired whether "a partial summary disposition is in the cards," and the insureds' counsel replied that such a procedure would "make[] the most sense." However, AISLIC's counsel never directly commented on whether AISLIC would agree to a partial summary disposition, and the arbitration panel never stated on the record that it would issue such a partial determination. Moreover, there was no discussion regarding whether any such "partial summary disposition" would be a "final" award deciding some, but not all, of the issues submitted to the panel.

Nevertheless, the arbitration panel, with one arbitrator dissenting, subsequently issued what it denominated a "Partial Final Award," determining that only one insurance policy was applicable, under which only Allied Capital was an insured, and that the federal settlement did not constitute a covered loss under this insurance policy.² Consequently, the panel concluded that Allied Capital was not entitled to indemnification.³ However, the arbitration panel determined that Allied Capital was entitled to defense costs and, because there was a factual dispute regarding the amount of legal expenses incurred during the federal action, the question of damages would be resolved after a separate evidentiary hearing before the panel.

Before an evidentiary hearing was held, the insureds sought reconsideration of the Partial Final Award, arguing that the panel had erred by concluding that the settlement did not constitute a covered loss. AISLIC opposed the reconsideration application both on procedural grounds—namely, that the arbitrators were without authority to reconsider the Partial Final

1. The panel consisted of three arbitrators, with one serving as the chair.

2. The arbitration panel rejected AISLIC's argument that the claim arising out of the federal settlement related back to an earlier policy, also issued by AISLIC, under which both Allied Capital and Ciena were insureds.

3. The dissenting member of the arbitration panel concluded that Allied Capital was at least entitled to a full evidentiary hearing regarding whether the settlement constituted a loss under the relevant policy.

Award under the doctrine of *functus officio*—and on the merits, arguing that the arbitrators correctly decided the indemnification issue.⁴

The arbitration panel, again with one member dissenting, changed course and concluded in a “Corrected Partial Final Award” that, upon reconsideration, the settlement did constitute a covered loss under the applicable insurance policy. As pertinent here, a majority of the panel rejected AISLIC’s argument that the *functus officio* doctrine precluded reconsideration.⁵ Thereafter, the arbitration panel conducted an evidentiary hearing to determine the amount of Allied Capital’s covered defense costs, and ultimately issued a “Final Award,” granting Allied Capital recovery against AISLIC for damages consisting of both the settlement and defense costs, less offsets for insurance proceeds paid to Ciena under insurance policies not otherwise at issue in this arbitration.

AISLIC commenced this proceeding seeking vacatur of the Corrected Partial Final Award and the Final Award, and reinstatement and confirmation of the original Partial Final Award, reiterating its argument that the doctrine of *functus officio* precluded the arbitration panel from reconsidering the Partial Final Award. Supreme Court, among other things, denied the petition and confirmed the Final Award.

Upon AISLIC’s appeal, the Appellate Division, with one Justice dissenting, reversed Supreme Court’s order and judgment, granted AISLIC’s petition, vacated the Corrected Partial Final Award and Final Award, and confirmed the Partial Final Award (167 AD3d 142, 149-150 [1st Dept 2018]). The majority concluded that, “during the arbitration proceedings, the parties agreed to an immediate determination solely as to liability, which they expected would be final,” and “nothing in the record . . . suggest[ed] that the parties or the panel believed that the [Partial Final Award] would be anything less than a final determination” (*id.* at 149). Therefore, the Court held that, “under the *functus officio* doctrine, it [was] improper and in excess of

4. AISLIC also claimed that the JAMS institutional procedural rules applied and precluded reconsideration. The arbitration panel rejected this argument, concluding that the parties never agreed to be bound by such rules. The propriety of that determination is not before us on this appeal.

5. The dissenting member of the panel would have determined that the arbitration panel was precluded from reconsidering the Partial Final Award by the doctrine of *functus officio* and, in any event, that the Partial Final Award correctly determined that Allied Capital was not entitled to indemnification.

the panel's authority" to reconsider the Partial Final Award (*id.*).

The Appellate Division granted the insureds leave to appeal to this Court and certified the question of whether its order was properly made (2019 NY Slip Op 64181[U] [1st Dept 2019]). We now reverse and answer the certified question in the negative.

II.

We begin our analysis by recognizing "New York's 'long and strong public policy favoring arbitration'" (*Stark v Molod Spitz DeSantis & Stark, P.C.*, 9 NY3d 59, 66 [2007], quoting *Matter of Smith Barney Shearson v Sacharow*, 91 NY2d 39, 49 [1997]; see *Matter of Weinrott [Carp]*, 32 NY2d 190, 199 [1973]). Arbitration serves the laudable objective of "conserving the time and resources of the courts and the contracting parties" (*Matter of Nationwide Gen. Ins. Co. v Investors Ins. Co. of Am.*, 37 NY2d 91, 95 [1975]; see *Stark*, 9 NY3d at 66; *Mobil Oil Indonesia v Asamera Oil [Indonesia]*, 43 NY2d 276, 281-282 [1977]). Arbitrators routinely use their expertise to orchestrate expeditious resolutions to complex legal problems in commercial disputes, as well as in other areas of the law (see *Matter of Goldfinger v Lisker*, 68 NY2d 225, 230-231 [1986]). With these principles in mind, we have steadfastly discouraged courts from becoming unnecessarily entangled in arbitrations or from serving "as a vehicle to protract litigation" (*Nationwide Gen. Ins. Co.*, 37 NY2d at 95, quoting *Weinrott*, 32 NY2d at 199; see *Smith Barney Shearson*, 91 NY2d at 49-50; *Goldfinger*, 68 NY2d at 231; *Matter of Sprinzen [Nomberg]*, 46 NY2d 623, 629 [1979]).

Similarly, CPLR article 75 codifies a limited role for the judiciary in arbitration. In that regard, an application to vacate an arbitration award may be granted in narrow circumstances, including where "an arbitrator . . . exceeded his [or her] power" (CPLR 7511 [b] [1] [iii]). We have repeatedly explained that arbitrators exceed their power within the meaning of the CPLR only when they issue an award that "violates a strong public policy, is irrational or clearly exceeds a specifically enumerated limitation on the arbitrator's power" (*Matter of Kowaleski [New York State Dept. of Correctional Servs.]*, 16 NY3d 85, 90-91 [2010], quoting *Matter of New York City Tr. Auth. v Transport Workers' Union of Am., Local 100, AFL-CIO*, 6 NY3d 332, 336 [2005]; see *Matter of Falzone [New York Cent.*

Mut. Fire Ins. Co.], 15 NY3d 530, 534 [2010]; *Matter of New York State Correctional Officers & Police Benevolent Assn. v State of New York*, 94 NY2d 321, 326 [1999]; *Matter of Silverman [Benmor Coats]*, 61 NY2d 299, 308 [1984]).

In this case, AISLIC argues, and the Appellate Division held, that the arbitration panel exceeded its authority because it violated the common-law doctrine of *functus officio* (167 AD3d at 148-149). *Functus officio*, Latin for “having performed [one’s] office” (Black’s Law Dictionary [11th ed 2019], *functus officio*), has operated historically as a restriction on the authority of arbitrators, precluding them from taking additional actions after issuing a final award. As this Court stated well over 100 years ago,

“[a]s soon as [the arbitrators] have made and delivered their award, they became *functus officio*, and their power is at an end. After having once fully exercised their judgment upon the facts submitted to them and reached a conclusion which they have incorporated into their award, they are not at liberty at another and subsequent time to exercise a fresh judgment on the case and alter their award” (*Flannery v Sahagian*, 134 NY 85, 87-88 [1892]).

In other words, under the common-law rule, arbitrators relinquish all powers over the parties to the arbitration upon issuance of a final award and, therefore, are precluded from modifying or reconsidering that award (*see Herbst v Hagen-aers*, 137 NY 290, 294 [1893]; *see also* CPLR 7509 [permitting modification of an arbitration award in only limited, enumerated circumstances]; Sixth Rep to Legislature by Senate Fin Comm relative to Revision of Civil Practice Act at 49, 1962 Legis Doc No. 8, Bill Jacket, L 1962, ch 308 at 637 [CPLR 7509 “permits the arbitrators to correct formal errors or clarify their intent but not to re-examine the grounds of the award or alter the decision”])).

On this appeal, the insureds argue that the *functus officio* rule is no longer valid under New York law inasmuch as that doctrine was grounded upon anti-arbitrational sentiments rejected long ago by our state courts and by Congress in the Federal Arbitration Act. We need not address this argument, however, inasmuch as *functus officio* would apply only to final awards (*see Flannery*, 134 NY at 87-88) and, despite its name, the Partial Final Award was not, in fact, final.

This Court has long recognized that final awards are those that are coextensive with the issues submitted to the arbitrators by the parties (see *Jones v Welwood*, 71 NY 208, 212 [1877]). In *Mobil Oil Indonesia v Asamera Oil (Indonesia)*, we explained that judicial review of arbitration awards is typically limited to “final determination[s] upon the matters submitted” to the arbitrators, with specifically enumerated exceptions in CPLR article 75 that are not relevant here (43 NY2d at 281, citing *Jones*, 71 NY at 212; see CPLR 7503 [b]). Consequently, in *Mobil Oil*, we determined that a party may not commence a proceeding to vacate the arbitrators’ interlocutory order that decided only a “very limited procedural question” (43 NY2d at 281). Reiterating this State’s general policy favoring arbitration, we observed that, “for the court[s] to entertain review of intermediary arbitration decisions involving procedure or any other interlocutory matter, would disjoint and unduly delay the proceedings, thereby thwarting the very purpose of conservation” (*id.* at 282). We further underscored that both article 75, itself, and policy considerations “dictate that the courts refrain from entertaining such interlocutory determinations made by arbitrators” (*id.*). Thus, under our case law, a final arbitration award is generally one that resolves the entire arbitration.

Relying on federal case law that has recognized certain circumstances in which partial arbitration determinations may be considered final awards, AISLIC argues that the parties here agreed to bifurcate the arbitration, as well as to the issuance of a partial and final award. Federal courts have consistently recognized that partial determinations may be treated as final awards where the parties expressly agree both that certain issues submitted to the arbitrators should be decided in separate partial awards and that such awards will be considered to be final (see e.g. *Hart Surgical, Inc. v Ultracision, Inc.*, 244 F3d 231, 235 [1st Cir 2001]; *Trade & Transp., Inc. v Natural Petroleum Charterers Inc.*, 931 F2d 191, 195 [2d Cir 1991]). Most notably, in *Trade & Transp., Inc. v Natural Petroleum Charterers Inc.*, the Second Circuit held that—where both parties expressly asked the arbitration panel to issue a partial award regarding liability for one aspect of the dispute in order to obtain “a decision that was expressly intended to have immediate collateral effects in the judicial proceeding,” and neither party objected when the arbitrators informed them that they would render a partial final award as a result of the bifurcation—the arbitrators were without authority to recon-

sider the resulting partial final award (931 F2d at 192-193, 195). The Second Circuit concluded that, under those circumstances, it was unnecessary that every issue submitted to the arbitrators be conclusively decided in a single final award because “the submission by the parties determines the scope of the arbitrators’ authority” and, “if the parties agree that the panel is to make a final decision as to part of the dispute, the arbitrators have the authority and responsibility to do so” (*id.* at 195).

This Court has not had occasion to determine whether or under what circumstances parties may agree to the issuance of a final award that disposes of some, but not all, of the issues submitted to the arbitrators; nor must we resolve that question in this case. Even assuming that parties to an arbitration may agree to the issuance of a partial determination that constitutes a final award, the parties here, as the arbitration panel below concluded, did not reach any such agreement. Although the insureds’ counsel suggested a separate proceeding to determine the amount of Allied Capital’s defense costs in the event the panel determined such costs were recoverable, AISLIC never consented to bifurcate the proceeding—marking at one point that, in its view, “[t]here [was] nothing left on [the defense costs] issue to talk about”—or agreed that any resulting partial decision would be treated as a final award. Notably, neither the parties nor the arbitrators ever discussed or otherwise demonstrated any mutual understanding regarding whether the proposed severance of the calculation of defense costs would result in a partial final award. This case is therefore distinguishable from *Trade & Transp.*, in which the parties specifically agreed to bifurcate the arbitration for the very purpose of obtaining a “decision that was expressly intended to have immediate collateral effects in the judicial proceeding” (931 F2d at 195). Absent an express, mutual agreement between the parties to the issuance of a partial and final award, the *functus officio* doctrine would have no application in this case.⁶ Under these circumstances, we reject AISLIC’s argument that the arbitration panel exceeded its authority by reconsidering the Partial Final Award.⁷

6. The parties do not ask us to, and so we do not, address here the effect of CPLR article 75 on the common-law *functus officio* doctrine.

7. To the extent that AISLIC raises a federal preemption argument, such contention is unpreserved for our review.

Accordingly, the order of the Appellate Division should be reversed, with costs, so much of the order and judgment of Supreme Court as (1) denied the motion to vacate the August 2016 Corrected Partial Final Award and the April 2017 Final Award and (2) confirmed the April 2017 Final Award reinstated, and the certified question answered in the negative.

Chief Judge DiFiore and Judges Rivera, Fahey, Garcia, Wilson and Feinman concur.

Order reversed, with costs, so much of the order and judgment of Supreme Court, New York County, as (1) denied the motion to vacate the August 2016 “corrected partial final arbitration award” and the April 2017 final arbitration award, and (2) confirmed the April 2017 final arbitration award reinstated, and certified question answered in the negative.

[149 NE3d 39, 125 NYS3d 346]

WILFREDO COLON et al., Appellants, v WILLIE MARTIN, JR., et al., Respondents.

Submitted April 28, 2020; decided May 7, 2020

SUMMARY

APPEAL from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered March 27, 2019. The Appellate Division, with two Justices dissenting, affirmed an order of the Supreme Court, Richmond County (Thomas P. Aliotta, J.), which, insofar as appealed from, had granted defendant's cross motion for summary judgment dismissing the complaint for failure to comply with General Municipal Law § 50-h.

Colon v Martin, 170 AD3d 1109, affirmed.

HEADNOTE

Municipal Corporations — Examination of Claims — Oral Examination — No Right for Coclaimant to be Present Where Municipality Objects

A claimant does not have the right to observe a coclaimant's General Municipal Law § 50-h oral examination over the municipality's objection. No person other than a claimant's attorney is expressly permitted to attend a section 50-h oral examination when the municipality objects. Pursuant to the last antecedent rule of statutory construction, the phrase "such examination" in section 50-h (1), which provides that "the examination shall be upon oral questions . . . and may include a physical examination" and that a claimant "is entitled to have such examination in the presence of his or her own personal physician and such other person as he or she may elect," refers to the "physical examination," the last examination in the list of examinations contemplated by that provision. The legislative history corroborates this result making clear that the legislature intended the oral and physical examinations to be separate undertakings at which claimants are afforded different rights.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d Depositions and Discovery §§ 84, 96.

CARMODY-WAIT 2d Actions By and Against Public Bodies and Public Officers §§ 144:169, 144:177.

McKINNEY'S, General Municipal Law § 50-h (1), (3).

NY JUR 2d Disclosure § 394; NY JUR 2d Government Tort Liability § 484.

ANNOTATION REFERENCE

See ALR Index under Depositions; Municipal Corporations.

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POINTS OF COUNSEL

Sweetbaum & Sweetbaum, Lake Success (*Marshall D. Sweetbaum* of counsel), and *Terilli & Tintle, PLLC*, for appellants. The Supreme Court, Richmond County, which order was affirmed by the Appellate Division, Second Department, on a 3 to 2 basis, erred in finding that there was a violation by the plaintiffs of General Municipal Law § 50-h, which under the circumstances shown in the record and briefs was not violated by the plaintiffs. (*Alouette Fashions v Consolidated Edison Co. of N.Y.*, 119 AD2d 481; *Goodwin v Pretorius*, 105 AD3d 207; *Sandak v Tuxedo Union School Dist. No. 3*, 308 NY 226; *Nasca v Town of Brookhaven*, 10 AD3d 415; *Rupp v City of Port Jervis*, 10 AD3d 391; *Carlisle v County of Nassau*, 64 AD2d 15.)

Zachary W. Carter, Corporation Counsel, New York City (*Jeremy W. Shweder, Richard Dearing* and *Claude S. Platton* of counsel), for respondents. Supreme Court properly dismissed the complaint based on plaintiffs' refusal to participate in pre-suit General Municipal Law § 50-h examinations. (*People v Francis*, 30 NY3d 737; *Matter of T-Mobile Northeast, LLC v DeBellis*, 32 NY3d 594; *People v Garson*, 6 NY3d 604; *New York State Bankers Assn. v Albright*, 38 NY2d 430; *Erkenbrach v Erkenbrach*, 96 NY 456; *Morales v County of Nassau*, 94 NY2d 218; *Quadrant Structured Prods. Co., Ltd. v Vertin*, 23 NY3d 549; *Cruz v TD Bank, N.A.*, 22 NY3d 61; *Matter of Hernandez v Barrios-Paoli*, 93 NY2d 781; *Fitzgerald v Sanitation Dist. No. 6 of Town of Hempstead*, 89 Misc 2d 1078.)

OPINION OF THE COURT

FEINMAN, J.

General Municipal Law § 50-h requires a claimant to comply with a municipality's demand for a pre-action oral examination before commencing suit against the municipality. The novel statutory interpretation issue on this appeal is whether a claimant has the right to observe a coclaimant's section 50-h oral examination over the municipality's objection. We hold that section 50-h provides no such right.

Plaintiff Wilfredo Colon contends that, in January 2015, he was the owner and operator of a vehicle that was rear-ended

by a pickup truck driven by defendant Willie Martin, Jr. and owned by Martin's employers, defendants New York City Department of Environmental Protection and the City of New York (the City). Plaintiff Ramona Cordero contends that she was a passenger in Colon's vehicle at the time of the accident. Plaintiffs, who were represented by the same attorney, served defendants with a joint notice of claim, contending that they suffered personal injuries and other damages as a result of defendants' negligence.

Defendants served separate "Notice[s] of 50-h Hearing," advising that, pursuant to General Municipal Law § 50-h, plaintiffs were "mandated by law to appear" and "be orally examined under oath" concerning their allegations before commencing an action. The notices contained unique claim numbers, assigned by defendants, and stated that the hearings would occur consecutively on a specified day.

Plaintiffs appeared for their section 50-h hearings in June 2015. However, their attorney refused to let the hearings proceed unless each plaintiff could be present while the other testified. Defendants rejected plaintiffs' demanded procedure, asserting that plaintiffs' refusal to appear at separate hearings violated the General Municipal Law and the City's policy. Defendants explained that they were "not waiving any right to any hearing" and warned plaintiffs that their position "risk[ed] . . . potential dismissal." Plaintiffs countered that defendants failed to identify any authority for their reading of the statute other than the City's internal policy. Plaintiffs maintained that they were "not refusing to proceed," but would not go forward unless they could observe each other's testimony. The parties failed to reach an accord, and no section 50-h hearings ever occurred.

Plaintiffs commenced this action against defendants and later moved for summary judgment on the issue of liability. Defendants cross-moved for summary judgment based on plaintiffs' failure to submit to pre-action section 50-h hearings. Plaintiffs opposed defendants' cross motion, arguing that defendants constructively waived their right to the hearings by refusing to conduct them simultaneously. Plaintiffs did not seek, in the alternative, an opportunity to submit to separate hearings. Supreme Court, among other things, granted defendants' cross motion and dismissed the action.

The Appellate Division affirmed Supreme Court's order insofar as appealed from, with two Justices dissenting (*see* 170

AD3d 1109, 1109 [2d Dept 2019]). The Court concluded that General Municipal Law § 50-h “does not expressly permit nor give the absolute right to a claimant involved in the same alleged incident to be present at or to observe another claimant’s oral examination” (*id.* at 1111). Therefore, because plaintiffs failed “to comply with” the statute, “they were precluded from commencing the instant action” (*id.* at 1112). Plaintiffs appealed to this Court as of right pursuant to CPLR 5601 (a) on dissent grounds. We affirm.

This Court’s “well-established rules of statutory construction direct” that the analysis begins “with the language of the statute” (*People v Francis*, 30 NY3d 737, 740 [2018] [internal quotation marks and citation omitted]). This is because the “primary consideration is to ascertain the legislature’s intent, of which the text itself is generally the best evidence” (*id.* [internal quotation marks and citation omitted]; see *Matter of Walsh v New York State Comptroller*, 34 NY3d 520, 524 [2019]). “[A] court should construe unambiguous language to give effect to its plain meaning” (*Matter of Walsh*, 34 NY3d at 524 [internal quotation marks and citation omitted]). “Further, a statute must be construed as a whole and . . . its various sections must be considered together and with reference to each other” (*id.* [internal quotation marks and citation omitted]). “[T]he circumstances surrounding the statute’s passage” are a useful aid in understanding its meaning (*Riley v County of Broome*, 95 NY2d 455, 464 [2000] [internal quotation marks and citation omitted]).

“The maxim *expressio unius est exclusio alterius*” applies “in the construction of the statutes, so that where a law expressly describes a particular act, thing or person to which it shall apply, an irrefutable inference must be drawn that what is omitted or not included was intended to be omitted or excluded” (McKinney’s Cons Laws of NY, Book 1, Statutes § 240; see *Town of Aurora v Village of E. Aurora*, 32 NY3d 366, 372-373 [2018]). In other words, the doctrine is an “interpretive maxim that the inclusion of a particular thing in a statute implies an intent to exclude other things not included” (*Cruz v TD Bank, N.A.*, 22 NY3d 61, 72 [2013]). The maxim “is typically used to limit the expansion of a right or exception—not as a basis for recognizing unexpressed rights by negative implication” (*id.*).

Under the “last antecedent rule of statutory construction . . . , relative and qualifying words or clauses in a statute are to be applied to the words or phrases immediately preceding,

and are not to be construed as extending to others more remote” (*Matter of T-Mobile Northeast, LLC v DeBellis*, 32 NY3d 594, 608 [2018], *rearg denied* 32 NY3d 1197 [2019] [internal quotation marks, brackets, and citation omitted]; see McKinney’s Cons Laws of NY, Book 1, Statutes § 254). “Thus, the word ‘such,’ when used in a statute, must, in order to be intelligible, refer to some antecedent, and will generally be construed to refer to the last antecedent in the context, unless some compelling reason appears why it should not be so construed” (McKinney’s Cons Laws of NY, Book 1, Statutes § 254, Comment at 418 [1971 ed]).

General Municipal Law § 50-h (1) states:

“Wherever a notice of claim is filed against a city . . . the city . . . shall have the right to demand an examination of the claimant relative to the occurrence and extent of the injuries or damages for which claim is made, which examination shall be upon oral questions . . . and may include a physical examination of the claimant by a duly qualified physician. If the party to be examined desires, he or she is entitled to have such examination in the presence of his or her own personal physician and such relative or other person as he or she may elect.”

Section 50-h (3) provides: “In any examination required pursuant to the provisions of this section the claimant shall have the right to be represented by counsel.” Section 50-h (5) states: “Where a demand for examination has been served . . . no action shall be commenced against the city . . . against which the claim is made unless the claimant has duly complied with such demand for examination.”

As General Municipal Law § 50-h (5) makes clear on its face, compliance with a municipality’s demand for a section 50-h examination is a condition precedent to commencing an action against that municipality (*see Alouette Fashions v Consolidated Edison Co. of N.Y.*, 119 AD2d 481, 484-485 [1st Dept 1986], *affd for the reasons stated in App Div mem* 69 NY2d 787 [1987]). A claimant’s failure to comply with such a demand generally warrants dismissal of the action (*see Davidson v Bronx Mun. Hosp.*, 64 NY2d 59, 62 [1984]). Requiring claimants to comply with section 50-h before commencing an action augments the statute’s purpose, which “is to afford the city an opportunity to early investigate the circumstances surrounding

the accident and to explore the merits of the claim, while information is readily available, with a view towards settlement” (*Alouette Fashions*, 119 AD2d at 487; see *Davidson*, 64 NY2d at 62).

Plaintiffs essentially argue that General Municipal Law § 50-h (1) permits a claimant to have their “personal physician” or “such relative or other person” present at an *oral* examination, and that a coclaimant qualifies as an “other person” under the statute. We disagree. Section 50-h (1) states that the “examination shall be upon oral questions . . . and may include a physical examination.” It goes on to state that the claimant “is entitled to have *such examination* in the presence of his or her own personal physician and such relative or other person as he or she may elect” (emphasis added). Pursuant to the last antecedent rule of statutory construction, the phrase “such examination” in section 50-h (1) refers to the “physical examination,” the last examination in the list of examinations contemplated by that provision. It does not apply to the more remote examination upon oral questions. Plaintiffs fail to identify any compelling reason to abandon this established rule of construction in this case.

Section 50-h (1)’s legislative history corroborates this result. When the statute was originally enacted in 1958, it permitted, as it does today, a municipality to demand an examination “which examination shall be upon oral questions . . . and may include a physical examination of the claimant by a duly qualified physician” (General Municipal Law former § 50-h [1]; see L 1958, ch 393, § 2). The 1958 statute provided, however, that “[i]f the party to be examined is a female she shall, if she desires, be entitled to have such examination in the presence of her own personal physician and such relative or other person as she may elect” (*id.*).

In 1976, the legislature amended section 50-h (1) to make the statute gender neutral. The amended statute stated: “If the party to be examined desires, he or she is entitled to have such examination in the presence of his or her own personal physician and such relative or other person as he or she may elect” (General Municipal Law former § 50-h [1]; see L 1976, ch 22, § 1). This language still exists in the current statute. The Law Revision Commission’s memorandum explained that the purpose of the 1976 amendment was “[t]o extend to male claimants . . . the right to have their own physician and relative present *at physical examinations* called for by the

municipality” (Mem of Law Rev Commn, Bill Jacket, L 1976, ch 22 [emphasis added]). “If legal safeguards inhere in having one’s own physician present *at a physical examination* bearing on liability, there is no discernible reason for limiting that right to women only” (*id.* [emphasis added]).

This legislative history makes clear that the legislature intended the oral and physical examinations to be separate undertakings at which claimants are afforded different rights. Consequently, contrary to plaintiffs’ argument, the statutory language, legislative history, and the circumstances surrounding the 1976 amendment all confirm that a claimant is permitted to bring a personal physician or other person to the physical examination, not the oral examination.

In addition, considering General Municipal Law § 50-h as a whole, we conclude that the legislature’s chosen statutory scheme provides a municipality the authority to conduct separate oral examinations of coclaimants.* The statute specifically articulates the persons who may not be prevented from accompanying claimants to oral and physical examinations. As explained above, section 50-h (1) sets forth the broad category of persons that may not be excluded from accompanying claimants to their physical examination. However, the statute does not grant claimants a similar right to have a broad category of persons attend their oral examination over the municipality’s objection. Instead, section 50-h (3) permits claimants to have their attorney accompany them to “any” section 50-h examination, referring to both the oral examination and the physical examination. No other person is expressly permitted to attend a section 50-h oral examination when the municipality objects. Because section 50-h specifically describes the persons who cannot be excluded from the statutory examinations, both oral and physical, we infer, under the *expressio unius* maxim, that the legislature intended to allow municipalities to exclude persons not listed in the statute from attending those examinations. Concerning section 50-h oral examinations, in particular, the legislature’s decision to grant claimants the right to have their attorneys attend those examinations, while omitting a similar right to have coclaimants attend, implies that the legislature intended to au-

* A municipality need not exercise this authority, and we do not hold that coclaimants are precluded from observing each other’s section 50-h hearings in the absence of an objection from the municipality.

thorize municipalities to exclude coclaimants from the oral examinations. We decline plaintiffs' invitation to recognize an "unexpressed right[]" for coclaimants to attend section 50-h oral examinations "by negative implication" (*Cruz*, 22 NY3d at 72). Had the legislature intended to allow coclaimants to observe each other's section 50-h hearings over the municipality's objection, "it would have said so in the statute" (*id.*).

Finally, at Supreme Court plaintiffs never requested an opportunity to submit belatedly to section 50-h hearings. The request for such relief here is therefore unpreserved for our review. Plaintiffs' remaining arguments lack merit. Accordingly, the Appellate Division order should be affirmed, with costs.

FAHEY, J. (concurring). The historical roots of General Municipal Law § 50-h, and the advantages it gives to municipalities, are linked to the waiver of sovereign immunity. In light of that waiver, the legislature gave municipalities certain procedural protections, reflecting an underlying policy of allowing municipalities to promptly investigate a claim.

"[W]hen the State of New York waived its sovereign immunity in 1929, its subdivisions, including the City, also lost their protection from suit" (*Campbell v City of New York*, 4 NY3d 200, 205 [2005], citing *Florence v Goldberg*, 44 NY2d 189, 194-195 [1978] ["As a concomitant of the State's waiver of immunity, the governmental subdivisions of the State—its counties, cities, towns and villages—formerly sheltered under the protective cloak of the State's immunity, also became answerable equally with individuals and private corporations for wrongs of officers and employees" (internal quotation marks and citations omitted)]). In recognition of this loss of sovereign immunity, the legislature has created certain protections for municipalities in General Municipal Law article 4 that do not apply to private tort defendants (*see Bender v New York City Health & Hosps. Corp.*, 38 NY2d 662, 667 [1976]).

General Municipal Law § 50-h is one such protection. It grants to certain municipal defendants—here, the City of New York—the right to examine the allegedly injured claimant, both physically and orally, "relative to the occurrence and extent of the injuries or damages for which claim is made" (*id.* § 50-h [1]). A claimant's compliance with a municipality's demand for a physical or oral examination pursuant to section 50-h is a condition precedent to suit (*see id.* § 50-h [5]). If a

claimant nevertheless commences an action despite noncompliance with a demand for a 50-h examination, that action is subject to dismissal.

The purpose of an oral examination conducted pursuant to section 50-h, otherwise known as a “50-h hearing,” is to grant municipal defendants a protection that private tort defendants generally are not afforded: to examine the allegedly injured individual with respect to the claim before an action is commenced (see *Davidson v Bronx Mun. Hosp.*, 64 NY2d 59, 62 [1984]). The 50-h hearing allows the municipal defendant “an opportunity to early investigate the circumstances surrounding the accident and to explore the merits of the claim, while information is readily available, with a view towards settlement” (*Alouette Fashions v Consolidated Edison Co. of N.Y.*, 119 AD2d 481, 487 [1st Dept 1986], *affd for reasons stated below* 69 NY2d 787 [1987]).

This Court’s statutory interpretation today supports that legislative purpose. The legislature did not give claimants the right to have any person other than the claimant’s attorney present at a 50-h hearing. The legislative purpose—to enable the municipality to promptly investigate a claim before an action is commenced—is furthered by allowing a claimant to have only those individuals expressly specified by the legislature in attendance at a 50-h examination. Nowhere in the statute are claimants given the right to have coclaimants attend or observe their testimony at a 50-h hearing.

Contrary to the suggestion in the Appellate Division dissent, the CPLR provisions governing depositions are not instructive in interpreting General Municipal Law § 50-h (see *Colon v Martin*, 170 AD3d 1109, 1116-1117 [2d Dept 2019, Duffy, J., dissenting]). The provisions of the CPLR do not apply to 50-h hearings because 50-h hearings are conducted before an action is commenced.* Even assuming, for the sake of argument, that parties have the right to attend depositions during a pending action (*but see e.g. Perez v Time Moving & Stor.*, 28 AD3d 326, 328 [1st Dept 2006], *lv dismissed* 7 NY3d 862 [2006]; *Troutman v Washburn*, 197 AD2d 876, 876 [4th Dept 1993]; *Naatz v Queensbury Cent. School Dist.*, 166 AD2d 866, 867 [3d Dept 1990]; *Matter of Czachor*, 137 AD2d 915, 916 [3d Dept 1988]; *Swiers v P & C Food Mkts.*, 95 AD2d 881, 882 [3d Dept 1983]),

* CPLR 3102 (c) allows for “disclosure to aid in bringing an action, . . . but only by court order.”

that principle has no bearing on the interpretation of General Municipal Law § 50-h. Hearings conducted pursuant to section 50-h occur before any “parties” to an “action” yet exist.

Chief Judge DiFiore and Judges Rivera, Stein, Fahey, Garcia and Wilson concur; Judge Fahey in a concurring opinion.

Order affirmed, with costs.

[149 NE3d 1, 125 NYS3d 308]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JOSE PEREZ, Appellant.

Argued February 13, 2020; decided March 26, 2020

SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered June 27, 2018. The Appellate Division affirmed an order of the Supreme Court, Kings County (Bruce M. Balter, J.), which had, after a hearing, designated defendant a level two sex offender pursuant to Correction Law article 6-C.

People v Perez, 162 AD3d 1083, affirmed.

HEADNOTES

Crimes — Sex Offenders — Sex Offender Registration Act — Assessment of Risk Level Points for Prior Foreign Conviction — Essential Elements Test

1. When assessing points for prior crimes under risk factor 9 of the Sex Offender Registration Act (Correction Law art 6-C [SORA]) risk assessment instrument for purposes of making a risk level determination, the New York State Board of Examiners of Sex Offenders and courts should apply the “essential elements” test when assessing whether a foreign conviction is comparable to endangering the welfare of a child under New York law. With respect to registrable offenses, the “essential elements” provision of SORA requires registration whenever an individual is convicted of criminal conduct in a foreign jurisdiction that, if committed in New York, would have amounted to a registrable New York offense. In circumstances where the offenses overlap but the foreign offense also criminalizes conduct not covered under the New York offense, the Board must review the conduct underlying the foreign conviction to determine if that conduct is within the scope of the New York offense. The ultimate and paramount concern of SORA risk level assessment is an accurate determination of the risk a sex offender poses to the public. Thus, assessing points under risk factor 9 for foreign convictions similarly warrants a less rigid approach than strict equivalency to allow for an individualized determination that fully captures the offender’s potential risk to the public. Examining, where necessary under the “essential elements” test, the underlying conduct of a foreign conviction effectuates the remedial purposes of SORA and adheres to the plain language of the Correction Law and the SORA guidelines.

Crimes — Sex Offenders — Sex Offender Registration Act — Risk Level Determination — Assessment of Points for Prior Foreign Conviction

2. Defendant’s New Jersey lewdness conviction for exposing himself to a 12-year-old girl through a window, blowing her kisses and “fondling and stroking his penis in view of [the victim] to sexually gratify himself,” was

comparable to the crime of endangering the welfare of a child in New York, warranting the assessment of 30 points under risk factor 9 of the Sex Offender Registration Act (Correction Law art 6-C) risk assessment instrument. Because the offenses overlap but the New Jersey offense also criminalizes conduct that may not be covered under the New York offense, courts must review the conduct underlying the foreign conviction to determine if that conduct is within the scope of the New York offense. It was undisputed that defendant knowingly exposed himself to the 12-year-old victim and made sexual and offensive gestures toward her and her teenage family members. The record similarly reflected that defendant understood that his actions as directed toward the victim were “likely to be injurious to the physical, mental or moral welfare of a child” (Penal Law § 260.10 [1]). Thus, the conduct underlying defendant’s New Jersey conviction was within the scope of endangering the welfare of a child under New York law.

RESEARCH REFERENCES

By the Publisher’s Editorial Staff

AM JUR 2d Mentally Impaired Persons § 134.

McKINNEY’S, Correction Law art 6-C; Penal Law § 260.10 (1).

NY JUR 2d Penal and Correctional Institutions §§ 404, 414, 418, 420.

ANNOTATION REFERENCE

Validity, Construction, and Application of State Statutory Requirement that Person Convicted of Sexual Offense in Other Jurisdiction Register or Be Classified as Sexual Offender in Forum State. 34 ALR6th 171.

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POINTS OF COUNSEL

Janet E. Sabel, The Legal Aid Society, New York City (Harold V. Ferguson of counsel), for appellant. The Appellate Division erred in affirming appellant’s designation as a level two sex offender because his prior New Jersey lewdness conviction did not constitute a misdemeanor sex crime for Sex Offender Registration Act purposes. (*People v David W.*, 95 NY2d 130; *People v Gillotti*, 23 NY3d 841; *Doe v Pataki*, 3 F Supp 2d 456; *People v Guaman*, 8 AD3d 545; *People v Sincerbeaux*, 27 NY3d 683; *Hecker v State of New York*, 20 NY3d 1087; *People v Be-coats*, 17 NY3d 643; *People v Hawkins*, 11 NY3d 484; *People v Ryan*, 12 NY3d 28; *People v More*, 97 NY2d 209.)

Eric Gonzalez, District Attorney, Brooklyn (Jean M. Joyce, Leonard Joblove and Anthea H. Bruffee of counsel), for respondent. The hearing court properly assessed defendant 30 points for risk factor 9 on the basis of defendant's New Jersey conviction for exposing his penis to a child under the age of 13 for the purpose of arousing or gratifying defendant's sexual desire. (People v Gillotti, 23 NY3d 841; People v Gravino, 14 NY3d 546; People v Alemany, 13 NY3d 424; Doe v Pataki, 120 F3d 1263; People v Kennedy, 7 NY3d 87; People v Barrier, 58 AD3d 1086; Sega v State of New York, 60 NY2d 183; People v Mingo, 12 NY3d 563; People v Nieves, 67 NY2d 125; People v Tabarez, 69 NY2d 663.)

OPINION OF THE COURT

FEINMAN, J.

We are called upon to determine whether defendant Jose Perez was properly assessed 30 points under risk factor 9 of the Sex Offender Registration Act (SORA) risk assessment instrument for his prior New Jersey conviction for lewdness. Drawing from our decision in *Matter of North v Board of Examiners of Sex Offenders of State of N.Y.* (8 NY3d 745 [2007]), we hold that defendant's prior New Jersey conviction is tantamount to endangering the welfare of a child under New York law. Thus, an assessment of 30 points under risk factor 9 was warranted, and defendant's adjudication as a level two sex offender was correct.

I.

"[T]he purpose underlying SORA . . . [is] to protect the public from sex offenders" (*People v Mingo*, 12 NY3d 563, 574 [2009]). To that end, by legislative mandate, the New York Board of Examiners of Sex Offenders has created specific "guidelines and procedures" designed to assess the risk that a sex offender will reoffend and the likely harm that would be inflicted upon the reoffense (Correction Law § 168-1 [5]; *People v Sincerbeaux*, 27 NY3d 683, 691 [2016]; *see generally* Sex Offender Registration Act: Risk Assessment Guidelines and Commentary [2006] [hereinafter Guidelines]). The legislature provided the Board with broad authority to design the Guidelines by basing them, among other things, on "criminal history factors to be considered in determining risk, including . . . the number, date and nature of prior offenses" (Correction Law § 168-1 [5] [b] [iii]).

In advance of a sex offender's release from prison, the Board must complete a risk assessment instrument, assessing points based on the risk factors set forth in the Guidelines, to recommend to the SORA court "one of three statutorily-prescribed levels of notification—levels one, two, and three in ascending order of risk—based on an offender's calculated risk to reoffend" (*People v Francis*, 30 NY3d 737, 743 [2018], citing Correction Law § 168-l [6]). An offender's risk-level designation typically corresponds to the total number of points assigned for the 15 risk factors enumerated in the Guidelines (*see* Guidelines at 3).

The points system was designed to be objective yet "individualized," "eschew[ing] *per se* rules" (*see* Guidelines at 2-3). In keeping with this approach, if "special circumstances" are present, the Board or court may depart from the presumptive risk level corresponding to the offender's total risk assessment points score (*see* Guidelines at 4; *People v Howard*, 27 NY3d 337, 341 [2016], citing *People v Gillotti*, 23 NY3d 841, 861 [2014]; *People v Johnson*, 11 NY3d 416, 421 [2008]). To that end, although the Board must rely on "clear and convincing evidence of the existence of [a] factor" in order to assess points, it need not rely only on "the crime of conviction" that subjects a defendant to registration under SORA, but may derive evidence from, among other things, "the sex offender's admissions; the victim's statements; the evaluative reports of the supervising probation officer, parole officer or corrections counselor; or . . . any other reliable source" (Guidelines at 5; *see also Mingo*, 12 NY3d at 576-577, citing Correction Law § 168-n [3]).¹

Risk factor 9 of the Guidelines, which concerns the "Number and Nature of Prior Crimes," provides that an offender must be assessed 30 points for, as relevant here, "a prior conviction or adjudication for . . . a misdemeanor sex crime, or endangering the welfare of a child, or any adjudication for a sex offense" (Guidelines at 13; *see also* Correction Law § 168-l [5] [b] [iii]). The rationale for assessing points for criminal history is that it bears strongly on offenders' "likelihood of sexual recidivism, particularly when [their] past includes violent crimes or sex of-

1. Similarly, the Board may rely on youthful offender adjudications and juvenile delinquency findings as "reliable indicators of wrongdoing" in connection with assessing "an offender's likelihood of reoffense and danger to public safety," even though they are not technically criminal convictions (*see* Guidelines at 6).

fenses” (see Guidelines at 13).² With respect to endangering the welfare of a child—which is not a registrable sex offense under the Correction Law or one of the “sex offenses” listed under article 130 of the Penal Law—the Board assesses 30 points under risk factor 9 and presumptively treats such a conviction or adjudication “as if it were a sex crime because it generally involves sexual misconduct, especially when it is part of a plea bargained disposition” (see Guidelines at 14; *Sincerbeaux*, 27 NY3d at 689; see also Mem of Div of Probation and Correctional Alternatives, dated July 21, 1995, Bill Jacket, L 1995, ch 192 at 28).³

II.

In 1999, defendant was convicted in New Jersey for lewdness in the fourth degree, a felony offense,⁴ for which he was sentenced to two years’ probation (see NJ Stat Ann § 2C:14-4 [b] [1]).⁵ The conduct underlying defendant’s New Jersey conviction involved him “remov[ing] the towel that he had been wearing” in his home and “exposing himself to the [12-year-old] victim via the adjacent window.” Defendant blew kisses at the victim, who was located in a nearby apartment, and subsequently “exposed himself” two more times to the victim, her brother, and her cousin, also through a window. The record also reflects that defendant “fondl[ed] and strok[ed] his penis

2. Conversely, offenders who “ha[ve] a prior felony conviction or adjudication for a crime other than a Class A felony of Murder, Kidnap[ing], or Arson, a violent felony, or a sex offense” are assigned 15 points under risk factor 9 (Guidelines at 13). Offenders who have “any criminal history other than a felony or sex crime” are assigned 5 points under the same factor (Guidelines at 13).

3. Under New York law, a person commits endangering the welfare of a child, as relevant here, where “[h]e or she knowingly acts in a manner likely to be injurious to the physical, mental or moral welfare of a child less than seventeen years old” (Penal Law § 260.10 [1]).

4. We note that New Jersey does not characterize offenses as “felonies” or “misdemeanors” corresponding to the common-law distinction followed by New York and other states, but deems “indictable” crimes or “[m]isdemeanors . . . punishable by imprisonment for more than a year in state prison” as “sufficiently equatable with common law felony” (*State v Doyle*, 42 NJ 334, 348-349, 200 A2d 606, 613-614 [1964]). Lewdness in the fourth degree is considered an indictable crime in New Jersey, and thus, for purposes of clarity, we refer to it hereinafter as a “felony.”

5. In New Jersey, lewdness offenses are encompassed under a chapter entitled “Sexual Offenses” (see New Jersey Code of Criminal Justice, NJ Stat Ann, tit 2C, subtit 2, part 1, ch 14). However, the provision under which defendant was convicted is not a registrable “sex offense” in New Jersey (see NJ Stat Ann § 2C:7-2 [b] [1]-[3]).

in view of [the victim] to sexually gratify himself.” In 2003, defendant was convicted by guilty plea in Florida of felony lewd or lascivious molestation of a 10-year-old girl and sentenced to nine years’ imprisonment (*see* Fla Stat § 800.04 [5] [a], [b]). Defendant admitted to the conduct underlying both of his New Jersey and Florida convictions.⁶

In November 2010, defendant was released from his Florida incarceration to the custody of New York authorities pursuant to a warrant issued in connection with the prosecution of two mid-1990s drug-related crimes. Defendant was thereafter sentenced in New York to prison. In advance of his conditional release from prison nearly two years later, defendant’s risk level was assessed by the Board because his Florida felony conviction was a registrable sex offense in Florida qualifying him for SORA registration in New York (*see* Correction Law § 168-a [2] [d] [ii]). After producing a case summary and completing a risk assessment instrument, the Board recommended that defendant be classified a level two sex offender based on a total risk assessment score of 85 points, including a 30-point assessment under risk factor 9 for his criminal history involving his prior New Jersey felony conviction for lewdness.⁷

At the SORA court hearing, defendant challenged the assessment of 30 points under risk factor 9, asserting that his New Jersey lewdness conviction was not a registrable offense in New Jersey nor did the comparable offense under New York law—public lewdness (a misdemeanor)—subject defendant to

6. Defendant has also conceded, as relevant here, his New Jersey conviction (*see e.g.* brief for defendant-appellant at 8 [the New Jersey incident “led to a guilty plea to lewdness and a two year probationary sentence in March 1999”], 20 [(A)ppellant’s New Jersey lewdness conviction (*See NJSA § 2C:14-4*) did not constitute a sex offense as defined in the Correction Law or in Article 130 of the Penal Law” (emphasis added)]). In any event, as set forth below, the record adequately demonstrates that defendant was convicted of lewdness in the fourth degree in New Jersey. Consistent with the Guidelines, we stress that our holding should in no way be interpreted to allow for an assessment of 30 points under risk factor 9 based on a defendant’s conduct in the absence of a resultant “conviction” or “adjudication” (*cf.* dissenting op at 104).

7. A level two designation is warranted where the offender’s risk of recidivism is moderate, or the offender’s total risk assessment score is more than 70 but less than 110 points (Correction Law § 168-l [6] [b]). Defendant’s designation was otherwise based upon his sexual contact with the breasts and buttocks of the 10-year-old victim in Florida (risk factor 2, 10 points), the victim’s young age (risk factor 5, 30 points), and defendant’s history of drug and alcohol abuse (risk factor 11, 15 points). However, he was not designated a sexually violent offender, sexual predator, or predicate sex offender.

SORA registration in New York (*see* Penal Law § 245.00 [b] [i]). At the two-part hearing in the SORA court, the People asserted that they were requesting 30 points under risk factor 9 for “a prior conviction for a sexual crime.” The People maintained that defendant’s prior conviction involved, among other things, conduct within the scope of the New York offense of endangering the welfare of a child, which the Guidelines provide must receive an assessment of 30 points under risk factor 9. In doing so, the People relied on the Board’s risk assessment instrument for defendant and case summary prepared in connection therewith, defendant’s NYSID sheet containing his entire criminal record, including his prior New Jersey “conviction for lewdness,” New Jersey investigation and arrest reports for the New Jersey incident leading to defendant’s conviction, including a narrative from an officer who responded to the incident, a certified copy of a transcript of an interview with the 12-year-old victim by a police lieutenant, an arrest warrant for defendant, and defendant’s sex offender details page with the New York Division of Criminal Justice Services, among other things. The People also noted that they had received and were relying upon “the judgment and conviction for [defendant’s New Jersey] offense” from the Lyndhurst Police Department. Defense counsel, in turn, referred to the judgment produced by the People and, at one point, quoted from NJ Statutes Annotated § 2C:14-4 (b) (1), noting “[t]hat document says that [defendant] did expose his intimate parts for purpose of arousing or gratifying the sexual desire of the actor under the circumstances where the actor knew or reasonably expected he was likely to be observed by a child who is less than 13 years of age.”

The SORA court adopted the Board’s recommendation. The court accepted the People’s reasoning that the “conduct underlying [the] conviction . . . was considered sexual in nature” and that “the female complainant was 12 years of age at the time of the incident.” The SORA court deemed “irrelevant” the proposition that defendant’s New Jersey felony conviction would constitute a misdemeanor in New York. The Appellate Division affirmed but, unlike the SORA court, concluded that defendant’s New Jersey conviction of lewdness in the fourth degree was a “misdemeanor sex crime” warranting 30 points under risk factor 9 of the Guidelines (162 AD3d 1083, 1084 [2d Dept 2018]). This Court granted defendant leave to appeal (32 NY3d 1042 [2018]), and we now affirm on different grounds.

III.

The issue here arises from a gap in the Guidelines and the Correction Law, which fail to specifically account for the impact of out-of-state convictions when considering the import of sex offenders' criminal history for purposes of evaluating their risk of reoffense. As relevant to this appeal, we must determine whether it was proper to assess defendant 30 points under risk factor 9 for his out-of-state lewdness conviction as a "prior . . . conviction or adjudication for . . . endangering the welfare of a child" under New York law (Guidelines, risk factor 9 [3]).

Initially, we need not defer to the Board's construction of SORA where, as here, "the question is one of pure statutory reading and analysis, dependent only on accurate apprehension of legislative intent" (*Francis*, 30 NY3d at 746 [internal quotation marks omitted]). "At a SORA hearing, the People must prove the facts to support a SORA risk-level classification by clear and convincing evidence" (*People v Howard*, 27 NY3d 337, 341 [2016], citing Correction Law § 168-n [3]), and "[t]he court is not bound by the Board's recommendations but, rather, must make its own determinations based on the evidence" (*People v Cook*, 29 NY3d 121, 125 [2017]). "Where the hearing court's findings, expressly made under the proper evidentiary standard, are affirmed by the Appellate Division, this Court's review is limited to whether the decisions below are affected by an error of law or are otherwise not supported by the record" (*People v Lashway*, 25 NY3d 478, 483 [2015]).

A.

At the outset, we must resolve whether reliance on the underlying conduct of a prior foreign conviction is appropriate as a matter of law for purposes of assessing points under risk factor 9 when conducting a SORA risk-level determination. Under these circumstances, we hold that it is.

Our analysis of the New Jersey conviction starts with *Matter of North v Board of Examiners of Sex Offenders of State of N.Y.*, wherein we considered whether the defendant was required to register as a sex offender as a result of his federal conviction for possession of child pornography (8 NY3d 745 [2007]). That question turned on the "essential elements" provision in SORA, which defines "sex offense," in relevant part, as "a conviction of . . . an offense in any other jurisdiction which includes all of the essential elements of *any* [registrable sex of-

fense in New York listed in section 168-a (2) of the Correction Law]” (Correction Law § 168-a [2] [d] [i] [emphasis added]). We concluded that, with respect to registrable offenses, the “essential elements” provision “requires registration whenever an individual is convicted of criminal conduct in a foreign jurisdiction that, if committed in New York, would have amounted to a registrable New York offense” (*North*, 8 NY3d at 753).

Specifically, we determined that “the Board [must] compare the elements of the foreign offense with the analogous New York [registrable] offense to identify points of overlap” and “[w]hen the Board finds that the two offenses cover the same conduct, . . . the foreign conviction is the equivalent of the registrable New York offense for SORA purposes” (*id.* at 753). “In circumstances where the offenses overlap but the foreign offense also criminalizes conduct not covered under the New York offense, the Board must review the conduct underlying the foreign conviction to determine if that conduct is, in fact, within the scope of the New York offense” (*id.*).

Hence, we expressly rejected the application of the strict equivalency standard used to determine whether a prior foreign conviction is a predicate conviction for purposes of mandatory enhanced recidivist sentencing pursuant to article 70 of the Penal Law (*see North*, 8 NY3d at 752). The strict equivalency standard permits the examination of only the elements of the crime that are the subject of the foreign conviction to determine whether that conviction corresponds to a New York felony (*see People v Muniz*, 74 NY2d 464, 467-468 [1989]). It does not involve a review of the allegations in the accusatory instrument unless the foreign crime describes several different acts—both misdemeanor and felony—as criminal (*see id.*; *cf. People v Gonzalez*, 61 NY2d 586, 590-591 [1984]). This is because “[a]t bottom, the strict equivalency test protects from the imposition of a predicate felony offender sentence based on the mere *accusations* underlying the foreign conviction—allegations, of course, of which a defendant may not have been convicted” (*People v Helms*, 30 NY3d 259, 263-264 [2017]; *People v Jurgins*, 26 NY3d 607, 613 [2015]). In the SORA registration context, on the other hand, we reasoned that the strict equivalency standard was “not . . . the optimal vehicle to effectuate SORA’s remedial purposes” and it was thus appropriate to utilize a more flexible approach that allowed consideration of the underlying conduct of a foreign conviction in addition to comparing the essential elements of the foreign and New York offenses (*North*, 8 NY3d at 751-752, 753).

[1] The analysis set forth in *North* is equally apt when considering, as here, how to assess points for a prior foreign conviction for purposes of determining the sex offender's risk to the community and concomitant level of notification to which the offender must conform.⁸ Significantly, as we concluded with respect to registrable offenses in *North*, the concerns underlying the application of the strict equivalency test are mitigated in the context of a civil SORA risk-level determination. As we have noted on several occasions, "SORA 'is not a penal statute and the registration requirement is not a criminal sentence. Rather than imposing punishment for a past crime, SORA is a remedial statute intended to prevent future crime'" (*People v Gravino*, 14 NY3d 546, 556 [2010] [emphasis omitted], quoting *North*, 8 NY3d at 752; *People v Windham*, 10 NY3d 801, 802 [2008], citing *Doe v Pataki*, 120 F3d 1263 [2d Cir 1997], *cert denied* 522 US 1122 [1998]). As opposed to the penal purposes of enhanced sentencing, the ultimate and "paramount concern" of the SORA risk-level assessment is "an accurate determination of the risk a sex offender poses to the public" (*Mingo*, 12 NY3d at 574). Thus, SORA's remedial purposes underlie both the initial registration determination and the secondary risk assessment level determination bearing on the frequency of registration and degree of community notification required.

For those reasons, assessing points under risk factor 9 for foreign convictions similarly warrants a less rigid approach to allow for an individualized determination that fully captures the offender's potential risk to the public. Examining, where necessary under the "essential elements" test, the underlying conduct of a foreign conviction to compare it to—for example—the New York offense of endangering the welfare of a child, an offense explicitly contemplated by the Board as germane to an offender's risk of recidivism, effectuates the remedial purposes of SORA and adheres to the plain language of the Correction

8. Indeed, the Appellate Division has seen fit to conduct such an analysis (see e.g. *People v Barrier*, 58 AD3d 1086, 1087 [3d Dept 2009] [comparison of "essential elements" of non-registrable foreign convictions to New York registrable and non-registrable sexual offenses warranted a 30-point assessment under risk factor 9 because "they unquestionably reflect upon defendant's likelihood of reoffense and danger to public safety"], *lv denied* 12 NY3d 707 [2009]; *People v Wroten*, 286 AD2d 189, 192 [4th Dept 2001]; cf. *People v Crews*, 127 AD3d 491 [1st Dept 2015] [in considering whether a foreign conviction warranted a 30-point assessment under risk factor 9, the People could not meet their burden absent evidence of the underlying facts of the crime]).

Law and the Guidelines. Moreover, reliance on evidence of an offender's conduct underlying the foreign judgment of conviction is entirely consistent with the available information on which a SORA court may rely when making a risk-level determination, including "relevant . . . reliable hearsay evidence submitted by either party" such as the Board's case summary, an unsworn victim statement, or the sex offender's admissions (Correction Law § 168-n [3]; *Mingo*, 12 NY3d at 576-577; see also *People v Diaz*, 34 NY3d 1179, 1181 [Feb. 18, 2020]). Accordingly, the Board and courts should apply the *North* "essential elements" test when assessing whether, for SORA purposes, a foreign conviction is comparable to endangering the welfare of a child under New York law.

B.

Next, we must determine whether, applying the *North* "essential elements" test, defendant's New Jersey lewdness conviction is comparable to endangering the welfare of a child in New York, warranting the assessment of 30 points under risk factor 9 of the Guidelines. Because defendant's New Jersey conviction is comparable to the New York offense of endangering the welfare of a child, it was proper to assess defendant 30 points for his prior criminal history (see *Sincerbeaux*, 27 NY3d at 689).⁹

9. Though beside the point, we agree that defendant was never convicted or even charged (so far as the record reflects) with endangering the welfare of a child in New Jersey (see dissenting op at 109, 110). The dissent maintains that a more "straightforward comparison" would be between lewdness statutes (dissenting op at 110); however, the name of an out-of-state conviction is not conclusive of what may constitute an "analogous" offense in New York for purposes of applying *North* (8 NY3d at 753; see also e.g. *People v Kruger*, 88 AD3d 1169, 1171 [3d Dept 2011] [comparing "lewd assault on a male child" in Florida to "sexual abuse in the second degree" in New York]). Under the first step of the *North* analysis, we compare an out-of-state, non-registrable conviction with "any" statutorily-defined registrable sex offense in New York (see Correction Law § 168-a [2] [d] [i]) "to identify points of overlap" (*North*, 8 NY3d at 753) and ultimately determine whether a defendant must register as a sex offender in New York. Similarly, here, we compare an out-of-state, non-registrable conviction with an expressly identified offense that the Board has deemed sufficient to award 30 points under the Guidelines in order to determine the extent of obligations and community notification attendant to defendant's sex offender adjudication in New York. We also note that despite the similarity in names, the relevant New Jersey and New York lewdness statutes are quite different in one important respect. Namely, unlike New Jersey lewdness in the fourth degree (and New York endangering the welfare of a child), the New York public lewdness statute does not require the victim to be a minor (see Penal Law § 245.00 [b] [1]).

A comparison of the elements of defendant's New Jersey conviction and the endangering the welfare of a child offense in New York reflects considerable but not exact overlap. The New Jersey statute under which defendant was convicted criminalizes actors' "expos[ure] [of their] intimate parts for the purpose of arousing or gratifying the[ir] sexual desire . . . under circumstances where [they] kn[ew] or reasonably expect[ed] [they were] likely to be observed by a child who [wa]s less than 13 years of age where the actor [wa]s at least four years older than the child" (NJ Stat Ann § 2C:14-4 [b] [1]). New York's crime of endangering the welfare of a child forbids, as relevant here, a person to "knowingly act[] in a manner likely to be injurious to the physical, mental or moral welfare of a child less than seventeen years old" (Penal Law § 260.10 [1]). "Actual harm to the child need not result for liability under the [endangering the welfare of a child] statute to attach" but rather the defendant must "act in a manner which is likely to result in harm to the child, knowing of the likelihood of such harm coming to the child" (*People v Simmons*, 92 NY2d 829, 830 [1998]).

[2] Comparing the statutes, the New Jersey statute's victim age threshold is narrower than that in the New York statute and is thus inclusive of the New York age threshold (*see North*, 8 NY3d at 750-751). Though both share a knowledge element, they are to different aspects of the crime. Unlike New Jersey lewdness in the fourth degree (criminalizing defendant's "expos[ure] [of] his intimate parts for the purpose of arousing or gratifying [his] sexual desire" while knowing or reasonably expecting a child would see [NJ Stat Ann § 2C:14-4 (b) (1)]), endangering the welfare of a child under New York law criminalizes conduct "likely to be injurious to the physical, mental or moral welfare of a child"—an element not expressly present in the New Jersey lewdness offense (Penal Law § 260.10 [1]; *see also State v Hackett*, 166 NJ 66, 76, 764 A2d 421, 426 [2001] [commenting that "(i)n the crime of endangering the welfare of children, the potential effect on the victim constitutes an additional factor not required for a lewdness prosecution"]). Because the offenses overlap but the New Jersey offense also criminalizes conduct that may not be covered under the New York offense, we may "review the conduct underlying the foreign conviction to determine if that conduct is, in fact, within

the scope of the New York offense” (*North*, 8 NY3d at 753). Applying that analysis, we conclude that the conduct underlying defendant’s New Jersey conviction was within the scope of the New York offense of endangering the welfare of a child for purposes of assessing 30 points under risk factor 9.

Here, it is undisputed that defendant knowingly exposed himself to the 12-year-old victim and made sexual and offensive gestures toward her and her teenage family members. The record similarly reflects that defendant understood that his actions as directed toward the victim were “likely to be injurious to the physical, mental or moral welfare of a child” (Penal Law § 260.10 [1]; see *Simmons*, 92 NY2d at 830; *Mingo*, 12 NY3d at 574).

New York courts have emphasized the similarities between New York’s lewdness and endangering the welfare of a child offenses and found that conduct akin to defendant’s actions here constituted endangering the welfare of a child. In *People v Edelstein*, for example, the Appellate Division upheld an upward modification of defendant’s SORA risk level based on his conviction for endangering the welfare of a child in satisfaction of that charge and a charge of public lewdness where, like here, the defendant “stood [naked] in his doorway masturbating in full view of and while looking directly at a 10-year-old girl” (155 AD3d 1592, 1592-1593 [4th Dept 2017]). Similarly, in *People v Morey*, the Appellate Division upheld a conviction for endangering the welfare of a child where the defendant masturbated in front of a six-year-old child (224 AD2d 730, 732 [3d Dept 1996]; see also *People v Kolupa*, 59 AD3d 1134, 1135 [4th Dept 2009] [the exposure of one’s genitals to a seven-year-old child is enough to constitute endangering the welfare of a child in New York], *affd on other grounds* 13 NY3d 786 [2009]).¹⁰

Insofar as the conduct underlying defendant’s New Jersey conviction was within the scope of endangering the welfare of a child under New York law, the courts below did not err in assessing defendant 30 points under risk factor 9 when determin-

10. Notably, in *State v Hackett*, the Supreme Court of New Jersey also equated conduct underlying New Jersey’s lewdness and endangering the welfare of a child offenses, noting that “the nudity of the defendant” is the “common denominator that is an element of both offenses” (166 NJ at 76, 764 A2d at 426).

ing defendant's presumptive risk level.¹¹ Accordingly, the order of the Appellate Division should be affirmed, without costs.

FAHEY, J. (concurring). I agree with the result reached by the Court, and I vote to affirm, but I cannot join the majority opinion. As the dissent explains, the People disavowed and therefore did not preserve the argument that defendant's criminal conviction in New Jersey was tantamount to endangering the welfare of a child. Accordingly, the Court of Appeals has no power to review the issue (*see generally Hecker v State of New York*, 20 NY3d 1087, 1087 [2013]).

Rather, the question before the Court is whether the New Jersey conviction amounted to a conviction of "a misdemeanor sex crime," within the meaning of risk factor 9 in the Sex Offender Registration Act (SORA) Guidelines (*see Sex Offender Registration Act: Risk Assessment Guidelines and Commentary*, risk factor 9 [3] [2006]). In my view, this question was adequately preserved. Since the second SORA hearing, the parties have not disputed that defendant has a New Jersey conviction of lewdness in the fourth degree (NJ Stat Ann § 2C:14-4 [b] [1]). At that hearing, the parties discussed whether the New Jersey crime is equivalent to the New York misdemeanor of public lewdness (*see Penal Law § 245.00*). Although the People could have stated their position more clearly, the People conveyed that the conduct by defendant underlying his New Jersey conviction showed that he committed a crime equivalent to public lewdness or a similar sexual misdemeanor in New York. For his part, defendant maintained that a conviction under Penal Law § 245.00 would not amount to "a misdemeanor sex crime."

I would apply a *North*-type analysis, such as the majority proposes (*see majority op at 92-95*, citing *Matter of North v Board of Examiners of Sex Offenders of State of N.Y.*, 8 NY3d 745 [2007]), to decide whether defendant's New Jersey conviction is equivalent to a New York misdemeanor that is sexual in nature. Review of the underlying conduct would be necessary if the elements of the foreign crime of conviction and the purported corresponding New York crime overlap but the

11. We do not opine, however, on whether the same analysis would be proper in connection with any of the categories of convictions or adjudications subject to a 30-point assessment under risk factor 9 other than endangering the welfare of a child. Moreover, our analysis is limited to consideration of a prior foreign conviction when conducting a risk-level assessment for purposes of SORA.

foreign offense criminalizes conduct not covered under the New York offense. Here, any conduct proscribed by the New Jersey lewdness statute would also be criminalized by the New York public lewdness statute (*compare* NJ Stat Ann § 2C:14-4 [b] [1], *with* Penal Law § 245.00 [b] [i]).

I would adopt the Appellate Division’s analysis and conclusion that defendant’s “New Jersey conviction constituted ‘a misdemeanor sex crime’ under New York law for the purposes of risk factor [9]” (*People v Perez*, 162 AD3d 1083, 1084 [2d Dept 2018]). The fact that public lewdness is not itself a registrable sex offense under Correction Law § 168-a (2) is not dispositive of whether it is a “sex crime” under risk factor 9 (*see People v Izzo*, 26 NY3d 999, 1002 [2015]; *People v Barrier*, 58 AD3d 1086, 1087 [3d Dept 2009]; *accord In re Registrant J.M.*, 167 NJ 490, 507, 772 A2d 349, 359 [2001]). Nor is it significant that Penal Law § 245.00 is codified in a part of the Penal Law other than article 130 (“Sex Offenses”). Notably, the Commentary on the SORA Guidelines itself gives “public lewdness” as an example of a “sex crime” (*see Sex Offender Registration Act: Risk Assessment Guidelines and Commentary* at 2 n 2).

For these reasons, I would hold that there is record support for the lower courts’ conclusion that the People proved by clear and convincing evidence that defendant’s New Jersey conviction was equivalent to a New York misdemeanor sex crime for the purposes of calculating risk factor 9.

WILSON, J. (dissenting). If hard cases make bad law, botched cases make even worse law. Had the People, in the Sex Offender Registration Act (SORA) risk-level determination for Mr. Perez, either relied on the New Jersey conviction instead of adamantly insisting they were not, or sought in the alternative an upward departure, this case would have been resolved simply in a way fully consistent with the Sex Offender Registration Act: Risk Assessment Guidelines and Commentary (2006) (Guidelines). Instead, this case comes to us in a tortured form not likely to repeat itself. In resolving it, the majority conflates the criteria for determining who must register as a sex offender (a legislative determination) with the risk of further offense by a sex offender (a psychological determination). En route, the majority abandons (temporarily, one assumes) our preservation doctrine, deciding this case on a ground not merely ignored—but expressly repudiated—by the People below. The irony is that neither of those maneuvers would have been necessary to adjudicate Mr. Perez a level two

sex offender had the People relied on the New Jersey statute (instead of Mr. Perez's conduct), or sought an upward departure, which is customarily sought in circumstances such as these.

I.

Briefly, federal legislation enacted in 1994 compelled states to adopt laws identifying sex offenders, requiring their registration, and assigning risk levels to them (42 USC § 14071, as added by Pub L 103-322, tit XVII, § 170101, 108 US Stat 2038 [the Jacob Wetterling Crimes Against Children and Sexually Violent Offender Registration Act]). New York enacted SORA in 1995 to comply with the federal mandate (Correction Law § 168 *et seq.*). By statute, New York has identified the offenses in our Penal Law that are "registerable" offenses; that is, if convicted of an enumerated crime, a person is deemed a "sex offender" and will appear on New York's sex offender registry (Correction Law § 168-a [2]). The statutory determination as to which crimes are registerable is largely driven by federal requirements from the federal Jacob Wetterling Act.

The New York registry, in turn, differentiates among sex offenders based on an assessment of risk. Offenders are classified as either level one (low risk), level two (moderate risk), or level three (high risk) (Correction Law § 168-l [6] [a]-[c]). SORA also created the New York Board of Examiners of Sex Offenders, composed of "experts in the field of the behavior and treatment of sex offenders," who were charged with "develop[ing] guidelines and procedures to assess the risk of a repeat offense by such sex offender and the threat posed to the public safety" (Correction Law § 168-l [1], [5]). The Board developed guidelines and procedures to aid in the risk assessment of offenders, commonly referred to as the Guidelines, based on "criteria that find support in the academic literature and are commonly used by sex offender experts" (Guidelines at 23). The Board attempted to "make [the Guidelines] as objective as possible . . . [because] unnecessary complexity would frustrate uniform results" (*id.*). The Board also "test[ed] the guidelines against a large sample of cases to insure that accurate results were produced" and "invited a panel of experts to review them and propose improvements" before the final Guidelines were issued (*id.*). The registration requirement (what crimes are sex offenses) and the risk level (what factors affect the risk of future offense) are not congruent in purpose, source or effect. The for-

mer is based on a legislative judgment about what offenses are sex offenses; the latter based on expert evaluation of the factors that affect the future likelihood of re-offense.

II.

Jose Perez was arrested for selling crack to an undercover officer in New York City in 1996. He skipped town while his case was pending. In 1998, he was arrested in New Jersey for exposing himself, through a window, to a neighboring 12-year-old girl. The People contend he was convicted of lewdness and sentenced to two years' probation. Though lewdness is an "indictable crime" in New Jersey, it is not a registerable offense there. Thus, as of 1998, Mr. Perez was not deemed a sex offender, and was not required to appear in any sex offender registry. In 2002, he entered the home of an acquaintance in Florida, asked the 10-year-old resident for a glass of water, and then molested her. He was sentenced to nine years in prison, served seven, and was then released to the custody of New York, where he belatedly served his sentence for the original drug offense. Upon his release in 2012, Mr. Perez was deported.

Mr. Perez's Florida conviction rendered him a sex offender, which required him to appear on New York's sex offender registry with an appropriate risk-level designation. As the majority notes, the Board recommended a level two designation, based on a risk assessment score of 85 points, 30 of which came from a determination that his New Jersey conviction warranted those points under risk factor 9 of the Guidelines. Before the SORA court, Mr. Perez contended that he should be awarded only five points under risk factor 9, not 30.

One should not take the description of Mr. Perez's SORA proceeding as a "two-part" hearing to mean it was thorough, careful or complete (majority op at 91). The first part consisted of a total of 14 pages of transcript, three of which were opening and closing pleasantries. In the remaining 11 pages, the People first explained that the Florida conviction was the offense that required Mr. Perez's registration. Then, horribly mistaken, the People contended that the assessment of 30 points under risk factor 9 derived from Mr. Perez's previous conviction "in New Jersey of a charge of lewdness, lewd and lascivious conduct . . . on a ten-year-old child." Understandably confused because the Florida crime, not the New Jersey crime, involved a 10 year old, defense counsel asked the People whether they were "requesting 30 points based on a misdemeanor sex crime." The

People responded that they were not; instead, they were relying on a “prior sexual offense,” as the New Jersey crime was “actually” a felony. The People were, again, incorrect: the defense counsel informed the court that the crime in New Jersey was not for lewd and lascivious conduct but rather lewdness, a distinct crime, that is “not a sex crime in New York.” Again, the People, reading from a police report, claimed that Mr. Perez’s New Jersey offense was for lewd and lascivious conduct against a 10 year old. Defense counsel pointed out that the report from which the People and court were reading to establish the facts of the New Jersey crime bore the heading, “Lake Worth [Florida] Police Department.” At that point, the People admitted that they “stand corrected,” and informed the court that they did not have “information at this time on the underlying facts of the lewdness felony conviction in the State of New Jersey.”

Faced with the People’s complete retraction of every fact allegedly warranting the imposition of 30 points under risk factor 9, the court offered an adjournment, which the People accepted to “get information about the underlying facts” and “produce additional documentation” as to the New Jersey crime. Before adjourning, defense counsel confirmed that the New Jersey conviction was “not [for] endangering the welfare of a minor,” despite the People’s contrary suggestions. The People replied that they would “completely retract those statements until the People have information about the underlying New Jersey offense.” So much for part one of the two-part hearing.

The second part of the SORA hearing consists of a whopping eight pages of transcript, two of which are taken up by the court’s oral ruling. In the remaining six pages, the People returned with New Jersey case documents regarding Mr. Perez’s arrest, but not his indictment or conviction.¹ That omission reflects a deliberate choice by the People to disclaim reli-

1. The documents the People chose to include in the record before the SORA court are muddled. Mr. Perez’s SORA case summary explains only that, with respect to Mr. Perez’s New Jersey criminal record, “the offender is noted as having a prior March 1999 sex offense conviction related to a charge of ‘Lewdness’ . . . for which he was sentenced to 2 years probation.” However, lewdness is not a sex offense in New Jersey (*see* NJ Stat Ann §§ 2C:14-11, 2C:7-2), undermining the accuracy of the case summary. We cannot verify the reliability of the rest of that statement because the papers submitted to the SORA court contain only arrest paperwork originating in December 1998 but no evidence of a conviction. Moreover, the same errors acknowledged and

(n. cont’d)

ance on the New Jersey statute and rely, instead, on Mr. Perez's conduct. The People specifically relied on the narrative continuation report, containing the victim's statements regarding Mr. Perez's conduct. According to the People, that document supplied "clear and convincing evidence that the New Jersey act involved a 12-year-old child and sexual *conduct* by the defendant" (emphasis added). The People reaffirmed that they were "relying *not* on the [New Jersey lewdness] statute itself *nor* on the fact that while the New Jersey statute was a felony, there is a misdemeanor in the State of New York" (emphasis added). Instead, the People were "relying on the *conduct* of the defendant underlying the conviction and that it involved sexual conduct toward a 12-year-old child" (emphasis added). Defense counsel argued in response that Mr. Perez "was not convicted of sexual conduct"; although "[h]e might have been charged with that," there was no record of his conviction of that. "The only document turned over . . . indicate[d] [Mr. Perez] committed a sexual assault, [and] that [wa]s clearly not the case." From the papers, it did not look like "he was ever charged with sexual assault." Before the conclusion of the case, the People "[a]gain" confirmed they were "not relying on the conviction" but on the conduct. The court ultimately declined to depart from the Board's recommendation and adjudicated Mr. Perez a level two offender. Understandably, given the People's decision to eschew reliance on any New Jersey statute, there is no document in the record showing the New Jersey crime of which Mr. Perez was convicted. The SORA court's decision does not identify the New Jersey criminal statute under which Mr. Perez was convicted.

III.

Risk factor 9, "Number and Nature of Prior Crimes," allows for three possible point adjudications: 30 points if the offender has prior criminal history that includes a "conviction or adjudication" for a number of crimes including a "misdemeanor sex crime, or endangering the welfare of a child, or any adjudication for a sex offense," 15 points if the "offender has a

retracted by the People in the SORA hearing persist in Mr. Perez's SORA registry page. His registry page indicates that the date of the crime was 1998 (the date of the New Jersey incident), that the victim was 10 (the age of the Florida victim), that the arresting agency was New Jersey State Police (again, the New Jersey incident), that the offense included sexual contact (which applies to the facts of the Florida conviction only), and finally, that the sentence was two years' probation (once more, the New Jersey incident).

prior criminal history that includes a felony conviction or adjudication but not for a violent felony or sex crime,” or five points if the “offender has a prior criminal history but no convictions or adjudications for a sex crime or felony.”² According to the specific guidelines for risk factor 9, an offender’s prior criminal history is significantly related to his likelihood of sexual recidivism, “particularly when his past includes violent crimes or sex offenses” (Guidelines at 13). Risk factor 9 incorporates that research by assessing 30 points only “if [the offender] has a prior conviction or adjudication,” as emphasized by the Guidelines (*id.*), to an enumerated list of crimes. Mr. Perez’s request for an assessment of just five points comports with his counsel’s statement that he was convicted of lewdness, which is not a “sex crime” in New Jersey (or New York for that matter). Assuming, as the majority does, that Mr. Perez was convicted of lewdness under New Jersey Statutes Annotated § 2C:14-4 (b) (1),³ the People expressly disavowed any reliance on the statute of conviction, rendering the majority’s rationale completely unpreserved. The only argument preserved by the People below—that Mr. Perez’s *conduct* warranted the assessment of 30 points—cannot be considered under risk factor 9, which requires a conviction or adjudication. Therefore, the majority’s suggestion that relying on Mr. Perez’s conduct rather than a conviction or adjudication “adheres to the plain language of the Correction Law and the Guidelines” flouts the express language and genesis of the SORA Guidelines (majority op at 94-95), and the order of the Appellate Division should be reversed.

Because risk factor 9 requires a conviction or adjudication, and the People repeatedly argued before the SORA court that they were not relying on a New Jersey conviction, the Guidelines do not permit the assessment of 30 points. In fact, the Guidelines instruct users that risk factor 9 requires a “crime,” which includes only “criminal convictions, youthful offender

2. Mr. Perez contended that his prior New Jersey conviction warranted an award of five points under risk factor 9; the People contended that the Board adequately assessed Mr. Perez 30 points under risk factor 9.

3. Those investigatory documents do not list the New Jersey statute for lewdness and, instead, contain references only to New Jersey Statutes Annotated § 2C:14-2 (b). That crime, at the time of the incident in which Mr. Perez was involved, was called “tender-years-sexual assault” (*see State v Zeidell*, 154 NJ 417, 423-424, 713 A2d 401, 404-405 [1998]). However, the investigatory documents in the record label it “lewdness,” evincing clear confusion.

adjudications and juvenile delinquency findings” (Guidelines at 6). Those are the only three determinations that are considered by the Board to be “reliable indicators of wrongdoing” (*id.*). The Guidelines do not permit replacement of “crime” with “conduct.” According to the Guidelines, that would be true even if Mr. Perez had admitted to such conduct: “Where an offender has admitted committing an act of sexual misconduct for which there has been no such judicial determination, *it should not be used in scoring his criminal history*” (*id.* at 7 [emphasis added]). By allowing the use of conduct when the People have expressly disclaimed reliance on any particular conviction or adjudication to justify points under risk factor 9, the majority is casting aside the expert foundation on which that risk factor and corresponding instructions are based and replacing it with a purely policy-oriented judgment of its own making. Doing so undermines the very legitimacy of the Guidelines.

IV.

How should a SORA court determine whether an out-of-state conviction is a “misdemeanor sex crime” or a “sex offense” warranting 30 points under risk factor 9? The appropriate analytical method is straightforward. Rather than insisting that they were not relying on Mr. Perez’s conviction in New Jersey, had the People instead relied on Mr. Perez’s lewdness conviction, a crime that includes a sexual component, an award of 30 points would be appropriate. If Mr. Perez’s crime had no sexual component in its definition, 30 points could not be awarded. Even so, if the underlying circumstances showed sexual conduct as part of the crime, the Guidelines address that circumstance by providing for an upward departure based on the conduct. Under that method, no comparison to the New York penal code is necessary: whether a New York statute contains a particular element has no bearing on the expert analyses on which the Board’s risk assessments are based.

Requests in the alternative for an upward departure are often made. Here, even having erroneously chosen to disregard the New Jersey conviction and rely instead on Mr. Perez’s conduct, the People could have contended that his conduct was an aggravating circumstance not adequately taken into account by the Guidelines, warranting an upward departure (*see People v Gillotti*, 23 NY3d 841, 861 [2014]). The majority appears to recognize that an upward departure would have been the preferable outcome here where the issue arises “from a gap

. . . which fail[s] to specifically account” for evidence that should be considered for the purposes of evaluating an offender’s risk of re-offense (majority op at 92). As clear as the Guidelines are that risk factor 9 requires a conviction or adjudication, they are equally clear that where there is evidence of conduct but no evidence of a conviction or adjudication, a request for an upward departure is the means by which conduct may be taken into account. For example, where an offender has confessed to a crime but there had been no judicial determination, the Guidelines note that such an admission “may . . . form the basis for an upward departure if there is clear and convincing evidence that the conduct occurred” (Guidelines at 7). The Guidelines’ “flexible approach that allow[s] the consideration of underlying conduct” (majority op at 93) appears in the allowance for departures; the risk factors are meant to be calculated as per the instructions accompanying them. Here, the People inexplicably did not seek an upward departure. Instead of addressing that lapse by reformulating risk factor 9 to remove its expert foundation, we should avoid that Guidelines carnage and reverse, with the expectation that the lapse will not be repeated.

V.

Because the People failed to preserve any argument based on Mr. Perez’s lewdness conviction, the majority decides to borrow the inapposite “essential elements” test from *Matter of North v Board of Examiners of Sex Offenders of State of N.Y.* (8 NY3d 745 [2007]). By that means, the majority holds Mr. Perez’s conduct was “tantamount to endangering the welfare of a child under New York law” (majority op at 87). But, *North* is inapplicable here; as the majority acknowledges, *North* applies “with respect to registrable offenses” (majority op at 93). That is, *North* identifies “registerable offenses” based on legislative judgments as to what constitutes a “sex offense”—not expert judgments about what factors affect the likelihood of future offense. *North*’s holding makes its narrow application all the more clear; there, we “conclude[d] that the ‘essential elements’ provision in SORA requires *registration* whenever an individual is convicted of criminal conduct in a foreign jurisdiction that, if committed in New York, would have amounted to a registrable New York offense” (*North*, 8 NY3d at 753 [emphasis added]). The essential elements provision that the *North* Court

purports to interpret is a provision of Correction Law § 168-a (2) (d) (i), which mandates registration in New York if a person is convicted in a foreign jurisdiction of a crime containing “all of the essential elements” of a registrable New York offense (*North*, 8 NY3d at 748-749). The export of the essential elements test to risk factor 9 makes no sense: it is an interpretation of statutory language that, although present in the Correction Law for the purposes of registration, is not present in Correction Law § 168-l, the section of the statute that creates a board of “experts in the field of the behavior and treatment of sex offenders,” charged with “develop[ing] guidelines and procedures to assess the risk of a repeat offense by such sex offender and the threat posed to the public safety” (Correction Law § 168-l [1], [5]).

Although the majority asserts that the “analysis set forth in *North* is equally apt” in this context (majority op at 94), the legislature did not agree. Rather, the legislature opted to create two distinct provisions, one based on policy judgments about what crimes to call “sex offenses,” and the other to create a board of experts to develop psychologically-based risk factors incorporated into an assessment tool (*compare* Correction Law § 168-a [2] [d], *with* Correction Law § 168-l). One simple way to observe the incongruity of equating the registration requirements and risk factors is to note that the legislature determined that murder and arson are not registerable sex offenses, but the Board determined that murderers and arsonists must be awarded 30 points under risk factor 9 because of the relationship of those crimes to the likelihood of sex crime re-offense.

That the essential elements test in the registration context is distinct from the considerations for the purpose of risk assessment is clear even from our analysis in *North*, where we rejected applying a strict equivalency test derived from the criminal enhanced sentencing context to SORA registration because, “[i]n the enhanced sentencing cases, we have not used the phrase ‘essential elements,’ much less characterized the relevant inquiry as an ‘essential elements’ test” (*North*, 8 NY3d at 751). Applying that analysis here would prevent the use of *North*’s essential elements test, where the statute codifying the Guidelines and the Guidelines themselves do not use the phrase “essential elements.”

Even were we to accept the application of the *North* test, it would not provide a basis for affirmance here.⁴ The first step of the *North* test is to compare statutory elements to statutory elements. Here, the People relied solely on Mr. Perez's conduct before the SORA court. The SORA court likewise based its decision on evidence of Mr. Perez's conduct, not New Jersey statutory elements. Thus, we cannot accurately compare the "elements" of that conduct to New York's penal code.

Indeed, putting the preservation problem aside, the majority's attempt to apply *North* on the basis of Mr. Perez's lewdness conviction exposes how inapt that standard is when applied to the risk assessment context. Under section 2C:14-4 (b) (1), a defendant is guilty of lewdness when "[h]e exposes his intimate parts for the purpose of arousing or gratifying [his] sexual desire . . . under circumstances where [he] knows or reasonably expects he is likely to be observed by a child who is less than 13 years of age where [he] is at least four years older than the child."⁵ Endangering the welfare of a child in New York instead requires a defendant to knowingly act in a manner likely to be injurious to the physical, mental, or moral welfare of a child less than 17 years old (Penal Law § 260.10 [1]). *North* instructs courts to "review the conduct underlying the foreign conviction to determine if that conduct is, in fact, within the scope of the New York offense" if the foreign conviction criminalizes conduct not covered by the New York offense (majority op at 93, 96-97, citing *North*, 8 NY3d at 753). That standard does not answer the threshold question: which of the New Jersey statutes do we compare to the New York statute? The next question is similarly basic: to which New York statute must we compare the New Jersey conduct? Only then could we begin a *North* analysis.

4. The majority dismisses the strict equivalency approach as inapposite because the purpose of SORA, an accurate determination of the risk a sex offender poses to the public, is distinct from the penal purposes of enhanced sentencing (majority op at 94). Although I agree with that distinction, we should laud—not deride—the protections the strict equivalency test provides against the imposition of a sentence "based on the mere accusations underlying the foreign conviction—allegations, of course, of which a defendant may not have been convicted" (majority op at 93 [emphasis omitted], citing *People v Helms*, 30 NY3d 259, 263-264 [2017]).

5. Under section 2C:14-2 (b), at the time of Mr. Perez's conduct, a defendant would be guilty of sexual assault if "he commits an act of sexual contact with a victim who is less than 13 years old and [he] is at least four years older than the victim," where sexual contact includes "self-contact" (*Zeidell*, 154 NJ at 431, 713 A2d at 408).

The majority does not satisfactorily explain why we should compare Mr. Perez's lewdness conviction to the New York statute for endangering the welfare of a child. Neither the People nor Mr. Perez has ever contended that his conviction was for "endangering the welfare of a child." The only mention of endangering the welfare of a child came from the People's inaccurate allocution on the first day of the SORA hearing, which was based on counsel's clear mistake in thinking the Florida conviction was the New Jersey conviction. Once defense counsel pointed out that the People had moved an entire Florida city into the Garden State, the People expressly disavowed their reliance on endangering the welfare of a child. Here again, the majority bases its holding on a proposition the People expressly disavowed.

Moreover, a comparison of the elements of the New Jersey lewdness statute to that of the New York endangering the welfare of a child statute does not reflect "considerable . . . overlap" as the majority suggests (majority op at 96), but rather considerable discord, making it an unnatural fit. The New Jersey statute requires (1) exposure of intimate parts (2) for the purpose of arousal or gratification (3) where the defendant knows or expects to be observed (4) by a child under 13 years old and (5) the defendant is at least four years older than the child. The elements of endangering the welfare of a child are not parallel: the defendant must (1) knowingly act in a manner (2) likely to be injurious to the physical, mental or moral welfare of (3) a child less than 17 years old. The only true comparison is the age of the victim, but even there, the New Jersey threshold is lower than New York's. As the majority admits, the knowledge elements pertain to different aspects of the crimes (majority op at 96). Instead, the majority offers only a conclusory statement explaining that *North* allows for a comparison between an out-of-state conviction with "any" registrable New York offense; extrapolating that to the risk assessment context, the majority concludes that we may compare an out-of-state conviction with any offense that will result in an award of 30 points under the Guidelines (majority op at 95 n 9). That circular argument provides no response to the fact that *North* purports to interpret the legislature's intent as to registrability, while the Guidelines are intended solely to relate to the risk of re-offense as determined by experts in the field. Those, as discussed above, are fundamentally different determinations.

Even if one were to accept the majority's framework of comparing New York and New Jersey statutes, and give the People a couple of free passes on preservation, the straightforward comparison would be of the two states' lewdness statutes. The only rationale offered by the majority for abandoning the obvious comparator here, New York Penal Law § 245.00, is that the New York statute does not require that the victim be a minor, unlike the New Jersey lewdness statute and the New York endangering the welfare of a child statute (majority op at 95 n 9). That reasoning does not comport with the intent of the Guidelines, which requires the assessment of points under risk factor 9 for crimes against both victims who are minors and those who are not. In fact, the New York lewdness statute more readily satisfies *North's* guidance as to "analogous" offenses with significantly overlapping elements. As relevant to Mr. Perez, public lewdness under Penal Law § 245.00 consists of the exposure of a person's private or intimate parts in a lewd manner or the commission of any other lewd act, in private premises under circumstances where the exposure may be readily observed by persons outside those premises (Penal Law § 245.00 [b] [1]). But, because the New York statute does not require sexual gratification, as does the New Jersey lewdness statute, under the majority's *North*-based framework, Mr. Perez would receive five points, not 30, under risk factor 9.

Because those elements do not match up, the majority turns back to conduct. The principal problem in comparing Mr. Perez's conduct to the elements of New York's statutes is that Mr. Perez was not tried or convicted in New York. Nothing in the record supports the majority's assertion that New York district attorneys prosecute conduct like Mr. Perez's under both the lewdness and endangering the welfare of a child statutes. Of course, Mr. Perez's conduct occurred in New Jersey, so New York could not have prosecuted him for it, but the majority's hypothetical New York prosecution for both lewdness and endangering the welfare of a child may not have resulted in a conviction for the latter (or for either). In essence, the majority is attempting to use Mr. Perez's unspecified New Jersey conviction via a fictional New York trial to secure a hypothetical conviction of a crime that would have resulted in an award of 30 points under risk factor 9. The Guidelines do not permit that.

The People initially advanced a theory of equivalency between New York's endangering the welfare of a child statute

and New Jersey's lewdness statute, but expressly renounced that theory when they realized they had been reading from the wrong script. The sole issue the People preserved was that risk factor 9 permitted the assessment of 30 points based on Mr. Perez's conduct. The majority's resolution—that Mr. Perez's conviction was comparable under *North*'s essential elements test to a conviction of endangering the welfare of a child—is wholly unpreserved. In any event, it is unsupported by, and indeed in contravention of, the Guidelines and the legislature's mandate that a board of experts determine how to measure the risk of future offense. Because risk factor 9 requires a conviction or adjudication for the award of points, the SORA court improperly assessed Mr. Perez 30 points based on his "conduct." I therefore dissent.

Chief Judge DiFiore and Judges Stein and Garcia concur; Judge Fahey concurs in result in an opinion; Judge Wilson dissents in an opinion in which Judge Rivera concurs.

Order affirmed, without costs.

[149 NE3d 20, 125 NYS3d 327]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JOSE
DELOBE, Appellant.

Argued February 13, 2020; decided March 31, 2020

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered October 18, 2018. The Appellate Division affirmed (1) a judgment of the Supreme Court, New York County (Gregory Carro, J.), as amended, which had convicted defendant, upon his plea of guilty, of attempted burglary in the second degree; and (2) an order of that Supreme Court which had denied defendant's CPL 440.10 motion to vacate the judgment.

People v Delorbe, 165 AD3d 531, affirmed.

HEADNOTES

Crimes — Plea of Guilty — Deportation Consequences — Preservation of Issue for Review

1. The narrow exception to the preservation requirement where a defendant has no practical ability to object to an error in a plea allocution which is clear from the face of the record did not apply to noncitizen defendant's claim that counsel was ineffective for failing to inform him of potential immigration consequences resulting from his burglary conviction. Accordingly, where counsel provided defendant a "Notice of Immigration Consequences" unambiguously informing him of the immigration consequences of his plea deal and defendant did not express concerns to the court during his plea allocution or move to withdraw his guilty plea, his claim was unpreserved as a matter of law. The detailed notice, in English and Spanish—physically handed, as the record made plain, to defendant by counsel in open court months before his plea—gave defendant the opportunity to raise any questions he might have had regarding possible immigration consequences of his conviction. The first sentence of the notice explicitly told defendant that "a plea of guilty to any offense" could "subject[] [him] to a risk that adverse consequences w[ould] be imposed on [him] by the United States immigration authorities, including, but not limited to, removal from the United States." It further noted that a conviction for "burglary . . . or any other theft-related offense . . . for which a sentence of one year or more is imposed" would be deportable.

Crimes — Right to Counsel — Effective Representation — Summary Denial of CPL 440.10 Motion

2. Supreme Court did not abuse its discretion in summarily rejecting defendant's CPL 440.10 motion alleging that his counsel had provided ineffective assistance for failing to inform him of the possible immigration consequences of his guilty plea, where defendant's motion did not "contain sworn allegations" alleging his conviction was obtained due to constitutionally

deficient attorney performance as required by CPL 440.30 (1) (a). The court may deny a CPL 440.10 motion without conducting a hearing if “the moving papers do not contain sworn allegations substantiating or tending to substantiate all the essential facts” (CPL 440.30 [4] [b]). Defendant’s sworn affidavits supporting his motion contained only conclusory allegations, which, even if taken as true, did not include “all the essential facts” required to establish that he was entitled to any relief (CPL 440.30 [4] [b]).

RESEARCH REFERENCES

By the Publisher’s Editorial Staff

AM JUR 2d Criminal Law §§ 599, 659–663, 831, 1111–1116.
 CARMODY-WAIT 2d Pleas and Plea Bargaining § 182:85;
 CARMODY-WAIT 2d Right to Counsel § 184:228;
 CARMODY-WAIT 2d Postjudgment Motions §§ 205:24,
 205:76, 205:78.
 LAFAYE, ET AL., CRIMINAL PROCEDURE (4th ed) §§ 11.10,
 21.3, 21.5.
 MCKINNEY’S, CPL 440.10, 440.30 (1) (a); (4) (b).
 NY JUR 2d Criminal Law: Procedure §§ 906, 1576, 1577,
 3464, 3483, 3530, 3531, 3534.

ANNOTATION REFERENCE

Ineffective assistance of counsel: misrepresentation, or failure to advise, of immigration consequences of guilty plea—state cases. 65 ALR4th 719.

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POINTS OF COUNSEL

Robert S. Dean, Center for Appellate Litigation, New York City (Robin Nichinsky of counsel), for appellant. I. A generic “notice of immigration consequences” form prepared by the prosecutor and handed to the defendant at arraignment months before Jose Delorbe’s actual guilty plea cannot substitute for the trial court’s due process obligation to ensure a knowing, intelligent and voluntary plea, or be used to effectively overrule the Court of Appeals’ decision in *People v Peque* (22 NY3d 168 [2013]). (*Boykin v Alabama*, 395 US 238; *People v Harris*, 61 NY2d 9; *North Carolina v Alford*, 400 US 25; *People v Ford*, 86 NY2d 397; *People v Louree*, 8 NY3d 541; *People v Lopez*, 6 NY3d 248; *People v Tyrell*, 22 NY3d 359; *People v Conceicao*, 26 NY3d 375; *People v Catu*, 4 NY3d 242;

People v Suazo, 32 NY3d 491.) II. Jose Delorbe's right to due process and effective assistance of counsel was violated when the trial court erroneously (a) denied his CPL 440.10 motion on prejudice grounds, without a hearing, finding insufficient his sworn allegations that counsel failed to inform him that his plea mandated his deportation, and if he had known that, he would have insisted on another plea or gone to trial; and concluding the fingerprint evidence alone was so "strong" it was "inescapable" Mr. Delorbe would "derive no benefit by going to trial" and would not have done so; and (b) denied the request of Mr. Delorbe, who was detained and acting pro se, for counsel on the CPL 440.10 motion. (*Padilla v Kentucky*, 559 US 356; *People v Caban*, 5 NY3d 143; *People v Mebuin*, 158 AD3d 121; *Hill v Lockhart*, 474 US 52; *People v McDonald*, 1 NY3d 109; *People v Peque*, 22 NY3d 168; *People v Samuels*, 143 AD3d 401; *People v Feliciano*, 17 NY3d 14; *People v Benevento*, 91 NY2d 708; *People v Baldi*, 54 NY2d 137.)

Cyrus R. Vance, Jr., District Attorney, New York City (Alexander Michaels and David P. Stromes of counsel), for respondent. I. Under the Court of Appeals' unambiguous precedent, defendant was required to preserve his *People v Peque* (22 NY3d 168 [2013]) claim because he was informed, before he was sentenced, that his guilty plea could lead to deportation. (*People v Peque*, 22 NY3d 168; *People v Pastor*, 28 NY3d 1089; *People v Udzenski*, 146 AD2d 245; *People v Jackson*, 29 NY3d 18; *People v Gray*, 86 NY2d 10; *People v Williams*, 27 NY3d 212; *People v Lopez*, 71 NY2d 662; *People v Louree*, 8 NY3d 541; *People v Roberts*, 143 AD3d 843; *People v McDonald*, 1 NY3d 109.) II. The motion court properly denied defendant's CPL 440.10 motion without a hearing. (*Strickland v Washington*, 466 US 668; *Padilla v Kentucky*, 559 US 356; *Premo v Moore*, 562 US 115; *People v Turner*, 5 NY3d 476; *People v Caban*, 5 NY3d 143; *People v Parson*, 27 NY3d 1107; *People v Hernandez*, 22 NY3d 972; *People v Wright*, 27 NY3d 516; *People v Zeh*, 22 NY3d 1144; *People v Ozuna*, 7 NY3d 913.)

Immigrant Defense Project, New York City (Ryan Muennich of counsel), for Immigrant Defense Project, amicus curiae. I. Handing out the prosecutor's form does not provide knowledge of immigration consequences sufficient to trigger the preservation requirement. II. As a matter of policy, the prosecutor should not advise noncitizen defendants of possible immigration consequences. (*Maine v Moulton*, 474 US 159; *Padilla v Kentucky*, 559 US 356.) III. The trial court did not engage in

the proper prejudice inquiry, which requires analyzing more than just the possibility of success at trial. (*Hill v Lockhart*, 474 US 52; *Missouri v Frye*, 566 US 134; *United States v Swaby*, 855 F3d 233; *United States v Rodriguez-Vega*, 797 F3d 781; *Kovacs v United States*, 744 F3d 44; *Rodriguez-Penton v United States*, 905 F3d 481; *DeBartolo v United States*, 790 F3d 775; *People v Abdallah*, 153 AD3d 1424; *People v Moore*, 141 AD3d 604.)

OPINION OF THE COURT

GARCIA, J.

“[D]ue process compels a trial court to apprise a defendant that, if the defendant is not an American citizen, he or she may be deported as a consequence of a guilty plea to a felony” (*People v Peque*, 22 NY3d 168, 176 [2013]). However, before we may consider whether a trial court fulfilled that obligation, we must determine whether a defendant preserved the claim as a matter of law for our review or whether an exception to the preservation doctrine applies (*see id.* at 182; *see also* NY Const, art VI, § 3 [a]; CPL 470.05 [2]). Here, service on defendant, in open court and months before the plea proceedings, of a “Notice of Immigration Consequences” form provided him with a reasonable opportunity to object to the plea court’s failure to advise him of the potential deportation consequences of his plea, making the narrow exception to the preservation doctrine unavailable to him (*see Peque*, 22 NY3d at 182-183; *see also People v Williams*, 27 NY3d 212, 214 [2016]). Therefore, because defendant did not preserve the claim he now raises, and because defendant’s other contentions are without merit, we affirm.

I.

In July 2011, the victim in this case arrived home and discovered an intruder. She observed the perpetrator run from her bedroom and leave the apartment. The victim later determined that money was missing from her apartment. Police developed fingerprints from a box in the victim’s bedroom, and a match was made to defendant. He was arrested and charged with burglary in the second degree.

Defendant, who emigrated from the Dominican Republic to the United States at an early age and became a legal permanent resident, was arraigned in Supreme Court on the burglary charge in August 2011. During the proceedings, the People filed a “Notice of Immigration Consequences” (the No-

tice) with the court and provided a copy to defense counsel. After defendant was arraigned, his counsel stated on the record that he was “handing [defendant] the [notice of] immigration consequences [form],” which the court affirmatively acknowledged. That Notice, provided to defendant in three languages (including English and Spanish), stated as follows:

“If you are not a United States citizen, a plea of guilty to any offense, a conviction by trial verdict, or a youthful offender adjudication subjects you to a risk that adverse consequences will be imposed on you by the United States immigration authorities, including, but not limited to, removal from the United States, exclusion from admission to the United States, and/or denial of naturalization. Because the immigration consequences applicable in your particular case may depend on factors such as your current immigration status, your length of residence in the United States, and your previous criminal history, you should consult with your attorney for advice specific to your circumstances.

“The following are designated as deportable offenses . . .

“[A]ny offense designated an ‘aggravated felony’ under 8 U.S.C. § 1101(a)(43), including, but not limited to: . . . burglary, robbery, receipt of stolen property, or any other theft-related offense or crime of violence for which a sentence of one year or more is imposed . . .

“In addition, if the offense constitutes an ‘aggravated felony,’ or if you are not a lawful permanent resident of the United States (or have not been such for at least five years with at least seven years’ continuous residency) and the offense is any deportable offense, there will be additional consequences, including, but not limited to, your ineligibility for discretionary cancellation of removal by the Attorney General” (emphases added).

After eight months and several calendar calls at which the People presented a plea offer to defendant, he appeared with counsel and pleaded guilty to attempted burglary in the second degree. Despite his status as a second violent felony offender upon his second attempted burglary conviction (*see* Penal Law

§§ 70.02 [1] [c]; 70.04 [1] [a]), the People did not seek to adjudicate defendant a predicate violent felon. During the plea colloquy and allocution, which preceded this Court's decision in *Peque*, Supreme Court did not mention immigration consequences that could result from the conviction, nor did defendant ask about potential immigration consequences. The following month, defendant was sentenced to agreed-upon terms of five years of incarceration plus three years of post-release supervision.¹ He did not seek to withdraw his plea and, again, did not inquire about potential immigration consequences.

Four years later, defendant filed a pro se motion pursuant to CPL 440.10 to vacate his conviction. Defendant alleged that his counsel provided ineffective assistance because according to defendant she had neglected to inform him of potential immigration consequences resulting from his plea. Defendant asked Supreme Court to vacate his conviction or, in the alternative, to either require his counsel to submit an affidavit responding to his allegations or to appoint new counsel in the CPL 440.10 proceeding to assist with obtaining such an affidavit. Defendant's motion was supported by two cursory affidavits alleging that his counsel had "fail[ed] to inform [him] that pleading guilty could [affect him] in immigration" and "did not explain anything about [defendant] losing [his] residency."

Supreme Court denied defendant's motion, finding that his unsworn assertion in his supporting papers that, had he been informed of the immigration consequences of his plea, he would have asked his attorney to negotiate a plea with less severe immigration consequences was "conclusory" and "unsupported by any factual allegations regarding the significance that potential deportation holds for him or his incentive to remain in the United States," as required by the Criminal Procedure Law (*see* CPL 440.30 [4] [b]). In addition, the court noted that defense counsel had negotiated a particularly favorable plea deal, and succeeded in avoiding a sentence enhancement for defendant as a second violent felony offender (*see generally* Penal Law § 70.04). As a result, the court denied defendant's motion without a hearing.

1. Defendant was originally offered, and accepted, a sentence of five years of incarceration plus five years of postrelease supervision. The term of post-release supervision was, however, limited by statute to a period of up to three years (*see* Penal Law § 70.45 [2] [e]).

The Appellate Division unanimously affirmed both defendant's conviction on his direct appeal concluding that his *Peque* claim was unpreserved and Supreme Court's summary denial of defendant's CPL 440.10 motion (*see People v Delorbe*, 165 AD3d 531, 531 [1st Dept 2018]). According to the Court, provision of the Notice to defendant meant that his direct appeal did not fit within "the narrow exception to the preservation requirement" set forth in *Peque*, as defendant had been given "the opportunity to raise the issue" of the plea court's failure to inform him that his plea could lead to immigration consequences (*id.*). The Appellate Division also held that Supreme Court providently exercised its discretion in denying the CPL 440.10 motion without a hearing, as defendant had "alleged no facts to support his claim that had he known that his guilty plea could result in his deportation, he would not have pleaded guilty and instead would have proceeded to trial, and his conclusory allegations were insufficient to warrant a hearing" (*id.*).

A Judge of this Court granted defendant leave to appeal (*People v Delorbe*, 32 NY3d 1125 [2018]).

II.

Defendant argues that he was not required to preserve his due process claim that the trial court failed to inform him of potential adverse immigration consequences as a result of his conviction (*see Peque*, 22 NY3d at 176). We disagree.

In *Peque*, based on our "review of the characteristics of modern immigration law and its entanglement with the criminal justice system" (22 NY3d at 175), we held that "deportation is a plea consequence of such tremendous importance, grave impact and frequent occurrence that a defendant is entitled to notice that it may ensue from a plea" (*id.* at 176). We explained that while deportation is technically a collateral consequence of a conviction (*see id.* at 192), it "is an automatic consequence of a guilty plea for most noncitizen defendants; absent some oversight by federal authorities, a defendant duly convicted of almost any felony will inevitably be removed from the United States" (*id.*). A "fundamental injustice" would therefore result "from *completely* barring a noncitizen defendant from challenging his or her guilty plea based on the court's failure to advise the defendant that he or she might be deported as a result of the plea" (*id.* at 196 [emphasis added]).

While emphasizing the importance of the trial court's role in apprising a defendant of potential deportation consequences to

a plea, we made clear that a claim that the court failed to do so generally must be preserved (*id.* at 182; *see Williams*, 27 NY3d at 221 [“So it was that, in (*Peque*), we reiterated the general rule that, even where the defendant challenges a plea on voluntariness and due process grounds, he or she must preserve that challenge via timely objection depending on the circumstances of the case” (citation omitted)]). The preservation rule is grounded in the provision of the New York Constitution restricting this Court’s jurisdiction to “the review of questions of law” (NY Const, art VI, § 3 [a]). In turn, “a question of law arises in a criminal proceeding when ‘a protest thereto was registered, by the party claiming error, at the time of such ruling or instruction or at any subsequent time when the court had an opportunity of effectively changing the same’ ” (*People v Hawkins*, 11 NY3d 484, 491 [2008], quoting CPL 470.05 [2]). This requirement allows the trial court “an opportunity to correct any error in the proceedings below at a time when the issue can be dealt with most effectively” (*People v Lopez*, 71 NY2d 662, 665 [1988]). It also “preserve[s] limited judicial resources and avoid[s] untoward delay in the resolution of criminal proceedings” (*id.*, quoting *People v Michael*, 48 NY2d 1, 6 [1979]). Lastly, it protects “the very real interest of the State in achieving finality in a criminal prosecution” (*Lopez*, 71 NY2d at 665, quoting *Michael*, 48 NY2d at 6).

“Generally, in order to preserve a claim that a guilty plea is invalid, a defendant must move to withdraw the plea on the same grounds subsequently alleged on appeal or else file a motion to vacate the judgment of conviction pursuant to CPL 440.10” (*Peque*, 22 NY3d at 182). While reiterating this rule in *Peque*, we also acknowledged that “where a defendant has no practical ability to object to an error in a plea allocution which is clear from the face of the record, preservation is not required” (*id.*). This exception to the preservation requirement, however, remains narrow (*id.* at 182-183; *see Williams*, 27 NY3d at 214 [(A) narrow exception to the preservation requirement (is available) in rare cases where the defendant lacks a reasonable opportunity to object to a fundamental defect in the plea which is clear on the face of the record])).

In the wake of *Peque*, we have reinforced these carefully circumscribed limits on exceptions to the preservation requirement in the plea context. In *People v Pastor*, we affirmed a defendant’s conviction on the ground that his *Peque* claim was unpreserved (*see* 28 NY3d 1089, 1090 [2016]). In so doing, we

noted that the “[d]efendant . . . was informed before he pleaded guilty of the possibility that he could be deported as a result of his plea, and if he was confused about that issue, he was obligated to move to withdraw his plea on that ground before the sentencing court” (*id.* at 1091). Similarly, in *People v Williams*, we clarified that the preservation requirement is triggered when a defendant has “an opportunity . . . to have discovered the error” he alleges occurred during the plea process (27 NY3d at 223 n 2). We emphasized that this Court has “never held, either in the plea context or elsewhere, that the defendant’s lack of *actual knowledge* that an error has occurred, despite an opportunity to learn of the error, may excuse the defendant from having to preserve his or her claim via objection” (*id.*).

[1] This is not the “rare case[]” where the narrow exception to the preservation rule applies (*id.* at 214; *see also e.g. People v Barry*, 149 AD3d 494, 494 [1st Dept 2017] [provision of the Notice to defendant required defendant to preserve *Peque* claim]; *People v Martinez*, 148 AD3d 422, 423 [1st Dept 2017] [same]; *People v Chelley*, 120 AD3d 987, 988 [4th Dept 2014] [mention of possible deportation in presentence report required defendant to preserve *Peque* claim]; *People v Balbuena*, 123 AD3d 1384, 1385 [3d Dept 2014] [mention of possible deportation in presentence investigation report and written appeal waiver required defendant to preserve *Peque* claim]; *but see People v Mohamed*, 171 AD3d 796, 797 [2d Dept 2019] [holding that references in appeal waiver form and by the court during the plea proceeding to possible “immigration consequences” of conviction did not provide defendant with “practical ability” to object and therefore defendant was not required to preserve his *Peque* claim]). Rather, the detailed Notice, in English and Spanish physically handed, as the record makes plain, to defendant by counsel in open court months before his plea gave defendant the opportunity to raise any questions he might have had regarding possible immigration consequences of his conviction. The very first sentence of the Notice explicitly told defendant that “a plea of guilty to any offense” could “subject[] [him] to a risk that adverse consequences w[ould] be imposed on [him] by the United States immigration authorities, including, but not limited to, removal from the United States” It further noted that, among other things, a conviction for “burglary . . . or any other theft-related offense . . . for which a sentence of one year or more is imposed” would be deportable.

Those unambiguous statements provided defendant with sufficient notice of possible immigration consequences, including deportation, of his conviction, giving him “a reasonable opportunity” to express concerns to the court during either his plea or at sentencing regarding those consequences (*Williams*, 27 NY3d at 214).² Defendant did not do so, nor did he move to withdraw his guilty plea. His *Peque* claim is therefore unpreserved as a matter of law, and “we cannot entertain his newly minted challenge to [his plea’s] validity” (*Peque*, 22 NY3d at 183).

III.

[2] Defendant also argues that Supreme Court abused its discretion in summarily rejecting his CPL 440.10 motion, which alleged that his counsel had provided ineffective assistance for failing to inform him of the possible immigration consequences of his guilty plea (*see Padilla v Kentucky*, 559 US 356 [2010]). Defendant’s argument is without merit. A CPL 440.10 motion asserting an ineffective assistance of counsel claim “must contain sworn allegations [alleging that the conviction was obtained due to deficient attorney performance that violated the State or Federal Constitutions], whether by the defendant or by another person or persons” (CPL 440.30 [1] [a]; *see* 440.10 [1] [h]). The court may deny a CPL 440.10 motion without conducting a hearing if “the moving papers do not contain sworn allegations substantiating or tending to substantiate all the essential facts” (CPL 440.30 [4] [b]). Defendant’s sworn affidavits supporting his CPL 440.10 motion contained only conclusory allegations, which even if taken as true did not include “all the essential facts” required to establish that he was entitled to any relief (CPL 440.30 [4] [b]; *see also People v Zeh*, 22 NY3d 1144, 1146 n [2014]). Supreme Court therefore acted within its discretion in determining on written submissions that the motion could be denied without a hearing (*see People v Satterfield*, 66 NY2d 796, 799 [1985]).

2. “[O]ppportunity . . . to have discovered the error” is the touchstone of a preservation analysis (*Williams*, 27 NY3d at 223 n 2). Because we hold that the Notice provided such an opportunity, we need not consider whether unsworn assertions in a pro se memorandum of law accompanying a CPL 440.10 motion alleging ineffective assistance of counsel, the denial of which is consolidated with a direct appeal, might provide a basis for concluding that a defendant had actual knowledge of possible immigration consequences for preservation purposes (*see concurring op* at 124-125).

Defendant's further contention regarding a constitutional right to counsel to represent him in the CPL 440.10 proceedings is unpreserved for our review.

Accordingly, the order of the Appellate Division should be affirmed.

WILSON, J. (concurring). As the majority acknowledges, the court's failure to advise Mr. Delorbe, before accepting his guilty plea, that the plea might have immigration consequences violated our rule that "trial courts must now make all defendants aware that, if they are not United States citizens, their felony guilty pleas may expose them to deportation" (*People v Peque*, 22 NY3d 168, 197 [2013]). Likewise, we are unanimous that the Notice of Immigration Consequences form, handed to Mr. Delorbe at arraignment, does not satisfy *Peque*'s requirement that the trial court advise him of the potential for deportation arising from his guilty plea. The trial court's responsibility cannot be met by a prosecutor providing a form to the defendant (*see* Advisory Comm on Jud Ethics Op 10-196 [2011]; *People v Roberts*, 143 AD3d 843, 845 [2d Dept 2016]). Thus, there is no question that Mr. Delorbe's plea violated *Peque*.

The issue in this case is purely one of preservation: was Mr. Delorbe required to preserve his *Peque* violation by moving to withdraw his plea? I agree that he was, but this case does not present the stark question of whether the Notice of Immigration Consequences form he received, in the circumstances in which he received it, was sufficient to put him on notice that preservation was required. The record contains far more powerful evidence that Mr. Delorbe was aware his guilty plea had potential immigration consequences—evidence that does not require us to speculate about the effect of the form on his knowledge. Whether the prosecutor's delivery of the form at arraignment conferred sufficient knowledge on Mr. Delorbe to defeat him of the exception to our preservation requirement, either in this case or generally, is not present here.

I.

In *Peque*, we recognized that "deportation is a plea consequence of such tremendous importance, grave impact and frequent occurrence that a defendant is entitled to notice that it may ensue from a plea" (22 NY3d at 176). We recently reemphasized the "utmost severity" of deportation in *People v Suazo* when we extended a trial by jury right to defendants

whose misdemeanor convictions might result in deportation (32 NY3d 491, 499-500 [2018]).

Peque held: “[t]o ensure that a criminal defendant receives due process before pleading guilty and surrendering his or her most fundamental liberties to the State, a trial court bears the responsibility to confirm that the defendant’s plea is knowing, intelligent and voluntary” (22 NY3d at 184). Although “a trial court need not engage in any particular litany when apprising a defendant pleading guilty of the individual rights abandoned, it must make certain that a defendant’s understanding of the terms and conditions of a plea agreement is evident on the face of the record” (*People v Lopez*, 6 NY3d 248, 256 [2006]). If the record does not “affirmatively demonstrate defendant’s understanding or waiver of his constitutional rights,” then the plea at issue must be vacated (*People v Tyrell*, 22 NY3d 359, 366 [2013]; see *People v Conceicao*, 26 NY3d 375, 384 [2015]).

The touchstone for whether a defendant is required to preserve a *Peque* challenge to a plea agreement is the defendant’s knowledge at the time of the plea.¹ *Peque* involved three unrelated appeals: *Peque*, *Diaz* and *Thomas*. We held that because Mr. *Peque* actually knew “of his potential deportation, and thus had the ability to tell the court, if he chose, that he would not have pleaded guilty if he had known about deportation, he was required to preserve his claim regarding the involuntariness of his plea” (*Peque*, 22 NY3d at 183). We expressly contrasted that to Mr. *Diaz*’s situation, holding that because Mr. *Diaz* “did not know about the possibility of deportation during the plea and sentencing proceedings, he had no opportunity to withdraw his plea based on the court’s failure to apprise him of potential deportation. Thus, [Mr. *Diaz*’s] claim falls within . . . [the] narrow exception to the preservation doctrine” (*id.*; see also *People v Williams*, 27 NY3d 212, 234

1. *Peque*’s rule “is grounded in the right to due process of law” (22 NY3d at 175). As with others waivers of constitutional rights which require knowledge of the right for a valid waiver (see *Boykin v Alabama*, 395 US 238, 243 [1969] [regarding the right to trial by a jury, the right to confront one’s accusers, and the privilege against self-incrimination]; *People v Harris*, 61 NY2d 9, 17 [1983] [same]; *Johnson v Zerbst*, 304 US 458, 464 [1938] [regarding the right to assistance of counsel]; *Carnley v Cochran*, 369 US 506, 516 [1962] [same]; *Miranda v Arizona*, 384 US 436, 475-476 [1966] [regarding the right to remain silent]), the knowing relinquishment of a defendant’s due process right is the sine qua non for a preservation requirement to attach (see *People v Louree*, 8 NY3d 541, 546 [2007] [a defendant can challenge the validity of a plea agreement if the defendant did not have knowledge of the plea’s consequences, even if the defendant failed to preserve the challenge]).

[2016] [“we (applied) an exception to the preservation rule because we could not ‘shut our eyes to the actual or practical unavailability of either a motion to withdraw the plea’ or a CPL 440.10 motion, noting that ‘*a defendant can hardly be expected to move to withdraw his plea on a ground of which he has no knowledge*’” (emphasis added)], describing and quoting *People v Louree*, 8 NY3d 541, 545-546 [2007]). Obviously, defendants who have no idea that a guilty plea carries with it the “potential” or “possibility” of deportation cannot be required to preserve an objection to the trial court’s failure to advise them that the plea may subject them to deportation, because the constitutional violation is the failure to put them on notice of that very same potential consequence.

II.

Here, even leaving aside the Notice of Immigration Consequences form, the record of Mr. Delorbe’s consolidated direct appeal and CPL 440.10 motion conclusively demonstrates that Mr. Delorbe knew his plea carried with it the possibility of deportation.² He did not meet his burden to demonstrate that he had no knowledge of the potential for deportation; instead, in his CPL 440.10 motion papers, Mr. Delorbe made clear that, at the time he entered his plea, he knew his plea would render him potentially deportable, bringing him in line with our treatment of Mr. Peque, not of Mr. Diaz.

Mr. Delorbe’s CPL 440.10 submission, which he prepared himself, shows that he understood his plea carried the possibility of adverse immigration-related consequences, including eligibility for deportation, but that he mistakenly believed he would be a candidate for *discretionary* relief. Throughout his papers, Mr. Delorbe explained that he “did not receive a warning that his guilty plea would *defin[i]tely result in his deportation*”; that “there is no proof that plea counsel informed him that his plea of guilty *would result* in his deportation”; and about his lawyer’s failure “to inform him that a plea to Attempted Burglary in the Second Degree would *subject him to automatic deportation* without the possibility of discretionary

2. Because the direct appeal and the CPL 440.10 motion were consolidated, both records are likewise consolidated and available in determining all issues on appeal (see e.g. *People v Evans*, 16 NY3d 571, 574-575 [2011] [advising appellate courts to consolidate a direct appeal with a CPL 440.10 motion when the record of the 440.10 would be “relevant” to the direct appeal]).

relief from removal” (440.10 mem of law, appendix at A48, A54 [emphasis added]). Mr. Delorbe thus protests that he was not aware that “discretionary relief from deportation was unavailable for a person convicted of Attempted Burglary in the Second Degree” (*id.* at A54), but the knowledge required by *Peque* is not knowledge of the specific adverse consequence that will definitely—or even likely—result from the plea. *Peque* makes clear that a defendant who knows of the “potential” or “possibility” of deportation must preserve a *Peque* claim by moving to withdraw the plea or taking some other step to object to it before a sentence is imposed.

The majority’s rationale is based on a tenuous and unnecessary inference that Mr. Delorbe knew of the potential immigration consequences of his plea solely from the provision of the form to Mr. Delorbe at arraignment. Without knowing whether he read the form, whether he was able to take it with him when he returned to pretrial detention shortly after receiving the form, or whether he had any recollection many months later, when allocuting to the burglary charge, that the form listed burglary as an offense with potential deportation consequences, it is difficult to make any firm assessment as to Mr. Delorbe’s knowledge at the time of his plea based solely on the Notice of Immigration Consequences.

However, this case does not require us to make any such inference. Mr. Delorbe, in his CPL 440.10 motion papers, has very clearly and repeatedly stated that he actually knew, at the relevant time, that his plea presented a risk of deportation. Although he asserts he mistakenly believed that he would be eligible to apply thereafter for discretionary relief, not knowing that his deportation would be “automatic,” he had enough knowledge to remove him from the exception to the preservation requirement. Our preservation rule, set out in *Peque*, turns on the knowledge of the “possibility” of or “potential” for deportation, not knowledge of the legal avenues by which deportation might be avoided. Indeed, even the constitutionally required statement the court failed to give here is just a “short, straightforward statement on the record notifying the defendant that, in sum and substance, if the defendant is not a United States citizen, he or she *may be* deported upon a guilty plea” (*Peque*, 22 NY3d at 197 [emphasis added]). It would be anomalous to hold that because Mr. Delorbe did not know the eligibility requirements for discretionary relief from deportation, he is exempted from having to preserve a claim that would have

entitled him merely to what he already knew: that his plea might come with some unspecified risk of deportation. Like Mr. Peque, and unlike Mr. Diaz, Mr. Delorbe admittedly understood that his plea came with a risk of deportation. Because Mr. Delorbe, like Mr. Peque, “could have preserved, and failed to preserve, his contention that the trial court’s failure to apprise him that deportation was a potential consequence of his plea rendered the plea involuntary” (*Williams*, 27 NY3d at 221), we cannot consider his *Peque* claim.

Although Mr. Delorbe was sentenced before we decided *Peque*, CPL 220.50 (7) required the court to inform him of the possibility of “deportation, exclusion from admission to the United States or denial of naturalization pursuant to the laws of the United States.” The court’s failure to do so violated the statute. The preservation question raised here should never arise again, because *Peque* made clear the constitutional nature of the consequence of a failure to apprise a noncitizen defendant of the possibility of deportation, the severity of which we have again reaffirmed in *Suazo*. Courts, prosecutors and defense attorneys should now be fully aware of both the need to inform defendants of the potential for adverse immigration consequences and the remedy available to defendants who are unaware of the possibility of deportation when entering a plea. Moreover, both prosecutors and defense counsel should understand that, if the defendant is not a United States citizen and the court somehow omits mention at allocution or sentencing of the possibility of deportation consequences, it would behoove all parties to remind the court of *Peque* to ensure the validity of the plea.

Chief Judge DiFiore and Judges Stein and Feinman concur; Judge Wilson concurs in result in an opinion in which Judges Rivera and Fahey concur.

Order affirmed.

[149 NE3d 47, 125 NYS3d 354]

In the Matter of RAMONA FERREYRA et al., Appellants, v CARMEN E. ARROYO et al., Respondents.

Submitted May 20, 2020; decided May 21, 2020

SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered May 14, 2020. The Appellate Division affirmed an order of the Supreme Court, Bronx County (John W. Carter, J.; op 2020 NY Slip Op 31542[U] [2020]), entered in a proceeding pursuant to Election Law article 16, which had (1) confirmed a referee's report recommending the denial of petitioners' request for an order declaring invalid the candidacy of respondent Carmen E. Arroyo for election to the State Assembly from the 84th Assembly District in the Bronx, and (2) denied the petition to invalidate.

Matter of Ferreyra v Arroyo, 183 AD3d 473, reversed.

HEADNOTE

Elections — Designating Petitions — Fraud — Backdated Signatures

The lower courts should have declared invalid the designating petition submitted by respondent State Assembly candidate as it was permeated by fraud as a matter of law. While the bar for establishing fraud is high, a court may conclude that, because of its magnitude, fraud and irregularity established by clear and convincing evidence so permeated the designating petition as a whole as to call for its invalidation. Such was the case here, where it was undisputed that 512 out of 944 signatures in the designating petition were backdated to dates preceding respondent's receipt of the blank petition pages, and that 14 of the 28 subscribing witnesses swore that those signatures were placed on the designating petition before the blank petition pages were obtained from the printer.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d Elections §§ 216, 239, 241, 244.

CARMODY-WAIT 2d Proceedings Under Election Laws
§§ 137:51, 137:52, 137:59, 137:64, 137:65.

NY JUR 2d Elections §§ 284, 288, 312.

ANNOTATION REFERENCE

See ALR Index under Elections and Voting.

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POINTS OF COUNSEL

Lichten & Bright, PC, New York City (*Daniel R. Bright* of counsel), for appellants. Respondent’s designating petition in connection with the June 23, 2020 primary election was permeated with intentional fraud and irregularities and should have been invalidated. (*Matter of Proskin v May*, 40 NY2d 829; *Matter of Aronson v Power*, 22 NY2d 759; *Matter of Mattice v Hammond*, 131 AD3d 790; *Matter of Bloom v Power*, 21 Misc 2d 885, 9 AD2d 626, 6 NY2d 1001.)

Stanley K. Schlein, Bronx, and *Edmond J. Pryor*, Bronx, for Carmen Arroyo, respondent. The Court of Appeals lacks jurisdiction to review the factual determinations of the special referee. (*Stanley v National Union Bank*, 115 NY 122; *Syracuse Chilled Plow Co. v Wing*, 85 NY 421; *Matter of Proskin v May*, 40 NY2d 829; *Matter of Aronson v Power*, 22 NY2d 759; *Matter of Mack v Joyner*, 120 AD3d 415, 23 NY3d 908.)

OPINION OF THE COURT

Per Curiam.

This appeal presents the issue whether the designating petition submitted by respondent Carmen E. Arroyo should be invalidated because it is permeated by fraud as a matter of law. We conclude that in the circumstances of this case the designating petition should be declared invalid.

It is true that the bar for establishing fraud is a high one. “Fraud must be proved by clear and convincing evidence” (*Matter of Robinson v Edwards*, 54 AD3d 682, 683 [2d Dept 2008]; see *Gaidon v Guardian Life Ins. Co. of Am.*, 94 NY2d 330, 349-350 [1999])—a standard that has been defined as proof that “makes it highly probable that the alleged activity actually occurred” (*People v Warrior*, 57 AD3d 1471, 1472 [4th Dept 2008] [internal quotation marks omitted]; see *People v Britton*, 31 NY3d 1019, 1024 [2018]). Nevertheless, where appropriate, a court may also conclude that, “because of its magnitude,” fraud and irregularity established by clear and convincing evidence “so ‘permeated’ the [designating] petition as a whole as to call for its invalidation” (*Matter of Proskin v May*, 40 NY2d 829, 830 [1976]; see *Matter of Aronson v Power*, 22 NY2d 759, 760 [1968]; cf. *Matter of Ferraro v McNab*, 60 NY2d 601, 603 [1983]).

Based on the undisputed facts of this matter, which establish, among other things, that “512 out of 944 signatures submitted in the [designating] petition are backdated to dates preceding the candidate’s receipt of the blank petition pages,” and that “14 of the 28 subscribing witnesses” swore that those signatures were placed on the designating petition before the blank petition pages were obtained from the printer (*Matter of Ferreyra v Arroyo*, 183 AD3d 473, 475-476 [1st Dept, May 14, 2020, Gesmer, J., dissenting]; *cf.* Election Law § 6-134 [3]), the lower courts should have concluded that this is one of those rare instances in which the designating petition is so “permeated” by fraud “as a whole as to call for its invalidation” (*Proskin*, 40 NY2d at 830; *see Aronson*, 22 NY2d at 760).

Accordingly, the Appellate Division order should be reversed, without costs, and the petition to invalidate the designating petition granted.

STEIN, J. (dissenting). The majority applies an amorphous standard to effectively hold that respondent’s designating petition was permeated with fraud as a matter of law. In so holding, the majority disregards our long-settled standard of review and erroneously interjects itself into a factual determination reserved for the courts below. I, therefore, respectfully dissent.

“[T]he question of permeation of fraud and irregularities” is “usually a question of fact” to be resolved by the factfinder (*Matter of Pilat v Sachs*, 42 NY2d 984, 984 [1977]; *see Matter of Rittersporn v Sadowski*, 48 NY2d 618, 619 [1979]). Moreover, where this Court is presented with affirmed findings of fact, our review is limited to whether the record contains support for those findings (*see Matter of Rittersporn*, 48 NY2d at 619; *Matter of Pilat*, 42 NY2d at 984; *compare Matter of Proskin v May*, 40 NY2d 829 [1976]; *Matter of Aronson v Power*, 22 NY2d 759 [1968]).

Here, although the backdated pages “might well have supported an inference . . . that there was a fraudulent intent which infected the petition,” our precedent plainly holds that “[w]hether to draw th[is] inference is . . . a question of fact” (*Matter of McKenna v Ruiz*, 40 NY2d 815, 816 [1976]; *see Matter of Quinones v Bass*, 45 NY2d 811, 813 [1978]). The referee, Supreme Court, and the Appellate Division—entities with fact-finding power that we do not possess—each resolved this question in respondent’s favor and were not persuaded, to a clear and convincing degree, that respondent either participated in

the fraud or that the irregularities rose to a sufficient level to infect the remainder of the designating petition. Inasmuch as the record here is comprised almost entirely of documentary evidence and there was no direct evidence indicating that the defect was the result of fraudulent intent, as opposed to inadvertent human error, a rational factfinder may reasonably decline to draw such an inference. Nor is there any specter of fraud surrounding the more than 240 valid signatures on other pages of the designating petition as it is conceded that those pages did not suffer from a similar irregularity (*compare Matter of Lerner v Power*, 22 NY2d 767, 768 [1968]). In my view, “we cannot hold on this record that [an] inference [of fraud] was compelled as a matter of law” (*Matter of McKenna*, 40 NY2d at 816), and the majority impermissibly usurps the role of the factfinder and exceeds the jurisdiction of this Court to reach the contrary conclusion.

Judges RIVERA, FAHEY, GARCIA and WILSON concur in per curiam opinion; Judge STEIN dissents in an opinion in which Chief Judge DiFIORE and Judge FEINMAN concur.

Order reversed, without costs, and petition to invalidate the designating petition granted.

[149 NE3d 401, 125 NYS3d 640]

In the Matter of LUIS A. VEGA, Respondent. POSTMATES INC.,
Respondent; COMMISSIONER OF LABOR, Appellant.

Argued February 11, 2020; decided March 26, 2020

SUMMARY

APPEAL from an order of the Appellate Division of the Supreme Court in the Third Judicial Department, entered June 21, 2018. The Appellate Division, with two Justices dissenting, (1) reversed a decision as resettled of the Unemployment Insurance Appeal Board which had (a) reversed a decision of an administrative law judge, in combined cases, (i) sustaining Postmates Inc.’s objections to initial determinations of the Department of Labor that claimant was an employee of Postmates Inc. and credited claimant with remuneration from the employer, (ii) ruling that claimant was an independent contractor and not an employee of Postmates Inc.; and (iii) denying claimant benefits; (b) sustained the initial Department of Labor determinations that Postmates Inc. was liable for additional tax contributions based on employee remuneration paid to claimant and any other individuals similarly employed as on demand courier/delivery driver; (c) overruled Postmates Inc.’s objection; (d) deemed claimant an employee of Postmates Inc.; and (e) credited claimant with remuneration; and (2) remitted the matter to the Unemployment Insurance Appeal Board for further proceedings not inconsistent with that Court’s decision.

Matter of Vega (Postmates Inc.—Commissioner of Labor), 162 AD3d 1337, reversed.

HEADNOTE

Unemployment Insurance — Employee or Independent Contractor — Couriers of Pickup and Delivery Service

The Unemployment Insurance Appeal Board’s determination that respondent, a delivery business that used a smartphone application to dispatch couriers to pick up and deliver goods to customers, exercised control over its couriers sufficient to render them employees rather than independent contractors was supported by substantial evidence. Under the Labor Law, “employment” is broadly defined as “any service under any contract of employment for hire, express or implied, written, or oral” (Labor Law § 511 [1] [a]). In determining whether a worker is an employee or an independent contractor, the touchstone of the analysis is whether the employer exercised control over the results produced by the worker or the means used to achieve the results. That the couriers retained some independence to choose their work schedule and delivery route did not mean that they had actual control over their work or the service respondent provided its customers; rather, there

was substantial evidence for the Board's conclusion that respondent dominated the significant aspects of its couriers' work by dictating to which customers they could deliver, where to deliver the requested items, effectively limiting the time frame for delivery and controlling all aspects of pricing and payment. Respondent had complete control over the means by which it obtained customers, how the customer was connected to the delivery person, and whether and how its couriers were compensated. Therefore, there was record support for the Board's conclusion that respondent exercised more than incidental control over its couriers.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d Unemployment Compensation §§ 4, 5, 13, 47, 48, 209, 211.

McKINNEY'S, Labor Law § 511 (1) (a).

NY JUR 2d Unemployment Insurance §§ 6, 36–38, 41.

ANNOTATION REFERENCE

See ALR Index under Labor and Employment; Unemployment Compensation.

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POINTS OF COUNSEL

Letitia James, Attorney General, Albany (Joseph M. Spadola, Barbara Underwood and Andrea Oser of counsel), for appellant. Substantial evidence supports the Unemployment Insurance Board's determination that couriers like Luis Vega were employees of Postmates Inc. (Matter of Charles A. Field Delivery Serv. [Roberts], 66 NY2d 516; Matter of 12 Cornelia St. [Ross], 56 NY2d 895; Matter of Ted Is Back Corp. [Roberts], 64 NY2d 725; Matter of Concourse Ophthalmology Assoc. [Roberts], 60 NY2d 734; Matter of Villa Maria Inst. of Music [Ross], 54 NY2d 691; Matter of Rivera [State Line Delivery Serv.—Roberts], 69 NY2d 679; Matter of Haug v State Univ. of N.Y. at Potsdam, 32 NY3d 1044; Matter of Electrolux Corp., 288 NY 440; Matter of Yoga Vida NYC, Inc. [Commissioner of Labor], 28 NY3d 1013; Matter of Mitchell [Nation Co. Ltd Partners—Commissioner of Labor], 145 AD3d 1404.)

Quinn Emanuel Urquhart & Sullivan, LLP, New York City

(*David M. Cooper* and *Rollo C. Baker* of counsel), for Postmates Inc., respondent. I. The Appellate Division, Third Department, correctly held that there is no substantial evidence to show that Postmates Inc. controls the results or means used by delivery providers. (*Matter of Empire State Towing & Recovery Assn., Inc. [Commissioner of Labor]*, 15 NY3d 433; *Bynog v Cipriani Group*, 1 NY3d 193; *Matter of Bogart [LaValle Transp., Inc.—Commissioner of Labor]*, 140 AD3d 1217; *Scott v Massachusetts Mut. Life Ins. Co.*, 86 NY2d 429; *Ferber v Waco Trucking*, 36 NY2d 693; *Matter of Walsh [TaskRabbit Inc.—Commissioner of Labor]*, 168 AD3d 1323; *Matter of Courto [SCA Enters. Inc.—Commissioner of Labor]*, 159 AD3d 1240; *Matter of TMR Sec. Consultants, Inc. [Commissioner of Labor]*, 145 AD3d 1402; *Matter of Chan [Confero Consulting Assoc., Inc.—Commissioner of Labor]*, 128 AD3d 1124; *Shapiro v Robinson*, 102 AD2d 822.) II. The Unemployment Insurance Board's decision cannot be upheld based on the reasons the Commissioner of Labor provides not mentioned by the Board. (*Matter of Trump-Equitable Fifth Ave. Co. v Gliedman*, 57 NY2d 588; *Matter of Rivera [State Line Delivery Serv.—Roberts]*, 69 NY2d 679; *Matter of Electrolux Corp.*, 288 NY 440; *Matter of Morton*, 284 NY 167; *Matter of Jung Yen Tsai [XYZ Two Way Radio Serv., Inc.—Commissioner of Labor]*, 166 AD3d 1252.) III. In the alternative, the Unemployment Insurance Board's decision should be vacated given the unexplained inconsistency with the decision of the Workers' Compensation Board. (*Matter of Campbell [TDA Indus., Inc.—Commissioner of Labor]*, 143 AD3d 1026; *Matter of Charles A. Field Delivery Serv. [Roberts]*, 66 NY2d 516; *Matter of Simonelli v Adams Bakery Corp.*, 286 AD2d 805.)

Colleran, O'Hara & Mills LLP, Woodbury (*Michael D. Bosso* of counsel), for New York State AFL-CIO, amicus curiae. I. Substantial evidence supports the Unemployment Insurance Board's determination that couriers like Luis Vega were employees of Postmates Inc. (*Scott v Massachusetts Mut. Life Ins. Co.*, 86 NY2d 429; *Matter of Yoga Vida NYC, Inc. [Commissioner of Labor]*, 28 NY3d 1013; *Matter of Ted is Back Corp. [Commr. of Labor]*, 64 NY2d 725.) II. The multifactor common-law test employed by the Unemployment Insurance Board must be allowed to address the changing nature of work. (*Matter of Charles A. Field Delivery Serv. [Roberts]*, 66 NY2d 516; *Matter of 12 Cornelia St. [Ross]*, 56 NY2d 895; *Matter of Concourse Ophthalmology Assoc. [Roberts]*, 60 NY2d 734; *Matter of Wells (Utica Observer-Dispatch & Utica Daily Press—Roberts)*, 87 AD2d 960; *Matter of Bull [Ross]*, 71 AD2d 769.)

Legal Services NYC, Brooklyn (*Nicole Salk* of counsel), *Janet E. Sabel*, *The Legal Aid Society*, New York City (*Richard Blum* and *Sumani Lanka* of counsel), *National Employment Law Project*, New York City (*Najah A. Farley* of counsel), and *New York Taxi Workers Alliance*, Long Island City (*Zubin Soleimany* of counsel), for Legal Services NYC and others, amici curiae. I. So-called “gig” companies like Postmates Inc. squeeze their workers and hurt law-abiding employers and public coffers. II. The Unemployment Insurance Law must be construed in a way that serves its statutory purposes and honors the full common-law test. (*Nestor v McDowell*, 81 NY2d 410; *Matter of Ferrara [Catherwood]*, 10 NY2d 1; *Matter of Gruber [New York City Dept. of Personnel—Sweeney]*, 89 NY2d 225; *Matter of Machcinski [Ford Motor Co.—Corsi]*, 277 App Div 634; *Matter of Rheinwald v Builders’ Brick & Supply Co.*, 168 App Div 425; *Matter of Morton*, 284 NY 167; *Matter of Schlicker [Blake & Sons—Ross]*, 55 AD2d 789; *Matter of Concourse Ophthalmology Assoc. [Roberts]*, 60 NY2d 734; *NLRB v United Ins. Co. of America*, 390 US 254; *Lancaster Symphony Orch. v National Labor Relations Bd.*, 822 F3d 563.) III. Even focusing on control, Postmates Inc. couriers are not independent contractors, but employees. (*Matter of Kelly [Frank Gallo, Inc.—Commissioner of Labor]*, 28 AD3d 1044; *Matter of Kimberg [Hudacs]*, 188 AD2d 781; *Matter of Rivera [State Line Delivery Serv.—Roberts]*, 69 NY2d 679; *Matter of Ross [Roberts]*, 119 AD2d 857; *Matter of Fox*, 119 AD2d 868; *Matter of Nurse Care Registry [Hartnett]*, 154 AD2d 804; *Matter of Furno [Panasonic Co., Div. of Matsushita Elec. Corp. of Am.—Roberts]*, 102 AD2d 937; *Matter of Farley [Toyota Tsusho Am. Inc.—Commissioner of Labor]*, 131 AD3d 1295; *Matter of Nance [NYP Holdings Inc.—Commissioner of Labor]*, 117 AD3d 1294; *Carlson v American Intl. Group, Inc.*, 30 NY3d 288.)

OPINION OF THE COURT

Chief Judge DiFIORE.

The issue before us is whether the decision of the Unemployment Insurance Appeals Board (the Board) that claimant, a former Postmates Inc. courier, and others similarly-situated are employees for whom Postmates is required to make contributions to the unemployment insurance fund was supported by substantial evidence. Because there was record support for the Board’s finding that the couriers were employees, we reverse the Appellate Division order and reinstate the Board’s decision.

Postmates is a delivery business that uses a website and smartphone application to dispatch couriers to pick up and deliver goods from local restaurants and stores to customers in cities across the United States—deliveries that are, for the most part, completed within an hour. Postmates solicits and hires its couriers, who undergo background checks before being approved to work by Postmates. Once they are approved, the couriers decide when to log into the application and which delivery jobs to accept. Once a courier accepts a delivery job made available through the application, the courier receives additional information about the job from Postmates, including the destination for the delivery. After completing a job, Postmates pays the couriers 80% of the delivery fees charged to customers, and payments are made by the customer directly to Postmates, which pays its couriers even when the fees are not collected from customers. Couriers' pay and the delivery fee are both nonnegotiable.

Claimant Luis Vega worked as a Postmates courier in June 2015. Based on negative reviews from customers alleging fraudulent activity, Postmates blocked claimant from using the application. Thereafter, claimant filed for unemployment benefits. In August 2015, the Department of Labor, based in part on a statement of Mr. Vega, initially determined that claimant was an employee of Postmates, requiring that Postmates pay unemployment insurance contributions on Mr. Vega's earnings, as well as on the earnings of "all other persons similarly employed."¹ After Postmates disputed the determination, a hearing was held before an administrative law judge (ALJ) who sustained Postmates' objection, concluding that claimant was an independent contractor and reasoning that Postmates did not exercise sufficient supervision, direction and control over claimant to establish an employer-employee relationship. The Commissioner appealed the ALJ's decision to the Board, which reversed the ALJ, overruled Postmates' objection and sustained the Department's initial determination that claimant was an employee. After making findings of fact regarding the operation and logistics of Postmates' delivery business, the Board concluded that "claimant and any other on-demand

1. The parties do not dispute that, consistent with the Department's initial decision, the Board's determination imposes a contribution requirement for similarly situated couriers employed by Postmates (*see* Labor Law § 620 [1] [b]), nor does Postmates direct any argument at that aspect of the Board's decision.

couriers (delivery drivers) similarly situated” were employees because Postmates exercised, or reserved the right to exercise, control over their services.²

Postmates appealed to the Appellate Division. With two Justices dissenting, the Appellate Division reversed the Board’s determination and remitted to the Board for further proceedings not inconsistent with the Court’s decision. The Appellate Division concluded that “[w]hile proof was submitted with respect to Postmates’ incidental control over the couriers,” the proof “d[id] not constitute substantial evidence of an employer-employee relationship to the extent that it fail[ed] to provide sufficient indicia of Postmates’ control over the means by which these couriers perform their work” (162 AD3d 1337, 1339 [3d Dept 2018]). The dissenting Justices would have confirmed the Board decision, concluding that there was substantial evidence supporting its determination that claimant was an employee of Postmates. The Commissioner appeals, pursuant to CPLR 5601 (a).

Unemployment insurance is temporary income for eligible employees who lose their jobs through no fault of their own (*see* Labor Law § 501). The Commissioner of Labor is responsible for administering the State’s unemployment benefits scheme (*see id.* § 530)—meaning the Department of Labor is the body that determines, on a case-by-case basis, whether workers are employees for whom contributions to the unemployment insurance fund must be made rather than independent contractors for whom no such contribution need be made (*see id.* § 570). The Department’s determinations are subject to review by the Board upon appeal (*id.* § 621). A determination of the Board “if supported by substantial evidence on the record as a whole, is beyond further judicial review even though there is evidence in the record that would have supported a contrary conclusion” (*Matter of Concourse Ophthalmology Assoc. [Roberts]*, 60 NY2d 734, 736 [1983]; *see also Matter of Charles A. Field Delivery Serv. [Roberts]*, 66 NY2d 516, 521 [1985]). Substantial evidence is a “minimal standard” requiring “less than a preponderance of the evidence” (*Matter of Haug v State Univ. of N.Y. at Potsdam*, 32 NY3d 1044, 1045 [2018] [internal quotation marks and citations omitted]). As such, if

2. The record does not indicate whether Mr. Vega actually received or was eligible for unemployment insurance benefits and that issue is not before this Court.

the evidence “reasonably supports the [B]oard’s choice, we may not interpose our judgment to reach a contrary conclusion” (*Matter of MNORX, Inc. [Ross]*, 46 NY2d 985, 986 [1979]; see also *Matter of Villa Maria Inst. of Music [Ross]*, 54 NY2d 691, 693 [1981]).

As relevant here, under the Labor Law, “employment” is broadly defined as “any service under any contract of employment for hire, express or implied, written, or oral” (Labor Law § 511 [1] [a]). Traditionally, the Board considers a number of factors in determining whether a worker is an employee or an independent contractor, examining “[a]ll aspects of the arrangement” (*Villa Maria*, 54 NY2d at 692). But the touchstone of the analysis is whether the employer exercised control over the results produced by the worker or the means used to achieve the results (see *Concourse Ophthalmology*, 60 NY2d at 736).³ The doctrine is necessarily flexible because no enumerated list of factors can apply to every situation faced by a worker, and the relevant indicia of control will necessarily vary depending on the nature of the work.⁴

Here, there is substantial evidence in the record to support the Board’s determination that Postmates exercised control over its couriers sufficient to render them employees rather than independent contractors operating their own businesses. The company is operated through Postmates’ digital platform,

3. Both the dissent and the concurrence suggest that we should devise a different test for analyzing whether a worker is an employee or independent contractor. But that assertion is neither preserved for review nor argued by any party in this Court. As the dissent recognizes, overhauling the test “is not a task to which courts are well suited” and “is a policy question best left to the legislature” (dissenting op at 171). The legislature defined “employment” in the context of the Unemployment Insurance Law. Whether a different definition or test should now apply to employees generally, or to couriers in particular, is a policy question for the legislature to be implemented by the administrative agency authorized to make those determinations.

4. The factors the agency considers in assessing control will vary depending on the type of work; for example, that a worker in one industry is not limited to a particular territory (dissenting op at 163) may be irrelevant to the inquiry relating to a worker in a different industry. Because of the variability of work relationships, employment status for unemployment insurance purposes requires a case-by-case analysis. It is nonetheless appropriate to consider precedent and view the factors in context when determining whether the Board’s determination is supported by substantial evidence. While the “nature of the work” is not determinative of whether a worker is an employee, it does impact how control is (or practically can be) manifested in a particular work environment and in this way is integral to the analysis. To recognize this—which is obvious from our precedent—is not to add a “new factor” (dissenting op at 167) to the analysis.

accessed via smartphone app, which connects customers to Postmates couriers, without whom the company could not operate. While couriers decide when to log into the Postmates' app and accept delivery jobs, the company controls the assignment of deliveries by determining which couriers have access to possible delivery jobs. Postmates informs couriers where requested goods are to be delivered only after a courier has accepted the assignment. Customers cannot request that the job be performed by a particular worker. In the event a courier becomes unavailable after accepting a job, Postmates—not the courier—finds a replacement. Although Postmates does not dictate the exact routes couriers must take between the pickup and delivery locations, the company tracks courier location during deliveries in real time on the omnipresent app, providing customers an estimated time of arrival for their deliveries. The couriers' compensation, which the company unilaterally fixes and the couriers have no ability to negotiate, are paid to the couriers by Postmates. Postmates, not its couriers, bears the loss when customers do not pay. Because the total fee charged by Postmates is based solely on the distance of the delivery and couriers are not given that information in advance, they are unable to determine their share until after accepting a job. Further, Postmates unilaterally sets the delivery fees, for which it bills the customers directly through the app. Couriers receive a company sponsored "PEX" card which they may use to purchase the customers' requested items, when necessary. Postmates handles all customer complaints and, in some circumstances, retains liability to the customer for incorrect or damaged deliveries.

Postmates exercises more than "incidental control" over its couriers—low-paid workers performing unskilled labor who possess limited discretion over how to do their jobs. That the couriers retain some independence to choose their work schedule and delivery route does not mean that they have actual control over their work or the service Postmates provides its customers; indeed, there is substantial evidence for the Board's conclusion that Postmates dominates the significant aspects of its couriers' work by dictating to which customers they can deliver, where to deliver the requested items, effectively limiting the time frame for delivery and controlling all aspects of pricing and payment.

Although the operative technology has changed in the interim decades, this case is indistinguishable from *Matter of Rivera*, where we held that substantial evidence supported the Board's conclusion that a similar delivery person was an employee of the delivery company—even though he set his own delivery routes and did not have a set work schedule but called the company's dispatcher whenever he wished to engage in work, accepting only the jobs he desired (see *Matter of Rivera [State Line Delivery Serv.—Roberts]*, 69 NY2d 679 [1986], *cert denied* 481 US 1049 [1987]; see also *Matter of Di Martino [Buffalo Courier Express Co.—Ross]*, 59 NY2d 638 [1983]). The dissent's attempt to distinguish *Matter of Rivera*, as well as its efforts to shoehorn the facts here into our precedent involving distinct industries and work conditions, is unavailing.

Matter of Yoga Vida NYC, Inc. (Commissioner of Labor), where this Court held that the Board's determination that certain yoga instructors were employees was not supported by substantial evidence, does not dictate a different result (see 28 NY3d 1013 [2016]). That decision did not change the substantial evidence standard that applies to judicial review of the Board's determinations; instead, it explicitly reaffirmed that standard. Further, as already stated, the importance of different indicia of control will vary depending on the nature of the work, and yoga instructors are not couriers. A yoga instructor provides a service that is, in some respects, unique to that instructor and his or her personal characteristics, and that was significant in *Matter of Yoga Vida* where the non-staff instructors were free to create their own customer following and invite students to attend their classes at competing studios. Moreover, Yoga Vida's non-staff instructors were paid only if a certain number of students attended their class and, therefore, needed to ensure some degree of a customer following to be successful. They also chose the method by which Yoga Vida would calculate their pay (either hourly or on a percentage basis). In these ways, the non-staff yoga instructors, in contrast to the other staff instructors, operated as independent contractors who were in business for themselves. The same cannot be said of the couriers here. Customers cannot choose, nor do they have reason to choose, a particular individual to perform the delivery and thus, unlike the non-staff instructors in *Matter of*

Yoga Vida, Postmates' couriers do not have the ability to create a following or generate their own customer base.⁵ Instead, Postmates has complete control over the means by which it obtains customers, how the customer is connected to the delivery person, and whether and how its couriers are compensated. Therefore, there is record support for the Board's conclusion that Postmates exercised more than incidental control over the couriers. "There being substantial evidence to sustain the determinations, the judicial inquiry is complete" (*Matter of Rivera*, 69 NY2d at 682).

Accordingly, the order of the Appellate Division should be reversed, with costs, and the decision of the Board reinstated.

RIVERA, J. (concurring in result). According to Postmates Inc., its "couriers"—persons who make up the company's delivery staff, like claimant Luis Vega—are independent contractors because they exercise a modicum of choice in how to conduct their work. Even a cursory look at Postmates's structure reveals the fallacy of this argument. Postmates has adopted an atomized business model which prevents these workers from providing delivery services as independent business owners. During their employ, "couriers" have no meaningful way to commodify their efforts into a self-sustaining business. The structure of their work and the realities of the service economy do not permit them to develop a client base by exercising control over their business choices. To put it bluntly, Postmates did not hire entrepreneurs as delivery persons, and Postmates's attempt to create the illusion of entrepreneurialism does not transform these employees into a fleet of independent contractors.

The majority correctly describes our multifactor test for determining whether a worker is an employee (*see* majority op at 138; *see also Bynog v Cipriani Group*, 1 NY3d 193, 198 [2003] [considering "whether the worker . . . was free to engage in other employment"]; *Matter of Wells [Utica Observer-Dispatch & Utica Daily Press—Roberts]*, 87 AD2d 960 [3d Dept 1982],

5. Although the dissent asserts otherwise (dissenting op at 165 n 10), yoga instructors' interest in creating and maintaining their own customer followings is nothing like customers' online ratings of their Postmates couriers. Postmates customers have no ability to choose their courier when placing a delivery request. Further, there is no evidence in the record that Postmates' couriers can determine the compensation they will receive from a delivery job before accepting it (*id.* at 165 n 10).

affd 59 NY2d 638 [1983] [relying on fact that workers could subcontract responsibilities and work for competitors]), and reasonably considers the Board’s application of the relevant factors here.¹ Nevertheless, while the test is well-suited to most cases, it has its limits and may prove difficult to apply to electronically mediated work arrangements. I would adopt as the better approach the Restatement of Employment Law’s test for determining employee status, which alternatively considers the worker’s entrepreneurial control over their services and the extent to which the employer “effectively prevents” such worker control (*see* Restatement of Employment Law § 1.01). Therefore, I write to clarify how the Restatement of Employment Law test applies to Postmates and similar business models.²

1. As to the majority’s application of our common-law test, I disagree insofar as the majority attempts to explain the holding in *Matter of Yoga Vida NYC, Inc. (Commissioner of Labor)* (28 NY3d 1013 [2016]). As the Appellate Division opinion here demonstrates, *Yoga Vida*’s erroneous focus on factors that the majority apparently believed outweighed the Board’s rationale (*see id.* at 1016-1018 [Fahey, J., dissenting]) has created confusion as to the proper application of the substantial evidence test when an employer alleges that it exercises limited to no supervision over a worker (*see* 162 AD3d 1337, 1339 [2018]; *see also Matter of Mitchell [Nation Co. Ltd Partners—Commissioner of Labor]*, 145 AD3d 1404, 1406-1407 and n 1 [3d Dept 2016] [reading *Yoga Vida* as requiring “a more detailed, qualitative and arguably less deferential analysis of the various employment factors” than had been required by the Court’s prior decisions]). Although the majority states that *Yoga Vida* did not purport to “change the substantial evidence standard that applies to judicial review of the Board’s determinations” (majority op at 139), the majority reaffirms the mistake of that case by, in turn, focusing on the facts in *Yoga Vida* that supported a conclusion contrary to that of the Board as the basis for distinguishing that case from the instant appeal. This part of the majority analysis clouds the issue before us, for as I discuss, there is ample evidence that Vega was an employee and not a businessperson serving his own entrepreneurial interests.

2. Contrary to the majority’s assertion our rules of preservation are not implicated by my analysis. Our task on this appeal is to decide whether substantial evidence supports the Board’s determination that the couriers are employees. The only way to do that is by determining the test for establishing an employment relationship under the Unemployment Insurance Law, which does not define an employment relationship. We have applied common-law principles to fill in this statutory gap, and the majority does so again today, acknowledging that “no enumerated list of factors can apply to every situation faced by a worker” (majority op at 137). I consider whether, in this gap-filling role, we should apply the Restatement of Employment Law approach, which draws from the common-law test but also considers as a factor whether workers can act without impediment as entrepreneurs. As I explain, that test addresses concerns the Court has previously raised as a basis for recognizing various relevant factors.

I.A. New York's Legislature Enacts the Unemployment Insurance Law to Address the Devastating Effects of Unemployed Worker Economic Insecurity

New York's Unemployment Insurance Law is intended to "alleviat[e] the adverse financial condition that frequently accompanies . . . the cessation of income from an employer" (*Matter of Van Teslaar [Levine]*, 35 NY2d 311, 316 [1974]). According to the legislature's stated public policy, which "guide[s] the interpretation and application of [the Law],"

"[e]conomic insecurity due to unemployment is a serious menace to the health, welfare, and morale of the people of this state. Involuntary unemployment is therefore a subject of general interest and concern which requires appropriate action by the legislature to prevent its spread and to lighten its burden, which now so often falls with crushing force upon the unemployed worker and [the worker's] family. . . . [T]he legislature therefore declares that in its considered judgment the public good and the well-being of the wage earners of this state require the enactment of this measure for the compulsory setting aside of financial reserves for the benefit of persons unemployed through no fault of their own" (Labor Law § 501).

Shortly after the Law was enacted, in the depths of the Great Depression, this Court rejected a substantive due process challenge to the mandatory employer contribution provisions adopted by the legislature (*Chamberlin, Inc. v Andrews*, 271 NY 1 [1936]). Regarding the Law's purpose, Chief Judge Crane explained,

"The courts can take judicial notice of the fact that unemployment for the last five or six years has been a very acute problem for State and Federal government. There have always been from earliest times the poor and unfortunate whom the State has had to support by means of money raised by taxation. We have had our homes for the poor and the infirm, hospitals, infirmaries and many and various means for taking care of those who could not take care of themselves. . . .

“Another problem has faced society which has been a source of study, discussion, agitation and planning. Unemployment, from whatever cause, has increased enormously in every part of the country, if not throughout the world. Is there any means possible to provide against unemployment, the loss of work, with its serious consequences to the family, to the children and to the public at large? When such a matter becomes general and affects the whole body politic, a situation has arisen which requires the exercise of the reserve power of the State, if there be a practical solution. Some have suggested that for the periodical recurrence of panics and hard times, the actuary might be able to work out a scheme of insurance. We need not pause to determine whether this can be done or not. The fact is that in the past few years enormous sums of State and Federal money have been spent to keep housed and alive the families of those out of work who could not get employment. Such help was absolutely necessary, and it would be a strange kind of government, in fact no government at all, which could not give help in such trouble.

“The Legislature of the State, acting after investigation and study and upon the report of experts, has proposed what seems to it a better plan. Instead of solely taxing all the people directly it has passed a law whereby employers are taxed for the help of the unemployed, the sums thus paid being cast upon the public generally through the natural increase in the prices of commodities. Whether relief be under this new law of the Legislature or under the dole system the public at large pays the bill” (*id.* at 8-9).

This State’s Unemployment Insurance Law was one part of a nationwide push to counter the deleterious effects of the Depression on the lives and livelihoods of working people (*see generally* Edwin E. Witte, *Development of Unemployment Compensation*, 55 Yale L J 21 [1945]). As another part of that effort, the federal government enacted the Social Security Act, which among other things provides for financial assistance to states that administer unemployment compensation laws (*see id.* at 28-32). The Senate Report accompanying that legislation observed that “[u]nemployment compensation is financed the

world over through contributions measured as a percentage of pay roll,” and found that “[p]artial compensation during a relatively short period following unemployment, while a work[er] is seeking other employment or waiting to return to [their] old job, is very properly to be regarded as a part of the legitimate costs of production” (S Rep No 74-628, 74th Cong, 1st Sess at 12; *see also* Eveline N. Burns, *Unemployment Compensation and Socio-Economic Objectives*, 55 Yale L J 1, 7-8 [1945]). Thus, in creating modern unemployment insurance, the state and federal governments responded to the plight of workers who might be reduced to joblessness and penury by forces beyond their control, while ensuring that employers internalized part of the costs they imposed on society by terminating workers (*see* Labor Law § 570). The fiscal integrity of this system depends on proper classification of workers as employees, which in turn ensures an employer does not avoid its share of contributions. While by its nature the extent of misclassification in this country remains unknown, a 2000 study commissioned by the Employment and Training Administration found that at least ten percent, and up to thirty percent, of employers misclassified employees at that time (Lalith de Silva et al., Planmatics, Inc., *Independent Contractors: Prevalence and Implications for Unemployment Insurance Programs* iii [2000]; *see also* Charlotte S. Alexander, *Misclassification and Antidiscrimination: An Empirical Analysis*, 101 Minn L Rev 907, 912-913 [2017] [collecting studies]).

Although the legislature has not defined the term “employee,” it has designated certain workers as such (Labor Law § 511) and authorized the Commissioner of Labor to determine eligibility for unemployment insurance benefits for all other workers (*id.* §§ 596, 597, 620). This determination necessarily requires a factual finding of an employment relationship (*see e.g. Matter of Conklin*, 262 AD2d 687, 688 [3d Dept 1999, Graffeo, J.]), reviewable by an administrative law judge, and whose decision may be appealed to the Unemployment Insurance Appeal Board (Labor Law §§ 620-623). However, because the Law does not apply to independent contractors, this employee-independent contractor binary drives the administrative determinations.

If substantial record evidence supports the Board’s conclusion that a worker is an employee, then the Board’s determination is beyond further judicial review (*see Matter of Concourse*

Ophthalmology Assoc. [Roberts], 60 NY2d 734, 736 [1983]). A reviewing court may not reweigh the factors considered; it may only search the record to determine whether substantial evidence supports the Board's ultimate decision (see *Matter of Morton*, 284 NY 167, 169-170 [1940]; see generally *Matter of Stork Rest. v Boland*, 282 NY 256, 267 [1940]).

B. The Multifactor Test for Determining an Employment Relationship

Under our precedent, the existence of an employer-employee relationship is measured under a multifactor test to determine the control exercised by the employer over the results produced and the means by which services are rendered, leading to the distinction between employee and independent contractor (see *Matter of Empire State Towing & Recovery Assn., Inc. [Commissioner of Labor]*, 15 NY3d 433, 437 [2010]). The Court has recognized, however, that a variety of occupations and services covered by the law “do not lend themselves to such [employer] control” (*Concourse Ophthalmology*, 60 NY2d at 736). In those cases, the analysis focuses on whether the employer exercises “control over important aspects of the services performed other than results or means” (*id.*). In other words, in the unemployment insurance context, the level of employer control that distinguishes an employee from an independent contractor is determined by the nature of the work and the ways in which supervision is both consequential to the employer's business and meaningfully exercised over the worker.³ The employer control test has its foundation in torts and the unfortunately labeled “master-servant” relationship (see *Morton*, 284 NY at 172-173; Restatement of Employment Law § 1.01, Comment *d*). Under the common-law test, if an employer (“master”) retains the right to control aspects of the services rendered, the worker is an employee (“servant”) and the employer is vicariously liable for the employee's acts leading to tortious injury of a third

3. While the *Concourse Ophthalmology* (60 NY2d 734) branch of the doctrine may have “been typically applied in the context of professionals such as physicians and attorneys” (*Empire State Towing & Recovery Assn., Inc.*, 15 NY3d at 438), its logic has force in other areas as well. For example, a job might not be susceptible of close control because it can “be done only one way” (*S.G. Borello & Sons, Inc. v Department of Indus. Relations*, 48 Cal 3d 341, 345, 769 P2d 399, 400 [1989]).

party.⁴ The factors applied in our case law and the Board's decisions are summarized in the Restatement (First) of Agency § 220, which this Court cited approvingly in *Matter of Morton* (284 NY at 173 ["the degree of control which must be reserved by the employer in order to create the employer-employee relationship cannot be stated in terms of mathematical precision, and various aspects of the relationship may be considered in arriving at the conclusion in a particular case"], citing Restatement [First] of Agency § 220).

Section 220 of the Restatement (First) of Agency provides that,

"[i]n determining whether one acting for another is a servant [i.e., an employee] or an independent contractor, the following matters of fact, among others, are considered:

"(a) the extent of control which, by the agreement, the master may exercise over the details of the work;

"(b) whether or not the one employed is engaged in a distinct occupation or business;

"(c) the kind of occupation, with reference to whether, in the locality, the work is usually done under the direction of the employer or by a specialist without supervision;

"(d) the skill required in the particular occupation;

"(e) whether the employer or the workman supplies the instrumentalities, tools, and the place of work for the person doing the work;

"(f) the length of time for which the person is employed;

"(g) the method of payment, whether by the time or by the job;

"(h) whether or not the work is a part of the regular business of the employer; and

"(i) whether or not the parties believe they are

4. A similar "control" test is applied by the federal government and by many of our sister states in similar contexts (see *Eisenberg v Advance Relocation & Stor., Inc.*, 237 F3d 111, 114-115 [2d Cir 2000] [collecting cases]).

creating the relationship of master and servant”
(Restatement [First] of Agency § 220 [2]).

Since *Morton*, the American Law Institute has issued the Second and Third Restatements of Agency. Both retain the common-law right to control test.⁵ The Restatement (Third), issued in 2006, consolidated various sections of the previous iterations, including section 220, into a new section 7.07, which retains the employer right to control test and recognizes the same factors listed in the Restatement (First) and (Second), as well as the employer’s control of the details of the employee’s work (Restatement [Third] of Agency § 7.07, Comment *f*). Both of the newer Restatements of Agency also explain that the employer’s right to control may be attenuated, and the Restatement (Third) emphasizes that “all employers retain a right of control, however infrequently exercised” (*see id.*). Although the definition of “servant” continues to resonate for purposes of the employer’s liability to third parties, the Restatement (Second) acknowledges that certain persons not fitting the definition have been held to be employees for purposes of a statutory scheme unrelated to employer tort liability because such treatment furthers the legislative goals of that scheme (*see* Restatement [Second] of Agency § 220, Comment *g*).

C. Restatement of Employment Law

The Restatement of Employment Law, issued in 2015, distinguishes between an employee and an independent businessperson. Under section 1.01, titled Conditions for Existence of Employment Relationship, this Restatement explains that, when the worker and employer agree that the worker will provide services for the employer, the worker is an employee if “the employer controls the manner and means by which the individual renders services, or the employer otherwise effectively prevents the individual from rendering those services as an independent businessperson” (Restatement of Employment Law § 1.01 [a] [3]). The analysis draws from the common-law right of control test described in the Restatements of Agency, but recognizes the test “looks not only to the principal’s control of the physical details of how the service provider performs the service, but also to the principal’s control of other aspects of the service provider’s performance that determines whether

5. The Restatement (Second), issued in 1958, adds one more factor to the original list: “(j) whether the principal is or is not in business” (Restatement [Second] of Agency § 220 [2] [j]).

[they are] able to provide those services as an independent businessperson” (*id.* Comment *e*). Like our Court in *Concourse Ophthalmology* (see 60 NY2d at 736), the Restatement recognizes that some workers’ roles may not be susceptible to “close employer supervision,” but nevertheless they should be treated as employees (*id.* Comment *d*).

The Restatement further describes an “independent businessperson” as a worker who “in [their] own interest exercises entrepreneurial control over important business decisions, including whether to hire and where to assign assistants, whether to purchase and where to deploy equipment, and whether and when to provide service to other customers” (*id.* § 1.01 [b]). It further explains the distinction:

“Under this test, employees are service providers who, because of the employer’s control over their performance, do not provide their services to the employer as independent businesspersons. In many cases, the employer exercises a degree of control over the physical details of how the services are performed that denies the service providers any ability to make entrepreneurial decisions. In other cases, even when the employer does not closely supervise the service providers, the employer’s control of such matters as the scheduling of performance, the use of equipment, and the hiring of assistants effectively prevents the service providers from making entrepreneurial decisions in their own economic interest. By contrast, service providers who do have entrepreneurial control over business decisions can seek to increase their personal economic returns not simply by working harder in performing the service for the principal but also by working at their discretion for other customers, by hiring assistants and by deploying or substituting for labor their own equipment or capital. Those independent businessperson-service providers are in a different economic position from employee-service providers who do not have such entrepreneurial control. On that ground, the latter service providers have been treated differently by the employment laws” (*id.* Comment *e*).

Workers who are prevented by their employers from acting as independent businesspersons “are employees” under the second

prong of the Restatement test, “regardless of the manner of their compensation or the flexibility of their work hours” (*id.*).

With respect to worker entrepreneurialism, Comment *f* further explains:

“Under § 1.01(a)(3), the employer’s close supervision of the physical details of how the service provider performs the services is sufficient, but not necessary, for employee status. As a practical matter, an employer might not need to monitor closely the details of the work performed by an employee-service provider because of the nature of the work performed, the place where it is performed, or the employee’s skills in performing the work. When that is true, the question of the service provider’s employee status turns on whether the employer’s control over the service provider’s performance effectively prevents the service provider from providing the services as an independent businessperson.

“As set forth in § 1.01(a)(3) and § 1.01(b), individuals provide services as independent businesspersons if they are able to serve their own economic interests through entrepreneurial control over a significant part of their costs or opportunities for profit. Such entrepreneurial control is control over important business decisions, such as the hiring and assignment of assistants, the purchase and use of equipment, and whether and when to serve other customers. Employee-service providers, by contrast, can affect their remuneration or other economic interest only by working harder or more skillfully on their employer’s behalf; they are not entrepreneurs operating as independent businesspersons.

“Under the foregoing test, highly skilled or highly trained professionals are employees if the employer controls the cost of providing, and the timing of, their work; such individuals can seek to improve their economic returns only by providing the employer more or better services. The same is also true of executives who are subject only to the general control of a corporation’s board of directors but who are expected to exercise their discretion solely to further the corporation’s business objectives and

not any independent business objectives of their own” (*id.* Comment *f*).

Notably, the Reporters’ Notes to the Restatement of Employment Law highlight two important considerations relevant to a worker’s exercise of entrepreneurial control. First, “[u]nskilled workers who provide no additional input other than their own labor ordinarily will not be held to be providing services as independent businesspersons even when the employer does not control the physical details of their work performance” (*id.* at Reporters’ Notes, Comment *f*, citing *United States v Silk*, 331 US 704, 716-718 [1947], and *Zheng v Liberty Apparel Co. Inc.*, 355 F3d 61, 68-69 [2d Cir 2003]). Second,

“[t]he requirement that the employment relationship effectively prevent the employee from rendering services as part of an independent business ties the entrepreneurial-control test to the right-to-control test. It is the actual relationship with the recipient of the services that is determinative. In order for a service provider to be operating an independent business, therefore, that relationship must not preclude the provider from exercising entrepreneurial control in [the worker’s] own interest. If the actual relationship has not changed, it should not be relevant that an employer has given an employee an opportunity to modify an employment relationship and become an independent business operator” (*id.* [internal quotation marks omitted]).

The approach of the Restatement of Employment Law addresses the concerns to which this Court responded in *Concourse Ophthalmology* (60 NY2d at 736). The Restatement’s treatment of entrepreneurial control also fits with our case law holding that an independent contractor is their “own master” (*Morton*, 284 NY at 172; see also *Matter of Pedraza [Cablemasters Corp.—Hartnett]*, 149 AD2d 829, 830 [3d Dept 1989] [determining that the record supported “the finding that claimant did not operate an independent business of his own, but instead that claimant worked for the employer”]).

At the intersection of these principles are concepts of worker autonomy, employer control over work, individual business development by a worker in furtherance of self-interest, and the effects of worker exploitation on society and the economy. Given our legislature’s recognition that “[e]conomic insecurity due to unemployment is a serious menace to the health,

welfare, and morale of the people of this state,” and the Unemployment Insurance Law’s remedial purpose to provide benefits to workers who become unemployed through no fault of their own, a determination about who is eligible for remuneration from the insurance fund should be informed by the realities of the worker’s experience. We should not equate independent contractor status with illusory opportunities for worker entrepreneurialism.

The fact that an employer profits from unskilled labor without having to supervise a worker in the traditional sense does not render the worker an independent contractor merely by dearth of oversight. An illusory opportunity to be your own businessperson is insufficient to establish independent contractor status where the employer controls significant aspects of the work that meaningfully impact the employer-employee relationship, and by so doing, “effectively prevents the individual from rendering those services as an independent businessperson” (Restatement of Employment Law § 1.01 [a] [3]). The conditions establishing an employment relationship set forth in the Restatement of Employment Law, drawing in part from the multifactor test of the Restatement (Third) of Agency, should be applied to unemployment insurance cases.

II. Postmates’s Business Model

Postmates describes itself as “a company that created and operates a web-based and mobile Platform” which “facilitates a marketplace of deliveries from local businesses through a network of freelance Delivery Providers.” Notwithstanding this attempt to distinguish itself from other delivery services, the record makes clear that Postmates is in the business of making timely deliveries and uses technology to atomize this service. Postmates does not “match” an individual who can then negotiate in their own interests the best way to meet a client’s needs. Postmates’s “marketplace” is illusory as Postmates’s business model depends on unskilled workers who have no ability to work as independent delivery persons and develop a client base while in Postmates’s employ.

To be precise, Postmates created an algorithm that permits an individual to place an online delivery order. The request is made on the Platform and then Postmates finds a person from its pool of hired workers to make the delivery. Delivery persons—called “couriers”—access delivery assignments

through the Platform, i.e., the Postmates app. Postmates does a criminal background check on couriers and trains them on how to use the app. Couriers must sign an “Independent Contractor Acknowledgement Agreement.” Although couriers may use their preferred means of transportation to conduct their deliveries, they must give Postmates advance notice of their choice. Couriers log into the app at will, and may accept or decline a posted delivery assignment, but they do not receive details about the nature of the assignment in advance of acceptance. Postmates retains the right to unilaterally terminate couriers without notice, such as for poor customer ratings or other poor performance. As I discuss below, Postmates’s business model depends on a delivery staff of “couriers” who are employees, not independent contractors.

III. Restatement of Employment Law Applied to Postmates

“Couriers” do not have an exclusive employment contract with Postmates, but being able to work simultaneously for another employer does not make a courier an independent businessperson. Couriers cannot build a client-base through their business savvy; apart from the moment of delivery, customer contact is through Postmates, and customers do not choose a delivery person. Nor does the work lend itself to the “exercise[] of entrepreneurial control over important business decisions” (Restatement of Employment Law § 1.01 [b]). Indeed, the model depends on a courier not providing the same services as an independent businessperson.

To illustrate the point, we need only consider what the parties present as a typical Postmates delivery assignment: the request to pick up a burrito bowl from a store and deliver it to the customer’s home. Postmates informs couriers of the pickup location for this delivery request through the app, and once a courier accepts the assignment, Postmates forwards the details. The courier is then tracked by both Postmates and the customer. At no time during the course of this delivery does the courier make important business decisions that would serve his entrepreneurial interests. The point is to get the delivery done and get paid by Postmates. There is no value in an independent relationship with any one customer since it will not lead to economically beneficial future business. You simply can-

not individually deliver enough of those types of orders to make a business out of it.⁶

During Vega's term as a courier for Postmates, he accepted approximately half of the assignments he was offered. According to his written agreement with the company, he carried his assigned deliveries on foot. He was involuntarily terminated from this role based, according to Postmates, on negative customer feedback related to his failure to deliver one or more of the items assigned to him. He was not hired as an independent contractor, and Postmates failed to provide evidence of how Vega was able to act as an entrepreneur in the course of delivering to Postmates customers. Put another way, the record evidence showed that Vega and other similarly situated couriers "can affect their remuneration or other economic interest only by working harder or more skillfully on [Postmates's] behalf; they are not entrepreneurs operating as independent businesspersons" (Restatement of Employment Law § 1.01, Comment *f*).

The fact is that Postmates benefits from the labor of unskilled workers and persons of low income—both vulnerable to employer exploitation, as well as misclassification under the statute. In 2015, when Vega worked for Postmates, nearly three million New Yorkers, or 15.4% of the population, lived below the poverty line; nationally, fully 14.7% of persons in the United States lived in poverty (*see* United States Census Bureau, Poverty: 2014 and 2015 at 3 [2016]). Among individuals over 25, those without four-year college degrees were far more likely to be in poverty and/or unemployed (*see* United States Census Bureau, Income and Poverty in the United States: 2015 at 13 [2016] [poverty levels declined from 26.3% for individuals

6. The record shows that Postmates pays its couriers 80% of the fee it charges its customers, which varies based on the distance that the courier travels. According to Postmates's website, the fee varies from \$0.99 to \$9.99 per delivery (*see* Postmates, *How do fees work?*, available at <https://support.postmates.com/buyer/articles/360032280952-article-How-do-fees-work-#:text=>). Thus, assuming an average delivery fee of \$5, a courier would make \$4 per delivery. To make the New York City minimum wage of \$15 per hour over a 40-hour work week (*see* Labor Law § 652), a courier would have to deliver 150 food orders per week over those 40 hours. Even if the courier makes the maximum of \$8 per delivery every single time—an unrealistic prospect—the courier would have to make 75 deliveries per week. Setting aside the sizeable costs of healthcare and other benefits, which Postmates couriers must provide for themselves, it is obvious that these couriers cannot create an independent business out of delivering food orders or other similar items for Postmates.

without high school degrees to 4.5% for those with four-year degrees]; United States Bureau of Labor Statistics, Labor Force Statistics from the Current Population Survey: 2015 Annual Averages—Household Data—*Table 7: Employment status of the civilian noninstitutional population 25 years and over by educational attainment, sex, race, and Hispanic or Latino ethnicity* [2015] [unemployment levels declined from 8% for individuals without high school degrees to 2.6% for those with four-year degrees]). The majority of workers in the app-enabled gig economy come from this economically vulnerable demographic (see United States Bureau of Labor Statistics, Monthly Labor Review, *Electronically mediated work: new questions in the Contingent Worker Supplement* 23 [Sept. 2018], <https://www.bls.gov/opub/mlr/2018/article/pdf/electronically-mediated-work-new-questions-in-the-contingent-worker-supplement.pdf>, cached at <http://www.nycourts.gov/reporter/webdocs/ElectronicallyMediatedWordUSBLS.pdf>; see also dissenting op at 171 n 13). Although the Unemployment Insurance Law was passed decades before the digital age, today's app-enabled gig worker is subject to the same devastating financial "insecurity" faced by prior generations of unemployed wage earners and which initially motivated legislators to act (see Labor Law § 501).

IV. Substantial Evidence Supports the Board's Determination

The Unemployment Insurance Appeals Board's determination that claimant Vega was Postmates's employee during his tenure as a courier is supported by substantial record evidence. I reach that conclusion by application of the Restatement of Employment Law, which considers the extent to which an employer prevents worker entrepreneurialism and the worker's exercise of entrepreneurial control over important business decisions. The Appellate Division should be reversed and the Board's decision reinstated.

WILSON, J. (dissenting). The majority's opinion suffers from two independent defects. The first is a failure to examine the record to determine whether the findings of the Commissioner of Labor were supported by substantial evidence. Many of those findings were so lacking in support as to appear to have been cut and pasted from the decision in some other matter, or from a form list of all the possible factors that might warrant the conclusion that someone was an employee. Under those cir-

cumstances, reversal is required. The second is a failure to recognize that the realities of the contemporary working world have outpaced our jurisprudence. The multitude of factors identified in our case law as pertinent to determining whether a claimant is an employee or independent contractor—reflective of a time when employees received a gold watch upon retiring from the sole company at which they spent their entire careers—coupled with our deferential standard of review, has left only two undesirable paths open: either we adhere to the case law and standard of review, leaving all agency decisions unreviewable, or we make haphazard reversals without explanation, based on an ad hoc test we do not articulate because it defies explanation. We have chosen the latter approach, which has nothing to recommend it except that it is marginally better than the former.

I.

The majority begins by asserting that “[t]he issue before us is whether the decision of the Unemployment Insurance Appeals Board (the Board) that claimant, a former Postmates Inc. courier, and others similarly-situated are employees for whom Postmates is required to make contributions to the unemployment insurance fund was supported by substantial evidence” (majority op at 134). That is not correct.

At the inception of the hearing before the ALJ, the following colloquy occurred:

“ALJ PICHARDO: This two-page document is marked as an exhibit for the record as Hearing Exhibit 1 as of today’s date.

“And so where on this document does it say similarly situated, Ms. Claxton?

“MS. CLAXTON [Counsel for the Commissioner]: I don’t see it. I don’t see it, you’re right.

“ALJ PICHARDO: So then it’s only for—

“MS. CLAXTON: For the claimant.

“ALJ PICHARDO:—claimant?

“MS. CLAXTON: Yes, Judge.

“ALJ PICHARDO: All right.”

After the close of evidence, the ALJ reiterated that “my decision in this case . . . only relates to Mr. Vega and not any other employees.” Thus, this appeal concerns only Mr. Vega: whether there is substantial evidence supporting the determination that he was an employee of Postmates. The Board’s determination, erroneously purporting to apply its decision to all similarly situated Postmates workers, is itself a freestanding basis to reject the Board’s determination (*see Matter of Pell v Board of Educ. of Union Free School Dist. No. 1 of Towns of Scarsdale & Mamaroneck, Westchester County*, 34 NY2d 222, 230-231 [1974] [the action of an administrative tribunal is arbitrary when “taken without regard to the facts”]).¹

Anyone can download the Postmates Fleet app to become a courier for Postmates. I could be a Postmates courier, so long as I passed a criminal background check. I could make Postmates deliveries when and where I pleased, and extemporaneously indicate my availability at moments when I need a break from the press of court business. I could make my deliveries by any form of locomotion I choose: walk, bicycle, scooter, car, rollerblade, etc.

Luis Vega, at least briefly, thought more of the Postmates opportunity than did I. He downloaded the app, provided sufficient information to pass the criminal check, and was thereafter authorized to use the Postmates service to make deliveries. Mr. Vega indicated he would be walking to make deliveries. He first logged on to Postmates on June 8, 2015, and last logged on to Postmates on June 15, 2015. At that point, he had worked for Postmates for less than a week and had logged on 12 times for an average of 3 hours and 15 minutes at a time. During those six days, Mr. Vega rejected or ignored about 50% of the assignments offered to him. The record was unequivocal that, even if Mr. Vega requested to make a specific delivery assignment and obtained it, he could thereafter change his mind and

1. Not only was Postmates given no opportunity to present evidence as to other couriers, but the parties were expressly informed by the ALJ, at the start of the hearing, that the ALJ’s determination would be limited to just Mr. Vega. That neither party addressed the ALJ’s limited determination does not change that determination’s scope (majority op at 135 n 1). Thus, the Board’s subsequent decision, if read to impose a contribution requirement on Postmates for Mr. Vega and all other similarly situated couriers, would implicate due process concerns because Postmates was expressly instructed that the proceeding would relate solely to Mr. Vega’s claim and not others similarly situated (*see e.g. Matter of Martin v Ronan*, 47 NY2d 486, 490 [1979] [“a requisite of due process (is) the opportunity to be heard before one’s rights or interests are adversely affected”]).

reject it, causing it to be dumped back into the pool of assignments available to others. Mr. Vega had no set schedule; he had no supervisor² and, he chose what deliveries interested him, how to perform deliveries, the route he would take, and the times at which he would log on and off. Of the jobs he accepted over those six days, “a lot of [requesters’] feedback” indicated that “they weren’t receiving the items requested.” Postmates therefore blocked Mr. Vega from the app. Mr. Vega then filed for unemployment benefits.

In its determination of the matter in August 2015, the Department of Labor classified Mr. Vega as an employee for the purposes of New York Unemployment Insurance Law. The Department of Labor’s determination that Mr. Vega was Postmates’ employee lists 24 factors supporting that determination. A large number of those factual findings are directly contradicted by the record.³ Among those factors are: Mr. Vega was told “when, where, and how the work was to be performed”; he was required to report to a supervisor and work an established schedule; he was required to deliver the packages within a set time; his work would be reviewed; he could not take time off without Postmates’ approval; he was covered by a workers’ compensation policy; he was not free to determine the route of the delivery; and, he could not perform other deliveries while on route with Postmates.

None of these factors has support in the record. Each of those factors was undermined by the testimony before the ALJ, who found that the Postmates couriers chose when they worked, how they worked, and where they worked; couriers could and did choose their own routes; Mr. Vega was not covered by workers’ compensation; couriers were free to reject, ignore, or accept assignments as they chose; and, couriers were free to work for other companies at the same time as they worked for Postmates (*id.*). Although the Commissioner found that Mr. Vega “could not engage substitutes or other couriers without your approval,” the record evidence was that Mr. Vega could “hand his phone to a complete stranger” to complete deliveries. Additionally, the Department noted as a factor that “[i]ndividuals performing such services as couriers were previously deter-

2. Postmates’ witness before the ALJ, the regional manager, believed Mr. Vega had been a bicycle courier, which just goes to show how much “supervision” of Mr. Vega actually took place.

3. Incidentally, Mr. Vega did not appear and presented no evidence at the hearing; the sole evidence presented came from Postmates.

mined to be your employees.” However, the ALJ expressly stated that she was “not going to be considering it” because Postmates and its counsel “weren’t aware of this determination.” Moreover, counsel for the Commissioner stated, “I didn’t really want to make it a part of the record,” after which the ALJ reiterated, “that’s not going to be before me.”

Based on the record, which included both exhibits and testimony, the ALJ held that Mr. Vega was an independent contractor not entitled to unemployment benefits. Although the Board did not make any finding of fact contrary to the ALJ’s findings, the Board reversed the ALJ’s determination. The Appellate Division reversed the Board’s determination for lack of substantial evidence, citing our decision in *Matter of Yoga Vida NYC, Inc. (Commissioner of Labor)* (28 NY3d 1013 [2016]) (*Matter of Vega [Postmates Inc.—Commissioner of Labor]*, 162 AD3d 1337 [3d Dept 2018]). The Court noted the lack of application or review process, the lack of supervision, the courier’s choice to log on and accept delivery requests, the courier’s choice of route and mode of transportation, the lack of a required uniform or identification, the payment system (allowing for payment only upon the completion of a delivery), and the lack of reimbursements for delivery-related expenses (*id.* at 1338-1339). Although some indicia of control remained, the court concluded it only showed incidental control, insufficient to render Mr. Vega an employee (*id.* at 1339). To recap: the Commissioner, the Board and majority conclude that Mr. Vega’s slapdash week of activity made him Postmates’ employee; the ALJ and Third Department concluded, as do I, that it did not.⁴ What accounts for that disagreement? The failure of our precedent to keep up with the times.

II.

“Any employer shall become liable for contributions under [article 18, the Unemployment Insurance Law] if [it] has paid remuneration of three hundred dollars or more in any calendar quarter” (Labor Law § 560 [1]). “Remuneration” in this part of the Labor Law means “every form of compensation for employment paid by an employer to his employee” (Labor Law § 517 [1]) and “employment” is defined as “any service under any contract of employment for hire, express or implied, written, or

4. At oral argument, counsel for the Board had difficulty pinpointing when Mr. Vega became an employee of Postmates, eventually settling for the moment he made his first Postmates delivery.

oral” (Labor Law § 511 [1] [a]), subject to many additions not relevant here.⁵ Thus, Postmates’ obligation to pay unemployment insurance contributions for Mr. Vega turns on whether its agreement with him was “a contract of employment for hire.” That definition of “employment” is circular, so we have interpreted it to apply what is described as the “common-law test” of employee status (*Matter of Morton*, 284 NY 167, 173 [1940], *cf. Community for Creative Non-Violence v Reid*, 490 US 730, 740 [1989]), often described as the “control test,” when determining liability for unemployment insurance payments.⁶

Under the control test of employee status, “the critical inquiry in determining whether an employment relationship exists pertains to the degree of control exercised by the purported employer over the results produced or the means used to achieve the results” (*Bynog v Cipriani Group*, 1 NY3d 193, 198 [2003]). We further explained that “control over the means is the more important factor to be considered,” and distinguished “incidental control over the results produced without further indicia of control over the means employed to achieve the results” from other forms of control that would evince an employment relationship (*Matter of Ted Is Back Corp. [Roberts]*, 64 NY2d 725, 726 [1984]; *see Matter of Hertz Corp. [Commissioner of Labor]*, 2 NY3d 733, 735 [2004]). However, that means-ends test coexists uneasily with a separate test, the “overall control” test, where “substantial evidence of control over important aspects of the services performed other than results or means is sufficient to establish an employer-employee relationship” (*Matter of Empire State Towing & Recovery Assn., Inc. [Commissioner of Labor]*, 15 NY3d 433, 437-438 [2010])

5. I note that “employment” under article 18 expressly includes “any service by a person for an employer . . . as an agent-driver or commission-driver engaged in distributing meat, vegetable, fruit, or bakery products; beverages other than milk; or laundry or dry-cleaning services” (Labor Law § 511 [1] [b] [1]), a definition that might arguably sweep in Mr. Vega if the record showed what he had delivered (or promised to deliver), but the parties do not direct any arguments to the possible application of this definition and accordingly I do not consider it.

6. Of course, the legislature may, for unemployment compensation purposes, adopt a different definition of “employee.” It has done so in other parts of the Labor Law, providing at Labor Law § 2 (7) that one is employed simply when one is “permitted or suffered to work” for an employer (*cf. Nationwide Mut. Ins. Co. v Darden*, 503 US 318, 326 [1992] [discussing similar language in the federal Fair Labor Standards Act]). However, that broader definition does not apply to the unemployment insurance article, which uses the definition discussed above (Labor Law § 510).

[internal quotation marks omitted]; *Matter of Concourse Ophthalmology Assoc. [Roberts]*, 60 NY2d 734, 736 [1983] [“The board’s determination is . . . supported by substantial evidence of control over important aspects of the services performed other than results or means”]). The “overall control” test is said to apply only “where the details of the work performed are difficult to control because of considerations such as professional and ethical responsibilities” (*Empire State Towing*, 15 NY3d at 437-438).

A.

Putting aside the clear lack of record support for a multitude of the factors relied on by the Department of Labor, the majority’s conceptual error in resolving this case (and, I suspect, a good deal of the confusion below on the application of the control test) stems from a lack of decisional clarity about what factors matter when and why. Every contractual relationship for the provision of services will involve some control—whether overall or over means-ends—being ceded to the service-provider and some control being held by the requestor. No sensible enterprise gives even an indisputably independent contractor complete control over the “results produced or the means used to achieve the results.” Imagine instructing a contractor to build a house, with no specification as to the size, layout, style or features to be included (ends) or a requirement that the contractor comply with local building laws (means). Absent a more defined legal standard it is unclear how much control the employer may have over an independent contractor before that contractor becomes an “employee,” or, for that matter, what makes control “incidental” as compared to non-incidental.⁷

Matters are especially unclear in the semi-professional world of the “overall control” test, which tells us only that sometimes control over “important aspects” other than ends or means matters. But even the means-ends test is no panacea. Means and ends are not perfectly polarized. Here, for example, Postmates allows its couriers to choose whatever method of delivery they wish, but had Mr. Vega opted to deliver by pogo stick, turning sushi into a poke bowl or burritos into taco salads, surely he would have been bounced from the app expeditiously.

7. We have never defined “incidental control.” Doing so might better allow us, even if we cannot reach consensus on what meets the substantial evidence standard, to determine when the facts are not supported by substantial evidence.

Postmates undoubtedly cares that its customers receive their dinners intact, but Postmates' concern for that end, or a ban on the means of pogo stick deliveries, does not address the question of control for employment purposes. Both the means (no pogo) and ends (no mush) would be required whether the delivery person was an independent contractor or an employee.

Because "control" standing alone is relatively unhelpful, we have responded by creating a multifactor analysis where no one factor is determinative and where, as the majority correctly observes, "no enumerated list of factors can apply to every situation faced by a worker" (majority op at 137). The Supreme Court of the United States, reviewing a similar proliferation of factors, noted dryly that "the traditional agency law criteria offer no paradigm of determinacy" (*Nationwide Mut. Ins. Co. v Darden*, 503 US 318, 327 [1992]). This approach has given us a hash of factors that may be held more or less probative to the "control" determination depending on who is performing the analysis; indeed, in the briefing on this case, the parties point to more than 20 factors, each supported by one or more of our cases, none of which overruled the other, all of which are claimed to bear on the control analysis. Yet without providing guidance as to which factors ought to be weighed, and how weighed, and when weighed—without providing some precision and clarity as to what the factors are meant to support—the existing paradigm ends up giving the agency free rein to make whatever legal determinations it pleases until, usually with little explanation, we reverse the Board's findings for want of "substantial evidence" in an opinion that usually wants for substantial explanation (*cf. Matter of Charles A. Field Delivery Serv. [Roberts]*, 66 NY2d 516, 517 [1985]).⁸

8. Of our opinions in the unemployment insurance cases since 1981, *Matter of Villa Maria Inst. of Music (Ross)* (54 NY2d 691 [1981]), *Matter of 12 Cornelia St. (Ross)* (56 NY2d 895 [1982]), *Matter of Concourse Ophthalmology Assoc. (Roberts)* (60 NY2d 734 [1983]), *Matter of Ted Is Back Corp. (Roberts)* (64 NY2d 725 [1984]), *Matter of Rivera (State Line Delivery Serv.—Roberts)* (69 NY2d 679 [1986]), *Matter of Salamanca Nursing Home (Roberts)* (68 NY2d 901, 903 [1986]), *Matter of Hertz Corp. (Commissioner of Labor)* (2 NY3d 733 [2004]), and *Matter of Yoga Vida NYC, Inc. (Commissioner of Labor)* (28 NY3d 1013 [2016]) were all summary, memoranda judgments. We have treated this question in a full opinion only in *Matter of Charles A. Field Delivery Serv. (Roberts)* (66 NY2d 516 [1985]) and *Matter of Empire State Towing & Recovery Assn., Inc. (Commissioner of Labor)* (15 NY3d 433 [2010]). The profusion of summary memoranda in this area underscores the incoher-

B.

Our inconsistent, summary precedent makes it nearly impossible to arrive at a decision in this case that seems in perfect harmony with what has come before. Reading today's decision, one might think that, in the future, the Board's employment-status determinations will unfailingly be affirmed on the grounds of substantial evidence. Instead, today's decision is just one more bounce of the ball in the opposite direction whence it came.

In *12 Cornelia St.* (56 NY2d 895, 897 [1982]), a memorandum opinion, we held that the Unemployment Insurance Appeal Board's determination that real estate salespersons were employees was not supported by substantial evidence, because that "determination . . . must rest upon evidence that [the company] exercises control over the results produced by its salespersons or the means used to achieve the results"—and "such control [wa]s lacking" where the salespersons: (1) were paid commissions; (2) worked whatever hours they chose; (3) were free to engage in outside employment; (4) bore their own expenses; (5) were not required to attend meetings or trainings; (6) paid their own premiums for health insurance; and, (7) found their own leads. Those salespeople were independent contractors even though the real estate corporation supplied them with business cards, held regular sales meetings, and provided them with workers' compensation (*Matter of 12 Cornelia St. [Ross]*, 83 AD2d 681, 682 [3d Dept 1981]). Mr. Vega—like the salespeople—was paid by commission (he received a percentage of the fee charged to the customer by Postmates for each delivery, which fee varied by distance), worked whatever hours he chose, was free to engage in outside employment, bore his own expenses, was provided no health insurance, and was not required to attend meetings or trainings (other than one initial meeting on how to use the app). Yet, despite the "evidence in the record that would have supported a contrary conclusion" (majority op at 136, citing *Concourse Ophthalmology*, 60 NY2d 734 [1983]), in *12 Cornelia St.*, we reversed the Board's determination as not supported by substantial evidence.

In *Concourse Ophthalmology* (60 NY2d at 736-737), another memorandum decision, we upheld the Board's determination

ence of the conventional test for independent contractor/employee status when applied to an evolving economy that encompasses new styles of working.

that doctors were employees, laying stress on the alleged employer's control of: (1) employee schedules; (2) the place of employment; (3) the appointment-making process; (4) the fee schedule; (5) ownership of key equipment; (6) administration of bills; and, (7) allocation of record-keeping responsibilities, even though the purported employer did not control the "results or means" of the doctors' work. However, those doctors maintained their own malpractice insurance, operated substantial outside practices, and "functioned completely autonomously" (*Matter of Concourse Ophthalmology Assoc. [Roberts]*, 89 AD2d 1047, 1048 [3d Dept 1982, Levine, J., dissenting]). We did not dispute the putative employer's contention that "the record is devoid of evidence of control over results or means" (60 NY2d at 736). Instead, we brushed the means-ends test aside because "professional services do not lend themselves to such control" (*id.*). Thus, we affirmed the Board's decision on the grounds that substantial evidence existed in the record. Following that precedent, then, where the factors cut in different directions, the Board may have had "substantial evidence" for its determination here, because Postmates controlled the delivery-assignment process, the fee schedule, administration of bills and allocation of record-keeping responsibilities, even though the first two factors we cited in *Concourse Ophthalmology* (regular work schedule and employer determination of place of work) cut against finding Mr. Vega an employee.

In yet another memorandum, we reversed the Board's decision that salespeople for an aluminum siding installation company were employees, holding that decision was not supported by substantial evidence (*Ted Is Back*, 64 NY2d at 726; see also *Matter of Ted Is Back Corp. [Roberts]*, 103 AD2d 932, 932 [3d Dept 1984]). We held that "incidental control over the results produced without further indicia of control over the means employed to achieve the results will not constitute substantial evidence of an employer-employee relationship" (*Ted Is Back*, 64 NY2d at 726). That "incidental control" included the corporation's supply of form contracts and its retained right to approve contracts (*id.*). That the salespeople were "agents" of the company was not "decisive, for this is equally true where salespeople are determined to be independent contractors" (*id.*). The Court cited factors including that the salespeople: (1) worked at their own convenience; (2) were free to hold outside employment; (3) were not limited to a particular territory; and, (4) were paid on commissions. Applying

that analysis to this case, we would affirm the order of the Appellate Division that the Board lacked substantial evidence for its determination because each of the above factors from *Ted Is Back* applies to Mr. Vega; that “incidental control” is insufficient, as a matter of law, to deem Mr. Vega an employee.

We yet again reversed the decision of the Board that a salesperson was an employee, on the ground that substantial evidence did not support its determination in *Hertz* (2 NY3d 733). There, the claimant was a salesperson for Hertz: she visited travel agencies to promote Hertz’s products by making presentations and distributing sales materials (*id.* at 734-735). She was compensated per-visit, was not required to attend meetings, and had minimal supervision (*id.* at 735). On the other hand, Hertz told her what to wear during her visits, instructed her on what products to promote, barred her from promoting competing products, and instructed her on how to present Hertz products (*id.*). Despite those factors, which could have supported the Board’s determination under the substantial evidence standard, we said that she was not an employee as a matter of law, because Hertz exerted merely “[i]ncidental control” (*id.*). Mr. Vega was compensated per delivery; the Hertz salesperson per visit. Mr. Vega was told where and what to pick up and deliver, just as the Hertz representative was told what products to promote. Neither was supervised; neither had to attend meetings. But Mr. Vega was not prohibited from delivering for competing services even while engaged in a Postmates delivery and could wear whatever he liked. *Hertz* would lead one to conclude that the order of the Appellate Division must be affirmed here because the factors determining Mr. Vega’s status point more strongly to independent contractor than the factors on which we reversed the Board’s determination in *Hertz*.

Our most recent decision in this area, also a memorandum, is *Yoga Vida*. There, as here, the Department of Labor initially determined Yoga Vida was liable for unemployment insurance for its non-staff yoga instructors; as here, an ALJ overruled that determination; next, the Unemployment Insurance Appeal Board reversed the ALJ’s decision, sustaining the Department’s initial determination (*Yoga Vida*, 28 NY3d at 1015). The Appellate Division sustained the Board’s determination that the non-staff yoga instructors were employees. We reversed, holding the Board’s determination was not supported by substantial evidence because the non-staff instructors made their own

schedules, were paid only if students attended their classes, could work for competitors, and were not required to attend meetings or trainings (*id.*).⁹ Each of those factors—which are the factors that justified our reversal as a matter of law—is true as to Mr. Vega: Mr. Vega made his own schedule, was paid only for deliveries he made, could work and perform deliveries for other companies even while making deliveries for Postmates, and was not required to attend meetings or trainings. Moreover, Mr. Vega did not have to work on a prearranged schedule; the non-staff instructors did. Mr. Vega did not have to work at his employer’s place of business; the non-staff instructors did. In *Yoga Vida*, we emphasized that Yoga Vida’s determination and collection of the fees that the non-staff instructors received did “not supply sufficient indicia of control” (*id.* at 1016). So too, Postmates’ control over the fees Mr. Vega received should be insufficient to support an employer-employee relationship.¹⁰ That the outcome today is the diametric opposite of the outcome arrived at just three years ago in *Yoga Vida*, an outcome that the majority contends was reached by the same standard as applied here (majority op at 139), shows just how inconstant our “test” has become.

The facts surrounding Mr. Vega’s six-day adventure as a courier neatly fit into the exertion of mere “incidental control,” which does not provide substantial evidence for a Board’s de-

9. The majority’s claim that our decision in *Yoga Vida* “reaffirmed” the substantial evidence standard (majority op at 139) illustrates the amorphousness of that standard when applied in the unemployment insurance context. For example, even though “Yoga Vida generally determines what fee is charged and collects the fee directly from the students . . . [that] does not supply sufficient indicia of control over the instructors” to constitute substantial evidence of employment (*Yoga Vida*, 28 NY3d at 1016). If the majority is reaffirming the standard we applied in *Yoga Vida*, that standard has become so elastic as to be whimsical.

10. The majority cites a few other distinctions between the non-staff yoga instructors and Mr. Vega, but those sound more different than they really are. The yoga instructors’ interest in maintaining a “customer following to be successful” is akin to the customer ratings Mr. Vega needed to remain successful on the Postmates app (majority op at 139). Likewise, the ability of the yoga instructors to affect their compensation to some degree by choosing hourly compensation or a percentage of class fees corresponds to Mr. Vega’s ability to affect his compensation by taking, e.g., high dollar volume jobs or short-haul jobs that he could consolidate and deliver simultaneously. Indeed, Mr. Vega had more control of his compensation than did the yoga instructors, inasmuch as he could accept a job, immediately see the compensation he would receive from it, and reject it if it was not to his liking. There is nothing to suggest the yoga instructors could decline to teach a class or switch from percentage to hourly compensation if only two customers appeared for class.

termination of employee status (see e.g. *Ted Is Back*, 64 NY2d at 726). Mr. Vega retained more than just “some independence to choose [his] work schedule and delivery route” (majority op at 138)—he had complete control over his schedule, the hours he logged on, the jobs he accepted or rejected (or rejected even after accepting them), and the routes he took when, having accepted a job, he actually made the promised delivery. Nor does Mr. Vega need to have actual control over “the service Postmates provides its customers” (majority op at 138 [emphasis added]), for that is not the test. The control test applies only to the company’s control over the worker’s labor; the worker need not have control over, or anything to do with, the service provided by the company. Our precedent may not be consistent, and it certainly makes it difficult for litigants and lower courts to apply the control test, but at least it provides this answer: Mr. Vega is far more an “independent contractor” than the real estate salespeople given business cards by their company in *12 Cornelia St.*, the product promoter who was told what to wear and how to present in *Hertz*, or the yoga instructors told when, where and what to teach in *Yoga Vida*.

III.

The overarching problem in our control test jurisprudence is exemplified by Mr. Vega’s case. The parties here attempt to rely on two dozen different factors, all of which derive from previous Court of Appeals’ decisions and all of which we have suggested may have some bearing on the control analysis. However, those factors fail to aid us in this decision. Factors that seem in some of our cases to provide support for the determination of an employer-employee relationship do not always do so (compare *Concourse Ophthalmology*, 60 NY2d at 736 [where the company collected and determined fees, supporting the decision that ophthalmologists were employees], with *Yoga Vida*, 28 NY3d at 1017 [Fahey, J., dissenting] [where Yoga Vida collected and fixed the fees of the non-staff instructors, but substantial evidence did not support the Board’s decision that the non-staff instructors were employees]),¹¹ whereas factors that we previously identified as showing merely incidental control insufficient to establish an employment relationship, such as setting one’s own schedule, the ability to work for other

11. Judge Rivera’s concurring observation that *Yoga Vida* was wrongly decided further emphasizes the incoherence of our decisional law in this area.

companies, and being paid on commission (*see e.g. Ted Is Back*, 64 NY2d at 726) are today eschewed by the majority.

It is no surprise, then, that reading the procedural history of this case or our prior decisions feels like watching a ping-pong match: no one, not even this Court, knows which combinations of factors are determinative and which are not. We have held that no one factor is determinative (*Concourse Ophthalmology*, 60 NY2d at 736), and the majority emphasizes the formlessness of our jurisprudence by observing that “no enumerated list of factors can apply to every situation faced by a worker” (majority op at 137). At the same time, the majority adds a new factor to the list: “the nature of the work” (*id.*). It wields that new factor based on unsupported judgments, contrasting couriers as “low-paid workers performing unskilled labor who possess limited discretion over how to do their jobs” (*id.* at 138), with yoga instructors who perform work that “is not comparable to that of a delivery person,” because a yoga instructor provides a “service . . . unique to that of the instructor and his or her personal characteristics” (*id.* at 139). We have never before mentioned the “nature of the work” in the employment context, let alone held that factor determinative in such cases.¹²

In any event, adding that factor to our litany makes no sense. The purpose of the control test, and even the variegated factor analysis, is to prevent the overreliance on the *kind* of work in the determination of employment status. Forcing that factor into the control test provides the opportunity for every courier—regardless of any analysis of the factors or the degree of control exerted over them—to be an employee because of the nature of delivery work: if Mr. Vega is an employee, so is everyone who delivers a tangible good. Had the “nature of work” been determinative in *Yoga Vida*, non-staff yoga instructors and staff instructors alike would need to have been deemed employees. Instead, however, this Court held that substantial evidence did not support the Board’s determination that non-

12. Although the majority points to no prior precedent of ours listing “nature of the work” among the factors to be considered, we are advised that because “indicia of control will vary depending on the nature of the work,” it is “obvious” that nature of the work should be included in the list of factors (majority op at 137 n 4, 139). I do not think it “obvious”—one way or the other—that differences in the work of ophthalmologists and aluminum siding salespeople tend to make the former more controllable than the latter, or that our determination that the former were employees and the latter independent contractors had anything to do with the intrinsic nature of their occupations.

staff yoga instructors were employees by relying on dissimilarities—having nothing to do with the nature of the work—between the non-staff instructors and the staff instructors (*Yoga Vida*, 28 NY3d at 1015). If the nature of the work holds as much importance as the majority declares it does today, the dissimilarities between the non-staff and staff instructors would have been irrelevant.

For that reason, the majority's reliance on *Matter of Rivera* (*State Line Delivery Serv.—Roberts*) (69 NY2d 679 [1986]), is misplaced. Simply because the employees at issue in *Rivera* were delivery persons does not make that case “indistinguishable” (majority op at 139). Although similar in many respects, there are several notable differences: Mr. Vega could accept a delivery assignment and then later change his mind at any time, even after a customer had been told that Mr. Vega would deliver it, whereas there is no indication that the *Rivera* couriers could turn back a delivery assignment after accepting it; Mr. Vega was not given a time limit for completing deliveries, whereas the *Rivera* couriers were; Mr. Vega was free to choose any means of transportation he wished (which he could vary at will with no need to inform Postmates), whereas *Rivera* required its couriers to use motor vehicles and to purchase both ordinary insurance as well as special cargo insurance for their vehicles (*Matter of Rivera* [*State Line Delivery Serv.—Roberts*], 120 AD2d 852, 854 [3d Dept 1986]).

The addition of a new factor to the control test illustrates the most concerning aspect of our ever-changing employment determination decisions. Because the test depends on innumerable factors, which vary from case to case and opinion to opinion, and we review the Board's determinations for substantial evidence, the Board is given unbounded discretion. We will never be able adequately to review their determinations because they will always rely on factors that we—at one point or another—have sanctified. “Substantial evidence” review of a smorgasbord of flavorless factors authorizes unrestrained agency decision-making.

Without regular examination, modification and explication of our common law, common-law tests risk falling into incoherence or vagueness. In the broader sense, this case implicates many factors upon which our Court and the Appellate Division have relied to reverse an agency determination as “unsupported by substantial evidence” because the courts have concluded that the facts relied on by the agency do not really

speak to the ultimate issue of control (see e.g. *Empire State Towing*, 15 NY3d at 437; *12 Cornelia St.*, 56 NY2d at 897-898; *Ted Is Back*, 64 NY2d at 726; *Hertz*, 2 NY3d at 735; *Yoga Vida*, 28 NY3d at 1015-1016). Our several prior reversals of the Board's decisions, though offering that "the determination of the appeal board, if supported by substantial evidence on the record as a whole, is beyond further judicial review even though there is evidence in the record that would have supported a contrary decision" (*Empire State Towing*, 15 NY3d at 437), are best understood as reflecting our recognition that we cannot allow the deferential standard of review to shield the Board from all review, even if the Board has relied exclusively on factors we have deemed relevant in determining who is an employee. Of course, the most important concern for us is to ensure that the law is clear and consistent as to what employers, workers and the lower courts must consider in forming and evaluating work relationships. Our terse memorandum decisions do not serve that purpose.

We need a clear understanding, comprehending the modern realities of our rapidly evolving economy, of who should be an employee and who an independent contractor, including whether work relationships should continue to be measured on that dichotomy. It is past time for the law to reexamine the definition of work and its application to different forms of entitlement and obligation. Our current framework, as inconsistently applied, fails to provide clarity to anyone involved. The agencies tasked with applying our cases and the courts that attempt to review those decisions for substantial evidence oscillate in result and rationale. The common-law test for status as an employee developed in a vastly different time, when employment was monotonic. Now, it is cacophonous. The number of workers performing multiple or alternative jobs has grown dramatically. New technology and the rise of the sharing economy have driven further changes, including the crowdsourcing of flexible and low-barrier-to-entry jobs upon which many workers are less reliant than our traditional notion of career employees. The challenge is how to apply our inconsistent common-law test in a world where work looks much different than it did when that test was developed and where we cannot, if we hold true to the deferential standard of review, reverse an agency determination so long as it has relied on some of the factors we have identified as relevant.

The stakes are high. As the California Supreme Court, confronting a similar question, phrased the matter (*Dynamex*

Operations W. v Superior Ct., 4 Cal 5th 903, 912-913, 416 P3d 1, 4-5 [2018, Cantil-Sakauye, Ch. J.]

“On the one hand, if a worker should properly be classified as an employee, the hiring business bears the responsibility of paying federal Social Security and payroll taxes, unemployment insurance taxes and state employment taxes, providing worker’s compensation insurance, and, most relevant for the present case, complying with numerous state and federal statutes and regulations governing the wages, hours, and working conditions of employees. The worker then obtains the protection of the applicable labor laws and regulations. On the other hand, if a worker should properly be classified as an independent contractor, the business does not bear any of those costs or responsibilities, the worker obtains none of the numerous labor law benefits, and the public may be required under applicable laws to assume additional financial burdens with respect to such workers and their families.

“Although in some circumstances classification as an independent contractor may be advantageous to workers as well as to businesses, the risk that workers who should be treated as employees may be improperly misclassified as independent contractors is significant in light of the potentially substantial economic incentives that a business may have in mischaracterizing some workers as independent contractors. Such incentives include the unfair competitive advantage the business may obtain over competitors that properly classify similar workers as employees and that thereby assume the fiscal and other responsibilities and burdens that an employer owes to its employees. In recent years, the relevant regulatory agencies of both the federal and state governments have declared that the misclassification of workers as independent contractors rather than employees is a very serious problem, depriving federal and state governments of billions of dollars in tax revenue and millions of workers of

the labor law protections to which they are entitled.”¹³

Although it is well within the purview of the courts to alter a common-law test, that is best done incrementally; the complete overhaul of our common-law employment test to adapt it to the present and future economy is not a task to which courts are well suited.¹⁴ Whether, to what degree, and on what basis we wish to provide unemployment benefits to Postmates couriers generally, or to other workers in the gig economy, is a policy question best left to the legislature. Whether the test for that entitlement should be the same as the test for Postmates’ liability if a courier, speeding on an electrified bicycle to make a timely delivery of a hot dinner, injures a pedestrian, is also a question best suited to legislative determination. The role of the courts is to interpret the law and to clarify it when we can. The accumulation of indecisive, unweighted factors articulated in our past cases, scrutinized under our highly deferential standard of review, typically produces either a de facto lack of review or an uninformative summary reversal. The resulting body of law is difficult to reconcile and does little to advise agencies and lower courts (to say nothing of business enterprises or workers) how any particular work relationship will or should be adjudicated. Today’s decision places further stress on that test through its contradiction of our recent decision in *Yoga Vida* and its incompatibility with several others in which

13. See also New York State Department of Labor, *Annual Report of the Joint Enforcement Task Force on Employee Misclassification* (Feb. 1, 2015), <https://www.labor.ny.gov/agencyinfo/PDFs/Misclassification-Task-Force-Report-2-1-2015.pdf> (discussing at length the effect of employee misclassification on New York State in particular); Sarah Jeong, *Strike All You Want. Uber Won’t Pay a Living Wage*, NY Times, May 10, 2019, available at <https://www.nytimes.com/2019/05/10/opinion/uber-ipo.html> (discussing studies showing that in New York City, about half of ride-hailing drivers are supporting families with children, but earn so little that 40% of those drivers qualify for Medicaid and another 18% qualify for food stamps); Noam Scheiber, *Is Gig Work a Job? Uber and Others are Maneuvering to Shape the Answer*, NY Times, Mar. 26, 2019, available at <https://www.nytimes.com/2019/03/26/business/economy/gig-economy-lobbying.html> (discussing the “highly disruptive” effect of proposals to classify large numbers of gig workers as employees).

14. Our call for a new test need not be preserved (majority op at 137 n 3). In fact, because the employment test is one created by the courts, it is our job to change it if necessary—regardless of if the parties call for it. However, it is the role of the legislature to make policy; here, where the majority’s holding overturns a decision of this Court from just three years prior, it is clear we are in sore need of legislative decision-making, not solely judicial re-interpretation.

we found the Board lacked substantial evidence in circumstances less compelling than this. Nevertheless, until the legislature steps in, we have an obligation to do our best to reach consistent results so that both businesses and workers can structure their affairs with a sound understanding of when the benefits and obligations of “employment” are imposed or conferred upon them. Whether other Postmates couriers are employees is not before us. Mr. Vega’s case is, and he is not.

Judges STEIN, FAHEY and FEINMAN concur; Judge RIVERA concurs in result in an opinion; Judge WILSON dissents and votes to affirm in an opinion in which Judge GARCIA concurs.

Order reversed, with costs, and decision of the Unemployment Insurance Appeal Board reinstated.

[149 NE3d 888, 126 NYS3d 50]

BILL BIRDS, INC., et al., Appellants, v STEIN LAW FIRM, P.C., et al., Respondents.

Argued February 13, 2020; decided March 31, 2020

SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered August 15, 2018. The Appellate Division (1) reversed, on the law, insofar as appealed from, so much of an order of the Supreme Court, Queens County (Timothy J. Dufficy, J.), as had denied that branch of defendants' motion which was for summary judgment dismissing the cause of action alleging a violation of Judiciary Law § 487; and (2) granted that branch of defendants' motion which was for summary judgment dismissing the cause of action alleging a violation of Judiciary Law § 487.

Bill Birds, Inc. v Stein Law Firm, P.C., 164 AD3d 635, affirmed.

HEADNOTE

Attorney and Client — Misconduct by Attorney — Inducing Client to Bring Meritless Lawsuit — Intentional Deceit or Collusion

Defendant, an attorney and his law firm, were entitled to summary judgment dismissing plaintiffs' claim that defendants induced them to bring a meritless federal trademark action and concealed its dismissal for approximately nine months in order to generate a legal fee, where plaintiffs failed to allege that defendants engaged in deceit or collusion during the course of the underlying lawsuit as required by Judiciary Law § 487 (1). Under the statute, an attorney "who . . . [i]s guilty of any deceit or collusion, or consents to any deceit or collusion, with intent to deceive the court or any party" is guilty of a misdemeanor and may be liable for damages in a civil action. Liability does not depend on whether the court or party to whom the statement is made is actually misled by the attorney's intentional false statement. Given the requirement that the conduct involve "deceit or collusion" and be intentional, liability under the statute does not extend to negligent acts or conduct that constitutes only legal malpractice, evincing a lack of professional competency. The statute does not encompass the filing of a pleading or brief containing nonmeritorious legal arguments, as such statements cannot support a claim under the statute. Similarly, even assuming it constituted deceit or collusion, defendants' alleged months-long delay in informing plaintiffs that their federal lawsuit had been dismissed occurred after the litigation had ended and therefore fell outside the scope of Judiciary Law § 487 (1).

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d Attorneys at Law §§ 196, 198.

CARMODY-WAIT 2d Officers of Court §§ 3:221, 3:222.

McKINNEY'S, Judiciary Law § 487 (1).

NY JUR 2d Attorneys at Law §§ 353–355.

ANNOTATION REFERENCE

See ALR Index under Attorneys.

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Query: attorney /4 deceit /p “summary judgment”

POINTS OF COUNSEL

Thomas Torto, New York City, for appellants. The factual allegations that defendants falsely represented to plaintiffs that they had a meritorious action when they knew that the case was without merit, in order to fraudulently induce plaintiffs to retain their services and pay legal fees, states a cause of action under Judiciary Law § 487. (*Amalfitano v Rosenberg*, 533 F3d 117; *Gumarova v Law Offs. of Paul A. Boronow, P.C.*, 129 AD3d 911; *Rock City Sound, Inc. v Bashian & Farber, LLP*, 74 AD3d 1168; *Gorbatov v Tsirelman*, 155 AD3d 836; *Armstrong v Blank Rome LLP*, 126 AD3d 427; *Sargiss v Magarelli*, 12 NY3d 527; *Pludeman v Northern Leasing Sys., Inc.*, 10 NY3d 486; *Leon v Martinez*, 84 NY2d 83; *Friedman v Connecticut Gen. Life Ins. Co.*, 30 AD3d 349, 9 NY3d 105; *Tenzer*; *Greenblatt, Fallon & Kaplan v Capri Jewelry*, 128 AD2d 467.)

L'Abbate, Balkan, Colavita & Contini, L.L.P., Garden City (*James D. Spithogiannis* and *Amy M. Monahan* of counsel), for respondents. I. Plaintiffs have not presented a question of law to be reviewed. II. The Appellate Division, Second Department, correctly held that plaintiffs failed to state a cause of action for a violation of Judiciary Law § 487. (*Ray v Watnick*, 182 F Supp 3d 23; *Facebook, Inc. v DLA Piper LLP [US]*, 134 AD3d 610; *Chowaiki & Co. Fine Art Ltd. v Lacher*, 115 AD3d 600, *Amalfitano v Rosenberg*, 12 NY3d 8; *Putnam County Temple & Jewish Ctr., Inc. v Rhinebeck Sav. Bank*, 87 AD3d 1118; *Alliance Network, LLC v Sidley Austin LLP*, 43 Misc 3d 848; *Briarpatch Ltd., L.P. v Frankfurt Garbus Klein & Selz, P.C.*, 13 AD3d 296, 4 NY3d 707; *Agostini v Sobol*, 304 AD2d 395; *Doscher v Mannatt, Phelps & Phillips, LLP*, 148 AD3d 523; *Rice v City of New York*, 275 F Supp 3d 395.)

Anita Bernstein, Brooklyn, amicus curiae pro se. I. Because

judge-added criteria for relief under Judiciary Law § 487 misread the statute and have confounded the courts of New York, they should be jettisoned in favor of the statute's plain meaning. (*Amalfitano v Rosenberg*, 12 NY3d 8; *Mestecky v City of New York*, 30 NY3d 239; *Tall Trees Constr. Corp. v Zoning Bd. of Appeals of Town of Huntington*, 97 NY2d 86; *Daimler-Chrysler Corp. v Spitzer*, 7 NY3d 653; *Makinen v City of New York*, 30 NY3d 81; *Wiggin v Gordon*, 115 Misc 2d 1071; *Shawe v Elting*, 161 AD3d 585; *Facebook, Inc. v DLA Piper LLP [US]*, 134 AD3d 610, 28 NY3d 903; *Gelwan v Youni Gems Corp.*, 151 AD3d 638; *Kaminsky v Herrick, Feinstein LLP*, 59 AD3d 1.) II. Judges need not worry that the capacious language of Judiciary Law § 487 makes attorneys too vulnerable to groundless claims, because the CPLR and the Court of Appeals' jurisprudence address this concern effectively. (*Ray v Watnick*, 182 F Supp 3d 23; *Pludeman v Northern Leasing Sys.*, 10 NY3d 486; *Sargiss v Magarelli*, 12 NY3d 527; *Facebook, Inc. v DLA Piper LLP [US]*, 134 AD3d 610, 28 NY3d 903; *Armstrong v Blank Rome LLP*, 126 AD3d 427; *Betz v Blatt*, 160 AD3d 689.)

Andrew Lavooott Bluestone, New York City, amicus curiae pro se. I. A court's task is to apply the words of the statute to the facts. (*People v Roberts*, 31 NY3d 406; *People v Robinson*, 95 NY2d 179; *In re Amed Dept. Stores, Inc.*, 582 F3d 422; *WNET v Aereo, Inc.*, 871 F Supp 2d 281; *Louis Vuitton Malletier S.A. v LY USA, Inc.*, 676 F3d 83.) II. The Appellate Division, First and Second Departments, are in conflict over the elements of Judiciary Law § 487.

Jeffrey A. Jannuzzo, New York City, amicus curiae pro se. I. Because of *Amalfitano v Rosenberg* (12 NY3d 8 [2009]), any case law disallowing claims for deceitfully inducing a party to bring a lawsuit are no longer good law. (*Tawil v Wasser*, 21 AD3d 948; *Henry v Brenner*, 271 AD2d 647; *Mahler v Campagna*, 60 AD3d 1009; *Gelmin v Quicke*, 224 AD2d 481; *Looff v Lawton*, 97 NY 478.) II. Case law has been cutting back on the mandate of *Amalfitano v Rosenberg* (12 NY3d 8 [2009]) and that is not a good idea. (*Guardian Life Ins. Co. of Am. v Handel*, 190 AD2d 57; *New York City Tr. Auth. v Morris J. Eisen, P.C.*, 276 AD2d 78; *Melcher v Greenberg Traurig, LLP*, 102 AD3d 497, 23 NY3d 10; *Facebook, Inc. v DLA Piper LLP [US]*, 134 AD3d 610, 28 NY3d 903; *Zimmerman v Kohn*, 125 AD3d 413, 25 NY3d 907.)

OPINION OF THE COURT

Chief Judge DiFiore.

The singular issue before us in this appeal is whether the Appellate Division erred in dismissing plaintiffs' claim under Judiciary Law § 487 (1) against their former attorneys who allegedly induced them to bring a meritless lawsuit in order to generate a legal fee. Defendants met their initial burden on summary judgment with respect to whether their alleged deceit occurred during the pendency of litigation, and plaintiffs failed to raise a triable issue of fact on that issue in response. We therefore affirm the Appellate Division order granting summary judgment dismissing the complaint.

Defendants, attorney Mitchell Stein and his law firm, Stein Law, P.C., represented plaintiffs Bill Birds, Inc., which manufactures decorative metal automobile parts, and its president in a trademark dispute against General Motors, Service Parts Operation (GM) and Equity Management, Inc. (EMI). After the complaint in that action was dismissed, plaintiffs commenced this action against defendants alleging, as relevant here, a violation of Judiciary Law § 487 (1).¹

Plaintiffs alleged that defendants advised them that GM had possibly abandoned the trademarks GM had licensed to plaintiffs for over a decade, advising plaintiffs that they had meritorious claims against GM. Based on this advice, plaintiffs commenced the underlying federal trademark action against GM and EMI in the United States District Court for the Eastern District of New York, incurring \$25,000 in attorney fees. Plaintiffs alleged that the underlying action—which was dismissed as commenced in an improper venue based on a forum selection clause in plaintiffs' licensing agreements with GM—clearly lacked merit, in part because a provision in the licensing agreement prohibited plaintiffs from challenging GM's ownership of the relevant intellectual property. Plaintiffs further alleged that defendants concealed the dismissal of the underlying action for approximately nine months and subsequently lied about the reason for the delay, claiming that the federal court did not release its decision promptly.

1. Plaintiffs also asserted legal malpractice, breach of contract and fraud claims. Among other allegations, on their legal malpractice cause of action plaintiffs alleged that their claims against GM were meritorious but that defendants negligently failed to prosecute them properly. Those claims were dismissed by Supreme Court on defendants' summary judgment motion, and plaintiffs did not appeal that dismissal to the Appellate Division. The dismissal of those claims therefore is not before us on this appeal.

After answering the complaint, defendants moved for summary judgment, arguing, among other things, that the Judiciary Law § 487 claim must be dismissed because plaintiffs failed to allege any misrepresentations made in the context of ongoing litigation. Plaintiffs opposed the motion, submitting affidavits alleging essentially the same conduct described in the complaint. In addition, plaintiffs submitted an expert affidavit from an attorney who averred that defendants' legal advice regarding GM's rights to the licensed trademarks was incorrect and that defendants induced plaintiffs into litigation under "false pretenses."

Supreme Court granted defendants' motion for summary judgment in part, dismissing the legal malpractice, breach of contract and fraud claims, but denied the motion with respect to the section 487 claim, concluding that plaintiffs' expert affidavit raised triable issues of fact. Defendants appealed from so much of the order of Supreme Court that denied summary judgment on the section 487 claim, and the Appellate Division reversed, insofar as appealed from by defendants, and granted defendants summary judgment on that claim, dismissing the complaint in its entirety (164 AD3d 635 [2d Dept 2018]). The Court reasoned, inter alia, that plaintiffs failed to allege that defendants intended to deceive the court or any party, as required by the statute. This Court granted plaintiffs' motion for leave to appeal (32 NY3d 913 [2019]).

Under Judiciary Law § 487 (1), an attorney "who . . . [i]s guilty of any deceit or collusion, or consents to any deceit or collusion, with intent to deceive the court or any party" is guilty of a misdemeanor and may be liable to the injured party for treble damages in a civil action. In our decisions in *Amalfitano v Rosenberg* (12 NY3d 8 [2009]) and *Melcher v Greenberg Traurig, LLP* (23 NY3d 10 [2014]), we examined the ancient origins of section 487, noting that the claim could be traced back to old English common law and was first codified in 1275 (*Amalfitano*, 12 NY3d at 12; *Melcher*, 23 NY3d at 14-15). The original statute made it a criminal offense for a "Pleader" to engage in "Deceit or Collusion in the King's Court" (*Amalfitano*, 12 NY3d at 12). The law was carried over to colonial New York and, as early as 1787, a New York statute similarly stated that any attorney guilty of deceit or collusion "in any court of justice" shall be punished (*id.*). "[V]irtually identical" language proscribing intentional deceit by attorneys was codified in both the civil and penal law in the 1800s, and subsequently transferred to the Judiciary Law in 1965 (*id.* at 12-14).

Similar to fraud, Judiciary Law § 487—covering intentional deceit and collusion—imposes liability for the making of false statements with scienter. But in light of the history of the statute, we concluded in *Amalfitano* that Judiciary Law § 487 is not a codification of common-law fraud and therefore does not require a showing of justifiable reliance (*id.* at 12, 14). In other words, liability under the statute does not depend on whether the court or party to whom the statement is made is actually misled by the attorney’s intentional false statement (*id.* at 14). Given the requirement that the conduct involve “deceit or collusion” and be intentional, liability under the statute does not extend to negligent acts or conduct that constitutes only legal malpractice, evincing a lack of professional competency. Indeed, because a violation of section 487 is a crime, we must be circumspect to ensure “that penal responsibility is not extended beyond the fair scope of the statutory mandate” (*People v Hedgeman*, 70 NY2d 533, 537 [1987] [internal quotation marks and citation omitted]).

In *Looff v Lawton*, this Court held, under a predecessor statute that employed substantially the same language now found in Judiciary Law § 487 (1), that allegations that an attorney provided “false and untrue” legal advice to induce plaintiffs to bring an unnecessary lawsuit, motivated solely by the attorney’s desire to collect a large fee, did not state a claim because the statute applied only to conduct that occurs in the context of “an action pending in a court”—not misleading advice preceding an action (97 NY 478, 480, 482 [1884]). We explained that, because the purported deceit occurred before the judicial action was commenced, “there was no court or party to be deceived within the meaning of the statute” (*id.* at 482). In contrast, the conduct underlying the claim in *Amalfitano*—the making of a false statement of fact in the complaint regarding the client’s partnership status in a family business (*see Amalfitano*, 12 NY3d at 11)—fell squarely within the scope of the statute because the misrepresentations at issue there were made in the context of an action pending in court.

As reflected in our decisions in *Looff* and *Amalfitano*, the purpose of Judiciary Law § 487 (1) is to safeguard an attorney’s special obligation of honesty and fair dealing in the course of litigation—a pillar of the profession. Our legal system depends on the integrity of attorneys who fulfill the role of officers of the court, furthering its truth-seeking function (*see Amalfitano*, 12 NY3d at 14). Thus,

“[t]he statute is limited to a peculiar class of citizens, from whom the law exacts a reasonable degree of skill, and the utmost good faith in the conduct and management of the business [e]ntrusted to them . . . To mislead *the court or a party* is to deceive it; and, if knowingly done, constitutes criminal deceit under the statute” (*id.* at 14 [emphasis added], quoting *Looff v Lawton*, 14 Hun 588, 590 [2d Dept 1878]).

Moreover, the language of the statute is aimed at a particular type of deceit or collusion—done by an attorney with the intent to mislead the court or a party (*see id.*; *Looff*, 97 NY at 482). While attorneys must zealously advocate for their clients, such deception or collusion is antithetical to appropriate advocacy, functioning as a fraud on the court or a party. Given the statute’s origins and purpose, it provides a particularized civil remedy, and criminal liability, for a specialized form of attorney misconduct occurring during the pendency of litigation (*see id.*).

Here, viewing the facts in the light most favorable to plaintiffs (*see De Lourdes Torres v Jones*, 26 NY3d 742, 763 [2016]), defendants established *prima facie* entitlement to judgment as a matter of law on the Judiciary Law § 487 (1) claim by demonstrating that plaintiffs failed to allege that defendants engaged in deceit or collusion during the course of the underlying federal intellectual property lawsuit against GM and EMI.² In response, plaintiffs failed to satisfy their burden to establish material, triable issues of fact (*id.*). The affidavits plaintiffs submitted in opposition to summary judgment did not allege that defendants committed any acts of deceit or collusion during the pendency of the underlying federal lawsuit. To the extent defendants were alleged to have made deceitful statements, plaintiffs’ allegation that defendants induced them to file a meritless lawsuit based on misleading legal advice preceding commencement of the lawsuit is not meaningfully distinguishable from the conduct we deemed insufficient to state

2. The dissent characterizes plaintiffs’ complaint in this action as claiming that “defendants made initial and continued false representations to the court about the legal and factual basis for the federal action” (dissenting op at 195). Plaintiffs made no such assertion. The complaint merely alleges that defendants made “false representations” to plaintiffs regarding their legal rights, which induced them to file suit. Plaintiffs neither alleged nor offered proof that defendants made “any fraudulent statement” to the court during the underlying intellectual property lawsuit (*id.* at 196).

a viable attorney deceit claim in *Looff* (97 NY at 482). The statute does not encompass the filing of a pleading or brief containing nonmeritorious legal arguments, as such statements cannot support a claim under the statute.³ Similarly, even assuming it constituted deceit or collusion, defendants' alleged months-long delay in informing plaintiffs that their federal lawsuit had been dismissed occurred after the litigation had ended and therefore falls outside the scope of Judiciary Law § 487 (1). Thus, plaintiffs' Judiciary Law § 487 cause of action was properly dismissed.

Accordingly, the order of the Appellate Division should be affirmed, with costs.

RIVERA, J. (dissenting). Plaintiffs allege that their attorney induced them to pursue a frivolous lawsuit for the sole purpose of charging them thousands of dollars in legal fees and with counsel's full knowledge ab initio that the claims were meritless. As our precedents establish, an attorney may be liable for common-law fraud against a client, but when the conduct includes deceit on the court or a party in a pending lawsuit, the attorney is separately guilty of a misdemeanor and liable for enhanced civil damages under Judiciary Law § 487 (see *Melcher v Greenberg Traurig, LLP*, 23 NY3d 10, 15 [2014]; see also Judiciary Law § 487). According to plaintiffs, their attorney intentionally, and without regard to the ultimate outcome for plaintiffs, perpetuated a charade on the court and them by filing and pursuing what the attorney knew all along was a meritless action—one doomed to fail—which caused plaintiffs to pay the attorney's unwarranted legal fees. I dissent because plaintiffs' cause of action for attorney deceit was improperly dismissed on summary judgment as they asserted a viable legal theory and there exist triable issues of fact as to whether the alleged deceit caused plaintiffs' any damages.

3. The dissent concludes that the statute extends to "an attorney's intentional filing of a frivolous lawsuit for the sole purpose of obtaining unwarranted legal fees" (dissenting op at 198). This conclusion is inconsistent with the statutory language and its legislative history. Judiciary Law § 487 (1) guards against false statements by lawyers during litigation, rising to the level of intentional deceit or collusion; it was not designed to curtail attorneys' expressions of views concerning what the law is or should be, nor does it include merely poor lawyering, negligent legal research or the giving of questionable legal advice. Other mechanisms are available to address the filing of frivolous lawsuits, among other attorney shortcomings, such as litigation sanctions, attorney misconduct proceedings and legal malpractice actions.

I.

Factual and Procedural History and the Parties' Arguments on
this Appeal

A. Plaintiffs Seek Legal Advice from Defendants

Plaintiffs are Bill Birds, Inc., a New York corporation that manufactures and distributes decorative metal automotive parts for antique autos, and its president and owner, William Pelinsky. In February 1995, under a licensing agreement with General Motors automobiles (GM), Pelinsky, then doing business as Bill Birds, acknowledged, amongst other things, GM's title to certain trademarks and manufacturing technology and agreed not to attack or impair GM's intellectual property rights.

After 11 years of renewing the agreement, Pelinsky became concerned that he was being treated unfairly by GM. He sought legal advice from defendant Mitchell A. Stein, principal of co-defendant Stein Law Firm, P.C., regarding Bill Birds' ownership of trademarks and copyrights ostensibly covered by the agreements. According to plaintiffs, defendants represented that they thoroughly researched this area of the law and concluded that GM did not own the rights licensed to Bill Birds. On the strength of this advice, plaintiffs chose not to renew the agreement with GM.

B. Defendants File a Federal Lawsuit on Plaintiffs' Behalf

Thereafter, GM, through its licensing manager, Equity Management, Inc. (EMI), threatened legal action to prevent plaintiffs' manufacture of the parts covered under the prior agreements. Based on defendants' legal advice that plaintiffs would prevail against GM because "plaintiffs had superior rights to the trade marks and copy[r]ights," plaintiffs retained defendants to litigate on their behalf against GM and EMI. Defendants filed an action in New York federal district court alleging fraud on the ground that GM knowingly misrepresented that it had registered trademarks so that Polinsky would enter the licensing agreements. By way of example, the complaint alleges,

"plaintiffs . . . paid a license fee and royalties, pursuant to various purported license agreements and term sheets, to defendants in order for plaintiff to use certain intellectual property defendants represented were owned by them, only to now find

out that defendants either did not own or have authority to license said intellectual property, or that said intellectual property does not exist or apply to the goods sold by plaintiffs. . . .

“[D]espite representing otherwise, defendants do not own valid rights for the vast majority of the products and marks included in the purported License Agreements for use with General Motors automobile emblems and/or trim.”

The federal complaint also alleged that GM’s false claims of ownership or merchandising rights to the trademarks, trade names, service marks, copyrights, and related items licensed to plaintiffs constituted a breach of the licensing agreements between the parties.

GM and EMI moved to dismiss, in part, under Federal Rules of Civil Procedure rule 12 (b) (3) for improper venue, based on the forum selection clause in the parties’ last two licensing agreements. The clause provides that “any court proceeding relating to any controversy arising under this AGREEMENT shall be in the state or federal courts located in Michigan.” Stein filed an affirmation and memorandum of law in opposition to the motion to dismiss, arguing that the licensing agreement, including the venue provision, was unenforceable because plaintiffs entered the agreement based on GM’s fraudulent misrepresentations. His affirmation states that the licensing agreements “*never* appear to represent and warrant that the licensor (defendants) have the rights to license or that there is any IP to license.” Stein further affirms that GM induced plaintiffs to enter into the licensing arrangement with GM by asserting ownership over certain intellectual property that “GM does not own.” Stein states, “had plaintiffs known that defendants did not own the intellectual property plaintiffs would have never relied upon the same, paid money to their detriment, and agreed to become bound by the same.”

The court granted the motion based on improper venue, concluding that plaintiffs “failed to rebut the presumption of enforceability” of the forum selection clause as they did not “meet the heavy burden of establishing that an enforceable forum selection clause should be deemed unreasonable based on fraud.” In rejecting plaintiffs’ fraud argument, the court noted that “[p]laintiffs overlook the prevailing law governing this issue” and that plaintiffs’ “[i]nconvenience and expense do not meet the test for unreasonableness.”

According to plaintiffs, despite their numerous inquiries, defendants did not inform them that the action had been dismissed for over eight months, waiting to notify them of the dismissal until the final month before the expiration of the statute of limitations.

C. Plaintiffs File a State Court Action against Defendants for, among Other Things, Violation of Judiciary Law § 487

Represented by new counsel, plaintiffs filed the instant state court action against defendants, seeking damages for defendants' alleged violation of Judiciary Law § 487, as well as malpractice, fraud and breach of contract arising from defendants' representation in the federal lawsuit.¹ As relevant to this appeal, plaintiffs alleged that defendants induced plaintiffs to bring a "fictitious cause of action" as a means to achieve a non-legitimate end, i.e., "solely" for the purpose of generating \$25,000 in attorney fees, in violation of section 487. Specifically, plaintiffs alleged that defendants falsely represented they had "thoroughly research[e]d" plaintiffs' claims, that they were valid claims, and that plaintiffs had superior rights to the trademarks at issue, knowing defendants could not successfully prosecute those claims.

Defendants disclaimed liability and eventually moved for summary judgment under CPLR 3212. In support of the motion, defendants submitted a memorandum of law, an attorney affirmation and reply affirmation, a sworn affidavit of Stein, filings from the federal litigation, the licensing agreement dated March 21, 2001, excerpts from the transcript of Pelinsky's deposition, and a letter from Stein's counsel to Pelinsky's counsel seeking execution of the transcript of Pelinsky's deposition under CPLR 3116 and requesting the production of certain documents and information. They argued, in part, that plaintiffs could not have prevailed in the federal action as a matter of law because they were estopped by the licensing agreement's "no challenge" clause from contesting GM's ownership of the trademarks. As to the Judiciary Law § 487 cause of action, defendants asserted three legal bases for dismissal: (1)

1. The complaint asserted legal malpractice and breach of contract based on Stein's alleged failure to prosecute plaintiffs' claims properly, diligently, competently and fully. Plaintiffs' cause of action for fraud alleged Stein falsely held himself out to the public as an expert in intellectual property and, misrepresented to plaintiffs that their claims had merit and that they would prevail should they proceed to litigation, intending to induce plaintiffs to pay fees to defendants.

any alleged misrepresentations were unactionable because they occurred outside the federal litigation; (2) plaintiffs failed to establish “a chronic, extreme pattern of legal delinquency”; and (3) plaintiffs could not establish that defendants’ wrongdoing caused plaintiffs to suffer damages.

In opposition, plaintiffs submitted the affidavit of an attorney specializing in intellectual property, who averred it was “clear” to him defendants did not “accurately represent the situation between the plaintiffs as licensees of GM.” He explained that Stein’s alleged statement, “I looked in the trademark office files and found nobody really owned anything” was “not an accepted practice to determine whether a trademark is ‘owned’ by anyone.” Instead, plaintiffs’ expert explained that to properly search “the trademark office files,” each of the over 200 products in an attachment incorporated into the licensing agreement would have to be “clearly identified For many of the Licensed Products it [was] unclear what specific model name/trademark [was] identified by the Licensed Product.” Thus, it would not have been possible for Stein to determine GM’s ownership interest in at least this subset of licensed products. In fact, three trademarks for goods directly related to automobiles were current registered trademarks at the United States Patent and Trademark Office in early 2006, at the time defendants allegedly “looked into the trademark office files.” Thus, GM had exclusive rights to at least these trademarks at the time plaintiffs filed the federal lawsuit.² The attorney further commented on the failure to properly advise plaintiffs:

“[D]efendant[']s statements leave me in awe in that the defendants did not explain that in fact plaintiffs had no rights to the decorative parts they were manufacturing and that it did not matter whether they were bona fide registered trademarks or parts in the public domain, they were subject to the terms of the License Agreement.”

The lack of advice was stunning enough, but the attorney was “further in awe” that defendants encouraged plaintiffs to

2. The federal complaint alleges:

“This case involves plaintiffs, who paid a license fee and royalties, pursuant to various purported license agreements and term sheets, to defendants in order for plaintiff to use certain intellectual property defendants represented were owned by them, only to now find out that defendants either did not own or have authority to license said intellectual property”

litigate because “the specific trademark subject matter of the litigation was precluded from being litigated during and after licensing by the License Agreement” and that defendants “then pursued the litigation in New York when the defendants knew or should have known that the select[ion] clauses are virtually always binding and honored by the courts” (citation omitted). Finally, he opined: “[I]n my opinion the totality of the acts of the defendants has every appearance to me of a fraudulent scheme in which the plaintiffs were lured into litigation that could *never* be won” (emphasis added).

Plaintiff Pelinsky also submitted his affidavit describing Stein’s alleged misrepresentations. Pelinsky testified that Stein gave him “improper advice, without even acquiring the knowledge he needed to have to give any such advice” thereby inducing Pelinsky to pay \$25,000 in attorney fees to “chas[e] rainbows” in pursuit of a “fictitious cause of action.” He averred that defendants never discussed with him the forum in which the federal litigation would be brought. He explained that defendants had Pelinsky sign a document, which defendants represented was required to bring the litigation in a New York court. Plaintiffs later learned the document was to support their opposition to General Motors’ motion to dismiss. Pelinsky explained that once the court dismissed the case for improper venue, defendants failed to notify him until the limitations period had nearly run. When confronted about defendants’ dilatory communication about dismissal of the complaint, Stein fabricated the excuse that the district judge had held the decision in chambers. Pelinsky also explained that, during the litigation, he made numerous inquiries into the status of the case, and he was assured that litigation “takes time.” According to Pelinsky, when he confronted Stein about why he did not refile in Michigan, Stein responded it does not matter because plaintiffs had superior rights. Stein offered to file copyrights on plaintiffs’ behalf for an additional \$37,000 legal fee. Plaintiffs also submitted evidence that they paid defendants an initial fee of \$7,500 to perform initial research and draft a complaint. To commence the litigation, plaintiffs agreed to an additional fee that brought the total fees paid defendants to \$25,000.

Pelinsky’s brother, at the time counsel for plaintiffs, submitted an affirmation corroborating his brother’s version of defendants’ conduct, recounting his brother’s statements and his own personal observations of defendants’ conduct during and after the filing of the federal lawsuit.

Supreme Court granted the motion in part and dismissed all but the Judiciary Law § 487 cause of action, concluding there were triable issues of fact as to whether plaintiffs sustained any damage proximately caused either by defendants' alleged deceit or alleged chronic, extreme pattern of legal delinquency. The Appellate Division reversed insofar as appealed from by defendants and granted defendants' motion to dismiss the section 487 cause of action (164 AD3d 635 [2d Dept 2018]). We granted plaintiffs leave to appeal (32 NY3d 913 [2019]).

Plaintiffs' sole contention before us is that their Judiciary Law cause of action was wrongly dismissed on summary judgment because there are triable issues of fact regarding defendants' alleged deceit.³ In response, defendants argue that, as a matter of law, section 487 does not apply to prelitigation statements and acts, and plaintiffs cannot establish any damages caused by Stein's alleged misconduct. I would reverse the Appellate Division because plaintiffs state a viable cause of action under Judiciary Law § 487 for post-filing misconduct as there exist triable factual issues whether defendants intended to deceive the court and plaintiffs by knowingly filing and defending a frivolous lawsuit and if so whether plaintiffs suffered damages as a result.

II.

Applicable Law

A. Summary Judgment Standard

To succeed on their motion for summary judgment, defendants had to "make a prima facie showing of entitlement to judgment as a matter of law, tendering sufficient evidence to demonstrate the absence of any material issues of fact" (*Alvarez v Prospect Hosp.*, 68 NY2d 320, 324 [1986], citing *Winegrad v New York Univ. Med. Ctr.*, 64 NY2d 851, 853 [1985]; see also CPLR 3212 [b]; *William J. Jenack Estate Appraisers & Auctioneers, Inc. v Rabizadeh*, 22 NY3d 470, 475-476 [2013]). "Summary judgment is designed to expedite all civil cases by eliminating from the Trial Calendar claims which can properly be resolved as a matter of law" (*Andre v Pomeroy*, 35 NY2d 361, 364 [1974]; see e.g. *Alvord & Swift v Muller Constr. Co.*, 46 NY2d 276, 280 [1978] [noting that should a plaintiff provide

3. Plaintiffs do not challenge dismissal of their negligence, malpractice and breach of contract causes of action and so I have no occasion to opine on the merits of those theories of liability.

evidence making out a cause of action, summary disposition, as a matter of law, is inappropriate]; *Sargoy v Wamboldt*, 183 AD2d 763, 765 [2d Dept 1992] [dismissing a cause of action alleging breach of contract because “(t)here is no legal theory of vicarious liability for breach of contract by a noncontracting employee, . . . if (the employee) was clearly acting only as an agent of a disclosed principal”]; *see also* 7 Weinstein-Korn-Miller, NY Civ Prac: CPLR ¶ 3212.10).

“Since [summary judgment] deprives [a] litigant of [their] day in court it is considered a drastic remedy which should only be employed when there is no doubt as to the absence of triable issues” (*Andre*, 35 NY2d at 364 [citation omitted]). “When deciding such a motion, ‘the court’s role is limited to issue finding, not issue resolution’ ” (*Dormitory Auth. of the State of N.Y. v Samson Constr. Co.*, 30 NY3d 704, 717 [2018, Rivera, J., dissenting], quoting *Kriz v Schum*, 75 NY2d 25, 33 [1989]). “Summary judgment disposition is inappropriate where varying inferences may be drawn, because in those cases it is for the factfinder to weigh the evidence and resolve any issues necessary to a final conclusion” (*id.*). Instead, the “facts must be viewed in the light most favorable to the non-moving party” (*Vega v Restani Constr. Corp.*, 18 NY3d 499, 503 [2012] [internal quotation marks omitted]). Only after the moving party makes a prima facie showing does “the burden shift[] to the party opposing the motion for summary judgment to produce evidentiary proof in admissible form sufficient to establish the existence of material issues of fact which require a trial of the action” (*Alvarez*, 68 NY2d at 324). “The moving party’s failure to make a prima facie showing of entitlement to summary judgment requires a denial of the motion, regardless of the sufficiency of the opposing papers” (*Vega*, 18 NY3d at 503 [citation, internal quotation marks and alterations omitted]).⁴

4. The Appellate Division concluded that plaintiffs’ allegations in support of their Judiciary Law § 487 cause of action were factually insufficient under CPLR 3016 (b). This was error, as defendants did not challenge the sufficiency of the pleading, choosing instead to file a motion for summary judgment under CPLR 3212, arguing for dismissal based on the merits. Judicial review is limited to the adequacy of their papers in support of that motion, not a motion never filed based on lack of particularity in the pleading and judged under a different standard (*see* CPLR 3211 [a] [7]; [e]; 3016 [b]). “CPLR 3016 (b) provides that where a cause of action or defense is based

(n. cont’d)

B. Judiciary Law § 487

Judiciary Law § 487 provides:

“An attorney or counselor who:

“1. Is guilty of any deceit or collusion, or consents to any deceit or collusion, with intent to deceive the court or any party; or,

“2. Wilfully delays [their] client’s suit with a view to [the attorney’s] own gain; or, wilfully receives any money or allowance for or on account of any money which [the attorney] has not laid out, or becomes answerable for,

“Is guilty of a misdemeanor, and in addition to the punishment prescribed therefor by the penal law, [the attorney] forfeits to the party injured treble damages, to be recovered in a civil action.”

Few decisions from this Court address attorney deceit at common law and under section 487. In *Looff v Lawton* (97 NY 478 [1884]), the Court considered attorney deceit under 2 Revised Statutes of New York, part III, ch III, tit II, art 3, § 68 at 287 (1st ed 1829), a similarly worded precursor statute to Judiciary Law § 487, which provided for criminal penalties and a civil action to recover treble damages.⁵ The *Looff* plaintiffs were owners of real property who wanted to sell an estate and divide the proceeds (*Looff v Lawton*, 14 Hun 588 [2d Dept 1878]). The plaintiffs alleged their attorney misadvised them that the “best, shortest, and cheapest manner in which to accomplish their . . . intent” was to bring suit in partition (*id.* at 589). In support of their cause of action for attorney deceit, plaintiffs asserted:

“That said advice and counsel was so given, willfully, corruptly and fraudulently, with intent to deceive and defraud these plaintiffs, and to induce

upon fraud, ‘the circumstances constituting the wrong shall be stated in detail’” (*Pludeman v Northern Leasing Sys., Inc.*, 10 NY3d 486, 491 [2008]).

5. 2 Rev Stat of NY, part III, ch III, tit II, art 3, § 68 at 287 (1st ed 1829) provided:

“Any counsellor, attorney or solicitor, who shall be guilty of any deceit or collusion, or shall consent to any deceit or collusion, with intent to deceive the court or any party, shall be deemed guilty of a misdemeanor, and on conviction shall be punished by fine or imprisonment, or both, at the discretion of the court. [The counselor] shall also forfeit to the party injured by [their] deceit or collusion, treble damages, to be recovered in a civil action” (see *Looff*, 97 NY at 481).

them to institute and maintain a useless and expensive suit, with full knowledge on [counsel's] part; that if accepted, believed and followed, the plaintiffs would be subjected to great and unnecessary expense to . . . the defendant's . . . great benefit, profit and advantage" (*id.*).

Relying on this advice, plaintiffs commenced a partition action and the property was sold. Plaintiffs incurred costs and fees associated with the lawsuit, which they sought to recover under section 68. In opposition, counsel disputed that his legal advice represented a misrepresentation of fact sufficient to give rise to a claim.

The trial court dismissed the complaint and denied the motion for a new trial. The General Term of Supreme Court reversed, concluding the legislature did not intend to limit the scope of section 68 to "common law or statutory cheats" because lawyers "should be liable for acts which would be insufficient to establish a crime or a cause of action against citizens generally" (*id.* at 589-590). The Court explained:

"An attorney or counsellor who advises ignorant adult owners of land that they are not competent to convey it, and thereby induces them to employ [counsel] to institute a suit in partition, and incur the expense thereof, for the purpose of effecting a sale of the lands, gives them erroneous advice, and thereby misleads them to their injury, and if [counsel] is qualified to perform the functions of an attorney, [counsel] does it knowingly. To mislead the court or a party is to deceive it; and, if knowingly done, constitutes criminal deceit under the statute cited" (*id.* at 590).

In short, the Court concluded that an attorney was liable for criminal deceit under section 68 for knowingly providing erroneous legal advice, even if the attorney was negligent and lacked a malicious intent.

Our Court reversed, distilling the inquiry to a choice between two possible interpretations of the statutory text:

"The question then arises whether the section under consideration has reference to the giving of wrong advice, before any action has been commenced, by an attorney to [their] client, when either one of two courses may be pursued, and thereby inducing the client to take that course

which is most expensive and injurious, and causing [the client] unnecessarily to incur large expenses, which, if proper advice had been given, might have been avoided, or does it mean deceit and collusion practiced by the attorney in a suit actually pending in court, with the intent to deceive the court or the party?” (*Looff*, 97 NY at 482).

The Court adopted the latter interpretation, based on the text and the fact that other provisions immediately following section 68 address actions brought or intended to be brought by an attorney (*id.*, citing 2 Rev Stat of NY, part III, ch III, tit II, art 3, §§ 69, 70, 71, 72 at 287-288 [1st ed 1829]). The Court concluded that while section 68 does not cover damages for an attorney’s wrong advice, by its terms it applies to “a case where the attorney intends to deceive the court or [the] client by collusion with [an] opponent, or by some improper practice” (*id.* at 482).⁶ Accordingly, section 68 did not contemplate “transaction[s] antecedent to the commencement of the action, as the court could have no connection with any such proceeding” (*id.*). *Looff* thus made clear that erroneous pre-filing advice did not give rise to a cause of action for attorney deceit under the prior statute.

Fast forward over a century, past the legislature’s enactment of Judiciary Law § 487, to this Court’s discussion of that statute in *Amalfitano v Rosenberg* (12 NY3d 8 [2009]). In response to certified questions from the Court of Appeals for the Second Circuit, our Court in *Amalfitano* clarified that a successful lawsuit for treble damages may be brought under section 487 based on an attempted but unsuccessful deceit (*Amalfitano*, 12 NY3d at 11).⁷ The plaintiffs were prevailing parties in a state fraud action who in turn sued the opposing party’s attorney in federal court, alleging a violation of section 487 for that attorney’s conduct in the course of the state litigation. According

6. The Court concluded that, because the complaint sufficiently pleaded a breach of duty for which plaintiffs were entitled to recover damages, a new trial should be granted unless plaintiffs stipulated to deduct the treble damages from the judgment awarded (*Looff*, 97 NY at 483).

7. The Court addressed the following certified questions from the Second Circuit: (1) “Can a successful lawsuit for treble damages brought under [Judiciary] Law § 487 be based on an attempted but unsuccessful deceit?” (*Amalfitano*, 12 NY3d at 11); and (2) “In the course of such a lawsuit, may the costs of defending litigation instituted by a complaint containing a material misrepresentation of fact be treated as the proximate result of the misrepresentation if the court upon which the deceit was attempted at no time acted on the belief that the misrepresentation was true?” (*id.* at 14-15).

to the plaintiffs, the attorney accused them of orchestrating a fraudulent sale of the family business, all the while knowing his client had forfeited his interest in that business under an assignment agreement (*Amalfitano v Rosenberg*, 428 F Supp 2d 196 [SD NY 2006], *affd* 572 F3d 91 [2d Cir 2009]). The plaintiffs alleged, among other things, that the attorney

“signed the verified complaint, thereby certifying that he had determined, after reasonable inquiry, that the factual allegations in the complaint were true and that the causes of action pleaded were not completely without merit in law. In fact, defendant [attorney] knew that there was no competent evidence to support any of the material elements of any of the causes of action contained in the complaint.”

The court found that, “[a]t the very least,” those actions undertaken by the attorney which “directly conflicted with his knowledge of the validity of the [assignment agreement] constitute[d] violations of § 487” (*Amalfitano*, 428 F Supp 2d at 208). Our Court concluded that the defendant’s alleged unsuccessful representation did not foreclose plaintiffs’ subsequent statutory action for attorney deceit because “recovery of treble damages under Judiciary Law § 487 does not depend upon the court’s belief in a material misrepresentation of fact in a complaint” (*Amalfitano*, 12 NY3d at 15).

Based on a historical overview of the statutory origins of Judiciary Law § 487, the Court explained that our statute “does not derive from common-law fraud” but “descends from [chapter 29 of] the first Statute of Westminster, which was adopted by the Parliament summoned by King Edward I of England in 1275” (*id.* at 12). Over the centuries, beginning in 1787, our state legislature enacted “strikingly similar language, and added an award of treble damages,” which then led to the eventual codification in the Penal Code of 1881 of a misdemeanor crime and the civil forfeiture remedy (*id.* at 12-13).

In explaining the evolution of the legislative enactments in the Penal Law that led to the passage of Judiciary Law § 487 of 1965, the Court quoted the General Term’s opinion in *Looff* that the existence of a common-law action for fraud made unnecessary a statute to punish a lawyer’s deceit, so the legislature must have intended liability for something short of

a common-law claim (*id.* at 13-14).⁸ As *Amalfitano* noted, the legislature subsequently recodified the Penal Law on attorney deceit in another section and then finally transferred the prohibition to Judiciary Law § 487 (*id.* at 14).

This history confirms that Judiciary Law 487 “is a unique statute of ancient origin in the criminal law of England,” and is comparable to criminal law, not civil torts (*id.*). Therefore, section 487, likened to attempts punishable under the criminal law, applies to unsuccessful deceptions. To hold otherwise “run[s] counter to the statute’s evident intent to enforce an attorney’s special obligation to protect the integrity of the courts and foster their truth-seeking function” (*id.*). It is then a simple bit of logic to understand that “[w]hen a party commences an action grounded in a material misrepresentation of fact, the opposing party is obligated to defend or default and necessarily incurs legal expenses,” and since a “lawsuit could not have gone forward in the absence of the material misrepresentation,” a party’s legal expenses in defending against the action may be treated as proximately resulting from the misrepresentation, exposing the attorney to liability under section 487 (*id.* at 15).

Five years later, in *Melcher*, we determined that a claim for attorney deceit under Judiciary Law § 487 is subject to a six-year statute of limitations (23 NY3d at 15). Drawing on *Amalfitano*’s comprehensive discussion of section 487, we reaffirmed that the statutory cause of action has origins distinct from common-law fraud. Specifically, “[a] cause of action for attorney deceit . . . existed as part of New York’s common law before the first New York statute governing attorney deceit was enacted in 1787. The 1787 statute enhanced the penalties for attorney deceit by adding an award for treble damages, but did not create the cause of action” (*id.* [citation omitted]). Therefore, because Judiciary Law § 487 does no more than provide additional remedies for a subclass of fraud, it is not subject to the three-year statute of limitations under CPLR 214 (2) that governs an action “created or imposed by statute” (*id.* at 13), but instead falls within the default CPLR 213 (1) six-year statute of limitations for all actions not otherwise covered by a specific limitations provision.

8. A cause of action sounding in common-law fraud requires “a material misrepresentation of a fact, knowledge of its falsity, an intent to induce reliance, justifiable reliance by the plaintiff and damages” (*Eurycleia Partners, LP v Seward & Kissel, LLP*, 12 NY3d 553, 559 [2009], citing *Ross v Louise Wise Servs., Inc.*, 8 NY3d 478, 488 [2007]).

These three decisions stand for several propositions that inform the analysis here. First, an action for attorney deceit existed under New York's common law and predates the first state statute from 1787, which itself originated in English law and led to the enactment of Judiciary Law § 487 (*Melcher*, 23 NY3d at 15; *Amalfitano*, 12 NY3d at 12). Second, section 487, like its predecessors, codifies attorney deceit as a crime and provides for civil treble damages (*Amalfitano*, 12 NY3d at 13-14). Third, section 487 does not derive from or supplant common-law fraud, which applies to a broad spectrum of deceitful conduct, including pre-litigation deceit by an attorney, such as inducing a client to retain the attorney in matters the attorney knows are wholly without merit for the sole purpose of securing payment from the client (*see Melcher*, 23 NY3d at 14-15). Fourth, unlike common-law fraud, section 487 is limited to attorney deceit on the court or a party in the course of litigation (*Amalfitano*, 12 NY3d at 15; *Looff*, 97 NY at 482).

Applying these propositions here leads to the logical conclusion that Judiciary Law § 487 encompasses attorney deceit in the form of filing and pursuing a knowing frivolous lawsuit. In *Amalfitano*, for example, after a four-day bench trial, the federal district court found the defendant attorney was liable under section 487. “[M]indful . . . that not all unethical or sanctionable conduct necessarily violates [section] 487,” the court found that, “[a]t the very least,” the actions undertaken by the attorney which “directly conflicted with his knowledge of the validity of the [assignment agreement] constitute[d] violations of § 487 (*Amalfitano*, 428 F Supp 2d at 208).⁹

9. An interpretation of Judiciary Law § 487 that prohibits the filing of knowingly frivolous lawsuits is also consistent with the Statute of Westminster's two central concerns of official misconduct and “excessive and specious litigation” that “coalesce[d]” in chapter 29's prohibition of deceit or collusion in the King's Court (Jonathan Rose, *The Legal Profession in Medieval England: A History of Regulation*, 48 Syracuse L Rev 1, 55-56 [1998]). Commentators commonly gave the statutory language a broad birth sufficient to punish “false pleading[s]” (*id.* at 58-59). Sir Edward Coke, one of England's most renowned jurists and commentators, wrote that chapter 29 applied to defective or unjustified litigation and other forms of misfeasance (2 Edward Coke, *Institutes of the Laws of England* 215 [1797]; *see e.g. id.* [noting that the Statute would apply when a party “bring(s) a *praecipe* against a poore man, knowing that he hath nothing in the land, of purpose to get the possession of the land against the tenant who is in possession”]; *see generally* Allen D. Boyer, Sir Edward Coke and the Elizabethan Age [2003]; Anthony R. Enriquez, *Structural Due Process in Immigration Detention*, 21 CUNY L Rev 35, 41 [2017] [noting that Coke's views were a “a chief source of early Ameri-

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III.

Plaintiffs' Judiciary Law § 487 Cause of Action

In order to establish entitlement to summary judgment as a matter of law, defendants had to show conclusively by admissible evidence that there is no triable issue of fact as to whether defendants practiced a deceit on the court or a party to the federal action, so that plaintiffs' Judiciary Law § 487 "cause of action . . . has no merit" (CPLR 3212 [b]). Defendants argue that summary dismissal was appropriately granted because: (1) the alleged wrongdoing occurred pre-litigation, which is not actionable under section 487; and (2) the statutory treble damages recovery requires proof of a chronic, extreme pattern of legal delinquency, which is wholly lacking on the facts as alleged. Defendants were not entitled to summary judgment because the complaint, which must be liberally construed, and plaintiffs' submission in opposition to summary judgment established triable issues regarding whether defendants committed deceit on the court and plaintiffs by pursuing an alleged knowing frivolous lawsuit solely as a pretext to charge legal fees. Moreover, by its plain text, section 487 applies to even a single act of deceit, so a pattern of misconduct is not a necessary element of the cause of action.

Contrary to the defendants' view, adopted by the majority (majority op at 176), plaintiffs' complaint is not limited to mere

can constitutionalism"], quoting Nathan S. Chapman & Michael W. McConnell, *Due Process as Separation of Powers*, 121 Yale LJ 1672, 1684 [2012]; Allen Dillard Boyer, "Understanding, Authority, and Will": *Sir Edward Coke and the Elizabethan Origins of Judicial Review*, 39 BC L Rev 43, 43 [1997] [describing Coke as a "poet of judicial wisdom and legal craftsmanship"]. For example, in a case from eighteenth century England, the court explained that when a cause of action is brought as a "pretense" to effectuate some other purpose, "the action is brought in deceit of the Court," notwithstanding the merit of the underlying proceeding (*Coxe and Phillips*, [1736] 95 Eng Rep 152 [KB] 153). One species of "fictitious action" (*id.*) was a "fob action," entitled this because it was "'preparative' for any real litigation upon the question that might follow it, but [also] because the large counsel fees which . . . counsel 'fobbed' were paid them by the opposite party" (Daniel B. Tallmadge, *An Argument against the Constitutionality of the Free Banking Law, of the State of New York* 17-18 [1845] [emphasis omitted]). In another seventeenth century case, Lord Chief Justice John Holt—whose name was "held in reverence by English freemen; for he was a sound judge" (*Yates v Lansing*, 5 Johns 282, 294 [Sup Ct 1810] [emphasis omitted], *affd* 9 Johns 395 [NY 1811])—directed a sharp inquiry at counsel: "[D]o you bring fob actions to learn the opinion of the court?" (*Brewster v Kitchin*, Roger Comberbach, *Reports of Several Cases Argued and Adjudged in the Court of King's Bench at Westminster*, 1658-1695, at 425 [1724]).

pre-litigation conduct, but rather asserts that defendants made initial and continued false representations to the court about the legal and factual basis for the federal action in the federal complaint and plaintiffs opposition to defendants motion to dismiss (*see* discussion, *supra* part I. A.). Viewed in the light most favorable to plaintiffs as the non-moving party (*Vega*, 18 NY3d at 503), plaintiffs' complaint asserts that the federal lawsuit against GM had no legal basis and was "grounded in a material misrepresentation of fact" (*Amalfitano*, 12 NY3d at 15)—i.e., that plaintiffs had superior rights and thus should prevail. But for defendants' material misrepresentations with respect to plaintiffs' claims, the federal lawsuit "could not have gone forward" (*id.*; *see e.g. Amalfitano*, 428 F Supp 2d at 208 [noting that the attorney had filed a complaint challenging the validity of the assignment agreement and alleging, in part, that his client was still a partner in the family businesses, despite the fact that the attorney knew that his client's partnership interest had earlier been terminated by that same assignment agreement]).

Plaintiffs' factual assertions regarding defendants' pre-litigation conduct provide context to these allegations. The documents in opposition to summary judgment, including statements by Pelinsky and the intellectual property attorney, provide further support for a finding that defendants' filing and litigation posture evinced an orchestrated scheme to charge legal fees for an action that the attorneys knew to be frivolous. Indeed, defendants do not dispute that they represented plaintiffs and that plaintiffs paid legal fees for filing and defending a lawsuit; they merely claim they did nothing wrong and thus did not act with the requisite intent. However, as a general matter, deceitful intent is a question of fact, not appropriate for resolution on summary judgment (*see e.g. Matter of Ruiz v McKenna*, 40 NY2d 815, 816 [1976]; *Dygert v Remerschnider*, 32 NY 629 [1865]; *ACA Fin. Guar. Corp. v Goldman, Sachs & Co.*, 131 AD3d 427, 428 [1st Dept 2015]; *Brown v Lockwood*, 76 AD2d 721, 732 [2d Dept 1980]). Defendants also took the position below that plaintiffs could not have prevailed in the federal action because the licensing agreement's no-challenge clause foreclosed the litigation—information obvious from the face of the agreement, and which all the more supports plaintiffs' allegation that defendants' actions were fraudulent from the beginning.

The majority misses the mark by concluding that there is no meaningful distinction between attorney conduct that leads to

an unnecessary lawsuit like that in *Looff* and a frivolous lawsuit, like that alleged here (majority op at 178). The plaintiffs' claim in *Looff* failed because the attorney's prelitigation advice resulted in the filing of an unnecessary partition claim, but it did not contain any fraudulent statement. In other words, the attorney did not seek to deceive the court about the merits of the pending action because there was nothing fraudulent about the partition action he filed; the wrong the plaintiffs were seeking to rectify in *Looff* was the attorney's assurance that filing the legal action would be the most expedient and cost-effective way to meet their ultimate goal. In contrast, an attorney who files a frivolous lawsuit with full knowledge that the action is groundless and nevertheless intends to deceive the court as to the viability of the claims asserted therein to achieve the nonlegitimate end of solely charging legal fees, commits a deceit that imperils the integrity of the courts and undermines their truth-seeking function. I see an obvious, meaningful distinction between filing an action that an attorney believes will achieve a client's intended goal, based on the law and facts as the attorney understands them, and an action filed by an attorney who knows the claims lack any arguable foundation in law or fact and proceeds with the litigation solely to cheat their client out of legal fees, oblivious to the impact on the court or the party sued.

Applying our summary judgment standard here, assuming without deciding that defendants met their prima facie burden, plaintiffs presented evidence in opposition to defendants' motion sufficient to show a viable cause of action under Judiciary Law § 487, and triable issues of fact remain as to whether defendants intended to practice a deceit on the court or plaintiffs, proximately causing plaintiffs damages in the form of unwarranted legal fees (see *Amalfitano*, 12 NY3d at 15; *Looff*, 97 NY at 482).

IV.

Judiciary Law § 487 Does Not Target Good Faith Lawyering

The majority relies on a general statement from a case not involving Judiciary Law § 487 to argue that we should not read the statute beyond the fair scope of its mandate (majority op at 178). I agree, but that does not affect the analysis on this appeal. Plaintiffs claim their attorney knowingly pursued a

meritless action solely to collect fees, allegedly made possible by defendants' misrepresentations to the court about the facts and law underlying plaintiffs' federal claims. Of course, if the majority means that we cannot read section 487 to encompass a cause of action based on nothing more than a client's disappointment with the results of an attorney's efforts, I agree wholeheartedly. Such an interpretation would exceed the legislative focus on attorney deceit in a pending suit, as opposed to responsible but ultimately unsuccessful representation.

Again, that is not a reason to invoke the drastic remedy of summary judgment under the circumstances presented by this appeal. Plaintiffs may be dissatisfied clients (a quite reasonable and rational response if their allegations are true), but they are not dissatisfied because plaintiffs believe defendants filed a colorable action that failed, as the Appellate Division suggested. Rather, plaintiffs are dissatisfied because, according to plaintiffs, counsel schemed to induce them to pay legal fees for pursuing a meritless lawsuit that counsel knew should never have been filed. The latter is actionable under section 487.

This interpretation of section 487 and our precedents would not subject attorneys to liability for "poor lawyering, negligent legal research or the giving of questionable legal advice" (majority op at 180 n 3). An attorney is not subject to liability under Judiciary Law § 487 merely because their client fails to prevail in litigation. Otherwise, there would be a flood of meritless actions by dissatisfied clients since in our legal system there is always a "losing" party. As the Court first stated in *Amalfitano*, the legislature codified the misdemeanor crime and civil treble damages remedy for attorney deceit because that specific type of conduct is particularly harmful to our judicial system (*Amalfitano*, 12 NY3d at 14; *see also Melcher*, 23 NY3d at 15). The legislature's intent "to enforce an attorney's special obligation to protect the integrity of the courts and foster their truth-seeking function" does not include penalizing an attorney for professionally competent, albeit unsuccessful, advocacy. Indeed, an attorney has a professional duty and ethical obligation, within the bounds of the law, to aggressively advocate colorable claims on behalf of their client (*see* Rules of Professional Conduct [22 NYCRR 1200.0] rule 1.3

Comment [1] [NY St Bar Assn rev June 2018]).¹⁰ However, the legislature, concerned with “enforc[ing] an attorney’s special obligation to protect the integrity of the courts and foster[ing] their truth-seeking function” (*Amalfitano*, 12 NY3d at 14), could not have intended to exclude from the statute’s coverage an attorney’s intentional filing of a frivolous lawsuit for the sole purpose of obtaining unwarranted legal fees.¹¹

Defendants were not entitled to summary judgment dismissal of plaintiffs’ cause of action for alleged violation of Judiciary Law § 487. I would reverse the Appellate Division and reinstate the claim.

Judges STEIN, FAHEY, GARCIA, WILSON and FEINMAN concur; Judge RIVERA dissents in an opinion.

Order affirmed, with costs.

10. Despite the majority’s suggestion to the contrary, I agree that Judiciary Law § 487 was not intended “to curtail attorneys’ expression of views concerning what the law is or should be” (majority op at 180 n 3). Indeed, an attorney has a professional duty to make colorable arguments on behalf of the client for expanding or overturning existing law and “take whatever lawful and ethical measures are required to vindicate a client’s cause or endeavor” (Rules of Professional Conduct [22 NYCRR 1200.0] rule 1.3 Comment [1]). What an attorney cannot do without running afoul of professional standards and section 487 is make an argument before a court knowing that the position advocated is wholly baseless, interposed only to profit off of the filing, without consideration as to the eventual ruling from the court. That an attorney may be subject to other consequences, such as a misconduct proceeding and a malpractice action, for knowingly filing and defending frivolous matters for profit is also true for the limited types of conduct the majority acknowledges falls within section 487, and only confirms society’s interest in imposing a range of severe sanctions for attorney deceit.

11. Given that few attorneys would breach their oath by such deceit, we need not worry that courts will indiscriminately hold attorneys liable for informed assertive lawyering rather than actual fraud. In any case, even though the majority has foreclosed a client from seeking treble damages under section 487 in a case where an attorney files a frivolous lawsuit, the same client may still sue for common-law fraud (*see supra* n 8).

[149 NE3d 905, 126 NYS3d 67]

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v LIMMIA
PAGE, Respondent.

Submitted June 3, 2020; decided June 11, 2020

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Fourth Judicial Department, entered November 9, 2018. The Appellate Division (1) affirmed an order of the Supreme Court, Erie County (M. William Boller, J.), which had granted that part of defendant's omnibus motion seeking to suppress the evidence seized as the result of a traffic stop; and (2) dismissed the indictment.

People v Page, 166 AD3d 1472, reversed.

HEADNOTE

Crimes — Unlawful Search and Seizure — Traffic Stop by Customs and Border Protection Agent

Defendant was not entitled under *People v Williams* (4 NY3d 535 [2005]) to suppression of physical evidence recovered during a traffic stop made by a federal marine interdiction agent with the United States Customs and Border Protection (CBP) because the agent was not a peace officer within the meaning of CPL 2.10 and 2.15. On its face, CPL 2.15 does not include "marine interdiction agents" as among the "federal law enforcement officers" awarded certain peace officer powers under CPL 140.25. The statute does, however, include "United States Customs and Border Protection Officers and United States Customs and Border Protection Border Patrol agents" (CPL 2.15 [7]). In general, CPL 2.10 and 2.15 are exclusive lists, describing with relative precision the positions which meet the statutory definition of "peace officer" and "federal law enforcement officer," respectively. Subdivision (7) of CPL 2.15 itself includes only two positions: CBP "Officers" and "Border Patrol agents," while other subdivisions of the statute either broadly describe an agency's membership, or are careful to specify which members within an agency are included. Thus, if subdivision (7) were intended to refer to all CBP agents, including those employed with air and marine operations, the legislature would not have used the term "Border Patrol" as a qualifier in the statutory text, and it would not have clarified that CBP "Officers" are peace officers as well.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d Arrest §§ 7, 40, 47, 48.

CARMODY-WAIT 2d Arrest or Other Detention; Post-Arrest
Procedure §§ 177:65, 177:71.

McKINNEY'S, CPL 2.10, 2.15, 140.25.

NY JUR 2d Criminal Law: Procedure §§ 6, 116, 117, 121, 123.

ANNOTATION REFERENCE

See ALR Index under Arrests; Police and Law Enforcement Officers.

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POINTS OF COUNSEL

John J. Flynn, District Attorney, Buffalo (Daniel J. Punch and Donna A. Milling of counsel), for appellant. I. The stop of defendant’s vehicle was a lawful citizen’s arrest. (*People v Williams*, 4 NY3d 535.) II. Irrespective of the legality of the stop, suppression was not the proper remedy. (*People v Castillo*, 80 NY2d 578; *People v Greene*, 9 NY3d 277; *People v Patterson*, 78 NY2d 711; *People v Sampson*, 73 NY2d 908; *People v Harris*, 48 NY2d 208; *People v Taylor*, 73 NY2d 683; *People v Lopez*, 288 AD2d 70, 97 NY2d 706; *People v Fernandez*, 61 AD3d 891, 13 NY3d 744; *People v Rodriguez*, 270 AD2d 956, 95 NY2d 870; *People v Dyla*, 142 AD2d 423.)

David C. Schopp, The Legal Aid Bureau of Buffalo, Inc., Buffalo (Robert L. Kemp and Susan C. Ministero of counsel), for respondent. I. This Court lacks jurisdiction to review the People’s arguments because this Court has no power to review a mixed question of law and fact. Further, this Court should defer to the findings of fact and law of the suppression court that were supported by the record. (*People v Sierra*, 83 NY2d 928; *People v Kims*, 24 NY3d 422; *People v Wheeler*, 2 NY3d 370; *People v Burr*, 70 NY2d 354; *People v Wharton*, 46 NY2d 924; *People v Oden*, 36 NY2d 382; *People v Leonti*, 18 NY2d 384; *People v Harrison*, 57 NY2d 470; *People v McRay*, 51 NY2d 594; *People v Prochilo*, 41 NY2d 759.) II. The Appellate Division, Fourth Department, and Erie County Supreme Court correctly ruled that the physical evidence seized from respondent’s vehicle was the result of an unlawful stop based upon an invalid citizen’s arrest, and should be suppressed as the fruit of the poisonous tree. (*People v Williams*, 4 NY3d 535; *Mapp v Ohio*, 367 US 643; *Wong Sun v United States*, 371 US 471; *Dunaway v New York*, 442 US 200; *People v Boyea*, 44 AD3d 1093; *People v*

Howard, 115 AD2d 321.) III. The Appellate Division, Fourth Department, properly concluded that adherence to the requirements of CPL 140.30 implicates the constitutional right to be free from unreasonable searches and seizures, and that suppression was warranted. (*People v Taylor*, 73 NY2d 683; *People v Gallina*, 66 NY2d 52; *People v La Fontaine*, 235 AD2d 93; *People v Greene*, 9 NY3d 277; *People v Patterson*, 78 NY2d 711; *People v Hicks*, 287 NY 165; *People v Mann*, 42 AD2d 587; *People v Barrett*, 33 AD2d 633; *People v Concepcion*, 17 NY3d 192; *People v Ingle*, 36 NY2d 413.)

OPINION OF THE COURT

FEINMAN, J.

Using the emergency lights on his unmarked Chevrolet Tahoe, a federal marine interdiction agent with the United States Customs and Border Protection (CBP) stopped the driver of a vehicle in which defendant was a passenger for driving dangerously on a public highway in Erie County. After pulling the driver over, the agent waited in his truck for members of the Buffalo Police Department who, upon arriving at the scene, searched the vehicle and arrested defendant for criminal possession of a weapon. The question on this appeal is whether the courts below properly relied on our decision in *People v Williams* (4 NY3d 535 [2005]) in granting defendant's motion to suppress the evidence recovered. Because we conclude that *Williams* is inapposite, we reverse.

I.

One June evening in 2017, the on-duty agent had just concluded a "maritime patrol" and was merging his unmarked Tahoe onto Interstate 190 in Erie County on his way to make security checks at the local marinas. The Tahoe was equipped with an emergency radio as well as "red and blue emergency lights in the grille of the front of the truck" and "a little light bar inside the windshield," but did not carry the full complement of lights and sirens typically found on a police vehicle. As the agent was merging, he suddenly noticed a pair of headlights, which belonged to a vehicle occupied by defendant and two others, "coming up from behind in the rearview mirror." The driver of the vehicle rapidly closed in behind the agent, then suddenly hit the brakes to avoid rear-ending the Tahoe. Although the driver pulled back, he started weaving between the right and left lanes and then passed the agent's Tahoe on

the left, leading to a second near-collision with another car that was merging from Route 198 onto Interstate 190.

The vehicle continued to drive erratically, leading to a third near-collision, and the agent followed. After attempting to contact the State Police on the radio equipped in his Tahoe, the agent dialled 911 on his personal phone to report the incident. As he and defendant's vehicle exited the freeway, the agent became increasingly concerned for public safety and "energized" the lights on his Tahoe, prompting the driver to pull over. After relaying their location to the 911 operator, the agent sat in his parked Tahoe and waited roughly five minutes for the police to arrive.

An officer of the Buffalo Police Department arrived and spoke to the agent before approaching defendant's vehicle. As a safety measure, the agent accompanied the lone officer to defendant's car and saw him speaking with the occupants, but he did not speak with defendant or anyone else in the vehicle directly. The agent left the scene when additional Buffalo police officers arrived and told him he was no longer needed. The agent never made any further statements to the Buffalo Police Department regarding recommended charges that should be filed, nor did he issue any traffic tickets in conjunction with his stop. After the agent's departure, the police searched the vehicle and recovered a gun. All three occupants were arrested and defendant was charged with criminal possession of a weapon in the second degree.

Before trial, defendant moved to suppress the gun as stemming from an unlawful seizure. Defendant argued both that the agent was not vested with peace officer powers pursuant to CPL 140.25 and, relying on our decision in *Williams*, that the stop was not a valid citizen's arrest because the agent used his emergency lights to effectuate the stop. Supreme Court granted defendant's motion. The court concluded first that as a "federal agent employed by Customs and Border Protection," the agent and other "immigration and naturalization special agents" pursuant to CPL 2.15 had "the powers of a peace officer" within the meaning of CPL 140.25 to make a warrantless arrest. However, because "[a]t the time of the stop [the agent] was not acting pursuant to his special duties" (see CPL 140.25 [1] [a]), the court reasoned that the stop was not sustainable pursuant to that statute. "The question then becomes," Supreme Court explained, whether "this stop [is] considered a citizen's arrest pursuant to CPL§ 140.30." The court concluded that suppres-

sion was warranted under *Williams* because, by activating his emergency lights to pull the driver of the vehicle over and approaching the car with the Buffalo police officer, the agent “acted under the color of law with all the accouterments of official authority and could not effect a citizen’s arrest.”

Upon the People’s appeal, the Appellate Division unanimously affirmed (166 AD3d 1472 [4th Dept 2018]). A Judge of this Court granted the People’s application seeking leave to appeal (33 NY3d 979 [2019]).

II.

Despite crediting the agent’s testimony that he observed the vehicle driving dangerously, which typically suffices to justify an “arrest by any person” (*see* CPL 140.30 [1]), Supreme Court nevertheless analogized this case to our decision in *Williams* and held that based on the methods the agent used to pull the vehicle over, the stop was not a valid citizen’s arrest. The Appellate Division employed similar reasoning, relying solely on *Williams* as the basis for suppression despite finding that defendant’s vehicle was “engaging in dangerous maneuvers and allegedly committing several violations of the Vehicle and Traffic Law” (166 AD3d at 1472). Therefore, we are presented only with the legal question of whether the courts below correctly applied *Williams*.¹

In *Williams*, two officers of the Buffalo Municipal Housing Authority were on patrol in one of that city’s housing projects when they saw the defendant allegedly driving without a seat-belt down a street outside the officers’ geographical jurisdiction (4 NY3d at 537). Significantly, “[u]niformed housing guards of the Buffalo municipal housing authority” are expressly included in the CPL as “[p]ersons designated as peace officers” (CPL 2.10 [17]). The officers stopped the defendant, ordered him to step out of his vehicle, and began questioning him. When “defendant replied in a manner that led the officer to suspect that defendant had an object in his mouth,” the officers

1. The dissent claims we are instead concluding that “a law enforcement official who is not a police officer or peace officer may impersonate one in order to conduct an arrest” as part of our supposedly broader effort to “justify a questionable stop” (dissenting op at 209, 214). However, as the dissent itself notes, the parties do not dispute whether the agent’s actions here even meet the criteria of a full arrest, as opposed to a “stop or other lesser detention” (dissenting op at 210). Nor does defendant raise any claims that the agent’s conduct violated his state or federal constitutional rights. In this regard, we address only whether *Williams* governed defendant’s suppression motion.

asked him to open it, revealing a plastic bag of crack cocaine (4 NY3d at 537). The defendant shoved one of the officers and fled but was quickly apprehended by them and indicted for criminal possession of a controlled substance (*id.*). Before trial, the defendant moved to dismiss the charges, which motion Supreme Court granted, and the Appellate Division affirmed (*see id.* at 537-538).

On appeal, we affirmed. The People “concede[d] that the alleged traffic infractions and the seizure of defendant occurred outside the geographical jurisdiction of the Buffalo Municipal Housing Authority peace officers” but argued that the stop and warrantless arrest nevertheless “was the equivalent of a citizen’s arrest” under CPL 140.30 (*id.* at 538). In rejecting that claim, we explained that the CPL clearly distinguishes between the warrantless arrest powers of peace officers and private citizens, and that “there also are functional differences” which limit the places and circumstances under which peace officers can use their police powers (*id.*; compare CPL 140.25, and 140.27, with 140.30, 140.35, and 140.40). Thus, “[t]o accept the People’s argument and treat a peace officer as an ordinary citizen would render these purposefully drawn differences—and the plain language chosen by the Legislature—meaningless” (*id.*). In holding that the officers’ law enforcement actions did not constitute a valid citizen’s arrest under CPL 140.30, we clarified that “[t]his, of course, is not to say that an individual *employed as a peace officer* may never under any circumstances effect a citizen’s arrest” (*id.* at 539 [emphasis added]). Rather, we concluded “only that a *peace officer* who acts under color of law and with all the accouterments of official authority *cannot*” (*id.* [emphasis added]).

Thus, because the warrantless arrest powers of peace officers are so clearly delineated in the CPL, our holding in *Williams* was based not only on the housing authority officers’ specific conduct in enforcing a traffic infraction outside of their geographical jurisdiction,² but also on the conclusion that the entire statutory scheme would be frustrated if they could, as *peace officers*, conveniently avail themselves of the citizen’s arrest statute in lieu of their already-tailored arrest powers (*id.*).³ Although the Appellate Division in this case declined to ad-

2. We note that these geographical limitations do not apply to a felony committed in the officer’s presence (CPL 140.25 [4]).

3. Relying heavily on the titles of the relevant provisions rather than their substantive text, the dissent argues that *Williams* turns merely on

(n. cont’d)

dress this issue directly (*see* 166 AD3d at 1473-1474 [“Even assuming, arguendo, that the agent . . . is *not* a peace officer and does not possess the powers thereof . . . the court properly determined that the agent did not effect a valid citizen’s arrest” (emphasis added)]), we conclude that whether the federal marine interdiction agent in this case is a peace officer is ultimately critical to determining whether *Williams* applies under the circumstances.

Whether the agent in this case is a peace officer depends, of course, on whether the CPL defines him as such. “Normally, the designation of ‘peace officer’ is given to a narrowly defined group of individuals who are not necessarily working in general law enforcement but who, when working pursuant to their ‘special duties’ or ‘geographical area of employment,’ have a need for limited police powers” (William C. Donnino, Practice Commentaries, McKinney’s Cons Laws of NY, CPL 140.25). Because these arrest powers are conferred on those whose job is not policing per se, the definition of “peace officer” is carefully circumscribed in the CPL: although CPL 2.10 lists roughly 85 different positions that constitute a peace officer, the statute is clear that “*only* the following persons [listed under the statute] shall have the powers of, and shall be peace officers” (emphasis added).

“whether the individual conducting the stop or arrest conveys the appearance of ‘acting . . . as a police officer or a peace officer’” (dissenting op at 213). Of course, “the text of the statute must take precedence over its title,” for “[w]hile a title or heading may help clarify or point the meaning of an imprecise or dubious provision, it may not alter or limit the effect of unambiguous language in the body of the statute itself” (*Squadrito v Griebisch*, 1 NY2d 471, 475 [1956]). In cherry-picking one word (“acting”) from the titles of just two of these provisions (CPL 140.35, 140.40), the dissent misconstrues the scope of our holding in *Williams*, which only noted the distinctions in the statutory headings to broadly conclude that “[t]he Criminal Procedure Law differentiates between the respective powers of arrest possessed by peace officers and private citizens” (4 NY3d at 538 [citations omitted]).

Furthermore, our analysis in *Williams* was framed by the People’s argument that the arresting officers could invoke CPL 140.30 to circumvent their limited arrest powers under CPL 140.25, which the People conceded did not apply because “the seizure of defendant occurred outside the[ir] geographical jurisdiction” (*see id.*). We held that the arresting officers could not invoke section 140.30, because to “treat a peace officer as an ordinary citizen” under the circumstances would render the distinctions drawn by the substantive text of the statutory scheme “meaningless” (*id.* [emphasis added]). In other words, before determining whether the arresting officers were “acting” as peace officers outside their limited jurisdiction, it was necessary to determine first whether they were, in fact, peace officers.

Unlike the “[u]niformed housing guards of the Buffalo municipal housing authority” (CPL 2.10 [17]) from *Williams*, federal agents are not expressly included in the CPL 2.10’s exclusive list of “[p]ersons designated as peace officers.” Yet under CPL 2.15, certain “federal law enforcement officers” are accorded limited peace officer powers (*see* CPL 140.25). We must therefore determine whether CPL 2.15 contemplates marine interdiction agents as “federal law enforcement officers.”

On its face, CPL 2.15 does not include “marine interdiction agents” as among the “federal law enforcement officers” awarded certain peace officer powers under CPL 140.25. The statute does, however, include “United States Customs and Border Protection Officers and United States Customs and Border Protection Border Patrol agents” (CPL 2.15 [7]). Testifying for the People at the underlying suppression hearing, the agent in this case explained that there are three entities that fall under the umbrella of CBP: border patrol, air and marine operations, and the office of field operations. As a member of air and marine operations, the agent claimed that he “ha[s] both authorities of border patrol and office of field operation[s] but [was] not in the verbiage of the New York State Peace Authority.” Defendant nevertheless argues that, because the agent is generally employed by CBP, his position falls within CPL 2.15 (7).

We reject defendant’s overly expansive interpretation of the statute. “As the clearest indicator of legislative intent is the statutory text, the starting point in any case of interpretation must always be the language itself” (*People v Golo*, 26 NY3d 358, 361 [2015], quoting *Majewski v Broadalbin-Perth Cent. School Dist.*, 91 NY2d 577, 583 [1998]). In general, CPL 2.10 and 2.15 are exclusive lists, describing with relative precision the positions which meet the statutory definition of “peace officer” and “federal law enforcement officer,” respectively. Subdivision (7) of CPL 2.15 itself includes only two positions: CBP “Officers” and “Border Patrol agents.” Meanwhile, other subdivisions of the statute either broadly describe an agency’s membership (*see e.g.* CPL 2.15 [10] [“United States probation officers”]), or are careful to specify which members within an agency are included (*see e.g.* CPL 2.15 [14] [“Internal Revenue Service special agents *and* inspectors” (emphasis added)]). We have consistently interpreted statutes such as these under the maxim *expressio unius est exclusio alterius* such that “where a

law expressly describes a particular act, thing or person to which it shall apply, an irrefutable inference must be drawn that what is omitted or not included was intended to be omitted or excluded” (McKinney’s Cons Laws of NY, Book 1, Statutes § 240; *see Town of Aurora v Village of E. Aurora*, 32 NY3d 366, 372-373 [2018]). Here, if subdivision (7) were intended to refer to *all* CBP agents, including those employed with air and marine operations, the legislature would not have used the term “Border Patrol” as a qualifier in the statutory text, and it would not have clarified that CBP “Officers” are peace officers as well. Although we are not bound by the agent’s testimony in our interpretation of the statute, his assessment of CBP’s structure nevertheless comports with the plain text of CPL 2.15 (7) and supports our conclusion that his position falls outside the language enacted by the legislature (*see also* 8 CFR 287.5, 287.8 [setting forth regulations for all immigration officers and separately listing “Border patrol agents,” “Air and marine agents,” and “CBP officers”]).

We acknowledge that, as originally written, CPL 2.15 broadly designated all “United States Customs Service special agents, inspectors and patrol officers” as among the “federal law enforcement officers” with peace officer powers. Then, in 2002, “[t]he Department of Homeland Security was created . . . to re-organize several federal agencies after the 9/11 attacks,” including the US Customs Service as well as Immigration and Naturalization Service (Letter from Assemblyman William B. Magnarelli in Support, June 24, 2014, Bill Jacket, L 2014, ch 262 at 6; *see* Div of Budget Bill Mem, Bill Jacket, L 2014, ch 262 at 8). To that end, in 2014 the legislature made “technical” amendments to CPL 2.15 (3) and (7), relocating certain CBP agents to the provision governing Immigration and Customs Enforcement agents and officers, while modifying the original CBP provision to its current form, covering only CBP “Officers” and “Border Patrol agents” (L 2014, ch 262; Div of Budget Bill Mem, Bill Jacket, L 2014, ch 262 at 8). Regardless of whether the omission of air and marine operations from these amendments was intentional, concluding that the legislature intended to include marine interdiction agents in the statute’s current list of “federal law enforcement officers” would require us to read a specific job title not expressly present in the plain text into a statutory scheme that otherwise precisely delineates which of these federal employees are granted special authority under New York law. Inasmuch as “[w]e must read statutes as

they are written,” we decline to construe CPL 2.15 as including more positions than those the legislature has listed therein (*People v Kupprat*, 6 NY2d 88, 90 [1959]; see *People v Tychan-ski*, 78 NY2d 909, 911 [1991]).

III.

Because the agent who stopped defendant in this case is not considered a federal law enforcement officer with peace officer powers pursuant to CPL 2.10 and 2.15, he could not have improperly circumvented the jurisdictional limitations on the powers reserved for those members of law enforcement under CPL 140.25, as the peace officers in *Williams* did. In other words, the agent’s conduct here did not violate the legislature’s prescribed limits on a peace officer’s arrest powers because he is not, in fact, a peace officer.

Defendant nevertheless notes, as the Appellate Division did, that a private citizen may neither “display . . . emergency lights from his or her private vehicle,” nor “falsely express by words or actions that he or she is acting with approval or authority of a public agency or department with the intent to induce another to submit to such pretended official authority or to otherwise cause another to act in reliance upon that pretense” (166 AD3d at 1474, citing Vehicle and Traffic Law § 375 [41], and Penal Law § 190.25 [3]).⁴ But aside from the clear limits as to the justifiable use of physical force that may be applied during an arrest by a private citizen (Penal Law § 35.30 [4]; CPL 140.35 [3]), as well as the requirement that “[s]uch person must inform the person whom he [or she] is arresting of the reason for such arrest unless he [or she] encounters physical resistance, flight or other factors rendering such procedure impractical” (CPL 140.35 [2]), nothing in the citizen’s arrest statutes themselves sets forth the methods

4. The dissent appears to be concerned that these statutes are insufficient to dissuade citizens who witness crimes from nevertheless “pretending to be . . . undercover police officer[s]” (dissenting op at 214). Whether these citizens are undeterred by what the dissent views as a “slight risk” (dissenting op at 214) of punishment for a class A misdemeanor is best reserved for the legislature, which has the power to amend the arrest statutes and place additional constraints on a citizen’s ability to effect an arrest. We, however, are mindful that “a court cannot amend a statute by inserting words that are not there, nor will a court read into a statute a provision which the Legislature did not see fit to enact” (*Matter of Chemical Specialties Mfrs. Assn. v Jorling*, 85 NY2d 382, 394 [1995] [internal quotation marks and citation omitted]).

that must be employed when, as here, a crime is committed in the responding citizen's presence (*see* CPL 140.30, 140.40; *People v Foster*, 10 NY2d 99, 102-103 [1961]).⁵ We reiterate that whether this stop comported with constitutional principles or the express terms of the arrest statutes is simply not before us, as defendant failed to raise any such arguments before the suppression court.

The agent in this case is not a peace officer under the CPL because CPL 2.15 does not include marine interdiction agents. Thus, our decision in *Williams*—on which the courts below relied in granting defendant's suppression motion—is inapposite. Accordingly, the order of the Appellate Division should be reversed, defendant's motion to suppress denied, and the case remitted to Supreme Court for further proceedings in accordance with this opinion.

FAHEY, J. (dissenting). I dissent. This decision expands the ability of law enforcement officials to effect arrests that they have no authority to make, under the guise of a citizen's arrest. By holding that a law enforcement official who is not a police officer or peace officer may impersonate one in order to conduct an arrest, the majority undermines the rationale of our decision in *People v Williams* (4 NY3d 535 [2005]), that an arrest outside an official's authority cannot be justified by calling it a citizen's arrest. Here, the federal agent who stopped the motor vehicle in which defendant was a passenger acted in the manner of a police officer or peace officer when he activated emergency lights on his sport utility vehicle. For this reason, the agent was not carrying out a citizen's arrest under *Williams* and the fruits of the illegal traffic stop must be suppressed. I would affirm.

I.

As the parties frame the issue, the sole question is whether the federal agent conducted a lawful citizen's arrest under the Criminal Procedure Law. The parties do not dispute that the agent's conduct may be considered an *arrest*, rather than

5. Despite these clear limitations on the circumstances in which a citizen may effect an arrest under CPL 140.30, the dissent reads our holding as an undue "expansion" of the statute and the powers prescribed therein, going so far as to link this case to other incidents involving the use of deadly physical force against unarmed citizens (dissenting op at 213-214). Of course, the circumstances of this encounter are markedly different from those cases, each of which occurred in other states carrying their own unique provisions.

merely a stop or other lesser detention, for the purposes of determining whether it is a valid citizen's arrest. The parties also do not dispute that the power of a citizen's arrest extends to a citizen who observes a lesser offense such as a traffic violation (*see* 1980 Atty Gen [Inf Ops] 187, citing *People v Nagell*, 23 Misc 2d 452 [1960]; 1980 Atty Gen [Inf Ops] 190, citing *Nagell*; Note, *The Law of Citizen's Arrest*, 65 Colum L Rev 502, 503 and n 11 [1965]; *Sutton v Evans*, 4 AD2d 580, 581 [1st Dept 1957], *appeal dismissed* 7 NY2d 741 [1959]). Moreover, although the authority to conduct a citizen's arrest does not authorize an investigative stop, the parties do not raise the issue whether a person may be arrested, following a traffic stop effected by a private citizen, for an offense other than the one that justified the stop.

II.

I would adopt the Appellate Division's rationale and affirm, in accordance with the statutory scheme governing citizen's arrests, as interpreted by this Court. A brief survey of the historical background is necessary.

The right or privilege of a citizen to perform an arrest arose in medieval England, at a time when law enforcement entities were not yet organized or widespread and methods of pursuing fugitive offenders were scarce. Citizens had not only the right to arrest others who committed crimes but the affirmative duty to participate in apprehending a criminal "when the 'hue and cry' was raised" (Ira P. Robbins, *Vilifying the Vigilante: A Narrowed Scope of Citizen's Arrest*, 25 Cornell JL & Pub Pol'y 557, 562 [2016], quoting Statute of Winchester 1285, 13 Edw 1 c 1-6 [1285], reprinted in *Select Documents of English Constitutional History* 77-78 [George Burton Adams & H. Morse Stephens eds 1901]). As the English common law developed in tandem with greater urbanization and the expansion of police forces, distinctions arose between arrests performed by a private citizen and those performed by a police or peace officer. A private citizen was permitted to arrest another for a crime committed in the citizen's presence but could "be held liable for false imprisonment if no crime was in fact committed" (Robbins, *Vilifying the Vigilante* at 564).

In the United States, some states recognized a common-law right of citizen's arrest, Massachusetts doing so in 1850 (*see Rohan v Sawin*, 59 Mass [5 Cush] 281 [1850]). Again, clear lines were drawn between the principles authorizing citizen's

arrest and those governing arrests by police or peace officers. In Massachusetts, for example, the Supreme Judicial Court has held that a private person may not arrest a suspect for a misdemeanor because that “might . . . encourage vigilantism and anarchistic actions” (*Commonwealth v Grise*, 398 Mass 247, 251, 496 NE2d 162, 165 [1986] [internal quotation marks omitted]). Other states codified the principles. Under California’s statutory scheme, for example, a citizen may arrest another for any “public offense committed or attempted in [the citizen’s] presence” (Cal Penal Code § 837 [1]) or for a felony under broader circumstances (*see id.* subds [2], [3]).

In New York, the Criminal Procedure Law permits “any person [to] arrest another person (a) for a felony when the latter has in fact committed such felony, and (b) for any offense when the latter has in fact committed such offense in his presence” (CPL 140.30 [1]). In other words, a private citizen “may arrest for an offense only when the defendant has in fact committed it . . . and for an offense of less than felony grade only when the defendant has in fact committed the offense in his presence” (Commn Staff Notes, reprinted following NY CLS, CPL 140.30). The statute, enacted in 1970, echoed the prior law (former Code Crim Proc § 183), enacted in 1881 (and revised in the 1960s), which provided that “[a] private person may arrest another, . . . [f]or an offense committed or attempted in [that person’s] presence” or “[w]hen the person arrested has committed a felony” (former Code Crim Proc § 183 [1967]).¹ A person who made a citizen’s arrest for a felony that “had never been committed” or for a misdemeanor that had not been committed or had occurred outside the citizen’s presence would be “guilty of a false imprisonment” (*McLoughlin v New York Edison Co.*, 252 NY 202, 205 [1929]).

The context of CPL 140.30 is key to its interpretation. Article 140 of the Criminal Procedure Law, which governs arrests without a warrant, includes several sections governing warrantless arrests “by police officer” or “by peace officer” (*see* CPL 140.10-140.27); CPL 140.30 itself; and two sections concerning warrantless arrests “by [a] person acting other than as a police officer or a peace officer” (CPL 140.35 [when and how made];

1. The Commission Staff observed that “[t]he significance of this subdivision attaches not so much to rare arrests by ordinary private citizens as to arrests by police officers in localities where they are not authorized to act as such and, hence, are relegated to private citizen standards” (Commn Staff Notes, reprinted following NY CLS, CPL 140.30).

CPL 140.40 [procedure after arrest]).² CPL 140.30, 140.35, and 140.40 govern citizen's arrests.

In *People v Williams*, this Court interpreted this statutory scheme to mean “that the authority to make a citizen’s arrest extends only to a ‘person acting *other than as a police officer or a peace officer*’” (*Williams*, 4 NY3d at 538 [citations omitted]). We held that two peace officers, employed by a housing authority but acting outside their geographical area of employment when they stopped a motor vehicle and questioned the driver, could not justify their actions as a citizen’s arrest. Because the two individuals were *acting* “as a police officer or a peace officer” (*id.*, quoting CPL 140.35, 140.40) or, as we put it, “act[ing] under color of law and with all the accouterments of official authority” (*id.* at 539), they could not execute a *citizen’s* arrest.

In the appeal before us, the dispositive question is therefore whether the federal agent was acting with the accouterments—the outward characteristics—of a police officer or peace officer within the meaning of *Williams*. Here, an on-duty federal agent, driving an SUV, pursued another driver on an interstate highway and on city streets, and then activated emergency lights to stop the other car. In these circumstances, a reasonable person would think that the individual in the SUV was a police officer or peace officer, not a citizen attempting to make an arrest. The record supports the lower courts’ conclusion that the agent acted under color of law and with the outward characteristics of official authority. Indeed, it would strain credulity to reach any other conclusion.

The majority interprets *Williams* to mean that the restriction of citizen’s arrests set out in that decision applies only to individuals who actually are peace officers: a convenient but inaccurate conclusion. In *Williams*, this Court relied on the language “*acting other than as a police officer or a peace officer*,” which occurs in the titles of the pertinent statutes, CPL 140.35 (“Arrest without a warrant; by person acting other than as a police officer or a peace officer; when and how made”) and CPL 140.40 (“Arrest without a warrant; by person acting other than as a police officer or a peace officer; procedure after arrest”). Notably, the statutes are not headed “Arrest without a warrant; by person who is not a police officer or a peace officer.” Moreover, the *Williams* Court deliberately selected two phrases—“color of law” and “all the accouterments of official

2. Other provisions, not pertinent here, follow CPL 140.40.

authority” (*Williams*, 4 NY3d at 539)—that denote the outward *appearance* of authority.

The test, as the *Williams* Court understood it, is whether the individual conducting the stop or arrest conveys the appearance of “acting . . . as a police officer or a peace officer.” Whether the individual is technically a peace officer under the Criminal Procedure Law is not to the point.³ The purpose of the statutory scheme, as interpreted in *Williams*, is to deter vigilantism and ensure that those whom a society has chosen to protect citizens from crime may readily be identified as such. In contrast, a person carrying out a citizen’s arrest must do so without pretense of other authority.

The majority’s reading of *Williams* results in the absurd state of affairs that a law enforcement official, acting outside the official’s geographical area of employment, may *not* use emergency lights to effect a traffic stop, if the official *is* considered a peace officer, but *is* permitted to use emergency lights to effect a traffic stop if the official is *not* a peace officer. There is no conceivable policy justification for such a mismatch.

III.

Our recent national history is fraught with difficulties in race relations, amidst a cultural context in which there is a sharp division over the use of guns. This would surely justify caution in this area, rather than an expansion. Recent years have seen a spate of incidents in which self-proclaimed law enforcement officials, such as neighborhood watch group or homeowners’ association members, and similar vigilantes have engaged in aggressive conduct, often with tragic consequences (see e.g. Lizette Alvarez & Cara Buckley, *Zimmerman is Acquitted in Trayvon Martin Killing*, NY Times, July 13, 2013; Richard Fausset, *2 Suspects Charged with Murder in Ahmaud Arbery Shooting*, NY Times, May 7, 2020; Mariel Padilla, *Black Deliveryman Says He was Blocked and Interrogated by White Driver*, NY Times, May 17, 2020). In some cases, citizen’s arrest laws have been invoked as a possible bar to prosecution (see e.g. Frances Robles, *The Citizen’s Arrest Law Cited in Arbery’s Killing Dates Back to the Civil War*, NY Times, May 13,

3. Given my analysis, I need not say whether I agree with the majority that the federal agent was not a peace officer under CPL 2.15 (7) (see majority op at 205-208).

2020). The expansion of citizen's arrest jurisprudence to amplify the authority of law enforcement officials who are not police or peace officers is an egregious mistake.

The majority's analysis has another, equally if not more disturbing, natural consequence. According to it, any citizen who is not a police or peace officer, even one who has no law enforcement training or qualification whatsoever, falls outside the *Williams* restrictions. Under this logic, a private citizen who has illegally installed emergency lights in a private vehicle may roam the streets, pulling over drivers for perceived traffic violations. If successful in stopping a driver who is then arrested by the police, the vigilante may possibly be prosecuted at the discretion of the authorities (the same authorities who have exploited the stop), but the constitutional protections of the Fourth Amendment would not apply.

The majority suggests that such vigilantism will be deterred because a private citizen who activates flashing lights to command the stop of a vehicle violates the law (*see* majority op at 208, citing Vehicle and Traffic Law § 375 [41], and Penal Law § 190.25 [3]). Of course, the federal agent in this case was not deterred, even though his conduct could in principle have subjected him to personal criminal liability. Generally, the slight risk of incurring a criminal prosecution for impersonating an officer in order to effect an arrest would not deter a private citizen who is able and inclined to apprehend someone by that method. Indeed, a citizen would likely be encouraged in effecting a citizen's arrest by the thought that pretending to be an undercover police officer would facilitate subduing the arrestee.

In short, it was proper for the *Williams* Court to emphasize the outward characteristics of official authority, rather than the technical definition of peace officers on which the majority now relies, and to provide a more powerful deterrent to vigilantism in the suppression of the fruits of such illegal conduct. In its attempt to justify a questionable stop, the majority has created a dangerous precedent.

IV.

I would reject the People's alternative contention that the physical evidence in this case should not be suppressed even if

the stop was illegal.⁴ Suppression is required when the government action violated a statute and “the principal purpose of [that] statute is to protect a constitutional right” (*People v Greene*, 9 NY3d 277, 280 [2007]; see e.g. *People v Taylor*, 73 NY2d 683, 690-691 [1989]; *People v Gallina*, 66 NY2d 52, 59 [1985]). Here, the statute in question is designed to protect a citizen’s constitutional right to be free from unreasonable searches and seizures (see US Const 4th Amend; NY Const, art I, § 12) by precluding the justification of an otherwise unlawful detention as a citizen’s arrest. The People maintain that the statutory scheme governing citizen’s arrests does “not serve to protect individuals against government conduct,” but rather is designed “to establish the circumstances under which a person may apprehend a person committing an offense.” However, the intent to protect an individual’s constitutional rights and the intent to set out the circumstances under which a person may detain another are not mutually exclusive. The People point to no reason why the legislature’s concerns, in setting out who has the power to arrest, would not have included, as part of the legislature’s principal purpose, the intent to ensure that arrests are conducted in a way that is consistent with the constitutional protection against unreasonable searches and seizures.

I would grant defendant’s motion to suppress the gun seized by the police as a result of the agent’s traffic stop. Accordingly, I dissent.

Chief Judge DiFIORE and Judges STEIN, GARCIA and WILSON concur; Judge FAHEY dissents and votes to affirm in an opinion in which Judge RIVERA concurs.

Order reversed, defendant’s motion to suppress denied, and case remitted to Supreme Court, Erie County, for further proceedings in accordance with the opinion herein.

4. Review of this question is not precluded by *People v LaFontaine* (92 NY2d 470 [1998]; see also *People v Concepcion*, 17 NY3d 192, 195 [2011]). Consideration of the People’s alternative argument by Supreme Court was “a necessary component of [the] suppression ruling adverse to the [appellant]” (*People v Myers*, 303 AD2d 139, 140 [2d Dept 2003] [internal quotation marks omitted], *lv denied* 100 NY2d 585 [2003]).

[150 NE3d 21, 126 NYS3d 443]

In the Matter of PAUL H. SENZER, a Justice of the Northport Village Court, Suffolk County, Petitioner. NEW YORK STATE COMMISSION ON JUDICIAL CONDUCT, Respondent.

Argued June 2, 2020; decided June 23, 2020

SUMMARY

PROCEEDING, pursuant to NY Constitution, article VI, § 22 and Judiciary Law § 44, to review a determination of respondent State Commission on Judicial Conduct, dated October 9, 2019. The Commission determined that petitioner should be removed from the office of Justice of the Northport Village Court, Suffolk County.

HEADNOTE

Judges — Disciplinary Proceedings — Removal from Office

Respondent New York State Commission on Judicial Conduct's determination that petitioner Village Court Justice be removed from office for his repeated use of profane, vulgar and sexist terms in emails to clients he represented in his private law practice that denigrated participants in the legal proceeding and used a crude gender-based slur to describe opposing counsel was accepted. Petitioner's statements were manifestly vulgar and offensive, and his repeated use of such language in written communications to insult and demean others involved in the legal process showed a pervasive disrespect for the system, conveyed a perception of disdain for the legal system, and indicated that he was unable to maintain the high standard of conduct demanded of judges. His derogatory comments impugned not just the particular referee involved in the case but all judges, and with it, the judiciary. Petitioner's conduct therefore undermined the dignity and integrity of the judicial system. The fact that petitioner's comments were contained in emails which he believed would not be shared did not excuse the wrongfulness of his conduct, as judges are accountable for their conduct at all times, including in conversations off the bench. Moreover, petitioner's conduct warranted removal notwithstanding the fact that he was not functioning in his judicial capacity at the time that it occurred. Petitioner's derogatory statements directly targeted the legal system and its participants writ large, and, thus, could not be divorced from his judicial role.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d Judges §§ 16, 19.

CARMODY-WAIT 2d Officers of Court §§ 3:107, 3:138–3:140, 3:150.

NY JUR 2d Courts and Judges §§ 334, 336, 364, 393, 394, 442, 445, 446.

ANNOTATION REFERENCE

Power of court to remove or suspend judge. 53 ALR3d 882.

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POINTS OF COUNSEL

Michael H. Blakey, Westhampton Beach, and *Long Tuminello, LLP*, Bay Shore (*Michelle Aulivola* and *David H. Besso* of counsel), for petitioner. I. The record before this Honorable Court does not support the extreme punitive sanction of removal from the bench. (*Matter of Simon [State Commn. on Jud. Conduct]*, 28 NY3d 35; *Matter of Roberts*, 91 NY2d 93; *Matter of Assini*, 94 NY2d 26; *Matter of Cerbone*, 61 NY2d 93; *Matter of Backal*, 87 NY2d 1; *Matter of Shilling*, 51 NY2d 397; *Matter of Mulroy*, 94 NY2d 652; *Matter of Hart [State Commn. on Jud. Conduct]*, 7 NY3d 1; *Matter of Aldrich v State Commn. on Jud. Conduct*, 58 NY2d 279; *Matter of Watson*, 100 NY2d 290.) II. The sanction should be reduced to censure. (*Matter of Cunningham*, 57 NY2d 270.)

Robert H. Tembeckjian, Albany (*Edward Lindner*, *Mark Levine* and *Brenda Correa* of counsel), for respondent. I. Petitioner violated the Rules Governing Judicial Conduct when he used the words “cunt,” “bitch,” “asshole,” “scumbags,” and “eyelashes” to refer to a female attorney, female litigant and female court referee while acting as an attorney in a judicial proceeding. (*Matter of Roberts*, 91 NY2d 93; *Matter of Assini*, 94 NY2d 26; *Matter of Cerbone*, 61 NY2d 93; *Matter of Shilling*, 51 NY2d 397.) II. Petitioner should be removed from office for using sexist and profane language that created the appearance of gender bias and undermined respect for the judicial system. (*Matter of Mulroy*, 94 NY2d 652; *Matter of Assini*, 94 NY2d 26; *Matter of Aldrich v State Commn. on Jud. Conduct*, 58 NY2d 279; *Reeves v C.H. Robinson Worldwide, Inc.*, 594 F3d 798; *Dyke v McCleave*, 79 F Supp 2d 98; *Winsor v Hinckley Dodge, Inc.*, 79 F3d 996; *Matter of Duckman*, 92 NY2d 141; *Matter of Johnson*, 149 AD3d 124; *Matter of Brecker*, 309 AD2d 77; *Matter of McDonald*, 241 AD2d 255.)

OPINION OF THE COURT

Per Curiam.

Petitioner, a Justice of the Northport Village Court, Suffolk County, seeks review of a determination by the State Commis-

sion on Judicial Conduct that he committed certain acts of misconduct warranting his removal from office (*see* NY Const, art VI, § 22; Judiciary Law § 44). Upon our review of the record, we conclude that the sanction of removal is appropriate and accept the Commission's determined sanction.

Petitioner has been a Justice of the Northport Village Court in Suffolk County, a part-time position, since 1994. He is an attorney who, during the relevant time period, also maintained a private law practice. The Commission's formal written complaint alleged, among other things, that petitioner repeatedly used degrading and profane language in communications with his legal clients, whom he represented through his private law practice. The charge against him is based, in large part, on conduct that occurred during his representation of two clients in a Family Court matter against their daughter in which the clients were seeking visitation with their grandchild. Over the course of several months, petitioner sent a series of emails to his clients providing legal advice in which he repeatedly insulted other participants in the legal process, including a litigant, opposing counsel, and the presiding court attorney referee, using vulgar and sexist terms. Among other things, petitioner used an extremely crude gender-based slur to describe opposing counsel. Based on the foregoing conduct, the Commission charged petitioner with violating sections 100.1, 100.2 (A) and 100.4 (A) (1), (2) and (3) of the Rules Governing Judicial Conduct (22 NYCRR) (the Rules). These sections of the Rules require judges to uphold the integrity and independence of the judiciary, avoid the appearance of impropriety and conduct their extra-judicial activities in a manner that is not incompatible with, nor detracts from, the dignity of judicial office. After denying petitioner's motion for summary determination or dismissal of the complaint, the Commission designated a Referee to report findings of fact and conclusions of law. The Referee sustained the charge with respect to the language petitioner used in his email communications with his clients, following a hearing at which petitioner admitted writing the emails in question.

The Commission thereafter determined that petitioner repeatedly used "profane, vulgar and sexist terms" in emails to his clients that denigrated participants in the legal proceeding, concluding that the appropriate sanction was removal from office. Beyond acknowledging the clear impropriety of petitioner's language, the Commission reasoned that removal was ap-

appropriate because petitioner used the offensive terms while acting as an attorney and providing legal advice to his clients, inextricably connecting his misconduct to the judicial system. The Commission also noted that petitioner's use of a gender-based slur was particularly concerning because such words "denigrate a woman's worth and abilities and convey an appearance of gender bias." In this Court, petitioner does not dispute the Commission's factual findings and acknowledges that his written communications violated the Rules. He instead contends that his misconduct, occurring in "private" communications, does not warrant removal from office, and urges us to reject the Commission's sanction.

The purpose of judicial disciplinary proceedings is to impose sanctions where needed to protect the bench from unfit incumbents (*see Matter of Esworthy*, 77 NY2d 280, 283 [1991]). We recognize that "[r]emoval is an extreme sanction" that is appropriate "only in the event of truly egregious circumstances" (*Matter of O'Connor [New York State Commn. on Jud. Conduct]*, 32 NY3d 121, 127 [2018] [citation omitted]), which we measure "with due regard to the fact that Judges must be held to a higher standard of conduct than the public at large" (*Matter of Tamsen*, 100 NY2d 19, 21 [2003] [citation omitted]). In determining the appropriate sanction, we must also consider the effect of the misconduct "upon public confidence in [the Judge's] character and judicial temperament" (*id.* at 21-22 [citation omitted]). Thus, removal is warranted where a judge exhibits "a pattern of injudicious behavior . . . which cannot be viewed as acceptable conduct by one holding judicial office" (*O'Connor*, 32 NY3d at 127-128 [citation omitted]). Whether a judge's behavior warrants removal is a fact-specific inquiry, as judicial disciplinary cases are necessarily *sui generis* (*see id.* at 128).

Here, petitioner's statements were manifestly vulgar and offensive, and his repeated use of such language in written communications to insult and demean others involved in the legal process showed a pervasive disrespect for the system, conveyed a perception of disdain for the legal system, and indicated that he is unable to maintain the high standard of conduct we demand of judges. Petitioner repeatedly denigrated a litigant, opposing counsel, and the presiding court attorney referee while acting as an officer of the court representing clients in an ongoing litigation—a professional function integral to our legal system. Indeed, his derogatory comments impugned not just

the particular referee involved in this case but all judges, and with it, the judiciary. In this context, petitioner's conduct undermined the dignity and integrity of the judicial system. Moreover, his use of an intensely degrading and "vile" (*Matter of Assini*, 94 NY2d 26, 29 [1999]) gendered slur to describe a female attorney, as well as petitioner's demeaning reference to her as "eyelashes," are especially disturbing; it is critical to our judicial system that judges "conduct themselves in such a way that the public can perceive and continue to rely upon the impartiality of those who have been chosen to pass judgment on legal matters involving their lives, liberty and property" (*Matter of Duckman*, 92 NY2d 141, 153 [1998] [internal quotation marks and citation omitted]). Petitioner's misconduct cannot be explained as an isolated or spontaneous slip of the tongue, as the statements—repeated multiple times—were included in deliberative, written communications petitioner made to these clients relating to their legal representation. Such a pattern of conduct, engaged in over several months and combined with a prior caution by the Commission for making sarcastic and disrespectful comments to litigants during a court proceeding, constitutes an unacceptable and egregious pattern of injudicious behavior that warrants removal.

Under these circumstances, the fact that petitioner's comments were contained in emails sent to only two clients, which he believed would not be shared, does not excuse the wrongfulness of his conduct. There is no question that judges are accountable for their conduct "at all times," including in conversations off the bench (*Matter of Backal*, 87 NY2d 1, 8 [1995] [citations omitted]). Because judges carry the esteemed office with them wherever they go, they must always consider how members of the public, including clients or colleagues, will perceive their actions and statements (see *Matter of Steinberg*, 51 NY2d 74, 81 [1980]). We have long recognized that misconduct, no matter where it occurs, "subjects the judiciary as a whole to disrespect and impairs the usefulness of the individual Judge" (*Matter of Kuehnel v State Commn. on Jud. Conduct*, 49 NY2d 465, 469 [1980]). Under our standards, petitioner's conduct warrants removal notwithstanding the fact that he was not functioning in his judicial capacity at the time that it occurred (see *Tamsen*, 100 NY2d at 22). Petitioner's clients with whom he had a professional relationship are indisputably members of the public despite any personal relationship he had with them. Further, petitioner's derogatory statements

directly targeted the legal system and its participants writ large, and, thus, cannot be divorced from his judicial role, notwithstanding that petitioner communicated them when off the bench. In sum, we agree with the Commission that the petitioner's repeated use of such derogatory language in this context, in conjunction with his prior caution, warrants removal. A judge's role is to cultivate respect for the judicial process and its participants—petitioner did just the opposite.

Accordingly, the determined sanction should be accepted, without costs, and Paul H. Senzer removed from his office of Justice of the Northport Village Court, Suffolk County.

Determined sanction accepted, without costs, and Paul H. Senzer removed from the office of Justice of Northport Village Court, Suffolk County.

Chief Judge DiFIORE and Judges RIVERA, STEIN, FAHEY, GARCIA, WILSON and FEINMAN concur in per curiam opinion.

[150 NE3d 24, 126 NYS3d 446]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v DAVID
R. LANG, Appellant.

Argued June 2, 2020, decided June 23, 2020

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Third Judicial Department, entered August 2, 2018. The Appellate Division affirmed a judgment of the Essex County Court (Richard B. Meyer, J.), which had convicted defendant, upon a jury verdict, of murder in the second degree and criminal possession of a weapon in the fourth degree.

People v Lang, 164 AD3d 963, reversed.

HEADNOTE

Crimes — Jurors — Discharge of Juror — Failure to Make Requisite Inquiry before Replacement by Alternate

The trial court failed to satisfy the requirement that it conduct a reasonably thorough inquiry into a sitting juror's unavailability or place on the record facts supporting a finding that the juror was unavailable for service (*see* CPL 270.35 [2]) before substituting an alternate juror on the ninth day of defendant's murder trial. The trial court merely stated its belief that the sitting juror had an appointment for a family member, and incorrectly claimed that the sitting juror had stated during voir dire that she had a medical appointment for her son in another city. Not only did the court provide only limited, and inaccurate, reasons to support a finding of unavailability, there was nothing on the record reflecting that it made any inquiry into the sitting juror's whereabouts or likelihood of appearing prior to ordering the substitution of the sitting juror with the alternate juror.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d Trial §§ 1394, 1395, 1402.

CARMODY-WAIT 2d Jury Selection and Supervision
§§ 191:84, 191:85, 191:88; CARMODY-WAIT 2d Jury
Conduct and Deliberation § 201:4.

McKINNEY'S, CPL 270.35 (2).

NY JUR 2d Criminal Law: Procedure §§ 2637, 2638.

ANNOTATION REFERENCE

See ALR Index under Jury Trials; Substitution of Juror.

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alternate

POINTS OF COUNSEL

Jenner & Block LLP, Washington D.C. (*Matthew S. Hellman* of the District of Columbia bar, admitted pro hac vice, of counsel), and *Tendy Law Office LLC*, New York City (*Sheila Tendy* of counsel), for appellant. I. The trial court erroneously failed to give a curative instruction when the State Police failed to preserve critical evidence of defendant's intent. (*People v Handy*, 20 NY3d 663; *People v Kelly*, 62 NY2d 516; *People v James*, 93 NY2d 620; *People v Vilardi*, 76 NY2d 67; *People v Washington*, 23 NY3d 228; *People v Smith*, 18 NY3d 544; *People v Hayes*, 17 NY3d 46; *People v Alvarez*, 70 NY2d 375; *People v Jardin*, 88 NY2d 956; *People v Gomez-Kadawid*, 66 AD3d 1124.) II. The court dismissed juror number 9 without making a reasonably thorough inquiry or providing an opportunity to be heard as required by CPL 270.35. (*People v Washington*, 75 NY2d 740; *People v Jeanty*, 94 NY2d 507; *People v Battle*, 167 AD2d 190; *People v Griffin*, 98 AD3d 688; *People v Shelton*, 31 AD3d 791; *People v Myers*, 28 AD3d 373; *People v Owens*, 136 AD3d 841; *People v Buford*, 69 NY2d 290.) III. The People's right to comment on the evidence does not include the right to testify. (*People v Bailey*, 58 NY2d 272; *People v Forbes*, 111 AD3d 1154; *People v Morgan*, 66 NY2d 255; *People v Tarrantola*, 178 AD2d 768; *People v Dunbar*, 213 AD2d 1000; *People v Moye*, 12 NY3d 743; *People v Lovello*, 1 NY2d 436; *People v Casanova*, 119 AD3d 976; *Gilster v Primebank*, 747 F3d 1007; *People v Nicholas*, 130 AD3d 1314.)

Kirsty L. Sprague, District Attorney, Elizabethtown (*Michele A. Bowen* and *Kathryn M. Moryl* of counsel), for respondent. I. The trial court properly denied defendant's request for a curative instruction, because evidence of intoxication was not necessary to defendant's prosecution and the police were not required to obtain potentially useful evidence for defendant. (*People v Winchell*, 250 AD2d 942, 92 NY2d 931; *People v Aviles*, 28 NY3d 497; *People v Hayes*, 17 NY3d 46; *People v Holley*, 26 NY3d 514; *People v Alvarez*, 70 NY2d 375; *People v Collins*, 106 AD3d 1544, 21 NY3d 1072; *People v Handy*, 20 NY3d 663; *People v Gomez-Kadawid*, 66 AD3d 1124; *People v Kelly*, 62 NY2d 516.) II. The trial court properly presumed that juror number nine was unavailable for continued service and properly exercised its discretion to discharge the juror, after

providing defendant the opportunity to be heard. (*People v Jeanty*, 94 NY2d 507; *People v Vaughn*, 132 AD3d 456, 26 NY3d 1151; *People v Settles*, 28 AD3d 591, 7 NY3d 795; *People v Wilkinson*, 166 AD3d 1396, 32 NY3d 1179; *People v Battle*, 167 AD2d 190, 77 NY2d 875.) III. The People did not serve as “witness” at any time during summation, and offered fair comment on the evidence in response to defendant’s closing arguments. (*People v Wynn*, 149 AD3d 1252, 29 NY3d 1136; *People v Thomas*, 155 AD3d 1120, 31 NY3d 1018; *People v Jackson*, 160 AD3d 1125, 31 NY3d 1149.)

OPINION OF THE COURT

GARCIA, J.

On the ninth day of defendant’s murder trial, the court substituted an alternate juror for a sitting juror who failed to appear. Before doing so, the trial court did not conduct a reasonably thorough inquiry into the sitting juror’s unavailability or place on the record facts supporting a finding that the juror was unavailable for service (*see* CPL 270.35 [2]). Accordingly, we reverse.

On June 19, 2012, defendant called 911 and told the dispatcher that he had shot his brother. Police responded to the farm where the brothers lived and discovered that defendant’s brother had indeed been shot. He died shortly thereafter. Defendant was arrested and charged with murder in the second degree (Penal Law § 125.25 [1]) and criminal possession of a weapon in the fourth degree (*id.* § 265.01 [2]). He proceeded to trial.

Before the day’s proceedings began on the morning in question, the judge informed the parties that one of the jurors was absent:

“Juror Number 9 could not be here to finish the trial today due to a—I believe an incredibly important appointment for a family member, which is understandable. . . . But it seems to me it’s unfortunate, but we certainly appreciate her service and we’re sorry she couldn’t finish the trial, so we’ll have to use Alternate Number 1 to finish the trial. We’ll discuss this later. All right? And if you have some objections. . . .

“But in any event, anything else? Are you ready to . . . begin? Who’s calling the witness?”

Without stating that it was ordering the substitution, the court proceeded with Alternate Number 1 seated in place of Juror Number 9.

At the next recess, the judge asked defense counsel if he had “a problem” with the court’s decision to replace the juror, noting that counsel seemed to “have some reticence about that.” Counsel objected to the substitution, asserting that the court had failed to conduct an inquiry into Juror Number 9’s absence and give counsel an opportunity to be heard on the issue. The court responded that Juror Number 9 “stated in voir dire that she did have a medical appointment for her son in Rochester and that’s where she went.” Defense counsel disagreed that the juror had made that statement—which, in fact, she had not—and the court acknowledged that “[m]aybe she wasn’t the one, but there was somebody who said they had a medical appointment.” Although counsel objected to the absence of a reasonably thorough inquiry into the juror’s unavailability, the court placed no further facts regarding Juror Number 9’s absence on the record, noted defense counsel’s exception, and proceeded with the trial.

At a later recess the same morning, defense counsel moved for a mistrial based on the court’s substitution of the sitting juror without giving defendant prior notice or an opportunity to be heard. The court denied the motion. Alternate Number 1 served for the remainder of the trial and was a member of the jury that found defendant guilty on both charges. Defendant was sentenced to a term of 17 years to life in prison.

The Appellate Division affirmed, holding that, “[i]n context,” the trial court “engaged in the requisite reasonably thorough inquiry prior to determining that the juror would not be returning within two hours” and that defendant had an opportunity to be heard prior to the discharge of the juror (164 AD3d 963, 969 [3d Dept 2018]). A Judge of this Court granted defendant’s application for leave to appeal (32 NY3d 1126 [2018]).

The Criminal Procedure Law provides that, to determine whether an absent sworn juror may be presumed “unavailable for continued service,” the trial court must “make a reasonably thorough inquiry” regarding the juror’s absence and “attempt to ascertain when such juror will be appearing in court” (CPL 270.35 [2] [a]). “If such juror fails to appear, or if the court determines that there is no reasonable likelihood such juror will be appearing, in court within two hours of the time set by the court for the trial to resume, the court may presume such

juror is unavailable for continued service” and, after providing the parties an “opportunity to be heard” and placing on the record the “facts and reasons for its determination,” the court may discharge the juror (*id.* § [2] [a]-[b]). While the trial court need not actually wait two hours before substituting a juror, the court may not “presume” that a juror is unavailable for continued service without conducting the requisite “reasonably thorough inquiry” and determining that a juror is not likely to appear within two hours (*People v Jeanty*, 94 NY2d 507, 512, 516 [2000] [describing circumstances sufficient to warrant finding of unavailability]). “Without a reasonably thorough inquiry . . . the exercise of the court’s discretion on the ultimate issue of whether or not to replace the juror would be uninformed” (*id.* at 516).

Here, the trial court failed to conduct the requisite “reasonably thorough inquiry” before substituting Alternate Number 1 for Juror Number 9 (*see* CPL 270.35 [2] [a]). When it ordered the substitution, the court had merely stated its “belie[f]” that Juror Number 9 had an “appointment for a family member,” and incorrectly claimed that Juror Number 9 had stated during voir dire that she had a medical appointment for her son in Rochester. Not only did the court provide only limited—and inaccurate—reasons to support a finding of unavailability, there is nothing on the record reflecting that it made any inquiry into Juror Number 9’s whereabouts or likelihood of appearing prior to ordering the substitution of Juror Number 9 with Alternate Number 1. On this record, the court failed to satisfy the requirement that a trial court conduct a “reasonably thorough inquiry” to ensure that its substitution determination is adequately informed (*id.*; *Jeanty*, 94 NY2d at 512).

Because reversal is required, we need not reach defendant’s remaining arguments regarding the prosecutor’s summation and the denial of his request for an adverse inference instruction (*see People v Moya*, 66 NY2d 887, 890 [1985]).

The order of the Appellate Division should be reversed and a new trial ordered.

Chief Judge DiFiore and Judges Rivera, Stein, Fahey, Wilson and Feinman concur.

Order reversed and new trial ordered.

[150 NE3d 848, 127 NYS3d 45]

In the Matter of REBECCA SEAWRIGHT, Respondent, v BOARD OF ELECTIONS IN THE CITY OF NEW YORK, Appellant. LOUIS PULIAFITO, Intervenor-Appellant.

In the Matter of LOUIS PULIAFITO, Appellant, v BOARD OF ELECTIONS IN THE CITY OF NEW YORK, Appellant, and REBECCA SEAWRIGHT, Respondent.

In the Matter of OLA HAWATMEH, Appellant, v NEW YORK STATE BOARD OF ELECTIONS, Respondent, and JAMES GOBLET et al., Respondents.

Submitted May 20, 2020; decided May 21, 2020

SUMMARY

APPEAL, in the first and second above-entitled proceedings, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered May 14, 2020. The Appellate Division affirmed orders of the Supreme Court, New York County (Carol R. Edmead, J.; 2020 NY Slip Op 31311[U] [2020]), entered in related proceedings pursuant to Election Law article 16, which had (1) denied Louis Puliafito's petitions to invalidate the designating petitions of Rebecca Seawright seeking to be placed on the ballot for the Democratic Party and the Working Families Party primary elections to be held on June 23, 2020; (2) granted Rebecca Seawright's petitions to validate those designating petitions; and (3) declared those designating petitions to be valid, proper, sufficient, and legally effective.

APPEAL, in the third above-entitled proceeding, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Third Judicial Department, entered May 15, 2020. The Appellate Division affirmed a judgment of the Supreme Court, Albany County (Richard M. Platkin, J.; op 68 Misc 3d 449 [2020]), entered in a combined proceeding pursuant to Election Law § 16-102 and CPLR article 78 and action for declaratory judgment, which had dismissed petitioner's application to declare valid the designating petition naming petitioner as the Conservative Party candidate for the public office of Member of the United States House of Representatives for the 19th Congressional District of New York in the June 23, 2020 primary election.

Matter of Seawright v Board of Elections in the City of N.Y., 183 AD3d 472, reversed.

Matter of Hawatmeh v New York State Bd. of Elections, 183 AD3d 1109, affirmed.

HEADNOTE

Elections — Designating Petitions — Fatal Defect — Untimely Filing of Cover Sheet or Certificate of Acceptance during COVID-19 Public Health Crisis

Petitioners' failure to timely file a cover sheet with a designating petition or a certificate of acceptance relating to their candidacies for public office constituted inexcusable "fatal defect[s]" under Election Law § 1-106 (2), notwithstanding the unique circumstances presented by the COVID-19 pandemic. Strict compliance with the Election Law reduces the likelihood of unequal enforcement. Moreover, the provisions of the Election Law make it clear that the time limitations for filing are mandatory and foreclose the judiciary from fashioning exceptions, however reasonable they might appear to be. Accordingly, strict compliance with the time limitations imposed by the Election Law is mandatory, notwithstanding a candidate's unique or extenuating circumstances. Untimely filings dilute the integrity of the election process and jeopardize enforcement of the mandatory filing requirements set forth in the Election Law. While several of the legislature's directives had been expressly suspended or modified in response to the public health crisis, and the legislature had itself modified the filing deadlines applicable in the appeals, candidates had not been relieved from the consequences of a late filing. Nor had any measures been implemented that purported to confer judicial discretion or equitable authority to fashion further relief.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d Elections § 241.

CARMODY-WAIT 2d Proceedings Under Election Laws
§§ 137:56, 137:61.

McKINNEY'S, Election Law § 1-106 (2).

NY JUR 2d Elections § 368.

ANNOTATION REFERENCE

See ALR Index under Elections and Voting.

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POINTS OF COUNSEL

James E. Johnson, Corporation Counsel, New York City
(*Elina Drucker* of counsel), for Board of Elections in the City of
New York, appellant in the first and second above-entitled

proceedings. Petitioner's failures to timely file a cover sheet in connection with her Democratic Party designating petition and a certificate of acceptance in connection with her Working Families Party designation were fatal, non-curable defects. (*Matter of Hutson v Bass*, 54 NY2d 772; *Matter of Armwood v McCloy*, 109 AD3d 558, 21 NY3d 861; *Matter of Plunkett v Mahoney*, 76 NY2d 848; *Matter of Scaturro v Becker*, 76 AD3d 687.)

Eiseman Levine Lehrhaupt & Kakoyiannis PC, New York City (Lawrence A. Mandelker of counsel), for Louis Puliafito, intervenor-appellant in the first above-entitled proceeding and appellant in the second above-entitled proceeding. Even during the COVID-19 pandemic, Election Law § 1-106 (2)'s filing requirements continue to be sacrosanct and are not to be disturbed by the courts in the interest of justice. (*Matter of Hutson v Bass*, 54 NY2d 772; *Matter of Staber v Fidler*, 65 NY2d 529; *Matter of Pierce v Breen*, 86 NY2d 455; *Matter of Plunkett v Mahoney*, 76 NY2d 848; *Matter of Bosco v Smith*, 104 AD2d 462, 63 NY2d 698.)

Bedford Soumas LLP, New York City (Gregory C. Soumas of counsel), for respondent in the first and second above-entitled proceedings. I. Nothing in Election Law § 6-134 (2) and/or 9 NYCRR 6215.7 prevents or precludes the filing of a late or amended cover sheet. (*Matter of Fuentes v Catalano*, 165 AD3d 1010; *Matter of Vacca v Kosinski*, 176 AD3d 1305; *Matter of Magelaner v Park*, 32 AD3d 487; *Matter of May v Daly*, 254 AD2d 688; *Matter of McDonough v Scannapieco*, 65 AD3d 647; *Matter of Balberg v Board of Elections in the City of N.Y.*, 109 AD3d 910.) II. The New York City Board of Elections failed to comply with 9 NYCRR 6215.7 and never properly served a cure notice on Rebecca Seawright. (*Matter of Pearse v New York City Bd. of Elections*, 10 AD3d 461.) III. Supreme Court has the discretionary powers to permit late filings to relieve a mistake, to correct an error, or where an excusable inadvertence leads to a delay in the filing of an acceptance or designating certificate. (*Matter of Kress v Board of Elections of County of Niagara*, 67 Misc 2d 121; *Matter of Mellen v Board of Elections of City of N.Y.*, 262 NY 422; *Matter of Battista v Power*, 10 NY2d 867; *Matter of Carson v Lomenzo*, 18 NY2d 263; *Matter of MacKenzie v Buckley*, 75 Misc 2d 379.)

Sinnreich, Kosakoff & Messina, LLP, Central Islip (John Ciampoli of counsel), for appellant in the third above-entitled proceeding. The courts have a history of altering the provisions

of the Election Law to allow for filings which do not comply with the provisions of the Election Law and it was impossible for petitioner's acceptance to be timely postmarked. (*Matter of Cozzolino v Columbia County Bd. of Elections*, 218 AD2d 921; *Matter of Vacca v Kosinski*, 176 AD3d 1305; *Matter of Fuentes v Catalano*, 165 AD3d 1010; *Matter of Pell v Coveney*, 37 NY2d 494; *Matter of Hall v Dussault*, 109 AD3d 679; *Matter of Harden v Board of Elections in City of N.Y.*, 74 NY2d 796; *Matter of Pierce v Breen*, 220 AD2d 875.)

Law Office of Joseph T. Burns, PLLC, Williamsville (*Joseph T. Burns* of counsel), for James Goblet and others, respondents in the third above-entitled proceeding. Chapter 24 of the Laws of 2020 did not provide any relaxation of the mandates of Election Law § 1-106 (2) and no excuse allows the filing mandates of Election Law § 1-106 (2) to be ignored.

OPINION OF THE COURT

Per Curiam.

In *Matter of Seawright v Board of Elections in the City of N.Y.*, the Appellate Division, First Department, held that—in light of the “unique circumstances” created by the COVID-19 pandemic—the candidate's belated filing of a cover sheet and certificate of acceptance did not constitute a fatal defect (183 AD3d 472, 473 [1st Dept May 14, 2020]). In *Matter of Hawatmeh v New York State Bd. of Elections*, the Appellate Division, Third Department, rejected the First Department's approach and reached the opposite conclusion, holding that— notwithstanding the “unprecedented circumstances created by the COVID-19 pandemic”—the candidate's belated filing of a certificate of acceptance was a fatal defect (183 AD3d 1109, 1111 [3d Dept May 15, 2020]).¹

We granted leave to resolve this departmental split (35 NY3d 905 [2020]; 35 NY3d 904 [2020]). We now reverse in *Seawright* and affirm in *Hawatmeh*.

1. Similarly, in *Matter of Jasikoff v Commissioners of Westchester County Bd. of Elections*, the Appellate Division, Second Department, held that the late filing of a designating petition was a fatal defect, notwithstanding the COVID-19 pandemic, because “the filing deadlines in the Election Law are mandatory and absolute, and are not subject to the discretion of the courts or the judicial fashioning of exceptions, regardless of how reasonable they may appear to be” (183 AD3d 669, 670 [2d Dept May 7, 2020]). That reasoning was expressly rejected by the First Department in *Seawright*.

I.

Seawright

On March 19, 2020, incumbent New York State Assembly Member Rebecca Seawright, a registered Democratic Party member, filed a petition designating her a candidate for the office of Member of the Assembly for the 76th Assembly District on the Democratic Party primary ballot. Seawright’s designating petition consisted of two volumes, each longer than 10 pages, and accordingly, under rules promulgated by the New York State Board of Elections (the State Board) and the Board of Elections in the City of New York (the City Board), an accompanying cover sheet was required (*see* 9 NYCRR 6215.1 [b]; [e] [3]; City Board Designating Petition and Opportunity to Ballot Petition Rules for Primary Elections rule C1 [adopted Feb. 12, 2019]). Seawright failed to file a cover sheet prior to the March 20 deadline, which was established by statute on March 18 (*see* L 2020, ch 24, § 1).

On March 19, Seawright also filed a petition designating her a candidate for the same office on the Working Families Party primary ballot. Because she was not a member of the Working Families Party, Seawright was required to file a certificate accepting this designation (Election Law § 6-146 [1]). Seawright failed to file a certificate of acceptance by March 24, the deadline imposed by Election Law § 6-158 (2) and chapter 24 of the Laws of 2020.

The City Board invalidated (1) Seawright’s designating petition for the Democratic Party primary on the ground that she failed to timely file a cover sheet, and (2) Seawright’s designating petition for the Working Families Party on the ground that she failed to timely file a certificate of acceptance. Seawright then commenced proceedings to validate her designating petitions. Louis Puliafito moved to intervene in Seawright’s proceedings and also commenced separate proceedings, seeking to invalidate each of Seawright’s two designating petitions. Seawright’s filings noted that she was ill with “COVID symptoms” and was “ordered to quarantine” during the weeks surrounding the statutory deadlines.

Following a hearing, Supreme Court granted Seawright’s petitions to validate and denied Puliafito’s petitions to invalidate (*see Matter of Seawright v Board of Elections in the City of N.Y.*, 2020 NY Slip Op 31311[U] [2020]). The City Board

and Puliafito appealed, and the Appellate Division, First Department, unanimously affirmed (*see Matter of Seawright*, 183 AD3d 472). Emphasizing the “unprecedented circumstance of a statewide health emergency,” the Court determined that “the belated filing of these specific documents is not a fatal defect” (*id.* at 473).

Hawatmeh

Ola Hawatmeh is a prospective Conservative Party candidate for the office of Member of the United States House of Representatives for the 19th Congressional District. From March 14 to March 24, 2020, Hawatmeh underwent prescheduled, out-of-state cancer treatment. On March 20, a petition was filed to designate Hawatmeh a Conservative Party candidate in the 19th Congressional District primary. Because she was not a member of the Conservative Party, Hawatmeh was required to file a certificate of acceptance (Election Law § 6-146 [1]). She failed to file the certificate by the recently established March 24 deadline (*see* Election Law § 6-158 [2]; L 2020, ch 24, § 1), and the State Board determined that Hawatmeh’s designating petition was invalid because the certificate of acceptance was not timely filed.

Hawatmeh subsequently commenced a proceeding to validate the designating petition. Supreme Court dismissed the petition, agreeing with the State Board that Hawatmeh’s certificate of acceptance was not timely filed (*see Matter of Hawatmeh v New York State Bd. of Elections*, 68 Misc 3d 449 [2020]). The Appellate Division, Third Department, affirmed, with one Justice dissenting, holding that the Court had no discretion to excuse the late filing (*Matter of Hawatmeh*, 183 AD3d at 1111). Although the Court was “sympathetic to the difficult situation that [Hawatmeh] was placed in due to the pandemic,” it determined that “the equitable remedy that she seeks is unavailable” (*id.*).

II.

The Election Law provides that “[t]he failure to file any petition or certificate relating to the designation or nomination of a candidate for party position or public office or to the acceptance or declination of such designation or nomination within the time prescribed by the provisions of this chapter shall be a fatal defect” (Election Law § 1-106 [2]). Applying the Election Law, we have repeatedly held that the failure to timely file

required papers in connection with a designating petition, including a cover sheet or certificate of acceptance, is a “fatal defect” that cannot be excused (*see e.g. Matter of Plunkett v Mahoney*, 76 NY2d 848, 850 [1990]; *Matter of Hutson v Bass*, 54 NY2d 772, 773-774 [1981]; *Matter of Baker v Monahan*, 42 NY2d 1074, 1075 [1977]; *Matter of Carr v New York State Bd. of Elections*, 40 NY2d 556, 558 [1976]). Strict compliance with the Election Law, we have held, “reduces the likelihood of unequal enforcement,” emphasizing that “[t]he sanctity of the election process can best be guaranteed through uniform application of the law” (*Matter of Gross v Albany County Bd. of Elections*, 3 NY3d 251, 258 [2004] [internal quotation marks omitted]). Moreover, the provisions of the Election Law “make it crystal clear that the time limitations for filing are mandatory” and “foreclose the judiciary from fashioning exceptions, however reasonable they might” appear to be (*Matter of Baker*, 42 NY2d at 1074 [internal quotation marks omitted]). Accordingly, we have consistently mandated strict compliance with the time limitations imposed by the Election Law, notwithstanding a candidate’s unique or extenuating circumstances (*see Matter of Plunkett*, 76 NY2d at 850; *Matter of Hutson*, 54 NY2d at 774; *cf. Matter of Sheehan v Aylward*, 84 AD2d 602, 603 [3d Dept 1981], *affd* 54 NY2d 934 [1981]).

Though the Election Law has been amended over the years, these provisions and principles have never been “abandon[ed]” (*see Wilson, J.*, dissenting op at 256). To the contrary, even after the 1992 passage of the Election Reform Act, we reinforced that untimely filings “dilute the integrity of the election process” and “jeopardize enforcement of the mandatory filing requirements set forth in the Election Law” (*Matter of Pierce v Breen*, 86 NY2d 455, 458 [1995]). To resolve any doubt, this Court confirmed that “[t]he Election Reform Act does not alter the strict filing provisions of Election Law § 1-106” (*id.* at 459; *see also Matter of Gross*, 3 NY3d at 258 [discussing the importance of “strict compliance with the Election Law,” which provides “no invitation for the courts to exercise flexibility in statutory interpretation”]). Accordingly,

“[w]hat the Court of Appeals said 35 years ago is still apt: ‘It is wholly immaterial that the courts might reasonably conclude that what they perceive as the ultimate legislative objectives might better be achieved by more flexible prescriptions, prescrip-

tions which might be judged by some to be more equitable. Whatever may be our view, the Legislature has erected a rigid framework of regulation, detailing as it does throughout specific particulars’ ” (*Matter of Avella v Johnson*, 142 AD3d 1111, 1113 [2d Dept 2016] [internal quotation marks omitted], quoting *Matter of Hutson*, 54 NY2d at 774).

Our adherence to the legislature’s strict compliance rule, in other words, remains intact.

The COVID-19 pandemic has undoubtedly presented uniquely challenging circumstances for Seawright and Hawatmeh—among countless other candidates for public office. Nonetheless, as in our prior cases, we remain constrained by the express directive of the Election Law: the complete failure to file, by the applicable deadline, either a cover sheet with a designating petition or a certificate of acceptance constitutes a “fatal defect” (Election Law § 1-106 [2]). The First Department’s analysis, employed in *Seawright*, *Matter of Mejia v Board of Elections in the City of N.Y.* (35 NY3d 1040 [2020] [decided herewith]), and *Matter of Mujumder v Board of Elections in the City of N.Y.* (35 NY3d 1040 [2020] [decided herewith]), directly conflicts with that well-established statutory mandate.²

Notably, while several of the legislature’s directives have been expressly suspended or modified in response to the public health crisis (*see e.g.* Executive Order [A. Cuomo] No. 202.2 [9 NYCRR 8.202.2] [Mar. 14, 2020] [reducing signature gathering requirements for designating petitions]; Executive Order [A. Cuomo] No. 202.7 [9 NYCRR 8.202.7] [Mar. 19, 2020] [allowing for notarization via “audio-video technology”]), and the legislature has itself modified the filing deadlines applicable in these appeals (*see* L 2020, ch 24), candidates have not been relieved from the consequences of a late filing. Nor have any measures been implemented that purport to confer judicial discretion or equitable authority to fashion further relief. “The time requirements for filing papers set forth in the Election Law are mandatory and absolute,” and we are “without authority or discretion to fashion excep-

2. Our dissenting colleague asserts that the decisions below relied on “extraordinary and unusual facts” that are “unlikely to reappear in our lifetimes” while simultaneously contending that the First Department simply applied a straightforward, decades-old interpretation of the Election Law (Wilson, J., dissenting op at 252, 253, 257-258). Even if both propositions could somehow be true, neither undermines the important goals of fairness and equality that are served when we resolve “conflict[s] among the departments of the Appellate Division” (22 NYCRR 500.22 [b] [4]).

tions”—no matter how compelling the circumstances may be (*Matter of Hawatmeh*, 183 AD3d at 1111). It is for the legislature, not the courts, to decide when the law should “give way” (Rivera, J., dissenting op at 243) to the circumstances of the moment. During the most difficult and trying of times, consistent enforcement and strict adherence to legislative judgments should be reinforced—not undermined. Accordingly, in both *Seawright* and *Hawatmeh*, the candidates’ untimely filings constituted fatal defects (Election Law § 1-106 [2]; see § 6-158 [2]; L 2020, ch 24).³

Even if unique circumstances were a license to disregard the Election Law, the theory endorsed by our dissenting colleagues relies on the alarmist and factually inaccurate premise that timely filing would have required Seawright to “disregard[] the public health by exposing others to a life-threatening virus” (Rivera, J., dissenting op at 236; accord Wilson, J., dissenting op at 253 [claiming that, to “appear on the ballot,” Seawright would have been required to “risk() her life and the lives of others”]). The City Board’s cover sheet template explicitly allows for a “Candidate *or Agent*” to sign and submit the candidate’s cover sheet (9 NYCRR 6215.8 [emphasis added]), and Seawright has never argued that she was responsible for filing the cover sheet, let alone that she was the only person associated with the campaign who was capable of filing it. In fact, in *Mejia* (35 NY3d 1040 [decided herewith]) and *Mujumder* (35 NY3d 1040 [decided herewith]), the candidates attributed the lateness of their cover sheets to the same third-party “agent” who, according to his affidavit, was “responsible for filing the respective cover sheets.” Seawright was similarly free to enlist the assistance of an agent, including any number of individuals associated with her campaign, to timely file her required cover sheet.

Nor were candidates required to break “mandatory quarantine” (Rivera, J., dissenting op at 236) in order to submit their certificates of acceptance. In her affidavit, Seawright asserts only that, because she was “ill and under quarantine,” she could not seek out “a notary to witness in person [her] signature.” However, Executive Order (A. Cuomo) No. 202.7, issued on March 19, expressly permitted notarization using “audio-video technology,” and the Election Law allows for cer-

3. We do not agree with our dissenting colleague’s view (see Wilson, J., dissenting op at 261-262) that *Hawatmeh*’s appeal can be disposed of on alternative grounds pursuant to Election Law § 1-106 (1).

tificates of acceptance to be mailed, rather than hand delivered, to the appropriate board of elections (*see* Election Law § 1-106 [1]). Tellingly, according to the City Board, more than 1,000 designating petitions were timely and properly filed in New York City alone—including by candidates experiencing the same challenges as these petitioners.

We have considered petitioners' remaining contentions and find them to be without merit.

In *Seawright*, the order of the Appellate Division should be reversed, without costs, the petitions by Rebecca Seawright to validate her designating petitions denied, and the petitions by Louis Puliafito to invalidate Seawright's designating petitions granted. In *Hawatmeh*, the order of the Appellate Division should be affirmed, without costs.

RIVERA, J. (dissenting). Petitioner Rebecca Seawright sought to run in the 2020 primary elections for a seat in the State Assembly. The primary season coincided with the early stage of the novel coronavirus (COVID-19) pandemic's spread to the United States and an increase in COVID-19 cases in New York. Petitioner became ill with COVID-19 symptoms and entered quarantine in her home in New York City, in accordance with public health directives. Although she timely filed her designating petitions under the truncated filing period enacted by the state legislature in response to the coronavirus pandemic, she filed her cover sheet and certificate of acceptance after the new deadline, at the end of her quarantine and within the former deadline, which expired the following week.

The Appellate Division held that the delayed filing of these additional documents was not a fatal defect requiring invalidation of her timely filed designating petitions. I agree and would affirm because the sole reason for the belated filing was petitioner's illness and mandatory quarantine due to COVID-19. Petitioner's conduct did not involve fraud or result in prejudice. Instead, petitioner quite rightly acted in compliance with governmental guidance and in furtherance of recent legislation intended to protect the public. On this appeal, our choice is clear: punish petitioner for doing what the legislature, Governor and public health experts declared was necessary to protect herself and others, or reward what would have been the selfish act of disregarding the public health by exposing others to a life-threatening virus, so that she could file two sheets of paper by a deadline intended to reduce, rather than

increase, candidate interaction with voters. I find no logic in the majority's application of the law to invalidate her designating petitions under the unique circumstances of this case.

I.

On March 18, 2020, faced with the reality of a global pandemic and the growing awareness that New York State was the epicenter of a life-threatening, fast-spreading coronavirus, the legislature passed and Governor Andrew Cuomo signed into law chapter 24 of the Laws of 2020 to address concerns of viral exposure during the current primary election petitioning process. As relevant to this appeal, the legislature sought to minimize exposure by shortening the statutory filing deadlines by mandating that “designating petition[s] for the June 2020 primary election shall be filed with the appropriate board of elections on March 17 through March 20, 2020” (L 2020, ch 24, § 1). As a result, the deadline for filing designating petitions and certificates of acceptance for the June 23, 2020 primary election were moved up from April 2, 2020 and April 6, 2020 to March 20, 2020 and March 24, 2020, respectively (*see* Election Law § 6-158 [1], [2]).

Petitioner was also subject to Election Law § 6-134 (2), which requires the “[s]heets of a designating petition shall be delivered to the board of elections in the manner prescribed by regulations that shall be promulgated by the state board of elections.” Pursuant to the mandate of Election Law § 6-134 (2), the Rules of the Board of Elections in the City of New York (BOE) provides that a “cover sheet must be filed for all petitions containing ten or more sheets in one volume or consisting of more than one volume” (BOE Designating Petition and Opportunity to Ballot Petition Rules for Primary Elections rule C1 [adopted Feb. 12, 2019]; *see also* 9 NYCRR 6215.1 [b]; [e] [3]). Further, pursuant to Election Law § 6-146 (1),

“if designated or nominated for a public office other than a judicial office by a party of which [they are] not a duly enrolled member . . . such person shall, in a certificate signed and acknowledged by [them], and filed as provided in this article, accept the designation or nomination as a candidate of each such party or independent body other than that of the party of which [they are] an enrolled member, otherwise such designation or nomination shall be null and void.”

Election Law § 6-158 (2) provides that such “certificate of acceptance or declination of a designation shall be filed not later than the fourth day after the last day to file such designation.”

Under Election Law § 1-106 (2), “[t]he failure to file any petition or certificate relating to the designation or nomination of a candidate for party position or public office or to the acceptance or declination of such designation or nomination within the time prescribed by the provisions of this chapter shall be a fatal defect.” Although this Court has previously stated that failure to file a cover sheet within the timeframes prescribed by Election Law § 1-106 constitutes a fatal defect (*Matter of Hutson v Bass*, 54 NY2d 772, 774 [1981]), the statute makes no mention of a cover sheet. Indeed, the New York City Board of Elections represented below that the cover sheet “is necessary for administrative convenience” (183 AD3d 472, 473 [1st Dept May 14, 2020]).

II.

On March 19, 2020, the petitioner, a registered Democratic Party member and incumbent Democrat, filed two petitions respectively designating her a candidate for the office of Member of the Assembly for the 76th Assembly District on the Democratic Party and Working Families Party primary ballots. Under the aforementioned statutory provisions and regulations, petitioner had to file a cover sheet by March 20, 2020 because her designating petition consisted of two volumes, each longer than 10 pages. Petitioner also had to file a certificate of acceptance in regard to her designation as the Working Families Party primary candidate by March 24, 2020 because she was not a duly enrolled member of this party. A cover sheet was filed on April 2, 2020 and a certificate of acceptance was filed on April 1, 2020, rendering them both untimely under the new deadlines of chapter 24 of the Laws of 2020, Election Law § 6-134 (2), BOE rule C1 and Election Law § 6-158 (2). As a consequence, the Board of Elections invalidated her petitions.

Whether the belated filing amounts to a “fatal defect” under Election Law § 1-106 (2) turns on the Appellate Division’s fact-finding that the sole cause of the delay was COVID-19 illness or quarantine, as well as the obvious intent and purpose of the legislature in passing chapter 24. After all, “[i]n statutory interpretation, legislative intent is the great and controlling principle” and there may be “instances where the literal meaning of words is not to be so slavishly adhered to as to defeat the

general purpose and manifest policy intended to be promoted” (*Matter of Carr v New York State Bd. of Elections*, 40 NY2d 556, 559 [1976] [citations omitted]).

III.

A.

Petitioner’s filings must be considered in proper context, so first I turn to the events surrounding her delayed submissions. The legislature enacted chapter 24 on March 18, 2020, at the height of the COVID-19 pandemic during which New York State, and New York City in particular as the epicenter of the pandemic in the United States, experienced unique and extreme circumstances affecting every aspect of daily life. Through a series of executive orders that were issued beginning on March 7, 2020 and continue to this day, the Governor was at the time in the process of shutting down most activities in the state to combat the spread of COVID-19, which had proved to be extremely infectious and deadly¹ (*see* Executive Order [A. Cuomo] No. 202 [9 NYCRR 8.202] [Mar. 7, 2020]; Executive Order [A. Cuomo] No. 202.5 [9 NYCRR 8.202.5] [Mar. 18, 2020]). In fact, two days later on March 20, 2020, the Governor publicly announced the “New York State on PAUSE” Executive Order and a 10-point plan to mitigate the pandemic, which included the directive that “[s]ick individuals should not leave their home unless to receive medical care and only after a telehealth visit to determine if leaving the home is in the best interest of their health” (*Governor Cuomo Signs the ‘New York State on PAUSE’ Executive Order*, New York State Governor [Mar. 20, 2020], <https://www.governor.ny.gov/news/governor-cuomo-signs-new-york-state-pause-executive-order>, cached at <http://www.nycourts.gov/reporter/webdocs/GovCuomoPAUSE.pdf>). As further described

1. Between March 18, 2020 and April 3, 2020, New York saw the number of confirmed COVID-19 infections and deaths rise from 2,382 total cases and 16 total deaths to 102,863 total cases and 2,951 total deaths (Ben Axelson, *Coronavirus timeline in NY: Here’s how Gov. Cuomo has responded to COVID-19 pandemic since January*, Syracuse.com [Apr. 14, 2020], <https://www.syracuse.com/coronavirus/2020/04/coronavirus-timeline-in-ny-heres-how-gov-cuomo-has-responded-to-covid-19-pandemic-since-january.html>). On March 18, 2020 alone, New York reported an increase of more than 1,000 positive COVID-19 cases from the day prior, which illustrates the extent of infections raging across the state (*As Testing Expands, Confirmed Cases of Coronavirus in N.Y.C. Near 2,000*, NY Times, Mar. 18, 2020, <https://www.nytimes.com/2020/03/18/nyregion/coronavirus-new-york-update.html#link-4b523fc4>).

infra, in implementing this policy, the Governor relied on already-issued and subsequent executive orders to essentially direct individuals to shelter at home. At this time, it became clear that “[t]he state emergency caused by the coronavirus pandemic necessitate[d] a truncated political calendar for petitions related to the June 2020 primary election” (Mem in Support, L 2020, ch 24). This legislative action was part of a governmental effort to protect the public health and preserve the integrity of the electoral process by mitigating the spread of COVID-19, which included the Governor modifying the Election Law “to reduce [the] required number of signatures on petitions” to “1.5% of the enrolled voters” or “30% of the stated threshold, whichever is less” and suspending the “gathering of signatures” “effective Tuesday, March 17, 2020 at 5 p.m.” (Executive Order [A. Cuomo] No. 202.2 [9 NYCRR 8.202.2] [Mar. 14, 2020]).

In addition, in several Executive Orders that affected all New Yorkers during this period and put the State on “pause,” the Governor required all non-essential state and local government employees to work from home beginning on March 17, 2020 (Executive Order [A. Cuomo] No. 202.4 [9 NYCRR 8.202.4] [Mar. 16, 2020]) and all businesses and nonprofits not providing “essential” services to allow workers to work from home as much as possible beginning on March 20, 2020 at 8 p.m. (Executive Order [A. Cuomo] No. 202.6 [9 NYCRR 8.202.6] [Mar. 18, 2020]). The Governor suspended Election Law § 8-400, which governs absentee ballots, and allowed voters to electronically obtain absentee ballots for elections prior to April 1, 2020 (Executive Order [A. Cuomo] No. 202.2 [Mar. 14, 2020]); postponed any Village elections on March 18, 2020 (Executive Order [A. Cuomo] No. 202.5 [Mar. 18, 2020]); and prohibited all non-essential gatherings of individuals of any size (Executive Order [A. Cuomo] No. 202.10 [9 NYCRR 8.202.10] [Mar. 23, 2020]).

Beginning March 14, 2020, the message from the executive and legislative branches to residents of New York was clear: stay home and cease all unnecessary physical interactions in order to contain the spread of COVID-19. By the Governor’s express orders and the legislature’s action, elections and the gathering of signatures to support an individual’s candidacy for election were modified during this time to further this policy. The ultimate purpose of truncating the political calendar for the June 2020 primary was therefore to protect the safety and well-being of candidates, their staff and the general public by ensuring all persons could limit interactions with other individuals who may be sick.

Furthermore, during this critical period in which relatively little was known about COVID-19 and all efforts were geared towards “flattening the curve,”² the New York State Department of Health (NYSDOH) issued guidance on quarantine protocols for COVID-19, classifying individuals who have been “in close contact (6 ft.) with someone who is positive, whether or not displaying symptoms for COVID-19” as persons who should mandatorily quarantine (*2019 Novel Coronavirus [COVID-19] Interim Containment Guidance: Precautionary Quarantine, Mandatory Quarantine and Mandatory Isolation Applicable to all Local Health Departments [LHD]*, New York State Department of Health [Mar. 9, 2020], https://coronavirus.health.ny.gov/system/files/documents/2020/03/quarantine_guidance_0.pdf, cached at <http://www.nycourts.gov/reporter/webdocs/QuarantineGuidance.pdf>).³ Anyone displaying symptoms of COVID-19 was also required to stay inside and away from other individuals (William Feuer & Noah Higgins-Dunn, *Cuomo orders most New Yorkers to stay inside—‘we’re all under quarantine now,’* CNBC [Mar. 20, 2020] [“Sick people shouldn’t leave their home unless they need to go to the doctor or hospital, (Governor Cuomo) said”]; see also *Governor Cuomo Signs the ‘New York State on PAUSE’ Executive Order*). As regularly repeated by government and public health officials, the success or failure of the public health directives depended on public compliance.

B.

Petitioner filed an affidavit in support of her request to validate her petitions with Supreme Court, stating that during March 2020, she was in close contact with many constituents while assisting hospitals, health care facilities, New York City

2. The phrase “flattening the curve” refers to slowing the spread of an illness during an epidemic such that the number of infections is spread out over time so that medical resources and staff are not overwhelmed (see Siobhan Roberts, *Flattening the Coronavirus Curve*, NY Times, Mar. 27, 2020, <https://www.nytimes.com/article/flatten-curve-coronavirus.html>). If a community does not act to mitigate the virus’s spread, the result is often a steep rise and fall in cases, which leads to a sharp curve on a graph (*id.*). With mitigation, the number of cases is more consistent over time, showing a flatter curve on a graph (*id.*).

3. According to the NYSDOH website, this document was first issued on March 9, 2020 (see Travel, Large Gatherings and Quarantines, New York State, Novel Coronavirus, <https://coronavirus.health.ny.gov/travel-large-gatherings-and-quarantines> [last accessed May 20, 2020] [having “March 9, 2020” in the document title]).

Housing Authority residents and businesses. Notably, this contact included many visits to “Mary Manning Walsh Nursing Home on the Upper Eastside to help constituents, which subsequently was cited as having the highest COVID-19 related deaths in Manhattan.” She stated she was also exposed to COVID-19 through close contact with three assemblymembers who later tested positive for the virus. And during the week of March 15th, petitioner personally experienced symptoms of COVID-19, leading her to be excused on March 18, 2020 from voting on chapter 24 of the Laws of 2020 due to her symptoms. On March 24, 2020, petitioner had been diagnosed with and was experiencing a “contagious and infectious viral syndrome,” requiring her to continue to self-quarantine as the deadline for filing a certificate of acceptance passed. Accepting this, Supreme Court found that “Seawright was also ill with COVID-19 symptoms during this time period and was quarantined during the deadlines” (2020 NY Slip Op 31311[U], *4 [Sup Ct, NY County 2020]).

The Appellate Division made a factual finding that petitioner’s “belated filing of a cover sheet and a certificate of acceptance” were solely attributable “to illness or quarantine because of the current COVID-19 pandemic,” excluding any other possible cause for the delay (183 AD3d at 472-473), a finding that respondent Louis Puliafito concedes in his briefing to us. Of course, we are bound by and may not review that factual determination (*Matter of Buchanan v Espada*, 88 NY2d 973, 975 [1996]). Instead, our task is to consider petitioner’s belated filings in light of the unique and unprecedented circumstances wherein the truncated filing deadlines were in potential conflict with official public health directives and quarantine guidelines.

The purpose of chapter 24 was undeniably to mitigate the spread of COVID-19 and was part and parcel of an aggressive government response based on the determination that individuals manifesting symptoms should stay home and away from other people as much as possible. The truncated political calendar was not meant to force petitioner to meet the Election Law’s filing deadlines when she was sick and complying with quarantine directives that made her unable to complete the filing without running afoul of the government guidance. Indeed, as an elected official tasked with promoting the government’s response to the serious and deadly public health crisis afflicting New York, and finding herself to be symptomatic, petitioner was faced with the inherent tension in the new,

compressed electoral filing timeframe and the government's guidance to avoid physical interactions with others to prevent the spread of COVID-19. Since the truncated filing timeframe was passed to mitigate the pandemic, petitioner's completion of the self-isolation period resulting in the late filing of the remaining necessary election documents comported with the underlying purpose and intent of chapter 24.

Moreover, petitioner's filing of the cover sheet and certificate of acceptance met the original statutory deadlines set forth before the passage of chapter 24 since both documents were filed on or before April 2, 2020 (*see* Election Law § 6-158 [1], [2]). As the Appellate Division pointed out, "no claim of fraud has been alleged" with respect to petitioner's designating petition, "there is no evidence of specific actual prejudice presented," and the BOE seems to primarily "contend[] that a cover sheet is necessary for administrative convenience" (183 AD3d at 473).

The legislature and executive undoubtedly sought to place public health above administrative convenience in their passage of chapter 24 and multipronged response to COVID-19. Thus, in this unique situation where petitioner did not and could not comply with an accelerated filing timeline solely because she was following the government's prescribed response to and recommendations for a pandemic, prior conflicting law and administrative convenience must give way to public health needs and the paramount right to ballot access. Petitioner's protected right to run for elected office as a Democratic and Working Families Party candidate (*see Golden v Clark*, 76 NY2d 618, 624-625 [1990]) cannot and should not be so easily subverted. In other words, the purpose and spirit of chapter 24 was to mitigate the spread of COVID-19; the majority's narrow and inflexible reading of that provision, along with other relevant provisions of the Election Law, on the unique facts of this case, does not further the intent of the legislature, but rather would have forced petitioner to violate the government's own guidance, putting herself and others at risk. Such a view leads to "objectionable results" and "cause[s] inconvenience, hardship, injustice[,] mischief . . . [and] absurdity," in general disregard of the basic tenants of statutory interpretation (*People v Ryan*, 274 NY 149, 152 [1937]).

Contrary to the majority's view (majority op at 232-234), we are not constrained by our prior holdings in *Hutson* and *Plunkett v Mahoney*, as those cases dealt with delays and errors

that directly relate to a candidate’s “careless or inadvertent failure to follow the mandate of statute and case law,” and not actions taken in accordance with governmental guidance during a highly unusual and unprecedented pandemic (see *Hutson*, 54 NY2d at 773-774; *Matter of Plunkett v Mahoney*, 76 NY2d 848, 850 [1990]). Instead, this precedent stands for the proposition that during “normal” times—when there is no life and death state of emergency requiring residents to shelter at home and minimize physical contact with others—the failure to timely file a cover sheet or certificate of acceptance is a “fatal defect” (see *Hutson*, 54 NY2d at 773-774; *Plunkett*, 76 NY2d at 850). Notably, the requirement for a cover sheet is regulatory, and our application of the Election Law cannot be dictated by regulatory requirements that conflict with the purpose and intent of chapter 24. And while Election Law § 1-106 (2) states that failure to file a certificate is a “fatal defect,” this provision must be read in harmony with the legislature and the executive’s ongoing actions to protect public health during this historic pandemic.⁴

In fact, our prior holding in *Matter of Settineri v DiCarlo*, in which we validated the nominating certificates submitted by a technically *functus officio* County Republican Committee Chairperson because it was impossible for a qualifying Chairperson to make the official nomination, suggests that Election Law § 1-106 (2) must be read in line with legislative intent (82 NY2d 813, 816 [1993]).⁵ While the Appellate Division held in *Settineri* that the defect could not be corrected because

4. Petitioner’s appeal is distinguishable from *Matter of Hawatmeh v New York State Bd. of Elections* (decided today), as the delay in that case was caused by that petitioner’s need to seek medical treatment, unrelated to COVID-19, out of state. Further, the Appellate Division in *Hawatmeh* did not make a factual finding that the late filing of the certificate of acceptance was solely caused by the petitioner’s illness with or quarantine due to COVID-19, as was the case here (see *Hawatmeh*, 183 AD3d 1109 [3d Dept May 14, 2020]). However, I would reverse in *Hawatmeh* on timeliness grounds and join that portion of section III (B) of Judge Wilson’s dissent in which my colleague explains the petitioner’s certificate of acceptance was timely filed under the plain language of Election Law § 1-106 (1).

5. Specifically, in *Settineri*, the impossibility of a qualifying Chairperson filing the certificates was due to three overlapping rules and statutes: (1) a statutory requirement that a nomination must be filed after a primary election is held but within the seven days after the election; (2) a statute that allows the Board of Elections to take up to nine days to canvass a primary election’s votes and certify the outcome of the election (and the Board took eight days in this particular case); and (3) the Republican Party’s own rules that require the County Committee to elect a new Chairperson, who would

(n. cont’d)

the Election Law requirements are strict and the deadline could have been met if party had taken specific steps, such as asking the Board of Elections to expedite their canvassing, this Court reversed the Appellate Division on the basis of the dissent below (*Matter of Settineri v DiCarlo*, 197 AD2d 724, 725-726 [2d Dept 1993]; *Settineri*, 82 NY2d at 816). Notably, this Court adopted the reasoning that “the Legislature did not intend to disenfranchise voters by that framework of time deadlines” (*Settineri*, 197 AD2d at 727 [Balletta, J., dissenting]), thereby holding that legislative intent must be paramount when interpreting the Election Law. The Appellate Division dissent also dismissed as speculative the argument that the proper nominating process could have been sped up (*id.* at 728).

In this appeal, following the reasoning of *Settineri*, we must read chapter 24 in line with the overarching legislative intent of protecting public health above all else. As the majority notes, the Governor issued a series of executive orders that “suspended or modified” some of the legislature’s directives “in response to the public health crisis” (majority op at 234). These orders evince the obvious intent to permit individuals to work and carry out essential business even during a shelter at home order and with the restrictions on business and public gatherings. In context and read altogether, they do not, as the majority and respondent contend (majority op at 234-235), show an express intent, by their omission in waiving some filing deadlines, to rigidly enforce accelerated deadlines when an individual would have to violate the government’s many directives to stay home when ill. Rather, the tension between the filing deadlines and the government’s public health orders must be harmonized and resolved in favor of the government’s overall policy choices.

Contrary to the majority’s suggestion (majority op at 235), this resolution that the belated filings were not a “fatal defect” is not an attempt to disregard or undermine enforcement of the Election Law, but a way to reconcile competing legislative and governmental directives and carry out this Court’s constitutionally mandated responsibility of interpreting the

have had the authority to file the nomination certificates, within 20 days after a primary election (*Matter of Settineri v DiCarlo*, 197 AD2d 724, 726-727 [2d Dept 1993, Balletta, J., dissenting]). Since the Board of Elections took eight days to canvass the voices and certify the outcome of the primary election, it was impossible for a qualifying Chairperson to meet the seven-day nominating deadline (*id.* at 727).

law in line with the intent of the legislature (*Carr*, 40 NY2d at 559). It is the majority that engages in speculating that petitioner could have safely designated an agent, a process which would have required an in-person signature (*see* 9 NYCRR 6215.8, 6204.1 [c] [requiring designation of an agent to receive notices and determinations related to an objection to be in writing]); found a notary with the capability of notarizing her documents electronically during a pandemic; and safely passed off signed documents to her agent—all after the Appellate Division made a specific factual finding that the sole reason for the filing delay was petitioner’s illness and self-quarantine. As *Settineri* instructs, the conflicting provisions of the Election Law must give way in the face of the impossibility of petitioner’s ability to safely file the relevant documents within the truncated timeframe (*see* 197 AD2d at 728 [Balletta, J., dissenting], *revd for reasons stated in dissenting mem* 82 NY2d at 816). Any possibility that petitioner may have been able to meet the deadline had other steps been taken is purely speculative and warrants no consideration (*see id.*).

IV.

The Appellate Division issued a thoughtful and narrow ruling taking into account the statutory requirements, case law and petitioner’s compliance with state governmental quarantine guidance during the petitioning and filing period. As the record establishes, the belated filing of both documents was not a fatal defect based on “careless or inadvertent failure to follow the mandate of statute and case law” (*Hutson*, 54 NY2d at 774). To the contrary, respondent, sick with symptoms and aware of her duty as a member of the New York City community and an incumbent representative of her district, diligently sought to avoid spreading the virus and exposing voters and Board of Election staff by self-quarantine. The delay here was not in contravention or flagrant disregard of the purpose and spirit of the Election Law but rather in accordance with legislative and executive branch protocols established for the safety and health of the general public.

Accepting, as we must, the Appellate Division’s factual finding that the sole cause of the delay was respondent’s illness and quarantine, and in full recognition of the impact of the coronavirus public health crisis on New York City in particular and the legislative purpose animating chapter 24, the delayed filings here are not fatal defects warranting invalidation of the

designating petitions. The legislature could not have intended to deny the right to ballot access under these circumstances. I dissent.

WILSON, J. (dissenting). We are living through extraordinary times, attempting to hold true to the foundation of our democracy, elections, while defending against a global pandemic. That pandemic has stricken nowhere more fiercely than in New York City. New York schools, workplaces, restaurants, cultural institutions, and stores have been shuttered. Our once-bustling streets are empty; the lights of an empty Times Square, if ever cheery, are now unquestionably eerie; the New York City subways, largely vacant, no longer run overnight. Our city that never sleeps is comatose. In New York City alone, almost 200,000 people have been infected with and more than 15,000 people have died from COVID-19, although both of those numbers are likely underreported. Initially the virus appeared to impact the elderly population primarily, but we have later seen its horrifying effects on those of all ages, including children. Young and otherwise healthy adults have also not been spared: “The second day I was sick [with COVID-19], I woke up to what felt like hot tar buried deep in my chest. I could not get a deep breath unless I was on all fours. I’m healthy. I’m a runner. I’m 33 years old” (Mara Gay, *‘I Wish I Could Do Something for You,’ My Doctor Said*, NY Times, May 14, 2020, <https://www.nytimes.com/2020/05/14/opinion/coronavirus-young-people.html>).

“So it was that in this disease there was no cause which came within the province of human reasoning; for in all cases the issue tended to be something unaccountable. For example, while some were helped by bathing, others were harmed in no less degree. And of those who received no care many died, but others, contrary to reason, were saved. And again, methods of treatment showed different results with different patients. Indeed the whole matter may be stated thus, that no device was discovered by man to save himself, so that either by taking precautions he should not suffer, or that when the malady had assailed him he should get the better of it; but suffering came without warning and recovery was due to no external cause . . .

“And at first the deaths were a little more than the normal, then the mortality rose still higher, and afterwards the tale of dead reached five thousand each day, and again it even came to ten thousand and still more than that.” (Procopius, *History of the Wars 463-465* [H.B. Dewing, trans., Harvard University Press, 1914].)

“[S]orrow and sadness sat upon every face; and though some parts were not yet overwhelmed, yet all looked deeply concerned; and, as we saw it apparently coming on, so every one looked on himself and his family as in the utmost danger. Were it possible to represent those times exactly to those that did not see them, and give the reader due ideas of the horror that everywhere presented itself, it must make just impressions upon their minds and fill them with surprise. [The city] might well be said to be all in tears; the mourners did not go about the streets indeed, for nobody put on black or made a formal dress of mourning for their nearest friends; but the voice of mourners was truly heard in the streets.” (Daniel Defoe, *A Journal of the Plague Year* 28 [1722].)

“The streets of New York City are so desolate now that you half expect tumbleweed to blow along the pavement where cars and cabs once clustered. There is barely a plane in the sky. You hear the wheeze of an empty bus rounding a corner, the flutter of pigeons on a fire escape, the wail of an ambulance. The sirens are unnervingly frequent. But even on these sunny, early-spring days there are few people in sight. For weeks, as the distancing rules of the pandemic took hold, a gifted saxophone player who stakes his corner outside a dress shop on Broadway every morning was still there, playing ‘My Favorite Things’ and ‘All the Things You Are.’ Now he is gone, too.” (David Remnick, *New York City in the Coronavirus Pandemic*, *The New Yorker*, Apr. 5, 2020, <https://www.newyorker.com/magazine/2020/04/13/new-york-city-in-the-coronavirus-pandemic>.)

Through all this, one of the candidates here, Ms. Seawright, dutifully complied with Governor Cuomo's Executive Orders to stay home while she was experiencing COVID-19 symptoms; the majority has struck her from the ballot in the June primary. The other candidate, Ms. Hawatmeh, left her out-of-state cancer treatment early in order to file her petition-related paperwork in New York on the advanced deadlines put into place due to the pandemic; she too has been struck from the ballot.

In response to the COVID-19 public health emergency, two branches of our state government have done their utmost to preserve both our democratic institutions and our people. The executive and legislative branches hurriedly adjusted the political calendar and requirements, while imposing numerous rules designed to curb the spread of the virus. The Appellate Division, First Department, confronted with the omnipresent specter of disease and death, took great pains to craft a narrow decision tailored to effectuate the intent of those branches and preserve the core of our democratic principles.

I have two disagreements with our resolution of these cases. First, following our merits examination of these cases, we should have rescinded our grants of leave as improvident. There is no reason to retain these cases to restate law the majority contends is settled so that, when and if the next pandemic arrives, the lower courts of 2120 will have clear guidance. Second, the majority should have realized that as to these cases, our Election Law must be interpreted in light of the will of the legislature; the new, pandemic-related laws; and, perhaps most importantly, the public health catastrophe facing New York.

I.

Governor Cuomo declared a state of emergency on March 7, 2020. On March 14, in response to the added difficulties of running for public office during a global pandemic, the Governor issued Executive Order (A. Cuomo) No. 202.2 (9 NYCRR 8.202.2), reducing the number of signatures a candidate in the June primary needed to obtain to be placed on the ballot. Before the state of emergency was declared, a candidate intending to run in the June primary election was required to file a designating petition between March 30 and April 2, 2020 (Election Law § 6-158 [1]).

The corresponding certificates of acceptance would have needed to be filed no later than four days after April 2 (Election Law § 6-158 [2]).¹

On March 18, 2020, the legislature enacted, and the Governor signed, chapter 24 of the Laws of 2020. It superseded Election Law § 6-158 (1) and mandated that “a designating petition for the June 2020 primary election shall be filed with the appropriate board of elections on March 17 through March 20, 2020” (L 2020, ch 24, § 1). The deadline to file a certificate of acceptance under Election Law § 6-158 (2) became March 24, 2020. Chapter 24 thus advanced the deadline for filing both a designating petition and a certificate of acceptance by about two weeks. The legislature justified advancing the petition deadlines by stating that the “state emergency caused by the coronavirus pandemic necessitates a truncated political calendar for petitions related to the June 2020 primary election.”²

The candidate at issue here, Rebecca Seawright, sedulously filed two petitions designating her as a candidate of both the Democratic Party and the Working Families Party for the public office of Member of the New York State Assembly in the 76th District on March 19—a day before the final day to file and less than one day after the enactment of chapter 24. Both petitions contained more than the requisite number of signatures and were bound according to the Board of Elections regulations. During this period of time, Ms. Seawright was ill with COVID-19 symptoms, under a doctor’s care, and ordered to quarantine.³ Ms. Seawright did not file the cover sheet for her Democratic Party petition by March 20 (*see* Election Law

1. The Governor postponed the presidential primary, originally planned to be held on April 28, until June 23 in an attempt to preserve the ability of citizens to vote without jeopardizing their lives or the lives of others. He also ordered “New York State on PAUSE” on March 20, requiring people to stay at home except for essential matters.

2. The Election Law has traditionally provided a four-day period during which designating petitions may be filed (*see* Election Law § 6-158 [2]). It appears the legislature’s intention in the 2020 pandemic-related legislation was to preserve that four-day period but move it to an earlier set of dates (*see* L 2020, ch 24). However, because the law was not adopted until late in the evening on March 18, the first two days of the March 17-20 period had already lapsed, leaving just March 19 and 20 for filing such petitions.

3. Judge Rivera’s dissenting opinion, in which I join, contains more detail about Ms. Seawright’s circumstances.

§ 6-134; 9 NYCRR 6215.1 [b], [c]).⁴ She also did not file a certificate of acceptance for the Working Families Party petition by March 24 (*see* Election Law §§ 6-146, 6-158 [2]).⁵ Despite her doctor-ordered isolation and the lack of any notice from the Board of Elections, Ms. Seawright cured both deficiencies on April 2 when she filed a cover page for her Democratic petition and a certificate of acceptance for her Working Families Party petition.

The Board, presumably also working under extraordinary conditions resulting from the pandemic, took until April 15 to alert Ms. Seawright to the asserted deficiencies. At that point, the Board believed the errors to be fatal and thus not subject to cure under 9 NYCRR 6215.7 (d), which states that a candidate “may, within three business days of the date of a determination that the petition does not comply with these regulations, cure the violation of these regulations.” On April 21, the Board determined that her delayed filings of a cover sheet and a certificate of acceptance were fatal defects invalidating both of Ms. Seawright’s designating petitions.

On Ms. Seawright’s motion to validate her petitions, Supreme Court found that she substantially complied with Election Law requirements and held that the Board of Elections thus erred in deeming her untimely submissions to be fatal to her candidacy. Recognizing “the unprecedented and catastrophic health crisis,” the court also found that Ms. Seawright’s submissions were filed by April 2, that there were no claims that the deficiencies were fraudulent or “used for any improper purpose,” and that neither the Board nor her opponents were prejudiced from the late filing of her cover sheet and certificate of acceptance (*Matter of Seawright v Board of Elections in the City of N.Y.*, 2020 NY Slip Op 31311[U], *9 [Sup Ct, NY County 2020]). The Appellate Division affirmed the order of Supreme Court, holding that “under the unique

4. Because her Democratic Party petition consisted of more than 10 pages, it required a cover sheet whereas her Working Families Party petition did not (9 NYCRR 6215.1 [b]).

5. Only her Working Families Party petition required a certificate of acceptance under Election Law § 6-146 (1) (“if designated or nominated for a public office other than a judicial office by a party of which he is not a duly enrolled member . . . such person shall, in a certificate signed and acknowledged by him, and filed as provided in this article, accept the designation or nomination as a candidate of each such party or independent body other than that of the party of which he is an enrolled member, otherwise such designation or nomination shall be null and void”).

circumstances existing in New York City during the past few months, and the specific health challenges alleged here, the belated filing of these specific documents is not a fatal defect” (*Matter of Seawright v Board of Elections in the City of N.Y.*, 183 AD3d 472, 473 [1st Dept May 14, 2020]). That Court likewise found that there was no evidence of prejudice, no challenge had been made to the number of signatures, and there was no claim of any fraudulent, misleading or deceptive actions (*id.*). The majority does not dispute those findings.

II.

Unlike the Appellate Division, which had no choice but to decide these cases, our docket is largely discretionary. As explained in our own Rules of Practice, we define a “leaveworthy” case as a case in which “the issues are novel or of public importance, present a conflict with prior decisions of this Court, or involve a conflict among the departments of the Appellate Division” (22 NYCRR 500.22 [b] [4]). Each year, we turn away hundreds of cases because, in our judgment, deciding them would have no significant statewide import. In many of those cases the result is wrong, unfair or questionable, but because a reversal would not advance the law in an area in which advancement is needed, we decline to hear such cases (*see Arthur Karger, Powers of the New York Court of Appeals* § 10:3 [“the primary, though not the sole, function of the Court of Appeals is conceived to be that of declaring and developing an authoritative body of decisional law for the guidance of the lower courts, the bar and the public, rather than merely correcting errors committed by the courts below”]).

As a general matter, we should not interpret the laws of the state based on extraordinary and unusual facts that are not likely to recur. The First Department’s decision carves out a very narrow exception, specifically limited to the facts of this pandemic, the restrictions attendant to it, and the particular minor defects at issue here. The Third Department disputes that rationale, though as I explain below, the Third Department should never have reached this issue, because Ms. Hawatmeh’s filing was patently timely. Thus, the departmental split between the First and Third Departments occurred simply because of the Third Department’s misreading of the statute governing timeliness of service. Moreover, the existence of even a genuine departmental split does not always result in our acceptance of the first case that might allow us to resolve the split.

In any event, the departmental split here involves the interpretation of what constitutes “substantial compliance” under the unique circumstances of this pandemic and the particular facts of these cases. The nature and scale of the current emergency and responses to it, including stay-home and quarantine directives, has not been seen for a hundred years and is unlikely to reappear in our lifetimes. The immensely unlikely recurrence of such circumstances peaking during an election petitioning period renders these cases not leaveworthy. Thus, the better course here would have been to rescind our grant of leave as improvident (*see e.g. Piccirillo v State of New York*, 400 US 548 [1971]). There is no pressing need to correct the “errors” of the Appellate Division and, by doing so, remove from voters the ability to cast votes for candidates of their choosing in as fair an election as can be constituted under the present, immensely challenging circumstances. Because the First Department, recognizing the unique confluence of the pandemic, the governmental responses to it, and the pendency of the election, explicitly cabined its decision to those circumstances and the omissions at issue here, its decision has no consequences for the Election Law in ordinary circumstances—indeed, it had no consequences except as to this particular ballot. The unfortunate result of retaining these cases is the announcement of a never-again-to-be-cited rule: a candidate may either follow medical and gubernatorial orders and lose her candidacy or appear on the ballot by risking her life and the lives of others.

III.

As the cases have remained here, I would affirm in *Seawright* and reverse, albeit on other grounds, in *Hawatmeh*.

A.

Of the many forms required of candidates running for office, Ms. Seawright—while quarantined with COVID-19 symptoms—failed to submit just two pieces of paper. She initially did not affix a cover sheet on her Democratic Party petition, and she failed to file a certificate of acceptance within four days of the last filing day for her Working Families Party petition. Pursuant to Election Law § 6-134 (2), the “[s]heets of a designating petition shall be delivered to the board of elections in the manner prescribed by regulations that shall be promulgated by the state board of elections”; the Board’s regulations

are to “be no more restrictive than is reasonably necessary for the processing of such petitions by the board of elections.” Those regulations state that “all petitions containing 10 or more sheets shall be accompanied by a cover sheet” (9 NYCRR 6215.1 [b]).

A designating petition contains the signatures and addresses of registered voters who have petitioned to place a certain candidate on the ballot for a specified office, and the date on which each voter signed the petition. Every single page of the petition bearing signatures also states the candidate’s name and address, the office sought, and the party designation. In addition, each page of the petition contains a sworn attestation that the information therein is true and correct (Election Law § 6-132 [2]). Each volume of a petition must be separately bound (9 NYCRR 6215.1 [c]).

The Board provides a simple form cover sheet for candidates to use (9 NYCRR 6215.8). The Board’s regulations require these cover sheets to contain the office and district number of the designation the candidate seeks; the name and address of the candidate; and the number of volumes in the petition (9 NYCRR 6215.2 [a] [1]). The only information on the cover sheet not readily determinable from the petition itself is the identity and contact information for the candidate’s representative whom the Board should contact in case of an irregularity in the petition (9 NYCRR 6215.2 [a] [4]). The cover sheet also contains a statement of the total number of signatures contained in the petition, but an incorrect count on the cover sheet is not a fatal defect (9 NYCRR 6215.2 [a] [3]; *Matter of Staber v Fidler*, 65 NY2d 529, 535 [1985]).

Likewise, the Board provides a simple form certificate of acceptance for candidates. The certificate of acceptance is not required for the party in which the candidate is a member; it is required only when another party designates the candidate on its ballot line or if the candidate is designated “by an independent body alone” (Election Law § 6-146 [1]). The sole purpose of the certificate of acceptance, then, is to make certain that a candidate wishes to accept the designation of a party in which the candidate is not a member. The fraud or impropriety it might avoid is a circumstance in which a party wishes to nominate a person who does not want to appear on that party’s ballot line. That circumstance is not present here, and the late filing of such a certificate can in no way undermine the certificate’s purpose.

Ms. Seawright ultimately filed both a cover sheet for her Democratic Party petition and a certificate of acceptance for her Working Families Party petition on April 2.⁶ Contrary to the majority's view (majority op at 232-233), this Court has never held that the initial absence of a cover sheet is an uncurable defect. Indeed, Election Law § 6-134 (2) grants the Board the ability to regulate the requirements for designating petitions as long as the Board's requirements are "no more restrictive" than necessary. The statute then instructs that a candidate must be provided with three business days, once notified, to cure a violation of the Board's regulations (Election Law § 6-134 [2]). Moreover, Election Law § 6-134, the section of the statute that by its title prescribes the rules for designating petitions, must be "liberally construed, not inconsistent with substantial compliance thereto and the prevention of fraud" (Election Law § 6-134 [10]; *see also* 9 NYCRR 6215.6 [a] ["Except as specifically set forth herein, these rules shall be liberally construed and technical defects shall be disregarded where there has been substantial compliance and where a strict construction is not required for the prevention of fraud"]). The statute on its face thus requires substantial rather than strict compliance when "no potential for fraud . . . is apparent" (*see Staber v Fidler*, 65 NY2d at 535). Here, there have been no allegations of fraud and Ms. Seawright has substantially complied with the obligations of the Election Law. Therefore, her designating petitions should be validated.

Because we must apply a substantial compliance standard to the deficiencies in Ms. Seawright's petition, the question here is not whether—in an ordinary election cycle—Ms. Seawright's delays in filing might or might not substantially comply with the Election Law, but rather whether Ms. Seawright substantially complied with the Election Law under the totality of the extraordinary circumstances facing her. Those anomalous circumstances require us to affirm the First Department's narrow

6. The majority contends that Ms. Seawright did not file her cover sheet on time because it was not received by March 20 (majority op at 231), but that is not the law. A candidate may cure any cover sheet deficiency within three days of being notified by the Board that such a deficiency exists (9 NYCRR 6215.7 [d] ["Cover sheet deficiencies may be corrected by the filing of an amended cover sheet." "A candidate may, within three business days of the date of a determination that the petition does not comply with these regulations, cure the violation"]). Because Ms. Seawright was not notified until April 15 of the deficiency in her cover sheet, she had until April 18 to correct it—long after she had already cured it.

decision finding Ms. Seawright substantially complied with the Election Law. A careful examination of the changes to the Election Law over time supports that outcome and demonstrates the majority's clear error in failing to consider the meaning of "substantial compliance" in Ms. Seawright's case.

To begin, in 1969, the legislature added the "fatal defect" language to the Election Law upon which the majority hangs its hat (Election Law § 1-106 [2]; see Bill Jacket, L 1969, ch 529). The legislative history of that addition shows that the "fatal defect" language was added "to limit the discretionary powers of the Supreme Court . . . [to] relieve a mistake or accident leading to a delay in filing a certificate of acceptance within the proper time limits" (Mem of Atty Gen, Bill Jacket, L 1969, ch 529 at 2). The Department of State's memorandum to the Governor explained that the amendment's purpose was to effectuate the legislature's "inten[tion] that such provisions be construed strictly" (Mem of Dept of St, Bill Jacket, L 1969, ch 529 at 6).

In the decades following that amendment, our Court interpreted the "fatal defect" amendment to the Election Law as requiring that deadlines for election-related filings be absolute and not subject to judicial discretion. The majority's holding rests on several of those cases: *Matter of Carr v New York State Bd. of Elections* (40 NY2d 556 [1976]), *Matter of Baker v Monahan* (42 NY2d 1074 [1977]), *Matter of Hutson v Bass* (54 NY2d 772 [1981]), and *Matter of Plunkett v Mahoney* (76 NY2d 848 [1990]). In those cases, we correctly implemented the 1969 legislature's intent to create a "rigid framework of regulation" mandating harsh time limits for election filings (see e.g. *Carr*, 40 NY2d at 558; *Hutson*, 54 NY2d at 774).

Experience with that strict compliance framework led to widespread criticism, and then to its abandonment. Indeed, in the years leading up to the sweeping legislative reforms discussed below, our Court questioned the strict compliance regime in some of the very cases upon which the majority relies. In *Matter of Hutson*, for example, we cautiously noted that it was "immaterial that the courts might reasonably conclude that what they perceive as the ultimate legislative objectives might better be achieved by more flexible prescriptions, prescriptions which might be judged by some to be more equitable" (*Matter of Hutson*, 54 NY2d at 774). And, just a few years later, we amplified our prior suggestion by noting that "a strictness of construction beyond that necessary for the ef-

fectuation of those policies can . . . lead to injustice” in Election Law matters (*Staber*, 65 NY2d at 534).

The executive branch also criticized the strict compliance standard. Robert Abrams, the State’s Attorney General, publicly wrote that New York’s laws had “spawned almost half of all Election Law litigation in the nation” (Robert Abrams, *Comprehensive Election Law Reforms Advocated by State Attorney General; Law Day ’92: The Struggle for Justice*, NYLJ, May 1, 1992 at 3, col 1). He denounced New York’s unyielding ballot restrictions, which led to “example after example of candidates being removed from the ballot for trivial errors,” and advocated reforms that would encourage people to run for office, instead of the “series of obstacles that only those well versed in the technicalities of the law can overcome” (*id.*). Those outside the government made similar observations: “For decades New York’s ballot access laws have made us the laughingstock of the nation” (Letter from Andrew Greenblatt, Executive Director, CommonCause/NY, July 12, 1996, Bill Jacket, L 1996, ch 709 at 30).

In response to such criticism, the legislature reversed direction, removing the strict compliance regime of 1969 through successive reforms of the Election Law in 1992 and 1996. Through enacting the Election Reform Act of 1992 and the Ballot Reform Act of 1996, the legislature sought to “facilitate ballot access for candidates” (Sponsor’s Mem, Bill Jacket, L 1992, ch 79 at 27) and to make ballot access “simpler and fairer for candidates in political-party primary elections” (Sponsor’s Mem, Bill Jacket, L 1996, ch 709 at 15); *see also* Letter from Jonathan Burman, Director of Legis Affairs, Assn of Bar of City of NY, Bill Jacket, L 1996, ch 709 at 29 [the bill “goes a long way towards the critically important goal of easing those requirements which govern access to the ballot”]). In promoting the Ballot Reform Act of 1996, the Governor expressly repudiated the strictly construed regime of 1969, approving the legislature’s replacement of it with one of liberal construction (Governor’s Approval Mem, Bill Jacket L 1996, ch 709 at 18 [“all rules relating to the validity and submission of petitions are to be liberally construed”]). Specifically, these two acts repealed the “complex and burdensome rules for attaching cover sheets to petitions and bundling . . . petitions” and assured that “*any* deficiencies” regarding cover sheets could be cured (*id.* [emphasis added]; Sponsor’s Mem, Bill Jacket, L 1996, ch 709 at 16). Taken together, these reforms emphasize the

legislature's intent to eliminate, not ossify, the severe punishments for technical defects in petitions (see *Matter of Cozzolino v Columbia County Bd. of Elections*, 218 AD2d 921, 922-923 [3d Dept 1995]).

Our legislatively-superseded case law predating those reforms furnishes a foundation thinner than quicksand for today's decision. After two decades of experience with the strict compliance regime, both the legislature and the Governor lambasted "New York's nationally notorious ballot access laws" and the "hypertechnical intricacy" of New York's Election Law, which "set[] traps for the unwary" and "frustrate[d] democracy" (Sponsor's Mem, Bill Jacket, L 1992, ch 79 at 29; Governor's Approval Mem, Bill Jacket, L 1992, ch 79 at 30). "Harmless mistakes on the petition forms . . . no longer . . . mean the end of a campaign" (Governor's Approval Mem, Bill Jacket, L 1992, ch 79 at 31). We must then view Ms. Seawright's cured cover page and certificate of acceptance not in light of our precedent from the 1970s and 1980s but rather in the context of the legislative enactments sweeping away those cases: Ms. Seawright's filing deficiencies are "harmless mistakes" that should not doom her candidacy, preventing voters from having their choice of candidate on the ballot.

The majority provides no explanation for its disregard of the statutory language requiring substantial compliance and liberal construction with respect to designating petitions, arguing instead that we have not abandoned a strict compliance scheme. To support that proposition, the majority turns to *Matter of Gross v Albany County Bd. of Elections* (3 NY3d 251, 258 [2004]). That case, however, deals with an entirely different section of the Election Law pertaining to absentee ballots—one to which the 1992 and 1996 ballot access amendments do not apply. In contrast to Election Law § 6-134, which by its text requires only "substantial compliance," Election Law § 9-209 has no such provision. The fact that those sections of the Election Law are incomparable is made clear in the *Gross* Court's observation of the "magnitude" of the errors in that case, far from the "minor alteration of procedure [that] can be viewed as substantial compliance with statutory directives" here (*id.* at 259-260). Even were *Gross* relevant, it undermines the majority's position. *Gross* expressly noted that there "are instances where inconsequential deviations from the letter of the law will not be fatal" (*id.* at 258).

Matter of Pierce v Breen (86 NY2d 455 [1995]) does not support the majority's position either. The legislative reforms of

1996, which were specifically targeted at “eliminating a myriad of technicalities that have long been used to invalidate petitions” (Governor’s Approval Mem, Bill Jacket L 1996, ch 709 at 18), were enacted after *Pierce*. As the majority itself acknowledges, “[i]t is for the legislature, not the courts, to decide when the law should ‘give way’” (majority op at 235, quoting Judge Rivera’s dissenting op at 243): in 1996, the legislature plainly told the courts that the prior regime must give way to the new. More importantly, *Pierce* does not support the majority’s position here. In that case, we held that the premature filing of a certificate of nomination, “not in compliance with the strict election timetable,” was a fatal defect (86 NY2d at 458). That case concerned a substantive violation that “would dilute the integrity of the election process,” because the Schoharie County Democratic Committee had nominated the candidate before the primary election took place—effectively denying voters the chance to select someone else (*id.*). In so holding, we emphasized that “there [wa]s simply no valid explanation for the premature meeting and filing” (*id.* at 458-459). *Pierce*, therefore, comported with the legislature’s revised direction to interpret the Election Law liberally, keeping in mind substantial compliance and the prevention of fraud. In contrast, Ms. Seawright’s filing delays—presenting no risk of fraud or harm to the integrity of the electoral process—are just the sort of hypertechnical errors the legislature rejected as reasons to bar ballot access.

Ms. Seawright cured the technical violations to her designating petitions on April 2 when, after having been quarantined, she filed a single cover sheet and a certificate of acceptance. There were no allegations of fraud, her designating petitions demonstrated that voters want her on the ballot, and she timely filed her designating petitions despite the truncated and advanced filing deadlines—all while COVID-19 wreaked havoc on New York City. By striking Ms. Seawright from both the Democratic Party and Working Families Party ballots, the majority has endangered the right of voters to cast their votes effectively, a precious freedom that should not be lightly treaded upon. The reforms to New York Election Law in the 1990s—and the Governor’s and legislature’s recent enactments⁷—were intended to protect against this exact circumstance and ensure

7. Indeed, by issuing Executive Order (A. Cuomo) No. 202.2, Governor Cuomo sought to preserve our democratic institutions and provide candidates access to the ballot despite the unique and difficult circumstances of the pandemic. In addition to dramatically reducing the number of required

(n. cont’d)

that no candidate be denied access to the ballot for technical defects that do not relate to the fairness of the process under such extraordinary conditions. Ms. Seawright's corrected submissions in these extreme circumstances should not prevent her from remaining on the ballot in the June primary.

B.

Although the majority perceives a conflict between the First Department's reasoning and the reasoning of the Third Department in Ms. Hawatmeh's case, those cases are readily distinguishable based on the different conditions prevailing in March 2020 in New York City and Pleasant Valley, New York, whence Ms. Hawatmeh hails; or based on the differences in the candidates' physical conditions. The absence of any genuine conflict, and with it the absence of any reason to retain leave in these cases, is further underscored by the fact that Ms. Hawatmeh's designating petition for the Conservative Party was timely filed. The Third Department's conclusion that Ms. Hawatmeh's petition was untimely because it was not "postmarked prior to midnight of the last day of filing" is incorrect on the face of Election Law § 1-106 (1) (*Matter of Hawatmeh v New York State Bd. of Elections*, 183 AD3d 1109, 1111 [3d Dept May 15, 2020]).

Relying on the original April 2, 2020 deadline for filing designating petitions, Ms. Hawatmeh's scheduled cancer treatment in St. Louis, Missouri for March 14-24, 2020. Her petition designating her a Conservative Party candidate the United States House of Representatives for New York's 19th Congressional District was timely filed, complete and error-free. Upon

signatures a candidate needed to obtain in order to appear on the June 23 ballot, the Order allowed for electronic applications for absentee ballots in some elections—such measures show the Governor's commitment to prevent candidates from being struck from the ballot during the pandemic and to prevent voters from being disenfranchised as a result. Chapter 24 of the Laws of 2020, duly enacted by the legislature on March 18, serves the same purpose: by truncating the political calendar and advancing the deadline to file by two weeks, chapter 24 guarantees that the primary ballots will be ready by June 23 and ensures that all voters will have their choice of candidate on the ballot. The majority, however, comes to the opposite conclusion: its interpretation of the recent enactments penalizes candidates for technical defects in completely anomalous circumstances and suggests that the legislature intended to "abort candidacies and disenfranchise voters" (see *Matter of Hogan v Goodspeed*, 196 AD2d 675, 677-678 [3d Dept 1993]). That is surely not the case; rather, these recent enactments were intended to allow the primary elections to proceed with as much participation as possible under the circumstances.

learning of the change to Election Law § 6-158 pursuant to chapter 24 of the Laws of 2020 on March 22, Ms. Hawatmeh flew back to New York in the midst of a global pandemic grounding flights and requiring statewide lockdowns. Upon arrival in New York, she signed the certificate of acceptance in front of a notary on March 24, though the post offices were closed by the time she did so. On March 25, she sent the certificate by overnight delivery via Priority Mail Express, and the State Board of Elections received it on March 26, 2020.

The majority now repeats the Appellate Division's error. Ms. Hawatmeh's certificate of acceptance was timely filed under the plain language of Election Law § 1-106 (1). The statute reads as follows, in pertinent part:

“All papers sent by mail in an envelope postmarked prior to midnight of the last day of filing shall be deemed timely filed and accepted for filing when received, except that all certificates and petitions of designation or nomination, certificates of acceptance or declination of such designations or nominations, certificates of authorization for such designations or nominations, certificates of disqualification, certificates of substitution for such designations or nominations and objections and specifications of objections to such certificates and petitions required to be filed with the state board of elections or a board of elections outside of the city of New York shall be deemed timely filed and accepted for filing if sent by mail or overnight delivery service pursuant to subdivision three of this section, and received no later than two business days after the last day to file such certificates, petitions, objections or specifications. Failure of the post office or any other person or entity to deliver any such petition, certificate or objection to such board of elections outside the city of New York no later than two business days after the last day to file such certificates, petitions, objections or specifications shall be a fatal defect” (id. [emphases added]).

Election Law § 1-106 (1), thus, contains different geographically based timeliness requirements for certificates of acceptance and other election-related filings: one for filings made with boards of elections within New York City, and one for filings made with all other boards of elections, including the

State Board of Elections, the board to which Ms. Hawatmeh's certificate was sent. The requirement for postmarking on the last day to file—March 24—applies to New York City only. The exception for all other boards of elections, including the State Board of Elections, contains no postmarking requirement, only a requirement that the applicable board of elections *receives* the certificate of acceptance no later than two days after the last date to file—here, March 26. Two other features of the statute confirm the plain words used in the exception. First, the New York City postmarking requirement applies to papers “sent by mail,” whereas the provision for filing outside of New York City permits filing by “mail or overnight delivery service.” Overnight delivery services cannot provide a postmark. Second, for filings sent to boards of elections outside of New York City, the statute contains a special provision making it a “fatal defect” if the post office or other delivery service fails to deliver the filing within the two-day period. That provision would be superfluous under the majority's interpretation. Concluding, as the majority does, that the State Board's receipt of Ms. Hawatmeh's petition on March 26 was a “fatal defect” contravenes the unmistakably clear language of Election Law § 1-106 (1). Ms. Hawatmeh timely filed her certificate of acceptance.

What is gained by retaining these cases for merits decisions, reversing *Seawright* and affirming *Hawatmeh*? No fraud is avoided, no prejudice to an opponent is ameliorated, no voter confusion is avoided. No departmental split having any import is resolved. Instead, the majority applies what it calls a strict construction of the Election Law to remove Ms. Seawright from the ballot, eschewing the legislature's command to reject hypertechnical disqualifications of candidates and refusing to take any account of the effects of the pandemic on her, the election or New York City. Yet, to needlessly affirm Ms. Hawatmeh's removal from the ballot, the majority disregards the plain language of the Election Law, which unmistakably deems Ms. Hawatmeh's filing timely. The real losers here are not Ms. Seawright and Ms. Hawatmeh, but the voters, our democracy, and all those who have been struggling to adapt normal practices to abnormal times.

In *Matter of Seawright v Board of Elections in the City of N.Y.*: Order reversed, without costs, petitions by Rebecca Seawright to validate her designating petitions denied and petitions by Louis Puliafito to invalidate Seawright's designating petitions granted.

Opinion Per Curiam. Chief Judge DIFIORE and Judges STEIN, FAHEY, GARCIA and FEINMAN concur. Judge RIVERA dissents in an opinion, in which Judge WILSON concurs in a separate dissenting opinion.

In *Matter of Hawatmeh v New York State Bd. of Elections*: Order affirmed, without costs.

Opinion Per Curiam. Chief Judge DIFIORE and Judges STEIN, FAHEY, GARCIA and FEINMAN concur. Judge RIVERA dissents in an opinion. Judge WILSON dissents in a separate dissenting opinion.

[150 NE3d 1169, 127 NYS3d 403]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ROBERT
MAFFEI, Appellant.

Argued March 17, 2020; decided May 7, 2020

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered October 24, 2018. The Appellate Division affirmed a judgment of the Supreme Court, Kings County (Robert K. Holdman, J.), which had convicted defendant, upon a jury verdict, of murder in the second degree.

People v Maffei, 165 AD3d 1173, affirmed.

HEADNOTE

Crimes — Right to Counsel — Effective Representation — Challenge to Prospective Juror for Bias Based on Media Coverage

Defendant failed to establish on direct appeal that trial counsel was constitutionally ineffective based on a single purported error—the failure to challenge a prospective juror who made statements during voir dire that, upon reading pretrial publicity about the case, he “made up [his] mind then” that he “[d]idn’t like the circumstances,” and failed to unequivocally guarantee that he could be impartial when the trial court questioned him immediately following those statements. A juror who reads about a crime in the news must be able to lay aside his or her impression or opinion and render a verdict based on the evidence. It is not necessary that jurors be totally ignorant of the facts and issues involved, and it should be expected that jurors will have formed some impression or opinion as to the merits. The prospective juror’s statements during voir dire did not reflect actual bias against defendant predicated on any evidence precluding the juror from rendering an impartial verdict, as opposed to general discomfort with the case based on media coverage. The juror’s verbatim statements did not reveal what about the case gave rise to his uneasiness, nor did the juror convey that his uneasiness was connected to any particular personal experience or relationship, or whether his impressions risked predisposition toward the prosecution or defense. As the trial record did not reveal that the juror was actually partial to one side, defendant could not use the absence of a challenge to the juror in question to argue that counsel was ineffective on an incomplete record. Rather, a CPL 440.10 motion was the proper mechanism for the litigation of the claim.

RESEARCH REFERENCES

By the Publisher’s Editorial Staff

AM JUR 2d Criminal Law §§ 1111–1116.

CARMODY-WAIT 2d Right to Counsel §§ 184:162, 184:165,
184:251.

LAFAYE, ET AL., CRIMINAL PROCEDURE (4th ed) § 11:10.

NY JUR 2d Criminal Law: Procedure §§ 871, 872, 922.

ANNOTATION REFERENCE

See ALR Index under Attorneys; Voir Dire.

FIND SIMILAR CASES ON THOMSON REUTERS WESTLAW®Path: Home > Cases > New York State & Federal Cases
> New York Official Reports

Query: ineffective /4 counsel /p fail! /s challenge /4 prospective /2 juror & bias!

POINTS OF COUNSEL

Paul Skip Laisure, Appellate Advocates, New York City (David P. Greenberg of counsel), for appellant. Appellant was deprived of his constitutional right to the effective assistance of counsel by defense counsel's failure to challenge a biased potential juror, who admitted that he had already reached a decision about the case based on press reports and repeatedly stated that he was not sure he could be fair. (*Miller v Webb*, 385 F3d 666; *People v Benevento*, 91 NY2d 708; *People v Baldi*, 54 NY2d 137; *Strickland v Washington*, 466 US 668; *People v Heidgen*, 22 NY3d 259; *People v Caban*, 5 NY3d 143; *Harrington v Richter*, 562 US 86; *People v McGee*, 20 NY3d 513; *People v Baker*, 14 NY3d 266; *People v Rivera*, 45 AD3d 1249.)

Eric Gonzalez, District Attorney, Brooklyn (Ann Bordley and Leonard Joblove of counsel), for respondent. Defendant's claim of ineffective assistance of counsel is not reviewable on direct appeal. In the alternative, the claim is meritless. (*People v Clark*, 28 NY3d 556; *People v Campbell*, 30 NY3d 941; *People v Brown*, 45 NY2d 852; *People v Harrison*, 27 NY3d 281; *People v Cordova-Diaz*, 55 AD3d 360; *People v Nesbitt*, 20 NY3d 1080; *People v Peque*, 22 NY3d 168; *People v Barboni*, 21 NY3d 393; *People v Thompson*, 21 NY3d 555; *People v Vilfort*, 33 AD3d 368.)

OPINION OF THE COURT

Chief Judge DiFIORE.

In this direct appeal, defendant claims he was denied the effective assistance of counsel based on a single purported error—counsel's failure to challenge a prospective juror. We agree with the Appellate Division that defendant, on this record, has not sustained his burden to establish that counsel was

constitutionally ineffective. Therefore, the appropriate procedure for the litigation of defendant's challenge to his counsel's performance is a CPL 440.10 motion—the very mechanism designed by the legislature to enable review of factual issues dehors the record. Accordingly, we affirm the order of the Appellate Division.

In May 2003, the victim, the rear passenger in a vehicle, was shot in the head and killed in a drive-by shooting. Defendant was indicted in 2006 and charged with depraved indifference murder, among other charges. Over two years later, defendant's trial commenced. In the first round of jury selection, the trial court questioned prospective juror number 10, who stated that his uncle and cousin were law enforcement officers in Puerto Rico and that, several years earlier, he was charged with marijuana possession and performed community service as a result. When asked by the court whether the latter experience would cause him to be unfair, he responded, “[n]o, not at all.”

The prosecutor, at the outset of his voir dire in round one, asked the prospective jurors to raise their hand if they could not be fair and render a verdict after “listen[ing] to the evidence.” He summarized the facts of the case and began asking prospective jurors whether anything in their background would cause them to question whether they could be impartial. After one juror responded that his sister had been the victim of a random shooting, the prosecutor asked if “[a]nyone ha[d] a similar situation . . . with something in [their] past.” Prospective juror number 10 requested to speak, and the following exchange ensued:

“PROSPECTIVE JUROR: I think I read about this in the papers.

“[PROSECUTOR]: This case did receive publicity. Go ahead, sir.

“PROSPECTIVE JUROR: To be honest with you, I remember reading. Kind of made up my mind then.

“[PROSECUTOR]: Kind of made up your mind then?

“PROSPECTIVE JUROR: Didn't like the circumstances. I remember reading about it, making a decision kind of in my own head at that time.

“[PROSECUTOR]: You understand it’s up to me now to prove to you, beyond a reasonable doubt, who is the actual person that actually did it, right?”

“PROSPECTIVE JUROR: Right.

“[PROSECUTOR]: You might have made up your mind. I believe that was a really bad act. I didn’t like the way it happened.

“Do you understand I have to prove who did it?”

“PROSPECTIVE JUROR: Yes.”

The trial court explained that the jury would be instructed to avoid media coverage of the case, further commenting,

“As [prospective juror number 10] indicated, he said he made up his mind. That is a bad thing. Obviously, someone was arrested. There’s nobody here who is in favor of someone being shot to death in most circumstances. What is important is that it’s this defendant who is charged with that crime. The burden lives with [the prosecutor]. That he has to prove that this is the person who did that. Okay? You can remain fair and impartial?”

Prospective juror number 10 responded, “I hope so,” prompting the trial court to remind him of the need to answer unequivocally, to which he twice responded, “I’m not sure.”

The prosecutor explained that the depraved indifference murder charge implicates the same punishment as an intentional crime, despite requiring only proof of recklessness. In response to questioning about that charge, prospective juror number 10 stated, “I feel if it’s a good case, I’ll go by the law.” The prosecutor then asked whether prospective juror number 10 felt he was treated fairly in connection with his prior marijuana arrest, and he answered that he was treated fairly “[a]t one point” but not at “[t]he time [he] was arrested,” but denied he remained angry about the experience. When questioned about his relatives in law enforcement, he asserted he did not speak with them about their cases and that he would judge police “[a]s anyone else.”

Defense counsel then conducted his portion of the voir dire, asking questions of prospective jurors, both individually and collectively as a group, including whether any of them would have difficulty presuming defendant innocent, were exposed in their personal lives to law enforcement, had particularized

knowledge about handguns, or would require defendant to testify in order to acquit. He directly asked four unnamed prospective jurors whether they would be able to acquit if the People presented insufficient evidence, and all four answered affirmatively. He concluded by asking the panel to answer, by way of show of hands, whether he had their assurance that if “you, as an individual, do not believe that the District Attorney has proven this case to you beyond a reasonable doubt” they could “stick to the courage of [their] convictions” as the lone holdout voting for acquittal, and whether they were each “accountable to the job” of serving on the jury and by urging them to notify him if there was anything further they wanted to discuss.

At the close of round one, the trial court excused six prospective jurors for cause on consent of the parties based on their answers during voir dire, including two prospective jurors who did not raise their hands to group questions posed by defense counsel. Neither counsel made any individual challenges for cause. The prosecutor then exercised three peremptory challenges. Defense counsel, before exercising defendant’s peremptory challenges, asked the court for a moment to confer with defendant off the record and then, after a pause in the proceeding, exercised three peremptory challenges. The clerk read the names of the four remaining prospective jurors—including prospective juror number 10—and defense counsel responded that “[t]hose four will do.” Prospective juror number 10 was seated as a juror. At the close of jury selection, defendant had several peremptory challenges remaining.

Defendant was convicted, upon a jury verdict, of second-degree murder. At sentencing, the trial court commented on the high quality of advocacy by the prosecutor and defense counsel. On direct appeal, defendant argued that his trial counsel’s failure to challenge prospective juror number 10 constituted ineffective assistance of counsel. The Appellate Division affirmed (165 AD3d 1173 [2d Dept 2018]). In rejecting the ineffective assistance of counsel claim, the Court reasoned that it was based in part on matters dehors the record and that “a CPL 440.10 proceeding is the appropriate forum for reviewing the claim in its entirety” (*id.* at 1174). A Judge of this Court granted defendant leave to appeal (32 NY3d 1174 [2019]).

Defendant raises an ineffective assistance of counsel claim under the New York and Federal Constitutions based on a single alleged error: failure to challenge prospective juror

number 10. Under both the New York and federal standards, defendant bears the burden of establishing that counsel's performance was constitutionally deficient (*People v Campbell*, 30 NY3d 941, 942 [2017], citing *People v Nicholson*, 26 NY3d 813, 831 [2016]). The constitutional guarantee of effective assistance of counsel is met where a defendant was afforded "meaningful representation" based on "the evidence, the law, and the circumstances of [the] particular case, viewed in totality and as of the time of the representation" (*People v Benevento*, 91 NY2d 708, 712 [1998], quoting *People v Baldi*, 54 NY2d 137, 147 [1981]). To prevail on an ineffective assistance claim, a defendant must "demonstrate the absence of strategic or other legitimate explanations"—i.e., those that would be consistent with the decisions of a "reasonably competent attorney"—for the alleged deficiencies of counsel (*Benevento*, 91 NY2d at 712 [citations omitted]). A single error can constitute ineffective assistance, "but only when [it] is sufficiently egregious and prejudicial as to compromise a defendant's right to a fair trial" (*People v Caban*, 5 NY3d 143, 152 [2005] [citations omitted]; see also *Harrington v Richter*, 562 US 86, 111 [2011]).

"Generally, the ineffectiveness of counsel is not demonstrable on the main record" but rather requires consideration of factual issues not adequately reflected on that record (*People v Brown*, 45 NY2d 852, 853 [1978]; see also *People v Harrison*, 27 NY3d 281, 289 [2016]). By codifying the writ of error coram nobis in CPL article 440, the legislature crafted a procedure for such scenarios. To that end, article 440 permits defendants to complete the record by putting forth sworn factual allegations in support of a motion to vacate the judgment of conviction and authorizes evidentiary hearings on those motions (CPL 440.10, 440.30), thereby providing a vehicle specifically for the investigation of claims dependent on matters dehors the direct record (see CPL 440.10 [2] [c] [requiring denial of a motion to vacate if "sufficient facts appear on the (direct) record . . . to have permitted . . . adequate review" of the claim on direct appeal but defendant unjustifiably failed to perfect the appeal]). Such investigations are vital to a defendant's claim when the record on direct appeal is inadequate to permit the reviewing court to determine whether there was an error that deprived the defendant of the constitutional right to a fair trial. Thus, although there may be some cases in which the trial record is sufficient to permit a defendant to bring an inef-

fective assistance of counsel claim on direct appeal (*see People v Nesbitt*, 20 NY3d 1080, 1081-1082 [2013]), “in the typical case it would be better, and in some cases essential, that an appellate attack on the effectiveness of counsel be bottomed on an evidentiary exploration by collateral or post-conviction proceeding brought under CPL 440.10” (*Brown*, 45 NY2d at 853-854; *see also Campbell*, 30 NY3d at 942-943). That is especially true as to ineffective assistance of counsel claims based on the defense’s acceptance of a prospective juror. Counsel’s decisions during jury selection may be based on a myriad of factors, including not only the prospective jurors’ statements or actions reflected in the record, but also matters dehors the record on the direct appeal.

Nonetheless, defendant argues that the voir dire record reveals that prospective juror number 10 harbored an actual bias against him, citing the juror’s statements that, upon reading pretrial publicity about the case, he “made up [his] mind then” that he “[d]idn’t like the circumstances,” as well as his failure to unequivocally guarantee that he could be impartial when the trial court questioned him immediately following those statements. Defendant asserts that the alleged error, by violating his right to a fair trial, is sufficiently egregious to constitute ineffective assistance standing alone.

An actual bias is one that precludes a juror from rendering an impartial verdict based upon the evidence adduced at trial (CPL 270.20 [1] [b]; *see Murphy v Florida*, 421 US 794, 799-802 [1975]; *see also People v Torpey*, 63 NY2d 361, 366 [1984]). A determination of whether jurors lack the ability to be impartial turns on whether, based on the totality of the voir dire record, it is evident that a preference for one side over the other would impact their decision-making (*see Murphy*, 421 US at 800-802; *see also Patton v Yount*, 467 US 1025, 1033-1040 [1984]; *People v Johnson*, 94 NY2d 600, 614-616 [2000]). Thus, “[w]e have consistently held that ‘a prospective juror whose statements raise a serious doubt regarding the ability to be impartial must be excused [by the trial court] unless the juror states unequivocally on the record that he or she can be fair and impartial’” (*People v Harris*, 19 NY3d 679, 685 [2012], quoting *People v Chambers*, 97 NY2d 417, 419 [2002]). In the context of pretrial publicity in a case, a juror who reads about a crime in the news must be able to “lay aside his [or her] impression or opinion and render a verdict based on the evidence,” but it is not necessary that jurors “be totally ignorant of the facts and

issues involved,” particularly “[i]n these days of swift, widespread and diverse methods of communication,” and it should be expected that jurors will have “formed some impression or opinion as to the merits” (*Irvin v Dowd*, 366 US 717, 722-723 [1961]; see also *People v Cahill*, 2 NY3d 14, 38-40 [2003]).

We reject defendant’s argument here that prospective juror number 10’s statements during voir dire reflect actual bias against defendant predicated on any evidence precluding the juror from rendering an impartial verdict, as opposed to general discomfort with the case based on media coverage. Contrary to defendant’s assertion, the juror’s verbatim statements did not reveal what about the case gave rise to his uneasiness—whether it be the seemingly random nature of the shooting, the defendant’s or victim’s identity, or the manner in which the police investigated.¹ Nor did this juror convey that his uneasiness was connected to any particular personal experience or relationship,² or whether his impressions risked predisposition toward the prosecution or defense. Moreover, as both the prosecutor and trial court indicated in questioning the juror, this case turned not on a dispute about the nature of the crime but on the prosecutor’s ability to prove that this defendant committed it—an issue not impacted by the juror’s apprehension.

Pivotal, where no actual bias is evidenced on this record, additional statements by the prospective juror and matters

1. The dissent’s reliance, in concluding that the juror communicated bias against defendant, on improper fact-finding concerning the media reports about this case and inferences drawn from statements made by the court and prosecutor underscores the need for evidentiary exploration in the context of a CPL 440.10 motion in order to sustain defendant’s claim (see dissenting op at 275 n 1, 276 n 2, 284-285).

2. Defendant’s reliance on *Miller v Webb* (385 F3d 666 [6th Cir 2004]), which held that counsel’s failure to challenge a biased juror amounted to ineffective assistance under federal law, is inapposite. Critically, that case involved a fact-finding evidentiary hearing on the defendant’s motion to vacate his conviction, which explored counsel’s strategy concerning the juror and enabled the Sixth Circuit to review that decision (*id.* at 669-670, 676). In addition, there, actual bias was undeniable, as the juror was personally acquainted with the victim and key prosecution witness (*id.* at 668-669, 674-675). *Hughes v United States* (258 F3d 453 [6th Cir 2001]), cited in *Miller*, is also distinguishable. There—a case involving theft of a federal marshal’s property—the juror expressed bias in favor of law enforcement based on personal relationships with police, and the court relied largely on counsel’s and the trial court’s complete failure to ask her any follow-up questions in holding that the juror was actually biased and counsel was ineffective (*id.* at 456, 458-459). The record here demonstrates that defense counsel and the trial court conducted follow-up questioning of this prospective juror.

outside of the record could have provided defense counsel with reasons to retain the juror. First, although prospective juror number 10 initially equivocated when asked if he could be fair and impartial, that exchange occurred early in the voir dire and was followed by a substantial discussion as to whether the prospective jurors were fit to serve, during which he stated that he could “go by the law” concerning depraved indifference murder if he felt it was a “good case” and that he would view police testimony just as any other. Second, the record does not reveal the identity of the four prospective jurors who individually answered affirmatively when defense counsel asked them whether they could acquit if the People presented insufficient evidence. Defendant, in the absence of any challenge to the juror in question in the trial court, does not get the belated strategic benefit of his silence by now arguing on direct appeal, without support in the record, that prospective juror number 10 was not one of them. Third, defense counsel asked collectively several questions to the prospective jurors framed to uncover bias against defendant and, although other jurors were excused for cause on consent based on their negative responses to these questions by failing to raise their hands, this juror evidently answered in the affirmative. When viewed in totality, the voir dire record—reflecting only the juror’s generalized discomfort based on media coverage and a lack of clarity regarding his subsequent answers—“does not show a substantial risk that the prospective juror would not properly discharge his responsibilities, nor does it cast doubt on his ability to be fair” (*People v Barboni*, 21 NY3d 393, 407 [2013]).

Additionally, the record is silent as to what was said between defendant and his counsel during the conference immediately before counsel informed the court of his peremptory strikes. A defendant’s fundamental right to be present during the voir dire of prospective jurors is predicated on the right to personally assess the “facial expressions, demeanor and other subliminal responses” of potential jurors in order to choose his or her jury (*People v Antommarchi*, 80 NY2d 247, 250 [1992], quoting *People v Sloan*, 79 NY2d 386, 392 [1992]). A defendant’s views at trial about a prospective juror as conveyed to counsel are relevant to an ineffectiveness claim based on the joint decision to accept that juror. Here, where we do not know what was said between defendant and his counsel or how that conversation may have affected counsel’s impression of prospective juror number 10, the ineffective assistance claim cannot be resolved on direct appeal.

Defendant's argument that counsel's decision not to challenge the juror is rendered constitutionally defective by the lack of an unequivocal assurance of impartiality by the juror on the voir dire record—like that required to uphold a trial court's denial of a defendant's for-cause challenge to a juror who has revealed a state of mind likely to preclude impartial decision-making (*see Johnson*, 94 NY2d at 614)—is misplaced. To be sure, we have recognized that the use of the type of collective question-and-answer techniques employed by defense counsel in this case does not provide an unequivocal statement of impartiality sufficient to avoid a meritorious for-cause challenge where the juror has previously demonstrated partiality (*see People v Arnold*, 96 NY2d 358, 363-364 [2001]). However, it does not follow that defense counsel is constitutionally ineffective for failing to challenge a juror after generally asking such questions of the entire venire, and receiving satisfactory answers. A defendant's challenge for cause of a prospective juror irrefutably demonstrates that defendant did not accept the juror. Accordingly, the propriety of the trial court's decision to deny such a defense challenge turns entirely on the juror's responses on the voir dire record (*see e.g. id.* at 363-364). By requiring an unequivocal assurance of impartiality to empanel a juror over a for-cause challenge, we have encouraged courts to err on the side of granting such challenges, observing that “[t]he ‘worst the court will have done in most cases is to have replaced one impartial juror with another impartial juror’ ” (*Johnson*, 94 NY2d at 616, quoting *People v Culhane*, 33 NY2d 90, 108 n 3 [1973]). However, where—as here—the defense may have wanted the prospective juror to sit on the jury, the court does not have room to err on the side of caution in that way without risking impingement of the defendant's right to choose his or her jury. For these reasons, defendant has failed to demonstrate, on this record, “the absence of strategic or other legitimate explanations” for counsel's alleged error (*Barboni*, 21 NY3d at 405-406, *see People v Sposito*, 30 NY3d 1110, 1111 [2018]).

Not only is this record silent concerning what, if anything, defendant conveyed to counsel during their conference in reference to this prospective juror, but the voir dire record as a whole is also inadequate to support anything more than second-guessing the reasonableness of counsel's decision. In this case, where the trial record does not reveal that the juror was actually partial to one side, defendant cannot use the absence of a

challenge to the juror in question to now argue that counsel was ineffective on an incomplete record. A CPL 440.10 motion is the proper mechanism for the litigation of the claim.

Accordingly, the order of the Appellate Division should be affirmed.

RIVERA, J. (dissenting). A defendant has a constitutional right to be tried by an impartial jury (*Duncan v Louisiana*, 391 US 145, 153, 162 [1968]; *People v Torpey*, 63 NY2d 361, 365 [1984]). Every defendant also has a right to effective assistance of counsel (*Strickland v Washington*, 466 US 668, 686 [1984]; *People v Ortiz*, 76 NY2d 652, 655-656 [1990]). And under our legal system, a defendant is entitled to effective assistance of counsel from a defense attorney who acts to protect those rights in accordance with professional standards of competence when selecting among prospective jurors (CPL 170.10 [3]; see *Strickland*, 466 US at 690; *Gray v Mississippi*, 481 US 648, 671 [1987], Powell, J., concurring); *People v Clark*, 28 NY3d 556, 563 [2016]; *People v Colon*, 90 NY2d 824, 826 [1997]; ABA Criminal Justice Standards for the Defense Function standards 4-1.2 [c]; 4-7.3 [a] [4th ed 2017]).

Defendant was deprived of meaningful representation when his trial counsel did not challenge a prospective juror who was unable on multiple occasions to state unequivocally that he could be fair and impartial, including twice in response to direct questioning from the judge. Counsel's actions cannot be explained as part of a reasonable trial strategy because the prospective juror never disavowed those statements or explained how he could overcome his admitted emotional reaction to the crime. As a result of counsel's failure, defendant was tried by at least one juror who was unsure if he could fairly evaluate the evidence against defendant. That error of constitutional dimension warrants reversal and remittal for a new trial.

I.

A. The Fatal Shooting

Defendant Robert Maffei was prosecuted for having shot and mortally wounded a passenger in a moving vehicle. According

to the evidence presented by the prosecution, defendant was riding in his female friend's car on the highway late at night when he shot into the rear of another car, apparently motivated by jealousy. He did not know anyone in the other car and shot after some of the men smiled and waved at defendant's friend, with whom defendant had a casual romantic relationship, and another female passenger and commented on their beauty. The men in the other car drove to the hospital where the victim was declared brain dead and passed away after the family terminated life support. The shooting was an unprovoked act of violence that resulted in the killing of a young man by another young man. Senseless. The type of act that evokes anger and a desire for justice for the victim and the victim's family. Unsurprisingly, there was media coverage of the crime.¹

For over two years, the police were unable to identify the shooter, until finally they got a lead on the two women who were in the car with defendant, and who told the police about

1. The media coverage immediately following the murder focused heavily on the circumstances of the shooting (Melissa Grace, *Drive-by Killer Hunted: Teen shot as he rides with pals in 2nd car*, NY Daily News, June 9, 2003, <https://www.nydailynews.com/archives/boroughs/drive-by-killer-hunted-teen-shot-rides-pals-2nd-car-article-1.673575>; Tamer El-Ghobashy & Alice McQuillan, *On Highway, A Stolen Glance & A Forfeit Life*, NY Daily News, May 19, 2003, <https://www.nydailynews.com/archives/news/highway-stolen-glance-forfeit-life-article-1.672358>; Lorena Mongelli, *Car Ogle Deadly For Teen*, NY Post, May 19, 2003, <https://nypost.com/2003/05/19/car-ogle-deadly-for-teen/>; Shaila K. Dewan, *Metro Briefing [N]ew York: Brooklyn: Man Is Fatally Shot*, NY Times, May 19, 2003, <https://www.nytimes.com/2003/05/19/nyregion/metro-briefing-new-york-brooklyn-man-is-fatally-shot.html?searchResultPosition=1>; *Police Have Possible Motive In Fatal Brooklyn Highway Shooting*, NY1 News, May 19, 2003, https://www.ny1.com/nyc/all-boroughs/archives/2003/05/19/police-have-possible-motive-in-fatal-brooklyn-highway-shooting.NYC_30336; *Police Release Photo Of Car Believed To Be Involved In Deadly Highway Shooting*, NY1 News, June 10, 2003, https://www.ny1.com/nyc/all-boroughs/archives/2003/06/10/police-release-photo-of-car-believed-to-be-involved-in-deadly-highway-shooting.NYC_30906). In particular, the coverage stressed that shooting may have been the result of jealousy after the victim and other passengers in the car made comments about or glances at the females in the car in which defendant was traveling. Further, the media noted favorable details about the victim, including that he was a college student at Lincoln Tech with a 4.0 GPA and that his prior arrest was likely a case of mistaken identity. When the police were asking for leads in the shooting during the two-year period in which the case went "cold," the follow-up media coverage focused on the circumstances of the shooting, how the shooting may have stemmed from "lustful glances," and the devastating impact of the victim's death on his family (see e.g. Jotham Sederstrom, *Cops seek help in old murder*, The Brooklyn Paper, May 22, 2004, at 15, https://www.brooklynpaper.com/assets/pdf/27_20bp.pdf).

the shooting. Thereafter, the police arrested defendant. Another round of press coverage followed.²

The prosecutor presented testimony from witnesses in the other car, who described the highway shooting and driving the victim immediately to the hospital, and the females in the car from which the fatal gunshot was fired, who recounted how defendant shot into that other car as they drove by and then threatened both of them to convince them not to report him, as well as evidence concerning the police investigation of the shooting and the victim's car. The defense theory was that if the defendant shot at the car, he missed, and the victim was fatally shot by someone other than defendant later that night. In support of this view of the evidence, counsel argued the People's witnesses were not credible, and the police were standing by, if not wholly covering up, a poor investigation.

B. Jury Selection

During examination of the first panel of prospective jurors at defendant's trial, the court presented jurors with a life and death metaphor to emphasize that the court needed definitive statements that they could be impartial:

"Suppose that you have been flying in an airplane. You are getting close and the pilot gets up and says, ladies and gentlemen, we are five minutes to landing. Please fasten your seatbelts. I think I can do this. We don't want to hear that on the plane . . .

"[F]or legal reasons I need to hear from a juror I can be fair and impartial. I can do this. It's very normal for someone to say, do you think you can do this? Yes, I can do this. That's a normal answer. But because things change when you walk into a courtroom, they have to be a little more definitive."

Against that backdrop, the prosecutor asked individual prospective jurors questions regarding whether their past experi-

2. Once defendant was arrested and charged with the victim's death, the news coverage summarized the circumstances of the crime; noted how defendant was charged with murder and manslaughter charges; highlighted how defendant was transferred to Brooklyn from a prison in New Jersey where defendant was serving time for an unrelated conviction; and documented the victim's mother's emotional reaction at the arraignment of defendant (see e.g. Larry Celona, *Jailed Con Nailed in Teen's '03 Belt Parkway Shoot Slay*, NY Post, Sept 16, 2006, <https://nypost.com/2006/09/16/jailed-con-nailed-in-teens-03-belt-parkway-shoot-slay/>).

ences might affect their “ability to be fair and judge the facts of the case.”

“[PROSPECTIVE JUROR 14]: My sister was shot in Queens last year. Happened near Virginia Tech shooting. She would have front page except the fact the headline.

“[PROSECUTOR]: That was a random shooting.

“[PROSPECTIVE JUROR 14]: It was by mentally ill person. Person shot himself afterwards.

“[PROSECUTOR]: This is sort of a random shooting, as well. There is not going to be any motive presented to you in this case. The defendant is in the back seat of the car on the highway, approached the victim’s car and he shot him. Is that going to affect your ability to be fair and impartial, or can you keep that aside?

“[PROSPECTIVE JUROR 14]: Yes. It won’t affect my ability?

“[PROSECUTOR]: It won’t affect your ability.

“THE COURT: . . . [W]e had talked about this earlier with regard to it. I am sorry for what happened to your sister. I appreciate your story. You will be able to set aside and listen to the evidence fair and impartially. Is that correct?

“[PROSPECTIVE JUROR 14]: Yes.

“THE COURT: Very good. Thank you. Go ahead.”

The prosecutor continued, leading to this exchange with prospective juror 10,

“[PROSECUTOR]: Thank you.

“Everybody understand my question? Anyone have a similar situation . . . with something in your past? Anything in your past? We all share life experiences. We don’t come in here with a clean slate. Things have happened to people. Sometimes those past experiences, whether it be work, social things or family functions can sort of change somebody’s feelings.

“There may be something about this case where

you say, hey, you know what, I can't judge that person fairly. This is not the case for me. There might be another case out there for you. But this isn't it. Just given that, anyone else?

"Okay. Types of evidence.

"[PROSPECTIVE JUROR 10]: Can I ask you a question?

"[PROSECUTOR]: Sure.

"[PROSPECTIVE JUROR 10]: I think I read about this in the papers.

"[PROSECUTOR]: This case did receive publicity. Go ahead, sir.

"[PROSPECTIVE JUROR 10]: To be honest with you, I remember reading. Kind of made up my mind then.

"[PROSECUTOR]: Kind of made up your mind then?

"[PROSPECTIVE JUROR 10]: Didn't like the circumstances. I remember reading about it, making a decision kind of in my own head at that time.

"[PROSECUTOR]: You understand it's up to me now to prove to you, beyond a reasonable doubt, who is the actual person that actually did it, right?

"[PROSPECTIVE JUROR 10]: Right.

"[PROSECUTOR]: You might have made up your mind. I believe that was a really bad act. I didn't like the way it happened.

"Do you understand I have to prove who did it?

"[PROSPECTIVE JUROR 10]: Yes.

"[PROSECUTOR]: I just want to let you know I appreciate your honesty. Don't get me wrong.

"THE COURT: . . . let me interrupt you."

The court then addressed the panel and discussed generally how jurors must avoid the influence of media coverage of the crime and cannot predetermine the case, stressing that they must remain fair and impartial. Turning to prospective juror

10, the court sought confirmation that he could abide by these instructions, notwithstanding his reaction to the crime:

“THE COURT: Folks, one of the instructions you will receive from me, should you be selected, is that if there is any kind of media attention to a case, sometimes it happens where we don’t know what is going to happen, sometimes it happens and we do expect it, you cannot let it affect you. You can’t listen to it. You cannot watch it on television. You cannot read it on the news. If you are sitting at home and something comes on the TV, you literally will have to change the channel or get out of the room. That’s one of the commitments I need from you as jurors. As [prospective juror 10] indicated, he said he made up his mind. That is a bad thing. Obviously, someone was arrested. There’s nobody here who is in favor of someone being shot to death in most circumstances. What is important is that it’s this defendant who is charged with that crime. The burden lives with [the prosecutor]. That he has to prove that this is the person who did that. Okay? You can remain fair and impartial?”

“[PROSPECTIVE JUROR 10]: I hope so.

“THE COURT: Back on that plane now.

“[PROSPECTIVE JUROR 10]: I’m not sure.

“THE COURT: Okay. Thank you, sir.

“[PROSPECTIVE JUROR 10]: I’m not sure.”

After this exchange, the prosecutor asked prospective juror 10 several more questions about his ability to follow the law (he said he could), his family relations with his uncle and cousin who were police captains in Puerto Rico (he answered that he did not discuss cases with them), and his interactions with the criminal justice system arising from a marijuana possession charge that led to a community service sentence. As to this final issue, when asked by the prosecutor if he was treated fairly by the police, prospective juror 10 said yes, except for his arrest, and in response to a follow-up question as to whether he was angry with the police or the district attorney’s office over this past experience, he answered no. Then, when the

prosecutor contrasted prospective juror 10 to another prospective juror who said they were “likely to give police officers a little bit more credibility,” prospective juror 10 responded that he would judge police officers like anyone else.

For his part, defense counsel did not explore with prospective juror 10 his statements that he was not sure he could be impartial, nor did counsel ask whether he could put aside his emotional reaction to the case. Instead, counsel mostly posed general questions to the entire panel of prospective jurors, with the members responding as a group. For example, counsel asked the prospective jurors questions focusing on whether they understood the presumption of innocence; whether they could acquit a defendant if the proof simply was not there; and whether they could be the lone holdout if they truly believed that defendant deserved to be acquitted. In some instances, after posing a general question to the group, defense counsel randomly called on individual jurors and asked for their answers to the general question. With few exceptions—none involving prospective juror 10—counsel did not focus on individual juror circumstances. As for the few questions posed to individual jurors, they focused on whether the prospective jurors believed and understood that witnesses might lie on the stand; whether they could honor defendant’s Fifth Amendment right to refrain from testifying; and whether anyone with military experience had specialized training on handguns. Aside from the questions focusing on individuals with military training, defense counsel appeared to pose his individual questions randomly, with the objective of making general points to the group about defendant’s trial rights and witness credibility. In other words, defense counsel was “educating” potential jurors and setting the stage for the defense.

At the conclusion of voir dire, the court sua sponte identified seven persons, including prospective juror 14, for dismissal on consent. Counsel and the prosecutor agreed. Neither side sought to challenge any of the remaining members of the panel for cause and each used three peremptory challenges. At the end of jury selection, counsel had used nine of his allotted 20 peremptory challenges.³ Defense counsel did not challenge prospective juror 10 who was sworn in and deliberated to verdict.

3. This total does not include a peremptory strike that counsel exercised and then withdrew during the third and final round of voir dire.

C. Verdict and Appeal

The jury convicted defendant of second-degree murder—depraved indifference murder (Penal Law § 125.25 [2]).⁴ The Appellate Division affirmed the judgment and, as relevant to this appeal, rejected defendant’s claim that his counsel was ineffective for failing to challenge prospective juror 10 (165 AD3d 1173, 1174 [2d Dept 2018]). The Court concluded that defendant presented a mixed claim of ineffective assistance, in that it was based in part on matters outside the record, and that the claim would be best resolved in a CPL 440.10 proceeding. A Judge of this Court granted defendant leave to appeal (32 NY3d 1174 [2019]). I disagree with the majority adoption of the Appellate Division’s view that defendant’s claim is unreviewable on direct appeal because “the proper mechanism for the litigation of the claim” is a CPL 440.10 motion (majority op at 274). Instead, I would reverse and order a new trial because the record establishes that counsel’s failure to challenge prospective juror 10 was reversible error.⁵

II.

A. Ineffective Assistance of Counsel Standard

“The right to effective assistance of counsel in criminal proceedings is guaranteed by the New York and Federal Constitutions” (*People v Berroa*, 99 NY2d 134, 138 [2002], citing US Const 6th Amend; NY Const, art I, § 6). The “state standard for effective assistance of counsel ‘has long been whether the defendant was afforded “meaningful representation” ’ ” (*id.* at 138 [citations omitted]). “[O]ur state standard [for ineffective assistance of counsel] thus offers greater protection than the federal test” (*People v Caban*, 5 NY3d 143, 156 [2005]). In contrast to the federal test that expressly requires prejudice to defendant, “ ‘prejudice’ is examined more generally in the context of whether defendant received meaningful representation,” and “the claim of ineffectiveness is ultimately

4. The court submitted only two charges for the jury’s consideration, both depraved indifference and second-degree manslaughter, instructing the jury to not consider manslaughter if it found defendant guilty of depraved indifference.

5. Since I conclude that counsel failed to provide meaningful representation based on this error alone, I do not consider defendant’s alternative argument that counsel’s performance overall was ineffective because he (1) advocated a defense theory that was implausible, as it was belied by the evidence, and (2) inadequately prepared his expert witness.

concerned with the fairness of the process as a whole rather than its particular impact on the outcome of the case” (*People v Benevento*, 91 NY2d 708, 713-714 [1998]). “Thus, under our State Constitution, even in the absence of a reasonable probability of a different outcome, inadequacy of counsel will still warrant reversal whenever a defendant is deprived of a fair trial” (*Caban*, 5 NY3d at 156). This Court has stressed that “our legal system is concerned as much with the integrity of the judicial process as with the issue of guilt or innocence” (*People v Benevento*, 91 NY2d 708, 714 [1998], quoting *People v Donovan*, 13 NY2d 148, 153-154 [1963]). In addition to establishing a lack of meaningful representation, a defendant must “demonstrate the absence of strategic or other legitimate explanations for counsel’s failure[s]” (*People v Rivera*, 71 NY2d 705, 709 [1988]).

The United States Supreme Court has held that the Sixth Amendment’s definition of effective assistance of counsel “relies . . . on the legal profession’s maintenance of standards sufficient to justify the law’s presumption that counsel will fulfill the role in the adversary process that the Amendment envisions” (*Strickland*, 466 US at 688, citing *Michel v Louisiana*, 350 US 91, 100-101 [1955]; see also *Padilla v Kentucky*, 559 US 356, 366 [2010] [“The first prong (of the *Strickland* test)—constitutional deficiency—is necessarily linked to the practice and expectations of the legal community”]). After all, “[t]he proper measure of attorney performance remains simply reasonableness under prevailing professional norms” (*Strickland*, 466 US at 688). Similarly, in New York, performance standards have been recognized as “highly relevant in assuring that constitutionally effective assistance is provided and in judging whether in a particular case an attorney’s performance has been deficient” (*Hurrell-Harring v State of New York*, 15 NY3d 8, 18 [2010]). The ABA Criminal Justice Standards for the Defense Function imposes upon defense counsel a broad duty to “be aware of legal standards that govern the selection of jurors, and be prepared to discharge effectively the defense function in the selection of the jury, including . . . exercising challenges for cause and peremptory challenges” (ABA Criminal Justice Standards for the Defense Function standard 4-7.3 [a] [4th ed 2017]; see also *id.* standard 4-1.2 [c]).

Significantly, as concerns this appeal, “[a] single error may qualify as ineffective assistance, but only when the error is sufficiently egregious and prejudicial as to compromise a defend-

ant's right to a fair trial" (*Caban*, 5 NY3d at 152 [citations omitted]). "To rise to that level, the omission must typically involve an issue that is so clear-cut and dispositive that no reasonable defense counsel would have failed to assert it, and it must be evident that the decision to forgo the contention could not have been grounded in a legitimate trial strategy" (*People v McGee*, 20 NY3d 513, 518 [2013]). A violation of a right so central to our system of justice as the right to an impartial jury is the type of single error that meets the standard and warrants reversal (*see People v Harris*, 26 NY3d 321, 327-328 [2015]; *Virgil v Dretke*, 446 F3d 598, 607 [5th Cir 2006]; *Miller v Webb*, 385 F3d 666, 676-677 [6th Cir 2004]; *United States v Gonzalez*, 214 F3d 1109, 1111 [9th Cir 2000]; *Johnson v Armontrout*, 961 F2d 748, 756 [8th Cir 1992]; *Burton v Johnson*, 948 F2d 1150, 1155 [10th Cir 1991]; *Coleman v Kemp*, 778 F2d 1487, 1540 n 24 [11th Cir 1985]; *Cooks v United States*, 461 F2d 530, 532 [5th Cir 1972]; *cf. Nelson v Estelle*, 642 F2d 903, 907 [5th Cir 1981] [stating that the Fifth Circuit's single-error jurisprudence has consistently found counsel to be ineffective when the error in question violated a separate constitutional right of the defendant]).

B. Defendant's Right to an Impartial Jury and Trial Counsel's Error

"[N]othing is more basic to the criminal process than the right of an accused to a trial by an impartial jury" (*Torpey*, 63 NY2d at 365, quoting *People v Branch*, 46 NY2d 645, 651 [1979]; *see also* NY Const, art I, § 2). CPL 270.20 (1) (b) provides that "[a] challenge for cause is an objection to a prospective juror and may be made only on the ground that . . . [a prospective juror] has a state of mind that is likely to preclude [the prospective juror] from rendering an impartial verdict based upon the evidence adduced at the trial." "Upon such a challenge [under CPL 270.20 (1) (b)], a [prospective] juror who has revealed doubt, because of prior knowledge or opinion, about [their] ability to serve impartially must be excused unless [they] state[] unequivocally on the record that [they] can be fair" (*People v Arnold*, 96 NY2d 358, 362 [2001]; *see also People v Warrington*, 28 NY3d 1116, 1119-1120 [2016]; *People v Harris*, 19 NY3d 679, 685 [2012]; *People v Johnson*, 94 NY2d 600, 616 [2000]).

"Prospective jurors who make statements that cast serious doubt on their ability to render an impartial verdict, and who

have given less-than-unequivocal assurances of impartiality, must be excused” (*Arnold*, 96 NY2d at 363, citing *People v Blyden*, 55 NY2d 73, 78 [1982]; *Torpey*, 63 NY2d at 367; see also *Johnson*, 94 NY2d at 612). “By contrast, where prospective jurors unambiguously state that, despite preexisting opinions that might indicate bias, they will decide the case impartially and based on the evidence, the trial court has discretion to deny the challenge for cause if it determines that the juror’s promise to be impartial is credible” (*Arnold*, 96 NY2d at 363, citing *People v Williams*, 63 NY2d 882, 884-885 [1984]). “[T]he principle is a simple oneWhen potential jurors themselves say they question or doubt they can be fair in the case, Trial Judges should either elicit some unequivocal assurance of their ability to be impartial when that is appropriate, or excuse the juror when that is appropriate” (*Johnson*, 94 NY2d at 616).

Given a defendant’s basic right to an impartial jury, and trial counsel’s professional obligation to protect that right, trial counsel’s representation cannot be meaningful when counsel fails to challenge a biased juror (*People v Claudio*, 83 NY2d 76, 79-80 [1993]; *Torpey*, 63 NY2d at 365; *Virgil*, 446 F3d at 613; *Miller*, 385 F3d at 676-677; *Hughes v United States*, 258 F3d 453, 463-464 [6th Cir 2001]; *Johnson*, 961 F2d at 755-756).

Prospective juror 10 demonstrated bias based on his emotional reaction to the crime. During the prosecutor’s questioning about whether prior experiences would affect any prospective juror’s ability to be impartial and after prospective juror 14 responded, prospective juror 10 affirmatively volunteered his doubts about his ability to be impartial. He stated that he “[k]ind of made up [his] mind” and “ma[de] a decision kind of in [his] own head at that time” based on what he read about the crime prior to the trial because he “[d]idn’t like the circumstances.” Given the context of the prosecutor’s questioning, and that prospective juror 10 was referring to what he had read about the murder, he was expressing his emotional reaction to the crime and whether he could be unbiased towards defendant. And that is exactly how the prosecutor and court understood these statements. Both described prospective juror 10 as having believed the murder was a “bad act.” And because prospective juror 10 viewed the murder as a terrible act, he was expressing that he was biased against a defendant accused of the heinous crime.

The statements were sufficiently alarming that the court interrupted the prosecutor’s voir dire of prospective juror 10 to

address the entire panel informing them that jurors must avoid all news about the case. To emphasize the need to avoid the media's potential influence, the court noted that prospective juror 10 "said he made up his mind" about the crime, and that such a predisposition was a "bad thing." But the court explained that "what is important is that it's this defendant who is charged with that crime" and that the prosecutor "has to prove that this is the person who did [it]." On the heels of this cautionary comment, the court then asked prospective juror 10 directly whether he could "remain fair and impartial." Prospective juror 10 responded, "I hope so." Since that was the exact type of indefinite statement the court could not accept, the court again pressed on this point. The court returned to its earlier metaphor about the pilot who announces to the passengers that they are about to land the plane and gives an insufficient answer of "I think I can do this." Then, the court point blank rhetorically said to prospective juror 10, "[b]ack on that plane now." To this, prospective juror 10 twice responded, "I'm not sure." Tellingly, he repeated the response notwithstanding the court's reminder to him and the rest of the panel just moments earlier that such an answer was "unacceptable." Prospective juror 10 never disavowed these statements.⁶

The majority's reading of the record as merely reflecting a general preconceived discomfort with the case (majority op at 271) ignores that the point of his responses was that he could not be fair and impartial because of his view of the case, such that he could not judge defendant fairly. Prospective juror 10 was not making an abstract point about his ability to serve, somehow detached from the realities of the case and that defendant was charged with killing another human being. Put another way, the exchange with the prosecutor and the court undoubtedly shows that he was biased against the defendant as the person accused of committing the crime. Moreover, although "[e]motions are natural human responses and the law does not expect jurors to be devoid of such feelings . . . , jurors

6. Contrary to the majority's mischaracterization, I have not engaged in fact-finding by footnoting, as background, citations to publicity of the crime (majority op at 271 n 1; dissenting op at 275 n 1, 276 n 2). I base my legal analysis on constitutional doctrine, controlling precedent and on the record of what counsel did and did not do and what prospective juror 10 actually said. Unlike the majority, I do not speculate or fathom an alternative meaning from the prospective juror's sworn statements that he could not be sure he would be impartial; I take those words for their obvious and intended meaning.

must have the capacity and the will to decide the case based solely on the facts as they find them and the applicable law as instructed by the court” (*People v Spencer*, 29 NY3d 302, 311-312 [2017]; see also *People v Reyes*, 94 NY2d 600, 615 [2000]; *People v Rodriguez*, 71 NY2d 214, 216-217, 220-221 [1988]; *Arnold*, 96 NY2d at 363). Thus, a prospective juror does not need to “‘be totally ignorant of the facts and issues involved,’” and may have “‘formed some impression or opinion as to the merits’” (majority op at 270-271, quoting *Irvin v Dowd*, 366 US 717, 722-723 [1961]), but a person cannot serve if they fail to state that they can decide the case fairly, notwithstanding their emotional reaction to the crime.

Nor is there legal or record support for the majority’s suggestion that because the statements were made early in voir dire, they are somehow less significant or should be given less credence than if they had been made minutes later (majority op at 272). The statements responded to fundamental and direct questions about prospective juror 10’s ability to fairly evaluate the evidence in defendant’s prosecution. Whether made at the beginning, middle or end of voir dire, the inability of prospective juror 10 to make plain his impartiality with an unequivocal assurance that he would judge defendant fairly is what matters here.

To prospective juror 10’s credit, he was candid about his uncertainty to be fair and impartial—so candid that he initiated the questioning on this very subject with the prosecutor. And that makes all the difference because the prospective juror—the only person to know what he heard about the case, to fully appreciate what he was feeling before and during voir dire, and to know how these feelings impacted his ability to serve, given the court’s clarity about the need for definitive statements—assessed his impartiality and concluded he was simply not sure he could be fair in this case towards this defendant. Since neither the court nor defense counsel secured an unequivocal statement that he could be unbiased, counsel should have challenged him for cause. Under our case law, the court should have granted the challenge (see e.g. *Arnold*, 96 NY2d at 362-363, 368). Counsel’s failure resulted in the seating of a biased juror, thus denying defendant his basic right to an impartial jury (see *Johnson*, 94 NY2d at 614-616 [also resolving *Reyes*]).

Counsel could not have allowed prospective juror 10 to be seated knowing his bias but hoping that trial evidence would somehow supplant his views or that he would “bend over

backwards” to be fair because he was cognizant of his bias, as the People suggest. Who would want their liberty in the hands of a person who says they heard about the case, kind of made up their mind based on what they had read because they did not like the circumstances, and then admits they are not sure they can be impartial and fair? Who wants a juror who, at most, can only say they “hope” they can meet this essential requirement for jury service?

III.

No Strategic Reason to Accept a Potentially Biased Juror

The Sixth Circuit in *Miller* explained, as a federal constitutional matter, “whether to seat a biased juror cannot be a discretionary or strategic decision” that effective counsel is permitted to make under the Sixth Amendment (385 F3d at 675).⁷ So too under our case law, such a choice does not meet an objective standard of reasonableness (*People v Rivera*, 45

7. The majority attempts to distinguish *Miller* because in that case there was an evidentiary hearing and counsel provided reasons for keeping the juror in question on the jury (majority op at 271 n 2). However, that specific procedural posture does not render *Miller*’s constitutional analysis any less significant or instructive. The majority ignores that the Sixth Circuit expressly held counsel’s failure to challenge a biased juror is inexcusable precisely because there is “no sound trial strategy that could support what is essentially a waiver of a defendant’s basic Sixth Amendment right to trial by an impartial jury” (385 F3d at 676). As in *Miller*, the record here is sufficient to decide defendant’s claim (*see* dissenting op at 284-287). No additional evidentiary inquiry is necessary because counsel has no excuse for permitting the seating of a juror who says they cannot be sure they will be impartial. In any case, the Sixth Circuit’s discussion of why counsel’s strategy was unreasonable in *Miller*, although dicta, supports defendant’s ineffectiveness claim here. The Sixth Circuit explained that counsel made baseless and unreasonable assumptions given the juror’s express statements, which counsel failed to explore. Here, too, counsel failed to ask necessary follow-up questions directly to prospective juror 10 once he made statements revealing his predisposition and bias (dissenting op at 280, 286).

Similarly, the majority tries to distinguish *Hughes v United States* (258 F3d 453 [6th Cir 2001]) on the ground that the Sixth Circuit “relied largely on counsel’s and the trial court’s complete failure to ask her any follow-up questions in holding that the juror was actually biased and counsel was ineffective,” which was not the case here (majority op at 271 n 2). However, as discussed, *supra*, the record shows that the court asked prospective juror 10 additional questions about his ability to be fair and impartial after the initial exchange with the prosecutor, but the court did not secure an assurance of impartiality and instead, prospective juror 10 said twice that he was not sure if he could be fair. Defense counsel also only asked generalized questions to the entire panel, never directly and individually questioning prospective

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AD3d 1249, 1251 [4th Dept 2007]; *see also* *People v Turner*, 5 NY3d 476, 485 [2005]; *People v Rodriguez*, 71 NY2d 214, 220-221 [1988] [stating that where sworn juror showed clear bias against the defendant, discharge of said juror as “grossly unqualified” is mandatory under CPL 270.35 to ensure defendant’s constitutional rights]; *People v Spencer*, 29 NY3d 302, 311-312 [2017] [noting that a sworn juror possessing a state of mind making them incapable of rendering an impartial verdict must be discharged as “grossly unqualified”]). Thus, the People’s argument that counsel may have had a strategic reason for not challenging prospective juror 10, leading to his service on the jury, is irrelevant to the analysis.

Even if counsel’s strategy were a valid consideration when a defendant claims that the prospective juror was biased, the proposed strategy must nonetheless be reasonable or legitimate (*Benevento*, 91 NY2d at 712-713; *People v Taylor*, 1 NY3d 174, 177 [2003]; *Miller*, 385 F3d at 676). Baseless hypotheticals about what defense counsel might have thought are insufficient as a matter of law.

Here, no reasonable trial strategy is discernable, as made plain by the unpersuasive and speculative strategies posited by the People.⁸ I address them in turn.

juror 10 about his bias (*see* dissenting op at 280, 286). In *Hughes*, the Sixth Circuit expressly admonished such follow-up questioning, holding that a prospective juror’s “silence in the face of generalized questioning of venirepersons by counsel and the court d[oes] not constitute an assurance of impartiality” (258 F3d at 461). And “[b]ecause the district court failed to respond to [the prospective juror’s] express admission of bias on *voir dire*, . . . counsel’s failure to respond in turn was objectively unreasonable under *Strickland*,” making a new trial necessary (*id.* at 462, 463). Applied here, since the trial court’s follow-up questions did not secure an adequate assurance of impartiality, defense counsel’s failure to directly question prospective juror 10 about his statements to ensure he could be unbiased, or to challenge him for cause when such an assurance was lacking was objectively unreasonable under *Strickland*. Like in *Hughes*, prospective juror 10 “offered no assurances [up]on which” this Court may rely to find a lack of actual bias and, for federal purposes, prejudice (*id.* at 460). As such, a new trial is warranted.

8. Although it does not change the analysis, because counsel may be ineffective for affirmatively choosing a biased juror or for simply forgetting to challenge a prospective juror, there is no support to conclude, as the majority does, that counsel may have wanted prospective juror 10 to serve on the jury (majority op at 273). To the contrary, the record suggests he made a mistake by simply losing track of prospective juror 10 and either forgetting to follow up with him or strike him. Indeed, defense counsel was confused about how prospective jurors responded to *voir dire* questioning, as shown by counsel’s initial objection to dismissal of prospective juror 15 as biased when such was

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The People's first argument, that defense counsel may have believed prospective juror 10's marijuana arrest by the NYPD made him more willing to accept defendant's assertion that the police failed to fully investigate the crime and wrongly arrested defendant, is unpersuasive. Prospective juror 10 admitted the arrest was no longer an issue, and of course, prospective juror 10 had relatives who were out-of-state police captains. Nothing he said suggests he bore ill feelings towards police officers in general. Thus, there was no basis to presume he would be likely to view the officers' actions in defendant's case with suspicion. Counsel would also have to have discounted prospective juror 10's response to the prosecutor that he would indeed evaluate the police testimony like anyone else, without favoritism one way or the other. In any case, prospective juror 10's statement about how he was treated by the police was not wholly favorable to the defendant. Prospective juror 10 stated he felt he was treated fairly except for his arrest and said nothing about a police investigation. Indeed, he agreed with the prosecutor's statement that he was not angry about the past.

Moreover, the defense theory of the case was that the victim did not die from the gunshot from a passing car but at the hand of someone else. This defense required the jury to fail to credit every nonpolice witness about the events leading up to and following the shooting that supported the People's version that defendant fatally shot the victim. Since the key witnesses were the riders in the two cars, the juror would not only have to accept that the police investigation was flawed and possibly a coverup, but also that the riders, including defendant's friend, were lying. A highly improbable scenario, both because the jury would have to accept that these witnesses perjured themselves to present a web of lies, and also because defendant's expert testified the bullet recovered from the car could have been shot from a revolver, which the People argued was the gun used by defendant. Given this high burden, counsel needed jurors who would reject the People's version of events by distrusting every single witness for the prosecution—jurors who could set aside emotion and sympathy for the victim and the victim's family.

proposed by the court. The court and the prosecutor had to remind defense counsel that prospective juror 15 stated she could not follow the judge's instructions or the law about depraved indifference murder and that she could not be fair. After this, defense counsel admitted on the record that his law assistant had to inform him of prospective juror 15's inadequate answers.

As described above, nothing about prospective juror 10's prior interaction with the criminal justice system showed he was the type of juror defense counsel wanted or needed. Notably, prospective juror 10 was prosecuted for marijuana possession and was sentenced to community service, and nothing in his statements showed he would be sympathetic to defendant, who was on trial for a murder. Further, prospective juror 10's statements show he had made up his mind about "the circumstances" of the victim's death, and his assurance that he understood that the prosecutor had to prove *who* shot the victim from the passing car does little to overcome his bias. In other words, prospective juror 10 had made up his mind about the merits of defendant's substantive defense, making him a poor juror choice for the defense.

Second, the People argue prospective juror 10's statement, "if it's a good case, I'll go by the law" on the depraved indifference murder charge, suggested he would acquit defendant unless there was a good case. But that statement was not about the ability to be impartial towards the defendant. Rather, the answer was given in response to the prosecutor's inquiry to this first panel of prospective jurors about whether they could render a decision on depraved indifference even though it is not intentional murder, exploring whether anyone thought it would be unfair to punish both crimes the same way, such that the prospective juror "can't follow the law." Prospective juror 10's statement that he would go by the law and convict if it was a good case meant only that he would be able to convict on murder in the second degree; it did not clarify what he meant by a "good case" or whether he would consider pretrial information in making that assessment. In any event, these statements do not satisfy our legal requirement that a prospective juror expressly disavow bias or overcome his prior statements that he was not sure he could be fair and impartial. Even more logically incongruous, because counsel never made inquiries to remove the cloud of doubt as to prospective juror 10's impartiality, counsel would have had to conclude that prospective juror 10 was not truthful about his inability to be impartial in order to find him an acceptable choice. But then, why believe anything else he says that would have, according to the People, made him attractive to the defense?

Third, the People argue that prospective juror 10 could have been one of those jurors who said they would be willing to acquit defendant if there were lack of proof when defense

counsel asked four jurors individually that question. In the same vein, the People's fourth argument is that prospective juror 10 apparently responded appropriately during the group questions by defense counsel, including when asked if they would be willing to be the lone person to hold out for acquittal. Those who did not say they would were then dismissed on consent. However, the Court has made clear that a group response of adherence to the court's instructions is insufficient (*Arnold*, 96 NY2d at 363-364). The reason is clear:

“[t]he group answer by the entire panel did not address [his] personal attitudes, nor did it force [him] to confront the crucial question whether [he] could be fair to this defendant in light of [his] expressed predisposition. Indeed, nothing less than a personal, unequivocal assurance of impartiality can cure a juror's prior indication that [they are] predisposed against a particular defendant or particular type of case” (*id.* at 363-364).

The bottom line is that prospective juror 10 had to individually, unequivocally state that he would be unbiased, but he never did.

Significantly, neither counsel nor the judge secured an assurance of impartiality by any variety of questioning. For example, “[t]hey did not ask whether [he] could lay aside [(his) feelings] and render a verdict based on the evidence presented in court” (*Miller*, 385 F3d at 675 [internal quotation marks omitted], quoting *Irvin*, 366 US at 722-723).

Even assuming prospective juror 10 responded to counsel's questioning by agreeing to acquit if there was a lack of proof, this did not confirm how prospective juror 10 would consider the proof. And counsel could not rely on prospective juror 10 having stated earlier that he hoped he could be fair. Our law requires more than mere aspiration towards unbiased consideration of the evidence and a defendant's guilt. Given his prior statements to the court and the prosecutor, an individual inquiry was the only way to ensure that prospective juror 10 was not predisposed against defendant. Put another way, it is one thing for a prospective juror to say that they think they can be fair since, in and of itself, that statement might not be sufficient to establish bias, but that is not what happened here. Instead, prospective juror 10 said he did not know if he could be fair. That equivocation is a statement of partiality, unac-

ceptable as a matter of law (*see Warrington*, 28 NY3d at 1117-1119, 1120; *Torpey*, 63 NY2d at 364, 369; *Blyden*, 55 NY2d at 78-79).

To the extent the People support these arguments by claiming prospective juror 10's demeanor may have convinced defense counsel not to challenge prospective juror 10, a generalized claim of "demeanor" cannot be the basis of a reasonable and legitimate strategy on this record. We have never held that demeanor on its own is enough to overcome asserted bias.⁹ Here, no physical movement could have overcome this prospective juror saying he could not be sure of his ability to be fair and only hoped he could be fair and impartial. Using the trial court's metaphor, no one would get on a plane with a pilot who is not able to confirm they can fly the plane; no defendant should have to stand trial with a juror who is not able to confirm they can be fair.

Certainly, jury selection involves counsel making decisions based on observations, looking a prospective juror in the eye, measuring an individual based on how they react to the colloquy as well as what is heard.¹⁰ But that misses the point of

9. The People's reliance on *People v Barboni* (21 NY3d 393 [2013]) and *People v Thompson* (21 NY3d 555 [2013]) is misplaced, as neither depended solely on speculation about demeanor. The respective records in those appeals established other reasons why defense counsel might find the prospective juror potentially attractive to the defense. In *Barboni*, the prospective juror's possible favorable assessment of police testimony did not implicate the defense theory (21 NY3d at 406). Although here, defendant challenged the credibility of the police officers, that line of defense would only have succeeded if the jury disbelieved every other witness for the People, and for the reasons I have discussed, nothing during jury selection suggested prospective juror 10 would be open to not crediting these other witnesses. In *Thompson*, the prospective juror expressly averred that his relationship with the prosecuting lawyer would not affect his ability to be fair and impartial. While it may have been "an unconventional, perhaps risky choice" (21 NY3d at 560) to accept prospective juror 10 if he had subsequently asserted his impartiality, it is ineffective assistance to accept prospective juror 10 without any such affirmation. Here, of course, prospective juror 10 was unable to make such an unequivocal statement when asked several times, and instead responded that he could not state even this most basic assurance.

10. There is interesting research on jury selection that suggests juror candor in response to voir dire questions depends on a variety of factors, including: who asks the question (judge or attorney); the formation of the question (open or closed); and the tone of the question as it is asked (Catherine M. Grosso & Barbara O'Brien, *Lawyers and Jurors: Interrogating Voir Dire Strategies by Analyzing Conversations*, 16 J Empirical Legal Stud 515, 522-524, 541 [2019]). In one study, scholars found that using open questions and an affective expression, rather than closed questions and less emotionally laden expressions, led to jurors being more open and honest about their

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whether a court should refuse to review an ineffective assistance of counsel claim based solely on some unknown measure of demeanor when the prospective juror's record statements evince bias and show uncertainty in the prospective juror's ability to be fair and impartial towards the person charged with the crime. Lawyers sometimes make choices during jury selection that may appear unorthodox or inexplicable, and such choices do not automatically render counsel ineffective. Those choices are based on experience as well as skilled questioning of the panel. However, it is a very different thing to choose a biased juror, or mistakenly fail to challenge a potentially biased prospective juror, without having heard a prospective juror's statement of impartiality.

The People's fifth argument is that since prospective juror 10 had never served on a jury before, he may have been sympathetic to defendant and less likely to convict. If so, his demeanor may have persuaded defense counsel that prospective juror 10 would hold the People to their burden of proof. This argument requires little discussion, as jurors who had served and those who had never served on juries were dismissed on consent of the parties or were peremptoried by both defense counsel and the prosecutor, showing no discernible pattern, especially since the majority of prospective jurors in the first group had never served on a jury before. With respect to prospective juror 10, he had expressly conveyed multiple times that he was a closed-minded juror and so the argument that he may have been more open as a first-time juror is purely speculative. Also, because this was the first round, counsel was not faced with having to choose from a final group of less than ideal prospective jurors. Nor had counsel exhausted his peremptories. As it turned out, he had 11 remaining peremptory challenges at the end of jury selection.

true beliefs (*id.* at 523; *see also* Kathi Middendorf & James Luginbuhl, *The Value of a Nondirective Voir Dire Style in Jury Selection*, 22 *Crim Just & Behav* 129, 130-131 [1995]). In follow-up research based on these findings and using Roter Interaction Analysis System coding and time-series sequencing, scholars confirmed "that lawyers to some extent control the quality of the information they obtain from jurors through the structure and tone of their questions" (Grosso & O'Brien, *Lawyers and Jurors* at 540-541). Other research shows that extra-legal factors concerning jurors, such as perceptions of a defendant's physical attractiveness, social categorization, judicial bias, personality types, attitudes about society, ideology and stress levels, may all influence a juror's decision-making in a case (*see generally* John W. Clark III, *Is It Possible To Predict Juror Behavior?*, 5 *Tenn J L & Pol'y* 199 [2009]).

Sixth, the People argue, and the majority finds persuasive (majority op at 272), that defense counsel may have been considering defendant's preferences because the record shows counsel conferred with defendant prior to announcing his peremptory challenges and before informing the court he was done. But the challenge counsel should have made was based on bias, and when asked by the court if either party had cause challenges for the entire panel, counsel said he had none, without first seeking to confer with defendant. By the time counsel asked to speak with defendant before announcing his peremptories, counsel had made his professional assessment of prospective juror 10 and decided to let this biased juror sit on the jury. That decision deprived defendant of effective assistance of counsel—to which he is constitutionally entitled—and to consideration of his case by an impartial jury—as was his constitutional right.

Despite their misreading of the record, at oral argument, the People acknowledged that jury selection was solely within the province of defense counsel. That is unsurprising since at the time of trial, our case law was clear that “[t]he selection of particular jurors falls within the category of tactical decisions entrusted to counsel, and defendants do not retain a personal veto power over counsel’s exercise of professional judgments” (*Colon*, 90 NY2d at 826, citing *People v Sprowal*, 84 NY2d 113, 119 [1994]; ABA Standards for Criminal Justice, Defense Function standard 4-5.2 [b] [3d ed 1993]). As such, defense counsel understood that he could not defer to defendant on a decision that has been held to be within the power and expert judgment of counsel. In fact, failure to exercise counsel’s professional judgment is a deprivation of “the expert judgment of counsel to which the Sixth Amendment entitles [a defendant]” (*People v Colville*, 20 NY3d 20, 32 [2012]; see also *People v Lopez-Mendoza*, 33 NY3d 565, 574 [2019]; *People v Hogan*, 26 NY3d 779, 786 [2016]). Since whether to challenge prospective juror 10 was a strategic decision that defense counsel was entitled to make and about which counsel was required to exercise his professional judgment, defense counsel should have explored with prospective juror 10 his stated bias. Having failed to do so and without any statement that prospective juror 10 was able to be fair and impartial, counsel should have challenged prospective juror 10 for cause or exercised a peremptory strike. Under our law at the time, deferring to defendant’s request to accept prospective juror 10 against counsel’s professional judg-

ment, if that were the case, would have rendered counsel ineffective.

Finally, the People contend that even under our State's ineffective assistance of counsel standard, defendant was required to show that he was prejudiced by prospective juror 10's presence on the jury, relying on *Thompson* (21 NY3d at 560). This argument fundamentally misunderstands how New York's ineffective assistance of counsel standard differs from the federal one as defined in *Strickland* (466 US at 668-694), namely that a showing of prejudice is not required to make out a successful ineffective assistance of counsel claim under New York law (*People v Stultz*, 2 NY3d 277, 284 [2004]). Moreover, the potentially biased juror in *Thompson* unequivocally stated that he could be fair and impartial, which explains why the Court rejected the defendant's ineffective assistance of counsel claim partially on the ground that the record failed to show how that juror's presence on the jury impacted the defendant (21 NY3d at 560). In any event, prejudice flows from the seating of a biased juror and in such case, deprivation of a fair and impartial jury is both obvious and presumed (*Torpey*, 63 NY2d at 366; see also *People v Branch*, 46 NY2d 645, 651-652 [1979]). Thus, under both the federal and state constitutional standards, counsel was ineffective.

IV.

The majority has essentially adopted a per se rule that ineffective assistance of counsel claims must be considered by way of a CPL 440.10 motion.¹¹ We have never adopted such an inflexible rule and there is no reason to do so now.¹² Whether an ineffective assistance of counsel claim may be decided on

11. It may not be obvious from the majority's discussion of the origins of coram nobis and the legislative purpose of CPL 440.10, but defendant does not suggest we have misunderstood either, nor does he argue that all ineffective assistance of counsel claims must be decided on direct appeal. He maintains, as this Court has held, that where the record on direct appeal is adequate, an appellate court may not avoid consideration of the merits of such claim (see *People v Yavru-Sakuk*, 98 NY2d 56, 59-62 [2002]; *People v Bachert*, 69 NY2d 593, 597-600 [1987]; see e.g. *People v McDonald*, 68 NY2d 1, 9-12 [1986]; see also *Lopez-Mendoza*, 33 NY3d at 572-573; *People v McLean*, 15 NY3d 117, 121 [2010]). He simply persuasively argues that the record here presents such a case.

12. It is worth nothing the majority's approach imposes particularly harsh consequences for indigent defendants, as there is no right to assigned counsel on a CPL 440 motion. Yet, challenges to a counsel's effectiveness are the types of claims that require the trained eye of another attorney. While it

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direct appeal based on the record before the appellate court is a case by case determination. When, as here, there is no on-the-record explanation by counsel for the choices made during jury selection, but the record fails to establish a prospective juror's core qualification for jury service (i.e., the ability to be fair and impartial) and counsel does not explore a prospective juror's statements of potential bias, then no lawyer's explanation can suffice.

The record on direct appeal establishes that counsel provided less than meaningful representation by failing to challenge a biased prospective juror. Defendant is entitled to a new trial before an impartial jury. I dissent.

Judges STEIN, FAHEY, GARCIA, WILSON and FEINMAN concur; Judge RIVERA dissents and votes to reverse and order a new trial in an opinion.

Order affirmed.

may be difficult even for an attorney to secure from trial counsel information that supports claims of a failed trial strategy, such is tenfold more difficult for a lay defendant, incarcerated with limited to no financial resources. The majority would render such claims effectively beyond judicial review.

[150 NE3d 1192, 127 NYS3d 427]

In the Matter of NATIONAL FUEL GAS SUPPLY CORPORATION, Appellant, v JOSEPH A. SCHUECKLER et al., Respondents, et al., Respondents.

Argued June 2, 2020; decided June 25, 2020

SUMMARY

APPEAL from an order of the Appellate Division of the Supreme Court in the Fourth Judicial Department, entered November 9, 2018. The Appellate Division, with two Justices dissenting, (1) reversed, on the law, an order of the Supreme Court, Allegany County (Thomas P. Brown, J.), which had (a) granted petitioner's EDPL article 4 petition; (b) authorized petitioner to acquire easements over property owned by respondents as described in the verified petition; (c) permitted petitioner to file an acquisition map in the Allegany County Clerk's Office and to serve the notice of acquisition and a copy of the order upon respondents; (d) ordered that the title to the easements shall vest in petitioner upon filing of the acquisition map; (e) required petitioner to file a bond in the amount of \$25,700 pursuant to EDPL 402 (B) (3) (f); and (f) ordered each respondent, in order to preserve or assert an interest or claim in the proceeding, within 180 days from service of the notice of acquisition, acquisition map and copy of the order, to file a written claim for damages, demand or notice of appearance with petitioner and the clerk of Supreme Court; and (2) dismissed the petition.

Matter of National Fuel Gas Supply Corp. v Schueckler, 167 AD3d 128, reversed.

HEADNOTE

Eminent Domain — Exemption from Public Hearing — Conditional Approval by Federal Energy Regulatory Commission

Where a gas company holds a valid certificate of public convenience and necessity from the Federal Energy Regulatory Commission (FERC) for the proposed construction of a pipeline and that certificate places no relevant conditions on the eminent domain power and has not been stayed or revoked by FERC or a federal court properly reviewing its issuance, compliance with the public notice and hearing provisions of EDPL article 2 is excused under EDPL 206 (A). Accordingly, in petitioner gas company's EDPL article 4 vesting proceeding seeking to acquire, by eminent domain, easements over respondent landowners' property in order to facilitate construction and operation of a natural gas pipeline, the certificate of public convenience and necessity issued to petitioner by FERC exempted petitioner from compliance with EDPL article 2 pursuant to EDPL 206 (A), as the certificate did not

condition petitioner's eminent domain power on receipt of a water quality certification and remained valid and operative despite an intervening denial of petitioner's application for such certification. Petitioner did exactly as EDPL 206 (A) dictates in order to obtain the benefit of the statutory exemption from article 2 procedures; it submitted materials to FERC concerning the public benefit, use, and need for the proposed pipeline. The certificate was incontrovertibly premised upon a meaningful review of substantial information, alternatives, and viewpoints of various stakeholders, and FERC's analysis focused largely on the factors delineated in EDPL 204 (B). Given that FERC made a reasoned determination regarding the public benefit to be served, as envisioned by EDPL 204 (B), the certificate satisfied the plain language of EDPL 206 (A). While petitioner's certificate contained numerous "conditions," they were not conditions precedent to the validity of the certificate itself.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d Eminent Domain §§ 61, 84; AM JUR 2d Public Utilities § 222.
CARMODY-WAIT 2d Eminent Domain §§ 108:134–108:135, 108:137.
MCKINNEY'S, EDPL 204 (B); 206 (A); art 4.
NY JUR 2d Eminent Domain §§ 351–352, 354, 356.
NEW YORK ZONING LAW AND PRACTICE (4th ed) §§ 5A:12–5A:13.

ANNOTATION REFERENCE

See ALR Index under Certificate of Public Convenience and Necessity; Conditions; Eminent Domain; Gas and Oil; Gas Companies; Pipes and Pipelines; Public Utilities; Sale or Transfer of Property.

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POINTS OF COUNSEL

Sidley Austin LLP, New York City (*Eamon P. Joyce* and *Cassandra Liu* of counsel) and Washington, D.C. (*Tobias S. Loss-Eaton* of counsel), and *Phillips Lytle LLP*, Buffalo (*Kenneth A. Manning* and *Craig A. Leslie* of counsel), for appellant. I. The Federal Energy Regulatory Commission's waiver order satisfies even the Appellate Division's erroneous construction of EDPL 206 (A). (*Millennium Pipeline Co., L.L.C. v Seggos*, 860 F3d 696; *Kingsbrook Jewish Med. Ctr. v Allstate Ins. Co.*, 61

AD3d 13; *Cricchio v Pennisi*, 90 NY2d 296; *Quaker Oats Co. v City of New York*, 295 NY 527; *Matter of Medical Malpractice Ins. Assn. v Superintendent of Ins. of State of N.Y.*, 72 NY2d 753; *Albany Eng'g Corp. v Hudson Riv./Black Riv. Regulating Dist.*, 110 AD3d 1220; *Central Me. Power Co. v Federal Energy Regulatory Commn.*, 252 F3d 34; *Mountain Valley Pipeline, LLC v Simmons*, 307 F Supp 3d 506; *Mountain Valley Pipeline, LLC v 6.56 Acres of Land*, 915 F3d 197; *Transwestern Pipeline Co. v Federal Energy Regulatory Commn.*, 988 F2d 169.) II. National Fuel Gas Supply Corporation's Federal Energy Regulatory Commission-issued certificate of public convenience and necessity satisfies EDPL 206 (A). (*Majewski v Broadalbin-Perth Cent. School Dist.*, 91 NY2d 577; *Matter of Amorosi v South Colonie Ind. Cent. School Dist.*, 9 NY3d 367; *Matter of Eagle Cr. Land Resources, LLC v Woodstone Lake Dev., LLC*, 108 AD3d 71; *Delaware Riverkeeper Network v Federal Energy Regulatory Commn.*, 857 F3d 388; *Moran v Erk*, 11 NY3d 452; *East Tenn. Natural Gas Co. v Sage*, 361 F3d 808; *Transcontinental Gas Pipe Line Co., LLC v Permanent Easements*, 907 F3d 725; *Matter of County of Tompkins [Perkins]*, 237 AD2d 667; *City of Tacoma v Federal Energy Regulatory Commn.*, 460 F3d 53; *Matter of Morse*, 247 NY 290.)

Law Office of Gary A. Abraham, Great Valley (Gary A. Abraham of counsel), for respondents. I. Neither the Natural Gas Act nor the Federal Energy Regulatory Commission confers the power to exercise eminent domain; only a court may do so. (*East Tenn. Natural Gas Co. v Sage*, 361 F3d 808; *Williams Natural Gas Co. v City of Okla. City*, 890 F2d 255; *Tennessee Gas Pipeline Co. v 104 Acres of Land More or Less, in Providence County of State of R.I.*, 749 F Supp 427; *County of Monroe v Morgan*, 83 AD2d 777; *City of Buffalo Urban Renewal Agency v Moreton*, 100 AD2d 20; *Matter of Eagle Cr. Land Resources, LLC v Woodstone Lake Dev., LLC*, 108 AD3d 71.) II. The Federal Energy Regulatory Commission's certificate is conditional, and under the circumstances fails to establish National Fuel Gas Supply Corporation's project serves a public purpose. (*Delaware Dept. of Natural Resources & Envtl. Control v Federal Energy Regulatory Commn.*, 558 F3d 575.) III. Failure of the Clean Water Act § 401 certification makes National Fuel Gas Supply Corporation's Federal Energy Regulatory Commission certificate ineffective. (*PUD No. 1 of Jefferson Cty. v Washington Dept. of Ecology*, 511 US 700; *City of Tacoma v Federal Energy Regulatory Commn.*, 460 F3d 53; *S.D. Warren Co. v Maine Bd. of Environmental Protection*, 547

US 370.) IV. National Fuel Gas Supply Corporation relies on cases involving pending Federal Energy Regulatory Commission conditions but these cases do not address the circumstance where certificate conditions fail. V. The Federal Energy Regulatory Commission's recent waiver order is neither binding nor does it have any immediate effect. (*American Rivers, Inc. v Federal Energy Regulatory Commn.*, 129 F3d 99; *Alcoa Power Generating Inc. v Federal Energy Regulatory Commn.*, 643 F3d 963; *AES Sparrows Point LNG v Wilson*, 589 F3d 721; *Alabama Rivs. Alliance v Federal Energy Regulatory Commn.*, 325 F3d 290; *Islander E. Pipeline Co., LLC v Connecticut Dept. of Env'tl. Protection*, 482 F3d 79; *Islander E. Pipeline Co., LLC v McCarthy*, 525 F3d 141.) VI. Because New York has blocked the project, National Fuel Gas Supply Corporation lacks standing. (*Lexmark Int'l, Inc. v Static Control Components, Inc.*, 572 US 118; *Allen v Wright*, 468 US 737; *Saratoga County Chamber of Commerce v Pataki*, 100 NY2d 801; *Society of Plastics Indus. v County of Suffolk*, 77 NY2d 761; *Matter of Sylcox v Novello*, 1 AD3d 688; *Powell v McCormack*, 395 US 486; *Hall v Beals*, 396 US 45; *Princeton Univ. v Schmid*, 455 US 100; *Florida Assn. of Rehabilitation Facilities, Inc. v State of Fla. Dept. of Health & Rehabilitative Servs.*, 225 F3d 1208; *Saratoga County Chamber of Commerce v Pataki*, 100 NY2d 801.)

Friedman Kaplan Seiler & Adelman, New York City (Robert S. Smith and Nora Bojar of counsel), for Niskanen Center, amicus curie. The New York State Constitution does not permit eminent domain upon a conditioned Federal Energy Regulatory Commission certificate where the conditions have failed. (*Yonkers Community Dev. Agency v Morris*, 37 NY2d 478; *Kelo v New London*, 545 US 469; *Alliance for Natural Health U.S. v Sebelius*, 786 F Supp 2d 1; *City of Tacoma v Federal Energy Regulatory Commn.*, 460 F3d 53; *PUD No. 1 of Jefferson Cty. v Washington Dept. of Ecology*, 511 US 700; *Matter of de Rham v Diamond*, 32 NY2d 34; *Matter of Power Auth. of State of N.Y. v Williams*, 60 NY2d 315; *Matter of Niagara Mohawk Power Corp. v New York State Dept. of Env'tl. Conservation*, 82 NY2d 191; *Matter of Neighborhood in the Nineties, Inc. v City of New York*, 82 AD3d 602; *Atlantic States Legal Found. v Environmental Protection Agency*, 325 F3d 281.)

OPINION OF THE COURT

STEIN, J.

In 2017, the Federal Energy Regulatory Commission issued

a certificate of public convenience and necessity to petitioner National Fuel Gas Supply Corporation for its proposed construction of a 99-mile natural gas pipeline spanning from Pennsylvania to Western New York. We hold that this certificate of public convenience and necessity—which did not condition National Fuel’s eminent domain power on receipt of a water quality certification and which remained valid and operative at all relevant times despite the New York State Department of Environmental Conservation’s intervening denial of National Fuel’s application for such a certification—exempted National Fuel from the public notice and hearing provisions of article 2 of the Eminent Domain Procedure Law in accordance with EDPL 206 (A). We, therefore, reverse the order of the Appellate Division.

I.

The question before us distills to whether the certificate of public convenience and necessity issued by the Federal Energy Regulatory Commission (FERC) to National Fuel satisfies EDPL 206 (A) so as to entitle National Fuel to exercise eminent domain over the land in dispute without undertaking additional review of the pipeline’s public benefit. If satisfied, EDPL 206 (A) excuses compliance with various provisions of EDPL article 2 where a proposed condemnor has successfully completed a review of the project’s public benefit and use before a state, federal, or local agency. Thus, we begin our analysis with a review of FERC’s authority to issue such certificates under the federal Natural Gas Act, as well as the requirements of the EDPL.

A. The Natural Gas Act

The Natural Gas Act (NGA) regulates the interstate sale and transport of natural gas (*see* 15 USC § 717 [b]) and “confers upon FERC exclusive jurisdiction over the transportation and sale of natural gas in interstate commerce for resale” (*Schneidewind v ANR Pipeline Co.*, 485 US 293, 300-301 [1988]). Prior to “the construction or extension of any facilities” for the transportation or sale of natural gas, a company must have “in force . . . a certificate of public convenience and necessity issued by [FERC] authorizing such acts or operations” (15 USC § 717f [c] [1] [A]; *see Schneidewind*, 485 US at 302-303). FERC awards such a certificate when it determines that the applicant “is able and willing properly to do the acts and to perform the

service proposed and to conform to . . . [federal] regulations” and when “the proposed . . . construction . . . is or will be required by the present or future public convenience and necessity” (15 USC § 717f [e]). In deciding whether to issue a certificate of public convenience and necessity, FERC considers “all factors bearing on the public interest” (*Atlantic Refining Co. v Public Serv. Comm’n of N. Y.*, 360 US 378, 391 [1959]), including the applicant’s financial resources; public demand; the expected impact on property values, community development, tax revenue, and employment; the environmental impacts of the project;¹ and any potential adverse effects (see *Certification of New Interstate Natural Gas Pipeline Facilities*, 88 FERC ¶ 61227 [Sept. 15, 1999], *clarified* 90 FERC ¶ 61128 [Feb. 9, 2000], *further clarified* 92 FERC ¶ 61094 [July 28, 2000]; *Minisink Residents for Envtl. Preserv. & Safety v Federal Energy Regulatory Commn.*, 762 F3d 97, 102 [DC Cir 2014]). FERC “will approve an application for a certificate only if the public benefits from the project outweigh any adverse effects” (88 FERC ¶ 61227, 61750).

FERC may “attach to the issuance of the certificate and to the exercise of the rights granted thereunder such reasonable terms and conditions as the public convenience and necessity may require” (15 USC § 717f [e]). Furthermore, FERC “must ensure that the proposed pipeline complies with all applicable federal, state, and local regulations” (*Millennium Pipeline Co., L.L.C. v Seggos*, 860 F3d 696, 698 [DC Cir 2017]). As relevant here, the NGA does not abridge the rights of states to establish water quality standards under the Clean Water Act (see 15 USC § 717b [d] [3]; 33 USC § 1313; *Delaware Riverkeeper Network v Secretary Pa. Dept. of Envtl. Protection*, 833 F3d 360, 368 [3d Cir 2016]). Thus, an applicant for a federal certificate of public convenience and necessity in connection with a project that “may result in any discharge into the navigable waters,” must provide FERC with “a certification from the State in which the discharge . . . will originate, . . . [indicating] that any such discharge will comply with the applicable provisions” of the state water quality standards (33 USC § 1341 [a] [1]).

1. In connection with applications for certificates of public convenience and necessity under the NGA, FERC acts as the lead agency “for the purposes of coordinating all applicable Federal authorizations and for the purposes of complying with the National Environmental Policy Act” (15 USC § 717n [b] [1]).

With regard to eminent domain, the NGA provides that, when a certificate of public convenience and necessity is granted by FERC and the “holder” thereof “cannot acquire by contract . . . the necessary right-of-way to construct, operate, and maintain a pipe line . . . , it may acquire the same by the exercise of the right of eminent domain” (15 USC § 717f [h]). Under the NGA, a certificate holder may commence an eminent domain proceeding in either the applicable federal district court or a state court, with some limitations (15 USC § 717f [h]).

B. The Eminent Domain Procedure Law

In New York State courts, the EDPL provides the “exclusive procedure by which property shall be acquired by exercise of the power of eminent domain” (EDPL 101). “Generally, a two-step process is required under the [EDPL] before a condemnor obtains title to property for public use” (*Hargett v Town of Ticonderoga*, 13 NY3d 325, 328 [2009]; see *Matter of City of New York [Grand Lafayette Props. LLC]*, 6 NY3d 540, 543 [2006]). First, the condemnor “makes a determination to condemn the property after invoking the hearing and findings procedures” of EDPL article 2 (*Hargett*, 13 NY3d at 328). This entails various public procedures, including a public hearing “to inform the public and to review the public use to be served by a proposed public project and the impact on the environment and residents of the locality” (EDPL 201). The condemnor must then render findings regarding the project, including, its (1) public use, benefit, or purpose; (2) approximate location; (3) general effect on the environment and nearby residents; and (4) such other factors as the condemnor considers relevant (see EDPL 204 [B]). “The principal purpose of article 2 of the EDPL . . . is to [e]nsure that [a condemnor] does not acquire property without having made a *reasoned* determination that the condemnation will serve a valid public purpose” (*Matter of Jackson v New York State Urban Dev. Corp.*, 67 NY2d 400, 417-418 [1986] [emphasis added]).

“A number of alternative procedures that a condemnor may undertake are outlined in EDPL 206, any one of which exempts the condemnor from compliance with article 2” (*Grand Lafayette Props. LLC*, 6 NY3d at 546-547). In particular, EDPL 206 (A) provides that

“[t]he condemnor shall be exempt from compliance with the provisions of . . . article [2] when:

“(A) pursuant to other state, federal, or local law or regulation it considers and submits factors similar to those enumerated in [EDPL 204 (B)], to a state, federal or local governmental agency, board or commission before proceeding with the acquisition and obtains a license, a permit, *a certificate of public convenience or necessity* or other similar approval from such agency, board, or commission” (emphasis added).

Thus, under this provision, a condemnor need not duplicate public benefit review undertaken by a governmental agency, so long as the review considers factors similar to those relevant to the EDPL eminent domain analysis and results in approval of the project.

Once the prerequisites of article 2 are satisfied by either compliance with the hearing procedures or the application of an exemption, “the condemnor must seek the transfer of title to the property by commencing a judicial proceeding known as a vesting proceeding pursuant to EDPL article 4” (*Hargett*, 13 NY3d at 328). In conjunction with the vesting proceeding, the condemnor must file, among other things, “a statement providing either the compliance with the requirements of article [2] of th[e] [EDPL], . . . or a statement providing the basis of exemption from article [2]” (EDPL 402 [B] [3] [a]), an explanation of the public use, benefit or purpose for which the property is required, and a request that the court direct entry of an order authorizing the filing of an acquisition map, upon which title to the property shall vest in the condemnor (*see* EDPL 402 [B] [3] [d], [e]).

Meanwhile, if a condemnor issues public use findings and a determination under EDPL 204, an aggrieved party may seek judicial review in the relevant Appellate Division Department (*see* EDPL 207 [A]). Judicial review is limited to whether (1) the proceeding conformed with the Federal and State Constitutions; (2) the proposed acquisition is within the condemnor’s statutory jurisdiction or authority; (3) the condemnor’s determination and findings were made in accordance with the appropriate statutory procedures; and (4) a public use, benefit or purpose will be served by the proposed condemnation (*see* EDPL 207 [C]). Furthermore, such judicial review must be completed “as expeditiously as possible and with lawful preference over other matters” (EDPL 207 [B]).

II.

Turning to the appeal before us, in 2017, National Fuel commenced this EDPL vesting proceeding seeking to acquire, by eminent domain, temporary construction easements and a 50-foot-wide permanent easement over certain property owned by respondent landowners Joseph and Theresa Schueckler in order to facilitate construction and operation of a natural gas pipeline.² National Fuel asserted that it had unsuccessfully attempted to negotiate a purchase of the easement,³ and that compliance with article 2 of the EDPL was satisfied through the statutory exemption set forth in EDPL 206 (A) based upon FERC’s issuance of a certificate of public convenience and necessity for the project under the NGA. National Fuel appended the FERC order issuing the certificate to its petition.

Respondent landowners contested National Fuel’s EDPL petition, asserting that the certificate was ineffective because, while it authorized National Fuel to construct and operate the pipeline, such authority was conditioned upon “compliance with [certain] environmental conditions,” including the requirement that, “[p]rior to receiving written authorization . . . to commence construction of any [p]roject facilities, National Fuel shall file with [FERC] documentation that it has received all applicable authorizations required under federal law (or evidence of waiver thereof).” According to respondents, this condition was not met—and the FERC certificate was therefore invalidated—due to the subsequent denial of National Fuel’s application for a water quality certification by the New York Department of Environmental Conservation (DEC).

In response, National Fuel conceded that DEC had denied its application. However, National Fuel explained that it was seeking rehearing and clarification of the FERC order, as well as a ruling that DEC had waived its authority to deny the water quality certification by failing to timely decide National

2. Respondent Joseph Schueckler passed away during the pendency of this appeal. However, the parties agree that substitution is not necessary inasmuch as the property was owned by Joseph and Theresa as tenants by the entirety, and Joseph’s property interest vested in any cotenants by operation of law upon his death (*see* CPLR 1015 [b]; *Matter of Violi*, 65 NY2d 392, 395 [1985]; *Paterno v CYC, LLC*, 46 AD3d 788, 789 [2d Dept 2007]).

3. At each stage of the EDPL process, the condemnor must “make every reasonable and expeditious effort to justly compensate [the landowner] . . . by negotiation and agreement” (EDPL 301; *see* 303). Respondent landowners do not claim that National Fuel failed to negotiate in good faith.

Fuel's application within the one-year period the Clean Water Act provides for review of such applications by state agencies (*see* 33 USC § 1341 [a] [1]).

Supreme Court granted National Fuel's EDPL petition, concluding that it had "made a *prima facie* showing of entitlement to the easements" based on the FERC certificate, which "exempt[ed] [National Fuel] from the requirements of [a]rticle 2 of the EDPL." That court rejected the landowners' claim that the certificate was ineffective for eminent domain purposes because it was conditional, observing that the certificate conditioned "construction and operation of the pipeline"—as compared with the "issuance of the certificate"—on various prerequisites. With regard to DEC's denial, the court observed that "the issue is not whether National Fuel has or will be able to obtain the necessary water quality permits from DEC, but whether it may initiate eminent domain proceedings" and that "water quality permits may be a precondition to pipeline construction, but not to the initiation of eminent domain proceedings." Thus, the court held, National Fuel was exempt from the requirements of article 2 of the EDPL and was entitled to obtain the easements through eminent domain.

Upon the landowners' appeal, the Appellate Division—with two Justices dissenting—reversed and dismissed National Fuel's EDPL petition (167 AD3d 128 [4th Dept 2018]). That Court reasoned that DEC's denial of National Fuel's application for a water quality certification meant that "[National Fuel] no longer holds a qualifying federal certificate for purposes of the EDPL 206 (A) exemption" (167 AD3d at 136). The dissenting Justices would have affirmed the granting of National Fuel's petition, generally agreeing with Supreme Court's rationale.⁴

4. During the pendency of the appeal before the Appellate Division, FERC ruled that DEC had waived its authority to either grant or deny National Fuel's application for a water quality certification by failing to determine it within one year of submission, effectively invalidating the denial for purposes of the FERC certificate. The Appellate Division majority acknowledged FERC's ruling, but declined to consider it because it was *dehors* the record and was still subject to appellate review. The dissenting Justices would have taken judicial notice of the intervening FERC ruling and observed that, even otherwise accepting the majority's analysis, the denial of the water quality certification no longer presented any impediment to the effectiveness of the FERC certificate at the time the Appellate Division's review was complete.

National Fuel appealed to this Court (*see* CPLR 5601 [a]).⁵

III.

Before this Court, National Fuel argues that the Appellate Division erroneously concluded that DEC’s denial of its water quality certification application invalidated the FERC-issued certificate of public convenience and necessity for purposes of EDPL 206 (A). Alternatively, National Fuel contends that the Appellate Division erred by failing to take judicial notice of the intervening ruling by FERC that DEC waived its authority to issue or deny a water quality certification. We agree with National Fuel on the first point and, therefore, have no occasion to reach the second. The Appellate Division’s holding that the FERC certificate did not demonstrate compliance with EDPL article 2 pursuant to EDPL 206 (A) contravenes the express language of that provision, undermines the purpose of the statutory exemption, and overlooks relevant federal case law concerning the effect of the certificate of public convenience and necessity.

It is well settled that, “[w]hen presented with a question of statutory interpretation, [a court’s] primary consideration is to ascertain and give effect to the intention of the Legislature” (*Samiento v World Yacht Inc.*, 10 NY3d 70, 77-78 [2008], quoting *Matter of DaimlerChrysler Corp. v Spitzer*, 7 NY3d 653, 660 [2006]). “[T]he clearest indicator of legislative intent is the statutory text, [and] the starting point in any case of interpretation must always be the language itself, giving effect to the plain meaning thereof” (*Kuzmich v 50 Murray St. Acquisition LLC*, 34 NY3d 84, 91 [2019], quoting *Majewski v*

5. The Court of Appeals for the Second Circuit subsequently vacated DEC’s water quality certification denial as lacking sufficient rational explanation, and that court remitted the matter to DEC for the limited purpose of explaining the basis of the agency’s decision (*see National Fuel Gas Supply Corp. v New York State Dept. of Envtl. Conservation*, 761 Fed Appx 68, 72 [2d Cir 2019]). The Second Circuit also observed that FERC and the District of Columbia Circuit Court would have exclusive jurisdiction over National Fuel’s claim that the DEC had waived its authority to issue a water quality certification, and that National Fuel was “free to present any evidence of waiver to FERC in the first instance” (*id.* at 72). According to the parties, upon remittal by the Second Circuit, DEC again denied National Fuel’s application. Meanwhile, FERC denied requests for rehearing or a stay of its waiver determination and reiterated that DEC’s failure to decide the application within one year of its receipt resulted in a “waive[r of the agency’s] authority to issue a water quality certification” (167 FERC ¶ 61007, ¶ 11 [Apr. 2, 2019]).

Broadalbin-Perth Cent. School Dist., 91 NY2d 577, 583 [1998]). Generally, “courts should construe unambiguous language to give effect to its plain meaning” (*Matter of DaimlerChrysler Corp.*, 7 NY3d at 660).

The text of EDPL 206 (A) requires that, in order to obtain the benefit of the statutory exemption from article 2 procedures, a condemnor must establish that it “consider[ed] and submit[ted] factors similar to those enumerated in [EDPL 204 (B)], to a state, federal or local governmental agency, board or commission . . . and obtain[ed] a license, a permit, a certificate of public convenience or necessity or other similar approval.” Here, National Fuel did exactly as the statute dictates; it submitted materials to FERC concerning the public benefit, use, and need for the proposed pipeline. While the dissent may question FERC’s resulting conclusion, it can hardly be disputed that FERC considered each factor identified in EDPL 204 (B)—i.e., the public use, benefit or purpose to be served; the approximate location of the project; the general effect of the proposed project on the environment and residents; and such other relevant factors (*see* EDPL 204 [B]). More specifically, FERC considered the positions of numerous stakeholders, including the DEC itself, and analyzed whether the pipeline project would have sufficient financial support, adversely impact existing customers, meet new demand or provide other benefits to the natural gas market, and whether and how the pipeline would impact landowners, surrounding communities, and the natural environment. FERC prepared a 199-page environmental assessment as part of its review, which involved consideration of public comments and of various potential modifications of the proposal, and which took into account how the project might affect—among other things—local “geology, soils, water resources, wetlands, vegetation, fisheries, wildlife, threatened and endangered species, land use, recreation, visual resources, cultural resources, socioeconomic, air quality, noise, [and] safety.” FERC concluded that the project did “not constitute a major federal action significantly affecting the quality of the human environment” and, thus, an environmental impact statement was not required under the National Environmental Policy Act.⁶ Following its lengthy review, FERC determined that the public benefits of the pipeline project

6. Approximately 69% of the pipeline will be colocated with existing pipeline and powerline right-of-ways.

outweighed any adverse impacts and, accordingly, issued a certificate of public convenience and necessity to National Fuel. This certificate was incontrovertibly premised upon a meaningful review of substantial information, alternatives, and viewpoints of various stakeholders, and FERC’s analysis focused largely on the factors delineated in EDPL 204 (B). Given that FERC made a reasoned determination regarding the public benefit to be served, as envisioned by EDPL 204 (B), the certificate satisfied the plain language of EDPL 206 (A).⁷

While it is true that the certificate of public convenience and necessity contains numerous “conditions”—including, that of obtaining a water quality certificate and other pre-construction conditions that might affect the ultimate completion of the project—these conditions cannot reasonably be understood to render the certificate provisional for purposes of eminent domain, as the dissent suggests (*see* dissenting op at 321), inasmuch as they are not conditions precedent to the validity of the certificate itself. Notably, the certificate otherwise clearly delineates those circumstances in which FERC sought to prevent National Fuel from taking a particular act until after some condition was satisfied. Indeed, some of the “conditions” in the FERC certificate cannot be met without possession of the land.⁸ FERC could have conditioned National Fuel’s eminent domain authority on the completion of some act or obligation (*see e.g. Mid Atl. Express, LLC v Baltimore County, Md.*, 410 Fed Appx 653, 657 [4th Cir 2011]), but the “condition” that National Fuel comply with various environmental requirements—including the receipt of a water quality certification—“[p]rior to receiving written authorization . . . to commence construction” (emphasis added) does not, by its plain terms, curtail National Fuel’s right to proceed with eminent domain in accordance with the EDPL. Thus, neither the EDPL nor the

7. Insofar as we expressly conclude that FERC’s review did, in fact, consider all of the relevant factors identified by EDPL 204 (B), the dissent’s assertion that our holding can be read as authorizing a condemnor to obtain title to private land through the “mere issuance of any government approval” or “by merely acquiring a local permit unrelated to the environmental impact of the project” finds no support here (dissenting op at 323).

8. Many of the “conditions” set forth in the certificate, such as the requirement that National Fuel provide regular project reports to FERC during construction, are simply obligations placed on National Fuel, not conditions precedent.

terms of the FERC certificate preclude National Fuel from pursuing eminent domain before all pre-construction conditions have been fulfilled.

Ultimately, since before commencement of the vesting proceeding, and continuing to the present day, National Fuel has held a valid certificate of public convenience and necessity issued by FERC—after extensive review of the factors set forth in EDPL 204 (B)—that does not qualify or condition its exercise of eminent domain upon receipt of a water quality certification. Therefore, under the express terms of EDPL 206 (A), National Fuel qualified for statutory exemption from EDPL article 2 procedures.

To reach a contrary conclusion, the Appellate Division majority looked beyond the facial validity of the FERC certificate and analyzed National Fuel's compliance with the certificate's conditions. However, the language of EDPL 206 (A) neither requires nor authorizes any such analysis under these circumstances, and reasonably so. A requirement that courts undertake extensive scrutiny of an agency's public use review and findings—rather than ascertaining, as the plain text of EDPL 206 (A) dictates, whether the agency appropriately considered the factors of EDPL 204 (B)—would completely negate the legislatively-intended benefits of EDPL 206 (A), including the avoidance of duplicative review, the reduction of costs associated with the development of public works, and efficient and timely resolution of condemnation claims (*cf.* EDPL 207 [B]). The objective of EDPL 206 (A) is not to ensure that a project has “final unconditional approval” or a “final green light” (dissenting op at 316, 318) but, rather, to make certain that there has been sufficient review of the project's public purpose and approval thereof by a governmental agency. Thus, we are not persuaded that a limitation should be read into EDPL 206 (A) requiring courts to inquire—after a public use determination has been rendered by an agency—into the likelihood that a project will be completed based on any and all pending conditions or permit applications.

To be sure, the Appellate Division's concern that the power of eminent domain should be exercised only for viable projects is legitimate; both our State and Federal Constitutions permit the taking of property by eminent domain only for public use

(*see* NY Const, art I, § 7; US Const Fifth Amend)⁹ and any exercise of eminent domain involves a careful balancing of the interests of property owners, the community, and the public use to be served (*see* EDPL 101). However, in enacting the statutory exemption set forth in EDPL 206 (A), the legislature recognized that eminent domain is, at its core, intended to advance public works and that, in connection with such public projects, government agencies may often render determinations of public use that typically need not be replicated. Where, as here, a state or federal agency has determined that a project serves a public use, duplicative and exacting review of that determination would contravene the statutory framework prioritizing efficient resolution of condemnation claims for the greater public good (*see* EDPL 206 [A]).

Moreover, the legislature was aware of the risk that property might be taken through the exercise of eminent domain for a public use that ultimately does not come to fruition, and it accounted for such a possibility in the EDPL. For example, if a condemnor abandons a project for which property was acquired by eminent domain, EDPL 406 provides that “the condemnor shall not dispose of the property or any portion thereof for private use within ten years of acquisition without first offering the former fee owner of record . . . a right of first refusal to purchase the property at the amount of the fair market value” (EDPL 406 [A]; *see* Letter from Milton Albert, July 5, 1977, Bill Jacket, L 1977, ch 839). Thus, the statutory framework provides a safeguard for property owners in the event of an abandoned public use project, reflecting legislative awareness that an affirmative public use determination under EDPL article 2 does not guarantee the success of such project.

In addition to reading language into EDPL 206 (A) that contradicts the statutory text, an affirmance here would require us to adopt the mistaken proposition that DEC’s denial of the water quality certification negated the FERC certificate of public convenience and necessity issued to National Fuel. As already noted, although FERC may place conditions on a certificate holder’s exercise of the eminent domain power (*see e.g. Mid Atl. Express, LLC*, 410 Fed Appx at 657), this FERC certificate requires National Fuel to demonstrate compliance with federal permitting requirements, including the Clean Water

9. Respondent landowners raise no constitutional challenge to the proceedings below.

Act, only prior to construction (see e.g. *Delaware Riverkeeper Network v Federal Energy Regulatory Commn.*, 857 F3d 388, 398-399 [DC Cir 2017]; *Transcontinental Gas Pipe Line Co., LLC v Permanent Easement for 2.14 Acres*, 2017 WL 3624250, *6, 2017 US Dist LEXIS 134851, *19-20 [ED Pa, Aug. 23, 2017, Civ Action Nos. 17-715, 17-720, 17-722, 17-723, 17-1725], *affd* 907 F3d 725 [3d Cir 2018], *cert denied* 587 US —, 139 S Ct 2639 [2019]; *Constitution Pipeline Co., LLC v A Permanent Easement for 0.67 Acres & Temporary Easement for 0.68 Acres in Summit, Schoharie County, N.Y.*, 2015 WL 1638477, *2, 2015 US Dist LEXIS 50548, *7 [ND NY, Feb. 21, 2015, No. 1:14-CV-2023 (NAM/RFT)]). National Fuel's failure to satisfy this condition on construction of the pipeline prior to initiation of the vesting proceeding does not invalidate the certificate of public convenience and necessity for purposes of EDPL 206 (A) or nullify FERC's determination of public use embodied therein.¹⁰ A FERC order is final and effective as a matter of federal law until it is stayed by FERC, itself, or an appropriate reviewing federal court (see 15 USC § 717r [c]; *Tennessee Gas Pipeline Co. v Massachusetts Bay Transp. Auth.*, 2 F Supp 2d 106, 109 [D Mass 1998]) and, generally, compliance with a FERC-issued certificate is, in the first instance, a question for FERC's determination. Under the circumstances presented here, where the certificate does not place a condition precedent on the holder's exercise of eminent domain, a collateral attack on the certificate or the condemnor's compliance therewith is not properly litigated in an EDPL proceeding (cf. *Gas Transmission Northwest, LLC v 15.83 Acres of Permanent Easement More or Less*,

10. Federal courts addressing similar conditions in FERC certificates of public convenience and necessity, in connection with eminent domain proceedings commenced in federal court, have consistently held such conditions may not operate as a shield against the eminent domain power granted by the NGA (see e.g. *PennEast Pipeline Co., LLC v Permanent Easement of 0.06 Acres in Moore Twp., Northampton County, Pa.*, 2019 WL 4447981, *5, 2019 US Dist LEXIS 158149, *18-20 [ED Pa, Sept. 17, 2019, Civ Action Nos. 18-505, 18-507, 18-508, 18-510, 18-518, 18-524, 18-527, 18-530, 18-532]; *Sabal Trail Transmission, LLC v 7.72 Acres in Lee County, Ala.*, 2016 WL 3248666, *4, 2016 US Dist LEXIS 74538, *11-15 [MD Ala, June 8, 2016, No. 3:16-CV-173-WKW]; *Gas Transmission Northwest, LLC v 15.83 Acres of Permanent Easement More or Less, located in Morrow County*, 126 F Supp 3d 1192, 1198 [D Or 2015]; *Portland Natural Gas Transmission Sys. v 4.83 Acres of Land*, 26 F Supp 2d 332, 335-336 [D NH 1998]; *Tennessee Gas Pipeline Co. v 104 Acres of Land More or Less, in Providence County of State of R.I.*, 749 F Supp 427, 433 [D RI 1990]; see also *Millennium Pipeline Co., L.L.C. v Certain Permanent & Temporary Easements*, 777 F Supp 2d 475, 479 [WD NY 2011], *affd* 552 Fed Appx 37 [2d Cir 2014]).

located in Morrow County, 126 F Supp 3d 1192, 1198 [D Or 2015]; *Millennium Pipeline Co., L.L.C. v Certain Permanent & Temporary Easements*, 777 F Supp 2d 475, 481 [WD NY 2011]). To conclude otherwise would be inconsistent with the carefully crafted EDPL framework.

Notably, this appeal illustrates the problems that would arise if courts were to begin determining—independent of FERC and in the absence of a certificate that expressly places conditions on the right to proceed with eminent domain—when and which conditions of a FERC certificate of public convenience and necessity (or conditions imposed by other agencies on construction of public works that have received what is the equivalent of an affirmative determination of public benefit) must be satisfied prior to the commencement of an EDPL proceeding. Here, at every level of the state court proceedings, intervening FERC and federal court decisions have impacted the interplay between DEC’s denial of the water quality certification and the FERC certificate. Further, it is impractical to litigate in an EDPL proceeding whether a particular condition will be satisfied within the requisite time for construction of the project pursuant to the FERC certificate. Although DEC denied National Fuel’s application, it could have reconsidered if National Fuel had revised and resubmitted its application, and DEC’s denial was, in any event, subject to federal judicial review—which ultimately led to its vacatur by the Second Circuit Court of Appeals. Any conclusion that this FERC certificate was rendered invalid or ineffective, or that the pipeline project was effectively defeated, by the denial of the water quality certification would be entirely speculative, as the intervening federal proceedings have demonstrated.

Of course, as the Appellate Division observed, the federal reservation of the right of states to issue water quality certifications was intended to “continu[e] the authority of the State . . . to act to deny a permit and thereby prevent a Federal license or permit from issuing to a discharge source within such State” (*S. D. Warren Co. v Maine Bd. of Environmental Protection*, 547 US 370, 380 [2006] [internal quotation marks and citation omitted]). Here, however, while DEC retained authority to grant or deny National Fuel’s application for a water quality certification (unless deemed waived), such authority did not extend either to invalidating a previously issued FERC certificate of public convenience and necessity where FERC placed no such conditions on the certificate’s effectiveness or to

blocking eminent domain that might otherwise properly proceed under the certificate and the EDPL. It remains within FERC's purview to determine the effect of the DEC's denial on National Fuel's certificate of public convenience and necessity, and to stay or revoke the certificate if it deems it appropriate to do so.

IV.

In sum, where, as here, a gas company holds a valid certificate of public convenience and necessity from FERC for the proposed construction of a pipeline and that certificate places no relevant conditions on the eminent domain power and has not been stayed or revoked by FERC or a federal court properly reviewing its issuance, compliance with article 2 is excused under EDPL 206 (A). In light of our conclusion, we have no occasion to address whether the Appellate Division erred by declining to take judicial notice of the FERC waiver determination, and we do not reach that issue. Respondent landowners' remaining arguments lack merit. Accordingly, the order of the Appellate Division should be reversed, with costs, and the order of Supreme Court reinstated.

RIVERA, J. (dissenting). Petitioner National Fuel Gas Supply Corporation (the Corporation) wants to build a transborder gas pipeline across dozens of creeks and streams in Western New York, and to that end it sought easements on land owned by respondents Joseph A. and Theresa F. Schueckler. The Schuecklers refused to voluntarily sell their possessory use or full ownership rights to the Corporation. That might have been the end of the story, because if an owner refuses an offer to purchase, the prospective buyer is generally left out in the cold (see *Loretto v Teleprompter Manhattan CATV Corp.*, 458 US 419, 435 [1982] ["The power to exclude has traditionally been considered one of the most treasured strands in an owner's bundle of property rights"]; J.E. Penner, *The "Bundle of Rights" Picture of Property*, 43 UCLA L Rev 711, 746-750 [1996]; Katrina M. Wyman, *In Defense of the Fee Simple*, 93 Notre Dame L Rev 1, 11 [2017]). Not so here.

After the Schuecklers refused to sell part of their homestead land, the Corporation commenced a proceeding to vest title in itself, invoking New York's eminent domain power to condemn private property for public use. However, because New York had not completed its water quality certification assessment

for the pipeline project, as required by the federal Clean Water Act (*see* 33 USC § 1341 [a] [1]), amongst other outstanding environmental impact reviews, the Corporation failed to provide complete information regarding “the general effect of the proposed project on the environment and residents of the locality” as required by New York’s Eminent Domain Procedure Law (EDPL 204 [B] [3]). Therefore, the Appellate Division properly held that the proceeding to vest title was premature.

In concluding that the Corporation may rely on a Federal Energy Regulatory Commission certificate to satisfy its burden under the EDPL, even though the certificate expressly conditions the project on completion of additional federal and state mandatory assessments with the potential to stop the project, the majority measures the certificate by its title, the equivalent of “judging a book by its cover.” Metaphorically, and as a matter of law, no good can come from this. Indeed, the majority misinterprets the federal regulatory process and the EDPL condemnation framework, and in so doing sanctions the condemnation of private property for development projects that may never gain final approval. I do not see how the public benefits from the premature taking of private land, and therefore I dissent.

I. The Parties and the Proposed Gas Pipeline Project

The Schuecklers, a married couple, resided upon and owned as tenants by the entirety 200 acres of forested property in Allegany County in Western New York State. National Fuel Gas Supply Corporation is a large fossil fuel company, and a subsidiary of the publicly traded National Fuel Gas Company. It intends to build a pipeline (called Northern Access) stretching across 99 miles of Pennsylvania and New York. The pipeline’s capacity is intended to be used by Seneca Resources, an affiliate of the Corporation, to transport natural gas, largely to Canada. Construction will entail clear-cutting a 75-foot-wide swath along the length of the proposed pipeline, including a stretch across the middle of the Schueckler forested property.

In accordance with the requirements of the Natural Gas Act (NGA), the Corporation applied for and obtained a Federal Energy Regulatory Commission (FERC) certificate of public convenience and necessity for the project (*see* 15 USC § 717f [c]; 18 CFR 157.1 *et seq.*). The Corporation then sought to purchase easements on the Schuecklers’ land. They refused the offer, and so the battle to keep their property from the Corporation began.

II.The FERC Certificate and Acquisition of Private Property
under New York's Eminent Domain Law

To justify the exercise of the State's power of eminent domain for an ostensibly private commercial enterprise, the Corporation relied on the FERC certificate. The majority concludes that this certificate is sufficient under the EDPL to support vesting title in the Corporation to the Schueckler land. The majority's analysis is flawed in at least two respects. First, it assumes that this certificate grants final unconditional approval of a static project. In fact, the certificate recognizes that the project is subject to additional evaluation under the Clean Water Act, which grants New York the right to halt the project if it denies the Corporation a water quality certification (WQC) based on the State's pre-construction environmental review. Second, the majority analysis turns on a misreading of the EDPL as prohibiting judicial consideration of the underlying terms of this FERC certificate to determine whether FERC granted approval after considering the factors set forth in EDPL 204 (B). That limitation on the court's review power is in contravention of the legislative purpose, the exclusive eminent domain condemnation procedure, and the condemnor's statutorily-fixed pre-acquisition burden, all of which make clear that a court must confirm that the applicable statutory factors have been considered and addressed.

A. FERC Certificate of Public Convenience and Necessity

The majority accurately summarizes the NGA and FERC's statutory authority to review gas pipeline applications, but fails to account for the fact that issuance of this FERC certificate of public convenience and necessity is provisional and part of a dynamic process. Indeed, the FERC certificate at issue here has gone through numerous and varied pre- and post-filing design changes. As the certificate recounts, the project details were subject to negotiation, amendment, clarification, and modifications, all in response to FERC and the concerns of stakeholders. At the end of this stage of the process, FERC issued a provisional certificate, which approved the Corporation's application for its proposed pipeline project, subject to "environmental and other conditions," some of which involve pre-construction assessments which, if unfavorable to the Corporation, may prevent completion of the project.

In part, the changes to the early pipeline design reflect that this is a controversial project that has garnered substantial opposition. According to the certificate, the pipeline was opposed by numerous groups and stakeholders, who “question[ed] the need for the [pipeline] because much of the project’s . . . service will be used to transport gas to Canada,” such that it would “only . . . benefit [the Corporation’s affiliates’] shareholders,” and argued “that the project imposes burdens on the U.S. public without providing proportional benefits to U.S. consumers.”¹

Stakeholders also criticized FERC’s handling of the project application, including, with particular relevance to this appeal, FERC’s decision to forgo preparation of an environmental impact statement, relying instead on its staff’s environmental assessment. An “environmental impact statement” is “a detailed statement describing the environmental impact of the proposed action”; under the National Environmental Policy Act of 1969, an agency is required to create such a statement “upon proposing a ‘major federal action’ that will ‘significantly affect the quality of the human environment’ ” (*Pogliani v United States Army Corps of Engrs.*, 306 F3d 1235, 1237 [2d Cir 2002], quoting 42 USC § 4332 [2] [C]). In contrast, an “environmental assessment” is “a concise public document . . . that serves to,” among other things, “[b]riefly provide sufficient evidence and analysis for determining whether to prepare an environmental impact statement or a finding of no significant impact,” and to “[f]acilitate preparation of a statement when one is necessary” (40 CFR 1508.9 [a] [1], [3]). Various stakeholders challenged FERC’s decision as legally incorrect and criticized the environmental assessment as based on incomplete information.

Despite the objections to the project, FERC issued the certificate to the Corporation, subject to conditions. Specifically, the Corporation must “file with the Secretary documentation that it has received all applicable authorizations required under federal law (or evidence of waiver thereof).” FERC has no discretion to supplant the federal statutory approvals independent of the FERC certification process because FERC “must ensure that the project complies with the requirements of all relevant federal laws, including . . . the Clean Water Act”

1. The numerous stakeholders who commented upon the proposed project during FERC proceedings included the Allegheny Defense Project; the Town of Pendleton, New York; the Pennsylvania Alliance for Clean Water and Air; and New York State’s Department of Environmental Conservation, as well as numerous individuals.

(*Islander E. Pipeline Co., LLC v Connecticut Dept. of Env'tl. Protection*, 482 F3d 79, 84 [2d Cir 2006]). In turn, the Clean Water Act provides that

“[a]ny applicant for a Federal license or permit to conduct any activity including, but not limited to, the construction or operation of facilities, which may result in any discharge into the navigable waters, shall provide the licensing or permitting agency a certification from the State in which the discharge originates or will originate . . . that any such discharge will comply with the applicable provisions of sections 1311, 1312, 1313, 1316, and 1317 of this title. . . . If the State, interstate agency, or Administrator, as the case may be, fails or refuses to act on a request for certification, within a reasonable period of time (which shall not exceed one year) after receipt of such request, the certification requirements of this subsection shall be waived with respect to such Federal application. *No license or permit shall be granted until the certification required by this section has been obtained or has been waived as provided in the preceding sentence. No license or permit shall be granted if certification has been denied by the State, interstate agency, or the Administrator, as the case may be*” (33 USC § 1341 [a] [1] [emphasis added]).

As is evident from the express language of the Clean Water Act, Congress granted to the states project-ending authority. FERC’s certificate cannot displace federal law and New York State’s rights of assessment thereunder.

As the above discussion establishes, the FERC certificate issued to the Corporation here is not the culmination of a completed approval process but rather a step in a multi-level review which requires additional approvals in accordance with federal and state laws. This FERC certificate allows the Corporation to seek the required approvals, but it does not give a final green light to the proposed project. Indeed, as the Corporation concedes, it may negotiate and reconfigure the details of the project to acquire the necessary outstanding administrative approvals. That FERC is the “lead agency” but does not complete the actual environmental reviews (*see* majority op at 302 n 1) confirms that without the additional mandatory assessments or legally effective waivers, the project cannot be realized.

B. EDPL Article 2 Requirements

Individual property rights are a central organizing principle of our legal system, which assiduously protects owners against unwanted interference with their rights of enjoyment and use (see *Lynch v Household Finance Corp.*, 405 US 538, 552 [1972] [“That rights in property are basic civil rights has long been recognized”]; see e.g. RPAPL 601 [plaintiff in action for recovery of real property may also obtain damages]; *People v Kane*, 131 NY 111 [1892] [holding that right to exclusive possession may be defended against trespass by acts constituting destruction of property or even assault and battery]; see also O. Lee Reed, *What is “Property”?*, 41 Am Bus LJ 459, 473-475 [2004]). Nevertheless, if FERC issues a certificate, the NGA allows a gas company to rely on eminent domain to obtain property necessary for completion of a pipeline project (15 USC § 717f [h]). Under settled legal principles, regardless of the forum, exercise of the power of eminent domain is justified so long as the project is for a public use, as determined through consideration of the project’s benefits to the public and the potential impacts on the environment (see EDPL 101, 204; *Brody v Village of Port Chester*, 434 F3d 121, 127, 135 [2d Cir 2005]).²

In New York, the EDPL provides the exclusive procedure for acquisition of private property for public use by means of the State’s eminent domain power and requires the condemnor to demonstrate that the project’s benefit to the community-at-large outweighs the landowner’s interests. Specifically, and in accordance with the statutory purpose, a condemnor must satisfy a rigorous review process intended to “give due regard to the need to acquire property for public use as well as the legitimate interests of private property owners, local communities and the quality of the environment, and to that end to promote and facilitate recognition and careful consideration of those interests” (EDPL 101).

As set forth in EDPL article 2, a condemnor must hold hearings and make findings that include, but are not limited to,

“(1) the public use, benefit or purpose to be served
by the proposed public project;

2. The majority states that “eminent domain is, at its core, intended to advance public works” (majority op at 311). No doubt. As such, we must be careful when faced with a condemnation in service of a commercial enterprise with purported public benefits. For this reason, as explained herein, the EDPL provides a mechanism for our courts to ensure that private property is acquired for a properly approved purpose.

“(2) the approximate location for the proposed public project and the reasons for the selection of that location;

“(3) the general effect of the proposed project on the environment and residents of the locality; [and]

“(4) such other factors as it considers relevant” (EDPL 204 [B]).

A party affected by the findings may challenge them by filing a petition in the Appellate Division “in the judicial department embracing the county wherein the proposed facility is located” (EDPL 207 [A]). The Appellate Division is empowered to review the merits of the “public use, benefit or purpose” findings made by the condemnor, as well as the condemnor’s statutory authority and procedural compliance, and the constitutionality of the proceedings (EDPL 207 [C]).

Under section 206, a condemnor may avoid the section 204 hearing and findings requirement if, inter alia, it has completed a government approval process that requires it to “submit[] factors similar to those enumerated in” EDPL 204 (B) (EDPL 206 [A]). Section 206 (A) specifically provides that

“[t]he condemnor shall be exempt from [the hearing and findings requirement of EDPL 204] when:

. . .

“pursuant to other state, federal, or local law or regulation it considers and submits factors similar to those enumerated in [EDPL 204 (B)], to a state, federal or local governmental agency, board or commission before proceeding with the acquisition and obtains a license, a permit, a certificate of public convenience or necessity or other similar approval from such agency, board, or commission.”

Thus, the EDPL conditions avoidance of the hearings and findings requirement on the condemnor’s acquisition of, among other things, a “certificate”—not, as the majority’s conclusion allows, what practically and effectively is a *conditional certificate*.

Essentially, the EDPL permits an alternative process comparable to that set forth in section 204—one that serves the statutory purpose to scrutinize the project to determine whether it justifies the condemnor’s acquisition of private property through eminent domain. The framework eliminates the cost and burden associated with section 204 hearings when the

condemnor has completed a government assessment that provides for similar quantitative and qualitative levels of project review. As a result, a certificate or other permit may or may not satisfy EDPL 206 (A), depending upon whether the agency's review process provides an adequate substitute for the consideration of the EDPL 204 (B) factors through the normal process.³

The Corporation's reliance on the FERC certificate to satisfy section 206 is misplaced because, as discussed above, FERC is not authorized to conduct the entire range of environmental impact review required for the project. Congress through the Clean Water Act leaves to New York State part of this task (*see* 33 USC § 1341 [a] [1]). Because Congress has specifically given New York State authority over major parts of the environmental review applicable to projects like this one, FERC had no authority to displace that process by issuance of the certificate here, nor did it purport to do so in this case.⁴ Since the Corporation filed its vesting proceeding when its application for a water quality certification was still pending before New York State's Department of Environmental Conservation (DEC), the FERC certificate, although valid for its federal purpose, could not be used to satisfy the Corporation's burden as condemnor under the EDPL.

To be sure, not every matter left for future resolution renders a government approval invalid for section 206 purposes. For example, post-construction conditions may be irrelevant to whether the public's beneficial use is sufficiently compelling to overcome the private interests, or pre-construction conditions may not affect project feasibility or be of the type that would affect a determination regarding factors similar to those listed in section 204. However, where, as here, the FERC certificate is conditioned on New York State's federally mandated inde-

3. Thus, the majority's conclusion that the certificate is valid is beside the point. The question before the Court is whether the certificate complies with the EDPL. For the reasons discussed *infra*, the certificate falls short because FERC's approval of the Corporation's pipeline project is conditioned on the exercise or waiver of New York State's rights under the Clean Water Act. Compliance with the Clean Water Act is not a precondition to the certificate's validity, but it is a limiting condition on the project's completion. It also means that FERC's environmental assessment is incomplete for purposes of the EDPL until New York State acts.

4. The FERC certificate acknowledges that its environmental assessment process "is not intended to replace the Clean Water Act air [sic] permitting process."

pendent environmental assessment, and that condition is outstanding at the time of filing, the FERC certificate does not satisfy section 206. It bears stating the obvious that, because the condition attends to pollutant discharge into New York's waters, it falls squarely within the interests identified in the EDPL's statement of purpose and section 204, both of which reference the quality of the environment as a matter that must be considered and addressed by the condemnor. Further, the Clean Water Act assessment conducted by DEC is not a trivial matter or one that has marginal effect on a project. Instead, as the Corporation tacitly concedes, the project cannot move forward without a WQC or a valid waiver of the WQC process.

The majority's conclusion that the section 206 alternative process strips the court of its authority to consider whether the condemnor has satisfied the requirements of article 2—or, in the words of the majority, it “neither requires nor authorizes . . . courts to inquire . . . into the likelihood that a project will be completed based on . . . pending conditions or permit applications” (majority op at 310)—ignores the simple fact that the relevant part of section 206 renders compliance with section 204 unnecessary only if the condemnor “considers and submits factors similar to those enumerated in” section 204 (EDPL 206 [A]).⁵ Thus, a condemnor may only avoid its burden to hold hearings and make findings in accordance with section 204 through this exception if a government entity does the same job *and*, based on that process, it issues an appropriate documentation of approval. When the Corporation filed its vesting proceeding, the DEC had not completed its assessment and no WQC had been granted or denied. An example makes the point even more clearly. Suppose the Corporation sought to justify acquisition of title by satisfying section 204. It would have to hold hearings and make findings about the environmental impact of its project, including matters DEC must consider in assessing a request for a WQC. The Corporation could not satisfy section 204 unless it considered and addressed those matters in its findings in support of condemnation. In the same vein, the Corporation cannot rely on the FERC certificate that has, by law, deferred to New York State's Clean Water Act assessment.

5. For the same reason, and contrary to the majority's assertion, EDPL 206 (A) does not require an agency determination “equivalent [to] an affirmative determination of public benefit” (majority op at 313). It requires that the agency documentation relied upon by the condemnor establish that the EDPL factors were considered.

Rather than limit the holding on this appeal to the narrow question before us—namely whether this specific FERC certificate, issued for this unique gas pipeline project, satisfies the EDPL—the majority unnecessarily and without legal support cabins the power of judicial review to reach the sweeping conclusion that any government document, regardless of content, restrictions and limited scope of approval, absolves the condemnor of the requirements of section 204. If the mere issuance of any government approval document is sufficient on its face to meet the statutory demands of article 2, the Corporation could acquire title to the Schueckler land by merely acquiring a local permit unrelated to the environmental impact of the project. That would conflict with the legislature’s intent that environmental matters be given due consideration before private property may be acquired for public use (*see* EDPL 101). Indeed, while the certificate may be a valid exercise of FERC’s administrative authority, that authority is subordinate to the demands of the Clean Water Act, which requires an additional state-based review of a factor specifically identified in the EDPL.

The majority disputes my characterization of the effect of its approach, but does so by doing exactly what it repudiates, namely, inquiring into FERC’s review of the Corporation’s submissions to determine whether FERC adequately considered the EDPL 204 (B) factors (majority op at 308-309, 309 n 7). The majority inexplicably criticizes the Appellate Division majority for conducting the very analysis conducted in the ruling here, leaving lower courts to wonder whether to do as the Court of Appeals says or as it does (*see id.* at 310). In any event, the majority’s discussion of FERC’s consideration of the facts elides the operative reality in this case: Congress has explicitly assigned the job of considering the project’s environmental impacts in part to New York State, and neither this Court nor FERC can override that federal legislative authorization.

Aside from the fact that the majority’s reading undermines the purpose of the EDPL by allowing for involuntary transfer of title without complete vetting of the issues that underlie the public use analysis, the majority ignores the plain language of section 206, and in so doing violates canons of construction that we must give meaning to all the words chosen by the legislature and interpret a statute to achieve its legislative goals (*see Golden v Koch*, 49 NY2d 690, 694 [1980] [stating that under “traditionally accepted standards of statutory

construction,” courts must “read (a statute) as a whole” and consider “each word”]; McKinney’s Cons Laws of NY, Book 1, Statutes §§ 97, 98). If, as the majority concludes, courts have no judicial role other than to confirm the existence of a government document approving something—anything—then the legislature would have no reason to include the circumscribing language that the nonexhaustive list of section 204 (B) factors must be “consider[ed] and submit[t]ed,” leading to the government entity’s approval (EDPL 206 [A]). Reading that language out of section 206 is not only impermissible, it also renders this provision ineffective and weakens the protections against condemnations for proposed projects that fail to adequately address the statutory factors. But the EDPL protects property owners and the community, not condemnors, who must make a showing that upon consideration of the private and public interests there exists a public use justifying acquisition of private property. Put another way, the majority approach fails to give due regard to the property owner and local community concerns as well as the project’s impact on the environment—in direct contravention of the statutory purpose “to promote and facilitate recognition and careful consideration of those interests” (EDPL 101).

The majority’s analysis, taken to its logical end, would mean that the Corporation—or any party who obtains a document that, no matter its contents or conclusions, is denominated “certificate” from a single agency for a private commercial enterprise—could condemn private property and vest title in itself, even without all the necessary government approvals and even if the project is subsequently disapproved and never completed. The “book to be judged by its cover” in these situations, according to the majority, is the government administrative document titled a certificate. That harsh, unprecedented, and unfair result falls most heavily on a private owner with limited means, who simply wants to maintain and enjoy their land free of corporate environmental degradation.

To support its unsupportable conclusion, the majority emphasizes that in issuing the certificate, FERC did not place restrictions upon the Corporation’s ability to exercise eminent domain under the NGA. That is true, and as a result, the Corporation became the unusual type of private entity which could use New York’s eminent domain procedures to seize

privately owned land.⁶ This fact, however, does not bear at all under the EDPL as written on whether the Corporation actually complied with those procedures. In other words, the NGA clearly does not give the Corporation greater status with respect to exercise of eminent domain than a municipality or the State itself. In any case, the record does not reveal any reason why the *timing* of eminent domain, as distinct from the *authority* to exercise eminent domain, would be relevant for FERC's administrative review purposes; it is patently nonsensical to expect the FERC certificate to address every element of eminent domain procedure.⁷ In sum, by creating from whole cloth an apparent rule that any "certificate of public convenience and necessity" satisfies EDPL 206 (A) unless the issuing agency explicitly conditions the exercise of eminent domain, the majority ignores the fundamental principle that courts may not rewrite duly enacted statutes (*see McKinney's Cons Laws of NY, Book 1, Statutes* § 73; *Matter of Anonymous*, 40 NY2d 96, 102 [1976]).

The majority's reliance on a different section of the EDPL to shore up its construction of article 2 is misplaced. The majority argues that because section 406 grants an owner the right to repurchase property should the project be abandoned, we must read the EDPL as allowing involuntary title transfers for projects that may eventually fail. That position misses the mark. First, it is unclear that failure to acquire the necessary approv-

6. Contrary to the majority's view, my analysis does not question the validity of FERC's certificate. In describing the background and challenges to the Corporation's pipeline project, I do not consider, as the majority does (*see* majority op at 308-309), whether FERC's decision is reasonable; that determination is beyond this Court's authority. Nor do I assume the majority favors the premature taking of private property merely because the majority extols the scope of FERC's review (*see id.*). Our respective focus is on proper application of our state law, and on that front there can be no dispute that eminent domain may be exercised to acquire property over an owner's objection only when there is a public need that outweighs the private interest (*see* EDPL 101). The discrete question presented in this appeal is whether the Corporation may acquire title to the Scheuckler land on the basis that the Corporation complied with the EDPL's requirements. For the reasons I discuss *supra*, the validity of FERC's certificate as a provisional federal approval of the project does not answer that question.

7. The majority's apples-and-oranges citation to an unpublished federal opinion, *Mid Atl. Express, LLC v Baltimore County, Md.* (410 Fed Appx 653 [4th Cir 2011]), does not affect this analysis. That FERC decided in a particular factual context that it would be appropriate to impose a limitation upon a company's exercise of eminent domain sheds no light upon its decision not to do so on these distinct facts, and it certainly has no bearing on the operative issue of New York State law.

als constitutes “abandonment” of a project for purposes of the EDPL. For example, the project could be redesigned and go forward without the need to condemn the owner’s property. Second, the property buy-back allowed by section 406 applies only if condemnation was properly exercised, meaning section 406 provides a limited remedy to an owner where the public use initially justified acquisition of the property, but the condemnor subsequently deserts the project. Here, the Corporation failed to satisfy the requirements of EDPL article 2: the Corporation did not hold hearings and make findings in accordance with section 204, nor does the FERC certificate comply with section 206. The limited remedy of section 406 is simply irrelevant on these facts. Third, the remedy has limited impact and works best for those who are able financially to buy back their land and interested in doing so no matter the changes to the landscape, years after having title taken away. For example, if the Corporation “abandons” the project after gaining title, clear-cutting the land and commencing construction (and after all, the point of vesting title now is to move forward with construction; otherwise why the rush to the courthouse?) there is no certainty that respondent Theresa Schueckler—now widowed—would have the funds to repurchase that property, even if she wanted it in its changed condition.

And that brings me to a point unaddressed by the majority. The Corporation concedes, and FERC anticipates, that the project’s details may go through further revision in order to accommodate and address pre-construction problems. It may be that after taking title, and clear-cutting the Schueckler property, the Corporation modifies its plans, perhaps rendering use of the disputed land unnecessary or requiring an easement to another swath in a different location. Given this uncertainty, and the potential for project redesign that affects the public use justification for taking a designated area of land in the first place, it is nonsensical and unfair to take the Schueckler property before completing the necessary state permit process and ensuring that the project will likely move ahead in a form approved by New York.

The majority’s concern that adherence to the command of the EDPL is unworkable and involves impermissible scrutiny of federal agencies’ “public use review and findings” (*see* majority op at 310) is not borne out by the statute or review of this FERC certificate. No “extensive,” costly, and time-consuming

state scrutiny is required (*id.*). All that need be done here is to read the Clean Water Act provision and the condition contained in appendix B to the FERC certificate, and compare them to the language of the EDPL. Notwithstanding the majority's disclaimer, it has in fact looked in all the wrong places to determine compliance with the EDPL, focusing on what FERC did but not what it could not and did not do.

A majority of this Court has spoken, and it is now for the legislature to consider whether legislation is necessary to protect owners like the Schuecklers. It would not be the first time the legislature has stepped in after courts have broadly applied the power of eminent domain to divest private owners of their land for a private use with uncertain or unrealized public benefits (*see e.g. Kelo v New London*, 545 US 469, 483 [2005] [holding that city could seize homes for private redevelopment project to serve "economic development" purpose]; Patrick McGeehan, *Pfizer to Leave City That Won Land-Use Case*, NY Times, Nov. 13, 2009, § A at 1 [discussing aftermath of the *Kelo* decision, in which the company for which the land was obtained subsequently abandoned the project "as a cost-cutting measure"]; *see also Matter of Uptown Holdings, LLC v City of New York*, 77 AD3d 434 [1st Dept 2010] [holding that non-blighted area could be seized for economic development purposes notwithstanding lack of protections such as development plan to which developer would be bound]). The United States Supreme Court decision in *Kelo v New London* is perhaps the most infamous; it resulted in a flood of state legislation to prohibit the economic development grounds approved by the Court, as well as decisions by various states' high courts rejecting its rationale on state constitutional grounds (*see e.g. Reading Area Water Auth. v Schuylkill Riv. Greenway Assn.*, 627 Pa 357, 375, 100 A3d 572, 583 [2014] [holding, under Pennsylvania statute passed in the wake of *Kelo*, that private use with incidental public benefits could not support eminent domain proceedings]; *Norwood v Horney*, 110 Ohio St 3d 353, 377, 853 NE2d 1115, 1141 [2006] [adopting *Kelo* dissenters' analysis]; John M. Broder, *States Curbing Right to Seize Private Homes*, NY Times, Feb. 21, 2006, § A at 1 ["lawmakers in virtually every statehouse across the country are advancing bills and constitutional amendments to limit use of the government's power of eminent domain" in *Kelo*-type circumstances "in direct response to" the Supreme Court decision]; *see also* Charles E. Cohen, *Eminent Domain after Kelo v.*

City of New London: An Argument for Banning Economic Development Takings, 29 Harv JL & Pub Pol'y 491, 532 [2006]; Ilya Somin, *Controlling the Grasping Hand: Economic Development Takings after Kelo*, 15 Sup Ct Econ Rev 183, 191 [2007] [arguing that an “‘economic development’ . . . rationale can be used to condemn virtually any property for transfer to a private commercial enterprise”]; Alberto B. Lopez, *Kelo-Style Failings*, 72 Ohio St LJ 777 [2011]).

III.

Judicial Notice

In the alternative, the Corporation argues that even if an incomplete WQC process is grounds for denying vesting of title, that is no barrier to the proceeding here. The Corporation reasons that because FERC has now determined that DEC's denial of the WQC is untimely and thus New York waived its rights under the Clean Water Act, this Court should consider the FERC certificate as satisfying EDPL 206. It further claims that the Appellate Division erred when it failed to take judicial notice of the FERC decision as it should have concluded that “FERC's waiver order removed the obstacle” to exercise of eminent domain through the EDPL 206 (A) alternative process “on which the majority's decision depended.”

The procedural history is more complex and less favorable to the Corporation than its argument suggests. As DEC's denial letter recites, the Corporation initially agreed with DEC “that, for the purposes of review under Section 401 of the CWA, the Joint Application was deemed received by NYSDEC on April 8, 2016, [t]hereby extending the date [by which] the NYSDEC has to make a final determination on the application until April 7, 2017.” DEC issued its decision prior to the agreed extended date. When DEC issued a decision unfavorable to the Corporation, however, the Corporation collaterally attacked the WQC denial by seeking a waiver order from FERC, on the basis that the parties could not agree to extend the date, and so, notwithstanding the parties' agreement, DEC exceeded the permissible time frame for its Clean Water Act review. FERC agreed with the Corporation and denied a stay of its order, and an appeal of that order is now pending before the Second Circuit. Separately, the Second Circuit vacated DEC's order, stating that although it was a “close case,” DEC “did not sufficiently articulate the basis for its conclusions,” and remanded

so that DEC could “more clearly articulate its basis for the denial” (*National Fuel Gas Supply Corp. v New York State Dept. of Env'tl. Conservation*, 761 Fed Appx 68, 70-72 [2019]). DEC thereafter reissued its denial, elaborating upon its reasoning.

Courts may take judicial notice of facts that amount to common knowledge or may be determined “by resort to easily accessible sources of indisputable accuracy” (*Hamilton v Miller*, 23 NY3d 592, 603 [2014], quoting *People v Jones*, 73 NY2d 427, 431 [1989]). Whether to take judicial notice of such a fact is within the discretion of the trial court (*see Hunter v New York, Ontario & W. R.R. Co.*, 116 NY 615, 621 [1889]; *Matter of Crater Club v Adirondack Park Agency*, 86 AD2d 714, 715 [3d Dept 1982], *affd for reasons stated below* 57 NY2d 990 [1982]; *Sleasman v Sherwood*, 212 AD2d 868, 870 [3d Dept 1995]). Courts decide whether to take judicial notice of a fact “depend[ing] on the nature of the subject, the issue involved and the apparent justice of the case” (*Hunter*, 116 NY at 621; *see Walker v City of New York*, 46 AD3d 278, 282 [1st Dept 2007]). While our state courts are required to take judicial notice of positive law so that they can resolve cases under those laws (*see CPLR 4511*), here the Corporation argues that the courts should take judicial notice of the *fact* that FERC has deemed DEC to have waived its authority to bar construction. Judicial notice is not mandatory under such circumstances (*see Hamilton*, 23 NY3d at 603; *Sleasman*, 212 AD2d at 870).

Notably, the Corporation argues for judicial notice of only part of the events that have transpired in this and parallel litigation. It requests that the courts recognize that FERC has rejected the timeliness of the WQC, but not the existence of pending judicial challenges to FERC’s determinations and the possibility that the federal courts may hold that DEC’s denial of the WQC is valid. It is not farfetched that the federal courts may side with New York, given the Corporation’s agreement with DEC, as well as the fact that the Corporation could have simply reapplied for the WQC to restart the one-year statutory clock after signing off on the agreement. The Corporation chose not to, instead arguing before FERC and the Federal Circuit Courts that DEC’s denial was untimely issued and should be ignored.⁸ Although convenient, this may not be a winning argument, and in any case that uncertainty is a valid basis to decide

8. Although respondents’ brief discusses the agreement between the Corporation and DEC, it contains no argument in this Court that the

(n. cont’d)

this appeal on the record as it existed at the time the Corporation filed its vesting petition. Under the circumstances, the Appellate Division did not abuse its discretion as a matter of law by refusing National Fuel's request to take judicial notice of the FERC decision.

IV.

Conclusion

Not to be lost in the legal analysis is the practical effect of the majority's ruling. The first page of the FERC certificate establishes the conditional nature of FERC's authorization. One of the conditions that would stop progress on the pipeline is the failure to establish compliance with "all applicable authorizations required under federal law." Absent proof of receipt of those authorizations, there could be no pipeline, and absent an ability on the part of the condemnor to build the structure that the taking here is intended to accommodate, the courts should not sanction acquisition of the Schueckler property.

It is undisputed that the FERC certificate issued to the Corporation is conditioned on New York State's rights under the Clean Water Act, including the right to deny the Corporation a WQC, preventing construction and derailing the proposed gas pipeline. Given the nature of the project, and the threat of environmental damage from the pipeline's construction and operation, the WQC process is vitally important. The proposed pipeline would traverse approximately 97 miles in four Western New York counties, including rural communities that would be affected by the project as planned. The path drawn for the pipeline crosses no fewer than 192 state-regulated streams and impacts over 73 acres of federal and state wetlands.⁹

Notwithstanding the vital environmental interests, the majority's reading of the FERC certificate and our procedural law permits the acquisition of private property absent approvals

Corporation should be collaterally estopped from relying on the FERC decision as a consequence of the agreement. As such, I limit my discussion to whether the Appellate Division abused its discretion not to take judicial notice in light of the pending federal court challenges to FERC's determination against the DEC.

9. The degree to which the proposed project would affect waterways and wetlands is noted in the DEC's explanation for its denial of petitioner's application to obtain a water quality certification for the proposed project.

ensuring that those wetlands and waterways—some of which drain into the Great Lakes—would be protected during and after construction of the proposed pipeline. The law does not mandate such a result. Instead, federal and New York laws and regulations guard against environmentally impactful pollutant discharges associated with the pipeline project (*see* 33 USC § 1341 [a] [1]; EDPL 204 [B] [3]; ECL 15-0101 *et seq.*, 24-0101 *et seq.*; 6 NYCRR 621.1-621.11).

Nor does the law support the outcome here in which, based on the title of a FERC certificate, the property interest of a lone private individual—respondent Theresa F. Schueckler—is extinguished in furtherance of private economic interests that may never be realized. The courts should not sanction this involuntary transfer of title with its attendant harm to the owner. Theresa F. Schueckler should retain her right to use and dispose of her property freely absent an adequate showing justifying divesting her of title. A showing the corporation has not made as required by the EDPL.

For the foregoing reasons I dissent.

Chief Judge DiFiore and Judges Wilson and Feinman concur; Judge Rivera dissents and votes to affirm in an opinion, in which Judge Fahey concurs; Judge Garcia taking no part.

Order reversed, with costs, and order of Supreme Court, Allegany County, reinstated.

[154 NE3d 972, 130 NYS3d 759]

In the Matter of REGINA METROPOLITAN CO., LLC, Respondent,
v NEW YORK STATE DIVISION OF HOUSING AND COMMUNITY
RENEWAL, Appellant, LESLIE E. CARR et al., Intervenors-
Respondents. (And Another Proceeding.)

JOEL RADEN et al., Appellants, v W7879, LLC, et al., Respon-
dents.

JAMES TAYLOR et al., Respondents, v 72A REALTY ASSOCIATES,
L.P., Appellant, et al., Defendant.

ELIZABETH REICH, et al., Appellants, v BELNORD PARTNERS,
LLC, et al., Respondents.

Argued January 7, 2020; decided April 2, 2020

SUMMARY

APPEAL, in the first above-entitled proceeding, by permission of the Appellate Division of the Supreme Court in the First Judicial Department, from an order of that Court, entered August 16, 2018. The Appellate Division order, insofar as appealed from, modified, on the law, an order and judgment (one paper) of the Supreme Court, New York County (Alice Schlesinger, J.), entered in a proceeding pursuant to CPLR article 78, which had (1) denied related petitions to review a determination of respondent New York State Division of Housing and Community Renewal (DHCR) which affirmed an order of the rent administrator deciding that, among other things, for purposes of determining a rent overcharge, the base date rent was calculated by looking back more than four years from the rent overcharge complaint; and (2) dismissed the proceedings. The modification consisted of granting petitioner Regina Metropolitan Co., LLC's petition to the extent of remanding the matter to DHCR to recalculate the base date rent by looking back to four years before the filing of the overcharge complaint. The following question was certified by the Appellate Division: "Was the order of this Court, which modified the order and judgment (one paper) of the Supreme Court, properly made?"

APPEAL, in the second above-entitled action, by permission of the Appellate Division of the Supreme Court in the First Judicial Department, from an order of that Court, entered August 16, 2018. The Appellate Division affirmed a judgment of the Supreme Court, New York County (Joan M. Kenney, J.),

which had awarded plaintiffs damages for rent overcharges. The following question was certified by the Appellate Division: “Was the order of this Court, which affirmed the [judgment] of the Supreme Court, properly made?”

APPEAL, in the third above-entitled action, by permission of the Appellate Division of the Supreme Court in the First Judicial Department, from an order of that Court, entered May 25, 2017. The Appellate Division modified, on the law, and otherwise affirmed an order of the Supreme Court, New York County (Jennifer G. Schechter, J.; op 2016 NY Slip Op 32737[U] [2016]), which, to the extent appealed from, had (1) denied defendants’ motion for summary judgment insofar as it sought dismissal of the complaint as against defendant 72A Realty Associates, L.P.; and (2) granted plaintiffs’ cross motion for summary judgment declaring that apartment 5M was rent-stabilized. The modification consisted of declaring that the increases made to the rent-stabilized rent in 2000, based upon individual apartment improvements before plaintiffs took occupancy, were legally permissible. The Appellate Division affirmed the order as modified. The following question was certified by the Appellate Division: “Was the order of this Court, which modified the order of the Supreme Court, properly made?”

APPEAL, in the fourth above-entitled action, by permission of the Appellate Division of the Supreme Court in the First Judicial Department, from an order of that Court, entered January 15, 2019. The Appellate Division affirmed an order of the Supreme Court, New York County (Arlene P. Bluth, J.), which had (1) granted defendants’ motion to dismiss the claim for rent overcharges; and (2) denied plaintiffs’ cross motion for summary judgment pursuant to CPLR 3211 (c). The following question was certified by the Appellate Division: “Was the order of this Court, which affirmed the order of Supreme Court, properly made?”

Matter of Regina Metro. Co., LLC v New York State Div. of Hous. & Community Renewal, 164 AD3d 420, affirmed.

Raden v W 7879, LLC, 164 AD3d 440, affirmed.

Taylor v 72A Realty Assoc., L.P., 151 AD3d 95, modified.

Reich v Belnord Partners, LLC, 168 AD3d 482, affirmed.

HEADNOTES

Landlord and Tenant — Rent Regulation — Improper Deregulation — Rent Overcharges Calculated Pursuant to Method in Effect When Overcharges Occurred

1. The appeals in petitioner and plaintiff tenants' rent overcharge actions arising from the improper removal of their apartments from rent stabilization during receipt of J-51 benefits prior to the decision in *Roberts v Tishman Speyer Props., L.P.* (13 NY3d 270 [2009]), which were pending when the Housing Stability and Tenant Protection Act of 2019 (L 2019, ch 36, § 1, part F [HSTPA]) was enacted and altered the method for determining legal regulated rent and expanded the nature and scope of owner liability in Rent Stabilization Law (RSL) overcharge cases, were governed by the four-year lookback rule and standard calculation method in effect at the time the alleged overcharges occurred, rather than by the HSTPA's new rent overcharge calculation provisions. Retroactive application of the overcharge calculation amendments would create or considerably enlarge owners' financial liability for conduct that occurred many years or even decades before the HSTPA was enacted and for which the prior statutory scheme conferred on owners clear repose. Because such application of the amendments to past conduct would not comport with retroactivity jurisprudence or requirements of due process, the claims were resolved pursuant to the law in effect when the purported overcharges occurred. Even if employed in a manner compatible with the lookback rule, nothing in the RSL indicates that the tenants' proposed alternative methods to determine base date rent applied. The RSL makes no distinction between improper deregulation and an improperly high increase to a stabilized rent, and there is no indication that, under the pre-HSTPA law, an overcharge resulting from improper (but nonfraudulent) luxury deregulation warranted anything but the application of the standard lookback provisions.

Landlord and Tenant — Rent Regulation — Rent Overcharge — Legislative Intent to Retroactively Apply New Calculation Provisions under Housing Stability and Tenant Protection Act of 2019

2. In enacting the Housing Stability and Tenant Protection Act of 2019 (L 2019, ch 36, § 1, part F [HSTPA]), the legislature expressed a sufficiently clear intent to retroactively apply provisions amending the method for calculating legal regulated rent and substantially expanding the nature and scope of owner liability in Rent Stabilization Law rent overcharge cases where the calculation issue was unresolved at the time the HSTPA was enacted. Application of a new statute to conduct that has already occurred may have retroactive effect upsetting reliance interests and triggering fundamental concerns about fairness. If applied to past conduct, the part F amendments would impose new liability and thus have a retroactive effect, altering substantive rights in multiple ways and thereby triggering the presumption against retroactivity. However, the presumption may be overcome by either an express prescription of the statute's temporal reach or a less explicit but comparably firm conclusion of legislative intent to apply the enactment to conduct that occurred previously. Each of the HSTPA's 15 parts contains its own effective date provision, indicating the legislature considered the issue of temporal scope for each. Moreover, part F relates almost entirely to the calculation of overcharge claims, and any such claim that was pending at the time the HSTPA was enacted necessarily involved conduct that occurred prior to the statute's enactment. Therefore, although

there was no clear directive to revive time-barred claims, the legislature evinced a sufficiently clear intent to apply part F to timely pending claims where the overcharge calculation issue was unresolved at the time of its enactment.

Landlord and Tenant — Rent Regulation — Rent Overcharge — Retroactive Application of New Calculation Provisions under Housing Stability and Tenant Protection Act of 2019 — Due Process Concerns

3. Retroactive application of the Housing Stability and Tenant Protection Act of 2019 (L 2019, ch 36, § 1, part F [HSTPA]) provisions extending the statute of limitations, altering the method for determining legal regulated rent for overcharge purposes and expanding the nature and scope of owner liability in Rent Stabilization Law rent overcharge cases to alleged overcharges that occurred prior to HSTPA's enactment is unsupported by rational means and would therefore violate constitutional due process protections. Whether a retroactive statute comports with due process principles is a question of degree that turns on the length of the retroactivity period, the forewarning of a change in legislation as relevant to reliance interests, and the public purpose for retroactive application. The HSTPA amendments directing review of all available rental history to reconstruct the legal regulated rent on the base date may be applied to incorporate increases in the apartment's distant rental history, thereby expanding a tenant's total overcharge recovery well beyond what was provided under the prior law. Such a vast period of retroactivity upends owners' expectations of repose relating to conduct that may have occurred many years prior to the recovery period. Having reasonably relied on pre-HSTPA statutory and regulatory provisions to destroy records, owners may be held liable under the HSTPA for purported historical overcharges that were once supported by documentation. Moreover, the treble damages provisions either increase the penalty or impose a new penalty for damages that previously were not trebled. In the retroactivity context, a rational justification is one commensurate with the degree of disruption to settled, substantial rights and, in this instance, that standard had not been met.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d Landlord and Tenant §§ 883, 884.
DOLAN, RASCH'S NEW YORK LANDLORD AND TENANT INCLUDING SUMMARY PROCEEDINGS (5th ed) § 2:40.
NY JUR 2d Landlord and Tenant §§ 524, 525, 530.

ANNOTATION REFERENCE

See ALR Index under Landlord and Tenant.

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Query: "rent stabilization" /p overcharge & lookback & retroactive

POINTS OF COUNSEL

Letitia James, Attorney General, New York City (Ester Murdukhayeva, Barbara D. Underwood and Steven C. Wu of counsel), and New York State Division of Housing and Community Renewal, New York City (Mark F. Palomino, Christina S. Ossi and Sheldon D. Melnitsky of counsel), for appellant in the first above-entitled proceeding. I. The New York State Division of Housing and Community Renewal's order is lawful. (*Matter of Cintron v Calogero*, 15 NY3d 347; *Matter of Ador Realty, LLC v Division of Hous. & Community Renewal*, 25 AD3d 128; *Matter of H.O. Realty Corp. v State of N.Y. Div. of Hous. & Community Renewal*, 46 AD3d 103; *Roberts v Tishman Speyer Props., L.P.*, 13 NY3d 270; *Gersten v 56 7th Ave. LLC*, 88 AD3d 189; *Taylor v 72A Realty Assoc., L.P.*, 151 AD3d 95; *Thornton v Baron*, 5 NY3d 175; *Reich v Belnord Partners, LLC*, 168 AD3d 482; *Borden v 400 E. 55th St. Assoc., L.P.*, 24 NY3d 382; *Matter of 160 E. 84th St. Assoc. LLC v New York State Div. of Hous. & Community Renewal*, 160 AD3d 474.) II. The New York State Division of Housing and Community Renewal's methodology is rationally designed to address the special circumstances of post-*Roberts v Tishman Speyer Props., L.P.* (13 NY3d 270 [2009]) overcharge cases. (*Matter of 160 E. 84th St. Assoc. LLC v New York State Div. of Hous. & Community Renewal*, 160 AD3d 474; *Thornton v Baron*, 5 NY3d 175; *Matter of Grimm v State of N.Y. Div. of Hous. & Community Renewal Off. of Rent Admin.*, 15 NY3d 358; *Borden v 400 E. 55th St. Assoc., L.P.*, 24 NY3d 382.) III. The Housing Stability and Tenant Protection Act of 2019 permits review of all relevant rental history in rent-overcharge proceedings. IV. The Housing Stability and Tenant Protection Act of 2019 applies to pending proceedings. (*Longines-Wittnauer Watch Co. v Barnes & Reinicke*, 15 NY2d 443; *Knapp v Fasbender*, 1 NY2d 212; *Taylor v 72A Realty Assoc., L.P.*, 151 AD3d 95; *Raden v W 7879, LLC*, 164 AD3d 440; *Reich v Belnord Partners, LLC*, 168 AD3d 482; *Weissblum v Mostafzafan Found. of N.Y.*, 60 NY2d 637; *Matter of City of New York v Wing*, 94 NY2d 466; *Matter of Tartaglia v McLaughlin*, 297 NY 419; *American Economy Ins. Co. v State of New York*, 30 NY3d 136; *Matter of World Trade Ctr. Lower Manhattan Disaster Site Litig.*, 30 NY3d 377.) V. This Court should resolve this appeal without delay. (*Robinson v Robins Dry Dock & Repair Co.*, 238 NY 271.)

Horing Welikson & Rosen, P.C., Williston Park (Niles C. Welikson of counsel), for respondent in the first above-entitled

proceeding. I. The New York State Division of Housing and Community Renewal's actions in going beyond the base date to calculate the complaining tenants' rent is violative of both statutory mandates and prior rulings of this Court. (*Thornton v Baron*, 5 NY3d 175; *Matter of Grimm v State of N.Y. Div. of Hous. & Community Renewal Off. of Rent Admin.*, 15 NY3d 358; *Conason v Megan Holding, LLC*, 25 NY3d 1; *Scott v Rockaway Pratt, LLC*, 17 NY3d 739; *Matter of Cintron v Calogero*, 15 NY3d 347; *Riverside Syndicate, Inc. v Munroe*, 10 NY3d 18; *Matter of Boyd v New York State Div. of Hous. & Community Renewal*, 23 NY3d 999; *Stulz v 305 Riverside Corp.*, 150 AD3d 558; *Todres v W7879, LLC*, 137 AD3d 597; *Meyers v Four Thirty Realty*, 127 AD3d 501.) II. Any affirmance of the New York State Division of Housing and Community Renewal's actions in this proceeding would be violative of the proscription against judicial legislation. (*Patrolmen's Benevolent Assn. of City of N.Y. v City of New York*, 41 NY2d 205; *Matter of Kennedy v Kennedy*, 251 AD2d 407; *People v Finnegan*, 85 NY2d 53.) III. It would be appropriate for this Court to clarify the fact that the complaining tenants' rent must be calculated using the rent that was actually in effect on the base date. (*Matter of 160 E. 84th St. Assoc. LLC v New York State Div. of Hous. & Community Renewal*, 160 AD3d 474; *Raden v W 7879, LLC*, 164 AD3d 440.) IV. The tenants have failed to set forth any legal principle that supports utilizing other than the rent in effect on the base date as the predicate for calculating their rent. (*Thornton v Baron*, 5 NY3d 175; *Matter of Grimm v State of New York Div. of Hous. & Community Renewal Off. of Rent Admin.*, 15 NY3d 358; *Matter of Partnership 92 LP & Bldg. Mgt. Co., Inc. v State of N.Y. Div. of Hous. & Community Renewal*, 46 AD3d 425, 11 NY3d 859.) V. The New York State Division of Housing and Community Renewal's "sampling" method is inapplicable to setting a new base date rent in the absence of proof of fraud. (*Matter of 160 E. 84th St. Assoc. LLC v New York State Div. of Hous. & Community Renewal*, 160 AD3d 474; *Raden v W 7879, LLC*, 164 AD3d 440; *Wasserman v Gordon*, 24 AD3d 201.) VI. A punitive rent freeze is inapplicable to a *Roberts v Tishman Speyer Props., L.P.* (13 NY3d 270 [2009]) situation. (*Altschuler v Jobman 478/480, LLC*, 135 AD3d 439; *Matter of 215 W 88th St. Holdings LLC v New York State Div. of Hous. & Community Renewal*, 143 AD3d 652; *Matter of Hargrove v Division of Hous. & Community Renewal*, 244 AD2d 241; *Jazilek v Abart Holdings, LLC*, 72 AD3d 529; *Matter of Park v New York State Div. of Hous. & Community Renewal*,

150 AD3d 105; *Taylor v 72A Realty Assoc., L.P.*, 151 AD3d 95.) VII. The Housing Stability and Tenant Protection Act of 2019 should not be applied to an extensively litigated complaint that was filed almost 10 years prior to its enactment. (*Raden v W 7879, LLC*, 164 AD3d 440; *People v Pabon*, 28 NY3d 147; *Landgraf v USI Film Products*, 511 US 244; *Eastern Enterprises v Apfel*, 524 US 498; *Auger v State of New York*, 236 AD2d 177; *State of New York v Daicel Chem. Indus., Ltd.*, 42 AD3d 301; *Dorfman v Leidner*, 150 AD2d 935; *Valladares v Valladares*, 80 AD2d 244; *Chase Securities Corp. v Donaldson*, 325 US 304; *Alliance of Am. Insurers v Chu*, 77 NY2d 573.) VIII. The Housing Stability and Tenant Protection Act of 2019, if applicable, does not impact the calculation of plaintiffs' rent or their overcharge claim. (*Patrolmen's Benevolent Assn. of City of N.Y. v City of New York*, 41 NY2d 205; *Matter of Kennedy v Kennedy*, 251 AD2d 407.) IX. The tenants' complaint was not filed pursuant to or under the Rent Stabilization Law as amended by the Housing Stability and Tenant Protection Act of 2019 and therefore it must be determined pursuant to the pre-amendment statute. (*Matter of Lavanant v State Div. of Hous. & Community Renewal*, 148 AD2d 185; *Matter of 590 W. End Assoc. v State Div. of Hous. & Community Renewal*, 166 AD2d 184; *Matter of Mengoni v New York State Div. of Hous. & Community Renewal*, 97 NY2d 630.)

Vernon & Ginsburg, LLP, New York City (*Darryl M. Vernon* and *Yoram Silagy* of counsel), for intervenors-respondents in the first above-entitled proceeding. I. The overcharge and new rent should be established using the New York State Division of Housing and Community Renewal (DHCR) sampling method or the *Thornton* default formula if this Court rules that the four year rule applies. Alternatively, if the Court permits examination of rent records beyond four years, then the DHCR method used in the case at bar, or the lowest rent for a comparable apartment when the tenants first occupied the apartment, are appropriate rent formulas. (*Thornton v Baron*, 5 NY3d 175; *Matter of Grimm v State of N.Y. Div. of Hous. & Community Renewal Off. of Rent Admin.*, 15 NY3d 358; *Matter of Partnership 92 LP & Bldg. Mgt. Co., Inc. v State of N.Y. Div. of Hous. & Community Renewal*, 46 AD3d 425; *Matter of 160 E. 84th St. Assoc. LLC v New York State Div. of Hous. & Community Renewal*, 160 AD3d 474; *Wasserman v Gordon*, 24 AD3d 201; *Altschuler v Jobman 478/480, LLC.*, 135 AD3d 439; *Matter of BN Realty Assoc. v State of N.Y. Div. of Hous. & Community Renewal*, 254 AD2d 7; *Matter of 215 W 88th St. Hold-*

ings LLC v New York State Div. of Hous. & Community Renewal, 143 AD3d 652; *Matter of Hargrove v Division of Hous. & Community Renewal*, 244 AD2d 241.) II. The Housing Stability and Tenant Protection Act of 2019 applies to this case because it is still pending while the new law has gone into effect, and because the law is remedial in nature and therefore should be applied retroactively. (*Matter of De Cordova v Bennett*, 32 AD2d 959; *Matter of Marino S.*, 100 NY2d 361.) III. This Court should reconsider its striking of the tenants' appeal for legal fees and treble damages due to the changes enunciated in the Housing Stability and Tenant Protection Act of 2019 and the tenants' recent request for reconsideration before the New York State Division of Housing and Community Renewal.

Graubard Miller, New York City (*Peter A. Schwartz* and *Joseph H. Lessem* of counsel), for Community Housing Improvement Program, Inc. and another, amici curiae in the first above-entitled proceeding. I. The Housing Stability and Tenant Protection Act of 2019's amendments to the rent overcharge statutes of limitations should not be applied retroactively. (*Matter of Cintron v Calogero*, 15 NY3d 347; *Thornton v Baron*, 5 NY3d 175; *Matter of Gilman v New York State Div. of Hous. & Community Renewal*, 99 NY2d 144; *Matter of Ador Realty, LLC v Division of Hous. & Community Renewal*, 25 AD3d 128; *Matter of Bondam Realty Assoc., L.P. v New York State Div. of Hous. & Community Renewal*, 71 AD3d 477; *Matter of 10th St. Assoc., LLC v New York State Div. of Hous. & Community Renewal*, 110 AD3d 605; *ACE Sec. Corp., Home Equity Loan Trust, Series 2006-SL2 v DB Structured Prods., Inc.*, 25 NY3d 581; *Ajdler v Province of Mendoza*, 33 NY3d 120; *Duffy v Horton Mem. Hosp.*, 66 NY2d 473; *Jacobus v Colgate*, 217 NY 235.) II. Only fraud may prevent strict application of the four-year limitation on examining an apartment's rental history in a rent overcharge proceeding. (*Putter v North Shore Univ. Hosp.*, 7 NY3d 548; *Bayuk v Gilbert*, 57 AD3d 227; *Thornton v Baron*, 5 NY3d 175; *Matter of Grimm v State of N.Y. Div. of Hous. & Community Renewal Off. of Rent Admin.*, 15 NY3d 358; *Conason v Megan Holding, LLC*, 25 NY3d 1; *Matter of Boyd v New York State Div. of Hous. & Community Renewal*, 23 NY3d 999; *Matter of Gomez v New York State Div. of Hous. & Community Renewal*, 79 AD3d 878; *Meyers v Four Thirty Realty*, 127 AD3d 501; *Todres v W7879, LLC*, 137 AD3d 597; *Matter of Park v New York State Div. of Hous. & Community Renewal*, 150 AD3d 105.)

Newman Ferrara LLP, New York City (*Lucas A. Ferrara*,

Jarred I. Kassenoff and *Roger Sachar* of counsel), for *Stephenie Futch* and others, amici curiae in the first above-entitled proceeding. I. The New York State Division of Housing and Community Renewal (DHCR) formula is arbitrary, capricious and unconstitutional. Moreover, it requires tenants to pay for DHCR's mistakes, and those of their landlord. (*Taylor v 72A Realty Assoc., L.P.*, 151 AD3d 95; *Gersten v 56 7th Ave. LLC*, 88 AD3d 189; *Matter of 215 W 88th St. Holdings LLC v New York State Div. of Hous. & Community Renewal*, 143 AD3d 652.) II. The four-year rule is no longer applicable, and the Housing Stability and Tenant Protection Act of 2019 applies to all pending claims. (*Thornton v Baron*, 5 NY3d 175; *Dugan v London Terrace Gardens, L.P.*, 177 AD3d 1; *Raden v W 7879, LLC*, 164 AD3d 440; *Commander-Larabee Mill Co v Manufacturers & Traders Trust Co*, 61 F Supp 341; *Matter of Mengoni v New York State Div. of Hous. & Community Renewal*, 97 NY2d 630.) III. The *Thornton* default formula and the New York State Division of Housing and Community Renewal sampling method are unavailable. IV. Rent overcharge claims should be calculated pursuant to the Housing Stability and Tenant Protection Act of 2019. (*EMA Realty, LLC v Leyva*, 64 Misc 3d 11; *Meyer v 224 Lafayette St. Corp.*, 165 AD3d 598; *Kreisler v B-U Realty Corp.*, 164 AD3d 1117; *Altschuler v Jobman 478/480, LLC.*, 135 AD3d 439.)

Collins, Dobkin & Miller LLP, New York City (*Seth A. Miller* of counsel), for appellants in the second above-entitled action. I. Appellants' rent is the product of fraud, and must be recalculated under the default formula. (*Roberts v Tishman Speyer Props., L.P.*, 13 NY3d 270; *Gersten v 56 7th Ave. LLC*, 88 AD3d 189; *Matter of Cooper Realty Co. v Division of Hous. & Community Renewal*, 240 AD2d 665; *Matter of Grimm v State of N.Y. Div. of Hous. & Community Renewal Off. of Rent Admin.*, 15 NY3d 358; *Conason v Megan Holding, LLC*, 25 NY3d 1; *Sicignano v Dixey*, 124 AD3d 1301; *Westbury Small Bus. Corp. v Ballarine*, 125 AD2d 462; *Kreisler v B-U Realty Corp.*, 164 AD3d 1117; *Matter of Obiora v New York State Div. of Hous. & Community Renewal*, 77 AD3d 755; *Matter of Hargrove v Division of Hous. & Community Renewal*, 244 AD2d 241.) II. Even if fraud is not found, appellants' rent is the product of illegality, and must be recalculated under the default formula. (*Matter of Plato's Cave Corp. v State Liq. Auth.*, 68 NY2d 791; *Matter of Lower Manhattan Loft Tenants v New York City Loft Bd.*, 66 NY2d 298; *Roberts v Tishman Speyer Props., L.P.*, 89 AD3d 444; *Gersten v 56 7th Ave. LLC*, 88 AD3d

189; *Thornton v Baron*, 5 NY3d 175; *Myers v Frankel*, 184 Misc 2d 608, 292 AD2d 575; *Santa Cecilia v Irizarry*, 189 Misc 2d 430, 292 AD2d 557; *Matter of Grimm v State of N.Y. Div. of Hous. & Community Renewal Off. of Rent Admin.*, 15 NY3d 358; *Conason v Megan Holding, LLC*, 25 NY3d 1; *Matter of 160 E. 84th St. Assoc. LLC v New York State Div. of Hous. & Community Renewal*, 160 AD3d 474.) III. The statute of limitations should be equitably tolled. (*Thornton v Baron*, 5 NY3d 175; *Simcusi v Saeli*, 44 NY2d 442; *Juman v Louise Wise Servs.*, 254 AD2d 72; *Roldan v Allstate Ins. Co.*, 149 AD2d 20; *Brown v State of New York*, 250 AD2d 314; *Billiard Balls Mgt., LLC v Mintzer Sarowitz Zeris Ledva & Meyers, LLP*, 54 Misc 3d 936, 157 AD3d 419; *Borden v 400 E. 55th St. Assoc., L.P.*, 24 NY3d 382; *Matter of Obiora v New York State Div. of Hous. & Community Renewal*, 77 AD3d 755; *Matter of S.E. & K. Corp. v State of New York Div. of Hous. & Community Renewal*, 239 AD2d 123; *Matter of Hargrove v Division of Hous. & Community Renewal*, 244 AD2d 241.) IV. Treble damages should have been awarded. (*Matter of Hargrove v Division of Hous. & Community Renewal*, 244 AD2d 241; *Matter of Tockwotten Assoc. v New York State Div. of Hous. & Community Renewal*, 7 AD3d 453; *Matter of H.O. Realty Corp. v State of N.Y. Div. of Hous. & Community Renewal*, 46 AD3d 103; *Matter of Obiora v New York State Div. of Hous. & Community Renewal*, 77 AD3d 755; *Matter of S.E. & K. Corp. v State of New York Div. of Hous. & Community Renewal*, 239 AD2d 123.) V. Appellants should be awarded attorneys' fees. VI. The Housing Stability and Tenant Protection Act of 2019 applies by its terms to this appeal, since this appeal involves a "claim pending" on the effective date. (*Matter of Rutherford Estates, Ltd. [Dorman Prods.]*, 301 NY 767; *Matter of Pechock v New York State Div. of Hous. & Community Renewal*, 253 AD2d 655; *McDermott v Pinto*, 101 AD2d 224; *Brothers v Florence*, 95 NY2d 290; *Rothstein v Tennessee Gas Pipeline Co.*, 87 NY2d 90; *Matter of Regenbogen v New York State Willard Psychiatric Ctr.*, 254 AD2d 593.) VII. The 1994 registration statement for appellants' apartment is the base registration. (*Matter of Napolitano [Motor Veh. Acc. Indem. Corp.]*, 21 NY2d 281; *Matter of North Shore Steak House v Board of Appeals of Inc. Vil. of Thomaston*, 30 NY2d 238.) VIII. The impact of the failure to register from 1995 to 2010 should be decided on remand. (*Taylor v 72A Realty Assoc., L.P.*, 151 AD3d 95; *Matter of 215 W 88th St. Holdings LLC v New York State Div. of Hous. & Community Renewal*, 143 AD3d 652; *Weissblum v Mostafzafan Found. of N.Y.*, 60 NY2d 637;

Matter of BN Realty Assoc. v State of N.Y. Div. of Hous. & Community Renewal, 254 AD2d 7; *Bradbury v 342 W. 30th St. Corp.*, 84 AD3d 681; *Jazilek v Abart Holdings, LLC*, 72 AD3d 529.) IX. Appellants are entitled to treble damages. (*Matter of Obiora v New York State Div. of Hous. & Community Renewal*, 77 AD3d 755; *Matter of S.E. & K. Corp. v State of New York Div. of Hous. & Community Renewal*, 239 AD2d 123; *Matter of Hargrove v Division of Hous. & Community Renewal*, 244 AD2d 241.) X. The amount of overcharge should be calculated on remand. (*Matter of Cintron v Calogero*, 15 NY3d 347.)

Kucker Marino Winiarsky & Bittens, LLP, New York City (*Nativ Winiarsky* and *Patrick K. Munson* of counsel), for respondents in the second above-entitled action. I. The law prohibits review or use of the rent history of a stabilized apartment back beyond four years. (*Thornton v Baron*, 5 NY3d 175; *Matter of Grimm v State of N.Y. Div. of Hous. & Community Renewal Off. of Rent Admin.*, 15 NY3d 358; *Conason v Megan Holding, LLC*, 25 NY3d 1; *Matter of Boyd v New York State Div. of Hous. & Community Renewal*, 23 NY3d 999; *Conason v Megan Holding, LLC*, 25 NY3d 1.) II. Appellants failed to provide evidence of fraud to justify review of the rent history of the subject apartment back beyond four years. (*Humphrey v State of New York*, 60 NY2d 742; *Congel v Malfitano*, 31 NY3d 272; *Matter of Gilman v New York State Div. of Hous. & Community Renewal*, 99 NY2d 144.) III. The appellants in their brief raise new arguments which were not raised below and which are without merit (*Bingham v New York City Tr. Auth.*, 99 NY2d 355.) IV. The position of the Appellate Division dissent is contrary to this Court's decisions in *Matter of Grimm v State of N.Y. Div. of Hous. & Community Renewal Off. of Rent Admin.* (15 NY3d 358 [2010]) and *Matter of Boyd v New York State Div. of Hous. & Community Renewal* (23 NY3d 999 [2014]) and CPLR 213-a. (*Taylor v 72A Realty Assoc., L.P.*, 151 AD3d 95; *Gurnee v Aetna Life & Cas. Co.*, 55 NY2d 184; *Kurcsics v Merchants Mut. Ins. Co.*, 49 NY2d 451.) V. There is no basis to toll, modify or delay the four year look back period of CPLR 213-a. (*Bingham v New York City Tr. Auth.*, 99 NY2d 355; *Myers v Frankel*, 184 Misc 2d 608; *Corsello v Verizon N.Y., Inc.*, 18 NY3d 777; *Roldan v Allstate Ins. Co.*, 149 AD2d 20; *Borden v 400 E. 55th St. Assoc., L.P.*, 24 NY3d 382.) VI. The underlying facts in this appeal are not in dispute but the manner of calculating the legal rent and any rent overcharge will depend upon whether the Housing Stability and Tenant Protection Act of 2019 applies. (*Roberts v Tishman Speyer Props., L.P.*, 13 NY3d 270.) VII. Based upon

the language of the statute and court precedent the Housing Stability and Tenant Protection Act of 2019 should not be applied to this appeal. (*Landgraf v USI Film Products*, 511 US 244; *Aguaiza v Vantage Props., LLC*, 69 AD3d 422.) VIII. The application of the Housing Stability and Tenant Protection Act of 2019 to the instant appeal will improperly impose new liabilities upon the landlord and provide the tenants with new rights. (*Thornton v Baron*, 5 NY3d 175.)

Newman Ferrara LLP, New York City (*Lucas A. Ferrara, Jarred I. Kassenoff* and *Roger Sachar* of counsel), for Jacobus Gomes and others, amici curiae in the second above-entitled action. I. The Housing Stability and Tenant Protection Act of 2019 applies retroactively. (*Commander-Larabee Mill Co. v Manufacturers & Traders Trust Co.*, 61 F Supp 341; *Dugan v London Terrace Gardens, L.P.*, 177 AD3d 1; *Landgraf v USI Film Products*, 511 US 244; *Aguaiza v Vantage Props., LLC*, 69 AD3d 422.) II. Respondents' liability argument is a constitutional one, and improperly before the Court. (*Matter of Luthmann v Gulino*, 131 AD3d 636; *People v Brown*, 64 AD3d 611.)

Joel M. Zinberg, New York City, and *Murray Shactman*, New York City, for appellant in the third above-entitled action. I. The court below erred in employing a novel method of calculating the base date rent and overcharges that utilizes rental history prior to the four-year base date. (*Matter of Boyd v New York State Div. of Hous. & Community Renewal*, 110 AD3d 594; *Matter of Park v New York State Div. of Hous. & Community Renewal*, 150 AD3d 105, 30 NY3d 961; *Todres v W7879, LLC*, 137 AD3d 597, 28 NY3d 910; *East W. Renovating Co. v New York State Div. of Hous. & Community Renewal*, 16 AD3d 166; *Matter of Hatanaka v Lynch*, 304 AD2d 325; *72A Realty Assoc. v Lucas*, 32 Misc 3d 47; *Matter of 160 E. 84th St. Assoc. LLC v New York State Div. of Hous. & Community Renewal*, 160 AD3d 474; *Thornton v Baron*, 5 NY3d 175; *Matter of Cintron v Calogero*, 15 NY3d 347; *Conason v Megan Holding, LLC*, 25 NY3d 1.) II. The court below erred in denying defendant partial summary judgment and remanding to consider the imposition of treble damages and attorneys' fees in this case. (*Borden v 400 E. 55th St. Assoc., L.P.*, 24 NY3d 382; *Gersten v 56 7th Ave., LLC*, 18 NY3d 954; *Rossmann v Windermere Owners LLC*, 111 AD3d 429.) III. The court below erred in granting plaintiff tenants' declaratory judgment to continue their stabilized status more than 11 years after the J-51 tax abatement expiration. (*72A Realty Assoc. v Lucas*, 28 Misc 3d 585; *Matter of Bleecker*

St. Mgt. Co. v New York State Div. of Hous. & Community Renewal, 284 AD2d 174; *Noto v Bedford Apts. Co.*, 21 AD3d 762.) IV. This Court should decide, on this appeal, whether and how to apply the Housing Stability and Tenant Protection Act of 2019 to pending post-*Roberts v Tishman Speyer Props., L.P.* (13 NY3d 270 [2009]), J-51 overcharge cases. V. The Housing Stability and Tenant Protection Act of 2019 should not be applied in this case. (*Matter of Grimm v State of N.Y. Div. of Hous. & Community Renewal Off. of Rent Admin.*, 15 NY3d 358; *Matter of Boyd v New York State Div. of Hous. & Community Renewal*, 23 NY3d 999; *Stulz v 305 Riverside Corp.*, 150 AD3d 558; *American Economy Ins. Co. v State of New York*, 30 NY3d 136; *Eastern Enterprises v Apfel*, 524 US 498; *Matter of Replan Dev. v Department of Hous. Preserv. & Dev. of City of N.Y.*, 70 NY2d 451; 72A *Realty Assoc. v Lucas*, 28 Misc 3d 585; *Landgraf v USI Film Products*, 511 US 244; *Pension Benefit Guaranty Corporation v R. A. Gray & Co.*, 467 US 717; *Usery v Turner Elkhorn Mining Co.*, 428 US 1.) VI. This case presents a matter of first impression which is not affected by the Housing Stability and Tenant Protection Act of 2019 and should therefore be decided by this Court on this appeal. (7A *Realty Assoc. v Lucas*, 101 AD3d 401; *Altman v 285 W. Fourth LLC*, 31 NY3d 178.)

Sokolski & Zekaria, P.C., New York City (Robert E. Sokolski of counsel), for respondents in the third above-entitled action. I. The Appellate Division employed a fair and reasonable method to set the base date rent and apply the *Roberts v Tishman Speyer Props., L.P.* (13 NY3d 270 [2009]) case retroactively. (*Carr v Hoy*, 2 NY2d 185; *Riggs v Palmer*, 115 NY 506; 72A *Realty Assoc. v Lucas*, 101 AD3d 401; *Meyers v Four Thirty Realty*, 127 AD3d 501; *Gersten v 56 7th Ave. LLC*, 88 AD3d 189.) II. The lawful method to set the base date rent in this case is the New York State Division of Housing and Community Renewal default formula. (*Thornton v Baron*, 5 NY3d 175; *Conason v Megan Holding, LLC*, 25 NY3d 1; *Matter of 160 E. 84th St. Assoc. LLC v New York State Div. of Hous. & Community Renewal*, 160 AD3d 474; *Altschuler v Jobman 478/480, LLC*, 135 AD3d 439; *Raden v W 7879, LLC*, 164 AD3d 440; *Gersten v 56 7th Ave. LLC*, 88 AD3d 189.) III. Rent Stabilization Law of 1969 (Administrative Code of City of NY) § 26-517 (e) requires that the rent be frozen due to defendant's failure to file annual rent registration statements with New York State Division of Housing and Community Renewal. (*Jazilek v Abart Holdings, LLC*, 72 AD3d 529; *Matter of 425 3rd Ave. Realty Co.*

v New York State Div. of Hous. & Community Renewal, 29 AD3d 332; *Matter of Yorkroad Assoc. v New York State Div. of Hous. & Community Renewal*, 19 AD3d 217; *Bradbury v 342 W. 30th St. Corp.*, 84 AD3d 681; *Matter of Schiffren v Lawlor*, 101 AD3d 456; *Matter of 73 Warren St., LLC v State of N.Y. Div. of Hous. & Community Renewal*, 96 AD3d 524; *Scott v Rockaway Pratt, LLC*, 17 NY3d 739; *Matter of Cintron v Calogero*, 15 NY3d 347; *Thelma Realty Co. v Harvey*, 190 Misc 2d 303; *Matter of Napa Partners, LLC v Division of Hous. & Community Renewal*, 158 AD3d 632.) IV. Defendant's motion for summary judgment was properly denied by Supreme Court. (*72A Realty Assoc. v Lucas*, 101 AD3d 401; *Acosta v Fuentes*, 183 AD2d 483; *Pastoriza v State of New York*, 108 AD2d 605; *Millerton Agway Coop. v Briarcliff Farms*, 17 NY2d 57; *Sillman v Twentieth Century-Fox Film Corp.*, 3 NY2d 395; *Epstein v Scally*, 99 AD2d 713; *Weinberg v Johns-Manville Prods. Corp.*, 67 AD2d 640; *Insurance Co. of N. Am. v Gottlieb*, 186 AD2d 470; *Standard Textile Co. v National Equip. Rental*, 80 AD2d 911; *Matter of Sohn v New York State Div. of Hous. & Community Renewal*, 258 AD2d 384.) V. Defendant was not entitled to summary judgment dismissing plaintiffs' claim for treble damages. (*Matter of Obiora v New York State Div. of Hous. & Community Renewal*, 77 AD3d 755.) VI. Defendant was not entitled to summary judgment dismissing plaintiffs' claim for attorney's fees. (*Marsh v 300 W. 106th St. Corp.*, 95 AD3d 560; *Gersten v 56 7th Ave. LLC*, 88 AD3d 189; *Roberts v Tishman Speyer Props., L.P.*, 13 NY3d 270.) VII. The four year statute of limitations for rent overcharge does not set the legal rent. VIII. The Housing Stability and Tenant Protection Act of 2019 applies to the instant appeal. IX. Judicial economy and the need for consistent determinations strongly support the determination of issues involved in this appeal before this case is remanded. (*72A Realty Assoc. v Lucas*, 101 AD3d 401; *Matter of Grimm v State of N.Y. Div. of Hous. & Community Renewal Off. of Rent Admin.*, 15 NY3d 358; *Raden v W 7879, LLC*, 164 AD3d 440; *Taylor v 72A Realty Assoc., L.P.*, 151 AD3d 95; *Thornton v Baron*, 5 NY3d 175; *Roberts v Tishman Speyer Props., L.P.*, 13 NY3d 270; *Gersten v 56 7th Ave. LLC*, 88 AD3d 189; *Pension Benefit Guaranty Corporation v R. A. Gray & Co.*, 467 US 717; *Loomis v Civetta Corinno Constr. Corp.*, 54 NY2d 18; *Matter of Brinckerhoff v New York State Div. of Hous. & Community Renewal*, 275 AD2d 622.)

Newman Ferrara LLP, New York City (*Lucas A. Ferrara, Jarred I. Kassenoff* and *Roger Sachar* of counsel), for Stuart

Davidson-Tribbs and others, amici curiae in the third above-entitled action. I. The New York State Division of Housing and Community Renewal (DHCR) formula is arbitrary, capricious and unconstitutional. Moreover, it requires tenants to pay for DHCR's mistakes, and those of their landlord. (*Taylor v 72A Realty Assoc., L.P.*, 151 AD3d 95; *Matter of 215 W 88th St. Holdings LLC v New York State Div. of Hous. & Community Renewal*, 143 AD3d 652.) II. Rent overcharge claims should be calculated pursuant to the Housing Stability and Tenant Protection Act of 2019. (*EMA Realty, LLC v Leyva*, 64 Misc 3d 11; *Thornton v Baron*, 5 NY3d 175; *Meyer v 224 Lafayette St. Corp.*, 165 AD3d 598; *Kreisler v B-U Realty Corp.*, 164 AD3d 1117; *Altschuler v Jobman 478/480, LLC.*, 135 AD3d 439.) III. Appellants' constitutional concerns are makeweight. (*Montgomery v Daniels*, 38 NY2d 41; *Matter of Luthmann v Gulino*, 131 AD3d 636; *Dugan v London Terrace Gardens, L.P.*, 177 AD3d 1; *Landgraf v USI Film Products*, 511 US 244.)

Vernon & Ginsburg, LLP, New York City (*Darryl M. Vernon* and *Yoram Silagy* of counsel), for appellants in the fourth above-entitled action. I. The landlord should be held liable for an overcharge and the new rent should be established using various alternate rent formulas that establish a legal rent-stabilized rent for the apartment. (*Roberts v Tishman Speyer Props., L.P.*, 13 NY3d 270; *Gersten v 56 7th Ave. LLC*, 88 AD3d 189; *Matter of H.O. Realty Corp. v State of N.Y. Div. of Hous. & Community Renewal*, 46 AD3d 103; *Conason v Megan Holding, LLC*, 25 NY3d 1; *Scott v Rockaway Pratt, LLC*, 17 NY3d 739; *Matter of Grimm v State of N.Y. Div. of Hous. & Community Renewal Off. of Rent Admin.*, 15 NY3d 358; *Matter of Cintron v Calogero*, 15 NY3d 347; *Thornton v Baron*, 5 NY3d 175; *Taylor v 72A Realty Assoc., L.P.*, 151 AD3d 95; *Altschuler v Jobman 478/480, LLC.*, 135 AD3d 439.) II. Legal fees should be awarded to the tenants under either the current rent law or the old law. (*Conason v Megan Holding, LLC*, 25 NY3d 1; *Mohassel v Fenwick*, 5 NY3d 44; *Matter of 89 Christopher v Joy*, 35 NY2d 213; *Roberts v Tishman Speyer Props., L.P.*, 62 AD3d 71; *Thornton v Baron*, 5 NY3d 175.) III. The tenants should have been awarded treble damages under the old law or current rent law because the landlord's overcharge was willful. (*Matter of Hargrove v Division of Hous. & Community Renewal*, 244 AD2d 241; *Matter of Tockwotten Assoc. v New York State Div. of Hous. & Community Renewal*, 7 AD3d 453; *Roberts v Tishman Speyer Props., L.P.*, 13 NY3d 270.) IV. The landlord Belnord Partners, LLC is liable for the overcharge collected by

the prior owner, which is the defendant Extell Belnord, LLC. (*Matter of Gaines v New York State Div. of Hous. & Community Renewal*, 90 NY2d 545.)

Rosenberg & Estis, P.C., New York City (*Deborah E. Riegel, Blaine Z. Schwadel and Ethan R. Cohen* of counsel), for respondents in the fourth above-entitled action. I. The First Department order is a non-final order for purposes of this Court's jurisdiction and thus, this Court may only answer the certified question, which necessarily only concerns the law at the time. (*McMaster v Gould*, 240 NY 379; *Tyndall v New York Cent. & Hudson Riv. R.R. Co.*, 213 NY 691; *Burke v Crosson*, 85 NY2d 10; *Holt v County of Tioga*, 56 NY2d 414; *Sontag v Sontag*, 66 NY2d 554.) II. The First Department order was properly made under the law existing at the time such order was made. (*Direnna v Christensen*, 57 AD3d 408; *Mozes v Shanaman*, 21 AD3d 854, 6 NY3d 715; *Conason v Megan Holding, LLC*, 25 NY3d 1; *Matter of Boyd v New York State Div. of Hous. & Community Renewal*, 23 NY3d 999; *Todres v W7879, LLC*, 137 AD3d 597, 28 NY3d 910; *Stulz v 305 Riverside Corp.*, 150 AD3d 558, 30 NY3d 909; *Breen v 330 E. 50th Partners, L.P.*, 154 AD3d 583; *Altschuler v Jobman 478/480, LLC*, 135 AD3d 439; *Matter of Park v New York State Div. of Hous. & Community Renewal*, 150 AD3d 105; *Bogatin v Windermere Owners LLC*, 98 AD3d 896.) III. If the First Department order is deemed a final order, and this Court is not limited to review of the certified question, the Housing Stability and Tenant Protection Act of 2019 does not apply to revive appellants' dismissed, time-barred rent overcharge claim. (*Matter of Duell v Condon*, 84 NY2d 773; *Matter of Theurer [Trustees of Columbia Univ. in City of N.Y.—Ross]*, 59 AD2d 196; *Weissblum v Mostafzafan Found. of N.Y.*, 60 NY2d 637; *Matter of Rutherford Estates, Ltd. [Dorman Prods.]*, 301 NY 767; *Matter of Pechock v New York State Div. of Hous. & Community Renewal*, 253 AD2d 655; *Gletzer v Harris*, 12 NY3d 468; *Matter of Knight-Ridder Broadcasting v Greenberg*, 70 NY2d 151; *Desrosiers v Perry Ellis Menswear, LLC*, 30 NY3d 488; *Coane v American Distilling Co.*, 298 NY 197; *People v Schulz*, 67 NY2d 144.) IV. If this court applies the Housing Stability and Tenant Protection Act of 2019 (HSTPA) to revive and reinstate appellants' dismissed and time-barred rent overcharge claim, this matter must be remanded for respondents' to assert applicable defenses, perform any necessary discovery and establish the legal rent under the HSTPA.

Newman Ferrara LLP, New York City (*Lucas A. Ferrara*, Jarred I. Kassenoff and *Roger Sachar* of counsel), for Peter Gunther and others, amici curiae in the fourth above-entitled action. I. Under the Housing Stability and Tenant Protection Act of 2019, to establish a legal regulated rent for appellants' apartments, the New York State Division of Housing and Community Renewal's input is required. II. The New York State Division of Housing and Community Renewal's default formula is required to reset appellants' rent. III. Under long-standing practice, both the courts, and the New York State Division of Housing and Community Renewal, may utilize the default formula. (*Thornton v Baron*, 4 AD3d 258, 5 NY3d 175; *Meyer v 224 Lafayette St. Corp.*, 165 AD3d 598; *Kreiser v B-U Realty Corp.*, 164 AD3d 1117; *Altschuler v Jobman 478/480, LLC.*, 135 AD3d 439.)

OPINION OF THE COURT

Per Curiam.

In our tripartite form of government, the legislature determines the public policy of this State, recalibrating rights and changing course when it deems such alteration appropriate as it grapples with enduring problems and rises to meet new challenges facing our communities. It is the distinct role of the courts to interpret the laws to give effect to legislative intent while safeguarding the constitutional rights of impacted individuals. We fulfill both core functions in these four appeals, which present a common issue under the Rent Stabilization Law (RSL): what is the proper method for calculating the recoverable rent overcharge for New York City apartments that were improperly removed from rent stabilization during receipt of J-51 benefits prior to our 2009 decision in *Roberts v Tishman Speyer Props., L.P.* (13 NY3d 270 [2009]).

As explained below, when leave was granted in these cases, the RSL mandated that, absent fraud, an overcharge was to be calculated by using the rent charged on the date four years prior to filing of the overcharge complaint (the lookback period) as the "base date rent," adding any legal increases applicable during the four-year lookback period and computing the difference between that legal regulated rent and the rent actually charged to determine if the tenant was overcharged during the recovery period. In such cases, consideration of rental history predating the four-year lookback and statute of limitations period was prohibited. While the appeals to this Court were pend-

ing, the legislature—as is its prerogative—enacted the Housing Stability and Tenant Protection Act of 2019 (HSTPA), making sweeping changes to the RSL, the majority of which are not at issue in these appeals. As relevant here, part F of the HSTPA includes amendments that, among other things, extend the statute of limitations, alter the method for determining legal regulated rent for overcharge purposes and substantially expand the nature and scope of owner liability in rent overcharge cases (*see* L 2019, ch 36, § 1, part F). The tenants in these cases urge us to apply the new overcharge calculation provisions to these appeals that were pending at the time of the HSTPA’s enactment, some of which seek recovery of overcharges incurred more than a decade before the new legislation.

[1] The validity of part F is not in question here—but significant issues are raised concerning whether the presumption against retroactive application of statutes has been rebutted and, if so, whether application of certain amendments relating to overcharge calculation in part F to these appeals involving conduct that occurred years prior to its enactment comports with fundamental notions of substantial justice embodied in the Due Process Clause. Retroactive application of the overcharge calculation amendments would create or considerably enlarge owners’ financial liability for conduct that occurred, in some cases, many years or even decades before the HSTPA was enacted and for which the prior statutory scheme conferred on owners clear repose. Because such application of these amendments to past conduct would not comport with our retroactivity jurisprudence or the requirements of due process, we resolve these claims pursuant to the law in effect when the purported overcharges occurred. Notwithstanding the hyperbole employed by our dissenting colleagues, our analysis of the narrow legal issue presented by application of the overcharge calculation amendments to these appeals turns entirely on conventional and time-honored principles of judicial review. “We are, of course, mindful . . . of the responsibility . . . to defer to the Legislature in matters of policymaking,” but it is the role of the judicial branch “to interpret and safeguard constitutional rights and review challenged acts of our co-equal branches of government—not in order to make policy but in order to assure the protection of constitutional rights” (*Campaign for Fiscal Equity v State of New York*, 100 NY2d 893, 925, 931 [2003]). As to the

HSTPA, today we fulfill this quintessential judicial function in holding that a limited suite of enforcement provisions may not be applied retroactively and opine in no way on the vast majority of that legislation or its prospective application.

These rent overcharge cases arose in the wake of our 2009 decision in *Roberts*, interpreting RSL provisions relating to New York City’s J-51 program, which offered tax benefits to building owners who made capital improvements to their residential properties. Buildings electing to receive J-51 benefits become subject to the rent stabilization scheme (RSL [Administrative Code of City of NY] § 11-243 [b], [i] [1]; [t])). From 1993 until the enactment of the HSTPA in 2019, the RSL contained “luxury deregulation” provisions, permitting an owner of a stabilized unit to deregulate if the rent exceeded a statutory threshold and (1) the tenant vacated or (2) the tenants’ combined income exceeded a statutory threshold (former RSL §§ 26-504.1, 26-504.2). As early as 1996, first in an opinion letter and later promulgated as an agency regulation, the Division of Housing and Community Renewal (DHCR)¹ took the position that statutory language precluding luxury deregulation of apartments during receipt of J-51 benefits did not apply to buildings that were already subject to the RSL prior to receipt of those benefits (*see Roberts*, 13 NY3d at 281-282; former Rent Stabilization Code [RSC] [9 NYCRR] § 2520.11 [r] [5]; [s] [2])). In *Roberts*, this Court rejected DHCR’s long-standing statutory interpretation and concluded that luxury deregulation was unavailable in any building during receipt of J-51 benefits (13 NY3d at 285-287). In 2011, the Appellate Division held that *Roberts* applied retroactively (*Gersten v 56 7th Ave. LLC*, 88 AD3d 189, 198 [1st Dept 2011], *appeal withdrawn* 18 NY3d 954 [2012]).

Each of these cases involves an apartment that was treated as deregulated consistent with then-prevailing DHCR regulations and guidance before this Court rejected that guidance in *Roberts*. Indeed, the tenants took occupancy years prior to *Roberts* following a deregulation later revealed by that decision to have been improper, believing they were renting non-stabilized apartments at market rents. None of these tenants promptly challenged the deregulated status of their apartments and years—in some cases, over a decade—passed during which

1. DHCR is the state agency tasked with administering the RSL and the J-51 program.

the tenants and their landlords renewed and renegotiated free-market leases.² After we decided *Roberts*, these tenants commenced overcharge claims under the RSL. In *Regina Metro.*, the tenants filed an administrative complaint with DHCR and, in the remaining three cases, the tenants commenced actions in Supreme Court. The central issue below in each of these cases—sent to this Court by leave of the Appellate Division before enactment of the HSTPA—was how to calculate the “legal regulated rent” in order to determine whether a recoverable overcharge occurred and its amount.³ Before we address the tenants’ request that we resolve these appeals under the new law, we must determine the parties’ rights under the statutory scheme in effect when the overcharges occurred.

I.

In an overcharge claim, the tenant seeks monetary damages for excessive rent paid during the recovery period.⁴ The method

2. In *Matter of Regina Metro. Co., LLC v New York State Div. of Hous. & Community Renewal* (164 AD3d 420 [1st Dept 2018]), the tenants took occupancy in 2005 at a market rent of \$5,195 per month, filing this overcharge claim in 2009; in *Raden v W 7879, LLC* (164 AD3d 440 [1st Dept 2018]), the tenants took occupancy in 1995 at a market rent of \$2,350 per month, commencing this action in 2010; in *Taylor v 72A Realty Assoc., L.P.* (151 AD3d 95 [1st Dept 2017]), the tenants took occupancy in 2000 at a market rent of \$2,200 per month, initiating suit in 2014; and in *Reich v Belnord Partners, LLC* (168 AD3d 482 [1st Dept 2019]), the tenants took occupancy in 2005 at a market rent of \$18,500 per month (plus a \$350 per month electricity charge), bringing the overcharge claim in 2016.

3. In *Regina Metro.*, DHCR calculated the legal regulated rent by reconstructing what the rent would have been on the base date had the apartment never been deregulated, but the Appellate Division rejected that method as contrary to the evidentiary four-year “lookback” rule barring review of rental history outside the four years prior to the imposition of the overcharge claim (*see* 164 AD3d at 422, 424-426). *Raden* and *Reich* were decided consistent with the Appellate Division’s approach in *Regina Metro.* In *Raden*, the Appellate Division affirmed a \$448.50 judgment for overcharge damages calculated by applying the four-year lookback rule (*see* 164 AD3d at 441-442) and, in *Reich*, the Appellate Division affirmed an order dismissing the overcharge claim, where the owners’ assertion that application of the four-year lookback rule would result in no recoverable damages during the four-year limitations period was unchallenged (*see* 168 AD3d at 482). However, in *Taylor*, the Appellate Division concluded that the reconstruction method—which it later rejected in *Regina Metro.*—was the proper method for determining an overcharge claim even in the absence of fraud, denying summary judgment to the owner, which argued that if the court applied the four-year lookback rule, there was no overcharge (*see* 151 AD3d at 105-106).

4. There is significant disagreement between us and the dissent concerning the pre-HSTPA law. Critically, there is a distinction between an overcharge claim and a challenge to the deregulated status of an apartment, al-

(n. cont’d)

for calculating the amount of recoverable damages—i.e., the overcharge—is governed by the RSL. We therefore examine the text of the relevant statutes, as the best indicator of legislative intent (*Majewski v Broadalbin-Perth Cent. School Dist.*, 91 NY2d 577, 583 [1998]), mindful that legislative history may also be considered as an aid to interpretation (*Altman v 285 W. Fourth LLC*, 31 NY3d 178, 185 [2018]; see *Riley v County of Broome*, 95 NY2d 455, 463-464 [2000]). When a statute is part of a broader legislative scheme, we construe its language “in context and in a manner that harmonizes the related provisions and renders them compatible” (*Matter of M.B.*, 6 NY3d 437, 447 [2006] [internal punctuation and citation omitted]).

The rules governing calculation of an overcharge are found in the provisions of the RSL addressing enforcement and the statute of limitations for overcharge claims (RSL § 26-516; CPLR 213-a). Before the enactment of the HSTPA, overcharge claims were subject to a four-year statute of limitations that precluded the recovery of overcharges incurred more than four years preceding the imposition of a claim (former RSL § 26-516 [a] [2]; former CPLR 213-a; see *Conason v Megan Holding, LLC*, 25 NY3d 1 [2015]). The statutes further directed that “no determination of an overcharge and no award or calculation of an award of the amount of an overcharge may be based upon an overcharge having occurred more than four years before”

though the two types of claims are repeatedly conflated by the dissent, which confuses the overcharge claims presented here with the sole issue presented in *Kuzmich v 50 Murray St. Acquisition LLC* (34 NY3d 84 [2019]), namely whether plaintiffs were entitled to a declaration that their apartments were subject to rent stabilization. Despite the suggestion to the contrary, there has long been a statute of limitations restricting recovery of monetary damages in overcharge claims and this remains true under the HSTPA (see CPLR 213-a [found in CPLR article 2, entitled “Limitations of Time”]). Because the apartments in each of these cases were returned to rent stabilization following our decision in *Roberts*, the focus here is the tenants’ entitlement to overcharge damages; a separate declaratory judgment claim challenging the status of the apartment is before us only in *Taylor*. While an overcharge may arise from an improper deregulation, this is by no means the exclusive or even the most common explanation for the collection of excessive rent—overcharge claims are routinely brought to challenge the rent associated with apartments that have never been destabilized. Nor is there a basis for the dissent’s view that the overcharge calculation amendments in part F were intended to specifically address *Roberts* cases; neither the legislation nor its history supports such a conclusion.

initiation of the claim (former RSL § 26-516 [a] [2]; *see* former CPLR 213-a).⁵

A provision added as part of the Rent Regulation Reform Act of 1997 (1997 RRRA) expressly “preclude[d] examination of the rental history of the housing accommodation prior to the four-year period preceding” commencement of the overcharge action (former RSL § 26-516 [a] [2], as amended by L 1997, ch 116, § 33; *see* former CPLR 213-a, as amended by L 1997, ch 116, § 34)—language that “clarified and reinforced the four-year statute of limitations” (*Thornton v Baron*, 5 NY3d 175, 180 [2005]). This categorical temporal limitation on reviewable records—the “lookback” rule—was complemented by a record retention provision directing that certain owners “shall not be required to maintain or produce any records relating to rentals of such accommodation for more than four years prior to the most recent registration or annual statement for such accommodation” (former RSL § 26-516 [g]; *see* RSC § 2523.7 [b] [“An owner shall not be required to produce any rent records in connection with (overcharge) proceedings . . . relating to a period that is prior to the base date”]). The record retention provision permitted owners to dispose of records outside the four-year period (former RSL § 26-516 [g]; *see Matter of Cintron v Calogero*, 15 NY3d 347, 354 [2010]; *Thornton*, 5 NY3d at 181), further evincing the legislature’s intent that records predating the recovery period not be used to calculate overcharges. Together, the statute of limitations, lookback provision and record retention rules formed an integrated scheme for calculating overcharges based on a closed universe of records pertaining only to the apartment’s rental history in the four years preceding the filing of the complaint.

Consistent with the lookback rule, the enforcement provisions provided that, except for certain claims filed shortly after initial registration of a unit, “the legal regulated rent for purposes of determining an overcharge, shall be the rent indicated in the annual registration statement filed four years prior to the most recent registration statement,” i.e., the base date rent, plus “any subsequent lawful increases and adjustments” (former RSL § 26-516 [a] [i]). Owners of rent-stabilized

5. The RSL also limited the imposition of treble damages—recoverable unless the owner established by a preponderance of the evidence that the overcharge was not willful—to the last two years of overcharges preceding filing of the complaint (former RSL § 26-516 [a] [2] [i]). Treble damages could not be imposed on overcharges occurring prior to April 1984 (*id.*).

apartments are generally required to file annual rent registration statements with DHCR (RSL § 26-517 [f]), and where registration statements were filed during the lookback period, the base date rent was discerned from those statements. But owners are no longer required to file such statements once the apartment has been deregulated. Thus, where the apartment had been deregulated more than four years prior to the filing of an overcharge complaint, and the tenant failed to promptly challenge the deregulated status of the apartment, there might be no rent registration on file for the base date or, indeed, any time within the four-year lookback period.

This scenario is addressed in DHCR's regulations, which harmonized RSL § 26-516 (a) (i) with the four-year lookback restriction. With exceptions not relevant here, the regulations provided that "[t]he legal regulated rent for purposes of determining an overcharge shall be deemed to be the rent *charged on the base date*, plus in each case any subsequent lawful increases and adjustments" (RSC § 2526.1 [a] [3] [i] [emphasis added]; see also *id.* § 2520.6 [e]). Under the pre-HSTPA law, the base date rent was therefore the rent actually charged on the base date—i.e., four years prior to the overcharge complaint—even if no registration statement had been filed reflecting that rent.

In a series of cases, we confirmed that reviewing rental history outside the four-year lookback period was inappropriate for purposes of calculating an overcharge, but we recognized a limited common-law exception to the otherwise-categorical evidentiary bar, permitting tenants to use such evidence only to prove that the owner engaged in a fraudulent scheme to deregulate the apartment. In *Thornton*, the owner engaged in an egregious, fraudulent scheme to remove apartments from stabilization by conspiring with tenants, who shared in the illegal profits, by falsely agreeing the apartment was not being used as a primary residence (and utilizing the courts as a tool to obtain false declarations to that effect) to rent at market rates and then sublease at even higher rates (5 NY3d at 178-179). For overcharge calculation purposes, the Court acknowledged the preclusive effect of the four-year lookback rule, deeming the last regulated rent charged before that period to be "of no relevance" (*id.* at 180). We held that the legal rent should be based on a "default formula," otherwise reserved for cases where there are no reliable rent records, setting the base date rent as "the lowest rent charged for a rent-stabilized apart-

ment with the same number of rooms in the same building on the relevant base date” (*id.* at 179-181 and n 1).

We elaborated on this fraud exception to the lookback rule in *Matter of Grimm v State of N.Y. Div. of Hous. & Community Renewal Off. of Rent Admin.*, holding that where a tenant had made a “colorable claim of fraud” by identifying “substantial indicia,” i.e., “evidence,” of “a landlord’s fraudulent deregulation scheme to remove an apartment from the protections of rent stabilization,” that apartment’s “rental history may be examined for the limited purpose of determining whether a fraudulent scheme to destabilize the apartment tainted the reliability of the rent on the base date” (15 NY3d 358, 366-367 [2010]). Consistent with *Thornton*, we directed that, if review of the rental history revealed such a fraudulent scheme, the default formula should be used to calculate any resulting overcharge (*id.* at 367). We confirmed this procedure in *Conason*, where the owner created a fictitious tenant and fictitious renovation to justify a rent increase (25 NY3d at 9, 16-17). Our holding in *Matter of Boyd v New York State Div. of Hous. & Community Renewal* (23 NY3d 999 [2014]), rejecting a challenge to DHCR’s use of the rent actually charged four years prior to filing of the claim to calculate an overcharge in the absence of fraud, provided further clarification that the four-year lookback rule generally precluded review of rental history outside that period.

The rule that emerges from our precedent is that, under the prior law, review of rental history outside the four-year lookback period was permitted only in the limited category of cases where the tenant produced evidence of a fraudulent scheme to deregulate and, even then, solely to ascertain whether fraud occurred—not to furnish evidence for calculation of the base date rent or permit recovery for years of overcharges barred by the statute of limitations (*Grimm*, 15 NY3d at 367).⁶ In fraud cases, this Court sanctioned use of the default formula to set the base date rent. Otherwise, for overcharge calculation

6. Our decision in *Cintron* did not authorize consideration of rental history outside the four-year lookback period. Rather, we held that rent reduction orders issued prior to that period that remained in effect during the recovery period were part of the reviewable four years of rental history (15 NY3d at 356; see also *Scott v Rockaway Pratt, LLC*, 17 NY3d 739 [2011]). Such consideration did not contradict the record retention limitations because “DHCR can take notice of its own orders and the rent registrations it maintains to ascertain the rent established by a rent reduction order without imposing onerous obligations on landlords” (*Cintron*, 15 NY3d at 355-356).

purposes, the base date rent was the rent actually charged on the base date (four years prior to initiation of the claim) and overcharges were to be calculated by adding the rent increases legally available to the owner under the RSL during the four-year recovery period. Tenants were therefore entitled to damages reflecting only the increases collected during that period that exceeded legal limits.

In the wake of *Roberts*, courts and DHCR grappled with a surge of claims filed by tenants alleging overcharges arising from the improper deregulation of their apartments years (in some cases more than a decade) before—claims like those now before this Court. For example, the plaintiffs in *Raden*, who took occupancy of their apartment in 1995 at a market rent, commenced this action in 2010 seeking recovery of overcharges based on a reconstruction of the rent they should have been charged had the apartment never been deregulated. Likewise, in *Taylor*, similar relief was sought in an overcharge claim filed in 2014 brought by a tenant who took occupancy in 2000. In stark contrast to *Thornton*, *Grimm* and *Conason*, in which tenants came forward with evidence of fraud,⁷ in these *Roberts* cases, the owners removed apartments from stabilization consistent with agency guidance. Deregulation of the apartments during receipt of J-51 benefits was not based on a fraudulent misstatement of fact but on a misinterpretation of the law—significantly, one that DHCR itself adopted and included in its regulations. As we observed in *Borden v 400 E. 55th St. Assoc., L.P.*, a finding of willfulness “is generally not applicable to cases arising in the aftermath of *Roberts*” (24 NY3d 382, 398 [2014]). Because conduct cannot be fraudulent without being willful, it follows that the fraud exception to the lookback rule is generally inapplicable to *Roberts* overcharge claims.⁸

7. Fraud consists of “evidence [of] a representation of material fact, falsity, scienter, reliance and injury” (*Vermeer Owners v Guterman*, 78 NY2d 1114, 1116 [1991]; see e.g. *Ambac Assur. Corp. v Countrywide Home Loans, Inc.*, 31 NY3d 569 [2018]; *Pasternack v Laboratory Corp. of Am. Holdings*, 27 NY3d 817, 827 [2016]). In this context, willfulness means “consciously and knowingly charg[ing] . . . improper rent” (*Matter of Lavanant v State Div. of Hous. & Community Renewal*, 148 AD2d 185, 190 [1st Dept 1989]; see *Matter of Old Republic Life Ins. Co. v Thacher*, 12 NY2d 48, 56 [1962] [interpreting “willful” in a regulatory context to mean “intentional and deliberate”]).

8. Contrary to the *Raden* tenants’ assertion, the owners in that case established that the deregulation was not fraudulent or willful because it was consistent with DHCR’s guidance. That they deregulated the apartment in 1995—prior to the formal guidance DHCR issued the following year that

(n. cont’d)

After *Roberts* there was understandable confusion regarding how the decision should be implemented, including whether *Roberts* should be given retroactive effect and, if so, how that should be accomplished. In overcharge cases where tenants had not challenged the status of their apartments within four years of deregulation, including these appeals, the improper deregulation predated the lookback period and, thus, the rent charged on the “base date” was a free market rent that had not been registered. Tenants who challenged an improper deregulation and initiated an overcharge claim within four years would be entitled to monetary damages encompassing the rent increase that occurred when the apartment was moved to the free market. But tenants who commenced a claim more than four years later and could not show fraud would be entitled, by virtue of the interrelated four-year statute of limitations and lookback rule, to recover only the increases added to the market base date rent that were over the legal limits during the recovery period. This rule was applied properly in many cases (see *Reich*, 168 AD3d 482; *Raden*, 164 AD3d at 441; *Stulz v 305 Riverside Corp.*, 150 AD3d 558 [1st Dept 2017], *lv denied* 30 NY3d 909 [2018]; see also *Todres v W7879, LLC*, 137 AD3d 597 [1st Dept 2016], *lv denied* 28 NY3d 910 [2016]). Yet, in some *Roberts* cases, DHCR and the lower courts deviated from the four-year limitations period and lookback rule in the absence of fraud.

The decision in *72A Realty Assoc. v Lucas* (101 AD3d 401, 402 [1st Dept 2012]), which preceded our analysis in *Boyd*, represents such a deviation. In *Lucas*, the Appellate Division held that the four-year lookback rule should not be applied, even though the court did not find a colorable claim of fraud, in part because the rent charged four years prior to the complaint was a free market rent following improper deregulation. Citing *Lucas*, DHCR (in *Regina Metro.*) and the Appellate Division (in *Taylor*) determined that, even in the absence of fraud, an overcharge in a *Roberts* case should not be calculated in accordance with the four-year lookback rule but, instead, by reconstructing what the legal regulated rent would have been on the base

such deregulation was proper—does not constitute evidence of a fraudulent scheme to deregulate. Rather, during a time of uncertainty concerning the scope of the J-51 benefit scheme, the owners correctly anticipated the interpretation DHCR would ultimately adopt concerning the luxury deregulation provisions. Thus, the affirmed finding of fact that there was neither willfulness nor fraud is supported by the record and beyond our review.

date if the apartment had not been improperly deregulated. DHCR and the *Taylor* court determined that this reconstruction should be conducted by identifying the last legal regulated rent before improper deregulation—even though the apartment was deregulated more than four years prior to imposition of the claim—and applying all permissible rent increases between the date of that regulated rent and the base date (*Regina Metro.*, 164 AD3d at 422-423; *Taylor*, 151 AD3d at 105-106).

The reconstruction method, applied by DHCR in *Regina Metro.* and approved by the *Taylor* court, violated the pre-HSTPA law by requiring review of rental history outside the four-year limitations and lookback period in the absence of fraud.⁹ The tenants' theory that *Thornton*, *Grimm* and *Conason* preclude adoption of a market base date rent is mistaken. Although in those cases we characterized base date rents resulting from fraud as "illegal" or "unreliable," we never suggested that an alternative method of setting the base date rent could apply to a less blameworthy owner where not authorized by the statutory scheme. Indeed, use of the reconstruction method violated the legislative mandate that "no award or calculation of an award of the amount of an overcharge may be based upon an overcharge having occurred more than four years before" (former RSL § 26-516 [a] [2]; see former CPLR 213-a). Moreover, it utilized rental history in a manner that this Court refused to sanction even in fraud cases, in which we authorized consideration of rental history outside the lookback period only for the "limited purpose" of determining whether a fraudulent scheme existed (*Grimm*, 15 NY3d at 367).

We are also unpersuaded by the tenants' arguments that use of a default formula or the other alternative approaches to

9. We also reject the tenants' arguments in *Taylor* and *Reich* that the rent should have been frozen under RSL § 26-517 (e), which provides that "[t]he failure to file a proper and timely . . . rent registration statement" precludes an owner from collecting rent increases until a registration is filed. To the extent this provision is relevant to overcharge cases, the owners in *Taylor* and *Reich* filed registration statements for the years covered by the four-year recovery period and lookback rule (records prior to that period cannot be reviewed absent fraud). The fact that, in *Taylor*, these registration statements were filed retroactively is addressed by a separate statutory surcharge for late registration. In any event, rent freezing is inapplicable in *Roberts* cases where the failure to timely register resulted directly from DHCR's endorsement of a misunderstanding of the law (see *Taylor*, 151 AD3d at 106; *Matter of Park v New York State Div. of Hous. & Community Renewal*, 150 AD3d 105, 113 [1st Dept 2017]).

determining base date rent¹⁰ would comply with pre-HSTPA law if applied to these cases. Even if employed in a manner compatible with the lookback rule, nothing in the RSL indicates that such methods apply here. While the alternative methods proposed by the tenants are reflected in the regulations, they are available only “[w]here the rent charged on the base date cannot be established” (RSC § 2526.1 [a] [3] [ii])—a situation not present in any of these *Roberts* cases.¹¹

The tenants and DHCR urge several bases for creating an exception to the standard pre-HSTPA overcharge calculation method that would enable courts to use these alternative approaches, but their arguments do not withstand scrutiny. First, an exception predicated on the fact that the base date rent was higher than what would have been permitted under the RSL for a stabilized apartment would swallow the four-year lookback rule. In every overcharge case, the rent charged was, by definition, illegally inflated—otherwise there would be no overcharge. Prior to the HSTPA, nothing in the rent stabilization scheme suggested that where an unrecoverable overcharge oc-

10. In some *Roberts* cases, lower courts approved use of the “sampling” method, authorized in the RSC for cases where the rent charged on the base date is unknown, in which DHCR sets the base date rent by averaging the rents of other similar stabilized apartments charged on the base date (see e.g. *Matter of 160 E. 84th St. Assoc. LLC v New York State Div. of Hous. & Community Renewal*, 160 AD3d 474 [1st Dept 2018] [reasoning that the market base date rent could not be accepted under *Lucas* and that a default formula was inappropriately punitive in a case without fraud]). Likewise, in *Regina Metro.*, the Appellate Division rejected the reconstruction approach applied by DHCR as violative of the four-year lookback rule but indicated in dicta that, on remittal, sampling could be within DHCR’s discretion (164 AD3d at 428). As we explain, that suggestion was mistaken.

11. In that scenario, section 2526.1 (a) (3) (ii) directs that “the rent shall be determined by the DHCR in accordance with section 2522.6,” which sets forth a framework for setting the legal regulated rent where

- “(i) the rent charged on the base date cannot be determined; or
- “(ii) a full rental history from the base date is not provided; or
- “(iii) the base date rent is the product of a fraudulent scheme to deregulate the apartment; or
- “(iv) a rental practice proscribed under section 2525.3(b), (c) and (d) of this Title [which concern conditional rentals designed to deprive tenants of the protections of rent stabilization] has been committed” (RSC § 2522.6 [b] [2]).

In such a case, DHCR sets the legal regulated rent using the lowest number resulting from four formulas, which include the sampling method (*id.* § 2522.6 [b] [3]). These RSC provisions are inapplicable by their terms in an overcharge case, such as a *Roberts* case, where the base date rent is the result of a mere mistaken overcharge (not fraud) and the rent charged on the base date is known.

curred before the base date, thus resulting in a higher base date rent, the four-year lookback rule operated differently. To the contrary, the limitations provisions—in order to promote repose—precluded consideration of overcharges prior to the recovery period (former RSL § 26-516 [a] [2]; former CPLR 213-a), and it is clear from *Boyd* that use of a potentially inflated base date rent, flowing from an overcharge predating the limitations and lookback period, was proper in the absence of fraud. Likewise, no exception is justified by the fact that the inflated base date rent in *Roberts* cases resulted from improper deregulation, as opposed to an improperly high increase to a stabilized rent. The RSL makes no such distinction, and there is no indication that, under the pre-HSTPA law, an overcharge resulting from improper (but non-fraudulent) luxury deregulation warranted anything but the application of the standard lookback provisions.

Nor is it necessary to recognize an additional common-law exception that would create or increase the amount of overcharge damages in order to give proper effect to *Roberts*. Civil liability is always bounded by the public policy of repose embodied in statutes of limitations (see *Ajdler v Province of Mendoza*, 33 NY3d 120, 130 n 6 [2019] [(T)he (s)tatute of (l)imitations . . . expresses a societal interest or public policy of giving repose to human affairs"], quoting *John J. Kassner & Co. v City of New York*, 46 NY2d 544, 550 [1979]). Overcharge liability under the RSL is no different. That *Roberts* revealed particular conduct to be illegal does not mean that tenants must be able to recover a certain measure of monetary damages for associated rent increases despite their failure to seek recovery within the limitations and lookback periods. Critically, our decision in *Roberts* has led to the return of many apartments to the rent stabilization scheme, including those at issue in these appeals; one amicus estimates the number of *Roberts* apartments at upwards of 50,000. While the statute of limitations and lookback period preclude tenants in those apartments from recovering certain damages they could have recovered if their claims had been initiated earlier, as a result of *Roberts* they may now enjoy rent stabilization protection.

Indeed, in *Taylor*, regardless of any entitlement to monetary damages, the tenants' request for a declaration that the apartment was rent-stabilized at the time of their complaint was properly granted. RSL § 26-504 (c) provides pathways by which an apartment in a building receiving J-51 benefits may be

deregulated at the conclusion of the benefit period.¹² Particularly relevant here, section 26-504 (c) states that

“if such dwelling unit would have been subject to [the RSL or the Emergency Tenant Protection Act (ETPA)] in the absence of [J-51 benefits or certain other programs], such dwelling unit shall, upon the expiration of such benefits, continue to be subject to [the RSL or ETPA] to the same extent and in the same manner as if [section 26-504 (c)] had never applied thereto.”

Thus, in buildings affected by *Roberts*, all of which were subject to the RSL regardless of J-51 benefits, apartments revert to their original rent-stabilized status after expiration of J-51 benefits.¹³

We therefore decline to create a new exception to the lookback rule and instead clarify that, under pre-HSTPA law, the four-year lookback rule and standard method of calculating legal regulated rent govern in *Roberts* overcharge cases, absent fraud. Applying the correct interpretation of the pre-HSTPA law to the present cases, in *Regina Metro.* the Appellate Division properly annulled DHCR’s overcharge determination, which violated the lookback rule by relying on a reconstructed

12. Apartments subject to the RSL solely due to receipt of J-51 benefits generally are deregulated upon the first vacancy after expiration of benefits or at the moment of expiration, if every lease and renewal issued to the tenant in occupancy included a notice stating that the unit would be “subject to deregulation upon the expiration” of benefits and the approximate date of expiration (RSL § 26-504 [c]).

13. This is not to say that tenants of those apartments necessarily are entitled to rent stabilization for the duration of their tenancy. Under the law in place before the HSTPA, the RSL contained luxury deregulation provisions, one of which permitted deregulation of occupied apartments where both the rent and the occupants’ combined income exceeded enumerated levels (see former RSL §§ 26-504.1, 26-504.3). Nothing in the statutory scheme would have precluded the owner from pursuing luxury deregulation after J-51 benefits expired (see generally *Park*, 150 AD3d at 112). The fact that the owner had not provided notices advising the tenants of its participation in the J-51 program is irrelevant because the clause in RSL § 26-504 (c) relating to buildings subject to the RSL regardless of J-51 benefits does not contain the notice requirement applicable to buildings subject to rent stabilization only by virtue of receipt of J-51 benefits (see *Lucas*, 101 AD3d at 402 and n). Thus, the analysis in *Lucas*, automatically affording rent-stabilized status for the duration of the tenancy, should not be followed when determining rent-stabilized status under pre-HSTPA law. While the apartment in *Taylor* was properly declared rent-stabilized as of the time of the complaint, the apartment was thereafter susceptible to luxury deregulation under the pre-HSTPA law.

rent, despite finding that the overcharge was not willful (and there was no colorable fraud claim). In *Raden*, the de minimis overcharge was properly calculated using the standard method, accepting the rent charged on the base date as the base date rent and adding legal increases. In *Reich*, the complaint was properly dismissed based on the tenants' failure to allege a colorable claim of fraud and the absence of allegations indicating that, applying the standard overcharge calculation method, there was an overcharge during the recovery period. And in *Taylor*, modification of the Appellate Division order is necessary to grant summary judgment dismissing the overcharge claim based on the owner's un rebutted evidence that there were no overcharges using the standard calculation method.

II.

Normally, our analysis would end here. But the HSTPA, enacted in June 2019 and consisting of 15 parts, substantially revised New York's rent stabilization scheme by, among other things, eliminating luxury deregulation, amending mechanisms for rent increases and providing for the expansion of regulation to new geographic areas (L 2019, ch 36). Here, although the alleged overcharges occurred years in the past, well before the HSTPA was enacted, the tenants ask us to apply certain amendments revising the enforcement provisions of the RSL with respect to overcharge claims, all contained in part F of the legislation.¹⁴ Although we generally do not review issues raised for the first time on appeal, we may consider the ap-

14. We disagree with the suggestion in the dissent that it is premature or inappropriate to address the issues posed by retroactive application of part F of the HSTPA. Soon after the HSTPA was enacted, parties in *Regina Metro.* and *Taylor* sent letters pursuant to Rules of the Court of Appeals (22 NYCRR) § 500.6 advising the Court of the new legislation; the tenants asserted that part F of the HSTPA applied to these appeals and the owners contended that the legislation was not intended to be applied retroactively and that such application would be unconstitutional. The impact of the HSTPA was also raised by DHCR in its reply brief in *Regina Metro.*, with the agency noting, among other things, that the owner's arguments were foreclosed by the part F amendments. Multiple parties requested an additional opportunity for supplemental briefing in connection with these issues. The parties in *Reich* raised the applicability of the HSTPA and associated retroactivity and constitutional issues in their briefs, all filed after the enactment of the HSTPA. The Court provided the parties in all four cases an opportunity, if they so desired, to submit supplemental briefing on the issues of whether the HSTPA should be applied to these pending appeals, as well as "the propriety and desirability of this Court determining such questions in the first instance on this appeal," resulting in the filing of supplemental letter briefs in each

(n. cont'd)

plicability of this new legislation enacted while these appeals were pending in this Court, “which could not have been raised below as those proceedings predated the amendment” (*Matter of Gleason [Michael Vee, Ltd.]*, 96 NY2d 117, 121 n [2001]).¹⁵ In the context of legislation as significant as the HSTPA, the question we address here is relatively narrow—we have no occasion to address the prospective application of any portion of the HSTPA, including part F. We address the new legislation only to determine whether certain part F amendments discussed below must be applied retroactively to past conduct—and therefore govern these appeals, as urged by the tenants. We conclude that the overcharge calculation amendments cannot be applied retroactively to overcharges that occurred prior to their enactment.

Part F extended the four-year limitations period for overcharge claims to six years, provided that an overcharge complaint “may be filed . . . at any time” and eliminated the provision—present, in substance, since 1983—stating that “no determination of an overcharge and no award or calculation of an award of the amount of an overcharge may be based upon an overcharge having occurred more than four years before the

case. All but one of the parties that addressed the latter question urged the Court to resolve these open issues without delay, noting there would be no benefit in remittal in light of the recent Appellate Division decision holding that relevant HSTPA part F amendments apply retroactively to pending cases (see *Dugan v London Terrace Gardens, L.P.*, 177 AD3d 1 [1st Dept 2019])—precedent that would be binding on Supreme Court. The parties further cited concerns about incurring unnecessary additional delay and litigation costs in cases that have been pending for years. Under the circumstances, it is appropriate to address the statutory interpretation and constitutional issues, which were promptly raised by the parties, have been briefed and are presented for our review.

15. That three of these appeals (but not *Raden*) come to us as certified questions from non-final orders does not divest us of jurisdiction over the impact of recently-enacted legislation. *McMaster v Gould* (240 NY 379 [1925]), in which we declined to consider the applicability of a statute enacted after the Appellate Division certified a question to this Court from a non-final order, is inapposite. The question in that case was certified under a largely abandoned practice of framing the certified question with language specifically referencing the particular legal issue presented below in a manner that cabined our review to the law that existed at that time. The contemporary practice of broadly certifying the question whether the Appellate Division order was properly made gives this Court the flexibility to address any issue properly presented to us. In any event, the Appellate Division order in *Raden* is final, rendering the certified question—and any limitation that might be imposed by its framing—irrelevant to our resolution of that appeal, which presents the same issues relating to retroactive application of portions of the HSTPA.

complaint is filed” (RSL § 26-516 [a] [2]; *see* CPLR 213-a). It also entirely abolished the lookback rule in favor of new requirements: the base date rent is no longer defined as the rent charged or reflected in a registration statement on the base date but that reflected in the “most recent reliable” registration statement filed six “or more” years before the most recent registration (RSL § 26-516 [a] [i]). Examination of rent history that predates the period covered by the former lookback rule is no longer precluded. Instead, DHCR and courts are now required to “consider all available rent history which is reasonably necessary” to investigate overcharge claims and determine legal regulated rent, regardless of the vintage of that history and including records kept by owners, tenants and agencies (*id.* § 26-516 [a] [i]; [h]). Part F likewise lengthened the four-year record retention period to six years and provides that an owner’s “election not to maintain records” does not limit the authority of DHCR or a court to examine the rental history further (*id.* § 26-516 [g]). Whereas the RSL previously provided for only two years of treble damages for willful overcharges, treble damages are now recoverable for the entire six-year limitations period (*id.* § 26-516 [a] [2]).¹⁶

[2] The tenants argue that these amendments should be applied to these appeals based on the provision stating that part F “shall take effect immediately and shall apply to any claims pending or filed on and after such date” (*see* L 2019, ch 36, § 1, part F, § 7). The owners argue that the effective date language does not evince a clear legislative intent to apply the new overcharge calculation provisions retroactively, particularly to cases no longer pending in DHCR or the trial court and further contend, in any event, that retroactive application of the new overcharge calculation methodology to these appeals would violate due process protections in the State and Federal Constitutions. We must first assess whether applying these amendments to overcharges that occurred before the HSTPA’s

16. The HSTPA also makes it harder for owners to prove a lack of willfulness, by deleting from RSL § 26-516 (a) a provision stating that treble damages could not be imposed “based solely on said owner’s failure to file a timely or proper initial or annual rent registration statement” and adding that, after an overcharge complaint has been filed and served on an owner, the voluntary adjustment of rent or tender of an overcharge refund shall not be considered as evidence of a lack of willfulness.

enactment truly implicates the concerns historically associated with retroactive application of new legislation.

In *Landgraf v USI Film Products*, the Supreme Court articulated a contemporary framework for analyzing retroactivity—adopted by this Court—which recognized that application of a new statute to conduct that has already occurred may, but does not necessarily, have “retroactive” effect upsetting reliance interests and triggering fundamental concerns about fairness (511 US 244 [1994]; see also *American Economy Ins. Co. v State of New York*, 30 NY3d 136, 149 [2017], *cert denied* 584 US —, 138 S Ct 2601 [2018]). *Landgraf* harmonized the “apparent tension” between the presumption against retroactive application of statutes and statutory construction canons applied in prior cases to discern a statute’s temporal scope, which concerned statutes with no truly retroactive effect (511 US at 263-280; see e.g. *Bradley v School Bd. of Richmond*, 416 US 696 [1974] [holding a newly enacted statute authorizing the award of a reasonable attorney’s fee to a prevailing party in a school desegregation case could be relied on in a pending action to support a claim for such a fee for legal services rendered before the statute was enacted]; *Thorpe v Housing Authority of Durham*, 393 US 268, 278-279 [1969] [holding that a new agency policy imposing “a very simple notification procedure” that a housing authority had to follow prior to evicting a tenant, which did not alter the lease terms or take away the housing authority’s legal ability to evict, was applicable to an eviction proceeding commenced before the policy was issued but not yet completed]; see also *Landgraf*, 511 US at 285 n 37 [likewise limiting the continued utility of the tenet that new “remedial” statutes apply presumptively to pending cases]).

A statute has retroactive effect if “it would impair rights a party possessed when he acted, increase a party’s liability for past conduct, or impose new duties with respect to transactions already completed,” thus impacting “substantive” rights (*Landgraf*, 511 US at 278-280; see also *American Economy*, 30 NY3d at 147). On the other hand, a statute that affects only “the propriety of prospective relief” or the nonsubstantive provisions governing the procedure for adjudication of a claim going forward has no potentially problematic retroactive effect even when the liability arises from past conduct (*Landgraf*, 511 US at 273; see e.g. *Ex parte Collett*, 337 US 55, 71 [1949]

[transfer of a civil action]).¹⁷ For example, in *Matter of Raynor v Landmark Chrysler*, this Court held that a legislative amendment revising the “time and manner” of insurers’ payments for future workers’ compensation awards arising from prior injuries did not have retroactive effects because “the statute neither altered the carrier’s preexisting liability nor imposed a wholly unexpected new procedure” (18 NY3d 48, 57 [2011]).¹⁸

Landgraf illustrates this distinction. There, the Supreme Court addressed whether 1991 amendments to title VII of the Civil Rights Act of 1964 applied to pending litigation. Prior to 1991, the primary monetary relief available under title VII was back pay for lost wages, recoverable only if unlawful discrimination had a concrete effect on the plaintiff’s employment (511 US at 252-254). The 1991 act “significantly expand[ed] the monetary relief potentially available to plaintiffs”—and “allow[ed] monetary relief for some [cases] that would not previously have justified *any* relief under Title VII”—by providing for compensatory damages (including for future pecuniary losses and nonpecuniary losses) and punitive damages and making monetary damages recoverable even absent a concrete effect on employment, as well as created a right to a jury trial in certain damages cases (*id.*). The Court deemed the jury trial provision purely procedural with no retroactive effect if applied to cases that had been commenced but had not yet proceeded to trial before the statute was enacted

17. The part F amendment relevant in *Collazo v Netherland Prop. Assets LLC* (35 NY3d 987 [2020] [decided herewith]), a forum-selection provision clarifying that courts and DHCR have concurrent jurisdiction with respect to overcharge claims “subject to the tenant’s choice of forum” (L 2019, ch 36, § 1, part F, § 1), is a procedural statute that raises no retroactivity concerns when applied in that case, where Supreme Court granted a pre-answer motion to dismiss the action with the expectation that the merits of the claim would be adjudicated by DHCR. At this early stage of litigation, the issue in *Collazo* is which forum should resolve the claim in the first instance. “Application of a new jurisdictional rule usually takes away no substantive right but simply changes the tribunal that is to hear the case” (*Landgraf*, 511 US at 274 [citation and internal quotation marks omitted]).

18. Likewise, it was “debatable” whether the statute in *American Economy* had a retroactive effect on insurers by barring future applications to a workers’ compensation fund that covered workers whose closed cases reopened unexpectedly (30 NY3d at 149). The insurers were always legally liable for the closed cases, which arose out of their own policies, and the fund merely provided them potential relief from the uncertain future coverage costs associated with those cases, so its closure on a going-forward basis subjected the insurers to the possibility of such future costs but did not impose new legal liability (*id.* at 149, 141-145).

(*id.* at 280-281 and n 34). On the other hand, the punitive damages provision was “clearly” retroactive if applied to conduct occurring before the statute’s enactment, as it reflected a punishment for past acts (*id.* at 281). The compensatory damages provision—which was “quintessentially backward looking”—also would have had a retroactive effect because, in cases where money damages were previously unrecoverable, it would “attach an important new legal burden” and could “be seen as creating a new cause of action” (*id.* at 282-283). The Court noted that, even in cases where monetary damages were previously available, the new provision “resemble[d] a statute increasing the amount of damages available under a preestablished cause of action” that would, if applied to pending cases, “undoubtedly impose . . . a ‘new disability’ in respect to past events,” explaining that the “*extent* of a party’s liability, in the civil context as well as the criminal, is an important legal consequence” in determining retroactivity (*id.* at 283-284 [citation omitted]).

Here, if applied to past conduct, the amendments to the statute of limitations, overcharge calculation and damages provisions in part F of the HSTPA would impose new liability and thus have a “retroactive effect”—altering substantive rights in multiple ways. The statute of limitations with respect to overcharge claims has been treated as running backward from the date of initiation of the claim, previously permitting recovery of overcharges occurring only in each of the four years preceding the complaint. Thus, the relevant illegal conduct for which a tenant can recover is the overcharge committed in any given year during the recovery period. Expansion of the limitations period from four to six years clearly has a retroactive effect because it permits recovery for nonfraudulent conduct occurring during an additional two years preceding the former recovery period—conduct that was beyond challenge under the prior law. Likewise, the imposition of treble damages for four additional years of overcharges—conduct not previously subject to treble damages—clearly increases the scope of liability for past wrongs if applied retroactively, as the Supreme Court indicated in *Landgraf* (*id.* at 281).

Critically, for purposes of calculating the amount owed for any overcharge, part F now renders reviewable rent increases that were shielded by the prior lookback rule, permitting reconstruction of the legal regulated rent based on any relevant records in the apartment’s entire rental history. Although

the tenant can directly recover only for overcharges occurring during the six years preceding the complaint, the damages calculations for those years may now effectively incorporate conduct—illegal increases—preceding that period and occurring at any point in the rental history. This amendment is not merely, as the dissent contends, a procedural change regarding what evidence can be considered (dissenting op at 401-402); it expands the scope of owner liability significantly based on conduct that was inoculated by the old law.¹⁹ In the same way that the compensatory damages provision in *Landgraf* would have provided monetary relief for conduct that, while illegal, previously did not provide a right to such relief, the effect here would be to permit recovery, previously barred by the lookback rule and limitations period, for past conduct that violated the RSL. Even if the amendments could be viewed in some cases as merely increasing damages for conduct that already gave rise to monetary relief, the dissent is wrong that such “tinker[ing] with the recoverable amount” has no retroactive effect (dissenting op at 402, 405-406). Under *Landgraf*, statutes that expand “[t]he extent of a party’s liability” under the same cause of action have retroactive effect (511 US at 283-284 [observing that in no case “in which Congress had not clearly spoken, ha(d) (the Court) read a statute substantially increasing the monetary liability of a private party to apply to conduct occurring before the statute’s enactment”])).

This retroactive effect becomes even more pronounced when considered in tandem with the HSTPA amendments to the record retention requirements. Those amendments expand the retention period by two years and, although the provision still nominally permits an owner to destroy some records—now after six years—the new law states that “an owner’s election not to maintain records shall not limit the authority of [DHCR] and the courts to examine the rental history and determine legal regulated rents” (RSL § 26-516 [g]). Thus, the HSTPA effectively provides that an owner can be penalized indirectly for a disposal of records that was legal under the prior law but

19. The dissent further asserts that, prior to the addition of the lookback rule provision in 1997, review of all rental history to establish the base date rent was permitted (dissenting op at 401). The dissent is mistaken (*see* n 26, *infra*)—but even adopting the dissent’s view, the repeal of the lookback rule upset over 20 years of repose. Likewise, the dissent’s repeated reliance on cases that predate *Landgraf* reflects an unwillingness to engage with contemporary retroactivity jurisprudence (dissenting op at 404-405, 425).

will now hinder the owner's ability to establish the legality of (and non-willfulness of any illegal) rent increases outside the lookback period, which—under the new legislation—impact recovery even in the absence of fraud.²⁰

Retroactive application of the overcharge calculation provisions in part F implicates all three *Landgraf* retroactivity criteria by impairing rights owners possessed in the past, increasing their liability for past conduct and imposing new duties with respect to transactions already completed. This is true even though rent stabilization is a highly regulated area. As we explained in *American Economy* when addressing the rights of employers' insurers under another highly regulated regime—workers' compensation—this is an area designed with “flexibility,” in which “[t]he allocation of economic benefits and burdens has always been subject to adjustment” (30 NY3d at 148-149, quoting *Becker v Huss Co.*, 43 NY2d 527, 541 [1978]). “The Constitution merely mandates that a landlord earn a reasonable return,” and no party doing business in a regulated environment like the New York City rental market can expect the RSL to remain static, as we have repeatedly made clear in cases challenging prospective legislation altering the formula for rent increases under prior schemes (see *I. L. F. Y. Co. v City Rent & Rehabilitation Admin.*, 11 NY2d 480, 492 [1962]; *Bucho Holding Co. v Temporary State Hous. Rent Commn.*, 11 NY2d 469 [1962]). But applying these amendments to past conduct is not related to legislative decisions about proper division of economic burdens going forward, and it does not simply upset expectations about the continuing future availability of a favorable regulatory mechanism. Rather, by increasing overcharge exposure relating to owners' past acts, retroactive application of the provisions would undermine considerable reliance

20. The record retention provision does not exist in a vacuum but, before the HSTPA, was closely related to the lookback rule. Although the dissent suggests that consideration of the record retention amendment is somehow inappropriate (dissenting op at 418), it is impossible to fully assess the retroactive impact of the HSTPA's new overcharge calculation method without acknowledging that, previously, owners were permitted by those interrelated provisions to dispose of records after four years. The impact of the amendment is evident in a case like *Reich*, where the building has changed ownership twice since the tenants took occupancy 15 years ago. If the HSTPA were applied to permit reconstruction of the base date rent in such a case, the change in record retention rules exacerbates the retroactive effect by hindering justification of rent increases taken outside the prior four-year lookback period, thereby impairing landlords' ability to defend themselves in an action alleging overcharges more than four years in the past.

interests concerning income owners already derived from rents collected on real property years—if not decades—before.

Because the overcharge calculation provisions, if applied to past conduct, would impact substantive rights and have retroactive effect, the presumption against retroactivity is triggered. As opposed to a decisional change in the common law—which typically but not invariably applies “to all cases still in the normal litigating process” (*Gurnee v Aetna Life & Cas. Co.*, 55 NY2d 184, 190-191 [1982] [citation omitted] [permitting retroactive application of interpretation of insurance law “to all claims not barred by the Statute of Limitations”])—generally, a statute is presumed to apply only prospectively (*Majewski*, 91 NY2d at 584). Retroactive legislation is viewed with “great suspicion” (*Matter of Chrysler Props. v Morris*, 23 NY2d 515, 521 [1969]). This “deeply rooted” presumption against retroactivity is based on “[e]lementary considerations of fairness [that] dictate that individuals should have an opportunity to know what the law is and to conform their conduct accordingly” (*Landgraf*, 511 US at 265). As the Supreme Court has cautioned, careful consideration of retroactive statutes is warranted because “[t]he Legislature’s unmatched powers allow it to sweep away settled expectations suddenly and without individualized consideration” and “[i]ts responsivity to political pressures poses a risk that it may be tempted to use retroactive legislation as a means of retribution against unpopular groups or individuals” (*id.* at 266).

In light of these concerns, “[i]t takes a clear expression of the legislative purpose . . . to justify a retroactive application” of a statute (*Gleason v Gleason*, 26 NY2d 28, 36 [1970] [internal quotation marks and citation omitted]), which “assures that [the legislative body] itself has affirmatively considered the potential unfairness of retroactive application and determined that it is an acceptable price to pay for the countervailing benefits” (*Landgraf*, 511 US at 272-273). The ultimate question here, therefore, is one of statutory interpretation: whether the legislature has expressed a sufficiently clear intent to apply the overcharge calculation amendments retroactively to these pending appeals. There is certainly no requirement that particular words be used—and, in some instances, retroactive intent can be discerned from the nature of the legislation (*see e.g. Eastern Enterprises v Apfel*, 524 US 498 [1998]; *Usery v Turner Elkhorn Mining Co.*, 428 US 1 [1976]). But the expression of intent must be sufficient to show that the legislature contem-

plated the retroactive impact on substantive rights and intended that extraordinary result. Even within the same legislation, language may be sufficiently clear to effectuate application of some amendments to cases arising from past conduct but not others with more severe retroactive effect (see *Landgraf*, 511 US at 280-281; *Matter of Beary v City of Rye*, 44 NY2d 398, 410-411 [1978]).

If retroactive application would not only impose new liability on past conduct but also revive claims that were time-barred at the time of the new legislation, we require an even clearer expression of legislative intent than that needed to effect other retroactive statutes—the statute’s text must unequivocally convey the aim of reviving claims. For nearly a century, this Court has recognized that “[r]evival is an extreme exercise of legislative power. The will to work it is not deduced from words of doubtful meaning. Uncertainties are resolved against consequences so drastic” (*Hopkins v Lincoln Trust Co.*, 233 NY 213, 215 [1922, Cardozo, J.]). Indeed, it is a bedrock rule of law that, absent an unambiguous statement of legislative intent, statutes that revive time-barred claims if applied retroactively will not be construed to have that effect (see e.g. *Matter of Thomas v Bethlehem Steel Corp.*, 63 NY2d 150, 155 [1984]; *Beary*, 44 NY2d at 412-413). For example, in *35 Park Ave. Corp. v Campagna*, plaintiff contended that a newly enacted statute permitting a court to grant relief from an unconscionable lease or clause—which the legislature deemed “applicable to all leases, regardless of when executed”—revived a time-barred claim to rescind a lease (48 NY2d 813, 814-815 [1979]). Citing the need for clear and unequivocal language “to effect so drastic a consequence,” the Court reasoned that the language rendering the statute “applicable to all leases” was “ambiguous,” failing to convey a sufficiently clear intention to resurrect time-barred claims (*id.* at 815).

When the legislature has intended to revive time-barred claims, it has typically said so unambiguously, providing a limited window when stale claims may be pursued. For example, Jimmy Nolan’s Law, which we addressed in *Matter of World Trade Ctr. Lower Manhattan Disaster Site Litig.* (30 NY3d 377 [2017]), expressly “revived” certain time-barred claims related to World Trade Center cleanup and rescue work, permitting suit during a discrete one-year window period (see General Municipal Law § 50-i [4] [a], as added by L 2009, ch 440, § 2). Similar unequivocal “revival” language accompanied

by a limited period for commencement of time-barred claims appears in the statute reviving toxic tort cases, including those arising from exposure to the drug diethylstilbestrol ingested by pregnant women (L 1986, ch 682, § 4), addressed in *Hymowitz v Eli Lilly & Co.* (73 NY2d 487 [1989]). The legislature has historically acted with deliberation and clarity when upsetting the strong public policy favoring finality, predictability, fairness and repose served by statutes of limitations.²¹

The “claims pending” language in the part F effective date provision is insufficient to indicate that the legislature intended retroactive application in a manner that revives time-barred claims, such as by extending the statute of limitations to permit recovery of two annual overcharge claims that were time-barred under the prior law. This language bears no resemblance to the express claim revival language in the statutes addressed by *World Trade Ctr.* and *Hymowitz*—yet the claim revival effect if the relevant amendments to the HSTPA were to be applied retroactively is substantially more far-reaching than that of the orderly and even-handed claim revival method used in those statutes, which created a narrow window for commencement of time-barred suits. If applied to past conduct, the relevant HSTPA amendments would not only revive claims for two additional years but, by changing the overcharge calculation methodology to enable review of any illegal rent increase in the history of the apartment, would also substantially alter the nature of the liability by resurrecting nonfraudulent overcharges that initially occurred more than four years prior to the complaint but continue to impact the calculation of the current rent. Just as the statutory language in *35 Park Ave. Corp.*, rendering the new legislation “applicable to all leases, regardless of when executed” (48 NY2d at 814-815), fell short of our standard, here the generic reference to “any claims pending” upon enactment does not provide the requisite textual assurance that the legislature considered the significant impact of reviving barred claims, upsetting the strong public policy favoring repose, and that it desired that result.

This does not entirely resolve the statutory interpretation question, however, because as we have explained, retroactive

21. When that intent is unambiguous, a claim revival statute withstands challenge under the Due Process Clause if it is “a reasonable response in order to remedy an injustice” (*World Trade Ctr.*, 30 NY3d at 400), such as remedying the plight of sick plaintiffs who were unable to commence timely claims because of the long period of latency between exposure and the manifestation of illness (*Hymowitz*, 73 NY2d at 503-504, 514).

application of part F would have significant impacts beyond claim revival, specifically on the scope and nature of damages recoverable with respect to timely claims. While the presumption against claim revival effect may only be overcome by the legislature's unequivocal textual expression that the statute was intended not only to apply to past conduct, but specifically to revive time-barred claims (*see 35 Park Ave. Corp.*, 48 NY2d at 815), the general presumption against retroactive effect may be overcome by either an express prescription of the statute's temporal reach or a less explicit but "comparably firm conclusion"—applying "normal rules of construction"—of legislative intent to apply the enactment to conduct that occurred previously (*Fernandez-Vargas v Gonzales*, 548 US 30, 37 [2006] [citation omitted]; *see also Majewski*, 91 NY2d at 584). Although the HSTPA part F effective date provision does not express an intent to revive time-barred claims under our heightened claim revival standard, read in the specific context of this legislation, the "claims pending" language is sufficiently clear to evince legislative intent to apply the amendments to at least some timely overcharge claims that were commenced prior to enactment.

Each of the HSTPA's 15 parts contains its own effective date provision, indicating the legislature considered the issue of temporal scope for each. The legislation is almost entirely forward-looking—only part F's effective date provision contains language referring to prior claims. In contrast, many of the HSTPA's other effective date provisions, such as that applicable to the amendments eliminating vacancy and longevity bonuses, state only that the parts of the legislation to which they apply "shall take effect immediately" (*see* L 2019, ch 36, § 1, part A, § 7; part B, § 8; part C, § 5; part D, § 8; part G, § 7; part J, § 2; part L, § 3), in some cases indicating when the amendments contained therein expire (*id.* part E, § 3; part H, § 5; part I, § 5; part K, § 18). Others expressly provide that the relevant part applies prospectively only, such as by indicating that it takes effect immediately but applies to actions "commenced on or after such effective date" or that certain amendments take effect at some point in the future, such as "on the thirtieth day after this act shall have become a law" (*id.* part M, § 29; *see also id.* part N, § 2 [part N "shall take effect immediately and shall only apply to plans (for conversion of an apartment to a condominium or cooperative) submitted . . . after the effective date"]; part O, § 14 [part O "shall take effect

on the thirtieth day after it shall have become a law”]). Therefore, this is not a case where the legislature passed comprehensive legislation, including general “claims pending” language, without differentiating between the parts it intended to apply retroactively and those that could reasonably be given only prospective effect. Moreover, part F relates almost entirely to the calculation of overcharge claims, and any such claim that was pending at the time the HSTPA was enacted necessarily involved conduct that occurred prior to the statute’s enactment.

Read in context, and because some of the part F provisions have effects beyond reviving time-barred claims, the “claims pending” language must be construed as evincing a retroactive intent.²² At the very least, “claims pending” indicates the part F provisions were intended to apply to overcharge claims where the calculation issue remained unresolved as of the June 2019 effective date. Indeed, in *Landgraf*, the Supreme Court indicated that similar language referencing “pending” cases would have been sufficient in that case to reflect a retroactive intent (see *Landgraf*, 511 US at 259-260 [referencing language in a prior version of the statute stating the provisions “shall apply to all proceedings pending on or commenced after the date of enactment”]). Therefore, although there was no clear directive to revive time-barred claims, we conclude that the legislature evinced a sufficiently clear intent to apply part F to timely pending claims, such as *Regina Metro.* and *Taylor*, where the overcharge calculation issue was unresolved at the time the HSTPA was enacted.²³ It is therefore necessary to reach the constitutional challenge.

22. To be sure, the language in the part F effective date provision is less precise than the clause in the 1997 RRRRA stating it was applicable to “any action or proceeding pending in any court or any application, complaint or proceeding before an administrative agency on the effective date” (L 1997, ch 116, § 46 [1]; see *Matter of Partnership 92 LP v State of N.Y. Div. of Hous. & Community Renewal*, 11 NY3d 859 [2008]), but given the contrast between the part F language and that used in the remaining parts of the HSTPA, it is sufficient to convey a retroactive intent.

23. The tenants ask us to construe “claims pending” as encompassing any case pending on appeal which, in cases where the overcharge was already calculated, would involve reopening of the record for additional discovery and recalculation of the base date rent—essentially, relitigation of the entire case. Given our resolution of the constitutional issue, we need not determine whether that broad view of “claims pending” reflects legislative intent because, at a minimum, “claims pending” encompasses cases like *Regina*

(n. cont’d)

III.

To comport with the requirements of due process, retroactive application of a newly enacted provision must be supported by “a legitimate legislative purpose furthered by rational means” (*American Economy*, 30 NY3d at 157-158, citing *General Motors Corp. v Romein*, 503 US 181, 191 [1992]). Of course, as with prospective elements of legislation, legislative direction concerning the scope of a statute carries a presumption of constitutionality, and the party challenging that direction bears the burden of showing the absence of a rational basis justifying retroactive application of the statute (*Turner Elkhorn*, 428 US at 15). Nevertheless, the Supreme Court has made clear that “retroactive legislation does have to meet a burden not faced by [purely prospective] legislation,” which is satisfied when “the retroactive application of the legislation is *itself* justified by a rational legislative purpose” (*Pension Benefit Guaranty Corporation v R. A. Gray & Co.*, 467 US 717, 730 [1984] [emphasis added]).

Because “[r]etroactive legislation presents problems of unfairness that are more serious than those posed by prospective legislation” (*Romein*, 503 US at 191), “the justifications for [prospective legislation] may not suffice for the [retroactive aspects]” (*R. A. Gray & Co.*, 467 US at 730). We have suggested that, in order to comport with due process, there must be a “persuasive reason” for the “potentially harsh” impacts of retroactivity (*Holly S. Clarendon Trust v State Tax Commn.*, 43 NY2d 933, 935 [1978]; see *Chrysler Props.*, 23 NY2d at 522 [there was no “persuasive case” supporting retroactive application]). Our acknowledgement that retroactive legislation must be supported by a rational basis commensurate with the degree of retroactive effect does not represent a “bifurcation” between the rational basis analyses for prospective and retroactive legislation (see dissenting op at 414). Consideration of the scope of legislation is critical to a rational basis analysis, regardless of whether it is solely prospective or also involves retroactive effects.

[3] In tax cases, an area where retroactive application of statutes is more highly tolerated, if for a short time (*James Sq. Assoc. LP v Mullen*, 21 NY3d 233, 246 [2013], citing *Matter of Replan Dev. v Department of Hous. Preserv. & Dev. of City of*

Metro. and *Taylor*, in which the overcharge calculation still had to be performed.

N.Y., 70 NY2d 451, 455 [1987], and *Welch v Henry*, 305 US 134, 146 [1938]), we have highlighted particular factors relevant to the due process analysis for retroactive legislation. In *Replan*, we explained that whether a retroactive statute comports with due process principles is a “question of degree” that turns on the length of the retroactivity period, the taxpayer’s forewarning of a change in legislation as relevant to reliance interests and the public purpose for retroactive application (70 NY2d at 456). Our consideration of these factors—derived from Supreme Court precedent—“does not differ from the prohibition against arbitrary and irrational legislation that applies generally to enactments in the sphere of economic policy” (*Caprio v New York State Dept. of Taxation & Fin.*, 25 NY3d 744, 752 [2015], quoting *United States v Carlton*, 512 US 26, 30 [1994]). Instead, in requiring that there be a non-arbitrary justification for retroactive application of a statute, the rational basis test incorporates the equitable considerations that *Replan* highlights more directly. Likewise, the Supreme Court has indicated that it applies the same due process analysis in the tax context that applies to any other economic legislation (*Carlton*, 512 US at 30), albeit recognizing that retroactivity is more tolerable in tax legislation (see *United States v Darusmont*, 449 US 292, 296-298 [1981]; *Welch*, 305 US at 146, 149-150).²⁴

In determining whether retroactive application of a statute is supported by a rational basis, the relationship between the length of the retroactivity period and its purpose is critical. Generally, there are two types of retroactive statutes that courts have found to be constitutional: those employing brief, defined periods that function in an administrative manner to assist in effectuating the legislation, and statutory retroactivity that—even if more substantial—is integral to the fundamental aim of the legislation. For example, in the first category, courts have rejected challenges to the legislative practice of

24. The due process standard for gauging the propriety of retroactive tax statutes was articulated differently in the past. In earlier decisions relied on in *Replan*, the Supreme Court framed the inquiry as whether the statutes in question were “so harsh and oppressive as to transgress the constitutional limitation” (*Welch*, 305 US at 147). That this inquiry was not historically labeled as a “rational basis” test does not undermine the conclusion by both this Court and the Supreme Court that, in practice, the analysis “d[id] not differ” from the one applied to other types of retroactive statutes (*Caprio*, 25 NY3d at 752, quoting *Carlton*, 512 US at 30). Thus, there is no basis to dispute the continuing validity of *Replan* or *James Sq.* (applying *Replan*) which, contrary to the dissent’s suggestion (dissenting op at 413), remain good law.

incorporating a clear, limited retroactivity period intended to prevent parties from taking advantage of a lengthy legislative process to circumvent a statute. In *R. A. Gray & Co.*, the Supreme Court rejected a due process challenge to retroactive application of a statute that required employers that withdrew from a multiemployer pension plan to pay a fixed debt to the plan and expressly extended that penalty to those who withdrew within the five months prior to enactment (467 US at 720, 725). After observing that Congress had been “quite explicit” that the statute was made retroactive in order to “prevent employers from taking advantage of a lengthy legislative process and withdrawing while Congress debated,” the Court emphasized that the retroactivity period was limited in scope to achieve its aim, noting, “as the amendments progressed through the legislative process, Congress advanced the effective date chosen so that it would encompass only that retroactive time period that Congress believed would be necessary to accomplish its purposes” (467 US at 730-731).

Falling within the latter category—instances where retroactive application was central to the statutes’ purpose—in *Turner Elkhorn* the Supreme Court upheld legislation requiring coal operators to compensate miners who had already left the industry for the disability caused by the latent effects of exposure to coal dust, resulting in black lung disease, or pneumoconiosis (428 US at 15, 18-20). The Supreme Court reasoned that the retroactive imposition of liability on the coal operator that previously employed the miner was “justified as a rational measure to spread the costs of the employees’ disabilities to those who have profited from the fruits of their labor” (*id.* at 18; *but see Eastern Enterprises v Apfel*, 524 US 498 [1998] [deeming retroactive application of a coal miner health care benefit scheme, requiring participation by a company that ceased coal mining operations in 1965, unconstitutional]). Similarly, in *American Economy*—where we assumed without deciding that a statute closing a fund that previously benefited workers’ compensation insurance carriers liable for “reopened” claims had a retroactive impact—we concluded application of the statute to injuries incurred under workers’ compensation insurance policies finalized prior to the effective date was necessary to achieve its purpose (30 NY3d at 158-159). There, the workers’ compensation fund was closed to relieve the burden on employers supporting its costs, which had increased dramatically in the six years preceding the

legislation due to skyrocketing medical costs and an unexpected surge in reopened cases (*id.* at 143). If that closure was not applied to claims arising from past injuries, the fund “would have incurred substantial new liabilities for many years, given the duration of many workers’ compensation cases,” and “the relief to businesses sought by the legislature would have been indefinitely delayed” (*id.* at 158). In cases where retroactivity is integral to full achievement of the fundamental purpose of the legislation, a rational basis for the retroactive effect may be readily identifiable.²⁵

On the other hand, even short periods of retroactivity will be invalidated absent the requisite rational basis. In *Chrysler Props.*, we sustained a constitutional challenge to retroactive application of a statute providing New York City a new right to seek judicial review of adverse determinations of the State Tax Commission, despite the relatively brief, four-month period of retroactivity set forth in the effective-date provision (23 NY2d at 518-519). Because there previously was no right to challenge such determinations, we concluded that a taxpayer who was issued a refund order only one month before the new law was entitled to payment because the taxpayer “had obtained a sufficiently certain right to the money” and the legislature made the amendment retroactive “without any discernable reason” (*id.* at 517-519). Likewise, in *James Sq.*, we invalidated the retroactive application of amendments to the Empire Zones Program Act that changed the criteria for receipt of tax benefits, noting businesses had no forewarning of the change, and that a 16-month period of retroactivity was excessive because businesses had “gained a reasonable expectation that they would secure repose in the existing tax scheme” (21 NY3d at 248-250 [internal quotation marks omitted]). We emphasized that retroactively denying tax credits did not further any aim of the statute—by spurring investment or preventing abuses of

25. The Supreme Court has also considered whether impacted parties had forewarning of the retroactive effect. In *Romein*, employers and the Michigan Supreme Court interpreted a state statute permitting reduction of certain workers’ compensation benefits to apply to workers injured prior to enactment, despite a contrary legislative resolution (503 US at 184-185). The Supreme Court upheld a second statute clarifying the original intent and mandating reimbursement of benefits wrongfully withheld during the period between enactment of the original statute and the clarifying legislation, indicating that there was no substantial reliance issue because the employers “knew they were taking a risk” when they acted based on a statutory interpretation that contravened that expressed by the legislature (*id.* at 191-192).

the program—but “simply punished . . . participants more harshly for behavior that already occurred and that they could not alter” (*id.* at 250). Unlike the statutes at issue in *R. A. Gray & Co.*, *Turner Elkhorn* or *American Economy*, where the retroactive scope was directly related or integral to furtherance of the legislative goals, in *Chrysler Props.* and *James Sq.* we concluded retroactive application would be irrational given the extent of settled interests, degree of repose and lack of a permissible basis for unsettling those interests.

Those same concerns are amplified here. The HSTPA’s overcharge calculation and treble damages provisions, if applied retroactively, would more severely impact substantive rights than the provision in *James Sq.*, which involved a tax statute, an area where courts are generally *more* tolerant of retroactivity. Before the HSTPA, the combined effect of the statute of limitations and lookback rule provided owners substantial repose relating to rent increases collected more than four years prior to the filing of the complaint. In sharp contrast, the HSTPA amendments directing review of all available rental history to reconstruct the legal regulated rent on the base date may be applied to incorporate increases (whether fraudulent, erroneous or simply lacking in adequate documentation many years after the fact) in the apartment’s distant rental history, thereby expanding a tenant’s total overcharge recovery well beyond what was provided under the prior law.

This retroactivity period cannot be characterized as brief; rather, the legislature appears to have intended that the retroactive period be bounded only by the length of the apartment’s rental history. Such a vast period of retroactivity upends owners’ expectations of repose relating to conduct that may have occurred many years prior to the recovery period. Having reasonably relied on pre-HSTPA statutory and regulatory provisions to destroy records (*see* former RSL § 26-516 [g]; *Cintron*, 15 NY3d at 354; *Thornton*, 5 NY3d at 181; *Matter of Gilman v New York State Div. of Hous. & Community Renewal*, 99 NY2d 144, 149 [2002])—records that are now needed under the HSTPA to establish the legality of prior rent increases and a lack of willfulness—owners may be held liable under the HSTPA for purported historical overcharges that were once supported by documentation. Turning to the treble damages provisions, where owners are unable to meet their burden to prove a negative—lack of past willfulness—the HSTPA makes treble damages mandatory for all six years of the new recovery

period, rather than the two years preceding filing of the complaint. These provisions either increase the penalty or impose a new penalty for damages that previously were not trebled.

There can be no doubt here that the HSTPA part F amendments represent a clear rejection of prior rent stabilization enforcement policy and effectuate a significant readjustment of substantive rights relating to overcharge recovery, distinguishing this legislation in critical ways from that applied to past conduct in *Romein*, which clarified the Michigan Legislature's original intent that was expressed in a legislative resolution but disregarded by employers and courts. As explained further below, "judicial confusion" regarding how to calculate overcharges in *Roberts* cases (dissenting op at 410) cannot alone transform the substantive amendments made in part F as to *all* overcharge cases into mere clarifying amendments like those in *Romein*. In the same way, the part F amendments are quite different from the 1997 RRRRA amendment adding the lookback rule to the RSL's enforcement provisions, which this Court applied to a pending case in *Partnership 92* (11 NY3d at 860; *see* n 22, *supra*). As we explained in *Thornton*, that lookback rule amendment merely clarified past legislative intent and reinforced existing statutory language which, since 1983, made clear that damages could not be calculated based on an overcharge that occurred more than four years prior to the filing of the claim (5 NY3d at 180).²⁶ No *Landgraf* analysis was necessary with respect to application of the 1997 lookback rule

26. The impetus for the lookback amendment was explained when a bill containing substantially the same amendment was proposed in 1996. The legislative history for the 1996 bill makes clear that the legislature originally intended the four-year statute of limitations "not only to limit an award for a rent overcharge to the four-year period preceding the complaint but also the examination of the rental history prior to that four-year period" (Senate Introducer's Mem in Support, 1996 NY Senate Bill S7492). Nonetheless, "court decisions ha[d] erroneously interpreted the language of the statute . . . to permit examination of the rental history of an apartment prior to the four-year period" (*id.*). These legislative materials clarified that, "[n]otwithstanding the judicial opinions to the contrary, it was and is the intention of the Legislature to preclude the examination of the prior rental history" (*id.*). Indeed, since 1983, the statutory scheme contained a four-year limitations period and expressly stated that "no award of the amount of an overcharge may be based upon an overcharge having occurred more than four years before the complaint is filed" (L 1983, ch 403, § 14; 1983 McKinney's Session Laws of NY at 1791). The lookback amendment was included in the 1997 RRRRA, among others, "to simplify the administration of rent laws while protecting the rights of tenants and owners" (Governor's Approval Mem, Bill

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to pending cases because, unlike the sea change created by the HSTPA part F amendments, it did not have a truly retroactive effect on liability. Moreover, although we applied the lookback rule amendment to past conduct in *Partnership 92*, we were more circumspect with regard to other amendments in the 1997 RRRA. In *Gilman*, we held that DHCR acted irrationally when it applied an amendment relaxing evidentiary requirements for admission of owner records to permit an owner to reopen the record, nearly a decade after the tenant commenced the proceeding and during the administrative appeal, expressing concern that “the rules were changed in midstream” (99 NY2d at 147, 149-152). This Court’s precedent regarding the 1997 RRRA is more nuanced than the dissent acknowledges and is compatible with our analysis identifying the significant retroactive effects that would arise if part F is applied to pending cases.

Indeed, the effects of the HSTPA amendments expanding overcharge liability implicate the concerns that the Supreme Court expressed in *Eastern Enterprises* in striking down retroactive application of a statute that required former mine operators to fund the health benefits of retired miners who worked for the operator before it left the industry (524 US 498). Even though the statute reflected similar policy goals as the scheme upheld in *Turner Elkhorn*, it was invalidated (by the plurality on Takings Clause grounds, with a concurrence on due process principles) based on the extreme degree and arbitrary nature

Jacket, L 1997, ch 116 at 40, 1997 McKinney’s Session Laws of NY at 1923). As the dissent notes, the 1997 RRRA as a whole “dramatically” and “historic[ally]” reformed New York’s rent stabilization scheme (dissenting op at 422 n 19; see Senate Introducer’s Mem in Support, Bill Jacket, L 1997, ch 116 at 36; Governor’s Approval Mem, Bill Jacket, L 1997, ch 116 at 40, 1997 McKinney’s Session Laws of NY at 1923)—including by creating a new vacancy bonus allowance, narrowing succession rights, establishing new penalties for harassment of tenants, amending the procedure for vacancy decontrol, authorizing the State to enter contracts exempting new construction from regulation, requiring deposit of rent payments into escrow during the pendency of certain landlord-tenant disputes and permitting owners to offer financial incentives to tenants in small buildings to vacate for the construction of new housing in that space (Senate Introducer’s Mem in Support, Bill Jacket, L 1997, ch 116 at 36). The amendment adding the lookback rule was only one in this “extensive[]” suite of amendments (*id.*), and the breadth of the total legislative package has no bearing on the clarifying nature of that sole amendment.

of the retroactive effect (524 US at 530-537, 547-550).²⁷ It is clear from *Eastern Enterprises* that there are limits on retroactive imposition of liability even when it is related to a rational statutory goal.

Moreover, retroactivity concerns are further heightened where, as here, the new statutory provisions “affect[] contractual or property rights, matters in which predictability and stability are of prime importance” (*Landgraf*, 511 US at 271). While the lease agreements between the owners and tenants were necessarily subject to the requirements of the RSL, curtailing the parties’ freedom of contract in significant degree, when the governing law (essentially incorporated in the annual leases) is altered retroactively years later, long after the expired contracts have been performed, the impact on contract rights is unusually significant. Such alteration—if applied retroactively—impairs real property rights by diminishing or possibly eliminating the constitutionally protected return on investment owners realized in the past related to the use of their properties (*see generally I. L. F. Y. Co.*, 11 NY2d at 492). The HSTPA does much more than require a party to shoulder a new payment obligation going forward—and its destabilizing effect is especially severe.

That potential effect is demonstrated by the cases before us. In *Regina Metro.*, for example, as noted by the Appellate Division dissent, application of the standard calculation methodology under the former rule resulted in overcharge damages of \$10,271.40, while the reconstruction method erroneously utilized by DHCR—which appears consistent with the HSTPA’s new approach—resulted in damages of \$285,390.39 (*Regina Metro.*, 164

27. The plurality in *Eastern Enterprises* observed that the Court’s prior decisions had “left open the possibility that legislation might be unconstitutional if it imposes severe retroactive liability on a limited class of parties that could not have anticipated the liability, and the extent of that liability is substantially disproportionate to the parties’ experience” and expressly clarified that it “need not address [the] due process claim” (524 US at 528-529, 538), and the one-Justice concurrence—the deciding vote—viewed the statute as violative of the former mining operators’ due process rights (*id.* at 539). Only the four dissenting Justices opined that due process was satisfied. Indeed, there may be some correlation between due process and takings analyses of retroactive legislation (*see id.* at 537). The owner in *Taylor* asserted that retroactive application of the overcharge calculation amendments, which would impact income earned in the past from its real property, amounted to an unconstitutional taking. We need not reach that claim because we resolve the retroactivity issues on statutory interpretation and due process grounds.

AD3d at 433 [Gische, J., dissenting]). In *Reich*, proper application of the pre-HSTPA statutes resulted in no overcharge, but a comparison of the market rent actually charged during the recovery period—over \$18,000 per month—against a reconstructed stabilized rent under the HSTPA considering rental history dating back to the tenants’ initial occupancy of the apartment in 2005 (or before) could result in an enormous retroactive increase in liability. The same profound impact on overcharge calculations would occur in *Taylor* and *Raden*, involving tenants that took occupancy well over a decade before they sued.

Unlike cases where retroactive application rationally furthered a legislative goal, such as closing a state-administered fund benefitting insurers that imposed unsustainable costs on employers (see *American Economy*, 30 NY3d 136) or preventing legislation from being undermined by those seeking to escape its impact before enactment (see *R. A. Gray & Co.*, 467 US 717)—there is no indication here that the legislature considered the harsh and destabilizing effect on owners’ settled expectations, much less had a rational justification for that result. While prospective application of part F to overcharges occurring after the effective date may serve legitimate and laudable policy goals, no explanation has been offered, much less a rational one, for *retroactive* application of the amendments to increase or create liability for rent overcharges that occurred years—even decades—in the past.

Part F contains no statement of legislative findings. Such a statement is contained elsewhere in the legislation, noting the continuing housing emergency; the need “to prevent speculative, unwarranted and abnormal increases in rents”; the acute shortage of housing accommodations caused by high demand and decreased supply; and the need, with respect to those being charged market rents, to avoid profiteering and other disruptive practices (L 2019, ch 36, § 1, part G, § 2). Prospective application of part F could be understood to address these concerns by deterring future overcharges, but retroactive application to cases pending in the appellate pipeline does not do so; the HSTPA cannot deter conduct that has already occurred (*James Sq.*, 21 NY3d at 250). Likewise, to the degree that prospective application of certain provisions of the HSTPA is justified because the legislature has concluded that those provisions will act to preserve the stock of stabilized housing or

moderate rents going forward, retroactive application of the amendments to increase the amount of an overcharge judgment (or create overcharge liability where none existed) does not return apartments to rent stabilization or ensure the propriety of rents collected in the future. Rather than serving any of the policy goals of rent stabilization (which it would not), retroactive application of the overcharge calculation amendments would merely punish owners more severely for past conduct they cannot change—an objective we have deemed illegitimate as a justification for retroactivity (see *James Sq.*, 21 NY3d at 249-250; see also *Turner Elkhorn*, 428 US at 17-18 [“we would . . . hesitate to approve the retrospective imposition of liability on any theory of deterrence or blameworthiness” (citations omitted)]).

The dissent asserts that the overcharge calculation amendments were intended to ameliorate the overcharges arising from deregulations later revealed to be improper by *Roberts* and to address post-*Roberts* judicial confusion regarding how to calculate such overcharges and that, thus, retroactive application of such amendments to pending cases is supported by a rational basis (see dissenting op at 409-410, 415-416).²⁸ This argument is unsupported by the text of the statute or its legislative history, which makes no reference to *Roberts*. The amendments impact far more than overcharges associated with the “14-year period of unlawful deregulation involving 50,000 [*Roberts*] apartments” referenced by the dissent (dissenting op at 416). The overcharge calculation amendments apply to all overcharge claims—not merely those flowing from an improper deregulation, much less a *Roberts* deregulation. Thus, not only is there no basis to conclude that addressing *Roberts* was the legislature’s intent, neither would these broadly applicable amendments constitute a rational response to *Roberts*.

Relatedly, although the new treble damages provisions function distinctly from the integrated overcharge calculation provisions, retroactive application of any part F amendments that would newly impose treble damages for past conduct is also

28. Of course, to the degree the dissent argues that the legislature “enact[ed] the HSTPA”—in its entirety—in order to “step[] in” concerning courts’ uncertainty about calculation of overcharges in *Roberts* cases (dissenting op at 410), that assertion is patently untenable given the breadth of the HSTPA’s amendments, which extend far beyond the realm of overcharge claims in general, and particularly far beyond the specific category of *Roberts* overcharge claims.

impermissible.²⁹ Treble damages are generally viewed as punitive (*Vermont Agency of Natural Resources v United States ex rel. Stevens*, 529 US 765 [2000]; *State of N.Y. ex rel. Grupp v DHL Express [USA], Inc.*, 19 NY3d 278 [2012]; see also Senate Introductor’s Mem in Support, Bill Jacket, L 2019, ch 36, 2019 McKinney’s Session Law News of NY, No. 3 at A-99 [describing treble damages as “punitive”]). They function as such in the RSL, under which actual damages are also available and there are no limitations on the amount of the annual overcharge that may be trebled (see *Landgraf*, 511 US at 281 [“Retroactive imposition of punitive damages would raise a serious constitutional question”]; dissenting op at 420-421 [identifying constitutional concerns with retroactive imposition of treble damages]).

The legislature is entitled to impose new burdens and grant new rights in order to address societal issues and, in enacting the HSTPA, it sought to alleviate a pressing affordable housing shortage that it rationally deemed warranted action. But there is a critical distinction for purposes of a due process analysis between prospective and retroactive legislation. As the Supreme Court has observed, retroactive legislation that reaches “particularly far” into the past and that imposes li-

29. The dissent’s assertion that we may not consider the propriety of retroactive application of the HSTPA amendments concerning treble damages is misplaced (dissenting op at 419-420). The owners’ conduct in deregulating the apartments consistent with pre-*Roberts* DHCR guidance was not willful, and treble damages cannot be imposed on that basis. But the HSTPA—by providing that a voluntary tender of a refund or adjustment of rent after filing of an overcharge claim cannot evidence a lack of willfulness—indicates that conduct after an improper deregulation may be relevant to treble damages under the new law. Relying on another distinct provision that can be analyzed separately, the tenants also argue that a part F amendment mandating the assessment of tenants’ attorneys’ fees on owners found liable for an overcharge (when previously such attorneys’ fees were discretionary) should be applied to pending claims. The Supreme Court has held that new legislation providing reasonable attorneys’ fees to a prevailing party may be applied in pending cases because “[a]ttorney’s fee determinations . . . are collateral to the main cause of action and uniquely separable from the cause of action to be proved at trial” (see *Landgraf*, 511 US at 276-277 [internal quotation marks and citation omitted] [explaining that *Bradley* (416 US 696), in which the Court applied such a provision in a pending case, “did not alter the well-settled presumption against application of the class of new statutes that would have genuinely ‘retroactive’ effect” in part because of the collateral nature of attorneys’ fee determinations]). Attorneys’ fees have yet to be addressed in *Regina Metro.*, in which the overcharge claim must be resolved before DHCR. However, attorneys’ fees are no longer at issue in *Taylor* or *Reich*, in which there is no recoverable overcharge, or in *Raden*, where the tenants abandoned their request for attorneys’ fees by failing to move specifically for such relief in Supreme Court.

ability of a high magnitude relative to impacted parties' conduct raises "substantial questions of fairness" (*Eastern Enterprises*, 524 US at 534). In the retroactivity context, a rational justification is one commensurate with the degree of disruption to settled, substantial rights and, in this instance, that standard has not been met. Thus, the overcharge calculation and treble damages provisions in part F may not be applied retroactively, and these appeals must be resolved under the law in effect at the time the overcharges occurred. The parties' remaining arguments lack merit, are rendered academic or are otherwise unreviewable.

In an attempt to delegitimize our analysis by association, our three dissenting colleagues raise the ghost of *Lochner v New York* (198 US 45 [1905]), an outdated and long-discredited Supreme Court precedent that has nothing to do with retroactivity (dissenting op at 389, citing *Lochner*). In *Lochner*, under the guise of due process analysis, the Supreme Court struck down economic legislation it viewed as unwise from a public policy standpoint (see *Ferguson v Skrupa*, 372 US 726, 730 [1963]). We agree wholeheartedly with the dissent that legislative judgments are presumptively constitutional and are subject to a rational basis analysis in which the policy preferences of judges have no role. Although the dissent repeatedly suggests otherwise, in stark contrast to the holding in *Lochner*, in this case we are not invalidating or "striking down" the overcharge calculation provisions in the HSTPA. The only question presented and resolved here is whether those provisions—whose validity is not otherwise at issue in these appeals—may be applied retroactively. The dissent never seriously engages with this issue or the substantial body of precedent governing it.

In this regard, the rational basis test—although extremely deferential—must be meaningfully applied to ensure basic principles of fairness and substantial justice, lest we abdicate our responsibility to the citizens of this state. As Justice Holmes wrote when dissenting in *Lochner*—espousing a view that later prevailed in the Supreme Court—

"the word liberty in the Fourteenth Amendment is perverted when it is held to prevent the natural outcome of a dominant opinion, *unless it can be said that a rational and fair [person] necessarily would admit that the statute proposed would*

infringe fundamental principles as they have been understood by the traditions of our people and our law” (*Lochner*, 198 US at 76 [Holmes, J., dissenting] [emphasis added]).

The modern rejection of *Lochner* has never been understood to require courts to abandon “fundamental principles” of fairness—not even when reviewing economic legislation. There are few principles as fundamental or, in the words of the Supreme Court, as “elementary” or “deeply rooted” as the notion that government may not irrationally impose or expand liability for past conduct (*Landgraf*, 511 US at 265).

Indeed, the legislation imprudently struck down in *Lochner* was not retroactive at all—it merely set a prospective cap on bakers’ working hours (198 US at 52). If that legislation had directed that the cap be applied retroactively, requiring recoupment of wages bakers earned years if not decades in the past when working excess hours (or profits their employers earned as a result of the productivity associated with those hours), we would certainly look upon such retroactive application with skepticism. While it may be unusual—but not unprecedented (see *Moe v Sex Offender Registry Bd.*, 467 Mass 598, 6 NE3d 530 [2014] [retroactive application of amendments requiring publication of sex offender registry information violated due process rights of sex offenders]; *Neiman v American Natl. Prop. & Cas. Co.*, 236 Wis 2d 411, 613 NW2d 160 [2000] [retroactive application of amendment increasing cap on wrongful death damages violated defendant’s due process rights]; *San Carlos Apache Tribe v Superior Court ex rel. County of Maricopa*, 193 Ariz 195, 972 P2d 179 [1999] [retroactive application of amendments revising surface water law violated due process rights of tribes])—to decline to apply a statute retroactively on due process grounds, it is also unusual for parties to ask the Court to apply retroactively legislation that alters substantive rights in the way that part F does.

We may have a fair disagreement over whether there is a rational justification for retroactive application of the HSTPA’s overcharge calculation provisions, but the dissent’s misguided attempt to cast as improper our application of a meaningful standard of constitutional review merits a response. We are persuaded by the words of Justice Breyer who, although disagreeing with the result in *Eastern Enterprises*, cautioned against the misplaced fear that reliance on the Due Process Clause in assessing the propriety of retroactive application of a

statute somehow “resurrect[s] *Lochner*” (524 US at 557 [Breyer, J., dissenting]).

“[A]n unfair retroactive assessment of liability upsets settled expectations, and it thereby undermines a basic objective of law itself.

“To find that the Due Process Clause protects against this kind of fundamental unfairness—that it protects against an unfair allocation of public burdens through this kind of specially arbitrary retroactive means—is to read the Clause in light of a basic purpose: the *fair application of law*, which purpose hearkens back to the Magna Carta. It is not to resurrect long-discredited substantive notions of ‘freedom of contract’ ” (*id.* at 558 [citations omitted], citing *Ferguson*, 372 US at 729-732).

Our “Court . . . plays a crucial and necessary function in our system of checks and balances. It is the responsibility of the judiciary to safeguard the rights afforded under our State [and Federal] Constitution[s]” (*People v LaValle*, 3 NY3d 88, 128 [2004]). Our narrow holding here—determining that newly-enacted overcharge calculation provisions may not be applied retroactively—constitutes nothing more than an appropriate exercise of this quintessentially judicial authority.

Accordingly, in *Regina Metro.*, the Appellate Division order, insofar as appealed from, should be affirmed, with costs to petitioner Regina Metropolitan Co., LLC, and the certified question answered in the affirmative; in *Raden*, the Appellate Division order should be affirmed, with costs, and the certified question not answered as unnecessary; in *Taylor*, the Appellate Division order should be modified, without costs, in accordance with this opinion and as so modified affirmed, and the certified question answered in the negative; and in *Reich*, the Appellate Division order should be affirmed, with costs, and the certified question answered in the affirmative.

WILSON, J. (dissenting). For the first time in its history, our Court has struck down, as violative of substantive due process, a remedial statute duly enacted by the legislature: part F, § 7 of the Housing Stability and Tenant Protection Act of 2019 (HSTPA) (L 2019, ch 36, § 1, part F, § 7). According to the majority, when our legislature stepped in to remedy the unlawful deregulation of tens of thousands of rent-regulated dwellings, occurring because of the 13-year lapse between the New York

State Division of Housing and Community Renewal's (DHCR) erroneous statement of the law and this Court's correction of it, the legislature violated the United States Constitution by deciding that landlords could retain some, but not all, of the unlawfully obtained rent overcharges.

The majority's justification is that "the prior statutory scheme conferred on owners clear repose" to retain unlawful rent overcharges "that occurred, in some cases, many years or even decades before the HSTPA was enacted" (majority op at 349). But the prior rent control law offered no clear repose; rather, it produced differing judicial and administrative interpretations about how to calculate rent overcharge awards for past conduct. The legislature stepped in and resolved that question, as is its right. Moreover, even had the prior statute granted "clear repose," the legislature remains free to alter damages awards for unlawful rents obtained by unlawful past conduct. The very "claim revival" jurisprudence cited by the majority establishes the legislature's right to do so.

One hundred and sixteen years ago, in *People v Lochner* (177 NY 145, 157 [1904]), our Court understood that the legislature, not the courts, is charged with making laws to advance the public welfare and that courts must give a wide berth to such legislative judgments, so long as they do not trample constitutionally protected rights. The United States Supreme Court reversed us. Time has not been kind to *Lochner v New York* (198 US 45 [1905]). It is regarded as one of the Supreme Court's most misguided decisions. The majority's description of it as "long-discredited" (majority op at 386) is charitable.

With today's decision, the disgraced era of *Lochner* makes its tragic return home. To find portions of the HSTPA unconstitutional on substantive due process grounds, the majority has disregarded jurisdictional rules and prudential concerns. It proceeds to mischaracterize the HSTPA's express application to "claims pending" as rendering it a retroactive "claim revival" statute. Answering a question not raised below, the Court decides it with a legal analysis not argued by the parties, applied to imagined factual circumstances on a nonexistent factual record.

In wielding substantive due process as a sword to strike down remedial economic legislation, the majority vitiates the political choices of New York's Legislature in passing the HSTPA. The amendments to the legislative scheme surrounding rent stabilization reflect the legislature's judgment, ap-

proved by the Governor, about the consequences for landlords who have violated New York law. In place of that judgment, the majority has substituted its own: the Court must “safeguard” the “substantive” “contractual or property rights” of New York’s landlords. Indeed, late in its opinion, the majority identifies the substantive rights protected by its resurrection of *Lochner*: the “substantive rights relating to overcharge recovery” (majority op at 380). That is, the rights of landlords to retain illegal overcharges wrongfully obtained from tenants.¹

Make no mistake: the legislature unequivocally instructed that part F of the HSTPA was to apply to “claims pending.” The majority admits the legislature “intended [part F] to apply to overcharge claims where the calculation issue remained unresolved as of the June 2019 effective date” (majority op at 374). As much as the majority protests it is “not invalidating or ‘striking down’ the overcharge calculation provisions in the HSTPA” (majority op at 386), it is striking down, as violative of substantive due process, the legislature’s clear command: “This act shall take effect immediately and shall apply to any claims pending or filed on and after such date” (L 2019, ch 36, § 1, part F, § 7).² This is *Lochner* redux: a grotesque usurpation of the legislature’s role in determining economic regulation when no fundamental rights are at issue.

Because part F of the HSTPA contains economic regulations that reflect a legislative policy judgment and do not infringe on fundamental rights, it should be evaluated under the well-settled rational basis standard (*West Coast Hotel Co. v Parrish*, 300 US 379, 391 [1937]). The rational basis standard is not demanding (see *People v Knox*, 12 NY3d 60, 69 [2009]). Indeed, it is “the most relaxed and tolerant form of judicial scrutiny” (*Dallas v Stanglin*, 490 US 19, 26 [1989]). Simply, courts are barred from declaring economic legislation unconstitutional

1. As discussed in section V, *infra*, we had no constitutional concerns whatsoever when, in 1997, the legislature curtailed *tenants’* right to recover overcharges in the exact provisions that the legislature now removed via the HSTPA (see L 1997, ch 116; *Matter of Partnership 92 LP v State of N.Y. Div. of Hous. & Community Renewal*, 11 NY3d 859 [2008] [applying the Rent Regulation Reform Act of 1997 (RRRA) retroactively to limit a tenant’s recovery in a rent overcharge action pending at the time of the statute’s enactment]). The majority cannot explain why landlords have a substantive right to retain ill-gotten rents while tenants have no substantive right to recover them. The answer, of course, is that neither group has an interest in the rent regulation laws that is protectable by substantive due process.

2. The effective date of the statute was June 14, 2019.

under the Due Process Clause of the Fourteenth Amendment if the regulation is conceivably rationally related to a legitimate government interest and is neither arbitrary nor discriminatory (see *Nebbia v New York*, 291 US 502, 537 [1934]). By finding a due process violation here, the majority ignores nearly a century of Supreme Court precedent in which the Court applied that rational basis test to state regulations (see *Ferguson v Skrupa*, 372 US 726, 729 [1963] [collecting cases]).

Since 1937, the Supreme Court has never struck down an economic regulatory statute, duly enacted by a legislature, on substantive due process grounds. Neither had we, until now. Because economic regulations, such as the rent control regulations before us, are not subject to any sort of heightened scrutiny and readily pass the rational basis test, I dissent.³

I.

A.

In 1894, reform-oriented Republicans took control of every branch of New York government, after years of Democratic dominance backed by the notorious Tammany Hall organization (see Paul Kens, *Lochner v. New York: Economic Regulation on Trial* 38 [1998]). When the legislature reconvened for its 1895 session, bakers on the Lower East Side were on strike over working hours and conditions (*id.* at 49). At the time, most bakeshops were housed in unfinished, stooped-ceilinged tenement basements. Workweeks were typically more than 70 hours, and in some cases over 100 hours, for less than \$12 per week (before boarding costs that workers were required to pay) (*id.* at 13).⁴ The work was hot, grueling, unsanitary and unsafe. Although New York had enacted a statutory eight-hour workday in 1867, the law contained no enforcement mechanism and included a section providing that “no person shall be

3. Although I disagree with some portions of the majority’s analysis of the law pre-HSTPA, I do not address those, because HSTPA will be applied as written for claims that were not yet pending as of its effective date (see majority op at 349-350 [“we . . . opine in no way on the vast majority of that legislation or its prospective application”]).

4. For a general account of sweatshop working conditions in turn-of-the-century New York, see e.g. Jacob Riis, *How the Other Half Lives* (1890); see also Abraham Cahan, *A Sweatshop Romance*, in *The Imported Bridegroom and Other Stories* (1898) (“They say a day has twenty-four hours. That’s a bluff. A day has twelve coats. . . . I have still two coats to make of the twelve that I got yesterday. So it’s still Monday with me. My Tuesday won’t begin before about two o’clock this afternoon”).

prohibited from working as many hours extra work as he or she may see fit" (*id.* at 26). The bakeshop law (codified, as relevant, at Labor Law § 110, as added by L 1897, ch 415) set a 10-hour per day and 60-hour per week limit for bakery employees. It also made any violation of the law a misdemeanor punishable by a \$20 to \$100 fine on first offense (*People v Lochner*, 73 App Div 120, 123 [4th Dept 1902]). The bakeshop law passed unanimously in the Assembly and Senate and was signed by the Governor that May.

A Utica bakeshop proved to be the law's downfall. Joseph Lochner, a longtime adversary of Utica's journeyman bakers' union, was arrested in April 1901 for violating the bakeshop law by allowing (or compelling) his employee, Aman Schmitter, to work more than 60 hours per week. It was Lochner's second violation of the law, for which he faced a fine of \$50. After his conviction in Oneida County Court, Lochner argued on appeal that the bakeshop law prohibited him from freely entering into contracts, in violation of the Privileges and Immunities and Equal Protection Clauses of the Fourteenth Amendment, and the Due Process Clause of the State Constitution (*Lochner*, 73 App Div at 121). The Appellate Division sided with the State, holding that the statute was a valid exercise of the legislature's police power to create economic regulations and that the judiciary must not disturb such a regulation if it "really relates to and is convenient and appropriate to promote the public health" (*id.* at 124, quoting *Matter of Jacobs*, 98 NY 98, 110 [1885]).

We agreed. As we held, many states had adopted statutes to address working conditions in various industries, and the Supreme Court had regularly upheld them as not violative of the Fourteenth Amendment (*Lochner*, 177 NY at 148-149, citing *Barbier v Connolly*, 113 US 27 [1885] [upholding a San Francisco ordinance banning overnight work in public laundries]; *Holden v Hardy*, 169 US 366 [1898] [upholding Utah's eight-hour workday for mine workers]). The standard for Fourteenth Amendment review of a statute was plain: "If the act and the Constitution can be so construed as to enable both to stand, and each can be given a proper and legitimate office to perform, it is the duty of the court to adopt such construction" and "[i]t is not necessary to the validity of a penal statute that the legislature should declare on the face of the statute the policy or purpose for which it was enacted" (*Lochner*, 177 NY at 159 [citations omitted]). The Court needed only to find a

conceivable way in which the statute was addressed to the benefit of the public, which the bakeshop law was.

The Supreme Court held otherwise, spawning the dominant canon of review for state economic regulation from 1905 until its demise in 1937, and the dominant anticanon for the 83 years since (see Jamal Greene, *The Anticanon*, 125 Harv L Rev 379, 418 [2011]). In *Lochner v New York*, the Court held that New York deprived bakers of the “the general right of an individual to be free in his person and in his power to contract in relation to his own labor” (198 US 45, 58 [1905]). The Court articulated a new, heightened protection for some class of economic liberty, including the right to contract freely:

“Statutes of the nature of that under review, limiting the hours in which grown and intelligent men may labor to earn their living, are mere meddlesome interferences with the rights of the individual, and they are not saved from condemnation by the claim that they are passed in the exercise of the police power and upon the subject of the health of the individual whose rights are interfered with, unless there be some fair ground, reasonable in and of itself, to say that there is material danger to the public health or to the health of the employes, if the hours of labor are not curtailed. If this be not clearly the case the individuals, whose rights are thus made the subject of legislative interference, are under the protection of the Federal Constitution regarding their liberty of contract as well as of person; and the legislature of the State has no power to limit their right as proposed in this statute” (*Lochner*, 198 US at 61).

Justice Oliver Wendell Holmes, dissenting in an enviable 650 words, articulated the once and future position of the Court: “state constitutions and state laws may regulate life in many ways which we as legislators might think as injudicious or if you like as tyrannical as this, and which equally with this interfere with the liberty to contract” (*id.* at 75-76 [Holmes, J., dissenting]). Justice Holmes vigorously maintained that it is up to the people and their political representatives to determine the extent of economic regulation, not a constitutional question for courts.

In the roughly 30-year *Lochner* era that followed, an estimated 200 state statutes were found to be unconstitutional

as violative of due process because they interfered with the right to contract—what would come to be known as the first wave of the “substantive due process” doctrine (see Erwin Chemerinsky, *Constitutional Law: Principles and Policies* § 8.2.2 [5th ed], citing Benjamin Wright, *The Growth of American Constitutional Law* 154 [1942]). In *Block v Hirsh* (256 US 135 [1921]), Justice Holmes, this time writing for the Court, drove a crack into *Lochner*’s armor. During the pendency of a lease, the District of Columbia passed new legislation regulating rental property. The landlord objected to the application of the new legislation to the preexisting lease, claiming to do so would deprive him of due process. The Court upheld the statute, noting that “we have no concern of course with the question whether those means were the wisest, whether they may not cost more than they come to, or will effect the result desired” (*id.* at 158).

Unbowed by the Supreme Court’s *Lochner*-era jurisprudence, and perhaps emboldened by *Block*, in 1933, this Court upheld a New York statute setting the price of milk against a due process challenge (*People v Nebbia*, 262 NY 259 [1933]). That proved the turning point. The next year, reviewing *Nebbia*, the Supreme Court retreated to its proper deferential posture:

“So far as the requirement of due process is concerned, and in the absence of other constitutional restriction, a state is free to adopt whatever economic policy may reasonably be deemed to promote public welfare, and to enforce that policy by legislation adapted to its purpose. The courts are without authority either to declare such policy, or, when it is declared by the legislature, to override it. If the laws passed are seen to have a reasonable relation to a proper legislative purpose, and are neither arbitrary nor discriminatory, the requirements of due process are satisfied, and judicial determination to that effect renders a court *functus officio*” (291 US at 537).

The coups de grâce came in *West Coast Hotel Co. v Parrish* (300 US 379 [1937]) and *United States v Carolene Products Co.* (304 US 144 [1938]), where the Court clarified that so long as legislation did not violate a specified constitutional right, “restrict[] those political processes which can ordinarily be expected to bring about repeal of undesirable legislation,” or exhibit “prejudice against discrete and insular minorities,” a

reviewing court must defer to a legislature that employs reasonable means towards a legitimate purpose (*Carolene Products*, 304 US at 152-153 n 4; *Nebbia v New York*, 291 US 502, 537 [1934]).

The post-*Lochner* consensus has held for nearly a century, resting on two principles. The first principle is separation of powers. The legislature, not the courts, determines the extent of economic regulation aimed at goals like health, safety, prosperity and equity. The second principle is that the “freedom to contract” and associated economic liberties are not constitutionally protected rights. Legislation that threatens someone’s pocketbook is not subject to any heightened constitutional scrutiny in the way that, for instance, legislation that discriminates based on sex or race is.

B.

During World War II, civilian industries were mobilized for war. The construction workers who had not become soldiers were put to work making planes, munitions and other wartime necessities. Housing construction dramatically slowed (see Herbert Levy, *Rent Control in New York City: Another Look*, 47 NY St BJ 193, 194 [1975]). In the war’s aftermath, New York City faced a severe housing shortage. Although the federal government had frozen New York City rents during the war, those controls were repealed in 1947, leaving military alumni and their booming families vulnerable (see New York State Division of Housing and Community Renewal, Office of Rent Administration, *Rent Regulation after 50 Years: An Overview of New York State’s Rent Regulated Housing 1993* [1994]). In 1949, the federal government empowered the States to enact rent control laws by giving States authority “to assume administrative control of rent regulation and the power to continue, eliminate or modify the Federal system” (*id.*).

Throughout the 1950s and 60s, New York City took charge of its rent-controlled housing, easing wartime-like rent control laws as it grew more prosperous and as more housing was built. However, by 1969, the City’s housing crisis was once again dire: “the Vietnam War caused a steep rise in the rate of inflation and locally, housing production slumped. The overall vacancy rate which stood at 3.2% in 1965 fell drastically to 1.23% in 1968” (*id.*). War, once again, led to a rapid escalation in New York City rents, which encouraged the City to enact the Rent Stabilization Law of 1969 (RSL). That local law laid the

groundwork for New York's rent stabilization scheme underlying the cases before us, first passed as the Emergency Tenant Protection Act of 1974 (L 1974, ch 576) and subsequently amended in 1983, 1993, 1997, and again in 2019.

The legislature's purpose in rent regulation is conceptually no different than in regulating the hours of bakers or, for that matter, in any law seeking to regulate the welfare of New Yorkers. At bottom, each of the many changes to the rent regulation laws has reflected a legislative judgment about how those benefits and burdens must be weighed so that New York does not slip back into the unregulated tenements of *Lochner* or the strictures of wartime rent control. The HSTPA is just the next set of changes that reflect a legislative response to the current state of New York's housing woes, akin to legislative acts in countless other fields.

As the majority acknowledges, "no party doing business in a regulated environment like the New York City rental market can expect the [Rent Stabilization Law] to remain static" (majority op at 369). As with the workers' compensation system at issue in *American Economy Ins. Co. v State of New York* (30 NY3d 136 [2017]), "[t]he allocation of economic benefits and burdens has always been subject to adjustment," therefore rendering claimed rights to stasis "inchoate" (*id.* at 148 [citations omitted]). Neither landlord nor tenant has any fundamental right to the regulations of the moment, especially within a highly regulated industry such as rent stabilization (*see Matter of Schutt v New York State Div. of Hous. & Community Renewal*, 278 AD2d 58, 58 [1st Dept 2000] ["since rent regulation does not confer vested rights, petitioners' argument that the application of the RRRA's limitation period to pending cases violates due process by depriving them of the benefit of pre-RRRA rent regulation provisions law more favorable to their claims is without merit" (citation omitted)]). Rather, the legislature is free to calibrate its policy decisions to the needs of war, peace and everything in between, so long as its legislation is not irrational. That is the lesson of *Lochner*'s interment.

The majority knows that "legislative judgments are presumptively constitutional and are subject to a rational basis analysis in which the policy preferences of judges have no role" (majority op at 386). Under the majority's view, voiding sections of the HSTPA is not the product of heightened review but rather the product of the rational basis test "meaningfully applied" (*id.* at —), by which the majority means applied, for the first

time since 1937, to strike down economic legislation making a policy choice about social welfare.⁵

In order to justify “meaningful” application of the rational basis standard, the majority asserts that, unlike other economic regulation, the HSTPA threatens “substantive rights” (majority op at 367, 370, 370-371, 379, 380, 387) and “considerable reliance interests” (majority op at 369-370). The majority insists it is not applying *Lochner* analysis, but then concludes that the HSTPA violates due process because its “impact on contract rights is unusually significant” (majority op at 382). It is odd to refer to a landlord’s retention of an illegal rent as a “contract right.” Indeed, the “substantive right” to which the majority refers is not the right of landlords to earn a reasonable return, it is the right to keep rents collected in violation of the rent stabilization laws.⁶

The majority tries to distinguish its holding from *Lochner* by asserting that the HSTPA is retroactive whereas the bakeshop laws were prospective (majority op at 387). That completely misunderstands what makes *Lochner* odious. *Lochner* did not err because it found that wage and hour laws violated the freedom of contract when in reality they did not; it erred because it treated the freedom to contract as a right that could not be overcome by a legislature’s rational attempt to make policy decisions that impaired the economic positions of some while benefitting others. Regardless, as explained at length in part IV *infra* and throughout, the majority’s attempt to distinguish *Lochner* fails because retroactive legislation is subject to the same rational basis review as prospective legislation (see *Landgraf v USI Film Products*, 511 US 244 [1994]; *American Economy Ins. Co. v State of New York*, 30 NY3d 136 [2017]). Today’s majority is analytically indistinguishable from *Lochner*: it applies a substantive due process analysis to invalidate a statute based on economic interests that the majority treats as if they were constitutionally protected rights, when they are not.

5. The normal application of the rational basis test is not “meaningless” just because it was, until now, used to validate rather than eviscerate legislation. Allowing the elected legislature, rather than the courts, to determine how to regulate our economy reflects our meaningful commitment to the separation of powers and democracy.

6. To be clear, there is not a scintilla of evidence in the record that any of these landlords—or any others—will fail to realize a reasonable profit if, as the legislature commanded, part F of the HSTPA is applied to pending claims.

II.

Using the instant cases to reanimate the dead hand of *Lochner* requires a couple of grisly maneuvers. First, we lack jurisdiction to address the HSTPA; second, for prudential reasons if nothing else, striking down a statute on substantive due process grounds when the argument is made for the first time in this Court without record support for the claimed burden and equitable factors (*see e.g.* majority op at 369-370 [citing HSTPA's effect on "considerable reliance interests"]) is both unwise and injudicious.

A.

In these cases, we lack jurisdiction to consider the HSTPA. All four cases are in our Court on certified questions from the Appellate Division. In *McMaster v Gould* (240 NY 379 [1925]), we considered the very jurisdictional issue raised here: when a new statute is enacted after the Appellate Division sends a case to us via certification, do we consider whether the Appellate Division's decision was correct under the new statute or under the law as it was when the Appellate Division rendered its decision? Our decision was clear: "If the court below was right when it certified the question it is still right" regardless of any later changes to the statute (*id.* at 385). Lest there be any doubt, we very shortly before, in *Robinson v Robins Dry Dock & Repair Co.*, explained that when an appeal comes to us in some way other than via a certified question (*e.g.*, as of right from a double dissent or by a leave grant from a final judgment), "the appellate court may dispose of the case in accordance with the law as changed by the statute" (238 NY 271, 281 [1924]).

The majority's attempt to sweep away our long-standing precedents by asserting that the breadth of the Appellate Division's question determines whether we may apply a statute enacted after the Appellate Division's decision is utterly groundless (*see* majority op at 363 n 15). Appellate Division practice cannot overrule Court of Appeals precedent. *McMaster* directs that, when a certified question asks whether the Appellate Division order was properly made, we must answer that question: was the order proper at the time it was made?

The only case cited by the majority to assert that we have jurisdiction to reach the challenges to the HSTPA is *Matter of Gleason (Michael Vee, Ltd.)* (96 NY2d 117, 122 [2001]).

However, *Gleason* was not before us on a certified question. It was a final decision as to which leave was granted, so it falls squarely under *Robinson*'s rule, not *McMaster*'s. The majority's further claim that certifying specific legal questions is a "largely abandoned practice" is irrelevant (majority op at 363 n 15; see *Olsen v Town of Richfield*, 81 NY2d 1024 [1993]; *Flick v Stewart-Warner Corp.*, 76 NY2d 50 [1990]).

B.

Even if we possessed jurisdiction to consider a constitutional challenge to the HSTPA, we should not invalidate a statute on substantive due process grounds when the argument is considered for the first time before us on an empty record.

A party seeking to invalidate a statute on substantive due process grounds bears the burden to prove that the legislature acted without a rational basis (see *Usery v Turner Elkhorn Mining Co.*, 428 US 1, 15 [1976]). Because the HSTPA was enacted after the Appellate Division rendered its decisions in these cases, the parties' briefs in the lower courts, naturally, did not mention the statute and there was no evidence in the record concerning the statute—it did not exist. The majority emphasizes the burdens placed on landlords by the HSTPA without evidence that any substantial burdens exist in the real world. The Court now invalidates part F, § 7 of the HSTPA based on a hypothesized calamity, announcing the severity of the burden as a matter of law, substantiated by nothing. It appears that, although we lack the power to find facts, we have the power to imagine them.

The prudent course here would be to do as we did in *Post v 120 E. End Ave. Corp.*: remit these appeals to Supreme Court (or, in the case of *Matter of Regina Metro. Co., LLC v New York State Div. of Hous. & Community Renewal*, to DHCR) (62 NY2d 19, 29 [1984] ["The amended statute should be applied to this appeal but because the facts have not been developed, we reverse and remit the matter to the Supreme Court for further proceedings"]). In that way, the parties could develop a record that would allow the careful determination of standing, preservation and burden, issues that would be first determined in courts (or an agency) able to find facts and then could come to us on a record that frames our legal determination.

III.

I turn, next, to the fundamental proposition underlying the majority's substantive analysis of the HSTPA: that the HSTPA

is retroactive because it shifts the statute of limitations and revives previously extinguished claims. That is a false premise.

A.

To understand why the HSTPA is not a retroactive “claim revival” statute, one must keep three time periods in mind: (1) the amount of time within which a tenant may challenge the unlawful deregulation of an apartment; (2) the amount of time for which a tenant can claim damages sustained as a result of an unlawful deregulation; and (3) the age of the records a court (or DHCR) can examine to determine what the rental rate would have been if an apartment had not been unlawfully deregulated.

As to the first time period, there is not, and there has never been, a time limit on when a tenant can claim that a unit has been unlawfully deregulated. Both before and after the HSTPA, tenants have always been able to challenge an unlawful deregulation of an apartment, no matter how far in the past the deregulation occurred (*see e.g. Roberts v Tishman Speyer Props., L.P.*, 13 NY3d 270 [2009] [tenants brought suit in 2007 for an unlawful deregulation in 1993]; *Kuzmich v 50 Murray St. Acquisition LLC*, 34 NY3d 84 [2019] [tenants brought suit in 2016 for an unlawful deregulation in 2003]; *Gersten v 56 7th Ave. LLC*, 88 AD3d 189 [1st Dept 2011] [tenants brought suit in 2009 for an unlawful deregulation in 1999]).

As to the second time period, in 1983, the legislature set a four-year limit on rent overcharges that could be recovered as a result of an unlawful deregulation (*see* L 1983, ch 403, § 35). So, although a tenant could always seek a declaration that a unit was unlawfully deregulated 20 years ago, that tenant could recover overcharges sustained only in the four years prior to bringing the complaint. In 1995, if a tenant sued because a unit had been unlawfully deregulated in 1975, the tenant could claim damages for rent overcharges for the years 1991-1995. However, the court (or DHCR) could look back to 1975 to determine what the proper rent *would* have been for the years 1991-1995, had the unit not been unlawfully deregulated, and from that could determine the overcharge, if any, for those years.

As to the third time period, in the 1997 RRRRA, the legislature amended the rent laws to limit courts (and DHCR) to looking back no more than four years from the filing of the complaint to determine the base rate from which the appropriate rental

rate could be calculated (L 1997, ch 116, § 32; *see* Governor's Approval Mem, Bill Jacket L 1997, ch 116 at 40, 1997 McKinney's Session Laws of NY at 1923). Accordingly, as a result of the 1997 RRRRA, a tenant who sued for overcharges in 2002 for an unlawful deregulation occurring in 1975 was limited to the use of records from 1998 or later to establish the rate that should have been charged from 1998 forward. Thus, even after the 1997 amendments, tenants could challenge an unlawful deregulation no matter how many years before that deregulation had occurred and could obtain both an injunction returning the apartment to rent regulated status and a measure of damages. Both before and after the 1997 RRRRA, the period of allowable damages was four years, even if a landlord had unlawfully received decades worth of overcharges.

The HSTPA left the first time period unchanged. Tenants may still bring an action to declare that a unit was unlawfully deregulated at any time. The HSTPA lengthened the second time period, allowing the recovery of six years of overcharges instead of four. Even if a landlord has been overcharging tenants for decades, a tenant can still recover only a portion of the overcharge, though a larger fraction than before. Finally, the HSTPA eliminated the third time period altogether, by repealing the four-year lookback period embodied in the 1997 RRRRA. That repeal allows the courts and DHCR to consider whatever evidence would best establish the rent had the unlawful deregulation never occurred. Simply put: pre-HSTPA, the remedy for an unlawful deregulation, from any time in the past, was four years of damages calculated in one way; post-HSTPA, the remedy is six years of damages calculated in a different way—the way they were calculated until 1997.

The majority's mischaracterization of the changes to the second and third time periods drives its retroactivity claim. Neither change created or extended a statute of limitations. From 1983 until 1997, if a tenant had suffered 20 years of illegal overcharges, the tenant could recover four years of damages determined (in some cases) by looking back 20 years to establish a base rate, carrying that rate forward, and applying it to the four-year period immediately preceding the complaint. From 1997 until 2019, tenants could still recover four years of damages, but the damages were cabined by requiring that the base rate could not be constructed by use of information more than four years before the complaint was filed. The cause of action stemming from the unlawful deregulation remained un-

touched.⁷ Now, through the HSTPA, the legislature has again tinkered with the recoverable amount and relaxed the evidentiary restriction somewhat. Doing so does not revive claims, nor does it make the HSTPA retroactive.

At no point during rent stabilization's long history could a landlord who unlawfully deregulated an apartment use the passage of time to escape an action for (1) a declaration that the apartment was unlawfully deregulated, (2) an order returning it to regulation, and (3) some measure of monetary damages. Therefore, there has *never* been a statute of limitations as to challenges to the wrongful deregulation of apartments. New York's constantly evolving rent laws have once again altered the remedy available to injured tenants, but the claim has always been the same and has never been subject to a limitations period.

B.

The majority's analogy to claim revival statutes is inapt for the reason above—the HSTPA merely alters the fraction of overcharge damages recoverable by tenants and the evidence that may be used to prove the overcharge—and for another reason as well. Claim revival statutes, by definition, permit the assertion of claims that could not otherwise be brought. The claims here were all pending at the time the HSTPA took effect. The subject apartments were all unlawfully deregulated, for which the owners have been and remain liable. Indeed, by using “claims pending” to delineate cases that would be subject to the HSTPA, the legislature expressly did not revive claims that had been extinguished before the statute's effective date.

Comparison to the claim revival examples cited by the majority are instructive. The plaintiffs involved in the World Trade Center recovery efforts, whose claims were revived by Jimmy

7. Indeed, as the majority notes, some of the present plaintiffs are challenging unlawful deregulations that took place “more than a decade” ago (majority op at 356). Just several months ago, we upheld rent overcharge claims in which the unlawful deregulation occurred well outside the four-year lookback period (*Kuzmich*, 34 NY3d 84). The majority observes that the issue before us in *Kuzmich* was purely a question about declaratory relief, but that is merely the posture in which the issue came to us: the case itself simultaneously sought damages for overcharges. In any event, a declaratory judgment is a remedy, not a separate cause of action (see CPLR 3001). A determination of the allowable damages, whether in the 1997 RRRRA or HSTPA, is not a restriction on the cause of action but a legislative judgment about how the appropriate damages remedy should be measured and what evidence should be considered in measuring it.

Nolan’s law (L 2009, ch 440, reviewed in *Matter of World Trade Ctr. Lower Manhattan Disaster Site Litig.*, 30 NY3d 377 [2017]), had been completely barred from filing any claims by the statute of limitations’ expiration. The same is true with the plaintiffs whose DES-related claims were revived by the Toxic Tort Revival Act (L 1986, ch 682, § 4, reviewed in *Hymowitz v Eli Lilly & Co.*, 73 NY2d 487 [1989]). In contrast, the claims here are pending, live claims. The legislature did not “revive” them; it altered the measure of damages and evidentiary rules relating thereto.

Even if part F of the HSTPA could fairly be characterized as a claim revival statute, its intentional application to “claims pending” would survive the majority’s test (*see* majority op at 371 [“When the legislature has intended to revive time-barred claims, it has typically said so unambiguously, providing a limited window when stale claims may be pursued”]). First, as the majority recognizes, the legislature gave each of the HSTPA’s 15 parts “its own effective date provision” and included “claims pending” only in part F’s effective date (majority op at 373). That differentiation is telling; the legislature meant what it said with particularity as to part F.⁸ Second, the claims “revived” have a similarly narrow window to the claims in *Hymowitz* and *Matter of World Trade Ctr.*: only two years of additional damages that would not have been recoverable under the old statute are available to these tenants. Damages covering the period from mid-2015 through June 14, 2019 and beyond were recoverable prior to the passage of the HSTPA and have not in any way been “revived” merely because the courts can look to older evidence to see if and by how much a tenant had been harmed during that period.

8. *Gleason v Gleason* (26 NY2d 28 [1970]), on which the majority relies, undercuts its argument. In *Gleason*, we held that the new no-fault divorce law, which repealed New York’s 200-year-old divorce laws, applied retroactively to a decree of separation entered into 16 years before the new divorce law’s enactment, even though the legislature had not stated that the law was to apply retroactively, or to claims pending, or to previously entered decrees. Instead, we determined that statutory language stating the new two-year period of living apart “shall not be computed to include any period prior to September first, nineteen hundred sixty-six” evidenced the legislature’s intent that the statute was “not to be given wholly prospective application” (*id.* at 36). From that tidbit, we held that the application of the new statute to pre-1966 decrees “offends against neither due process, the equal protection of the law nor any other constitutional provision” (*id.* at 34). In the HSTPA, the legislature stated its intent in terms far clearer than it did in the no-fault divorce law.

The Supreme Court does have a body of law directly on point, concerning the application of newly-enacted legislation to pending cases. The majority ignores that law, preferring instead to misconstrue the Court's decision in *Landgraf v USI Film Products* (511 US 244 [1994]), even though *Landgraf* pointedly reminds us that "the constitutional impediments to retroactive civil legislation are now modest" (*id.* at 272 [emphasis omitted]). *Landgraf*, read correctly and in the context of the larger body of the Supreme Court's decisions, demonstrates the unsailability of the legislature's choice to apply part F of the HSTPA to "claims pending."

Federal law has long recognized that new legislation governs pending cases. In *Thorpe v Housing Authority of Durham* (393 US 268 [1969]), the Supreme Court of North Carolina had held that a new HUD regulation granting tenants additional rights did not apply to pending eviction proceedings. The United States Supreme Court reversed, reaffirming that "[t]he general rule . . . is that an appellate court must apply the law in effect at the time it renders its decision" (*id.* at 281). The Court grounded its holding on *United States v Schooner Peggy* (1 Cranch [5 US] 103 [1801]), in which Chief Justice Marshall explained:

"[I]f subsequent to the judgment and before the decision of the appellate court, a law intervenes and positively changes the rule which governs, the law must be obeyed, or its obligation denied. If the law be constitutional, . . . I know of no court which can contest its obligation. . . . [T]he court must decide according to existing laws, and if it be necessary to set aside a judgment, rightful when rendered, but which cannot be affirmed but in violation of law, the judgment must be set aside" (*id.* at 110).

The Supreme Court has repeatedly reaffirmed that rule. "[T]he dominant principle is that *nisi prius* and appellate tribunals alike should conform their orders to the state law as of the time of the entry. Intervening and conflicting decisions will thus cause the reversal of judgments which were correct when entered" (*Vandenbark v Owens-Illinois Glass Co.*, 311 US 538, 543 [1941] [collecting cases]).

In *Bradley v School Bd. of Richmond* (416 US 696, 710-711 [1974]), the Court reasserted that principle in a factual context directly relevant here. While Bradley's case was pending on

appeal, Congress enacted legislation allowing for awards of attorneys' fees in school desegregation cases. Reiterating its long-standing rule, the Court held that as to claims pending when new legislation takes effect "a court is to apply the law in effect at the time it renders its decision, unless doing so would result in manifest injustice or there is statutory direction or legislative history to the contrary" (*id.* at 711). Although the statute in *Bradley* did not say it was to apply to pending cases, the Court held that *Bradley* could recover fees under the new statute. The Court concluded that taxing defendants with attorneys' fees where none had previously been allowed did not rise to a manifest injustice, and the absence of a legislative directive barring application to pending cases required application of the standard rule.

As in *Bradley*, the HSTPA has not imposed any new basis for liability: unlawful deregulation of rent regulated apartments was prohibited before and after the new legislation. The amount recoverable by the plaintiffs changed, but, as applied to pending cases, that did not and does not render the statutes unconstitutional. Furthermore, unlike the Congress in *Bradley*, our legislature was vocal, not mute. The changes made by part F of the HSTPA were intended to "take effect immediately and shall apply to any claims pending or filed on and after such date" (L 2019, ch 36, § 1, part F, § 7). That language "unequivocally convey[s]" that the HSTPA was explicitly formulated to apply to "any claims pending," including the claims before this Court (*see* majority op at 371; *see also Kimmel v State of New York*, 29 NY3d 386, 393 [2017] ["the word 'any' means 'all' or 'every' and imports no limitation" (citation omitted)]). The majority ultimately agrees (majority op at 374 ["the legislature evinced a sufficiently clear intent to apply part F to timely pending claims"]).

Landgraf reinforces the above long-standing rule. The Civil Rights Act of 1991 "create[d] a right to recover compensatory and punitive damages for certain violations of Title VII of the Civil Rights Act of 1964" and "allow[ed] monetary relief for some forms of workplace discrimination that would not previously have justified any relief under Title VII" (*Landgraf*, 511 US at 247, 254). By contrast, the HSTPA creates no new cause of action; the exact same conduct has always been proscribed by New York law. We stated clearly in *Roberts* that it was, and always had been, illegal under the statutory language of the RSL to decontrol luxury apartments while receiving J-51 tax

benefits (see 13 NY3d at 285-286; see also *Becker v Huss Co.*, 43 NY2d 527, 542 [1978] [applying a new contribution requirement in Workers' Compensation Law to conduct that happened prior to the statutory change because "the amendment neither created a new right nor impaired an existing one"]).

That difference—the creation of a new legal obligation as distinct from an alteration in the amount of damages available—was one of the two pillars on which the Supreme Court rested its decision in *Landgraf* that section 102 of the 1991 Civil Rights Act did not apply to pending cases. The majority admits the importance of that distinction when it notes that the legislation involved in *American Economy* did not violate due process because it "subjected the insurers to the possibility of such future costs but did not impose new legal liability" (majority op at 366 n 18). Just as "[t]he insurers were always legally liable for the closed cases" there (*id.*), the landlords have always been liable for unlawful deregulations and rent overcharges here. Just as "the fund merely provided [insurers] potential relief from the uncertain future coverage costs" in *American Economy* (*id.*), the four-year limitation on recoverable damages and the evidentiary lookback period merely provided potential relief to landlords from future rent overcharge cases. The same logic from *American Economy* applies here and should lead us to the same conclusion we reached there, unanimously.

The other pillar on which *Landgraf* rested was that the prior iteration of the bill, which was vetoed by the President and as to which the attempted override failed, "contained language expressly calling for application of . . . the section providing for damages in cases of intentional employment discrimination, to cases arising before its (expected) enactment" (511 US at 255). The subsequent version that passed omitted that language and, in context, the Court concluded that the absence of a legislative directive to apply section 102 to pending cases counseled against doing so. Here, again, the facts are just the opposite: our legislature has told us that part F applies to "claims pending."⁹

9. The majority also relies on our decision in *Majewski v Broadalbin-Perth Cent. School Dist.* (91 NY2d 577 [1998]). That case, like *Landgraf*, turned the absence of a statement in the legislation itself saying it would apply to pending cases, and "[i]mportantly . . . the initial draft of the Act expressly provided that it would apply to 'lawsuit[s] [that have] neither been settled nor reduced to judgment' by the date of its enactment. That language

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IV.

Putting aside, for the moment, the preceding errors, I turn now to the majority's conclusion that part F of the HSTPA, as applied to pending claims, violates substantive due process.

A.

Why do parties seeking to invalidate economic regulatory statutes have such a high burden? Why does a party seeking to invalidate such a statute have to show that the legislature could have had no rational basis for enacting it? The “most relaxed and tolerant” rational basis test applied to substantive due process challenges is rooted in separation of powers doctrine. The New York State Constitution places legislative policy judgments squarely within the province of the legislature (NY Const, art III, § 1).¹⁰ Policy judgments passed into law by the legislature are afforded a strong presumption of constitutionality to ensure that courts do not usurp the legislature's function (see *People v Knox*, 12 NY3d 60, 68-69 [2009]; *Montgomery v Daniels*, 38 NY2d 41, 54 [1975]). Even when a particular regulation may not be wise, “it is for the legislature, not the courts, to balance the advantages and disadvantages of the new requirement” (*Williamson v Lee Optical of Okla., Inc.*, 348 US 483, 487 [1955]; see also *Defiance Milk Prods. Co. v Du Mond*, 309 NY 537, 541 [1956] [“Questions as to wisdom, need or appropriateness are for the Legislature. Courts strike down statutes only as a last resort and only when unconstitutional-ity is shown beyond a reasonable doubt” (citations omitted)]).

Our Court is an unelected body, nominated by the Governor, confirmed by the Senate, and not subject to a popular vote. The

does not appear in the enacted version” (*id.* at 587 [citation omitted]). The majority also fails to mention that *Majewski* reaffirmed that “equally settled” to the canon of construction disfavoring retroactive application of statutes in general “is that ‘remedial’ legislation . . . should be applied retroactively” in line with its legislative intent (*id.* at 584).

10. The majority justifies its revival of substantive due process to invalidate part F, § 7 by a citation to *Campaign for Fiscal Equity v State of New York* (100 NY2d 893, 925, 931 [2003]), calling today's decision a “quintessential judicial function” (majority op at 349-350). *Campaign for Fiscal Equity* involved the right to “a sound basic education” that is specifically enshrined in article XI of the New York State Constitution. The rights of landlords to rent overcharges is not in the text of our Constitution, though the majority unjustifiably pencils it in today. The standard of review for violations of an enumerated constitutional right is heightened, unlike review of an economic regulation under the Due Process Clause, which must satisfy only rational basis scrutiny (see *Carolene Products*, 304 US at 152 n 4; *FCC v Beach Communications, Inc.*, 508 US 307, 313 [1993]).

authority granted by the People of the State of New York to legislate for their benefit and in their name does not reside with the members of this Court. Instead, the legislature and Governor are responsible for making the final policy judgments that become law, and this Court is charged with exercising great restraint before invalidating an expression of popular will.

Separation of powers concerns—and the meager rational basis test used to evaluate substantive due process challenges as a result of those concerns—apply with equal force to regulations that have a retroactive effect. A new provision may have retroactive effect if it “attaches new legal consequences to events completed before its enactment” (*Landgraf*, 511 US at 270-271). When a statute with retroactive effect faces a substantive due process challenge, “the test of due process for retroactive legislation ‘is met simply by showing that the retroactive application of the legislation is itself justified by a rational legislative purpose’” (*American Economy Ins. Co. v State of New York*, 30 NY3d 136, 158 [2017], quoting *Pension Benefit Guaranty Corporation v R. A. Gray & Co.*, 467 US 717, 730 [1984]).¹¹ Although there is a presumption against retroactivity that applies to all legislative provisions, the legislature can negate that presumption merely by “explicitly stat[ing] or clearly indicat[ing]” its intent that a new provision in the law apply retroactively (*Gleason*, 96 NY2d at 122). In *Gleason*, the legislature amended a procedural requirement for reviewing arbitration awards, stating that “all subsequent applications shall be made” in the new manner (*id.* at 120). No other language suggested that the amended statute would apply retroactively. Yet that modest language, its sparse legislative history, and its remedial nature were sufficient to overcome the presumption against retroactivity and convince this Court that the amendment should be applied retroactively (*id.* at 122-123). Thus, even if we were to consider part F of the HSTPA as

11. The majority cites to *Usery v Turner Elkhorn Mining Co.* (428 US 1, 15 [1976]); *General Motors Corp. v Romein* (503 US 181, 191 [1992]); *Pension Benefit Guaranty Corporation v R. A. Gray & Co.* (467 US 717 [1984]); and our recent unanimous decision in *American Economy Ins. Co. v State of New York* (30 NY3d 136, 149 [2017], *cert denied* 584 US —, 138 S Ct 2601 [2018]) for the basic proposition that when a statute applies retroactively, the retroactive effect must itself pass rational basis review in order to comport with due process. The majority fails to mention that in every one of those cases, the Court found that the retroactive effect survived rational basis scrutiny, and the retroactive statute was held constitutional.

retroactive, the legislature has unequivocally indicated its intent that part F apply to “claims pending.”

General Motors Corp. v Romein (503 US 181 [1992]) is particularly instructive. In 1981, the Michigan Legislature allowed employers to decrease workers’ compensation payments made to disabled employees who were receiving benefits under the new, more generous state fund, enacted in 1980. Before the statute’s effective date, employers began to reduce the payments they were making to previously-injured employees. The legislature did not amend the legislation, but instead responded with a joint resolution declaring that the 1981 law was not intended to apply to workers injured prior to the effective date. Despite the legislature’s resolution, the Michigan Supreme Court sided with General Motors, permitting employers to reduce their payments to employees injured before the statute’s effective date (*Chambers v General Motors Corp.*, 422 Mich 636, 375 NW2d 715 [1985]). In response to that decision, the legislature amended the workers’ compensation law, requiring General Motors to pay an additional \$25 million to workers whose payments it had reduced. The United States Supreme Court upheld the amendment, even though General Motors was forced to pay for claims that had expired under the old law, because “[t]he purpose of the 1987 statute was to correct the unexpected results of the Michigan Supreme Court’s *Chambers* opinion. The retroactive repayment provision of the 1987 statute was a rational means of meeting this legitimate objective: It preserved the delicate legislative compromise that had been struck by the 1980 and 1981 laws” (*Romein*, 503 US at 191).

Romein requires that we find part F constitutional as applied to pending cases. In *Roberts*, we held that under the RSL as enacted by the legislature, any building receiving J-51 benefits was not subject to luxury decontrol. Thereafter, a form of judicial chaos, or “understandable confusion” (majority op at 357), ensued (see *Matter of Regina Metro. Co., LLC v New York State Div. of Hous. & Community Renewal*, 164 AD3d 420, 427 [1st Dept 2018] [limiting records to a four-year lookback in the case of a post-*Roberts* illegal rent]; *Taylor v 72A Realty Assoc., L.P.*, 151 AD3d 95, 106 [1st Dept 2017] [refusing to limit records to a four-year lookback in the case of a rent overcharge because that provision would “essentially allow the owner to collect rent that might be in excess of what it could have otherwise charged plaintiffs, based upon its own misapprehen-

sion of the law”] [endorsed by the Attorney General and the DHCR]; *John Manning Irrevocable Trust v Biggart*, 2019 NY Slip Op 31256[U], *3 [Sup Ct, NY County 2019, Lebovits, J.] [explaining that the *Taylor* court’s method of determining the base rent had been “repudiated” by the First Department]; *Matter of 160 E. 84th St. Assoc. LLC v New York State Div. of Hous. & Community Renewal*, 160 AD3d 474 [1st Dept 2018] [affirming the DHCR’s use of a sampling method to determine a default base rate]; *125 Ct. St., LLC v Sher*, 58 Misc 3d 150[A], 2018 NY Slip Op 50092[U] [App Term, 2d Dept, 2d, 11th & 13th Jud Dists 2018] [freezing rent at the last registered rent and disallowing any increases]; *Ferentinos v CF E 88 LLC*, 2018 NY Slip Op 33247[U], *12-13 [Sup Ct, NY County 2018, Cohen, J.] [refusing to freeze the rent at the last registered rent because such a freeze would result in a windfall]).

Before the legislature stepped in by enacting the HSTPA, not only were trial courts and appellate panels within the First Department split, but both the Attorney General and DHCR came down on one side of the split—the side now rejected by the majority. Before the majority here resolved the split, the legislature did. It passed part F of the HSTPA and applied it to all pending claims, setting out clear rules for the courts in determining damages after the understandable confusion following *Roberts* (see *Dugan v London Terrace Gardens, L.P.*, 177 AD3d 1, 9 [1st Dept 2019] [the HSTPA “resolve(s) a split in this Department as to what rent records can be reviewed to determine rents and overcharges in *Roberts* cases”]). Under *Romein*, clearing up judicial confusion about a prior statute meets rational basis scrutiny as to retroactive legislation (*Romein*, 503 US at 192).¹²

12. The majority suggests that clarifying judicial confusion post-*Roberts* is an insufficient rational basis to sustain part F, § 7 on due process grounds because “[t]he amendments impact far more than overcharges associated” with *Roberts* (majority op at 384). The majority’s argument improperly imports the narrow tailoring requirement of strict scrutiny into the rational basis test. If this were strict scrutiny analysis, the majority would be correct that the HSTPA is not narrowly tailored to a compelling government interest (see *Grutter v Bollinger*, 539 US 306, 326 [2003]). But in rational basis review, we ask only “whether there is any conceivable rational basis justifying” the statute and not “whether the conceived reason for the challenged distinction actually motivated the legislature” (*Beach Communications*, 508 US at 309, 315). *Olsen v Nebraska ex rel. Western Reference & Bond Assn., Inc.* (313 US 236 [1941]) is instructive. In that case, an employment agency challenged a Nebraska statute that limited an agency’s maximum fee to 10% of the first

(n. cont’d)

A party challenging a statute as violative of due process bears the burden “to establish that the legislature has acted in an arbitrary and irrational way” (*Turner Elkhorn*, 428 US at 15). Here, not only does the majority strike down part F, § 7 of the HSTPA in the face of *Romein*’s clear precedent, but it does so without requiring the parties challenging the HSTPA’s constitutionality to prove anything.

The majority can find no solace in *Eastern Enterprises v Apfel* (524 US 498 [1998]). There, as the majority notes, the Supreme Court held that retroactive application of a coal miner health care benefit scheme was unconstitutional (majority op at 377, 381-382). But only Justice Kennedy, in a sole concurrence, believed that the law violated substantive due process. The plurality rested on a takings theory, pointedly noting that “this Court has expressed concerns about using the Due Process Clause to invalidate economic legislation” and quoting *Williamson*’s postmortem for the *Lochner* era: “The day is gone when this Court uses the Due Process Clause . . . to strike down . . . laws, regulatory of business and industrial conditions” (*Eastern Enterprises*, 524 US at 537-538, quoting *Williamson*, 348 US at 488). The majority’s attempt to use Justice Breyer’s *dissent* in that case to support the use of a due process challenge to invalidate retroactive legislation is a farrago. In the passage that the majority quotes (majority op at 387-388, quoting *Eastern Enterprises*, 524 US at 557 [Breyer, J., dissenting]), the four-Justice dissent was criticizing the plural-

month’s wages for a candidate successfully placed. The agency challenged on two grounds: first, under *Ribnik v McBride* (277 US 350 [1928]), a *Lochner*-era case that struck down a New Jersey statute regulating employment agency fees on substantive due process grounds as “an arbitrary interference with the right to contract” (*id.* at 356); and second, that the Nebraska statute was poorly designed, such that it failed to serve those “in need of special protection from exploitation” while harming “those members of the community for whom it is most difficult to obtain jobs” and thus, the agency contended “there are no conditions which the legislature might reasonably believe would redound to the public injury unless corrected by such legislation” (*Olsen*, 313 US at 246). The Supreme Court rejected the first rationale as “notions of public policy embedded in earlier decisions of this Court but which, as Mr. Justice Holmes long admonished, should not be read into the Constitution” (*id.* at 247). The Court rejected the second rationale in its entirety: “We are not concerned . . . with the wisdom, need, or appropriateness of the legislation” (*id.* at 246). Contrary to the majority’s suggestion, there is no room in a rational basis inquiry for a court to opine as to whether legislation addresses a legitimate purpose effectively, narrowly or sufficiently, only whether it addresses a conceivable purpose in a manner that is not wholly irrational.

ity for trying “to torture the Takings Clause to fit this case” when the claim was properly analyzed under due process (*Eastern Enterprises*, 524 US at 556).¹³ Justice Breyer, speaking for himself and three other Justices, emphasized that Congress’ decision to make an employer pay retroactively for past health costs of its employees did not violate the Due Process Clause. I agree with the majority that the HSTPA is constitutional unless it fails a due process analysis. I, along with eight members of the *Eastern Enterprises* Court, part with the majority in its application of a moribund 1920s version of due process analysis.

Furthermore, were one to accept the majority’s assertion that “there may be some correlation between due process and takings analyses of retroactive legislation” (majority op at 382 n 27), settled takings jurisprudence would doom the majority’s invalidation of part F, § 7. For a real property regulation to constitute a taking, it must entirely prevent the property from being economically viable (see *Lucas v South Carolina Coastal Council*, 505 US 1003, 1019 [1992] [“when the owner of real property has been called upon to sacrifice *all* economically beneficial uses in the name of the common good, that is, to leave his property economically idle, he has suffered a taking”]; *Rent Stabilization Assn. of N.Y. City v Higgins*, 83 NY2d 156, 173 [1993] [“Regulation of private property constitutes an unconstitutional taking if it denies an owner economically viable use of the property (a per se regulatory taking), or if it does not substantially advance legitimate State interests”]).

The majority next turns to our tax jurisprudence, which is equally unavailing as a basis on which to invalidate part F, § 7 of the HSTPA. In *Matter of Replan Dev. v Department of Hous.*

13. The *Ferguson* citation in the portion of Justice Breyer’s dissent excerpted by the majority (majority op at 387-388) gives the historical background on “a time when the Due Process Clause was used by this Court to strike down laws which were thought unreasonable, that is, unwise or incompatible with some particular economic or social philosophy. In this manner the Due Process Clause was used, for example, to nullify laws prescribing maximum hours for work in bakeries” and concludes:

“there are arguments showing that the business of debt adjusting has social utility, but such arguments are properly addressed to the legislature, not to us. We refuse to sit as a ‘superlegislature to weigh the wisdom of legislation,’ and we emphatically refuse to go back to the time when courts used the Due Process Clause ‘to strike down state laws, regulatory of business and industrial conditions, because they may be unwise, improvident, or out of harmony with a particular school of thought’” (372 US at 729-732 [footnotes omitted]).

Preserv. & Dev. of City of N.Y. (70 NY2d 451 [1987]), we adopted a “harsh and oppressive” standard when evaluating the retroactive application of a tax statute under due process. In *Replan*, a prior tax statute had exempted certain increases in the assessed value of property when the petitioner began renovating two buildings. We held that the petitioner “could not have justifiably relied” on the exemption and that the amendment in question did not unconstitutionally deprive the petitioner of due process (*id.* at 453). In doing so, this Court constructed a new test for tax statutes: “Retroactivity provisions in tax statutes, if for a short period, are generally valid, and ordinarily are upheld against due process challenges, unless in light of ‘the nature of the tax and the circumstances in which it is laid’, the retroactivity of the law is ‘so harsh and oppressive as to transgress the constitutional limitation’ ” (*id.* at 455 [citations omitted]; see also *James Sq. Assoc. LP v Mullen*, 21 NY3d 233, 246 [2013]).

Replan’s “harsh and oppressive” standard was lifted verbatim from the United States Supreme Court’s holding in *Welch v Henry* (305 US 134, 147 [1938]). After we decided *Replan*, the Supreme Court overturned *Welch* (see *United States v Carlton*, 512 US 26, 30 [1994] [“The due process standard to be applied to tax statutes with retroactive effect . . . is the same as that generally applicable to retroactive economic legislation”]). *Carlton* made clear that cases like *Welch*, which applied a heightened rational basis scrutiny to tax statutes, “were decided during an era characterized by exacting review of economic legislation under an approach that has long since been discarded” (*id.* at 34 [internal quotation marks and citation omitted]). Thus, *James Sq.* mistakenly relied on *Replan* without noticing *Carlton*. We recognized as much in *Caprio v New York State Dept. of Taxation & Fin.* (25 NY3d 744, 752 [2015] [“the ‘harsh and oppressive formulation . . . does not differ from the prohibition against arbitrary and irrational legislation that applies generally to enactments in the sphere of economic policy’ ”]). To the extent that *Replan* and *James Sq.* apply any form of heightened scrutiny to due process review of economic legislation, they are not good law.

B.

The Supreme Court proclaimed that using “the vague contours of the Due Process Clause to nullify laws which a majority of the Court believe[s] to be economically unwise” is an

abandoned practice (*Ferguson*, 372 US at 731 [internal quotation marks omitted]). Even retroactive statutes will withstand a due process challenge “[p]rovided that the retroactive application of a statute is supported by a legitimate legislative purpose furthered by rational means” (*Carlton*, 512 US at 30-31). Thus, contrary to the majority’s bifurcation, there is no difference in the Supreme Court’s jurisprudence when evaluating retroactive economic legislation and prospective economic legislation under due process: in both cases, courts are instructed to apply the rational basis test.¹⁴

Putting aside, for a moment, that it would be the landlords’ burden to demonstrate that the application of part F to “claims pending” could have no rational purpose, and also putting aside the complete absence of a record showing any irrationality in the legislature’s action, the proper way to analyze part F under the Due Process Clause would be to examine each challenged element separately, asking whether it has been proved to serve no rational purpose (see *Matter of Beary v City of Rye*, 44 NY2d 398, 411 [1978] [deciding whether each provision of a statute had retroactive effect]; see also L 2019, ch 36, § 1, part M, § 28 [“If any provision of this act, or any application of any provision of this act, is held to be invalid, that shall not affect the validity or effectiveness of any other provision of this act, or of any other application of any provision of this act, which can be given effect without that provision or application; and to that end, the provisions and applications of this act are severable”]). In so doing, we must keep in mind that “[t]here is, of course, not only an exceedingly strong presumption of constitutionality . . . but a further presumption that the Legislature has investigated for and found facts necessary to support the

14. The majority’s citation to three courts from other states that invalidated statutes on due process grounds does not bear on this appeal. In *Moe v Sex Offender Registry Bd.* (467 Mass 598, 6 NE3d 530 [2014]) and *San Carlos Apache Tribe v Superior Court ex rel. County of Maricopa* (193 Ariz 195, 972 P2d 179 [1999]), the courts explicitly grounded their holdings only in their respective state constitutions. In *Neiman v American Natl. Prop. & Cas. Co.* (236 Wis 2d 411, 419, 613 NW2d 160, 163 [2000]), the Wisconsin court applied a balancing test where “the public interest served by the statute is weighed against the private interest that it overturns, including any unfairness caused by the retroactivity”—a test for constitutionality under the Wisconsin Constitution, established by Wisconsin case law, that is not the test used to evaluate claims under the US Constitution or in New York. The need to resort to inapposite foreign state constitutions highlights the majority’s error here.

legislation” (*I. L. F. Y. Co. v Temporary State Hous. Rent Commn.*, 10 NY2d 263, 269 [1961]).

Court Reliance on Records More than Four Years Old

The HSTPA allows a court, in determining the lawful rent, to consider records older than four years before the last registration or annual report was filed; whereas the prior law (the 1997 RRRA) had limited courts to records within four years of a filed complaint. A plain rational purpose is evident: the legislature wishes courts to have access to all the evidence that is available to them when trying to establish what the regulated rent for an unlawfully deregulated apartment should be. That had been the law prior to the passage of the 1997 RRRA; the legislature merely changed an evidentiary rule about what courts may consider. By allowing courts to consider (or reject) old but reliable evidence of an overcharge, the legislature provided the return to a more flexible rule of evidence, and in so doing resolved a split within the First Department, deciding to side with the Attorney General and DHCR. That choice reflects a legitimate legislative purpose.

Change in Period Used to Measure Rent Overcharge Damages

The legislature chose to change the measure of damages for unlawful deregulation from a maximum of four years to a maximum of six years. That change represents its policy judgment about how much harm tenants living in illegally deregulated apartments have suffered (and should be compensated for) and how much landlords have improperly benefitted from unlawful deregulation while receiving J-51 tax benefits. It is important to remember that, on January 16, 1996, DHCR erroneously advised landlords that they were entitled to luxury decontrol of their apartments even while receiving J-51 tax abatements. Almost 14 years thereafter in *Roberts*, we held that DHCR was wrong, and all those apartments had been unlawfully removed from the rent-controlled housing stock within New York City (*Roberts*, 13 NY3d at 287). According to the majority, citing an amicus, 50,000 or more apartments were unlawfully removed from rent regulation between 1996 and 2009 because of DHCR’s erroneous statement of the law (majority op at 360). Surely, the legislature was free to reexamine the sufficiency of the four-year damages measurement period and decide, while not permitting full recovery back to the date of the illegal deregulation, something more was required to adjust the balance after the DCHR-induced mass removal of rent-regulated apartments and the attendant overcharges stretch-

ing, in many cases, much longer than six years. It is fair to say that the legislature, when it set the four-year period for overcharge damages, could not have imagined a 14-year period of unlawful deregulation involving 50,000 apartments.¹⁵

In essence, both the 1997 RRRA's four-year measuring period and the HSTPA's six-year measuring period are akin to a liquidated damages statute. They both serve to render damages awards, often in amounts smaller than the actual damages sustained as a result of overcharges. Suppose the legislature said that in the event of a rent overcharge, in an effort to promote judicial economy and to avoid evidentiary problems, the landlord must pay damages to the tenant at a rate of \$10 per square foot per year. If the legislature then changed the statutory award to \$15 per square foot, because a lack of clarity in the law had caused a large, unexpected and protracted surge in illegal deregulations, it would be fully within its rights to do so. Simply because the measure used by the legislature is stated in terms of years, rather than dollars or square feet, does not render it unconstitutional (or a "revival" of claims). Look at it this way: any landlord who illegally deregulated an apartment 20 years ago, and who will now be liable for only six years of overcharges, has received a windfall. Any landlord who illegally deregulated an apartment five years ago, and is liable for only five years of overcharges, is merely refunding the unlawful overcharge in full. A legislative determination that, in view of the *Roberts* snafu, an increase in the allowable overcharge damages was necessary as to pending cases is exactly the sort of policy judgment with which we are forbidden to interfere.¹⁶

15. Again, the majority's observation that this feature of the HSTPA would affect not just unlawful *Roberts* deregulations, but other deregulations as well, would be appropriate under a narrow tailoring analysis pursuant to strict scrutiny but is irrelevant under rational basis scrutiny.

16. In this regard, the majority offers a misleading illustration of the "destabilizing effect" of the HSTPA by referencing the dissenting Appellate Division Justice's comparison of the \$285,390.39 award under DHCR's interpretation of the previous law compared to the \$10,271.40 claimed by the landlord as the appropriate measure of damages under that law (majority op at 382-383). First, DHCR's award would have been substantially lower had the landlord attempted to prove the value of individual apartment improvements (IAIs) for the subject apartment. DHCR specifically noted that it would have allowed the landlord to reduce the \$285,390.39 award by proving the IAIs, but the landlord failed to tender it any evidence on that score. The landlord, belatedly, asserted IAIs that would have reduced the \$207,096 pre-

(n. cont'd)

Furthermore, the legislature's choice to alter the way in which overcharge damages are measured aligned with the Attorney General's, DHCR's, and First Department's reading of the 1997 RRRA in *Taylor*. It thus provided a "legislative judgment about what the law in question should be" (*Gleason*, 96 NY2d at 122). The plain language of the HSTPA, the urgency with which it was passed, its remedial nature, and its clear policy choice are more than sufficient to rebut any "deeply rooted" presumption against retroactivity and demonstrate its lawfulness.

Record Maintenance and Production

What the majority calls the HSTPA's "document retention policy" is not really that. Before the HSTPA's effective date, the statute read "[a]ny owner who has duly registered a housing accommodation . . . shall not be required to maintain or produce any records relating to rentals of such accommodation for more than four years prior to the most recent registration or annual statement for such accommodation." That language did not require a landlord to retain or produce anything; it barred the courts and DHCR from ordering a landlord to maintain or produce records dating more than four years from the most recent registration statement for an apartment.

The HSTPA altered that provision to read that a landlord

"shall not be required to maintain or produce any records relating to rentals of such accommodation for more than six years prior to the most recent registration or annual statement for such accommodation. However, an owner's election not to maintain records shall not limit the authority of the division of housing and community renewal and the courts to examine the rental history and determine legal regulated rents pursuant to this section" (RSL [Administrative Code of City of NY] § 26-516 [g]).

interest award to \$141,147.24. Second, the rent collected by the landlord from these tenants over the period for which overcharges were measured was \$576,726, which should be compared to the \$141,147.24 award exclusive of interest and inclusive of the IAI's that the landlord could have claimed, to allow for an apples-to-apples comparison as to the effect of the HSTPA (on the majority's assumption that the method used by DHCR was equivalent to what the HSTPA allows). Thus, DHCR determined that the rent had been inflated by 24% and ordered a refund in that amount. The nominal award sounds large, but only when taken out of the context of tenants who paid more than half a million dollars in rent. Whether such expensive apartments should be subject to rent control is a fair question—for the legislature, not us.

The first modification prohibits a court or DHCR from ordering landlords to produce or maintain records that are more than six years older than the most recent registration statement, but, like the prior version, does not require landlords to retain any records absent court or agency action.

Moreover, under both the old law and the HSTPA, the “record retention” period ran from the most recent registration, not from the time of a tenant’s complaint. Prior to the HSTPA, a landlord who deregulated a unit in 2000 and stopped filing registrations (*see* majority op at 354) could not be required to maintain or produce records prior to 1996 but could still be required to produce records that were 20 years old (or more) at the time of the complaint. Post-HSTPA, the same court could require the landlord to produce or retain records back to 1994. If, shortly after *Roberts*, a tenant filed suit for a 2000 deregulation, would the incremental difference between the 14 years of records (1996-2010) and 16 years of records (1994-2010) be so burdensome as to void this provision of the HSTPA?¹⁷ Although the majority speculates that landlords may have destroyed records the moment the four-year lookback period expired (majority op at 379), landlords have numerous other reasons to retain records, including IRS audits (seven years); proof of depreciation of various assets (up to 40 years for residential rental real property); corporate record retention policies and the like. The majority’s mere speculation that landlords may have destroyed records in reliance on the previous provisions of the rent regulation laws is surely insufficient to establish the existence of a fundamental right in those prior provisions. In any event, no landlord here has claimed that it failed to preserve old records, much less that it did so on reliance on this statutory provision.

The second modification expressly allows the courts and DHCR to examine the rental history even if a landlord has not

17. The majority fails to recognize that this provision is not directed at unlawful deregulations, where an apartment is removed from registration. If it were, the legislature likely would have protected records dating back from the time of a tenant’s complaint, not the time of the last registration, which could be 20 years or more prior to the complaint. The only reason that the record retention provision is being considered in cases where the most recent registration long predates the proceeding is because of litigation in the wake of *Roberts*, which the legislature could not have predicted. Rather, the “maintain or produce” language is meant to protect landlords who do file timely, but incorrect, registration statements—statements that show an illegal rent for an apartment the landlord still considers regulated.

maintained records. A rational basis for that change is obvious: if damages may now be calculated on a six-year basis, DHCR and the courts should not be constrained by the prior language limiting their authority to order maintenance or production of documents in a given case to four years. Further, the second modification makes clear that a landlord's failure to keep documents does not divest DHCR or the courts from using other information—for example, rental history—to attempt to arrive at the appropriate regulated rent figure. That proposition is hardly novel: courts and agencies, faced with the unavailability of information formerly held by a party, should use the best information available to reach a decision; that legislative purpose is self-evident.

Treble Damages for Willful Infringement

The HSTPA, like preexisting law, required the assessment of treble damages for a willful unlawful deregulation of dwellings. Under the prior law, treble damages were calculated based on two years' worth of overcharges, even though four years of overcharges could be recovered. Under the HSTPA, treble damages are measured against the full overcharge amount, that is, up to six years of overcharges.

Treble damages, as applied to willful violations of law, may serve several functions. They may serve as a strong deterrent, thus enhancing compliance with the law. They may serve a claim-pursuing function, encouraging vigorous challenges by private parties, which has both a deterrent and compensatory effect. They may also serve a punitive purpose directed at noxious violations of law (*see e.g. Brunswick Corp. v Pueblo Bowl-O-Mat, Inc.*, 429 US 477, 486 n 10 [1977] [antitrust]; *Universal Health Services, Inc. v United States ex rel. Escobar*, 579 US —, —, 136 S Ct 1989, 1996 [2016] [False Claims Act]; *State of N.Y. ex rel. Grupp v DHL Express [USA], Inc.*, 19 NY3d 278, 286 [2012] [New York's False Claims Act]).

None of these defendants willfully violated the law by deregulating apartments according to then-existing DHCR guidance (*see majority op at 356; RSL § 26-516 [a] [2] ["A penalty of three times the overcharge shall be assessed upon all overcharges willfully collected by the owner starting six years before the complaint is filed"]*). All of the relevant plaintiffs have sought treble damages, but because they are not entitled to them as a matter of law (which the majority correctly recognizes as the consequence of *Borden v 400 E. 55th*

St. Assoc., L.P., 24 NY3d 382, 398 [2014]; *see* majority op at 356), deciding the constitutionality of that provision is not necessary to deny their claims. We should not gratuitously hold a statutory provision unconstitutional when there is a nonconstitutional basis on which to resolve the issue (*see People v Finckelstein*, 9 NY2d 342, 345 [1961]).

That aside, the legislature could have made a rational determination that, whereas the vast majority of the illegal deregulations it sought to address were unintentional, because DCHR provided an incorrect legal interpretation, some landlords may have illegally deregulated apartments for reasons having nothing to do with reliance on DCHR's analysis, and may have known at the time that they were engaged in illegal deregulation. Because the legislature, in passing the HSTPA, decided not to allow tenants to recover their full overcharges, the legislature could rationally have determined that the overall cost of the illegal deregulation to the system should be borne differentially between the many landlords who relied on DCHR and the few who knowingly chose to violate the law. The treble damages, in this circumstance, would work as an allocation based on fault rather than as a penalty; such an allocation would be rational.

As to claims based on an unlawful deregulation occurring before the HSTPA's effective date, the deterrent rationale is absent (because the unlawful deregulation occurred prior to the HSTPA's enhancement of treble damages), and the claim-pursuing rationale is weakened though not absent (because the increase in treble damages provides a greater incentive to pursue pending actions vigorously, even though the claims have already been filed). The punitive rationale remains. Those rationales are sufficient to surmount a due process challenge on this vacant record.

However, New York courts have recognized that treble damages may be "punitive in nature and obviously designed to severely punish owners who deliberately and systematically charge tenants unlawful rents, while deterring other owners of stabilized premises who might be similarly inclined" (*Matter of H.O. Realty Corp. v State of N.Y. Div. of Hous. & Community Renewal*, 46 AD3d 103, 108 [1st Dept 2007]; *see also* Senate Introductor's Mem in Support, Bill Jacket, L 2019, ch 36). Such damages "share key characteristics of criminal sanctions" (*Landgraf*, 511 US at 281 [dicta]). If legislatively applied to past conduct, the imposition of treble damages may "raise a

serious . . . question” under the Ex Post Facto Clause of the Federal Constitution (*id.*).

“The Ex Post Facto Clause of the United States Constitution prohibits states from enacting laws that criminalize prior, then-innocent conduct; increase the punishments for past offenses; or eliminate defenses to charges for incidents that preceded the enactment” (*Kellogg v Travis*, 100 NY2d 407, 410 [2003]). It applies to statutes that “seek to impose a *punishment*” (*id.*). Although it is usually applied to criminal statutes, the clause “may also be applied in civil cases where the civil disabilities disguise criminal penalties” (*Louis Vuitton S.A. v Spencer Handbags Corp.*, 765 F2d 966, 972 [2d Cir 1985]). If the damages in a particular case are “punitive” or “exemplary” and are retroactively imposed (*Landgraf*, 511 US at 281), a civil court can evaluate whether the damages violate the Ex Post Facto Clause.

Whether the retroactive application of treble damages rose to such a level as to be punitive rather than redistributive might pose a constitutional problem under the Ex Post Facto Clause. Such a determination, of course, would need to await the award of treble damages in a particular case.¹⁸ Therefore, we can say only that retroactive application of these damages may pose a constitutional issue that lower courts can evaluate if relevant to some case at bar.

Mandatory Attorneys’ Fees

Finally, the HSTPA made attorneys’ fees mandatory in any case in which a landlord was found to have violated the statute. However, a change from permissive to mandatory fees does not expand the scope of the fees that can be collected or retroactively change liability for a landlord’s illegal conduct (*see Landgraf*, 511 US at 270). In *Bradley*, the Supreme Court approved precisely this legislative change, allowing a new statute awarding attorneys’ fees to apply to pending litigation (*see* 416 US at 724). Mandating attorneys’ fees for pending actions easily passes rational basis scrutiny by providing an incentive for plaintiffs’ counsel to pursue their pending claims more vigorously. The same purpose that satisfies rational basis scrutiny for mandatory awards of attorneys’ fees in new cases—encouraging suits to combat unlawful deregulation in the face

18. Under a portion of the majority’s holding with which I agree, none of the landlords in these cases can be held to be willful violators, and therefore cannot be subjected to treble damages.

of New York City's "grave emergency" (RSL § 26-501)—meets that standard in pending cases as well. Those cases are "pending," not over and, indeed, may be far from over, as is the case with three of the four cases before us, even under the majority's holding. Through awards of attorneys' fees, the legislature provides incentives to tenants—not merely to file claims, but also to pursue them vigorously. Mandatory attorneys' fees are a time-honored way to provide that incentive.

V.

The greatest irony attendant to the majority's opinion appears when one compares today's decision with our Court's treatment of the RRRA, which, in 1997, altered the rent regulation laws in a way that substantially favored landlords.¹⁹

The legislature has judged the rent regulations laws, from their very inception through the HSTPA's amendments, to be both remedial and urgent (*see Gleason*, 96 NY2d at 122). RSL § 26-501 states that "a serious public emergency continues to exist in the housing of a considerable number of persons within the city of New York" and that "unless residential rents and evictions continue to be regulated and controlled, disruptive practices and abnormal conditions will produce serious threats to the public health, safety and general welfare" (*id.*; *see also* RSL § 26-502). The HSTPA, intending to update and refine the legislature's response to that persistent crisis, was likewise urgent.

The majority acknowledges that "the 'claims pending' language is sufficiently clear to evince legislative intent to apply the amendments to at least some timely overcharge claims that were commenced prior to enactment" (majority op at 373). Nevertheless, the majority refuses to follow the legislature's

19. The majority posits: "No *Landgraf* analysis was necessary with respect to application of the 1997 lookback rule to pending cases because, unlike the sea change created by the HSTPA part F amendments, it did not have a truly retroactive effect on liability" (majority op at 380-381). Funny, the Senate Sponsor's Memorandum in support of the 1997 RRRA says: "This bill dramatically reforms New York State's system of rent regulation in many important respects" (Bill Jacket, L 1997, ch 116 at 36). The Governor's Approval Memorandum describes the legislation as constituting "historic reforms to New York's system of rent regulation" (Bill Jacket, L 1997, ch 116 at 40, 1997 McKinney's Session Laws of NY at 1923). Not only is "sea change" found nowhere in the HSTPA or its legislative history, but if there is to be some meaningful rank-ordering of "historic," "dramatic" and "sea change," I would place them in that order: Hurricane Sandy was historic and Irene dramatic. The sea changes twice daily.

direction to apply part F to pending claims. In stark contrast, we deferred to the 1997 New York Legislature when it restricted, rather than expanded, the types of evidence and, hence, amount of damages recoverable in rent overcharge complaints. In 1997, as a result of the RRRA, tenants were barred from introducing the rental history of an apartment prior to four years from when they made their rent overcharge claim. In 1996, more documentation had been allowed; in 1997, the documentation a tenant could introduce at trial was explicitly limited, curbing a tenant's ability to bring a rent overcharge claim and reducing the amount recoverable.²⁰

20. The majority contends that the 1997 legislature was merely effectuating the intent of the 1983 legislature, which restricted the damages period of an overcharge claim to four years and meant to restrict the evidentiary burden also. Nothing in the 1997 legislative history supports that proposition. Instead, the majority cites the legislative history of the failed 1996 legislation, which claims to know the intent of the legislature 13 years earlier. Putting aside the problem that the legislative history on which the majority relies is not from the legislation that passed, the legislature's characterization of what its predecessor legislature meant is of dubious, if any, value. As we have noted:

"Doubtless the legislative construction of the earlier statute is without binding force in any judicial proceeding. We cannot say that the Legislature has here attempted to interpose its authority upon the courts in regard to the construction of the earlier statute. In any matter brought before the courts in which rights of any party may be dependent upon the proper construction of the earlier statute, the courts are still free to place their own construction upon it, which may be contrary to the construction placed upon it by the Legislature. The validity of the provisions of the later statute does not depend upon the declaration of the legislative construction of the earlier statute. That declaration may be disregarded by the courts" (*City of New York v Village of Lawrence*, 250 NY 429, 447-448 [1929]).

Moreover, after the 1983 amendments, courts regularly interpreted the 1983 rent regulation as permitting DHCR and the courts to look back far beyond four years of rental records to determine the base rent and corresponding overcharges (see e.g. *Matter of Vinsue Corp. v State of N.Y. Div. of Hous. & Community Renewal*, 169 AD2d 592 [1st Dept 1991]; *Carol Turner, 308 Realty v Spear*, 134 Misc 2d 733 [Civ Ct, NY County 1987]). Had the courts genuinely misinterpreted the 1983 legislature's true intent, one would expect the legislature to have acted much more rapidly than the 14 years it took for the legislature to "clarify" its true intent (see *Mayer v City Rent Agency*, 46 NY2d 139, 149 [1978] ["The city council's carefully calculated characterization of Local Law No. 76 as 'clarifying' its intent when Local Law No. 30 was enacted must give way to the substantive fact that under Local Law No. 30 as originally enacted authorized rent increases based on labor pass-along were allowed in addition to annual 7½% permitted increases, whereas Local

(n. cont'd)

The 1997 RRRA stated that amendments such as this one “shall apply to any action or proceeding pending in any court or any application, complaint or proceeding before an administrative agency on the effective date of this act” (L 1997, ch 116, § 46 [1]). Therefore, we deferred. We simply looked to the language of the statute and held that, for example, “[b]y its terms, the Rent Regulation Reform Act of 1997 (L 1997, ch 116) applies to any proceeding that was pending before the New York State Division of Housing and Community Renewal at the time of its enactment” (*Matter of Partnership 92 LP v State of N.Y. Div. of Hous. & Community Renewal*, 11 NY3d 859, 860 [2008]). By the terms of the HSTPA, the legislature specifically included the word “pending,” making clear that it did not want the new provisions in part F to only apply to future claims. Nevertheless, the majority refuses to defer, even though the HSTPA’s expanded evidentiary provision that the majority uses to proclaim that landlords’ rights have been violated is the exact mirror of the provision changed by the 1997 RRRA.

We have also deferred to changes in the Real Property Law that affected landlords and tenants. In 1983, the New York Legislature amended section 226-b of the Real Property Law (L 1983, ch 403, § 37). That amendment prevented a tenant from assigning his or her lease to another party without the landlord’s consent, unless the tenant’s lease stated otherwise. The amended section stated that “[t]he provisions of this section . . . shall apply to all actions and proceedings pending on the effective date of this section” (Real Property Law § 226-b [7]), and our Court did not hesitate to apply the statute to leases signed prior to the effective date of the amendment. Even though the tenant’s rights under the lease were impaired by applying the new law to pending leases and lawsuits, we applied the statute to pending cases, as the legislature commanded, because the express language of the statute conveyed the legislature’s clear intention (see *Blum v West End Assoc.*, 64 NY2d 939, 941 [1985]; *Vance v Century Apts. Assoc.*, 61 NY2d 716, 718 [1984]; *Bennett v Rockrose Dev. Corp.*, 106 AD2d 256, 257 [1984], *affd* 64 NY2d 1155, 1156 [1985]; *Fox v 85th Estates Co.*, 100 AD2d 797, 797 [1984], *affd* 63 NY2d 1009, 1010 [1984]; *Sitomer v Melohn Props. Mgt.*, 108 AD2d 706, 707 [1985], *affd* 65 NY2d 881, 883 [1985]).

Law No. 76 purported to place labor cost pass-along increases under the general 7½% ceiling”).

Going back to 1961, when the New York Legislature passed a law forbidding retroactive increases in rent, lawful under prior statute, our Court deferred. We easily held that there was a rational basis for passing the statute and that landlords did not have, in any particular rent control rule passed by the legislature, “an interest so vested as to entitle [them] to keep the rule unchanged” (*I. L. F. Y.*, 10 NY2d at 270). The legislature had been clear that the new rules applied to pending proceedings (*see id.* at 266), and we once again deferred to the legislature.

Thus, in every prior case altering the benefits and burdens of the economic relations between landlords and tenants, we have never—until now—held that either group had a substantive right protected by the Due Process Clause, even when the legislative changes applied to pending cases in which the parties had relied on a prior incarnation of the legislation.

VI.

The majority has applied a different framework to the HSTPA than to every other economic and regulatory statute and abandoned jurisdictional and procedural rules along the way. The proud Court that recognized the legislature’s right to address the crisis caused by tenement-based labor is here unrecognizable, as we deny the legislature the right to determine how best to address New York City’s housing crisis. I may not have arrived at the plan devised by the legislature in the HSTPA. But that is not my job. Our Frankensteinian role in resurrecting *Lochner* by assembling ill-fitting fragments of moribund doctrines frightens me, because it portends ill for the future.

In *Matter of Regina Metro. Co., LLC v New York State Div. of Hous. & Community Renewal*: Order insofar as appealed from affirmed, with costs to petitioner Regina Metropolitan Co., LLC, and certified question answered in the affirmative.

Opinion Per Curiam. Chief Judge DiFiore and Judges Stein, Garcia and Feinman concur. Judge Wilson dissents in an opinion in which Judges Rivera and Fahey concur.

In *Raden v W7879, LLC*: Order affirmed, with costs, and certified question not answered as unnecessary.

Opinion Per Curiam. Chief Judge DiFiore and Judges Stein, Garcia and Feinman concur. Judge Wilson dissents in an opinion in which Judges Rivera and Fahey concur.

In *Taylor v 72A Realty Assoc., L.P.*: Order modified, without costs, in accordance with the opinion herein and, as so modified, affirmed, and certified question answered in the negative.

Opinion Per Curiam. Chief Judge DiFIORE and Judges STEIN, GARCIA and FEINMAN concur. Judge WILSON dissents in an opinion in which Judges RIVERA and FAHEY concur.

In *Reich v Belnord Partners, LLC*: Order affirmed, with costs, and certified question answered in the affirmative.

Opinion Per Curiam. Chief Judge DiFIORE and Judges STEIN, GARCIA and FEINMAN concur. Judge WILSON dissents in an opinion in which Judges RIVERA and FAHEY concur.

[156 NE3d 812, 132 NYS3d 90]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ROBERT
HINSHAW, Appellant.

Submitted April 20, 2020; decided September 1, 2020

SUMMARY

APPEAL, by permission of a Justice of the Appellate Division of the Supreme Court in the Fourth Judicial Department, from an order of that Court, entered March 22, 2019. The Appellate Division affirmed a judgment of the Erie County Court (Sheila A. DiTullio, J.), which had convicted defendant, upon his plea of guilty, of criminal possession of a weapon in the second degree and unlawful possession of marihuana.

People v Hinshaw, 170 AD3d 1680, reversed.

HEADNOTE

Crimes — Unlawful Search and Seizure — Traffic Stop — Stop of Vehicle Based on License Plate Check Indicating Previous Impoundment

The stop of defendant's vehicle by a State Trooper based solely on a license plate check indicating that the car had previously been impounded was unlawful, as the Trooper lacked an objectively reasonable suspicion that a crime had occurred or probable cause to stop defendant's vehicle for a traffic infraction. In contrast to the Fourth Amendment, which permits brief investigative stops when a law enforcement officer has a particularized and objective basis for suspecting the particular person stopped of criminal activity, the Court of Appeals has adopted greater protections for pedestrian stops by the police. New York also provides greater protections for traffic infraction vehicle stops—in New York, an officer must have probable cause to stop a vehicle for a traffic infraction. The Trooper did not observe any violations of the Vehicle and Traffic Law and "everything looked good." Putting aside the result of the license plate inquiry, the Trooper candidly testified that he had had no reason to stop defendant. The result of the license plate check provided neither probable cause to conclude a traffic infraction had occurred nor any basis for an objectively reasonable belief that criminal behavior had occurred or was afoot. That defendant's car had at one point been impounded did not provide the Trooper a reasonable suspicion of criminality. Moreover, there were no facts establishing an objective basis to believe that the apparent removal or release of the vehicle from the impound lot was indicative of criminality. Because there was not even a suggestion that the conduct of defendant or his companion had been furtive in character before the police interfered with their car's progress and the record was bare of any objective evidence of criminal activity as of the time of the stop, the stop of defendant's vehicle was invalid.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d Searches and Seizures §§ 60, 61, 88, 278.

CARMODY-WAIT 2d Search and Seizure §§ 173:325, 173:348.

NY JUR 2d Criminal Law: Procedure §§ 218, 492, 503, 510.

ANNOTATION REFERENCE

See ALR Index under Automobiles and Highway Traffic; Search and Seizure.

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Query: stop /3 vehicle automobile /s invalid unlawful &
“license plate” /s probable reasonable

POINTS OF COUNSEL

Mack & Associates, PLLC, Albany (*Lucas G. Mihuta* of counsel), for appellant. I. Reversal is warranted based upon the People’s failure at the suppression hearing to satisfy their *initial burden* of presenting evidence of sufficient cause to establish the legality of the vehicle and traffic stop. (*People v Baldwin*, 25 NY2d 66; *People v Berrios*, 28 NY2d 361; *People v Robinson*, 97 NY2d 341; *People v Spencer*, 84 NY2d 749; *People v Lypka*, 36 NY2d 210; *People v Rosario*, 78 NY2d 583; *Whiteley v Warden, Wyo. State Penitentiary*, 401 US 560; *People v Jennings*, 54 NY2d 518; *People v Havelka*, 45 NY2d 636; *People v Horowitz*, 21 NY2d 55.) II. The physical evidence seized should have been suppressed because New York State Trooper David Gandy lacked reasonable suspicion, at the time he effectuated the traffic stop, to believe that the appellant had committed, was committing, or was about to commit a crime. (*People v Ingle*, 36 NY2d 413; *People v Robinson*, 97 NY2d 341; *People v Spencer*, 84 NY2d 749; *People v Cantor*, 36 NY2d 106; *People v Guthrie*, 25 NY3d 130; *People v Baker*, 87 AD3d 1313; *People v Estrella*, 10 NY3d 945.) III. The appellant was denied due process, and the traffic stop of his vehicle was invalid, because the decision to effectuate the stop was based entirely upon inaccurate criminal justice system records that had not been properly updated. (*People v Jennings*, 54 NY2d 518; *United States v Mackey*, 387 F Supp 1121; *People v McElhaney*, 146 Misc 2d 748; *People v Jones*, 110 Misc 2d 875; *People v Vasquez*, 134 Misc 2d 855.)

John J. Flynn, District Attorney, Buffalo (*Ashley R. Lowry* and *Donna A. Milling* of counsel), for respondent. The record

supports the lower courts' determination that the New York State Trooper had reasonable suspicion to stop defendant's vehicle. (*People v McRay*, 51 NY2d 594; *People v Bianchi*, 85 NY2d 1022; *People v Spencer*, 84 NY2d 749; *People v Robinson*, 97 NY2d 341; *Whren v United States*, 517 US 806; *People v Sobotker*, 43 NY2d 559; *Terry v Ohio*, 392 US 1; *People v Cantor*, 36 NY2d 106; *People v Brannon*, 16 NY3d 596; *People v Tolentino*, 14 NY3d 382.)

OPINION OF THE COURT

WILSON, J.

Because the State Trooper lacked an objectively reasonable suspicion that a crime had occurred or probable cause to stop Mr. Hinshaw's vehicle for a traffic infraction, we conclude the automobile stop was unlawful.

On the afternoon of November 8, 2014, a New York State Trooper stopped a vehicle on a street in Buffalo. The Trooper had observed no traffic violations and saw that the inspection sticker was valid, both of the occupants were wearing their seat belts, and "everything looked good." Nevertheless, the Trooper ran a check of the car based on the front license plate. The inquiry produced a response that began with a direction to "CONFIRM RECORD WITH ORIGINATOR," listed as the Buffalo City Police Department. The response then instructed:

***THE FOLLOWING HAS BEEN REPORTED AS
AN IMPOUNDED VEHICLE ---- IT SHOULD NOT
BE TREATED AS A STOLEN VEHICLE HIT ----
NO FURTHER ACTION SHOULD BE TAKEN
BASED SOLELY UPON THIS IMPOUNDED
RESPONSE***

The Trooper directed the driver to stop in order to "investigate further and find out what the problem [wa]s." The driver, Mr. Hinshaw, provided his license and registration to the Trooper; both were in order. When the Trooper asked about the impound notification, Mr. Hinshaw explained that the car had been stolen previously.¹ The Trooper detected an odor of marijuana and observed a "roach" in the center console. He proceeded to search both the driver and the passenger of the vehicle and found additional marijuana on the floor of the passenger side

1. Records from the Parking Violations Bureau show that, after a payment of fees on October 28, the impounded vehicle had been lawfully released to Mr. Hinshaw more than a week before the Trooper stopped him.

of the car and in Mr. Hinshaw's waistband. The Trooper eventually found a loaded gun under the driver's seat.

By indictment, Mr. Hinshaw was charged with second-degree criminal possession of a weapon (Penal Law § 265.03 [3]) and unlawful possession of less than an ounce of marijuana (Penal Law § 221.05). He moved to suppress the marijuana, the gun, and his statements. At the suppression hearing, the Trooper testified that he did not attempt to confirm the information with the originator; he treated the notice as indicating the car may have been stolen; and he had stopped the car based solely on the results of the license plate check. County Court denied suppression of the physical evidence but granted suppression of Mr. Hinshaw's inculpatory statements that preceded a *Miranda* warning. Thereafter, Mr. Hinshaw pleaded guilty to the entire indictment. The Appellate Division affirmed, concluding that the "impoundment report, coupled with the Trooper's explanation of its import, provided reasonable suspicion to stop the vehicle" (*People v Hinshaw*, 170 AD3d 1680, 1681 [4th Dept 2019]). Two Justices dissented, contending that it was not objectively reasonable to believe that any crime had been committed on the basis of the license plate inquiry result (*id.* at 1682-1683 [Whalen, P.J., and Centra, J., dissenting]).

I.

Under the settled law of New York, an automobile stop "is a seizure implicating constitutional limitations" (*People v Spencer*, 84 NY2d 749, 752 [1995]). Automobile stops are lawful only when "based on probable cause that a driver has committed a traffic violation" (*People v Robinson*, 97 NY2d 341, 349-350 [2001]); when based on a reasonable suspicion that the driver or occupants of the vehicle have committed, are committing, or are about to commit a crime (*Spencer*, 84 NY2d at 752-753); or, "when conducted pursuant to 'nonarbitrary, nondiscriminatory, uniform' highway traffic procedures" (*People v Sobotker*, 43 NY2d 559, 563 [1978]).

In *People v Robinson*, we held that a traffic stop did not violate the New York State Constitution where a police officer had probable cause to believe that an automobile driver had committed a traffic violation—even though the officer's primary motivation to stop the vehicle may have been other than the traffic violation (*Robinson*, 97 NY2d at 349). We noted that although the language of the Fourth Amendment and of article I, § 12 of our Constitution was "identical," that language

conferred only “similar” rights, explaining that this Court had not hesitated to expand the rights of New York citizens beyond those required by the Federal Constitution (*id.* at 350). In that case, the defendants had asked us to “extend[] [the] protections of our Constitution beyond those given by the Federal Constitution” to require *more* than probable cause when an officer had stopped a vehicle for pretextual reasons (*id.* at 351). We declined to do so, rejecting the defendants’ request to invalidate vehicle stops for pretextual reasons as long as “probable cause existed warranting a stop of the vehicle for a valid traffic infraction” (*id.* at 349). We emphasized that “[t]his Court has always evaluated the validity of a traffic stop based on probable cause that a driver has committed a traffic violation” and “confirm[ed] a standard that constrains police conduct—probable cause under the Vehicle and Traffic Law and its related regulations” (*id.* at 350, 358; *see also People v Bushey*, 29 NY3d 158, 164 [2017] [New York law forbids stops of vehicles, even those that appear “unusual . . . , solely to examine the motorist’s license and registration,” but permits such stops if the officer “obtained probable cause to believe the vehicle was being operated with a suspended registration”]).

In contrast to the Fourth Amendment, which “permits brief investigative stops . . . when a law enforcement officer has ‘a particularized and objective basis for suspecting the particular person stopped of criminal activity’ ” (*Prado Navarette v California*, 572 US 393, 396 [2014]; *see also Terry v Ohio*, 392 US 1 [1968]), this Court has adopted greater protections than *Terry* and its federal progeny for pedestrian stops by the police (*see People v De Bour*, 40 NY2d 210, 223 [1976] [creating a four-tiered framework for evaluating police-civilian encounters]). Our *De Bour* test, in which “constitutional law and common law both played a part” (*People v Hollman*, 79 NY2d 181, 195 [1992]), is more protective of the rights of individuals “to be free from aggressive governmental interference” (*De Bour*, 40 NY2d at 216; *cf. People v Gates*, 31 NY3d 1028, 1030-1031 [2018, Garcia, J., dissenting] [“The *De Bour* method differs significantly from the federal approach . . . The hyper-stringent rule of *De Bour* also serves as a barrier to legitimate, effective, and minimally-intrusive law enforcement practices” (internal quotation marks omitted)]). Thus, “[t]he continued vitality of *De Bour* . . . is not contingent upon the interpretation that the Supreme Court gives the Fourth Amendment, because *De Bour* is largely based upon considerations of reason-

ableness and sound State policy” (*Hollman*, 79 NY2d at 195). As relevant here, to curb potential discriminatory practices, New York also provides greater protections than does federal law for traffic infraction vehicle stops, as evidenced by our decision in *Robinson* (see *Robinson*, 97 NY2d at 353). There, we emphasized that “[d]iscriminatory law enforcement has no place in our law” (*id.*). Correspondingly, suspicionless traffic stops—such as sobriety checkpoints—are allowed in New York only when conducted in a “uniform and nondiscriminatory manner” (*Matter of Muhammad F.*, 94 NY2d 136, 145-146 [1999]).

Although *De Bour*—like *Terry*—was a case involving the forcible stop of a pedestrian, we noted there that “whether or not a particular search or seizure is to be considered reasonable requires a weighing of the government’s interest against the encroachment involved with respect to an individual’s right to privacy and personal security” (*De Bour*, 40 NY2d at 215). A forcible stop of the occupants in a vehicle is equally intrusive whether done to enforce the laws against traffic infractions or the laws against crimes. The required “balancing of the interests involved” (*id.* at 217) will differ, however, when the suspected illegality is a traffic violation or a crime, as reflected in the legislature’s taxonomy. Requiring probable cause for the former, but the more relaxed standard of reasonable suspicion for the latter, comports with the legislature’s directive that traffic infractions are not crimes and consequently their enforcement by means of a forcible stop, though quite important, does not carry the same governmental interest as the prevention of crimes (see Vehicle and Traffic Law § 155).² Moreover, we have repeatedly stated that an officer’s “right to request information while discharging . . . law enforcement duties will hinge on the manner and intensity of the interference, *the gravity of the crime involved* and the circumstances attending the encounter” (40 NY2d at 219 [emphasis added]). Although “[w]e recognize that the obvious impact of stopping the progress of an automobile is more intrusive than the minimal intrusion involved in stopping a pedestrian” (*People v John BB.*, 56 NY2d 482, 487 [1982]), the same basic balancing is mandated by our Constitution, as explained in *De Bour* (40

2. The dissent’s characterization of the distinction between traffic infractions and crimes as “accidents of legislative organization” (dissenting op at 454) belittles the legislature’s express instruction that “[a] traffic infraction is not a crime” (Vehicle and Traffic Law § 155).

NY2d at 217-218; *see also Hollman*, 79 NY2d at 189; *People v Garcia*, 20 NY3d 317, 324 [2012] [“the standards of *De Bour* and *Hollman* govern police-citizen encounters during lawful traffic stops”]). Thus, when a traffic violation, not a crime, is the predicate of an officer’s forcible stop of a motorist, greater scrutiny is required to prevent “a policeman’s badge . . . [from] be[ing] considered a license to oppress” (*De Bour*, 40 NY2d at 220). The same interests that led us to adopt *De Bour* rather than the federal standard, and to reaffirm New York’s further protections in *Hollman*, “are no less vital today” (*Hollman*, 79 NY2d at 195-196)—indeed, some of them are today far greater. Unsurprisingly, then, our traffic stop jurisprudence has not proceeded in lockstep with federal constitutional standards (*People v Class*, 67 NY2d 431 [1986]), and the standard articulated here is based squarely on the law of New York.³

We do little more today than clarify the law of New York as it is presently understood by all four Appellate Division departments.⁴ Our statement in *Robinson* that “[t]his Court has always evaluated the validity of a traffic stop based on prob-

3. Previous statements of this Court that we require “at least a reasonable suspicion” that the occupants of a car have engaged in conduct in violation of law (*see e.g.* dissenting op at 452 [emphasis omitted]) are completely consistent with that standard: we require *at least* reasonable suspicion for an automobile stop; in the case of an automobile stop based merely on a traffic infraction, we require probable cause (*see Robinson*, 97 NY2d at 358 [“we confirm a standard that constrains police conduct—probable cause under the Vehicle and Traffic Law and its related regulations”]; *People v Harrison*, 57 NY2d 470, 476 [1982] [“a stop is nevertheless a limited seizure of the person which at least requires reasonable suspicion”]). The dissent’s reliance on *People v Harrison*, wherein the police ordered the occupants of a parked vehicle to stay in the vehicle, for the proposition that New York courts applied the “‘reasonable suspicion’ standard to traffic stops across the board” (dissenting op at 445) is misplaced: *Harrison*, a case that “does not deal with the powers of the police to stop a vehicle,” held that the police went beyond a *De Bour* level two request for information and instead conducted a level three forcible stop “by the order to remain in the car” and accordingly “there must be some articulable facts, which initially or during the course of the encounter, establish reasonable suspicion that the person is involved in criminal acts” (57 NY2d at 475-476). When a forcible stop of a vehicle is conducted for a traffic infraction as opposed to criminality, more is required.

4. Thus, the dissent’s hypothesized “absurd applications” are an exercise in fanciful fiction (dissenting op at 456)—nothing has changed. For example, an officer who observes a car failing to maintain its lane or being driven erratically (*see e.g. Matter of Schoonmaker v New York State Dept. of Motor Vehs.*, 33 NY3d 926, 928 [2019]); hears excessive or unusual muffler noises (*see e.g. People v Wright*, 98 NY2d 657, 658 [2002]); sees a car speeding through a red light (*see e.g. Robinson*, 97 NY2d at 346); sees a car turn without signaling (*id.* at 347-348); or observes a car with tinted windows (*see*

(n. cont’d)

able cause that a driver has committed a traffic violation” has been understood and repeated by all four Appellate Division departments to mean that an officer must have probable cause to stop a vehicle for a traffic infraction (see e.g. *People v White*, 40 AD3d 535, 536 [1st Dept 2007] [(a) vehicular stop requires probable cause to believe the driver has committed a traffic violation” (emphasis added)]; *People v Sluszka*, 15 AD3d 421, 423 [2d Dept 2005] [applying probable cause to a Vehicle and Traffic Law violation rather than reasonable suspicion as the court below had]; *People v Driscoll*, 145 AD3d 1349, 1349 [3d Dept 2016] [(i)n order for a traffic stop to pass constitutional muster, before making the stop, ‘a police officer (must have) probable cause to believe that the driver of an automobile has committed a traffic violation’ ”]; *People v Washburn*, 309 AD2d 1270, 1271 [4th Dept 2003] [stating the three-part standard as written here]; see also *People v Marshall*, 46 Misc 3d 1207[A], 2015 NY Slip Op 50009[U], *2 [Ithaca City Ct 2015] [after “engag(ing) in a thorough review of the case law of the Four Appellate Divisions” on this question, finding that since 2012 “the Appellate Courts are now unanimous in employing the elevated *Robinson* . . . standard of ‘probable cause’ required for an officer to validly stop a vehicle for a Vehicle and Traffic violation”)].⁵ Thus, the dissent’s position—that police officers lacking probable cause may seize the occupants in vehicles for traffic violations—has not prevailed in the courts of New York, even if it remains the standard in federal courts.

Not only is the standard we articulate today now applied by all departments of the Appellate Division, but it is advocated by both parties here. Even the People in this case argue—correctly—that “[a]utomobile stops are reasonable, and therefore lawful, where the police have probable cause to believe that a traffic violation has occurred, or ‘when there exists at least a reasonable suspicion that the driver or occupants

e.g. *People v Gomez*, 5 NY3d 416 [2005]) has probable cause to stop a vehicle. Nothing in our decision curtails an officer’s ability to stop a vehicle when the officer has observed or learned information that establishes probable cause that a traffic violation has occurred or has reasonable suspicion to believe a crime has occurred.

5. The dissent relies primarily on the pronouncements of trial-level courts and on Appellate Division cases since abandoned by those departments. Each department, as discussed supra, has now adopted the rule that probable cause is necessary, not just sufficient, for an automobile stop on the basis of a traffic infraction (see e.g. *Driscoll*, 145 AD3d at 1349; *Matter of Deveines v New York State Dept. of Motor Vehs. Appeals Bd.*, 136 AD3d 1383, 1384-1385 [4th Dept 2016]).

of the vehicle have committed, are committing, or are about to commit a crime' ” (brief for respondent at 9, quoting *Bushey*, 29 NY3d at 164, and *Robinson*, 97 NY2d 341, 351). The Appellate Division, in its decision below, stated that bifurcated test exactly the same way: “It is well settled that to conduct a traffic stop, police require either probable cause to believe that a traffic infraction has been committed, or ‘reasonable suspicion that the driver or occupants of the vehicle have committed, are committing, or are about to commit a crime’ ” (*Hinshaw*, 170 AD3d at 1680-1681).⁶

In addition to its misplaced reliance on federal precedent, the dissent’s disagreement with the standard for automobile stops in New York rests on dicta in *People v Ingle* (36 NY2d 413 [1975]) that we have since rejected (dissenting op at 444). The question in *Ingle* was whether the police could stop a vehicle to check its registration when there was *neither* probable cause *nor* reasonable suspicion to do so (*Ingle*, 36 NY2d at 420).⁷ We held that such a stop was unlawful. Precision as to which standard to apply to the stop was not at issue, and

6. Here, we are required to consider both prongs of that bifurcated standard. The Appellate Division found that the Trooper stopped the car to investigate “whether the vehicle had registration problems, the license plates were suspended, the insurance was suspended, or if the vehicle was, in fact, stolen” (*Hinshaw*, 170 AD3d at 1681). The People advance each of those as a ground upon which the stop was lawful. Contrary to the suggestion of our dissenting and concurring colleagues, it is incumbent on us to determine whether any ground argued by the People provided a lawful basis for the vehicle stop. The first three reasons provided by the Trooper for stopping Mr. Hinshaw’s car include driving with an expired registration (Vehicle and Traffic Law § 401), operating a vehicle on public roads without insurance (Vehicle and Traffic Law § 319 [1]), or driving with suspended license plates (Vehicle and Traffic Law § 402)—all of which are traffic infractions, not crimes. The Vehicle and Traffic Law clearly differentiates between traffic infractions and crimes (*see* Penal Law § 10.00; Vehicle and Traffic Law § 155 [(a) traffic infraction is not a crime]). Because the Trooper justified the stop on the basis of traffic infractions as well as crimes, we must evaluate each under the legal standard appropriate to it.

7. Consequently, the dissent’s claim that *Ingle* “held that a traffic stop based on ‘a violation of the Vehicle and Traffic Law’ is permissible when founded on ‘reasonable suspicion’ ” is specious (dissenting op at 444 [emphasis added]). *Ingle*’s holding is that when an officer has no reason to stop a vehicle other than to conduct a routine traffic check, the stop is lawful “only when conducted according to nonarbitrary, nondiscriminatory, uniform procedures for detecting violations” (36 NY2d at 415). While incongruously claiming that our “exceptionally precise” decision in *Ingle* (dissenting op at 445 n 3) has engendered widespread “inconsistency” (dissenting op at 452-453), the dissent repeatedly mischaracterizes the holdings of our precedents in an attempt to alter *Ingle*’s holding. *People v Singleton*, for example, was a case

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indeed the *Ingle* Court intermittently used both “probable cause” and “reasonable suspicion” where neither was involved. Unsurprisingly, then, *Robinson* had no reason to mention *Ingle*. Our recognition that probable cause is necessary, rather than just sufficient, for a stop based on a traffic infraction therefore does not amount to a “sea change” or “[s]hifting course” (dissenting op at 441, 453).⁸ We merely recognize what *Robinson* did impliedly and the Appellate Division departments, as a consequence, have done expressly: erased any dicta in *Ingle* that have sometimes been read to permit stops for traffic infractions based on less than probable cause. To the extent there exists any inconsistency between *Robinson* and *Ingle*, any uncertainty by commentators, or any “confusion among courts”

involving an officer’s reasonable suspicion of criminality—not a traffic infraction (41 NY2d 402, 404 [1977]). Similarly misleading is the dissent’s reliance on *People v Martinez* (37 NY2d 662 [1975]; dissenting op at 445). Not only was the stop there unlawful, but the “propriety of the stop [was] irrelevant” to the case’s holding (*People v Martinez*, 37 NY2d at 669). Quite simply, neither *Ingle* nor any other of our precedents holds that an officer may stop a vehicle based on reasonable suspicion of a traffic infraction.

8. The dissent’s laundry list of cases purportedly supporting its view that reasonable suspicion is applied “across the board” in New York (dissenting op at 445) does not withstand scrutiny (see e.g. *People v Carvey*, 89 NY2d 707, 710 [1997] [holding the vehicle stop valid where the officer had personally observed—and therefore had probable cause to believe there was—a missing rear license plate]; *People v Batista*, 88 NY2d 650 [1996] [holding the vehicle stop valid where the officers had personally observed the car running a red light]; *People v May*, 81 NY2d 725, 727-728 [1992] [holding that the officers had no legal basis to stop the car because a stop is “proper only if the officers had a reasonable suspicion of criminal activity”]; *People v Coutin*, 78 NY2d 930 [1991] [holding the stop was valid because the officers had reasonable suspicion of criminal activity]). In *People v Chilton* (69 NY2d 928 [1987]), the defendant was charged with several violations of the Vehicle and Traffic Law, including driving while intoxicated, unlicensed operation and an unsafe lane change. The Town Court dismissed the charges, finding that there was no probable cause for the stop. Although the County Court upheld that determination, it applied the reasonable suspicion standard. Our holding was an affirmation of the intermediate appellate court’s finding that there was no reasonable suspicion of any violation of law for the stop because the mixed question presented was “beyond the review powers of this court” (69 NY2d at 929). Rather than supporting the dissent’s view, these cases show that our articulation of the bifurcated standard fully comports with the holdings in every one of our prior precedents. Our dissenting colleague’s citation to *Sobotker* to support a federal-centric view of reasonable suspicion also cuts to the contrary: there, we held that the police unlawfully stopped the defendant’s vehicle, while noting that “if patience rather than precipitancy had prevailed, the reward of good police work might well have been a seizure which the continued observation had rendered no longer devoid of a factual predicate for a founded belief that criminal conduct was under way” (*Sobotker*, 43 NY2d at 564-565).

(dissenting op at 452-453), stopping a vehicle for a traffic infraction requires probable cause; stopping a vehicle for suspicion of criminal activity requires less: “reasonable suspicion that the driver or occupants of the vehicle have committed, are committing, or are about to commit a crime” (*Spencer*, 84 NY2d at 753).

II.

The Trooper here did not observe any violations of the Vehicle and Traffic Law and “everything looked good.” Putting aside the result of the license plate inquiry, “[t]he trooper candidly testified that he had had no reason to stop defendant” (*People v Ingle*, 36 NY2d at 420). It is clear, then, that without the result of the license plate inquiry the stop of Mr. Hinshaw would have been unlawful and “the evidence obtained by that seizure [could] not be used as evidence against him” (*id.* at 421).

The result of the license plate check provided neither probable cause to conclude a traffic infraction had occurred nor any basis for an objectively reasonable belief that criminal behavior had occurred or was afoot. Although the People and our dissenting colleague argue that the Trooper understood the “generic” impound notification to require further investigation as to its cause, the Trooper’s speculation that the car could have been impounded for “registration . . . problems,” the “plates could have been suspended,” “insurance could have been suspended,” or the vehicle could have been stolen was just that—pure speculation.⁹ Indeed, the absence of any underlying Vehicle and Traffic Law violation from the database inquiry result undermined those unsupported hypotheses. The Trooper’s general knowledge, training, and experience (dissenting op at 460) is completely untethered from the question at hand: the objective reasonableness of his conclusion that the response to the license plate inquiry meant a traffic law had been violated or a crime had been, or was about to be, committed. In fact, the Trooper testified that he had minimal prior experience

9. Although the dissent recognizes that it is the contents, rather than the mere existence, of a database report that may supply reasonable suspicion (dissenting op at 459, citing *People v Bushey*, 29 NY3d 158, 160 [2017]), the dissent relies on *Bushey* for the proposition that the contents of the report here—stating that the vehicle should not be treated as stolen and that no further action should be taken—supplied at least reasonable suspicion. That misunderstands our holding in *Bushey*; there, unlike here, the contents of the database report supplied the officer with probable cause of a traffic infraction before the stop of the defendant’s vehicle (*id.*).

with such impound notifications, thus undercutting the proposition that he could objectively conclude from such a notice that a violation or crime had occurred or was imminent.¹⁰ The Trooper's subjective belief that the impound was based on some violation or illegality, honestly held, is insufficient unless it rests on some objective basis (*see generally People v Edwards*, 14 NY3d 741, 742 [2010]). The Trooper provided no such basis, and indeed never testified that any one of the hypothesized offenses pertained to Mr. Hinshaw.

The Trooper's list omitted perfectly innocent—and just as likely—explanations as to why an impound notice might appear in a license plate search, including the actual reason in this case: Mr. Hinshaw lawfully recovered his car from the impound lot, and the system still had not corrected the status nearly two weeks later. A car may be impounded for a variety of reasons independent of a violation of the Vehicle and Traffic Law or Penal Law. The police may impound a car for the safety of the vehicle and its contents (*see People v Tardi*, 28 NY3d 1077, 1078 [2016]), or when necessary to protect public safety; such community caretaking is “totally divorced from the detection, investigation, or acquisition of evidence” of criminal conduct (*see Cady v Dombrowski*, 413 US 433, 441 [1973]). Impounded cars are commonly towed for non-criminal reasons, such as unpaid parking tickets, parking in “no parking” zones or streets temporally designated for parades, public events, filming or bus routes or, as suggested by *Tardi*, “public safety.” That Mr. Hinshaw's car had at one point been impounded by the Buffalo Police Department, therefore, did not provide the Trooper a reasonable suspicion of criminality. Moreover, there were no facts establishing an objective basis to believe that the apparent removal or release of the vehicle from the impound lot was indicative of criminality. Reasonable suspicion “may not rest on equivocal or ‘innocuous behavior’ that is susceptible of an innocent as well as a culpable interpretation” (*People v Brannon*, 16 NY3d 596, 602 [2011]). Because “there was not even a suggestion that the conduct of the defendant or his companions had been furtive in character before the police

10. The cases cited by our dissenting colleague are ones in which an officer's directly relevant experience provided a sufficient foundational basis for the officer to draw an objective conclusion. Here, in contrast, the Trooper testified as to his limited experience with impound notices, and he was not a member of the Buffalo Police Department, the originator of the impound notification.

interfered with their car's progress," and "[t]he record here is bare of any objective evidence of criminal activity as of the time of the stop" (*Sobotker*, 43 NY2d at 564-565), the stop of Mr. Hinshaw's vehicle was invalid.

The Trooper here lacked probable cause to believe Mr. Hinshaw had committed a traffic violation and identified no "credible facts establishing reasonable cause to believe that someone has violated a law" (*Robinson*, 97 NY2d at 354). Accordingly, the order of the Appellate Division should be reversed, Mr. Hinshaw's motion to suppress granted in its entirety, and the indictment dismissed.

STEIN, J. (concurring in result). I concur with my colleagues in the majority to the extent they conclude that, under the circumstances here, the Trooper lacked reasonable suspicion to justify the stop of defendant's vehicle insofar as the impound notification failed to supply an objectively reasonable basis for the Trooper to believe that either the apparent impounding of the vehicle or its subsequent release from the impound lot was indicative of criminality. However, because my colleagues inordinately focus on a legal question that the parties have not asked us to resolve and regarding which there is no present need for us to opine, I concur in result, only.

More specifically, the question of whether the Trooper had—or was required to have—probable cause to suspect a traffic infraction is simply not before us on this appeal. County Court held that the impound notification provided the State Trooper with "the requisite reasonable suspicion that criminality was afoot." The Appellate Division likewise concluded that the stop was supported by "reasonable suspicion" (170 AD3d 1680, 1681 [4th Dept 2019]). Neither court addressed whether the Trooper had probable cause to suspect the driver had committed a traffic infraction.

Before this Court, defendant posits that "the lawfulness of the vehicle . . . stop depends on whether [the State] Trooper . . . possessed at least a reasonable suspicion that [defendant], or his passenger, had committed, were committing, or were about to commit, a crime." Similarly, the People argue only that reasonable suspicion supported the stop on the ground that "the [impound] alert required further investigation to determine its cause" insofar as it was suggestive of "the following *crimes*" (emphasis added), citing only to violations of the Vehicle and Traffic Law that constitute misdemeanor

crimes (*see e.g.* Vehicle and Traffic Law §§ 319 [2]; 355, 392; 403 [1]; 512) or Penal Law offenses. Neither party engages in any analysis of whether probable cause is necessary, or merely sufficient, to support a vehicle stop based on a suspected traffic infraction—or whether this Court has, in fact, previously decided that issue. Therefore, in my view, the question of the required level of suspicion for such a stop is not properly before us (*see generally Misicki v Caradonna*, 12 NY3d 511, 519 [2009]) and our determination thereof should await a case in which it is squarely presented and briefed by the parties.

It is a basic tenet of our jurisprudence that courts should resolve appeals within the framework of the arguments litigated by the parties and adjudicated by the courts below (*see Deutsche Bank Natl. Trust Co. v Flagstar Capital Mkts.*, 32 NY3d 139, 154-155 [2018]), and that courts should refrain from offering advisory opinions (*see generally Matter of Hearst Corp. v Clyne*, 50 NY2d 707, 713 [1980]). This case provides no cause for us to depart from these long-standing rules—particularly if, as the majority asserts, the Appellate Division departments regularly require a motor vehicle stop for a suspected traffic infraction to be supported by probable cause (*see e.g. Matter of Deraway v New York State Dept. of Motor Vehs. Appeals Bd.*, 181 AD3d 1150, 1151 [4th Dept 2020]; *People v Wyatt*, 153 AD3d 1371, 1372 [2d Dept 2017], *lv denied* 30 NY3d 1024 [2017]; *People v Driscoll*, 145 AD3d 1349 [3d Dept 2016]; *People v Guzman*, 78 AD3d 568, 569 [1st Dept 2010], *lv denied* 16 NY3d 831 [2011]). Under these circumstances, where many of our courts already are providing the highest level of protection available to affected citizens subject to traffic stops, we need not act hastily to address a contentious point of law that is neither briefed by the parties nor necessary to our resolution of defendant's appeal.

In short, the only question presented here is whether the Trooper's stop of defendant's vehicle was supported by reasonable suspicion of a crime. While I agree with the majority's determination of that issue, the majority's purported resolution of the additional question of whether New York law requires a higher level of justification for a vehicle stop based on a traffic infraction is beyond the scope of this appeal and unnecessary to its holding that the Trooper lacked even reasonable suspicion to support the stop. I, therefore, concur in result, only.

GARCIA, J. (dissenting). When a law enforcement officer runs a routine registration check and learns of an impound report that, in the officer's experience, signifies that the vehicle "should not be out on the road," does the officer have the minimal degree of suspicion necessary to conduct a brief traffic stop? That simple question is the sole disputed issue in this ordinary traffic stop case. The Constitution answers yes; the majority answers no.

But the majority does not stop there. Announcing a sea change in New York constitutional law, the majority elevates the degree of suspicion required to conduct an arbitrary *subset* of traffic stops. The majority cannot identify the source, purpose, or value of its novel, bifurcated standard, nor does it engage in the disciplined, in-depth analysis that typically accompanies a significant pronouncement of state constitutional law. To make matters worse, its new paradigm is unnecessary to the resolution of this case; neither party advocates for a dual standard, and the majority need not apply one. The majority's dismissive treatment and gratuitous holding inflict damage not only on New York law, but on this Court's historic process for constitutional decision-making. I dissent.

I.

The relevant facts are simply stated. Following a traffic stop, several grams of marijuana and a loaded gun were discovered in defendant's vehicle. Defendant was arrested and charged with second-degree criminal possession of a weapon and unlawful possession of marijuana. The New York State Trooper who conducted the traffic stop testified at a subsequent suppression hearing.

The Trooper was an experienced law enforcement officer. At the time of defendant's arrest, the Trooper was in his 24th year with the New York State Police. He had received extensive training, including training "involving identification and the use of firearms," "training with respect to the identification and recovery of marijuana," and weapons training every six months. Over the course of his career, the Trooper had made "over a thousand" marijuana arrests and "around 30" arrests for illegal handguns. The Trooper's duties also included "Vehicle and Traffic Law enforcement," which involves performing "routine registration check[s]."

On November 8, 2014, while on uniformed patrol, the Trooper ran a routine registration check on a vehicle operated by defendant. The database returned a notification from the New

York State Department of Motor Vehicles (DMV) that defendant's vehicle "ha[d] been reported as an impounded vehicle." The "date of impound" was listed as October 20, 2014—less than three weeks earlier. The impound report also indicated that it "should not be treated as a stolen vehicle hit" and that "[n]o further action should be taken based solely upon this impounded response."

According to the Trooper, the impound report's directive—that "[n]o further action should be taken"—is a "generic message" generated by the DMV that appears "even though" there is a "problem[]" with a vehicle. That standard message, the Trooper explained, appears not only on impound reports, but also "in connection with a number of different registration reports," including reports that a vehicle has been stolen, impounded, or has a problem with its registration. The Trooper further testified that, based on his experience, it "doesn't happen a lot" that a routine registration check reveals an impound report. When asked what an impound report "mean[s] to [him] as a New York State Trooper," the Trooper stated: "I have an impounded vehicle, I'm going to conduct my investigation." In the Trooper's words: "If it's coming back impounded, it should be in an impound lot. It should not be out on the road." The Trooper therefore conducted a traffic stop in order to "investigate further and find out what the problem is."

During the stop, defendant informed the Trooper that his vehicle had been previously reported stolen but, when asked for paperwork to show that the vehicle had been properly released from the impound, defendant "couldn't produce anything." The Trooper detected an odor of burnt marijuana from within the vehicle and observed, in the center console cup holder, a bottle containing burnt marijuana residue, a "roach," and wrapping paper. A subsequent search uncovered approximately three or four grams of marijuana on defendant's person and a handgun under the driver's seat.

The suppression court determined that the Trooper was a credible witness—noting that defendant's sole witness was

1. The parties stipulated to the admission of a record from the Parking Violations Bureau for the City of Buffalo indicating that defendant's vehicle was removed from the impound lot on October 30, 2014—just nine days before the traffic stop. The parties were jointly informed by the Parking Commissioner that, when defendant's vehicle was released from the impound lot, defendant was "issued a receipt" and "[h]e was, as a matter of course, instructed to maintain that receipt in the vehicle" so that it could be shown in the event that the vehicle was later stopped.

“unpersuasive”—and concluded that the traffic stop was lawful. The Appellate Division affirmed (*People v Hinshaw*, 170 AD3d 1680 [4th Dept 2019]).

II.

To justify a traffic stop, a law enforcement officer “need[s] only reasonable suspicion—that is, a particularized and objective basis for suspecting the particular person stopped of breaking the law” (*Heien v North Carolina*, 574 US 54, 60 [2014] [internal quotation marks omitted]; *People v Ingle*, 36 NY2d 413, 415 [1975]).² As a “temporary stop is of course less intrusive than an arrest” (*People v Harrison*, 57 NY2d 470, 476 [1982]), the requisite level of suspicion is “obviously less demanding than that for probable cause” (*United States v Sokolow*, 490 US 1, 7 [1989]; *Alabama v White*, 496 US 325, 330 [1990] [noting that “reasonable suspicion can arise from information that is less reliable than that required to show probable cause”]). While an officer must have more than a mere hunch, the degree of suspicion necessary to justify a traffic stop is “minimal” (*Ingle*, 36 NY2d at 415; *Kansas v Glover*, 589 US —, —, 140 S Ct 1183, 1188 [2020] [(t)he reasonable suspicion inquiry falls considerably short of 51% accuracy” (internal quotation marks omitted)]; *Illinois v Wardlow*, 528 US 119, 123 [2000] [reasonable suspicion requires only “a minimal level of objective justification for making the stop”]).

In lieu of that well-established framework, the majority needlessly announces a novel constitutional standard under the guise of settled law. Ignoring decades of relevant authority, the majority casually asserts that its bifurcated test—which imposes a more stringent standard where a stop is based on a suspected “traffic violation” rather than a suspected “crime” (see majority op at 430)—is already well-settled in New York (majority op at 433-434). That demonstrably false contention distorts our precedent and ignores the contrary views of countless litigants, judges, and commentators. Worse, the majority’s dual standard serves no identifiable purpose and requires line-drawing exercises that make little sense as a policy matter, and even less sense as a practical matter. And, in the end, the

2. A routine database check of a vehicle’s registration does not constitute a search and is therefore “permissible” even in the absence of “any suspicion of wrongdoing” (*People v Bushey*, 29 NY3d 158, 160 [2017]; *United States v Miranda-Sotolongo*, 827 F3d 663, 667 [7th Cir 2016] [“A police officer’s check of a vehicle registration in a database is not a Fourth Amendment search”]).

issue is entirely superfluous; it is not raised or briefed by the parties, and it is not necessary to the majority's holding.

A.

Here is the relevant context the majority conceals:

The “reasonable suspicion” standard derives from the United States Supreme Court’s well-known decision in *Terry v Ohio* (392 US 1 [1968]). In *Terry*, the Court acknowledged that “a police officer may in appropriate circumstances and in an appropriate manner approach a person for purposes of investigating possibly criminal behavior even though there is no probable cause to make an arrest” (*id.* at 22). The Court therefore upheld a “brief, though far from inconsiderable, intrusion” (*id.* at 26) despite the absence of probable cause—applying, for the first time, the lower “reasonable suspicion” standard.

New York courts have adopted *Terry*’s “reasonable suspicion” standard, and even applied it to traffic stops. More than 40 years ago, in *People v Ingle*, this Court held that a traffic stop based on “a violation of the Vehicle and Traffic Law” is permissible when founded on “reasonable suspicion” (36 NY2d at 414). The *Ingle* Court—“relying upon the *Terry* case”—analogized a brief detention during a street encounter (a “*Terry* stop”) to the “limited seizure” that results from a traffic stop (*id.* at 418). Thus, the Court held, when “singling out a particular automobile and its operator for a stop and an inspection to determine compliance with the Vehicle and Traffic Law” (*id.* at 416), reasonable suspicion is likewise required:

“It should be emphasized that the factual basis required to support a stop for a ‘routine traffic check’ is minimal. An actual violation of the Vehicle and Traffic Law need not be detectable. For example, an automobile in a general state of dilapidation might properly arouse suspicion of equipment violations. All that is required is that the stop be not the product of mere whim, caprice, or idle curiosity. It is enough if the stop is based upon ‘specific and articulable facts which, taken together with rational inferences from those facts, reasonably warrant [the] intrusion’” (*id.* at 420, quoting *Terry*, 392 US at 21).

The upshot of *Ingle* is that “[a] single automobile traveling on a public highway may be stopped . . . when a police officer

reasonably suspects a violation of the Vehicle and Traffic Law” (*id.* at 414; *see also* *People v Martinez*, 37 NY2d 662, 668 n 5 [1975] [“In *People v Ingle*, we held that ‘(a) single automobile traveling on a public highway may be stopped for a “routine traffic check” when a police officer reasonably suspects a violation of the Vehicle and Traffic Law’ ” (citation omitted)]; Barry Kamins, New York Search and Seizure § 5.02 [1] [a] [2019 ed] [“In *People v Ingle*, the New York Court of Appeals held that a police officer may not stop an automobile for a ‘routine traffic check’ unless he reasonably suspects a violation of the Vehicle and Traffic Law” (emphasis omitted)]).³

In the ensuing decades, New York courts consistently applied *Ingle*’s “reasonable suspicion” standard to traffic stops across the board, regardless of the nature of the suspected violation (*see* *People v Carvey*, 89 NY2d 707, 710 [1997]; *People v Battista*, 88 NY2d 650, 653-654 [1996]; *People v Spencer*, 84 NY2d 749, 753 [1995]; *People v May*, 81 NY2d 725, 727-728 [1992]; *People v Coutin*, 78 NY2d 930, 932 [1991]; *People v Falciglia*, 75 NY2d 935, 936-937 [1990]; *People v Sobotker*, 43 NY2d 559, 563 [1978]; *People v Singleton*, 41 NY2d 402, 404 [1977]; *People v Simone*, 39 NY2d 818, 819 [1976]; *Martinez*, 37 NY2d at 668 and n 5; *People v Deacon*, 226 AD2d 1120, 1120-1121 [4th Dept 1996]; *People v Bianchi*, 208 AD2d 551, 551-552 [2d Dept 1994]; *People v Riggio*, 202 AD2d 609, 610 [2d Dept 1994]; *People v Smith*, 197 AD2d 860, 860 [4th Dept 1993]; *People v Gales*, 187 AD2d 606, 606 [2d Dept 1992]; *People v Benbow*, 170 AD2d 456, 456 [2d Dept 1991]; *People v Ceballos*, 175 AD2d 315, 315 [3d Dept 1991]; *People v Phillips*, 159 AD2d 326, 326 [1st Dept 1990]; *People v Hines*, 155 AD2d 722, 724 [3d Dept 1989]; *People v Hoffman*, 135 AD2d 299, 301 [3d Dept 1988]; *People v Millan*, 118 AD2d 236, 243 [1st Dept 1986]). A “temporary stop,” this Court noted, “is of course less intrusive than an arrest and thus *does not require probable cause*” (*Harrison*, 57 NY2d at 476 [emphasis added]).

This Court even made clear that a traffic stop based on “alleged *traffic infractions*” is evaluated under the “reasonable

3. The Court in *Ingle* did not “intermittently use[] both ‘probable cause’ and ‘reasonable suspicion’ ” to describe the relevant standard (majority op at 435-436). In fact, the Court was exceptionally precise with respect to its terminology, pointing out that, in an earlier Pennsylvania decision, an officer’s suspicion was inaptly “characterized as probable cause” even though it was “no different than the reasonable suspicion” that provides “the basis” for a routine traffic stop (*Ingle*, 36 NY2d at 420). The *Ingle* Court, by contrast, was perfectly clear: a traffic stop is permissible when based on “reasonable suspicion” of a “violation of the Vehicle and Traffic Law” (*id.* at 414).

suspicion standard”—not “probable cause” (*People v Chilton*, 69 NY2d 928, 929 [1987] [emphasis added]). In *Chilton*, “[t]he suppression court found a lack of *probable cause* to stop [the] defendant’s van for alleged traffic infractions” (*id.* [emphasis added]). On appeal, County Court held that “[t]he suppression court erroneously relied upon the probable cause standard” and therefore modified the order to “reflect [that] the legal standard is one of reasonable suspicion, not probable cause.” Affirming that decision, this Court determined that “the County Court properly held that the legality of the stop”—a stop based on “alleged traffic infractions”—“should be measured against a reasonable suspicion standard” (69 NY2d at 929).⁴

Relying on *Ingle*, *Chilton*, and their progeny, New York courts routinely held that “[a] police officer may stop an automobile based upon a reasonable suspicion that the occupants of the vehicle have committed a violation of the law, *including traffic violations*” (*Phillips*, 159 AD2d at 326 [emphasis added], citing *Ingle*; *Riggio*, 202 AD2d at 610 [holding that “the police officer had a reasonable suspicion” to stop the defendant’s vehicle based on suspected traffic infractions]; *Gales*, 187 AD2d at 606 [citing *Ingle* and holding that “the officer had reasonable suspicion that the driver was operating the vehicle in violation of the Vehicle and Traffic Law”]; *Hines*, 155 AD2d at 724 [citing *Ingle* and holding that “(a) police car may properly stop a vehicle . . . based upon reasonable suspicion of a violation of the Vehicle and Traffic Law”]; *Hoffman*, 135 AD2d at 301 [citing *Ingle* and holding that the defendant’s conduct “clearly supported a reasonable suspicion that a violation of Vehicle and Traffic Law § 1120 (a) had occurred”]; *Millan*, 118 AD2d at 243 [holding that “(d)riiving through a red light” supplies “reasonable suspicion” that “justifies the stop of an automobile”]; see also *Carvey*, 89 NY2d at 710 [citing *Ingle* and holding that the

4. The Court in *Chilton* did not affirm on the ground that “there was no reasonable suspicion of *any violation of law*” (majority op at 436 n 8). The opinion is clear: the defendant’s vehicle was stopped “for alleged traffic infractions,” and the “proper[]” standard was “reasonable suspicion” (*Chilton*, 69 NY2d at 929). Indeed, the testimony of the arresting officer confirms that the vehicle was stopped solely because the driver repeatedly “crossed the stagnated pavement markings,” which, the officer believed, constituted a traffic infraction (see Vehicle and Traffic Law § 1128 [a] [providing that “(a) vehicle shall be driven as nearly as practicable entirely within a single lane”]).

vehicle was “lawfully stopped” because “it was missing a rear license plate”)).⁵

The Supreme Court eventually adopted *Ingle*’s logic, extending *Terry*’s “reasonable suspicion” standard to traffic stops (see *Berkemer v McCarty*, 468 US 420, 439 [1984] [noting that “the usual traffic stop is more analogous to a so-called ‘*Terry* stop’ than to a formal arrest” (citation omitted)]). From that point on, it was, for many years, “settled law that reasonable suspicion is enough to support an investigative traffic stop” (*United States v Lopez-Soto*, 205 F3d 1101, 1104 [9th Cir 2000]; see also *Berkemer*, 468 US at 439).

Confusion regarding that well-established standard can be traced back to the Supreme Court’s decision in *Whren v United States* (517 US 806 [1996]). In *Whren*, the defendants “accept[ed] that [the officer] had probable cause to believe that various provisions of the . . . traffic code had been violated,” but argued that the traffic stop was nonetheless invalid because the officer’s asserted grounds for stopping the vehicle were “pretextual” (*id.* at 809-810). Rejecting that argument, the Court determined that an otherwise lawful traffic stop does not violate the Fourth Amendment, even if an officer uses the stop as a “pretext[] for pursuing other investigatory agendas” (*id.* at 811). The Court therefore upheld the traffic stop, remarking that “ulterior motives” do not “invalidate police conduct that is justifiable on the basis of probable cause to believe that a violation of law has occurred” (*id.*).

By indicating that “‘the decision to stop an automobile is reasonable where the police have *probable cause* to believe that a traffic violation has occurred,’” the “dictum” of the *Whren* Court “raised some doubt” regarding the settled “reasonable suspicion” standard (*United States v Delfin-Colina*, 464 F3d 392, 396 [3d Cir 2006] [emphasis added], quoting *Whren*, 517 US at 810). In the aftermath of *Whren*, a number of federal courts were confronted with an argument that the Supreme Court was “shifting gears” by “requiring ‘probable cause’ as the predicate for a traffic stop” (*id.*).

5. The majority asserts that this Court’s prior articulation of the standard—requiring “at least a reasonable suspicion” to conduct a traffic stop—somehow supports the majority’s holding that “stopping a vehicle for a traffic infraction requires probable cause; stopping a vehicle for suspicion of criminal activity requires less” (majority op at 433 n 3, 437). That tortured reading of our precedent is entirely unsupported. The natural reading of those statements is the accurate one: reasonable suspicion is necessary to conduct a traffic stop; anything greater is therefore sufficient.

Nearly all of the federal circuits have now rejected that contention and held that, notwithstanding the dicta in *Whren*, “reasonable suspicion of a traffic violation can support a traffic stop” (*United States v Stewart*, 551 F3d 187, 192 [2d Cir 2009]; see also *United States v Chaney*, 584 F3d 20, 24 [1st Cir 2009]; *United States v Southerland*, 486 F3d 1355, 1358-1359 [DC Cir 2007]; *Delfin-Colina*, 464 F3d at 396; *United States v Lopez-Moreno*, 420 F3d 420, 430 [5th Cir 2005]; *United States v Martin*, 411 F3d 998, 1001 [8th Cir 2005]; *United States v Sandridge*, 385 F3d 1032, 1036 [6th Cir 2004]; *United States v Chanthasouxat*, 342 F3d 1271, 1275 [11th Cir 2003]; *United States v Callarman*, 273 F3d 1284, 1287 [10th Cir 2001]; *Lopez-Soto*, 205 F3d at 1104). Many of these decisions emphasized the limits of *Whren*’s holding: “The *Whren* Court did not state that a decision to stop an automobile is reasonable *only* when the police have probable cause to believe that a traffic violation has occurred”; it “noted instead that probable cause was *sufficient* to render the stop reasonable” (*Stewart*, 551 F3d at 192). The Supreme Court has since validated that interpretation, indicating that an officer “need only ‘reasonable suspicion’” to justify “[a] traffic stop for a suspected violation of law” (*Heien*, 574 US at 60; see also *Rodriguez v United States*, 575 US 348, 354 [2015]).

State courts that adopted *Whren* have inherited the same conflict. Employing *Whren*’s dicta, many state courts “occasionally discussed whether a traffic stop was constitutional in terms of probable cause” (*State v Styles*, 362 NC 412, 415, 665 SE2d 438, 440 [2008]; see also *State v Houghton*, 364 Wis 2d 234, 249, 868 NW2d 143, 150 [2015] [noting “(t)he existence of multiple standards necessary to justify traffic stops in Wisconsin”]; *State v Williams*, 401 Md 676, 689, 934 A2d 38, 46 [2007] [“This Court has mentioned both standards in terms of traffic stops”]). Those courts eventually recognized that, “[s]ubsequent to *Whren*, federal courts have continued to hold that reasonable suspicion remains the necessary standard for stops based on traffic violations” and therefore clarified that, as a matter of state law, “reasonable suspicion is the appropriate standard” (*Styles*, 362 NC at 415-416, 665 SE2d at 440 [“In accord with every federal circuit to consider this issue, we hold that reasonable suspicion is the necessary standard for traffic stops”]; *Houghton*, 364 Wis 2d at 249-250, 868 NW2d at 151 [holding that “reasonable suspicion that a traffic law has been or is being violated is sufficient to justify all traffic stops” and reject-

ing the defendant's contention that a "dual standard provides proper protection to citizens' Fourth Amendment rights"]; *Williams*, 401 Md at 690, 934 A2d at 46 ["Most of the courts that have chosen, or been required, to determine which of those standards applies to a routine traffic stop, including a *Whren* stop, have held that probable cause is *not* ordinarily required and that a stop is justified under the Fourth Amendment if the officer had a reasonable articulable suspicion that a traffic law has been violated"]; see also *State v Thompson*, 284 Kan 763, 773, 166 P3d 1015, 1024 [2007]; *State v Chavez*, 668 NW2d 89, 95, 2003 SD 93, ¶ 15 [2003]; *State v Bohannon*, 102 Haw 228, 237, 74 P3d 980, 989 [2003]; *State v Golotta*, 178 NJ 205, 212-213, 837 A2d 359, 363 [2003]; *Commonwealth v Deramo*, 436 Mass 40, 42-44, 762 NE2d 815, 817-818 [2002]; *State v Theetge*, 171 Vt 167, 170, 759 A2d 496, 498 [2000]; *People v Ramos*, 13 P3d 295, 299 [Colo 2000]). Explaining the discrepancy, state courts noted that "[t]he references to probable cause in some of the Supreme Court cases," as well as in subsequent state court cases, "are in the context of simply noting the obvious—that if the officer has probable cause, the stop is reasonable—and not as an indication that probable cause is the minimum standard for such a stop" (*Williams*, 401 Md at 690-691, 934 A2d at 47).

B.

In New York, the trouble began with *People v Robinson* (97 NY2d 341 [2001]). There, the Court was asked to consider whether to "adopt *Whren v United States* as a matter of state law" (*id.* at 346 [citation omitted]). In other words, the disputed issue concerned whether an otherwise lawful traffic stop violates the New York State Constitution where "the underlying reason for the stop might have been to investigate some other matter" (*id.* at 346, 348).⁶ Adopting *Whren*, the Court in *Robinson* determined that "[n]one of the reasons for extending protections of our Constitution beyond those given by the Federal Constitution exist here" and therefore, even if a stop is

6. The defendants in *Robinson* advocated for a standard that would examine the subjective intent of police officers—i.e., a "motivation"-based test. They did *not* argue that New York should "require *more* than probable cause" (majority op at 431). In fact, defendant Robinson's brief properly articulates the reasonable suspicion standard: "Police may not stop a car absent reasonable suspicion that a car's occupants have been, are then, or are about to be, engaged in conduct in violation of law" (brief and appendix for defendant-appellant at 22 in *People v Robinson*, 97 NY2d 341 [2001], available at 2001 WL 34151599).

pretextual, it “does not violate the Fourth Amendment” where the officer “has probable cause to detain a person temporarily for a traffic violation” (*id.* at 348, 351, citing *Whren*, 517 US 806). Like many other state courts, the *Robinson* Court embraced *Whren*’s holding and, regrettably, employed *Whren*’s problematic dicta—dicta contradicted by decades of New York precedent.

Like the *Whren* Court, the *Robinson* Court did *not* consider the standard applicable to vehicle stops based on suspected traffic violations. It did not need to; the defendants in *Robinson*, like the *Whren* defendants, conceded that “probable cause existed warranting a stop of the vehicle for a valid traffic infraction” (*Robinson*, 97 NY2d at 349). In addition, like the *Whren* Court, the *Robinson* Court did *not* hold that probable cause was necessary to conduct a traffic stop. Rather, as in *Whren*, the Court noted only that probable cause was *sufficient* to effectuate a stop based on a suspected traffic violation (*id.* at 346). And contrary to the majority’s view, the *Robinson* Court did *not*, either explicitly or “impliedly” (majority op at 436), announce a heightened state standard for Vehicle and Traffic Law-based traffic stops.

Historically, when this Court announces that we are not “in lockstep with federal constitutional standards” (majority op at 433), or that we have “rejected” long-standing precedent (majority op at 435), we do not do it quietly—much less impliedly (see e.g. *Matter of Brooke S.B. v Elizabeth A.C.C.*, 28 NY3d 1, 14 [2016]; *People v Class*, 67 NY2d 431, 433 [1986]; *People v P.J. Video*, 68 NY2d 296, 303-304 [1986]; *People v Gokey*, 60 NY2d 309, 312 [1983]; *People v Elwell*, 50 NY2d 231, 235 [1980]). And despite the majority’s claims, “[n]othing in *Robinson* . . . even hints at such a global change” in the well-established principle that reasonable suspicion governs traffic stops under state and federal law (*People v Prado*, 2 Misc 3d 1002[A], 2004 NY Slip Op 50082[U], *9 n 7 [Sup Ct, NY County 2004] [noting that “the requisite standard of proof of the traffic violation” was not “at issue” in either *Robinson* or *Whren*]). Quite the opposite; the Court in *Robinson* expressly declined to “extend[] the rights of New York State defendants beyond those of the Federal Constitution” (*Robinson*, 97 NY2d at 351; see also majority op at 431 [noting that the *Robinson* Court “declined” to provide greater protection than the Federal Constitution]). Nor did *Robinson* somehow abrogate *Ingle* (majority op at 435). Indeed, *Robinson* never once mentioned *Ingle*. Of

course, had the *Robinson* Court intended to change the “long-standing constitutional standard” for traffic stops—or impose a drastic departure from federal law—“the issue, in all probability, would have been addressed directly” (*Prado*, 2004 NY Slip Op 50082[U], *9 n 7; see also *Lopez-Soto*, 205 F3d at 1104 [“If the Supreme Court announced in *Whren* a new rule of law . . . we would expect it to have acknowledged the change and explained its reasoning. Such an explanation is notably absent from the *Whren* opinion”]).

Undeterred, the majority rewrites *Robinson*’s history. It ignores the long line of New York cases applying *Ingle*’s “reasonable suspicion” standard to traffic stops. It does not acknowledge *Robinson*’s background, limitations, or conflict with decades of precedent. And it does not even mention *Whren*, let alone the parallel conflicts that have played out in federal and other state courts. Instead, the majority decontextualizes *Robinson*’s holding and extrapolates a heightened state standard from a case that expressly *declined* to establish a heightened state standard.

The majority makes the unremarkable observation that some lower courts and litigants have, in an exercise of caution, applied the heightened “probable cause” standard mentioned in *Robinson* (see majority op at 433-435; see also *Matter of Devaines v New York State Dept. of Motor Vehs. Appeals Bd.*, 136 AD3d 1383, 1385 [4th Dept 2016]; *People v Polanco*, 57 Misc 3d 147[A], 2017 NY Slip Op 51485[U], *2 [App Term, 2d Dept, 9th & 10th Jud Dists 2017]; *People v Paniccia*, 61 Misc 3d 397, 400 [Gloversville City Ct 2018]). Many others, however, have done the opposite. Indeed, in an upcoming case before this Court, the People observe that *Robinson*’s holding—that “probable cause was *sufficient* to justify the traffic stop[]”—has caused the “unintended” consequence of suggesting that the Court had “announc[ed], *sub silentio*, a departure from both Supreme Court precedent, and this Court’s own precedent” (appellant’s brief at 19, in *People v Pena*, Ct App, appeal No. APL-2019-00101). As a result, they ask us to clarify that “[t]he standard in New York must still be reasonable suspicion because this Court has not announced such a drastic departure from *Ingle* or the Federal standard” (*id.* at 20).

A number of New York courts—including this Court—have reaffirmed that interpretation, holding that *Robinson* “should not . . . be seen as an abandonment of the rule of *Ingle*” that the “police may stop a vehicle when they possess reasonable

suspicion to believe the driver has committed a traffic violation” (*Prado*, 2004 NY Slip Op 50082[U], *9 n 7; *People v Abad*, 98 NY2d 12, 16 [2002] [“Automobile stops . . . historically have been founded upon an officer’s reasonable suspicion of illegal activity”]; *People v O’Hare*, 73 AD3d 812, 813 [2d Dept 2010] [“A police officer may stop a car . . . if the officer has a reasonable suspicion that a traffic infraction has been committed”]; *People v Rorris*, 52 AD3d 869, 870 [3d Dept 2008] [“It is well settled that the police may lawfully stop a vehicle based on a reasonable suspicion that there has been a Vehicle and Traffic Law violation”]; *People v Morel-Gomez*, 33 Misc 3d 1220[A], 2011 NY Slip Op 52034[U], *6 [Sup Ct, Bronx County 2011] [“(I)t is well-established that the legality of a stop based on a traffic infraction is measured against a reasonable suspicion standard and not probable cause”]; *see also Matter of Schoonmaker v New York State Dept. of Motor Vehs.*, 165 AD3d 677, 678 [2d Dept 2018]; *People v Kindred*, 100 AD3d 1038, 1039 [3d Dept 2012]; *People v Allen*, 90 AD3d 1082, 1084 [3d Dept 2011]; *People v Jones*, 63 AD3d 1643, 1644 [4th Dept 2009]; *People v Davis*, 58 AD3d 896, 897 [3d Dept 2009]; *People v Mannino*, 47 Misc 3d 1216[A], 2015 NY Slip Op 50642[U], *3-4 [Greene County Ct 2015]; *People v Leinberger*, 11 Misc 3d 142[A], 2006 NY Slip Op 50737[U], *1 [App Term, 2d Dept, 9th & 10th Jud Dists 2006]; *People v Kalwiss*, 6 Misc 3d 129[A], 2005 NY Slip Op 50057[U], *1 [App Term, 2d Dept, 9th & 10th Jud Dists 2005]). Commentators, too, insist that it is settled law that “[p]olice officers need only reasonable suspicion, not probable cause, to justify the investigatory stop of a vehicle” (31 Carmody-Wait 2d § 173:343 [2020]; *see also* 2 Robert G. Bogle, *Criminal Procedure in New York* § 31:40 [2d ed 2019] [stating that it is “settled law” that a traffic stop requires “at least a *reasonable suspicion* that the occupants of the vehicle have, or are about to be engaged in conduct in violation of the law, *including traffic violations*” (emphasis added)]). The majority’s faulty contention that this position has been “abandoned” statewide (majority op at 434 n 5) is, at best, an extreme mischaracterization of the legal landscape.

At minimum, the “apparent inconsistency between *Ingle* and *Robinson* has created confusion among courts” in New York (Barry Kamins, *Is ‘Ingle’ on Life Support after ‘Robinson’ and ‘Whren’?*, NYLJ, Mar. 30, 2018; *see also* Karen Morris & Nicole L. Black, *Criminal Law in New York* § 44:8 [4th ed 2019] [noting the conflicting authority among lower courts regarding

whether “the Court’s holding in *People v. Robinson* effectively elevated the basis for judging the legality of a traffic stop from ‘reasonable suspicion’ to ‘probable cause’”). Even those lower courts applying a dual standard recognize that the state of the law is “intolerably confusing” when it comes to traffic stops (*Paniccia*, 61 Misc 3d at 399). Yet the majority disregards this persisting debate among litigants, judges, and commentators, claiming that its previously-unannounced legal standard is now universally understood (majority op at 435).

Though it repeatedly renounces federal law, the majority’s dual standard derives from *Whren*—a federal case employing federal law. That “probable cause” dicta has now been disavowed by almost every federal circuit and by countless other high state courts that responsibly revisited their traffic stop standards in the aftermath of *Whren*. This Court, though, opts to ignore this essential history and to elevate discredited federal dicta to state constitutional prominence.

C.

Tellingly, even the majority cannot decide when its “settled” standard was purportedly announced. First, the majority claims that “nothing has changed”; its standard is “completely consistent” with “every one of our prior precedents” (majority op at 433 n 3, 433 n 4, 436 n 8). Elsewhere, the majority acknowledges a conflict with precedent, but contends that any conflicting cases were abrogated by *People v De Bour* (majority op at 431-433)—a case concerning a street encounter (not a traffic stop) that was “supported by *less than* reasonable suspicion” (40 NY2d 210, 216 [1976] [emphasis added]). Shifting course once again, the majority later asserts that its dual standard came about when *Robinson* somehow “rejected” *Ingle*—apparently without even citing it (majority op at 435). Next, the majority suggests that the legislature authorized a bifurcated standard by clarifying that “traffic infractions are not crimes” (majority op at 432, citing Vehicle and Traffic Law § 155). Only its fifth and final explanation is, regrettably, accurate: the majority’s dual standard becomes the law of New York as of today, and without any semblance of a constitutional analysis (majority op at 436-437).

To be clear, this Court has *never* before announced a departure from the traditional reasonable suspicion standard, nor have we ever held that the degree of suspicion necessary to conduct a traffic stop depends on whether the individual is

suspected of a traffic infraction or a crime (*see* 1 Barry Kamins, New York Search and Seizure § 5.02 [1] [a] [noting that the issue of whether “the reasonable suspicion standard has been replaced” has “never been litigated before the Court nor has *Ingle* been overruled”]). And for good reason. The basic premise of search and seizure law is that the degree of suspicion dictates the permissible scope of the intrusion (*Terry*, 392 US at 18-19 [“The scope of the search must be ‘strictly tied to and justified by’ the circumstances which rendered its initiation permissible”]; *see also De Bour*, 40 NY2d at 222-223). In other words, although traffic stops may be initiated based on probable cause or reasonable suspicion, those based on reasonable suspicion must be more limited in scope (*see Rodriguez*, 575 US at 354; *United States v Sharpe*, 470 US 675, 685 [1985]; *Berkemer*, 468 US at 439; *see also United States v Place*, 462 US 696, 709 [1983]; *Florida v Royer*, 460 US 491, 500 [1983]). Under the majority’s bifurcated rule, however, differing levels of suspicion are required (probable cause versus reasonable suspicion) for the exact same intrusion (a traffic stop) depending on accidents of legislative organization.

Lacking any legal foundation, the majority manufactures a policy justification for its dual standard: the *Robinson* Court provided “greater protections” for “traffic infraction vehicle stops” in order to “curb potential discriminatory practices” (majority op at 432). As an initial matter, the *Robinson* Court did the exact opposite. The defendants in *Robinson* asked the Court to adopt a heightened standard (a “motivation”-based test) that would invalidate pretextual stops, and the Court *rejected* it in favor of the *less-protective Whren* approach (*Robinson*, 97 NY2d at 349). Indeed, the dissenters in that case lamented that *Robinson* “inadequately protect[ed] a core value of both the Fourth Amendment and this State’s counterpart” by “permitting arbitrary exercises of discretion on the part of police officers to conduct investigative stops of vehicles on the pretext of pursuing violations of the Vehicle and Traffic Law” (*id.* at 360 [Levine, J., dissenting] [dissenting on the ground that “*Whren* should not be followed as a matter of State constitutional law”]). The *Robinson* dissent then proceeded to engage in a comprehensive state constitutional analysis—sidestepped by the majority here—and concluded that “various factors strongly weigh against adopting *Whren* and in favor of imposing a stricter standard as a matter of State constitutional law in cases involving pretextual traffic stops” (*id.* at 367).

In any event, a bifurcated standard does nothing to curb discriminatory practices. As the *Robinson* dissenters noted, the vast majority of infraction-based traffic stops—even pretextual stops—are already supported by probable cause, leaving the police with “wide discretion to engage in investigative seizures” (see *id.* at 363-364 [“the existence of probable cause that the infraction was committed is manifestly insufficient to protect against arbitrary police conduct”]). Presumably, that is why no one in *Robinson* asked for a bifurcated standard, and why courts across the country have rejected it. To be sure, there are legitimate and effective ways in which this Court might curb discriminatory practices; a bifurcated standard is simply not one of them.

Nor does a bifurcated standard derive from *De Bour*—a case cited heavily by majority (majority op at 431-433) that goes conspicuously unmentioned by defendant, the People, the suppression court, and the Appellate Division. As an initial matter, *De Bour* did not even involve a traffic stop. Both the police officer and the defendant were on foot, and the Court’s decision pertained to “the narrower area of investigative street encounters” (*De Bour*, 40 NY2d at 228 [Fuchsberg, J., dissenting in *People v De Bour* and concurring in *People v La Pene*]).

Additionally, contrary to the majority’s suggestion (majority op at 431-432), *De Bour* did not disavow federal law or otherwise alter the constitutional “reasonable suspicion” standard. Rather, the Court in *De Bour* created two additional evidentiary standards *below* reasonable suspicion for less intrusive encounters, leaving reasonable suspicion untouched (40 NY2d at 216, 223 [noting that the encounter was “supported by less than reasonable suspicion”]). In cases both before and after *De Bour*, this Court has routinely cited *Terry* and its federal progeny in support of the proposition that reasonable suspicion supports a limited detention (e.g. *People v William II*, 98 NY2d 93, 98-99 [2002], citing *Terry*; *People v Diaz*, 81 NY2d 106, 109 [1993], citing *Terry*; *People v Carney*, 58 NY2d 51, 53-54 [1982], citing *Terry*; *Harrison*, 57 NY2d at 476, citing *Terry*; *Sobotker*, 43 NY2d at 563, citing *Terry*; *Singleton*, 41 NY2d at 404, citing *Terry*; *Ingle*, 36 NY2d at 418, citing *Terry*). In fact, the *De Bour* Court itself approvingly cited *Terry* in support of the reasonable suspicion standard (40 NY2d at 223). *De Bour*, then, has no relevance to this case, and certainly provides no support for the majority’s elevated standard for infraction-based traffic stops.

The majority's next proposed rationale is equally puzzling: requiring probable cause "comports with the legislature's directive that traffic infractions are not crimes" and therefore their enforcement "does not carry the same governmental interest as the prevention of crimes" (majority op at 432, citing Vehicle and Traffic Law § 155). Initially, the absence of any citation to precedent confirms that the Court has never before announced this purportedly settled principle of New York law. In any event, the legislature itself explained that its instruction—that "[a] traffic infraction is not a crime"—was *not* intended to establish a bifurcated standard for traffic stops (majority op at 432) but rather to clarify that any punishment for a traffic infraction "shall not be deemed for any purpose a penal or criminal punishment" (Vehicle and Traffic Law § 155). Of course, had the legislature intended to authorize a dual standard for traffic stops, it surely would not have chosen such a cryptic manner of doing so.

Moreover, the majority's purported rationale is easily debunked. Is the enforcement of certain intoxicated driving offenses (*see* Vehicle and Traffic Law § 1193 [1] [a] [traffic infraction]) really less important than the enforcement of offenses like loitering (*see* Penal Law § 240.36 [crime]) or transporting a slot machine (*see* Penal Law § 225.30 [crime])? And why should the heightened probable cause standard apply to some drunk driving offenses (*see* Vehicle and Traffic Law § 1193 [1] [a] [traffic infraction]) when reasonable suspicion is sufficient in others (*see* Vehicle and Traffic Law § 1192 [3] [crime])? These questions, which go unanswered by the majority, showcase just a few of the many absurd applications of its bifurcated rule.

More importantly, how is an officer to know whether he suspects a seemingly drunk driver of "driving while intoxicated" (a crime) or "driving while ability impaired" (a traffic infraction)? Under the majority's rule, law enforcement officers are required to identify the precise statutory provision that was allegedly violated—and the legislature's exact "taxonomy" (majority op at 432)—all before conducting a brief, investigatory traffic stop. That rule is impractical, unworkable, and poses serious public safety concerns that have not been considered (or even acknowledged) by the majority.

The majority also fails to address the broader inconsistencies generated by its new standard. According to the majority's theory, the requisite level of suspicion for a traffic stop hinges on "the gravity of the crime involved" (majority op at 432

[emphasis omitted]; see also *People v Britt*, 34 NY3d 607, 627 [2019, Wilson, J., dissenting]). Why, then, does the majority only differentiate traffic infractions? Why not distinguish between misdemeanors and felonies? Or between classes of misdemeanors and classes of felonies? Moreover, if the “same basic balancing is mandated” for both pedestrian and vehicle stops (majority op at 432), must we elevate the degree of suspicion required for street encounters that are based on suspected violations (rather than suspected misdemeanors or felonies)? Under the majority’s rule, *De Bour* “level four” suspicion (probable cause) is apparently required to initiate a *De Bour* “level three” encounter (a *Terry* stop) that is based on a suspected violation, rather than a suspected crime. In other words, as of today, “*De Bour* level three does not exist” with respect to “offenses that are not felonies or misdemeanors” (*Britt*, 34 NY3d at 628 [Wilson, J., dissenting]).

D.

Worst of all, this case presents no reason for the majority to articulate a novel standard for “infraction-based” traffic stops. Both parties assert arguments in terms of reasonable suspicion (see appellant’s brief at 8 [“the lawfulness of the . . . stop depends on whether (the Trooper) possessed at least reasonable suspicion that (defendant), or his passenger, had committed, were committing, or were about to commit, a crime”]; brief for respondent at 8 [“The evidence in the record below supports the reasonable suspicion determination”]), and neither party has raised or briefed the merits of a bifurcated standard.⁷ Rather, defendant asserts that it is “undisputed” that the Trooper did not suspect a traffic violation (appellant’s brief at 8), and the People do not disagree. Indeed, the People cite specific statutory provisions—none of which are traffic infractions—and expressly argue that the Trooper had adequate suspicion to investigate those possible “crimes” (brief for respondent at 11).

The majority claims that “we are required to consider both prongs of th[e] bifurcated standard” because “the Trooper justified the stop on the basis of traffic infractions as well as crimes” (majority op at 435 n 6). That is wrong. An accurate recitation

7. The issue has, however, been fully briefed in a case scheduled to be heard by the Court in a matter of days (see appellant’s brief at 16-23 in *People v Pena*, Ct App, appeal No. APL-2019-00101; brief for defendant-respondent at 27 in *People v Pena*, Ct App, appeal No. APL-2019-00101).

of the record makes clear that the Trooper did *not* stop the car “to investigate whether the vehicle had registration problems, the license plates or insurance were suspended, or if the vehicle was, in fact, stolen” (majority op at 435 n 6). Rather, the Trooper testified that possible “reasons” the vehicle could have “be[en] impounded” in the first place included problems with the vehicle’s registration, suspended plates or insurance, or a stolen vehicle report. But the reason for the traffic stop, the Trooper repeatedly testified, was to investigate why, despite triggering an impound notice, the vehicle was not “in an impound lot.” Indeed, at the Appellate Division, there was “no dispute that the State Trooper here did not observe defendant committing any traffic infraction,” and therefore the “only issue” was whether the Trooper “had reasonable suspicion that defendant had committed a crime” (170 AD3d at 1682 [Whalen, P.J., and Centra, J., dissenting]). Even the majority concedes that the Trooper “stopped the car based *solely* on the results of the license plate check,” which “indicat[ed] the car may have been stolen” (majority op at 430 [emphasis added], 437 [noting that the Trooper “did not observe any violations of the Vehicle and Traffic Law”]). In other words, even under a dual standard, probable cause does not apply.

The majority’s inartful holding also confirms that, despite paying lip service to probable cause, that language is entirely gratuitous. In its very first sentence, the majority holds that the Trooper lacked *either* reasonable suspicion *or* probable cause to stop defendant’s vehicle (*see* majority op at 429). Of course, an officer who lacks a lesser degree of suspicion (reasonable suspicion) also, by definition, lacks a greater degree of suspicion (probable cause). The majority, then, could resolve this case by simply concluding that the Trooper lacked reasonable suspicion of either a crime or a traffic violation. Put differently, even if it was squarely presented by the parties—and it is not—a higher standard is unnecessary to the resolution of this case. The majority’s deliberate framing betrays its pretense for forcing a watershed constitutional ruling into a case that never remotely presented the issue.

III.

Applying the proper standard, the impound report, viewed through the lens of an experienced Trooper, supplied reasonable suspicion to conduct the traffic stop. The Trooper’s registration check revealed that defendant’s automobile was

“reported as an impounded vehicle,” listing a recent “date of impound.” That report, the Trooper explained, meant that the vehicle “should be in an impound lot.” Defendant’s vehicle was not, however, in an impound lot; it was on the road. The report therefore supplied the Trooper with reasonable suspicion to conduct an investigatory traffic stop in order to determine why the vehicle was not in the impound lot (*see Glover*, 589 US at —, 140 S Ct at 1190 [“combining database information and commonsense judgments in this context is fully consonant with this Court’s Fourth Amendment precedents”]). Indeed, it is well-established that the contents of a database report, produced through a routine registration check, supply at least reasonable suspicion to question the operator of a vehicle (*see Bushey*, 29 NY3d at 160 [information gleaned from “a government database” supplied “probable cause for the officer to stop the driver of the vehicle”]; *see also Glover*, 589 US at —, 140 S Ct at 1187 [reasonable suspicion justified a traffic stop where a registration check revealed that the vehicle’s registered owner “had a revoked driver’s license”]; *United States v Broca-Martinez*, 855 F3d 675, 676-677 [5th Cir 2017] [reasonable suspicion justified a traffic stop “after a computer search indicated the vehicle’s insurance status was ‘unconfirmed’ ”]; *Miranda-Sotolongo*, 827 F3d at 666 [reasonable suspicion justified a traffic stop where the defendant’s “vehicle registration did not appear in the law enforcement database”]; *United States v Cortez-Galaviz*, 495 F3d 1203, 1206 [10th Cir 2007] [reasonable suspicion justified a traffic stop where “the state database . . . contained no information suggesting that the owner of the (vehicle) had insured it”]; *United States v Sandridge*, 385 F3d 1032, 1034 [6th Cir 2004] [reasonable suspicion justified a traffic stop where a license check “revealed that (the defendant) did not have a valid driver’s license”]; *United States v Stephens*, 350 F3d 778, 779-780 [8th Cir 2003] [reasonable suspicion justified a traffic stop where “information obtained from a computer check” showed that “the vehicle’s license plate tags were ‘not on file’ ”]; *United States v Vela*, 2016 WL 305219, *1-2, 2016 US Dist LEXIS 7934, *2-6 [SD Tex, Jan. 25, 2016, No. 2:15-CR-429] [reasonable suspicion justified a traffic stop where the officer “ran a search on the vehicle’s license plate” and “the result showed an ‘unconfirmed’ insurance status”]; *Rutledge v Tessier*, 2014 WL 5422205, *3, 2014 US Dist LEXIS 149916, *8 [ED Va, Oct. 22, 2014, No. 2:13-CV-470] [reasonable

suspicion justified a traffic stop where the “vehicle was listed on the VCIN database as impounded or stored”], *affd for reasons stated below* 594 Fed Appx 209 [4th Cir 2015]).

The specific language of the impound report did not vitiate the Trooper’s suspicion. While the report contained cautionary language that, on its face, might militate against reasonable suspicion, the Trooper credibly explained its significance: the language is a “generic message,” generated by the DMV, that comes up “even though” a vehicle is stolen, impounded, or has a problem with its registration. That boilerplate warning, the Trooper noted, is displayed not only on impound reports, but also “on other responses” even when there are “problems with a vehicle.” Accordingly, when an impound report is returned, it means that the Trooper “ha[s] an impounded vehicle” and that the vehicle “should be in an impound lot”—not on the road.

Importantly, the Trooper’s testimony was not based on assumption or conjecture, but rather on decades of experience and accumulated expertise. After all, the Trooper had been a member of the New York State Police for more than 20 years. He had received considerable training, both “at the state police academy” and regularly throughout his career. As a Trooper, his duties included vehicle and traffic enforcement, which entails routine registration checks. That extensive experience enabled the Trooper to knowledgeably testify regarding impound reports, their frequency, and their meaning.

On this record, the impound report—as understood by an experienced Trooper, versed in the interpretation of registration reports—supports an inference of unlawful conduct and supplied the requisite objective and articulable factual basis to justify a brief investigatory traffic stop.⁸

8. Of course, this might be a different case if, for instance, evidence was presented that the DMV database frequently or systematically displayed inaccurate information (*see Miranda-Sotolongo*, 827 F3d at 670), or the report was so outdated as to render the Trooper’s reliance on it objectively intolerable (*see United States v Laughrin*, 438 F3d 1245, 1248 [10th Cir 2006]). To be sure, a vehicle cannot be subject to stop indefinitely simply because it was once impounded. However, the Constitution gives officers “fair leeway for enforcing the law” (*Heien*, 574 US at 61 [internal quotation marks omitted]) and even tolerates reasonable mistakes (*id.* at 60-61; *People v Guthrie*, 25 NY3d 130, 134 [2015]). Here, the Trooper’s reliance on the DMV’s impound report—outdated by less than two weeks—was objectively reasonable, particularly in the absence of any evidence that the database might be unreliable.

IV.

Despite overwhelming case law to the contrary, the majority suggests that the traffic stop was unlawful because an impound report cannot provide a valid basis for a traffic stop. That holding relies on a series of legal errors, factual inaccuracies, and irrelevant observations.

First, the majority dedicates the bulk of its analysis to the notion that a vehicle may be impounded for a variety of “non-criminal reasons” (*see* majority op at 438). That is true, but entirely irrelevant. For the Trooper’s purposes, it makes no difference why the vehicle was initially impounded; it matters only that the vehicle should have been in an impound lot, but was not. As the Trooper explained, an impound report signifies that the vehicle “should be in an impound lot”—meaning “[i]t should not be out on the road.” Because defendant’s vehicle was on the road—and not in an impound lot, where it apparently belonged—the Trooper had reasonable suspicion to investigate.

Next, the majority inaccurately claims that the Trooper’s testimony concerning the impound report, based on his experience, is a “subjective belief” lacking any place in an objective search and seizure analysis (*see* majority op at 438). But in virtually every case evaluating the propriety of police conduct, the court’s analysis turns on “the officer’s personal knowledge of the circumstances, evaluated *in light of his or her experience*” (*People v Carney*, 58 NY2d 51, 53-54 [1982] [emphasis added and internal quotation marks, citation and brackets omitted]; 4 Wayne R. LaFare, *Search and Seizure* § 3.2 [c] [5th ed 2017] [(M)ay the experience and expertise of the officer making the arrest or search be taken into account in determining whether probable cause is present? The answer is yes]). This “focus on the officer’s personal observation and experience” has long been “recognized” as a quintessential component of the suppression court’s analysis (*Carney*, 58 NY2d at 54; *see also People v Jones*, 90 NY2d 835, 837 [1997] [noting that a “police officer’s experience and training in drug investigations” is one of the “factors” that “may give rise to probable cause that a narcotics offense has occurred”]; *People v Batista*, 88 NY2d 650, 655 [1996] [holding that reasonable suspicion supported a frisk of the defendant based on “the officer’s observation of what his personal experience taught him was a bulletproof vest on a person”]; *People v Stewart*, 41 NY2d 65, 67, 70 [1976] [holding that the intrusion was “justified” where, “(b)y virtue of his previous experi-

ence in numerous weapons arrests,” the officer “determined that the source of the bulge was a gun in the defendant’s left breast pocket”]; *People v Alexander*, 37 NY2d 202, 203-204 [1975] [holding that a seizure of narcotics was supported by probable cause where “the arresting officer was trained and experienced in narcotics police work”]). The Supreme Court has similarly “made it clear that the expertise and experience of the officer are to be taken into account” in an objective Fourth Amendment analysis (4 Search and Seizure § 3.2 [c]; see also *Jackson v United States*, 302 F2d 194, 196 [DC Cir 1962] [“The question to be answered is whether such an officer in the particular circumstances, conditioned by his observations and information, and guided by the whole of his police experience, reasonably could have believed that a crime had been committed”]). Accordingly, as in every other search or seizure case, the Trooper’s experience is entitled to weight in evaluating his observations.

Although experience is typically critical in assessing an officer’s suspicion, the majority dismisses *this* Trooper’s experience on the ground that it is somehow not “relevant” (see majority op at 437, 438 n 10). That unexplained assertion is belied by the record. According to the Trooper’s testimony, he was in his 24th year with the New York State Police, serving in a role that involves vehicle and traffic enforcement and, naturally, routine registration checks. Based on years of enforcing the Vehicle and Traffic Law, the Trooper understood the impound report to mean that defendant’s vehicle should not be on the road—testimony that is “directly relevant” (majority op at 438 n 10) to the question of whether the Trooper had the requisite suspicion to stop the vehicle (see *Broca-Martinez*, 855 F3d at 676-677 [holding that the defendant’s vehicle was lawfully stopped based on an inconclusive database report where, “(b)ased on his experience using th(e) system,” the officer “concluded that the vehicle was likely uninsured”]).

Relatedly, the majority’s assertion that the Trooper “had minimal prior experience” with impound reports (majority op at 437-438) is directly refuted by the record. While the Trooper testified that impound reports do not “happen a lot”—signaling that the database is not inflated with inaccurate reports—he never indicated that his experience with impound reports, amassed over 24 years of running routine registration checks, was “limited” (majority op at 438 n 10). To the contrary, the Trooper’s testimony establishes that he had sufficient experi-

ence with impound reports to enable him to appreciate their relative frequency as well as their import. The majority's disregard of the Trooper's experience in this case is, therefore, both legally and factually unfounded.

The majority next faults the Trooper for failing to divine the precise basis for the impound report, or rule out all "innocent" explanations, before conducting the traffic stop (*see* majority op at 438). But our minimal reasonable suspicion standard "does not require absolute certainty" that unlawful conduct has occurred (*People v Brannon*, 16 NY3d 596, 602 [2011]). "Police officers encounter situations of uncertain legality all the time" (*Miranda-Sotolongo*, 827 F3d at 668; *see also Wardlow*, 528 US at 126 [noting that the Fourth Amendment "accepts the risk that officers may stop innocent people"]; *New Jersey v T. L. O.*, 469 US 325, 346 [1985] ["the requirement of reasonable suspicion is not a requirement of absolute certainty"]). While uncertainty might not always justify the intrusion of a traffic stop, reasonable suspicion does not require an officer to "rule out the possibility of innocent conduct" (*United States v Arvizu*, 534 US 266, 277 [2002]; *Broca-Martinez*, 855 F3d at 681 [to "clear() the bar for reasonable suspicion," an officer "does not have to be certain a violation has occurred"]; *Miranda-Sotolongo*, 827 F3d at 669 [reasonable suspicion "does not require the officer to rule out all innocent explanations of what he sees"]; *Cortez-Galaviz*, 495 F3d at 1208 ["Reasonable suspicion requires a dose of reasonableness and simply does not require an officer to rule out every possible lawful explanation for suspicious circumstances before effecting a brief stop to investigate further"]; *see also Alexander*, 37 NY2d at 203-204 [rejecting the defendant's contention that "there was a lack of probable cause" even though "more than one inference may be drawn from the facts"])). "The need to resolve ambiguous factual situations—ambiguous because the observed conduct could be either lawful or unlawful—is a core reason the Constitution permits investigative stops like the one at issue here" (*Miranda-Sotolongo*, 827 F3d at 669; *Cortez-Galaviz*, 495 F3d at 1206 ["(T)he resolution of particularized and objective yet still ambiguous—potentially lawful, potentially unlawful—facts is the central purpose of an investigative detention"]; *see also Wardlow*, 528 US at 125-126 [conduct that is "ambiguous and susceptible of an innocent explanation" may justify a stop, as reasonable suspicion permits an officer to "briefly investigate further" in order to "resolve (an) ambiguity"])). Any other ap-

proach would hamstring officers from investigating equivocal facts—a classic and critical law enforcement function.

Put differently, the entire purpose of our “reasonable suspicion” analysis is to determine whether further investigation is permissible *despite* an officer’s uncertainty. For that reason, a stop conducted in the face of ambiguity is permissible so long as the officer has identified “specific and articulable facts” that, “based on his experience,” give rise to an inference of unlawful conduct (*Brannon*, 16 NY3d at 602; *Miranda-Sotolongo*, 827 F3d at 669 [“a stop conducted in the face of ambiguity is permissible so long as it remains sufficiently probable that the observed conduct suggests unlawful activity”]). More specifically, a database report—like an impound report—supplies reasonable suspicion to conduct a traffic stop *even if* the report is inconclusive or might be innocently explained (*see Bushey*, 29 NY3d at 164 [a DMV database report “supplied the officer a reason” to stop the defendant’s vehicle despite “the possibilit(y) of database error” (citation and internal quotation marks omitted)]; *Glover*, 589 US at —, 140 S Ct at 1188 [traffic stop was permissible even though the deputy did not know whether the registered owner of the vehicle, whose license was suspended, was the vehicle’s driver]; *Broca-Martinez*, 855 F3d at 680-681 [a “seemingly inconclusive report” from the database established reasonable suspicion to support a traffic stop even though the officer “was not positive” that the defendant was uninsured]; *Miranda-Sotolongo*, 827 F3d at 669 [traffic stop was supported by reasonable suspicion where the vehicle’s registration did not appear in the database, despite plausible “innocent explanations”—“recognized” by the officer—for the discrepancy]; *Cortez-Galaviz*, 495 F3d at 1204, 1206 [“the suggestive ambiguity of the particularized and objective information” gleaned from the database provided “sufficient information to justify a brief traffic stop” even though it did not “definitively indicate criminal activity”]; *Vela*, 2016 WL 305219, *1-2, 2016 US Dist LEXIS 7934, *2-6 [the officer “had reasonable suspicion to justify the traffic stop” where he “ran a search on the vehicle’s license plate” and “the result showed an ‘unconfirmed’ insurance status”]; *Rutledge*, 2014 WL 5422205, *3, 2014 US Dist LEXIS 149916, *8 [“it was reasonable for the officers to stop to investigate” based on an “apparently incorrect report” that the vehicle “was impounded as abandoned”]; *see also Sandridge*, 385 F3d at 1036 [rejecting the defendant’s argument that any reasonable suspicion stemming from a

license check, run three weeks prior to the traffic stop, was “stale” by the time the stop was conducted]; *Stephens*, 350 F3d at 779, 780 [the police had “reasonable suspicion to stop the vehicle and investigate whether the vehicle was properly registered” where “information obtained from a computer database” showed that “the vehicle’s license plate tags were ‘not on file’ ”]). The majority’s circular approach would require an officer to preemptively discern the outcome of an investigation, or at least disprove all non-criminal possibilities, before the investigation has even occurred.

Because uncertainty allows for (and often triggers) further investigation, the cautionary language in the impound report did not negate the Trooper’s reasonable suspicion but rather, at most, introduced ambiguity that—weighed against the Trooper’s experience-based testimony—warranted a brief traffic stop to speak to the vehicle’s operator (*see Brannon*, 16 NY3d at 602; *Glover*, 589 US at —, 140 S Ct at 1188; *Broca-Martinez*, 855 F3d at 681; *Miranda-Sotolongo*, 827 F3d at 669; *Cortez-Galaviz*, 495 F3d at 1206). The Constitution, of course, does not elevate boilerplate DMV disclaimers over decades of Trooper experience. Indeed, while the impound report itself originated from a law enforcement agency, the generic “[n]o further action” directive is “generated through [the] DMV” and, the Trooper explained, indiscriminately inserted on registration reports regardless of whether there is, in fact, a problem with the vehicle. Allowing that language to dictate the scope of an officer’s suspicion transforms a perfunctory DMV message into an outright ban on commonsense police practices.

V.

Law enforcement officers are permitted, under the Constitution, to take sensible investigatory steps in response to encounters that raise suspicion to the trained eye. A Trooper, conducting routine patrol duties, is not required to ignore a report that, in the Trooper’s experience, warrants further investigation. I would affirm.

Chief Judge DiFiore and Judges Rivera, Fahey and Feinman concur; Judge Stein concurs in result in an opinion; Judge Garcia dissents and votes to affirm in an opinion.

Order reversed, defendant’s motion to suppress granted in its entirety and indictment dismissed.

[157 NE3d 117, 132 NYS3d 394]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v EDWARD
HARDY, Appellant.

Argued September 8, 2020; decided October 15, 2020

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Term of the Supreme Court in the Second Judicial Department, Second, Eleventh and Thirteenth Judicial Districts, entered February 1, 2019. The Appellate Term affirmed a judgment of the Criminal Court of the City of New York, Queens County (Elisa S. Koenderman, J.), which had convicted defendant, upon his plea of guilty, of criminal contempt in the second degree.

People v Hardy, 63 Misc 3d 6, reversed.

HEADNOTES

Crimes — Complaint — Prosecutor's Oral Amendment to Date of Incident

1. *People v Easton* (307 NY 336 [1954]), which was decided when the Code of Criminal Procedure governed criminal prosecutions and established the rule that factual amendments to informations were permitted provided the amendment did not surprise or prejudice the defendant, was displaced by the passage of the Criminal Procedure Law and is no longer good law. Accordingly, in defendant's prosecution for criminal contempt in which the misdemeanor complaint mistakenly alleged that the crime had occurred nine months in the future and after the expiration of the complainant's order of protection, the trial court erred in permitting the People to orally amend the date of the incident based on *Easton*. In the Criminal Procedure Law, the legislature adopted rules for amending accusatory instruments, which varied by the type of instrument. For complaints and informations, the legislature did not permit factual amendments for time, place, or names. Instead, CPL 100.45 (3) permits the prosecutor to amend only the accusatory part of an information to add additional charges, provided those charges are supported by the original factual allegations. *Easton* interpreted the permissibility of amendments to accusatory instruments under a substantially different statutory landscape, now defunct. In the Criminal Procedure Law, the legislature expressly stated which amendments to complaints and informations are permissible and expressly authorized date, time, and place amendments for only a select subset of accusatory instruments, which does not include misdemeanor complaints and informations. Because the court lacked the authority to permit the amendment, the accusatory instrument—which failed to allege a crime occurring within the bounds of the two-year order of protection—was jurisdictionally defective.

Crimes — Accusatory Instrument — Validity — Nonwaivable Jurisdictional Issue

2. In defendant's prosecution for criminal contempt in which the accusatory instrument mistakenly alleged that the crime had occurred nine months

in the future and after the expiration of complainant's order of protection, defendant did not forfeit his right to challenge the legality of the People's oral amendment of the date of the incident by pleading guilty to the charges in the amended complaint. A valid and sufficient accusatory instrument is a nonwaivable jurisdictional prerequisite to a criminal prosecution. Defendant was charged with violating a two-year order of protection, but the date of the alleged incident fell outside the bounds of the order of protection. Absent the challenged amendment, the accusatory instrument would have failed to state a crime. Because the amendment implicated a fundamental defect and purportedly converted a facially insufficient accusatory instrument into a facially sufficient instrument, its legality presented a nonwaivable jurisdictional issue.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d Criminal Law §§ 642, 643; AM JUR 2d Indictments and Informations § 178.

CARMODY-WAIT 2d Commencing the Prosecution; Grand Jury §§ 178:54–178:57; CARMODY-WAIT 2d Pleas and Plea Bargaining § 182:31.

LAFAVE, ET AL., CRIMINAL PROCEDURE (4th ed) § 19.5.

NY JUR 2d Criminal Law: Procedure §§ 1025, 1026, 1531.

ANNOTATION REFERENCE

See ALR Index under Guilty Pleas; Indictments and Informations.

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POINTS OF COUNSEL

Paul Skip Laisure, Appellate Advocates, New York City (Ronald Zapata of counsel), for appellant. Because the plain language of section 100.45 of the Criminal Procedure Law and the legislative history demonstrate the legislature's intent to preclude factual amendment of informations and misdemeanor complaints, the prosecutor's amendment of the incident date here was impermissible and the accusatory instrument was facially insufficient. (*People v Easton*, 307 NY 336; *Town of Aurora v Village of E. Aurora*, 32 NY3d 366; *Samiento v World Yacht Inc.*, 10 NY3d 70; *Matter of DaimlerChrysler Corp. v Spitzer*, 7 NY3d 653; *People v Teri W.*, 31 NY3d 124; *People v*

Golo, 26 NY3d 358; *Majewski v Broadalbin-Perth Cent. School Dist.*, 91 NY2d 577; *People v Perez*, 83 NY2d 269; *Matter of Town of Riverhead v New York State Bd. of Real Prop. Servs.*, 5 NY3d 36; *Pajak v Pajak*, 56 NY2d 394.)

Melinda Katz, District Attorney, Kew Gardens (*Mariana Zelig*, *Edward D. Saslaw*, *Robert J. Masters*, *John M. Castellano* and *Joseph N. Ferdenzi* of counsel), for respondent. Criminal Court's ruling, affirmed by the Appellate Term, that the accusatory instrument was properly amended should be affirmed in this Court as well. (*People v Keizer*, 100 NY2d 114; *People v Casey*, 95 NY2d 354; *People v Smalls*, 26 NY3d 1064; *People v Dreyden*, 15 NY3d 100; *People v Iannone*, 45 NY2d 589; *People v Frederick*, 45 NY2d 520; *People v Kelly*, 5 NY3d 116; *People v Hanley*, 20 NY3d 601; *People v Becoats*, 17 NY3d 643; *People v Thomas*, 53 NY2d 338.)

OPINION OF THE COURT

WILSON, J.

The issue before us is whether the lower courts erred in permitting amendment of a clearly erroneous fact contained in the information charging Mr. Hardy with harassment and contempt in the second degree. In *People v Easton* (307 NY 336 [1954]), we upheld a similar amendment. However, *Easton* was decided when the Code of Criminal Procedure governed criminal prosecutions. Following several years of study and numerous reports by the Bartlett Commission,¹ the legislature replaced the Code of Criminal Procedure with the modern Criminal Procedural Law. Relying on *Easton*, the Appellate Term held that the factual amendment of the clearly erroneous date was permissible. We must now decide whether *Easton* remains good law following the passage of the Criminal Procedure Law. We conclude the CPL displaced *Easton* and precluded

1. In 1961, the legislature created a temporary commission to study and eventually recommend complete revisions of both the Penal Law and the Code of Criminal Procedure. The commission, officially named the New York Temporary Commission on Revision of the Penal Law and Criminal Code, was composed of nine members, appointed in equal thirds by the Governor, the Speaker of the Assembly, and the Majority Leader of the Senate. During the course of its decade-long work, the commission became known as the "Bartlett Commission," after its Chair, Assembly Member Richard J. Bartlett, who later served as Chief Administrative Judge of the Courts of New York State and Dean of Albany Law School (see generally Herman Schwartz & Richard Bartlett, *Criminal Law Revision Through a Legislative Commission: The New York Experience*, 18 Buff L Rev 213 [1969]).

prosecutors from curing factual errors or deficiencies in informations and misdemeanor complaints via amendment. The CPL requires a superseding accusatory instrument supported by a sworn statement containing the correct factual allegations. Therefore, we reverse.

I.

On September 10, 2013, Criminal Court issued a two-year order of protection directing Mr. Hardy to refrain from harassing his wife and to stay away from her home. Mr. Hardy violated the order in January 2015 when he “came ringing the bell . . . yelling and screaming . . . and saying all kinds of foul language.” His wife averred Mr. Hardy was “out of control” and refused to leave, in violation of the order of protection. He was arraigned the following day on a misdemeanor complaint, charging him with harassment and criminal contempt in the second degree.

After a four-day adjournment—granted so the People could obtain a supporting deposition—the parties reconvened and the court proceeded to convert part of the complaint into an information, notwithstanding the presence of several errors in the accusatory instrument. Although the first page of the attached domestic incident report listed the date (correctly) as “1/25/15,” the second page mistakenly dated the statement as having been given a year prior—“1/25/14” instead of “1/25/15.” In addition, the handwritten narrative on the first page of the report was only partially legible and partially intelligible. Germane to this appeal, the accusatory instrument incorrectly alleged that the crime occurred “on or about October 25, 2015.” That date, which would not occur for another nine months, was patently incorrect. That date also fell after the expiration of the order of protection, meaning that the accusatory instrument facially failed to state facts showing a violation of the order of protection.

When defense counsel objected that the accusatory instrument included the wrong date, the court responded: “that’s clearly a typographical error which the People can move to amend at any time.” Over objection, the court then granted the People’s oral motion to amend the date of the incident. Mr. Hardy subsequently pleaded guilty to criminal contempt, as charged in the amended accusatory instrument. He received a 90-day jail sentence.

On appeal, Mr. Hardy challenged the facial sufficiency of the original accusatory instrument and argued the court impermis-

sibly granted the People’s motion to amend the instrument (63 Misc 3d 6, 8 [App Term, 2d Dept, 2d, 11th & 13th Jud Dists 2019]). The Appellate Term, after noting that “case law has been inconsistent in this area” (*id.* at 9), ultimately upheld the amendment. The court first determined that

“notwithstanding the fact that CPL 100.45 does not authorize factual amendments of informations and complaints, the common-law rule of *Easton* still governs, and, thus, courts retain the inherent authority to permit factual amendments to these types of instruments pursuant to the guidelines set forth in *Easton*” (*id.* at 11-12).

Applying *Easton*’s rule, the Appellate Term concluded the amendment did not “surprise or prejudice” Mr. Hardy because it rectified a clear “typographical error of which defendant should have been aware” (*id.* at 13, quoting *Easton*, 307 NY at 338). A Judge of this Court granted leave to appeal (33 NY3d 976 [2019]).

II.

The People agree that the original misdemeanor complaint was facially insufficient, and that Mr. Hardy could not have been prosecuted on it.² Therefore, the question is whether the court had the authority to amend the date to create a valid instrument. Our decision in *Easton*, if it was not displaced by the CPL, may well have answered that question. The facts in *Easton* are quite like the facts here. Mr. Easton was arrested on December 17, 1952, for driving while intoxicated. The arresting officer mistakenly recorded the year as 1953, unintentionally charging Mr. Easton with a violation occurring a year into the future (*Easton*, 307 NY at 338). The error was not discovered until the eve of trial, at which point the trial court permitted the People to amend the instrument to correct the clearly incorrect date. On appeal, we upheld the amendment, explaining that because

2. Mr. Hardy waived prosecution by information. Although a misdemeanor complaint is subject to less stringent review than an information (*see People v Smalls*, 26 NY3d 1064, 1066 [2015]), a complaint nevertheless must state all elements of a crime (*see People v Fernandez*, 20 NY3d 44, 47 [2012]) and “provide reasonable cause to believe that the defendant committed the offense charged” (CPL 100.40 [4] [b]; *accord People v Afilal*, 26 NY3d 1050, 1052 [2015]). Here, the erroneously charged future date rendered the instrument insufficient for failure to charge a crime under either standard.

“the correction of the date occasioned [Mr. Easton] no surprise or prejudice . . . what could have been effected by the preparation of a new information was properly accomplished by amendment of the one already on file. There was neither reason nor necessity for another piece of paper” (*id.*).

Easton established a clear rule: factual amendments to informations were permitted provided the amendment did not surprise or prejudice the defendant. While the content of *Easton*’s rule is clear, the source of its holding is not. *Easton* is silent as to whether its rule derives from the Code of Criminal Procedure or the common law; it mentions neither explicitly.³ In this case, the source of *Easton*’s holding does not change our analysis,⁴ and the question we must ask is whether the legislature, by enacting the CPL, displaced or left undisturbed *Easton*’s rule that factual amendments to informations are permitted as long as there is no prejudice to the defendant.

III.

The text, structure, and legislative history of the Criminal Procedure Law all show that the legislature replaced *Easton*’s rule with a more finely-tuned set of rules governing amendments, tailored to each of the types of accusatory instruments it had defined in the CPL. CPL 200.70 does permit the kind of factual amendment the People sought to make here, but only

3. Inspection of the briefs in *Easton* reveals that neither party there presented or disputed any common-law theory for the amendment. Instead, both the People and the defense briefed the issue as one of pure statutory construction—both parties argued that sections 62 and 293 of the Code supported their position.

4. Because the Court in *Easton* did not disclose the basis for its ruling, and because *Easton* can read as either a statutory, common-law, or compromise decision, it would be inappropriate to charge the legislature with specific knowledge of the source of *Easton*’s holding. Therefore, while we presume the legislature was aware of the content of *Easton*’s rule at the time the CPL was enacted, we do not presume the legislature understood *Easton* to be either a statutory or common-law decision. Furthermore, as explained below, the Bartlett Commission plainly recommended that all accusatory instruments, including complaints and informations, be amendable under specified circumstances. The legislature deliberately struck that language as to those two forms of accusatory instruments from a provision permitting amendment under what the dissent claims was the preexisting common-law rule. The legislative excision and detailed statutory scheme for amending accusatory instruments evidences the legislature’s clear intent to forbid factual amendments to complaints and informations.

for a select subset of accusatory instruments, and not for informations or complaints. As relevant to Mr. Hardy's case, the CPL provides, at most, that only the nonfactual, accusatory portion of an information can be amended.

[1] One of the CPL's major innovations was the creation of a new taxonomy of accusatory instruments. Where the Code had differentiated between "indictments" and "informations," the CPL divided informations into five types of local criminal court accusatory instruments: informations, simplified informations, prosecutor's informations, misdemeanor complaints and felony complaints (CPL 100.05). In the CPL, the legislature also adopted rules for amending accusatory instruments; those rules varied by the type of instrument. As to indictments, the CPL retained the preexisting Code rule that indictments could not be amended if they might prejudice the defendant. However, the new CPL 200.70 added a limitation not present in the Code: indictments could not be amended, regardless of prejudice, if the amendment "change[d] the theory or theories of the prosecution as reflected in the evidence before the grand jury." The legislature chose to subject prosecutor's informations to the same standards governing indictments (CPL 100.45 [2]). Superior court informations were treated in a similar fashion, although with an explicit difference. Section 200.70 permitted superior court informations to be amended as to "matters of form, time, place, names of persons and the like" (CPL 200.70 [1]), but the legislature omitted the limitation that the amendments could not change the theory of the prosecution. Instead, the permissibility of such amendments turned on whether the defendant would be prejudiced. For complaints and informations, the legislature did not permit factual amendments for time, place, or names, as it had for prosecutor's and superior court informations. Instead, CPL 100.45 (3) permits the prosecutor to amend only the accusatory part of an information to add additional charges, provided those charges are supported by the original factual allegations.

The legislature's decision to exclude informations and misdemeanor complaints from the scope of section 200.70 is supported by a strong rationale. An information or a complaint—unlike an indictment or superior court information—commences a criminal action based on the allegations of someone who is not an officer of the court, and whose testimony

has not been vetted by a grand jury.⁵ Under those circumstances, it was reasonable for the legislature to decide that no one but an affiant should be permitted to alter the factual allegations previously sworn to by an affiant.⁶ Moreover, where the legislature did permit the prosecutor to move to amend informations, it expressly limited such amendments to the accusatory portion only, and further required that the amendment to the accusatory portion must be “supported by the allegations of the factual part of such information and/or any supporting depositions which may accompany it” (CPL 100.45 [3]). Allowing amendments to the factual part of an information would render the restriction in CPL 100.45 meaningless.

Easton interpreted the permissibility of amendments to accusatory instruments under a substantially different statutory landscape, now defunct. Despite the dissimilarities between the Code and the CPL, the People urge us to affirm the continued viability of *Easton*. The text and structure of the CPL do not permit us to do so, nor does the application of our long-standing principles of statutory construction. In the CPL,

5. In *People v Alejandro* (70 NY2d 133, 138 [1987]), we explained that compared with other accusatory instruments, the “distinguishing characteristic of an information” is “its use as the sole instrument upon which the defendant could be prosecuted . . . which prompted the Legislature to write in the special restrictions applicable to informations . . .” The legislature had a sound basis for subjecting informations to stricter pleading requirements than other instruments:

“The reason for requiring the additional showing of a prima facie case for an information lies in the unique function that an information serves under the statutory scheme established by the Criminal Procedure Law. An information is often the instrument upon which the defendant is prosecuted for a misdemeanor or a petty offense. Unlike a felony complaint (CPL 180.10), it is not followed by a preliminary hearing and a Grand Jury proceeding. Thus, the People need not, at any time prior to trial, present actual evidence demonstrating a prima facie case, as with an indictment following a felony complaint” (*id.* at 137-138).

And we explained that in the case of misdemeanor complaints, as with informations, “the defendant does not have the protection of a preliminary hearing and Grand Jury action as with a felony complaint” (*id.* at 138 n 2). The same considerations that motivated the legislature to tighten the pleading requirements for misdemeanor complaints and informations also apply to altering the factual allegations contained therein.

6. The dissent’s bon mot—“whether grounded in common law or common sense”—(Garcia, J., dissenting op at 482) cannot obscure the common sense underlying the legislature’s decision to forbid amendments to accusatory instruments not emanating from a grand jury or an officer of the court where the change is unsupported by an affiant who can attest to the veracity of the correction.

the legislature expressly stated which amendments to complaints and informations are permissible (nonfactual amendments) and expressly authorized date, time, and place amendments for only a select subset of accusatory instruments: prosecutor's informations, indictments, and superior court informations. The People's position would have us write into the CPL an authority to make factual amendments to informations that the legislature declined in two separate places to include (*see generally* McKinney's Cons Laws of NY, Book 1, Statutes § 363, Comment and the cases cited therein [(A) court cannot amend a statute by inserting words that are not there, nor will a court read into a statute a provision which the Legislature did not see fit to enact. . . . (A) court cannot, by implication, read or supply in a statute a provision which it is reasonable to suppose the Legislature intentionally omitted]). Moreover, because we presume the legislature was aware of our decisional law at the time of enactment (*see Matter of Odunbaku v Odunbaku*, 28 NY3d 223, 229 [2016]), we must give proper effect to the legislature's decision to incorporate *Easton's* "no prejudice" rule for some, but not all, of the types of accusatory instruments it had delineated. The CPL's rule for indictments, prosecutor's informations, and superior court informations is that date, time, and place errors may be fixed if the correction does not prejudice the defendant (*see* CPL 200.70). That is not the rule for complaints and informations.

The legislative history confirms our understanding of the plain language. The Bartlett Commission initially recommended versions of section 100.45 that would have included explicit authority for prosecutors to amend factual details in informations and misdemeanor complaints. Successive bill drafts concerning section 100.45 show that, right up until the legislative session before enactment, the Commission's proposed subdivision (2) stated: "The provisions of section 200.70 governing amendment of indictments apply to informations, prosecutor's informations and misdemeanor complaints" (Temp St Commn on Rev of Penal Law and Crim Code, 1969 Proposed NY CPL 100.45 [2] at 56). However, the legislature ultimately selected only one of those instruments—prosecutor's informations—and rejected the Commission's proposal to include informations and misdemeanor complaints in CPL 200.70. Particularly because the standard articulated in CPL 200.70 is *Easton's* "no prejudice" standard, it is inconceivable that the legislature meant to apply that standard to misde-

meanor complaints and informations by *striking* them from the sentence in the draft legislation applying that standard to other accusatory instruments.

The text, structure, and legislative history of the CPL, as well as a straightforward application of our canons of statutory construction, all demonstrate that the CPL does not permit the kinds of factual amendments once countenanced by *Easton*. The CPL does provide its own pathway for correcting factual errors in complaints and informations, through the filing of a superseding accusatory instrument (CPL 100.50), not through a prosecutor's amendment of facts averred by someone else. We recognize that the October 25, 2015 date in the accusatory instrument here cannot possibly be correct and that the correct date can be inferred from information outside the four corners of the accusatory instrument. However, in evaluating the sufficiency of an accusatory instrument we do not look beyond its four corners (including supporting declarations appended thereto) (*People v Thomas*, 4 NY3d 143, 146 [2005]). It is the People's responsibility to obtain a sworn statement with the correct factual allegations and proceed on a superseding instrument.

[2] The People further contend that even if the amendment was improperly granted, Mr. Hardy forfeited his right to challenge the legality of the amendment by pleading guilty to the charges in the amended complaint. Our precedent forecloses that result. In *People v Harper*, we held that "if there is to be an amendment of an accusatory instrument within the scope of CPL 100.45 (subd 3), there must be strict compliance with the prescriptions of that section" (37 NY2d 96, 98 [1975]). In *Harper*, the defendant stipulated at trial to an amendment adding two counts to the charges against him. Notwithstanding the defendant's consent to be prosecuted on the amended instrument, we held that the defendant could still challenge the validity of the amendment on appeal, explaining that a "valid and sufficient accusatory instrument is a nonwaivable jurisdictional prerequisite to a criminal prosecution" (*id.* at 99). The same holds true here. Mr. Hardy was charged with violating a two-year order of protection, but the date of the alleged incident fell outside the bounds of the order of protection. Absent the challenged amendment, the accusatory instrument would have failed to state a crime. Because the amendment implicates a fundamental defect and purportedly converted a facially insufficient accusatory instrument into a facially suf-

ficient instrument, its legality presents a nonwaivable jurisdictional issue (see *People v Correa*, 15 NY3d 213, 222 [2010]; *People v Scott*, 3 NY2d 148, 152 [1957] [(O)bjections to the jurisdiction of the court are not waived (by a guilty plea), nor is the objection that the information does not state a crime” (emphasis omitted)]; *People v Van Every*, 222 NY 74, 77 [1917]).⁷

IV.

The trial court granted the People’s motion to amend the information because the amendment pertained only to “a matter as to date, time or place.” As described above, the CPL authorizes such amendments for a select subset of accusatory instruments (see CPL 200.70, 100.45 [2]). That subset does not include misdemeanor complaints or informations, for which the CPL licenses amendments to the nonfactual portion of the accusatory instrument only (see *id.* § 100.45 [3]). Because the court lacked the authority to permit the amendment, the accusatory instrument—which failed to allege a crime occurring within the bounds of the two-year order of protection—was jurisdictionally defective (see *Alejandro*, 70 NY2d at 138). Accordingly, the order of Appellate Term should be reversed and the accusatory instrument dismissed.

GARCIA, J. (dissenting). Defendant waived prosecution by information, pleaded guilty to a jurisdictionally-sufficient misdemeanor complaint, and then appealed, challenging the procedure used by the court to amend a typographical error in the accusatory instrument. A plea, as we have made clear time and again, “generally marks the end of a criminal case, not a gateway to further litigation” (*People v Hansen*, 95 NY2d 227, 230 [2000]). Not so in this case. Instead, the majority holding elevates the correction of a typographical error to the level of a

7. The dissent stretches *Easton* far beyond its holding, contending that *Easton* “stands for the unquestionable proposition that correcting a mere typographical error in the date of the crime—even one that as here would have made the crime impossible to commit as charged—does not render a facially-sufficient accusatory instrument jurisdictionally defective” (Garcia, J., dissenting op at 482). *Easton* said nothing about whether an illegal amendment constitutes a nonwaivable jurisdictional defect because Mr. Easton preserved his challenge to the amendment and proceeded to trial. We concluded that under the law as it existed at that time, the amendment was permitted, and so we affirmed his conviction. Because the legislature, when replacing the Code with the CPL, contemplated permitting factual amendments to misdemeanor complaints but chose otherwise, we now reach a different result.

jurisdictional defect, a status formerly reserved for errors “implicating the integrity of the process,” not applicable to “less fundamental flaws, such as evidentiary or technical matters” (*People v Hightower*, 18 NY3d 249, 254 [2011]). In doing so, we reject not only our holding in *People v Easton*, but the wisdom of its warning that to sustain a “reversal of the conviction and hold impermissible an amendment made solely to correct an obvious typographical error in the information” would be to “exalt form over substance” and “enthron[e] technicality purely for its own sake” (307 NY 336, 338 [1954]). Accordingly, I dissent.

I.

Some clarification is necessary with respect to the facts. On January 25, 2015, defendant entered the complainant’s residence in violation of an order of protection. A police officer responded and observed the defendant inside the home. Defendant was charged with criminal contempt and harassment in a misdemeanor complaint that incorrectly listed the date of the charged offenses as “October 25, 2015”—a date nine months in the future—rather than “January 25, 2015.” At arraignment the following day, the judge issued a full order of protection in favor of the complaining witness and adjourned the matter to provide the People with the opportunity to produce a supporting deposition sufficient to convert the misdemeanor complaint to an information.¹

When the proceedings reconvened five days later, the People presented two additional documents to the court. The first was an unsworn domestic incident report that contained a narrative by a police officer and reflected the correct date of the incident. The second document was a short affirmation by the complaining witness, dated “1/25/14,” describing the incident but without indicating the date it occurred. The court found that the complainant’s sworn statement along with the original misdemeanor complaint would together satisfy the requirements of an information charging criminal contempt. It was in the context of converting the complaint to an information that defense counsel pointed out that the accusatory instrument

1. Without a waiver by defendant, a misdemeanor complaint must be converted to an information for the People to proceed with the prosecution (CPL 170.65 [1], [3]; see *People v Kalin*, 12 NY3d 225, 228 [2009]). A supporting deposition can be used to cure a facially insufficient accusatory instrument (see CPL 100.15 [3]; 100.45 [3]), but one is not otherwise required (see *Kalin*, 12 NY3d at 228; CPL 100.40 [4] [b]).

listed the incorrect date of the incident. The court responded that the date was “clearly a typographical error which the People can move to amend at any time.” Over defense counsel’s objection, the court granted the People’s motion to amend the complaint to “January 25, 2015” on the grounds that the amendment was “to date, time or place.”²

At this point in the proceeding, the Judge had concluded that the two documents—the original sworn statement of the arresting officer and the complainant’s sworn statement—together constituted an information charging criminal contempt. Rather than have the People proceed by information, however, defense counsel, referencing an offer by the People of a six-month sentence, asked “would the Court be willing to offer anything less?”

The People responded:

“[T]he Defendant and Complainant have a long domestic violence history, seven cases since 2005. In 2013 the Defendant pled to two counts of criminal contempt in the Second Degree taking sixty days. He has been rejected from [treatment] programs on the last case. He has been offered programs in the past and conditional pleas on the other case which he has failed to complete.”

The court made a more favorable offer: “All right, so, I do see that he last got sixty days for violating an Order of Protection against this Complainant in 2013. So, I would give him ninety days for this contempt, which is half of what the People are offering.”

Counsel immediately accepted the offer: “Your Honor, we do have a disposition.” At the same proceeding, defendant waived prosecution by information, pleaded guilty to the criminal contempt charge in the misdemeanor complaint, and was sentenced according to the bargain struck with the court. There is no issue as to the voluntariness of his plea. Nevertheless, defendant appealed, arguing that the court improperly granted the People’s motion to amend the date, and that the unamended accusatory instrument was facially insufficient. Appellate Term

2. The fact that defendant objected here does not affect the outcome. If the process for correcting the typographical error is not a jurisdictional defect, the claim—whether preserved or not—would be forfeited by a guilty plea. If it is a jurisdictional defect, as the majority now holds, the defendant need not object and dismissal on appeal will nevertheless result.

rejected that argument and affirmed, relying primarily on this Court's decision in *Easton* (63 Misc 3d 6, 11-13 [App Term, 2d Dept, 2d, 11th & 13th Jud Dists 2019]).

The majority reverses, holding that the Criminal Procedure Law "displaced *Easton* and precluded prosecutors from curing factual errors or deficiencies in informations and misdemeanor complaints via amendment" (majority op at 468-469). According to the majority, "[b]ecause the amendment implicates a fundamental defect and purportedly converted a facially insufficient accusatory instrument into a facially sufficient instrument, its legality presents a nonwaivable jurisdictional issue" (majority op at 475-476). The majority holding expands our narrow range of fundamental jurisdictional defects so far as to now include the correction of a typographical error in the date of a misdemeanor complaint.

II.

A guilty plea generally "marks the end of a criminal case," encompassing "a waiver of specific rights attached to trial . . . [and] a forfeiture of the right to revive certain claims made prior to the plea" (*Hansen*, 95 NY2d at 230). A valid and sufficient accusatory instrument is a jurisdictional prerequisite and a defendant does not forfeit the right to challenge jurisdictional sufficiency by pleading guilty (see *People v Dreyden*, 15 NY3d 100, 103 [2010]). The distinction between jurisdictional and nonjurisdictional defects "is between defects implicating the integrity of the process . . . and less fundamental flaws, such as evidentiary or technical matters" (*id.*; *Hightower*, 18 NY3d at 254). As this Court has made clear, "[t]he test is, simply, whether the accusatory instrument failed to supply defendant with sufficient notice of the charged crime to satisfy the demands of due process and double jeopardy" (*Dreyden*, 15 NY3d at 103).

In the past, we have found jurisdictional defects of a magnitude to survive a defendant's guilty plea when the factual allegations failed to demonstrate reasonable cause to believe that the defendant committed the crime charged (see e.g. *People v Dumas*, 68 NY2d 729, 731 [1986] [conclusory statements in misdemeanor complaint lacked evidentiary character to support sale of marijuana]; *Dreyden*, 15 NY3d at 103 [officer did not give any support in misdemeanor complaint to conclude that defendant possessed a gravity knife]), and when the facts recited in the accusatory instrument or supporting deposition

did not state a crime (*see e.g. People v Case*, 42 NY2d 98, 100 [1977] [sum of facts in misdemeanor information failed to establish element of physical force]; *Hightower*, 18 NY3d at 254-255 [factual portion of misdemeanor information contained no basis for possessory element of petit larceny]).

Nothing remotely near the level of those jurisdictional errors occurred here. First, it is important to make clear that defendant pleaded guilty to the jurisdictionally-sufficient, amended, misdemeanor complaint. Although a misdemeanor complaint may be filed in order to obtain jurisdiction over a defendant, that instrument may not serve as the basis for a prosecution without an express waiver (*see Kalin*, 12 NY3d at 228). In order to go forward with the prosecution, the People must—as they were in the process of doing here—convert the misdemeanor complaint to an information (*see* CPL 100.10 [4]; 170.65 [1]). “To meet the jurisdictional standard for facial sufficiency, a misdemeanor complaint need only set forth facts that establish reasonable cause to believe that the defendant committed the charged offense” (*People v Smalls*, 26 NY3d 1064, 1066 [2015] [internal quotation marks omitted]). By contrast, an information must also set forth “nonhearsay allegations which, if true, establish every element of the offense charged and the defendant’s commission thereof” (*Kalin*, 12 NY3d at 228-229; *see* majority op at 473 n 5 [quoting *People v Alejandro* (70 NY2d 133, 138 [1987]) for the proposition that the “distinguishing characteristic of an information” is “its use as the sole instrument upon which the defendant could be prosecuted . . . which prompted the Legislature to write in the special restrictions applicable to informations”]). As we have repeatedly stressed, “an information must satisfy significantly more stringent facial sufficiency requirements than those applicable to a complaint” (*Smalls*, 26 NY3d at 1067). Where, as here, a defendant waives prosecution by information, “he or she declines the protection of [CPL 100.40 (1)], and the accusatory instrument must only satisfy the reasonable cause requirement” (*People v Dumay*, 23 NY3d 518, 522 [2014]). Therefore, the sufficiency of the accusatory instrument defendant pleaded guilty to is measured by the reasonable cause standard of a misdemeanor complaint (*see id.*; CPL 170.65 [3]).

At the time defendant waived prosecution by information and entered a plea to the charge, the misdemeanor complaint was facially sufficient. The typographical error as to the month the crime occurred had been fixed and the correct date now ap-

peared. With that correction, the accusatory instrument set forth facts that established reasonable cause to believe defendant committed the charged offense and provided the defendant with the required notice of the crime (*see Dreyden*, 15 NY3d at 103).

In an effort to characterize defendant's claim as one asserting a jurisdictional defect not forfeited by his guilty plea, the majority looks behind the facial sufficiency of the misdemeanor complaint at the time of the plea and examines the process for amending the typographical error in the date (*see* majority op at 468-469). But that amendment process—an alleged statutory violation—was not a fundamental jurisdictional error, and any challenge to it was forfeited by the guilty plea (*see People v Konieczny*, 2 NY3d 569, 575 [2004]).

Defendant and the majority rely on this Court's decision in *People v Harper* (37 NY2d 96 [1975]) as support for the conclusion that a jurisdictional defect may be brought on by an ineffective amendment. However, in *Harper*, the information was amended during trial to add two counts of menacing involving victims not covered in the original menacing count (*id.* at 98-99). Defendant was convicted of the two added counts and acquitted of all remaining counts (*id.* at 99). Adding counts based on different facts after trial commences raises double jeopardy and notice issues not remotely relevant here. For this reason, in *Harper* the Court began its analysis by noting that “[i]n the present case there was a trial rather than the entry of a plea” (*id.*). The rule in *Harper* does not apply where, rather than adding new charges during trial, the court permitted the People to correct a typographical error in a misdemeanor complaint prior to a guilty plea.³

The People argue that any flaw in the amendment process should be considered a technical defect, relying on our decision in *Easton*, which involved facts more analogous to the present

3. The majority's citation to two cases involving classic examples of jurisdictional defects, *People v Scott* (3 NY2d 148, 152 [1957] [complete absence of a verified information]) and *People v Correa* (15 NY3d 213, 222 [2010] [allegation that the court lacked subject matter jurisdiction to try the case]) serves only to place in stark contrast the technical defect at issue here (majority op at 476). Reliance on *People v Van Every* (222 NY 74 [1917]; *see* majority op at 476) is more surprising still given this Court's statement in *Easton* that *Van Every*, cited by County Court as the controlling authority in reversing defendant's conviction (127 NYS2d 163, 164 [Broome County Ct 1954]), was “entirely inapposite, and defendant's reliance upon [it is] misplaced” (307 NY at 338).

case. In *Easton*, the arresting officer filed a misdemeanor information charging the defendant with driving while intoxicated on a date one year after defendant was arrested (307 NY at 338). On the eve of trial, the court permitted a factual amendment to cure the typographical error over defendant's objection that the information was "defective as a matter of law" (*id.*). Defendant was convicted and he appealed. County Court reversed the conviction, holding that the Code of Criminal Procedure in effect at the time did not permit the amendment and the typographical error in the date made the information "void and fatally defective" (127 NYS2d 163, 164 [Broome County Ct 1954]). The court held that "[t]he rules of procedure in criminal cases cannot be treated with the same elasticity as the rules of pleading in civil actions" because "[t]he principle of adherence to our established rules of criminal procedure greatly outweighs the importance of any individual case" (*id.* at 165-166).

This Court reversed and reinstated the conviction, explaining that although a conviction could not be upheld if it was obtained "without jurisdiction, even though the record evidence stamps defendant plainly guilty," amending the typographical error in the date did not rise to that level (*Easton*, 307 NY at 338). Because the officer could easily have sworn out a new information with the correct date, "[t]here was neither reason nor necessity for another piece of paper" (*id.*). We upheld the conviction, despite an amendment made to the information, on the eve of trial, over defendant's objection, and in apparent contravention to the language of the criminal procedure code.

At a minimum, *Easton* stands for the unquestionable proposition that correcting a mere typographical error in the date of the crime—even one that as here would have made the crime impossible to commit as charged—does not render a facially-sufficient accusatory instrument jurisdictionally defective.⁴ Therefore, defendant's claim that the statutory amendment process was not followed in this case was forfeited by his guilty plea. We should continue to apply *Easton*'s rule, whether grounded in common law or common sense, and affirm the order of the Appellate Term.

4. This Court did not dispute County Court's holding regarding the applicability of the criminal procedure rules, holding only that "[d]ecisions" dealing with amending indictments should not be relied upon in this context (*Easton*, 307 NY at 338-339). Accordingly, given County Court's holding, *Easton* may be read as providing a common-law basis for amending a misdemeanor information to correct a typographical error in the date *despite* any criminal procedure rule to the contrary.

RIVERA, J. (dissenting). I am in full agreement with the majority's conclusion that defendant's challenge to the validity of the amendment to the accusatory instrument presents a non-waivable jurisdictional issue reviewable by us on this appeal (majority op at 475-476). However, I would affirm for the reasons explained by the Appellate Term (*see People v Hardy*, 63 Misc 3d 6 [App Term, 2d Dept, 2d, 11th & 13th Jud Dists 2019]).

Judges STEIN, FAHEY and FEINMAN concur; Judge GARCIA dissents and votes to affirm in an opinion in which Chief Judge DiFIORE concurs; Judge RIVERA dissents and votes to affirm in a separate dissenting opinion.

Order reversed and accusatory instrument dismissed.

[158 NE3d 87, 133 NYS3d 218]

In the Matter of RICHARD H. MILLER, II, a Judge of Family Court, Broome County, Petitioner; NEW YORK STATE COMMISSION ON JUDICIAL CONDUCT, Respondent.

Argued September 9, 2020; decided October 15, 2020

SUMMARY

PROCEEDING, pursuant to NY Constitution, article VI, § 22 and Judiciary Law § 44, to review a determination of respondent State Commission on Judicial Conduct, dated February 14, 2020. The Commission determined that petitioner should be removed from the office of Judge of the Family Court of Broome County.

HEADNOTES

Judges — Disciplinary Proceedings — Referee's Findings

1. In a proceeding to review a determination by respondent State Commission on Judicial Conduct that petitioner Family Court Judge committed certain acts of misconduct and should be removed from office, any findings made by respondent that differed from those made by the Referee were not set aside and a review of the record indicated that the charges were properly sustained. With respect to respondent's factual findings, neither respondent nor the Court of Appeals is bound to accept a referee's findings. The record did not support petitioner's argument that respondent ignored or rejected any of the Referee's findings that were based on an assessment of witness credibility.

Judges — Removal from Office

2. The determination of respondent State Commission on Judicial Conduct that petitioner Family Court Judge should be removed from office was accepted. Petitioner's conduct toward court employees as proved through testimony that he made sexualized and demeaning comments toward certain staff members violated Rules Governing Judicial Conduct (22 NYCRR) §§ 100.1 and 100.3 (B) (3). Having conceded that he had his court secretary draft a letter seeking payment for work performed in his former private practice, petitioner also violated section 100.2 (C). Moreover, upon receiving that payment, petitioner delayed for years in filing required financial disclosure forms and amending his tax returns to report that and other extrajudicial income until he was under investigation, thus violating sections 100.2 (A), 100.3 (C) (1), and 100.4 (H) (2) and (I). Petitioner's conduct, when considered in the aggregate as required, was sufficiently egregious in light of his three separate categories of misconduct, his prior censure by respondent, his failure to take responsibility for his actions, and the message that another censure would send to the public. While the comments to employees were not numerous, the misconduct was compounded by petitioner's retaliation against one employee when she complained of his conduct and his attempt at mitigation by arguing that his unprofessional sexualized comments were an attempt at humor.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d Judges §§ 16, 19.
CARMODY-WAIT 2d Officers of Court §§ 3:138, 3:139, 3:142,
3:144.
22 NYCRR 100.1, 100.2 (A), (C); 100.3 (B) (3); (C) (1); 100.4
(H) (2); (I).
NY JUR 2d Courts and Judges §§ 334, 345, 389, 442, 443,
445, 464.

ANNOTATION REFERENCE

Disciplinary action against judge on ground of abusive or
intemperate language or conduct toward attorneys, court
personnel, or parties to or witnesses in actions, and the
like. 89 ALR4th 278.

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POINTS OF COUNSEL

DerOhannesian & DerOhannesian, Albany (*Paul DerOhan-
nesian II* and *Danielle R. Smith* of counsel), and *Scalise &
Hamilton PC*, Scarsdale (*Deborah A. Scalise* of counsel), for
petitioner. I. The Commission erred in its utilization of
petitioner's prior history with the Commission. II. The Com-
mission erred in ignoring, rejecting and altering the Referee's
findings. (*Matter of Berenhaus v Ward*, 70 NY2d 436; *Matter of
Von Wiegen*, 146 AD2d 901; *Matter of Dwyer*, 285 AD2d 133.)
III. The Commission erred in departing from precedent in find-
ing that the proven allegations warrant removal. (*Matter of
Skinner*, 91 NY2d 142; *Matter of Mazzei*, 81 NY2d 568; *Matter
of Alessandro [State Commn. on Jud. Conduct]*, 13 NY3d 238;
Matter of Cunningham, 57 NY2d 270; *Matter of VonderHeide
[State Commn. on Jud. Conduct]*, 72 NY2d 658; *Matter of
Watson*, 100 NY2d 290.)

Robert H. Tembeckjian, Albany (*Edward Lindner*, *David P.
Stromes*, *Cathleen S. Cenci* and *S. Peter Pedrotty* of counsel),
for respondent. I. Petitioner committed multiple acts of serious
misconduct over a period of several years, including making a
series of sexist and demeaning remarks to female courthouse

employees, failing to report income, and misusing his judicial office. (*Matter of Duckman*, 92 NY2d 141; *Matter of O'Connor* [*New York State Commn. on Jud. Conduct*], 32 NY3d 121; *Matter of Simon* [*State Commn. on Jud. Conduct*], 28 NY3d 35; *Matter of Marshall*, 8 NY3d 741; *Matter of Alessandro* [*State Commn. on Jud. Conduct*], 13 NY3d 238; *Matter of Steinberg*, 51 NY2d 74.) II. Petitioner's multiple acts of misconduct, taken together with his refusal to accept responsibility for his actions and his prior censure, warrant his removal from office. (*Matter of Romano*, 93 NY2d 161; *Matter of Duckman*, 92 NY2d 141; *Matter of Steinberg*, 51 NY2d 74; *Matter of Shaw*, 96 NY2d 7; *Matter of Collazo* [*State Commn. on Jud. Conduct*], 91 NY2d 251; *Matter of Ayres* [*New York State Commn. on Jud. Conduct*], 30 NY3d 59; *Matter of Hart* [*State Commn. on Jud. Conduct*], 7 NY3d 1; *Matter of Aldrich v State Commn. on Jud. Conduct*, 58 NY2d 279; *Matter of Bauer*, 3 NY3d 158; *Matter of Cunningham*, 57 NY2d 270.)

OPINION OF THE COURT

Per Curiam.

Petitioner, a Judge of the Family Court, Broome County, seeks review of a determination by the State Commission on Judicial Conduct that he committed certain acts of misconduct and should be removed from office (*see* NY Const, art VI, § 22; Judiciary Law § 44). Upon our independent review of the record, we sustain the Commission's findings and conclude that petitioner's broad pattern of misconduct—when considered in the context of his “inability to recognize the seriousness of [his] misconduct and [his] failure to heed a prior warning[, which] are significant aggravating factors” (*Matter of Ayres* [*New York State Commn. on Jud. Conduct*], 30 NY3d 59, 64 [2017])—warrants removal.

I.

Petitioner took office as a Family Court Judge in 2015, after previously serving as a part-time judge of town or city courts since 1996, along with maintaining a private practice. In July 2018, the Commission served petitioner with a formal written complaint, containing four charges; charges I, II, and IV were ultimately sustained. Charge I alleged that petitioner engaged in a pattern of inappropriate behavior, including making sexualized comments, toward certain staff members of the Broome County Family Court. Charge II alleged that petitioner both lent the prestige of his judicial office to advance his private

interests and failed to conduct his extrajudicial activities so as to minimize the risk of conflict with his judicial obligations when he had his court secretary perform services unrelated to her official duties. Charge III, which was not sustained, alleged that, while a full-time judge, petitioner improperly engaged in the practice of law. Lastly, charge IV alleged that petitioner failed to timely and accurately disclose income from his extrajudicial activities, as required, to the Internal Revenue Service, the New York State Department of Taxation and Finance, the Ethics Commission for the Unified Court System, and the Clerk of the Broome County Family Court.

The evidence before the Commission with respect to charge I included the testimony of the former chief clerk of the Broome County Family Court regarding petitioner's inappropriate behavior toward court staff, including herself. She stated that, during May and June 2017, petitioner told her that, if he "knew [she] could also cook, [he] would have gone for [her]"; that "[i]t's nice to know [he] still ha[s] that effect on [her]" when she apologized for having a hot flash; and that she "look[ed] really hot" in a particular outfit and should always wear it. A court assistant further testified that, while working with petitioner in the courtroom one afternoon in February 2017, petitioner stood up and "yelled" at her in a "demeaning" and "belligerent" manner from a distance of three or four feet away, telling her that she was not doing her job properly, was too slow, and needed to move faster. After learning that the court assistant complained about his behavior, petitioner filed a written complaint, criticizing her job performance. The chief clerk found petitioner's complaints to be mostly "unfounded" and retaliatory.

The facts with respect to charge II were largely conceded by petitioner. In November 2015, a former client of petitioner sent unsigned checks in an attempted payment for legal fees. Petitioner testified that, when he stated that the checks needed to be returned to his client for a signature, his judicial secretary offered to type a letter. She then wrote the letter as if it was authored by petitioner's former legal assistant from his law firm, requesting that the checks be sent back signed. Petitioner brought the letter back to his former law office and it was mailed from that location. The following month, petitioner received signed checks from his client, totaling approximately \$11,000.

Those checks also relate to charge IV. Including the \$11,000 payment, petitioner received a total of approximately \$27,000

in legal fees in late 2015 for work performed prior to becoming a full-time judge. In addition, from 2015 to 2017, petitioner received \$38,600 in rental payments on two properties in which he had an ownership interest. Petitioner did not initially report the extrajudicial income on his 2015 and 2016 federal and state tax returns. In July 2017, petitioner learned that a complaint had been made against him, he was unable to access his chambers, and the Commission had taken possession of boxes containing his tax records that were stored in his chambers. In addition, the Inspector General for the Unified Court System questioned him about his receipt of checks in connection with one of the cases for which he received the income in late 2015. In August 2017, petitioner filed amended federal and state tax returns for 2015 and 2016 reflecting the legal fees and rental income that was not previously reported, resulting in an increase in income taxes owed. Petitioner and his accountant testified that they worked on amending his tax returns as early as April or May 2017, but no amendments were filed until August 2017.

Similarly, petitioner failed to disclose on his 2015 Financial Disclosure Form (FDF) filed with the Ethics Commission of the Unified Court System the approximately \$27,000 in legal fees that he received. He acknowledged this failure, but testified that he had believed that income was received in 2016, rather than 2015, and was reportable on his 2016 FDF. However, petitioner also failed to report the income when he filed his 2016 FDF in May 2017; instead, he amended his 2015 FDF in November 2017 to include the income. Petitioner also testified that he never reported any rental income on his 2015 and 2016 FDFs because his rental properties—when considered as a whole—operated at a loss when the rents were reduced by expenses. However, his amended tax returns indicated that one property had a net income in excess of \$1,000 for both years. Finally, despite receiving an April 2016 reminder of his obligation under section 100.4 (H) (2) of the Rules Governing Judicial Conduct (22 NYCRR) to report to the clerk of his court any extrajudicial income, petitioner stated that he was not aware of the requirement to file a separate form, and believed his obligations were satisfied by the Ethics Commission FDF. It was not until January 2019, after the first five days of the hearing before the Referee in this matter, that petitioner reported to the chief clerk of the Broome County Family Court his extrajudicial income for the years 2015 through 2017.

The Commission unanimously determined that petitioner's actions violated sections 100.1, 100.2 (A), (C); 100.3 (B) (3); (C) (1) and 100.4 (H) (2) and (I) of the Rules. A majority of the Commission members concluded that removal from office was the appropriate sanction in light of petitioner's three separate categories of misconduct, his prior censure by the Commission, his failure to take responsibility for his actions, and the message that another censure would send to the public. Two Commission members dissented in part on the ground that censure, rather than removal, was an adequate sanction.

II.

[1] Petitioner primarily challenges the sanction of removal, but he also requests that this Court set aside any findings made in this matter by the Commission that differ from those made by the Referee. With respect to the Commission's factual findings, it is well settled that "[n]either the Commission nor this Court is bound to accept the Referee's findings" (*Matter of Marshall*, 8 NY3d 741, 743 [2007]). The record does not support petitioner's argument that the Commission ignored or rejected any of the Referee's findings that were based on an assessment of witness credibility. Upon our review of the record, we conclude that the charges were properly sustained.

[2] Turning to the appropriate sanction, "[r]emoval is an extreme sanction and should be imposed only in the event of truly egregious circumstances" (*Matter of O'Connor* [New York State Commn. on Jud. Conduct], 32 NY3d 121, 127 [2018], quoting *Matter of Cunningham*, 57 NY2d 270, 275 [1982]). However, "[a]lthough judicial disciplinary proceedings are not punishment . . . , the severe sanction of removal is warranted where a jurist has exhibited a 'pattern of injudicious behavior . . . which cannot be viewed as acceptable conduct by one holding judicial office'" (*Matter of Jung* [State Commn. on Jud. Conduct], 11 NY3d 365, 374 [2008], quoting *Matter of Vonder-Heide* [State Commn. on Jud. Conduct], 72 NY2d 658, 660 [1988]). "The actual levels of discipline to be imposed by the Court for judicial misconduct are, in the end, institutional and collective judgment calls" that "rest on our assessment of the individual facts of each case, as measured against the Code and Rules of Judicial Conduct and the prior precedents of this Court" (*Matter of Duckman*, 92 NY2d 141, 152 [1998] [internal quotation marks and citations omitted]).

Petitioner's challenge to the sanction of removal on the ground that his prior history with the Commission should not

have been considered lacks merit. A judge's behavior must be considered "*in the aggregate*" (*O'Connor*, 32 NY3d at 128-129 [internal quotation marks and citation omitted]), and a prior censure may "further support[] [a] finding that [the petitioner's] future retention of office is inconsistent with the fair and proper administration of justice," even if "it involved dissimilar conduct" (*id.* at 128 n 3). This Court has explained that "[t]he mere existence of a prior censure would be noteworthy regardless of whether it was related to the instant misconduct" because "a heightened awareness of and sensitivity to any and all ethical obligations would be expected of any judge after receiving a public censure" (*Matter of Doyle [State Commn. on Jud. Conduct]*, 23 NY3d 656, 662 [2014]).

Regarding the current charges, petitioner's conduct toward court employees as proved in connection with charge I violated sections 100.1 and 100.3 (B) (3) of the Rules (*see O'Connor*, 32 NY3d at 125-126 [2018]; *Duckman*, 92 NY2d at 152). To be sure, these proven instances of injudicious behavior were not "numerous"; in fact, the court assistant testified that she was "flabbergasted" by petitioner's behavior because she had never seen him act that way before. Nevertheless, it is "the *nature* of the proven wrongdoing as well as the numbers that determine the appropriate sanction" (*Duckman*, 92 NY2d at 154 [emphasis added]), and the misconduct at issue was compounded by petitioner's retaliation against the court assistant when she complained of his conduct. Moreover, while petitioner continues to argue that it is a matter of mitigation that his unprofessional comments to the chief clerk were an attempt at humor, this Court has long recognized that such comments, "even if made in jest, are, without question, . . . entirely inappropriate" (*see Matter of Collazo [State Commn. on Jud. Conduct]*, 91 NY2d 251, 253-254 [1998]). A judge's refusal "to acknowledge the impropriety of his behavior" is "particularly relevant to the question of appropriate sanction" (*Duckman*, 92 NY2d at 154).

With regard to charge II, petitioner concedes that having his secretary draft a letter seeking payment for work performed in his former private practice was inappropriate—indeed, it violated section 100.2 (C) of the Rules—but argues that "one lapse in judgment" does not warrant removal. That argument is unavailing because the admitted impropriety underlying charge II is not the only lapse in judgment evident on the record before us; rather, it is part of a larger pattern of misconduct, reflecting petitioner's inattention to his ethical responsibilities.

Finally, the conduct underlying charge IV, which violated sections 100.2 (A), 100.3 (C) (1), 100.4 (H) (2) and 100.4 (I) of the Rules, is particularly troubling to this Court. Although “[c]areless omissions from a financial disclosure statement are not the type of ‘truly egregious’ conduct that warrants removal from judicial office” (*Matter of Alessandro [State Commn. on Jud. Conduct]*, 13 NY3d 238, 249 [2009]), petitioner’s years-long delay in filing required local financial disclosure forms, together with his failure to amend both his tax returns and 2015 FDF until he was under investigation, impedes the purpose of these disclosure forms, which is, in part, to “enable[] lawyers and litigants to determine whether to request a judge’s recusal” (*id.*). Moreover, the timing of petitioner’s amendment of his tax returns and FDF—after he had received actual notice that he was being investigated for failure to report income related to his former legal practice—as well as his failure to amend his 2015 and 2016 FDFs to reflect income received from his rental properties despite amending his tax returns in that regard, goes beyond mere carelessness and points to a pattern of disregard for his ethical obligations. Similarly, petitioner’s explanation that he did not report the income from his law practice in 2015 because he believed it was reportable in 2016, combined with the failure to report the income in 2016, is an inadequate explanation, and suggests deliberate deceptive conduct (*see Matter of Moynihan*, 80 NY2d 322, 325 [1992]).

Considering petitioner’s misconduct in the aggregate, along with his prior disciplinary history, petitioner “exhibited a pattern of injudicious behavior . . . which cannot be viewed as acceptable conduct by one holding judicial office” (*Jung*, 11 NY3d at 374 [internal quotation marks and citation omitted]). Accordingly, the determined sanction should be accepted, without costs, and Richard H. Miller, II removed from the office of Judge of the Family Court, Broome County.

Judges STEIN, FAHEY, GARCIA, WILSON and FEINMAN concur in per curiam opinion; Chief Judge DiFIORE and Judge RIVERA taking no part.

Determined sanction accepted, without costs, and Richard H. Miller, II removed from the office of Judge of Family Court, Broome County.

[158 NE3d 93, 133 NYS3d 224]

TOBIAS BERMUDEZ CHAVEZ et al., Respondents, v OCCIDENTAL
CHEMICAL CORPORATION, Individually and as Successor to
OCCIDENTAL CHEMICAL COMPANY and Others, Appellant.

Argued September 9, 2020; decided October 20, 2020

SUMMARY

PROCEEDING, pursuant to NY Constitution, article VI, § 3 (b) (9) and Rules of the Court of Appeals (22 NYCRR) § 500.27, to review two questions certified to the New York State Court of Appeals by the United States Court of Appeals for the Second Circuit. The following questions were certified by the United States Court of Appeals and accepted by the New York State Court of Appeals: “1. Does New York law recognize cross-jurisdictional class action tolling, as described in this opinion? 2. Can a non-merits dismissal of class certification terminate class action tolling, and if so, did the Orders at issue here do so?”

HEADNOTES

Limitation of Actions — Tolling — Cross-Jurisdictional Tolling for Absent Class Members

1. New York recognizes cross-jurisdictional tolling of the statute of limitations for absent class members of putative class actions filed in other state and federal courts. A determination that tolling is not available cross-jurisdictionally would subvert CPLR article 9, the primary function of which is to allow named plaintiffs to bring representative lawsuits without necessitating a multiplicity of litigation that squanders resources and undermines judicial economy, while still ensuring that defendants receive fair notice of the specific claims advanced against them. Such a rule would promote putative class members to initiate parallel individual claims in New York and other jurisdictions nearing expiration of the statute of limitations in order to protect against the risk of a subsequent denial of class certification or other non-merits termination—the very result CPLR article 9 was created to avoid. Moreover, CPLR 201 makes clear that courts do not have discretion to excuse late filings by plaintiffs who slept on their rights. Cross-jurisdictional tolling does not implicate this concern because injured individuals who rely on a representative class action have not slept on their rights and such tolling involves no exercise of judicial discretion—it turns entirely upon the existence of a class action. Recognition of cross-jurisdictional tolling harmonizes any tension between two statutory schemes adopted by the legislature, CPLR articles 2 and 9, and is not an exercise of judicial discretion.

Limitation of Actions — Tolling — Affect of Non-Merits Dismissal of Class Certification

2. Tolling of the statute of limitations ends, as a matter of law, when there is a clear dismissal of a putative class action, including a dismissal for forum

non conveniens, or denial of class certification for any reason. Under those circumstances, future plaintiffs are on notice that they must take steps to protect their rights because the litigation no longer compels the court to address class certification or the named plaintiffs to advance absent class members' interests. At that point, it is no longer objectively reasonable for absent class members to rely upon the existence of a putative class action to vindicate their rights, and tolling is extinguished. Accordingly, Texas orders dismissing, on forum non conveniens grounds, a putative class action advancing the same claims as those in the New York individual lawsuits advanced by plaintiffs, who were absent class members belonging to the Texas action's putative class, ended tolling of the statute of limitations, as a matter of law.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d Limitation of Actions §§ 148, 169; AM JUR 2d Parties §§ 45, 79.

CARMODY-WAIT 2d Limitation of Actions § 13:364;

CARMODY-WAIT 2d Parties § 19:344.

NY JUR 2d Limitations and Laches §§ 282, 294.

SIEGEL, NY PRAC §§ 50, 139.

ANNOTATION REFERENCE

See ALR Index under Limitation of Actions; Class Actions.

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POINTS OF COUNSEL

Phillips Lytle LLP, Buffalo (*Kenneth A. Manning* of counsel), *Vinson & Elkins, LLP*, Washington, D.C. (*Jeremy C. Marwell* and *Matthew X. Etchemendy* of the District of Columbia bar, admitted pro hac vice, of counsel) and Houston, Texas (*D. Ferguson McNiel* of the Texas bar, admitted pro hac vice, of counsel), and *Young Conaway Stargatt & Taylor, LLP*, Wilmington, Delaware (*Timothy Jay Houseal* of the Delaware bar, admitted pro hac vice, of counsel), for appellant. I. This Court should not adopt the doctrine of cross-jurisdictional class-action tolling. (*Henry v Bank of Am.*, 147 AD3d 599; *In re Bear Stearns Cos., Inc. Sec., Derivative, & ERISA Litig.*, 995 F Supp 2d 291; *SRM Global Master Fund Ltd. Partnership v Bear Stearns Cos. L.L.C.*, 829 F3d 173; *Soward v Deutsche Bank AG*, 814 F Supp 2d 272; *Matter of Cathode Ray Tube [CRT] Antitrust Litig.*, 27

F Supp 3d 1015; *Clemens v DaimlerChrysler Corp.*, 534 F3d 1017; *Love v Wyeth*, 569 F Supp 2d 1228; *Thelen v Massachusetts Mut. Life Ins. Co.*, 111 F Supp 2d 688; *Duffy v Horton Mem. Hosp.*, 66 NY2d 473; *Flanagan v Mount Eden Gen. Hosp.*, 24 NY2d 427.) II. In this case, any cross-jurisdictional class-action tolling ended in 1995. (*Giovanniello v ALM Media, LLC*, 726 F3d 106; *Bridges v Department of Md. State Police*, 441 F3d 197; *Crown, Cork & Seal Co. v Parker*, 462 US 345; *American Pipe & Constr. Co. v Utah*, 414 US 538; *Yollin v Holland Am. Cruises*, 97 AD2d 720; *Armstrong v Martin Marietta Corp.*, 138 F3d 1374; *Collins v Village of Palatine, Ill.*, 875 F3d 839; *Chaverri v Dole Food Co., Inc.*, 896 F Supp 2d 556; *Smith v Pennington*, 352 F3d 884; *Desrosiers v Perry Ellis Menswear, LLC*, 139 AD3d 473.)

Massey & Gail LLP, Washington, D.C. (*Jonathan S. Massey* of counsel), and *Hendler Flores Law, PLLC*, Austin, Texas (*Scott M. Hendler* of the Texas bar, admitted pro hac vice, of counsel), for respondents. I. New York law should recognize “cross-jurisdictional” class-action tolling. (*Cullen v Margiotta*, 811 F2d 698; *Brinckerhoff v Bostwick*, 99 NY 185; *Snyder v Town Insulation*, 81 NY2d 429; *Yollin v Holland Am. Cruises*, 97 AD2d 720; *Osarczuk v Associated Univs., Inc.*, 130 AD3d 592; *Paru v Mutual of Am. Life Ins. Co.*, 52 AD3d 346; *Henry v Bank of Am.*, 147 AD3d 599; *Home Ins. Co. v American Home Prods. Corp.*, 75 NY2d 196; *Stylianou v Incorporated Vil. of Old Field*, 23 AD3d 454; *Kleinberger v Town of Sharon*, 116 AD2d 367.) II. Judge Sim Lake’s 1995 dismissal order and final judgment did not terminate tolling. (*Chick Kam Choo v Exxon Corp.*, 486 US 140; *Delgado v Shell Oil Co.*, 890 F Supp 1324; *Zurich Ins. Co. v Shearson Lehman Hutton*, 84 NY2d 309; *Home Ins. Co. v American Home Prods. Corp.*, 75 NY2d 196; *Stipelcovich v Directv, Inc.*, 129 F Supp 2d 989; *Giovanniello v ALM Media, LLC*, 726 F3d 106; *WorldCom Sec. Litig.*, 496 F3d 245; *Desrosiers v Perry Ellis Menswear, LLC*, 139 AD3d 473, 30 NY3d 488; *Clifton Knolls Sewerage Disposal Co. v Aulenbach*, 88 AD2d 1024; *Korwek v Hunt*, 827 F2d 874.)

Dechert LLP, New York City (*Douglas E. Fleming III* and *Sheila L. Birnbaum* of counsel), for Product Liability Advisory Council, Inc., amicus curiae. I. Cross-jurisdictional tolling lends itself to misuse by plaintiffs, particularly in the context of mass tort class actions. (*Crown, Cork & Seal Co. v Parker*, 462 US 345; *Singer v Lilly & Co.*, 153 AD2d 210; *Basch v Ground Round, Inc.*, 139 F3d 6; *Albano v Shea Homes Ltd. Partner-*

ship, 634 F3d 524; *Amchem Products, Inc. v Windsor*, 521 US 591; *Globe Surgical Supply v GEICO Ins. Co.*, 59 AD3d 129.) II. Plaintiffs' policy argument regarding protective filings is unavailing. III. If this Court adopts cross-jurisdictional tolling, it should adopt a bright-line rule to avoid frustrating the principal purposes of statutes of limitations. (*Bridges v Department of Md. State Police*, 441 F3d 197; *Smith v Pennington*, 352 F3d 884; *Crown, Cork & Seal Co. v Parker*, 462 US 345; *Blanco v American Tel. & Tel. Co.*, 90 NY2d 757; *American Pipe & Constr. Co. v Utah*, 414 US 538; *City of Rochester v Chiarella*, 65 NY2d 92.)

McCarter & English, LLP, New York City (*Irene M. Hurtado* and *David R. Kott* of counsel), and *Wheeler Trigg O'Donnell LLP*, Denver, Colorado (*Galen D. Bellamy* of the Colorado bar and *Eric L. Robertson* of the Colorado bar, of counsel), for Whirlpool Corporation, amicus curiae. I. As Whirlpool Corporation's experience shows, the public policy concerns raised by Occidental Chemical Corporation are not theoretical. (*Vincent v Money Store*, 915 F Supp 2d 553.) II. New York is a uniquely attractive forum for consumer class actions. (*Shady Grove Orthopedic Associates, P. A. v Allstate Ins. Co.*, 559 US 393; *Parker v Time Warner Entertainment Co., L.P.*, 331 F3d 13.) III. Cross-jurisdictional tolling is contrary to New York and federal policy. (*Griffin v Singletary*, 17 F3d 356; *Yang v Odom*, 392 F3d 97; *Matana v Merkin*, 957 F Supp 2d 473; *Choquette v City of New York*, 839 F Supp 2d 692; *American Pipe & Constr. Co. v Utah*, 414 US 538; *Crown, Cork & Seal Co. v Parker*, 462 US 345.)

Jenner & Block LLP, Washington, D.C. (*Adam G. Unikowsky* of counsel) and Chicago, Illinois (*Gabriel K. Gillett* of counsel), for Chamber of Commerce of the United States of America, amicus curiae. I. The policy justifications for intra-jurisdictional class action tolling do not extend to cross-jurisdictional class action tolling. (*Crown, Cork & Seal Co. v Parker*, 462 US 345; *American Pipe & Constr. Co. v Utah*, 414 US 538; *Shady Grove Orthopedic Assoc., P.A. v Allstate Ins. Co.*, 559 US 393; *Sean R. v BMW of N. Am., LLC*, 26 NY3d 801; *Sun Oil Co. v Wortman*, 486 US 717; *Smith v Bayer Corp.*, 564 US 299; *Coopers & Lybrand v Livesay*, 437 US 463; *AT&T Mobility LLC v Concepcion*, 563 US 333; *Wade v Danek Med., Inc.*, 182 F3d 281.) II. Limitations periods are the province of the legislature, not the court. (*Sun Oil Co. v Wortman*, 486 US 717; *Snyder v Town Insulation*, 81 NY2d 429; *Delaware State Coll. v Ricks*, 449 US

250; *Giordano v Market Am., Inc.*, 15 NY3d 590; *Freier v Westinghouse Elec. Corp.*, 303 F3d 176; *Matter of New York County DES Litig.*, 89 NY2d 506; *Bazakos v Lewis*, 12 NY3d 631; *Bleiler v Bodnar*, 65 NY2d 65.)

OPINION OF THE COURT

STEIN, J.

The United States Court of Appeals for the Second Circuit has asked us whether New York recognizes so-called *American Pipe* (*American Pipe & Constr. Co. v Utah*, 414 US 538 [1974]) tolling of the statute of limitations for absent class members of a putative class action filed in another jurisdiction. In addition, we have been asked whether “a non-merits dismissal of class certification” can terminate such cross-jurisdictional tolling and, relatedly, whether tolling was ended here by certain orders of the United States District Court for the Southern District of Texas dismissing, on forum non conveniens grounds, a putative class action advancing the same claims as those advanced in the instant action (*Chavez v Occidental Chem. Corp.*, 933 F3d 186, 202 [2d Cir 2019]). We answer these questions in the affirmative.

I.

In 2012, plaintiffs filed individual lawsuits in the United States District Court for the District of Delaware, alleging injuries based upon the manufacturing of a nematocide called dibromochloropropane (DBCP) by defendant Occidental Chemical Corporation. Plaintiffs claimed that Occidental continued distributing the chemical to banana plantations in certain Latin American countries after 1977, at which point it was well-known that exposure to DBCP potentially causes sterility, cancer, and sexual and reproductive abnormalities. As relevant here, the cases were consolidated and, in 2017, the action was transferred to the United States District Court for the Southern District of New York. Occidental moved for judgment on the pleadings,¹ arguing that plaintiffs’ claims were time-barred under New York law (*see Chavez*, 933 F3d at 195; *see also*

1. Rule 12 (c) of the Federal Rules of Civil Procedure provides that “[a]fter the pleadings are closed—but early enough not to delay trial—a party may move for judgment on the pleadings” (*see also Chavez v Occidental Chem. Corp.*, 933 F3d 186, 195 [2d Cir 2019]). A motion for judgment on the pleadings is governed by the same standard as a motion to dismiss under Federal Rules of Civil Procedure rule 12 (b) (6) and, in certifying these questions to us, the Second Circuit “accept[ed] all factual allegations in the

(n. cont’d)

Chavez v Occidental Chem. Corp., 300 F Supp 3d 517, 522 [SD NY 2018]). In response, plaintiffs contended that a putative class action originally filed in Texas state court in 1993 had tolled the applicable three-year statute of limitations (*see* CPLR 214 [5]) and, therefore, their claims were timely.² Because the Texas litigation is intertwined with the parties' arguments regarding the proper answer to these certified questions, a recitation of the pertinent history related to that litigation follows.

In 1993, a group of plaintiffs—other than those before us here—from several countries, including Costa Rica, Ecuador, and Panama (hereinafter, the 1993 plaintiffs), brought a putative class action in Texas state court, alleging identical claims to those advanced here. The 1993 plaintiffs moved for class certification under the Texas rules of civil procedure. Occidental, among other defendants, impleaded two subsidiaries to a parent company owned by the State of Israel. Before the court resolved the motion for class certification, Occidental successfully removed the action to the United States District Court for the Southern District of Texas under the theory that, in light of the impleaded subsidiaries, the Foreign Sovereign Immunities Act of 1976 (FSIA) authorized such removal.³ Soon thereafter, the District Court requested that the parties update the court on the issue of class certification raised in the state court. However, before the issue of class certification was addressed, Occidental moved to dismiss the action based on *forum non conveniens*, arguing that the claims should be heard in each plaintiff's home country. In response, the 1993 plaintiffs argued that the courts in their home countries could not resolve their claims because, among other things, those courts would lack personal jurisdiction over Occidental.

complaint as true and dr[ew] all reasonable inferences in [the plaintiffs'] favor" (*Chavez*, 933 F3d at 195).

2. According to the District Court, Southern District of New York, the parties generally "agree[d] that each claim here is subject to a three-year limitations period under New York law" (*Chavez v Occidental Chem. Corp.*, 300 F Supp 3d 517, 528 [SD NY 2018]).

3. FSIA establishes the jurisdictional framework applicable to civil cases in which a foreign sovereign nation is a party to the action (*see* Pub L 94-583, 90 US Stat 2891 [94th Cong, 2d Sess, Oct. 21, 1976]). As relevant here, if an action is brought in state court and a party is a foreign sovereign nation or instrumentality thereof, such nation or instrumentality may remove the action to federal court, even if the claims sound only in state law (*see* 28 USC §§ 1441 [d]; 1603 [a]).

In July 1995, the District Court conditionally granted Occidental's motion to dismiss for forum non conveniens, reasoning that the 1993 plaintiffs' home countries offered adequate fora, and providing that if certain housekeeping measures were satisfied, the court would dismiss the action 90 days after its order (*see Delgado v Shell Oil Co.*, 890 F Supp 1324, 1373 [SD Tex 1995]). The same order also included a return jurisdiction clause, which stated that the 1993 plaintiffs could test the jurisdiction of their home countries and, in the event of a dismissal for lack of jurisdiction, "plaintiff[s] may return to [the federal district] court and, upon proper motion, the court will resume jurisdiction over the action as if the case had never been dismissed for [forum non conveniens]" (*id.* at 1375). In addition, the court enjoined the named 1993 plaintiffs, along with any absent class members who had participated in the litigation or received actual notice of the order, from commencing or intervening in any new case arising from the same underlying facts (*see id.* at 1373-1375). Finally, the District Court determined that, "[b]ecause [the putative class action] may be dismissed in 90 days, all pending motions . . . not otherwise expressly addressed in this Memorandum and Order are DENIED as MOOT" (*id.* at 1375).⁴ The 1993 plaintiffs subsequently expressed concern that the District Court's July 1995 order regarding the injunction was overbroad. The court qualified the scope of its injunction in a later order, stating that it

"did not intend such a broad reading of its orders. . . . The court did not enjoin any potential plaintiff not before it from filing a DBCP-related claim in a court in the United States and did not enjoin counsel for the plaintiffs and intervenor plaintiffs from representing any person, not a party in the actions pending before the court, in a DBCP-related claim in a court in the United States."

In October 1995, after defendants satisfied the conditions of the July 1995 order,⁵ the District Court entered a "Final Judgment" dismissing the action and permanently enjoining the 1993 plaintiffs from commencing or joining any DBCP-related litigation. The United States Court of Appeals for the Fifth Circuit ultimately affirmed (*see Delgado v Shell Oil Co.*, 231

4. The parties dispute whether the denial of the remaining motions as moot included plaintiffs' motion for class certification.

5. Those conditions have no relevance to the issues before us here (*see Delgado*, 890 F Supp at 1373-1375).

F3d 165 [5th Cir 2000], *cert denied* 532 US 972 [2001]). Nevertheless, plaintiffs contend that, due to the return jurisdiction clause, the case remained pending on the District Court's docket in the Southern District of Texas.

Thereafter, certain 1993 plaintiffs sought relief in the courts of Costa Rica, but Costa Rica's Supreme Court swiftly determined that its courts lacked personal jurisdiction over Occidental. In April 1996, a subset of the Costa Rican plaintiffs returned to federal court, seeking reinstatement of their action in the Southern District of Texas, pursuant to the return jurisdiction clause (*Rodriguez Delgado v Shell Oil Co.*, 322 F Supp 2d 798, 802 [2004]). Because, at that time, the appeal of the District Court's October 1995 final judgment was still unresolved at the Fifth Circuit, the District Court denied the motion to reinstate, without prejudice, pending resolution of the appeal. After the Fifth Circuit affirmed the October 1995 final judgment in 2000, the remaining plaintiffs informed the District Court of their intention to petition the United States Supreme Court for certiorari, and suggested that the court defer ruling on the motion for reinstatement until the Supreme Court disposed of that petition.

Meanwhile, a related DBCP class action, originally filed in Hawai'i state court, was making its way through the federal courts. The Hawaiian action had a similar procedural posture as the Texas litigation insofar as the defendant there had impleaded the same two foreign companies as in the Texas lawsuit, and then sought removal of the action to federal court pursuant to FSIA (*see Dole Food Co. v Patrickson*, 538 US 468, 471 [2003]). In 2003, the United States Supreme Court held, as relevant here, that in order for a company to be considered a foreign instrumentality, thereby providing a basis for removal to federal court under FSIA, a majority of the company's shares must be held by a foreign state at the time of the filing of the complaint (*see id.* at 480). Because Israel did not own a majority of shares in the subsidiaries at issue, the Court concluded that those subsidiaries were not foreign instrumentalities and the defendant could not invoke FSIA for purposes of removal despite the undisputed ownership of the parent company by a foreign state (*see id.* at 477-478).

In 2003, the remaining 1993 plaintiffs who had not settled their claims, along with intervenors, moved in the Southern District of Texas to vacate that court's previous order of dismissal, in light of *Patrickson*, arguing that the removal of the

lawsuit to federal court under FSIA had been erroneous. The District Court vacated its previous injunction preventing the named plaintiffs from bringing or intervening in any DBCP-related litigation, but denied the request to vacate its forum non conveniens dismissal. In June 2004, the District Court granted the plaintiff-intervenors' motion to remand the action to state court (*Rodriguez Delgado v Shell Oil Co.*, 322 F Supp 2d 798, 813, 817 [SD Tex 2004]). The court reasoned that the return jurisdiction clause authorized the plaintiffs to *seek* reinstatement and deemed the motion to reinstate to be a "direct continuation of the prior proceedings over which the court expressly stated its intent to retain jurisdiction"; however, because it lacked subject-matter jurisdiction to decide the motion to reinstate under *Patrickson*, the court remanded the cases, along with the motion to reinstate, to "the only courts to which those claims can be returned, i.e., the state courts of Texas" (*id.* at 811, 815-817).⁶

In 2005, the Texas state court granted the motion to reinstate and allowed the plaintiffs and intervenors to file an eighth amended complaint, styled as a putative class action. On June 3, 2010, after another five years of unrelated motion practice, the Texas state court denied the plaintiff-intervenors' motion for class certification and granted their motion to voluntarily dismiss the action.

Thereafter, in 2011, certain absent class members belonging to the Texas action's putative class, including the lead plaintiff here, commenced two parallel actions in federal district courts, one in Louisiana and one—this action—in Delaware. In 2012, the District Court for the Eastern District of Louisiana dismissed the action commenced there based on Louisiana's statute of limitations. In Delaware, as noted above, the court transferred the action to the Southern District of New York, wherein Occidental is incorporated, following Occidental's motion to dismiss based on lack of personal jurisdiction.

Occidental then moved in the Southern District of New York for judgment on the pleadings on statute of limitations grounds. Specifically, Occidental argued that New York does not recognize cross-jurisdictional tolling or, in the alternative, that these plaintiffs' claims were nevertheless untimely because the Texas

6. In making this determination, the District Court opined that its prior forum non conveniens dismissal was conditional and that its "final judgment" was final only "for purposes of appealing the court's [forum non conveniens] decision" (*Rodriguez Delgado*, 322 F Supp 2d at 816).

federal court had denied class certification in 1995 prior to the Texas state court's later 2010 determination. In January 2018, the New York District Court Judge denied the motion, predicting that this Court would not only recognize cross-jurisdictional tolling, but that we would also agree that the limitations period had been tolled by the *Delgado* action from 1993 to 2010, despite the 1995 non-merits dismissal by the Southern District of Texas. Recognizing that there is a split in authority in the Southern District of New York regarding whether New York recognizes cross-jurisdictional tolling, the District Court certified an interlocutory appeal to the United States Court of Appeals for the Second Circuit (*see Chavez*, 933 F3d at 195). The Second Circuit, in turn, certified the following questions to this Court:

"1. Does New York law recognize cross-jurisdictional class action tolling, as described in this opinion?

"2. Can a non-merits dismissal of class certification terminate class action tolling, and if so, did the Orders at issue here do so?" (933 F3d at 202).

We accepted these certified questions (33 NY3d 1110 [2019]), and now answer them in the affirmative.

II.

We begin our analysis with the holding of the United States Supreme Court, in *American Pipe & Constr. Co. v Utah*, that "the commencement of [a] class suit tolls the running of the statute [of limitations] for all purported members of the class who make timely motions to intervene after the court has found the suit inappropriate for class action status" (414 US at 553). In reaching this determination, the Supreme Court observed that Federal Rules of Civil Procedure rule 23 had recently been amended to provide that a "federal class action [was] no longer 'an invitation to joinder' but a truly representative suit designed to avoid, rather than encourage, unnecessary filing of repetitious papers and motions" (*id.* at 550). Moreover, the Court explicated,

"[W]here . . . the named plaintiffs asserted claims that were 'typical of the claims or defenses of the class' and would 'fairly and adequately protect the interests of the class,' the claimed members of the class stood as parties to the suit until and unless they received notice thereof and chose not to

continue. Thus, the commencement of the action satisfied the purpose of the limitation provision as to all those who might subsequently participate in the suit as well as for the named plaintiffs” (*id.* at 550-551 [citation omitted], quoting Fed Rules Civ Pro rule 23 [a] [3], [4]).

The Court explained further that, to reject tolling in the federal courts,

“would frustrate the principal function of a class suit, because then the sole means by which members of the class could assure their participation in the judgment if notice of the class suit did not reach them until after the running of the limitation period would be to file earlier individual motions to join or intervene as parties—precisely the multiplicity of activity which Rule 23 was designed to avoid” (*id.* at 551, citing Fed Rules Civ Pro rule 23 [b] [3]).

Nine years later, the Supreme Court clarified that “[t]he filing of a class action tolls the statute of limitations ‘as to all asserted members of the class,’ not just as to intervenors” (*Crown, Cork & Seal Co. v Parker*, 462 US 345, 350 [1983] [citation omitted], quoting *American Pipe*, 414 US at 554)—in other words, tolling applies to both those members of the putative class who, following a denial of class certification, wish to intervene and those who prefer to commence individual actions. The Court emphasized that, if tolling were not available for individuals wishing to bring individual lawsuits, “[t]he result would be a needless multiplicity of actions—precisely the situation that Federal Rule[s] of Civil Procedure [rule] 23 and the tolling rule of *American Pipe* were designed to avoid” (*id.* at 351). The Court also underscored that *American Pipe* tolling “is not inconsistent with the purposes served by statutes of limitations,” noting that “[l]imitations periods are intended to put defendants on notice of adverse claims and to prevent plaintiffs from sleeping on their rights” and that “these ends are met when a class action is commenced” (*id.* at 352). In that regard, the Court explained that, when named plaintiffs commence a putative class action, defendants are made “aware of the need to preserve evidence and witnesses respecting the claims of all the members of the class” (*id.* at 353). Therefore, “[t]olling the statute of limitations . . . creates no potential for unfair surprise, regardless of the method class members choose

to enforce their rights upon denial of class certification” (*id.*). Both *American Pipe* and *Crown, Cork & Seal*, relying on Federal Rules of Civil Procedure rule 23, allowed tolling of the statute of limitations for federal claims for the benefit of absent class members filing in a *federal* court following a putative class action previously filed in another court until the absent class members could no longer reasonably rely upon the previously filed putative class action to vindicate their rights.⁷

[1] New York’s class action mechanism is codified in article 9 of the CPLR (*see* L 1975, ch 207, § 1). This Court has repeatedly stated that “CPLR article 9 was modeled on similar federal law, specifically, Federal Rules of Civil Procedure rule 23” (*Desrosiers v Perry Ellis Menswear, LLC*, 30 NY3d 488, 495 [2017] [internal quotation marks and citations omitted]; *see O’Hara v Del Bello*, 47 NY2d 363, 368 [1979]). Like its federal counterpart, the underlying purpose of article 9 was to “‘enable individuals injured by the same pattern of conduct by another to pool their resources and collectively seek relief’ where their individual damages ‘may not be sufficient to justify the costs of litigation’” (*Desrosiers*, 30 NY3d at 494-495, quoting Governor’s Approval Mem, Bill Jacket, L 1975, ch 207, 1975 NY Legis Ann at 426). Put differently, article 9 was intended to “preserv[e] the rights of those parties who have no effective remedy on an individual basis or when actual joinder of the class is economically or administratively unfeasible” (Letter from Counsel to Lieutenant Governor, June 9, 1975, Bill Jacket, L 1975, ch 207). Moreover, “[b]y permitting common questions of law or fact affecting numerous persons to be litigated in one forum, [article 9] would result in greater conservation of judicial effort” (Governor’s Approval Mem, Bill Jacket, L 1975, ch 207, 1975 NY Legis Ann at 426).

III.

Turning to the specific questions certified to us by the Second Circuit, we answer the first in the affirmative. We conclude that a determination that tolling is not available cross-jurisdictionally would subvert article 9—the primary function of which is to allow named plaintiffs to bring truly representative lawsuits without necessitating a multiplicity of litigation

7. In 2018, the Supreme Court qualified its decision in *American Pipe*, clarifying that “*American Pipe* does not permit the maintenance of a follow-on *class action* past expiration of the statute of limitations” (*China Agritech, Inc. v Resh*, 584 US —, —, 138 S Ct 1800, 1804 [2018] [emphasis added]).

that squanders resources and undermines judicial economy, while still ensuring that defendants receive fair notice of the specific claims advanced against them. CPLR article 9 is closely related to and modeled on Federal Rules of Civil Procedure rule 23 (see *Desrosiers*, 30 NY3d at 495), and the same animating policies the United States Supreme Court discussed in *American Pipe* and its progeny also underlie article 9. Both rule 23 and article 9 were intended to permit the named plaintiffs in a putative class action to act as placeholders, fully representing absent class members who have the same claims. Additionally, rule 23 and article 9 were designed to avoid wasteful and duplicative litigation by eliminating the need—during the pendency of the class action—for putative class members to initiate individual claims to protect their rights, while simultaneously providing notice to defendants of the claims not only of the named plaintiffs, but also of potential absent class members who could advance those same claims. It would contravene article 9 to hold that, if class action status is denied or the action otherwise terminated, putative class members are treated as if no action were ever brought. Such a rule would promote putative class members to initiate parallel individual claims in New York and other jurisdictions nearing expiration of the statute of limitations in order to protect against the risk of a subsequent denial of class certification or other non-merits termination—the very result article 9 was created to avoid. For that category of putative class members, the representative role of named plaintiffs would be illusory until class certification was granted. Thus, in recognizing cross-jurisdictional tolling under New York law, and answering the first certified question in the affirmative, we give effect to the legislative policy embodied in article 9; indeed, as noted, a contrary holding would undermine the detailed class action statutory scheme crafted by the legislature.

In light of this framework, we reject Occidental's argument that CPLR 201 prevents us from recognizing cross-jurisdictional tolling. CPLR 201 provides that "[a]n action . . . must be commenced within the time specified in this article unless a different time is prescribed by law or a shorter time is prescribed by written agreement. No court shall extend the time limited by law for the commencement of an action." To be sure, we have long recognized that "the various tolling provisions to the Statutes of Limitation are largely, if not exclusively,

the product of legislative design” (*McCarthy v Volkswagen of Am.*, 55 NY2d 543, 547 [1982]). “As a rule . . . time limitations created by statute are not tolled in the absence of statutory authority” because “[c]ourts may only construe provisions made by the Legislature creating exceptions or interruptions to the running of the time limited by statute” and “may not themselves create such exceptions” (*Matter of King v Chmielewski*, 76 NY2d 182, 187 [1990] [internal quotation marks and citation omitted]). Our recognition of *American Pipe* tolling cross-jurisdictionally does not run afoul of the statute or its purposes because it is predicated on the express legislative design of CPLR article 9. CPLR 201 makes clear that courts do not have discretion to excuse late filings by plaintiffs who slept on their rights (*see Lubonty v U.S. Bank N.A.*, 34 NY3d 250, 261 n 8 [2019], citing Siegel & Connors, NY Prac § 33 at 51 [6th ed 2018]; *see generally Arnold v Mayal Realty Co.*, 299 NY 57, 60 [1949]; Siegel & Connors, NY Prac §§ 6, 50 at 9, 82 [6th ed 2018]). Cross-jurisdictional tolling does not implicate this concern because injured individuals who rely on a representative class action have not slept on their rights and such tolling involves no exercise of judicial discretion—it turns entirely upon the existence of a class action.⁸

Moreover, our statute of limitations doctrines are intended to promote repose (*see ACE Sec. Corp., Home Equity Loan Trust, Series 2006-SL2 v DB Structured Prods., Inc.*, 25 NY3d 581, 593 [2015]; *Arnold*, 299 NY at 60), not undermine other significant statutory schemes. Our recognition of *American Pipe* cross-jurisdictional tolling harmonizes any tension between two statutory schemes adopted by the legislature, CPLR articles 2 and 9, and is not an exercise of judicial discretion (*see e.g. Matter of Tall Trees Constr. Corp. v Zoning Bd. of Appeals of Town of Huntington*, 97 NY2d 86, 91 [2001]; *People v Dethloff*, 283 NY 309, 315 [1940]; *see generally Barchet v New York City Tr. Auth.*, 20 NY2d 1, 7 [1967]; *Matter of Humfreville*, 154 NY 115, 118 [1897]). We emphasize that tolling applies only if a defendant receives fair notice of all claims that might

8. A toll does not extend the statute of limitations indefinitely but merely suspends the running of the applicable statute of limitations for a finite and, in this instance, readily identifiable time period; keyed to judicial determinations recorded in the litigation record, the period of the toll is excluded from the calculation of the time in which the plaintiff can commence an action.

arise under New York law.⁹ In addition, we reiterate that the putative class action, itself, must be timely and comport with CPLR 202. Finally, because the same principles that support recognition of cross-jurisdictional tolling necessarily include those supporting intra-jurisdictional tolling, we take this opportunity to recognize *American Pipe* tolling intra-jurisdictionally—confirming nearly 40 years of Appellate Division case law acknowledging the same.¹⁰

IV.

In light of our conclusion that *American Pipe* tolling is consistent with New York law, we must answer the Second Circuit’s second question, regarding when such tolling ceases. The parties are in agreement that tolling terminates when it is no longer objectively reasonable for absent class members to rely upon the putative class action to vindicate their rights, as the Supreme Court has held (see *China Agritech*, 584 US at —, 138 S Ct at 1808; see e.g. *Giovanniello v ALM Media, LLC*, 726 F3d 106, 117 [2d Cir 2013]; *Bridges v Department of Md. State*

9. Whether cross-jurisdictional tolling is available with respect to putative class actions commenced in courts other than United States federal or state courts is not before us, and our decision should not be read to endorse any such proposition.

10. See *Yollin v Holland Am. Cruises*, 97 AD2d 720, 720 (1st Dept 1983); see also *Badzio v Americare Certified Special Servs., Inc.*, 177 AD3d 838, 840-841 (2d Dept 2019) (observing that “New York courts have adopted [*American Pipe* tolling]”); *Desrosiers v Perry Ellis Menswear, LLC*, 139 AD3d 473, 473-474 (1st Dept 2016) (same), *aff’d on other grounds* 30 NY3d 488 (2017); *Osarczuk v Associated Univs., Inc.*, 130 AD3d 592, 595 (2d Dept 2015) (same), *lv dismissed* 26 NY3d 1126 (2016); *Altman v Fortune Brands*, 268 AD2d 231, 231 (1st Dept 2000) (determining that the plaintiff’s *American Pipe* tolling argument was not preserved); *Paru v Mutual of Am. Life Ins. Co.*, 52 AD3d 346, 348 (1st Dept 2008) (stating that had the court reached the defendant’s statute of limitations argument, it would have found that the plaintiff’s claim was timely based on *American Pipe* tolling); *Singer v Lilly & Co.*, 153 AD2d 210, 220-221 (1st Dept 1990) (determining that *American Pipe* tolling was not applicable to the toxic tort revival statute); *Hoerger v Board of Educ. of Great Neck Union Free School Dist.*, 98 AD2d 274, 281 (2d Dept 1983) (noting that *American Pipe* tolling was not available because the original plaintiff had not brought his case as a class action); *Douglas v Andersen & Co.*, 70 AD2d 542, 542 (1st Dept 1979) (assuming without deciding the adoption of *American Pipe* tolling, plaintiff’s claim was untimely with or without the benefit of tolling), *lv denied* 47 NY2d 710 (1979); see also *Adams v Bigsbee Enters., Inc.*, 53 Misc 3d 1210(A), 2015 NY Slip Op 52008(U), *3-4 (Sup Ct, Albany County 2015) (noting that “a rule requiring [plaintiffs] to commence duplicative litigation simply to preserve the statute of limitations would frustrate the objectives of efficiency and economy underlying CPLR article 9”).

Police, 441 F3d 197, 210-211 [4th Cir 2006]; *Betances v Fischer*, 403 F Supp 3d 212, 225 [SD NY 2019]).

While it generally will be clear when tolling ends under the objectively reasonable standard, the Second Circuit specifically requests guidance regarding whether a “*non-merits* dismissal of class certification” (933 F3d at 202 [emphasis added]) can end an absent class member’s objectively reasonable reliance and, therefore, the tolling of the statute of limitations. Because we conclude that a non-merits dismissal or denial of class certification can end tolling, we answer the first part of the second question—“Can a non-merits dismissal of class certification terminate class action tolling?”—in the affirmative.

In answering the second part of that question—specifically, “did the Orders at issue here do so?”—we note that courts applying the law of other states already have grappled with how to apply the objectively reasonable reliance standard to the DBCP-related Texas litigation in this case, reaching contrary results.¹¹ In light of this controversy, the Second Circuit is requesting our guidance concerning how to apply New York’s tolling rule because, even when courts have purported to apply

11. In *Marquinez v Dow Chem. Co.*, the Supreme Court of Delaware reasoned “that a clear and unambiguous rule avoids uncertainty over the starting and ending dates for statutes of limitation in cross-jurisdictional class action tolling cases” (183 A3d 704, 711 [Del 2018]). Therefore, the *Marquinez* court adopted the rule that “cross-jurisdictional class action tolling ends only when a sister trial court has clearly, unambiguously, and finally denied class action status” (*id.*)—here, in the 2010 Texas state court order denying class certification (*see id.*).

In contrast, the Eastern District of Louisiana, in applying that state’s law, determined that the July 1995 order of the Southern District of Texas dismissing the Texas action on forum non conveniens grounds and denying class certification as moot, ended tolling (*see Chaverri v Dole Food Co., Inc.*, 896 F Supp 2d 556, 568-569 [ED La 2012], *affd* 546 Fed Appx 409 [5th Cir 2013]). That court noted that Louisiana “[c]ourts did not make any distinction based upon the type or manner of denial [of class certification], nor did they require that the denial be on the merits” (*id.* at 569).

The Supreme Court of Hawai‘i also faced this issue arising from the same Texas litigation (*see Patrickson v Dole Food Co., Inc.*, 137 Haw 217, 368 P3d 959 [2015]). The *Patrickson* court determined that, when the Texas federal court issued its October 1995 final judgment, “it could be said with certainty that [the issue of] class certification was denied” (137 Haw at 229, 368 P3d at 971). In order to forestall confusion, the *Patrickson* court endorsed the rule that “the pendency of a class action in another jurisdiction operates to toll [the] applicable statute(s) of limitations until the court in our sister jurisdiction issues an order expressly denying a motion for class certification (or expressly denying the last such motion, if there is more than one motion)” (*id.*).

a uniform standard to the same litigation history, they have reached differing results.

[2] Because recognition of cross-jurisdictional tolling implicates our statutes of limitations, a bright-line rule is necessary to provide clarity to all parties in understanding their rights and obligations and, in fairness—as with the policies underlying the application of statutes of limitations, generally—to balance the interests of *both* plaintiffs and defendants. Therefore, we hold that tolling ends—as a matter of law—when there is a clear dismissal of a putative class action, including a dismissal for forum non conveniens, or denial of class certification for any reason. Under those circumstances, future plaintiffs are on notice that they must take steps to protect their rights because the litigation no longer compels the court to address class certification or the named plaintiffs to advance absent class members’ interests. At that point, it is no longer objectively reasonable for absent class members to rely upon the existence of a putative class action to vindicate their rights, and tolling is extinguished (*see* Effect of Class Action Filing on Limitations Period Governing Individual Claims, 1 McLaughlin on Class Actions § 3:15 [16th ed]). Thus, in this case, the 1995 Texas orders that dismissed that action on forum non conveniens grounds ended tolling, as a matter of law.¹²

In sum, New York recognizes *American Pipe* tolling for absent class members of putative class actions filed in other state and federal courts. Further, a “non-merits dismissal of class certification”—as occurred here in 1995—extinguishes tolling because, under New York law, tolling ceases when there is a clear dismissal of the action, including a dismissal for forum non conveniens, or denial of class certification for any reason.

Accordingly, following certification of questions by the United States Court of Appeals for the Second Circuit and acceptance of the questions by this Court pursuant to section 500.27 of the Rules of Practice of the Court of Appeals (22 NYCRR 500.27), and after hearing argument by counsel for the parties and

12. As noted above, the absent class members to the lawsuit filed in Texas were not enjoined from bringing individual actions after the Texas District Court’s final judgment, evidenced by the District Court’s later clarification that it had enjoined only the named plaintiffs and intervenors in the consolidated actions before it from commencing a DBCP-related lawsuit. Thus, as the dissent acknowledges, the hypothetical issue of state courts’ authority to undermine the scope of federal orders “is not presented here” (dissenting op 515 n 5; *cf. Patrickson v Dole Food Co., Inc.*, 137 Haw at 229, 368 P3d at 971; *Chaverri*, 896 F Supp 2d at 568-569).

consideration of the briefs and the record submitted, the certified questions should be answered in the affirmative.

RIVERA, J. (dissenting in part). The Court is unanimous that tolling of New York’s statute of limitations ceases when a potential class member may no longer reasonably rely on a putative class action in a foreign jurisdiction to address the member’s interests. However, I cannot subscribe to the majority’s adoption of a bright-line rule that turns that standard on its head by failing to consider the unique circumstances of the underlying litigation leading to a non-merits dismissal. Instead, I would answer the second certified question with a qualified affirmative: Tolling should end only upon a dismissal that is unconditional, meaning that the court leaves potential plaintiffs without any expectation of an opportunity for future class certification.

I.

The class action mechanism provides a means by which a large number of individuals may pursue their interests through a single suit, furthering efficiency and economy of litigation (*China Agritech, Inc. v Resh*, 584 US —, —, 138 S Ct 1800, 1806 [2018]; *American Pipe & Constr. Co. v Utah*, 414 US 538, 551-552 [1974]; *Desrosiers v Perry Ellis Menswear, LLC*, 30 NY3d 488, 494 [2017]). Class actions also permit plaintiffs, unable to seek redress for injurious conduct because of financial or other structural barriers unrelated to their claims’ underlying merits, to nevertheless pursue a remedy in court with other similarly harmed plaintiffs.¹ Class actions also serve society’s

1. See Christine P. Bartholomew, *Redefining Prey and Predator in Class Actions*, 80 Brook L Rev 743, 774-782 (2015) (explaining how putative class members are disadvantaged “financially, informationally, and because of judicial favoritism” relative to tortious corporations); Owen M. Fiss, *The Political Theory of the Class Action*, 53 Wash & Lee L Rev 21, 24 (1996) (noting that plaintiffs often cannot justify the expense of an individual suit given the nominal judgements litigation would yield); Governor’s Approval Mem, Bill Jacket, L 1975, ch 207, 1975 NY Legis Ann at 426 (explaining that a class action mechanism, in many cases, unless injured individuals are “willing and able to press [their] legal claim[s] as a matter of principle despite the financial loss, there is no economic deterrent to poor workmanship, deceptive or unconscionable trade practices and illegal conduct”); Mem of St Consumer Protection Bd in Support, May 29, 1975 at 2, Bill Jacket, L 1975, ch 207 (“The twin facts that the class suit can benefit persons with little knowledge of the law and that it renders economical the litigation of modest claims make its availability a strong deterrent to unlawful activity”); Assembly Mem in Support at 1, L 1975, ch 207, 1975 NY Legis Ann at 10 (noting that

(n. cont’d)

interests of ensuring a remedy for injured parties by incentivizing defendants to avoid harm and internalize the costs of their actions, all the while providing the added benefit of reducing litigation expenses through the class action procedure.

Today, we expressly adopt the rule announced by the United States Supreme Court in *American Pipe* that “commencement of a class action suspends the applicable statute of limitations as to all asserted members of the class who would have been parties had the suit been permitted to continue as a class action” (414 US at 554). We further clarify that the rule applies to intra- and cross-jurisdictional filings alike (majority op at 506). As we recognize, the same policies and legal principles that justify one apply equally to the other, leaving no sound basis for distinguishing between the two (*id.*).

II.

Central to the Supreme Court’s and our analysis is judicial recognition of a potential member’s reliance on the class action mechanism to protect their interests. Regardless of the jurisdiction where the action is filed, tolling the statute of limitations for all potential class members discourages them from filing individual suits “in the event that a class [is] later found unsuitable” (*American Pipe*, 414 US at 553). A contrary rule would result in a “needless multiplicity of actions,” which the class action is designed to avoid (*Crown, Cork & Seal Co. v Parker*, 462 US 345, 350-351 [1983]).

As the majority recognizes, tolling rules must “balance the interests of *both* plaintiffs and defendants” (majority op at 508). A class action “notifies the defendants not only of the substantive claims being brought against them, but also of the number and generic identities of the potential plaintiffs who may participate in the judgment” (*American Pipe*, 414 US at 554-555). Accordingly, defendants are not prejudiced by tolling of the limitations period because the intended purposes of a statute of limitations, “to put defendants on notice of adverse claims and to prevent plaintiffs from sleeping on their rights, . . . are met when a class action is commenced” (*Crown, Cork & Seal Co.*, 462 US at 352 [citations omitted]). The notice that

class actions fill the “need[] for an effective, flexible and balanced group remedy in vital areas of social concern, such as claims arising from exposure of numerous persons[] to environmental offenses, violation of consumer interests, invasion of civil rights, execution of adhesion contracts, and many other collective activities reaching virtually every phase of human life”).

class actions provide defendants does not diminish or change depending on the jurisdiction in which the class action is filed (*Vaccariello v Smith & Nephew Richards, Inc.*, 94 Ohio St 3d 380, 383, 763 NE2d 160, 163 [2002]; *Dow Chem. Corp. v Blanco*, 67 A3d 392, 396 [Del 2013]).

III.

The analytic and practical reasons for adopting class action tolling inform our response to the second certified question, which concerns when tolling should end. On that score, I agree with the majority that the potential members' reasonable reliance on the class action controls our analysis, but that does not lead me to adopt the majority's bright-line rule. A standard of reasonableness inherently requires flexibility and discretionary analysis,² which in the context of a class action requires consideration of the issues unique to this procedural mechanism.

A class action allows a named plaintiff to commence a suit as a representative of the known and unknown members of a putative class. This procedural mechanism would be of limited benefit “unless the statute of limitations was tolled by the filing of the class action,” because otherwise “class members would not be able to rely on the existence of the suit to protect their rights” (*Crown, Cork & Seal Co.*, 462 US at 350).

However, there are different points in class action litigation where that reliance understandably fades. On that spectrum, a court's denial of class certification on the merits is the clearest indicator that a potential class member should no longer hold out hope that this procedural mechanism will protect their interests. Upon denial of certification, tolling ceases and the member must then decide how to proceed (*id.* at 354).

At the other end of the spectrum, whether tolling ends and the statute of limitations continues to run after a non-merits denial of class certification or a dismissal of the action depends on how that order would affect the reasonable expectations of potential class members. Whether the non-merits-based denial or dismissal anticipates that a potential member will have a future opportunity to return and certify the class bears strongly

2. “Reasonable” means “[f]air, proper, or moderate under the circumstances” (Black's Law Dictionary 1518 [Bryan A. Garner et al. eds, 11th ed 2019]). A reasonable person “acts sensibly, does things without serious delay, and takes proper but not excessive precautions” (*id.* at 1519).

on the reasonableness of the potential member's continued reliance on the class.

In my view, the rule that best protects the rights of potential class members, who reasonably "rely on the existence of the [putative class action] suit to protect their rights" (*Giovanniello v ALM Media, LLC*, 726 F3d 106, 117 [2d Cir 2013], quoting *Crown, Cork & Seal Co.*, 462 US at 350), and thus avoids a "multiplicity of filings by potential class members seeking to preserve their rights" (*id.* [internal quotation marks and brackets omitted], quoting *Crown, Cork & Seal Co.*, 462 US at 351), is a rule that ceases tolling upon an unconditional, non-merits denial of class certification or dismissal of the putative class action. The absence of conditions places the non-merits denial or dismissal on equal footing with a merits-based denial of class certification, which undisputedly renders unreasonable a potential class member's reliance on the class action to protect their interests.

Thus, tolling should continue when a denial or dismissal is conditional and allows for return and possible class certification upon satisfaction of the condition. It is objectively reasonable to abide by a judicial directive as to whether and how the class action may proceed in the future. And allowing a potential class member the opportunity to file individually after that person relied on a court's order conforms to the purposes of class actions and the intent of tolling.

For example, a court's non-merits dismissal of a class action because of an insufficient pleading that permits refiling and amendment of the class action complaint within a set timeframe does not render a potential class member's continued reliance on the class action unreasonable. The court has allowed the representative plaintiff to refile the complaint. If they properly amend, the suit continues as a putative class action in a timely manner. To state the obvious, it would undermine judicial economy and efficiency if potential class members were forced to rush to other jurisdictions to file placeholder suits in this context (*Crown, Cork & Seal Co.*, 462 US at 351).

Similarly, the dismissal order here, which included a return-jurisdiction clause, did not terminate cross-jurisdictional tolling. Certainly the District Court did not understand its dismissal as a final rejection of class certification. The court acknowledged that it "conditionally granted defendants' motion

to dismiss under the doctrine of forum non conveniens” (*Rodriguez Delgado v Shell Oil Co.*, 322 F Supp 2d 798, 801 [SD Tex 2004]), and that the forum non conveniens “dismissal entered in this case was ‘final’ only for purposes of appealing the court’s [forum non conveniens] decision” (*id.* at 816). The District Court order made clear that if another forum was not available in their home country, the plaintiffs could return to federal court, picking up exactly where they had left off. When the plaintiffs then returned to Texas, the District Court noted that the return-jurisdiction clause was “an express statement of the court’s intent to retain jurisdiction,” and that the reinstated suit was “a direct continuation of the prior proceedings” (*id.* at 813). The plaintiffs, and thus the potential class members, had every reason to rely on the District Court’s representations.

In contrast, if the plaintiffs were able to pursue their claims in the foreign courts, then it would have been clear that those plaintiffs would not and could not continue the class action in Texas. At that point, reliance on the class would have become unreasonable.³

The majority notes that its bright-line rule provides certainty (majority op at 508). No doubt it does. But recognizing the general effect of a bright-line rule does not resolve where to draw the line. Though I do not believe that a bright-line rule is appropriate here, the majority fails to address why its rule is preferable to a rule that only a denial of class certification on the *merits* ends tolling, even though that rule would be equally obvious and clear, imposes no prejudice on plaintiffs or defendants, and better promotes efficiency and judicial economy.⁴

3. Of course, in order to reinstate the class action, a representative plaintiff must first pursue an action in the appropriate foreign court. Absent that course, the potential member has no basis to rely on what is essentially their representative member’s abandonment of the class action. This further illustrates that the reasonable reliance standard is flexible and subject to the nuances of a conditional dismissal or denial order.

4. The majority elevates certainty over fairness and ignores the potential for unjust outcomes under its rule. For example, restarting New York’s statute of limitations in 1995, as the majority does, would have placed the named plaintiffs and intervenors in the Texas litigation in an untenable position had they known about the rule. The Texas District Court instructed those parties to seek relief in their respective home countries with the understanding that they could return if the foreign court dismissed for lack of jurisdiction. The District Court further *enjoined* them from filing new suits in the United States. The parties were presented with a Hobson’s choice of (a) complying with the federal injunction or (b) filing in New York to protect their claims

(n. cont’d)

As the majority recognizes, the Supreme Court of Delaware, in applying cross-jurisdictional tolling under an objectively reasonable reliance standard to the same facts as those before this Court, concluded “that a clear and unambiguous rule avoids uncertainty over the starting and ending dates for statutes of limitation in cross-jurisdictional class action tolling cases” (*Marquinez v Dow Chem. Co.*, 183 A3d 704, 711 [Del 2018]). It drew its bright line in a different place from the majority: “[C]ross-jurisdictional class action tolling ends only when a sister trial court has clearly, unambiguously, and finally denied class action status” (*id.*; see also *Korwek v Hunt*, 827 F2d 874, 879 [2d Cir 1987] [noting that “the tolling rule established by *American Pipe*, and expanded upon by *Crown, Cork*, was not intended to be applied to suspend the running of statutes of limitations for class action suits filed after a definitive determination of class certification” (emphasis added)]). Similarly, in *Badzio v Americare Certified Special Servs., Inc.* (177 AD3d 838, 841-842 [2d Dept 2019]), the Second Department concluded that *American Pipe* tolling only ended where the trial court “made a definitive determination of the inappropriateness of class certification.”

Unlike Delaware’s rule, and that adopted by the Second Department, the majority’s non-merits, bright-line rule has the disadvantage of encouraging class members to act prematurely by filing individual suits that may prove unnecessary. The facts of this case exhibit that potential waste of resources. The District Court did not address the merits of the class-certification application that the plaintiffs had filed in state court when it dismissed the case in 1995; the District Court retained jurisdiction so that the plaintiffs could return to Texas if their suits were jurisdictionally dismissed abroad; and the District Court told plaintiffs that, if they returned to Texas, the suit would pick up where it had left off, which it did. The plaintiffs had every reason to believe that class relief was avail-

from dismissal, thereby violating the federal order and risk being held in contempt. If they chose the former, they would have been forced to watch the limitations period run, without the opportunity to file in New York if their claims were resolved unfavorably abroad. How does this further the purposes of article 9 (see n 1, *supra* [citing article 9’s legislative history])? Or how does it avoid a constitutional conflict under the Supremacy Clause (see n 5, *infra*)? And yet if New York is to have a bright-line rule, the fairer approach—summarily rejected by the majority—would end tolling upon a merits dismissal, thus accomplishing the majority’s goal of certainty without the potential injustice noted above or federal-state discord.

able until class certification was clearly and unambiguously denied on the merits in 2010.

To clarify this point, assume a hypothetical case in which all facts are the same, except that the Texas state court granted class certification in 2010. Under the majority's rule, plaintiffs here would have been forced to file superfluous individual suits in New York by 1998 or risk forfeiting their claims. Diligent plaintiffs would have filed a multiplicity of actions that would have worked their way through New York's courts for 12 years when those actions could have ultimately been resolved in Texas. That is, the majority's rule risks generating exactly the sort of congestive placeholder suits that *American Pipe* tolling—which we now adopt—was designed to avoid (*see American Pipe*, 414 US at 550 [noting that tolling promoted the goals of class action representation, which is “to avoid, rather than encourage, unnecessary filing of repetitious papers and motions”]).⁵

IV.

For the reasons above, I would answer the second certified question in the affirmative in those cases when the non-merits denial of class certification or dismissal of the putative class action is unconditional and unaccompanied by judicial directives that permit for continued pursuit of the class action. Under those circumstances, it is no longer objectively reasonable for the potential class members to rely on the class to protect their interests.

Chief Judge DiFIORE and Judges GARCIA and FEINMAN concur; Judge RIVERA dissents in part in an opinion in which Judges FAHEY and WILSON concur.

Following certification of questions by the United States Court of Appeals for the Second Circuit and acceptance of the questions by this Court pursuant to section 500.27 of the Rules

5. The majority's failure to recognize the import of the federal return-jurisdiction order that also enjoined additional filings in the United States raises serious questions about the legality of the majority's rule under the United States Constitution. State courts have no authority to undermine the scope of federal orders (US Const art VI [the laws of the United States “shall be the supreme Law of the Land; and the Judges in every State shall be bound thereby”]). However, the issue is not presented here. During litigation by certain plaintiffs to reinstate the class action pursuant to the return-jurisdiction clause, the United States Supreme Court rejected the jurisdictional predicate relied upon by defendant to remove the class action to federal court (*see generally Dole Food Co. v Patrickson*, 538 US 468 [2003]).

of Practice of the Court of Appeals (22 NYCRR 500.27), and after hearing argument by counsel for the parties and consideration of the briefs and record submitted, certified questions answered in the affirmative.

[159 NE3d 213, 134 NYS3d 297]

PATRICK LYNCH, as President of the Patrolmen's Benevolent Association of the City of New York, Inc., on Behalf of the POLICE OFFICERS WHO HAVE BEEN OR MAY IN THE FUTURE BE AGGRIEVED, et al., Appellants, v CITY OF NEW YORK et al., Respondents.

Argued September 10, 2020; decided October 20, 2020

SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered June 28, 2018. The Appellate Division (1) reversed, on the law, an order and judgment (one paper) of the Supreme Court, New York County (Margaret A. Chan, J.; op 56 Misc 3d 433 [2017]), which, to the extent appealed from as limited by the briefs, had granted plaintiffs' motion for summary judgment to the extent of declaring that defendants violated Administrative Code of the City of New York § 13-218 (h), and denied defendants' cross motion for summary judgment dismissing the complaint; (2) denied the motion; and (3) granted the cross motion.

Lynch v City of New York, 162 AD3d 589, reversed.

HEADNOTES

Civil Service — Retirement and Pension Benefits — Unpaid Child-care Leave Service Credit Benefit for New York City Police Officers

1. Administrative Code of the City of New York § 13-218 (h) renders officers of the New York City Police Department who are members of the tier 3 state retirement system eligible for credit for certain periods of unpaid childcare leave. Under the second subdivision (h) of Administrative Code § 13-218, "any member who is absent without pay for child care le[a]ve of absence . . . shall be eligible for credit for such period of child care leave." None of the pertinent parts of the statute is ambiguous. The reference to "any member" is unbounded and unfixed to employees of a particular tier, and the absence of an exception applicable to tier 3 employees cannot reasonably be attributed to carelessness or mistake. It is irrelevant that there were no tier 3 police officers when that part of the Administrative Code was passed. Inasmuch as it does not distinguish between tiers of officers, and simply provides that "any member," regardless of retirement tier, is eligible for the childcare leave service credit benefit, the second subdivision (h) of Administrative Code § 13-218 necessarily opens that benefit to tier 3 officers.

Civil Service — Retirement and Pension Benefits — Unpaid Child-care Leave Service Credit Benefit for New York City Police Officers — Consistency with Retirement and Social Security Law

2. Retirement and Social Security Law § 513 (h), which affords childcare service credit benefits to "any general member in the uniformed correction

force,” does not prohibit the childcare leave service credit benefit conferred by Administrative Code of the City of New York § 13-218 (h) to officers of the New York City Police Department who are members of the tier 3 retirement system. Retirement and Social Security Law § 513 (h) also contains a supremacy clause providing that, “[i]n the event there is a conflict between the provisions of [Retirement and Social Security Law § 513 (h)] and the provisions of any other law or code to the contrary, the provisions of [Retirement and Social Security Law § 513 (h)] shall govern.” Neither the allocative component of section 513 (h) nor its supremacy clause addresses the part of the Administrative Code at issue. The relevant portion of the Administrative Code allows police pension fund members to purchase service credit for time that otherwise would have been lost to childcare leave by contributing an amount equal to what would have been supplied if the employee had not taken childcare leave. The Retirement and Social Security Law, by contrast, is silent with respect to that point. Legislative silence, in this context, is acquiescence. Therefore, the childcare service credit benefits conferred upon members by the Administrative Code survive.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d Civil Service § 43; AM JUR 2d Pensions and Retirement Funds §§ 978, 983, 1098, 1138, 1141, 1144, 1154.

CARMODY-WAIT 2d Proceeding Against a Body or Officer §§ 145:1049, 145:1132, 145:1146–145:1149.

McKINNEY'S, Retirement and Social Security Law § 513 (h).

NY JUR 2d Pensions and Retirement Systems §§ 165, 171, 185, 276, 330, 366.

ANNOTATION REFERENCE

See ALR Index under Labor and Employment; Pensions and Retirement; Public Officers and Employees; Social Security.

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POINTS OF COUNSEL

Friedman Kaplan Seiler & Adelman, LLP, New York City (Robert S. Smith of counsel), *Rivkin Radler, LLP*, Uniondale (Cheryl F. Korman and Henry Mascia of counsel), and *Michael T. Murray, Office of the General Counsel of the Police Benevolent Association of the City of New York, Inc.*, New York City

(*Gaurav I. Shah, David W. Morris, and Christopher T. Luise* of counsel), for appellants. I. The Child Care Credit Law applies to all members of the New York City Police Pension Fund. (*Riley v County of Broome*, 95 NY2d 455; *Matter of Daimler-Chrysler Corp. v Spitzer*, 7 NY3d 653; *Matter of Rizzo v New York State Div. of Hous. & Community Renewal*, 6 NY3d 104; *Post v 120 E. End Ave. Corp.*, 62 NY2d 19; *Matter of Polkabila v Commission for Blind & Visually Handicapped of N.Y. State Dept. of Social Servs.*, 183 AD2d 575; *Matter of Roosevelt Raceway v Monaghan*, 9 NY2d 293; *Meltzer v Koenigsberg*, 302 NY 523; *Town of Putnam Val. v Slutzky*, 283 NY 334; *McCluskey v Cromwell*, 11 NY 593; *Sega v State of New York*, 60 NY2d 183.) II. The reasons given by the Appellate Division for its decision are flawed. (*Matter of Consolidated Edison Co. of N.Y. v Department of Env'tl. Conservation*, 71 NY2d 186; *Alweis v Evans*, 69 NY2d 199; *Matter of Dutchess County Dept. of Social Servs. v Day*, 96 NY2d 149; *People v Zephrein*, 14 NY3d 296; *Matter of Town of Riverhead v New York State Bd. of Real Prop. Servs.*, 5 NY3d 36; *Erie County Water Auth. v Kramer*, 4 AD2d 545, 5 NY2d 954; *Wager v Pelham Union Free Sch. Dist.*, 108 AD3d 84; *Horowitz v Incorporated Vil. of Roslyn*, 144 AD2d 639, 74 NY2d 835; *Matter of Level 3 Communications, LLC v Clinton County*, 144 AD3d 115, 29 NY3d 918; *Matter of Roosevelt Raceway v Monaghan*, 9 NY2d 293.)

Zachary W. Carter, Corporation Council of the City of New York, New York City (John Moore, Richard Dearing and Claude S. Platten of counsel), for respondents. I. The legislature did not grant a child care service credit to tier 3 police officers. (*Matter of DaimlerChrysler Corp. v Spitzer*, 7 NY3d 653; *Riley v County of Broome*, 95 NY2d 455; *Matter of Avella v City of New York*, 29 NY3d 425; *Matter of New York County Lawyers' Assn. v Bloomberg*, 19 NY3d 712; *Matter of Sutka v Connors*, 73 NY2d 395; *Civil Serv. Empls. Assn.*, 71 NY2d 653; *Matter of Wertheim v New York City Teachers' Retirement Sys.*, 91 AD2d 514, 58 NY2d 1043; *Matter of Kaslow v City of New York*, 23 NY3d 78; *Morales v County of Nassau*, 94 NY2d 218; *Matter of Awe v D'Alessandro*, 154 AD3d 932.) II. The Patrolman's Benevolent Association's attempt to inject an Administrative Code of the City of New York benefit into tier 3 fails. (*Matter of Wertheim v New York City Teachers' Retirement Sys.*, 91 AD2d 514, 58 NY2d 1043; *Sullivan v Stroop*, 496 US 478; *Matter of Kaslow v City of New York*, 23 NY3d 78; *Matter of Avella v City of New York*, 29 NY3d 425; *Matter of New York County Lawyers' Assn. v Bloomberg*, 19 NY3d 712; *Andryeyeva v New York*

Health Care, Inc., 33 NY3d 152; *Matter of Kamhi v Planning Bd. of Town of Yorktown*, 59 NY2d 385; *Civil Serv. Empls. Assn., Local 1000, AFSCME, AFL-CIO v Regan*, 71 NY2d 653; *Matter of Rizzo v New York State Div. of Hous. & Community Renewal*, 6 NY3d 104; *Matter of Guzman v New York City Employees' Retirement Sys.*, 45 NY2d 186.)

OPINION OF THE COURT

FAHEY, J.

The Appellate Division order should be reversed and Supreme Court's judgment declaring that defendants violated the second subdivision (h) of Administrative Code of the City of New York § 13-218 by excluding police officers in tier 3 of the state retirement system from the retirement benefits conferred by that subdivision reinstated. Applying long-standing, basic rules of statutory interpretation, we conclude that the relevant part of Administrative Code § 13-218 renders officers of the New York City Police Department (NYPD) who are members of the tier 3 retirement system eligible for credit for certain periods of unpaid childcare leave, and that the grant of such benefits for those officers is consistent with the Retirement and Social Security Law.

I.

In July 1976 the legislature adopted, and Governor Carey approved, legislation that fundamentally reformed the state pension system (*see Civil Serv. Empls. Assn., Local 1000, AFSCME, AFL-CIO v Regan*, 71 NY2d 653, 657 [1988]). Included in those changes was the rule that any public employee hired on or after July 1, 1976 would be enrolled in the newly-created tier 3 system (*see id.*; *see also* Retirement and Social Security Law art 14 [containing Retirement and Social Security Law §§ 500-520 and creating the tier 3 retirement system]). We previously characterized that program as one “designed to ‘provid[e] uniform benefits for all public employees and eliminat[e] the costly special treatment of selected groups . . . inherent in the previous program’” (*Lynch v City of New York*, 23 NY3d 757, 765 [2014], quoting Mem from Robert J. Morgado [Secretary to the Governor] to Judah Gribetz [Governor's Counsel], Bill Jacket, L 1976, ch 890).

An exception to that pension reform allowed all police officers and firefighters who subsequently entered or reentered a public retirement system to continue as tier 2 members (*see*

Retirement and Social Security Law § 440 [c]; *Lynch*, 23 NY3d at 766; *see also* Retirement and Social Security Law art 11 [containing Retirement and Social Security Law §§ 440-451 and embodying the tier 2 retirement system]; L 1973, ch 382, § 47 [creating the tier 2 retirement system in 1973]). That exception, maintained by regular two-year extender bills, eventually was terminated by veto of Governor Paterson in 2009 (*see Lynch*, 23 NY3d at 767). Thereafter, as relevant here, all NYPD officers appointed between July 1, 2009, and March 31, 2012, were placed in tier 3 of the New York City Police Pension Fund (PPF)¹ (*see id.* at 765); all officers appointed after April 1, 2012, were placed in revised but functionally similar tier 3 plans of the same pension fund (*see* Retirement and Social Security Law § 501 [26], [28]).

At issue on this appeal is the policy of defendant City of New York that tier 3 officers are not eligible for certain benefits indisputably available to officers in tier 2 of the PPF retirement plan, including the “credit for service” mechanism that allows police officers to obtain credit for certain periods of absence without pay for childcare leave. Administrative Code § 13-218 contains two subdivisions (h). That mechanism is embodied in the second of the two subdivisions (h) of section 13-218, which was part of a series of pension initiatives intended to ensure that members who became parents and temporarily left service were not pressured to “rush back to the workplace without properly caring for their children” (Bill Jacket, L 1999, ch 646 at 9; *see id.* at 3, 8) and later were “not punished in their retirement for their willingness to play an active role in their child’s growth” (*id.* at 9).² At its core, that subdivision provides that any PPF member absent without pay

1. “There are five City retirement systems, covering different categories of employees: PPF, [the New York City Fire Department Pension fund (FDPF)], the Teachers’ Retirement System (TRS), the Board of Education Retirement System (BERS) and the New York City Employees’ Retirement System” (*Lynch*, 23 NY3d at 761 n 1).

2. The bill jacket for chapter 646 of the Laws of 1999, among other things, explains the motivation for amendments to Retirement and Social Security Law § 645, which is entitled “Benefits for certain members who reenter public service.” Those amendments to Retirement and Social Security Law § 645 allowed certain “current or future members of New York public retirement systems who previously were members of a New York public retirement system to be deemed to have become members of their current systems as of the original date of such previous ceased membership” (L 1999, ch 646 [fiscal notes]). The purpose of those changes, therefore, was restorative: those who reentered public service following a temporary departure were returned to

(n. cont’d)

for childcare leave permitted under NYPD regulations shall be eligible for a limited amount of credit for that leave if certain filing and reimbursement requirements are met (*see* Administrative Code § 13-218 [h]).

Plaintiffs commenced this action seeking, among other things, judgment declaring that *all* police officers hired by the NYPD, including those hired on or after July 1, 2009, are eligible for the benefits afforded by the second subdivision (h) of section 13-218. That is, plaintiffs contended that, even in the absence of the extender bill vetoed by Governor Paterson, all members of the PPF—regardless of hire date—may purchase pension credit for time spent on unpaid childcare leave.

Defendants, by contrast, asserted that the relevant provisions of the Retirement and Social Security Law conflict with the Administrative Code and that the pension rights of tier 3 police officers are exclusively governed by article 14 of the Retirement and Social Security Law. Specifically, according to defendants, Retirement and Social Security Law § 513 (h) “addresses the issue of service credit for [childcare] leave,” overrides any like provision of Administrative Code § 13-218, and “limits the eligibility for such credit to New York City correction officers hired before April 1, 2012.”

Following motion practice, Supreme Court, in relevant part, awarded plaintiffs judgment declaring that the affected police officers are entitled to the childcare leave benefit (56 Misc 3d 433 [Sup Ct, NY County 2017]). That court reasoned that Administrative Code § 13-218 (h), on its face, renders any member of the PPF eligible for the childcare leave service credit benefit, and that the Retirement and Social Security Law does not conflict with or preempt that part of the Administrative Code (*see* 56 Misc 3d at 442-443).

The Appellate Division reversed, denying plaintiffs’ motion for summary judgment and granting defendants’ cross motion for accelerated relief (162 AD3d 589, 589 [1st Dept 2018]). The Court reasoned that because the Retirement and Social Security Law expressly makes the childcare leave service credit benefit in question available to correction officers, but does not

their prior tier placement (*see id.*; *see also* L 2000, ch 552 [expanding the scope of prior creditable service in Retirement and Social Security Law §§ 446 (b); 513 (b) and 609 (b) (1)]). The second subdivision (h) of Administrative Code § 13-218 had a similar intent: it allows “men and women who . . . interrupted their careers to raise their children the opportunity to obtain retirement credit for such leave” (Bill Jacket, L 2000, ch 594 at 12).

expressly confer the same benefit upon police officers, the legislature meant to nullify the part of the Administrative Code allowing the buyback to police members of the retirement system (*see* 162 AD3d at 591, citing Retirement and Social Security Law § 513 [h]).

We subsequently granted plaintiffs leave to appeal (32 NY3d 915 [2019]), and we now reverse the Appellate Division order and reinstate Supreme Court’s judgment.

II.

Our review begins with reference to long-standing, basic rules of statutory interpretation. In such matters our “primary consideration is to ascertain and give effect to the intention of the [l]egislature” (*Samiento v World Yacht Inc.*, 10 NY3d 70, 77 [2008]). “The starting point” in that exercise “is the language of the statute itself” (*Yatauro v Mangano*, 17 NY3d 420, 426-427 [2011]). The rule of statutory interpretation relevant here is that the literal language of a statute controls “unless the plain intent and purpose of [the] statute would otherwise be defeated” (*Matter of Anonymous v Molik*, 32 NY3d 30, 37 [2018] [internal quotation marks omitted]).

Administrative Code § 13-218 is entitled “Credit for service,” and the second subdivision (h) allows PPF members to obtain credit for certain periods of absence without pay for childcare leave. It provides, in relevant part, that

“*any member* who is absent without pay for child care le[a]ve of absence pursuant to regulations of the New York city police department shall be eligible for credit for such period of child care leave provided such member files a claim for such service credit with the pension fund by December [31, 2001,] or within [90] days following termination of the child care leave, whichever is later, and contributes to the pension fund an amount which such member would have contributed during the period of such child care leave, together with interest thereon. Service credit provided pursuant to this subdivision shall not exceed one year of credit for each period of authorized child care leave. In the event there is a conflict between the provisions of this subdivision and the provisions of any other law or code to the contrary, the provisions of this subdivision shall govern” (§ 13-218 [h] [emphases added], added by L 2000, ch 594, § 1).

[1] None of the pertinent parts of that statute is ambiguous. “Any member” can mean only what it says. The reference to “any member” is unbounded and unfixed to employees of a particular tier, and the absence of an exception applicable to tier 3 employees cannot reasonably be attributed to carelessness or mistake (*cf.* Administrative Code §§ 13-234 [i] [4]; 13-256.1 [b] [expressly excluding tier 3 members of the PPF]). Although there were no tier 3 police officers when this part of the Administrative Code was passed, that fact is irrelevant. Inasmuch as it does not distinguish between tiers of officers, and simply provides that “any member,” regardless of retirement tier, is eligible for the childcare leave service credit benefit, the second subdivision (h) of Administrative Code § 13-218 necessarily opens that benefit to tier 3 officers.

In view of that plain language conclusion, there is no need to consider the legislative history of Administrative Code § 13-218 (h) (*see Matter of Roosevelt Raceway v Monaghan*, 9 NY2d 293, 304-305 [1961]).³ Consequently, our review proceeds directly to the question whether the Retirement and Social Security Law conflicts with that part of the Administrative Code or otherwise defeats the childcare service credit benefits provided therein.

[2] Defendants direct us to Retirement and Social Security Law § 513 (h), which was enacted in 2005 (*see* L 2005, ch 477) and which affords childcare service credit benefits to correction officers through this text:

“h. . . . any general member in the uniformed *correction force* of the New York city department of correction who is absent without pay for a child care leave of absence pursuant to regulations of the New York city department of correction shall be eligible for credit for such period of child care leave provided such member files a claim for such service credit with the retirement system by December [31, 2005] or within [90] days of the termination of the child care leave, whichever is later, and contributes to the retirement system an amount which such member would have contributed during the period of such child care leave, together with interest

3. Even if we were to consider the legislative history of Administrative Code § 13-218 (h), it would not support defendant’s arguments. As the Appellate Division correctly observed, “[t]he legislative history of section 13-218 (h) does not reflect any intent to distinguish between the tiers in the pension system” (162 AD3d at 590 n).

thereon. Service credit provided pursuant to this subdivision shall not exceed one year of credit for each period of authorized child care leave” (Retirement and Social Security Law § 513 [h] [emphases added]).

That section also contains a supremacy clause providing that,

“[i]n the event there is a conflict between the provisions of [Retirement and Social Security Law § 513 (h)] and the provisions of any other law or code to the contrary, the provisions of [Retirement and Social Security Law § 513 (h)] shall govern, provided, however, that the provisions of this subdivision shall not apply to a member of the uniformed force of the New York city department of correction who is a New York city uniformed correction/sanitation revised plan member” (Retirement and Social Security Law § 513 [h]).

Significantly, neither the allocative component of Retirement and Social Security Law § 513 (h) nor its supremacy clause addresses the part of the Administrative Code at issue. At bottom, the relevant portion of the Administrative Code allows PPF members to purchase service credit for time that otherwise would have been lost to childcare leave by contributing an amount equal to what would have been supplied if the employee had not taken childcare leave. The Retirement and Social Security Law, by contrast, is silent with respect to that point.

Legislative silence, in this context, is acquiescence. The childcare service credit benefits conferred upon PPF members by the Administrative Code survive (*see Engle v Talarico*, 33 NY2d 237, 242 [1973] [(“w)here the practical (view) of a statute is well known, the (l)egislature is charged with knowledge and its failure to interfere indicates acquiescence”]). Had the legislature intended otherwise, it easily could have said as much. Our long-standing rules of statutory interpretation do not allow the relevant parts of the Administrative Code and the Retirement and Social Security Law to be construed to reach a different result.⁴ Indeed, our own authority requires that “we must, if at all possible, give full effect to both” the

4. To the extent the Appellate Division suggested that the courts should look to the legislative history of Retirement and Social Security Law § 513 (h)—despite the clear language of the text—to determine the meaning of Administrative Code § 13-218 (h), we disagree. The Appellate Division order

(n. cont’d)

Administrative Code and the Retirement and Social Security Law (*People v Newman*, 32 NY2d 379, 389 [1973], *cert denied* 414 US 1163 [1974]). We conclude that Retirement and Social Security Law § 513 (h) does not prohibit the benefit conferred in Administrative Code § 13-218 (h).

III.

Defendants' three principal contentions to the contrary are unavailing.

relied upon, among other things, the bill jacket to chapter 18 of the Laws of 2012 (*see* 162 AD3d at 591) as demonstrating that the legislature understood the unpaid childcare leave service credit benefit in Administrative Code § 13-218 (h) to be unavailable to tier 3 police officers; specifically, the legislature made newly hired tier 3 correction officers ineligible for the benefit in order to equate the benefits of newly-hired correction officers with those of PPF tier 3 members (*see* 162 AD3d at 591). In that vein, the Appellate Division specifically quoted a memorandum in support of that bill in which the Senate Introducer noted that the measure "would amend RSSL § 513 to make new NYC Tier 3 uniformed correction members ineligible to obtain service credit for child care leave in order to equate their benefits with Tier 3 police/fire benefits" (Senate Introducer's Mem in Support, Bill Jacket, L 2012, ch 18 at 10; *see* 162 AD3d at 591).

Defendants largely avoid reliance upon that bill jacket in their brief to this Court, and with good reason. The legislative amendments in question did not operate upon Administrative Code § 13-218 (h) (*cf.* 162 AD3d at 591), which, as noted, conferred the childcare leave service credit benefit upon tier 3 PPF members, and instead recast Retirement and Social Security Law § 513 (h). Prior to those amendments, Retirement and Social Security Law § 513 (h) had expressly conferred childcare leave service credit rights upon correction officers. By the amendments, which included the addition of the part of the aforementioned "superiority language" in which Retirement and Social Security Law § 513 (h) is rendered inapplicable to a newly-hired "member of the uniformed force of the New York city department of correction who is a New York city uniformed correction/sanitation revised plan member" (*id.*; *see* L 2012, ch 18, § 21), the legislature excepted certain correction officers from eligibility for such benefits.

That, of course, is a winding way of saying that the 2012 legislative action to which the Appellate Division pointed did not affect the rights of tier 3 PPF officers under Administrative Code § 13-218 (h), and that the Senate Introducer's Memorandum reflects a fundamental misunderstanding of both the rights afforded tier 3 PPF members pursuant to the relevant part of the Administrative Code and of the impact of the 2012 amendments to Retirement and Social Security Law § 513 (h) upon those rights. In any event, but perhaps most importantly, even if the legislative changes it covered were related to this case, the part of the 2012 bill jacket on which the Appellate Division relies would be of little to no value in constructing the meaning of Administrative Code § 13-218 (h) if we had occasion to engage in such a review. That part of the Administrative Code was enacted in 2000 (*see* L 2000, ch 594), and the views that a member or certain members of the State Senate expressed with respect to that prior statute are of minimal value.

First, according to defendants, the Administrative Code cannot be the source of a substantive benefit for tier 3 members because Retirement and Social Security Law § 519 (1) provides that the Retirement and Social Security Law is a “stand-alone retirement structure of benefits and contributions.” Read in its entirety, however, Retirement and Social Security Law § 519 (1) creates no such exclusivity. In fact, that statute incorporates by reference relevant parts of, among other things, the Administrative Code that do not conflict with the guidelines of the RSSL.⁵

Second, contrary to defendants’ further contention, that exclusivity theory lacks support in our case law. Defendants’ reliance upon *Lynch v City of New York* (23 NY3d 757 [2014]) is misplaced. There, we addressed the question whether Retirement and Social Security Law § 480 (b), which was enacted in 1974 and which extended any program in which an employer in a public retirement system funded by the state or one of its subdivisions assumed all or part of the contribution that would otherwise be made by employees toward retirement, applied to tier 3 members of the PPF and the FDPF (*see Lynch*, 23 NY3d at 760). For reasons unrelated to the interaction of the Retirement and Social Security Law and the Administrative Code, we concluded that it did not (*see id.* at 772 [relying upon the extensive legislative history of the provision, including the Governor’s Approval Memorandum (Bill Jacket, L 1973, ch 383 at 2, 1973 McKinney’s Session Laws of NY at 2343), which stated that the statute was meant to “‘extend() temporary retirement benefits for *present members*’ of the programs to which it referred”; present members included only tier 1 and tier 2]). More importantly, we did not so much as hint that the Retirement and Social Security Law might be the sole instrument for determining retirement benefits of tier 3 members; rather, we looked to the Administrative Code to determine whether the program at issue was applicable to tier 3 members,

5. Retirement and Social Security Law § 519 is entitled, “Effect of other laws,” and subdivision (1) of that statute provides that

“[a]ny other provision of this chapter [of the Retirement and Social Security Law], of the state education law or of the administrative code of the city of New York, or rules and regulations thereunder, relating to the reemployment of retired members, transfer of members and reserves between systems and procedural matters shall apply to members covered under this article during the duration thereof unless inconsistent herewith.”

noting that another Code provision, governing calculation of the benefit, did not apply to all members but expressly carved out tier 3 members (*see id.* at 774, citing Administrative Code § 13-638.2 [g] [3]).

Matter of Kaslow v City of New York (23 NY3d 78 [2014]), on which defendants also rely in support of their exclusivity point, similarly is unavailing. There, to be sure, we rejected the contention of the petitioner (a retired New York City Department of Correction Officer [*see id.* at 81]) that his pension should have been calculated pursuant to the part of the Administrative Code that would have embraced his prior service with a prior public employer (*see id.* at 86-87). Dissimilar to this matter, however, in that instance the relevant part of the Retirement and Social Security Law (§ 504-a [c] [2], which establishes a 20-year retirement program for city correction members below the rank of captain and which is not implicated in this case) *specified the entire pension benefit* for such corrections officers (*see id.* at 87). This means that the Administrative Code played no role in the calculation of those benefits. In this instance, as explained above, the Retirement and Social Security Law does not exclusively govern tier 3 benefits based on certain periods of unpaid childcare leave, meaning that *Kaslow* does not control the result in this dispute.

Third, and finally, contrary to the conclusion of the Appellate Division (*see* 162 AD3d at 591) and to the suggestion of defendants on this appeal, here there is no distinction relevant to our analysis between article 11 of the Retirement and Social Security Law (which includes Retirement and Social Security Law § 446) and article 14 of the Retirement and Social Security Law (which includes Retirement and Social Security Law § 513 [h]).

This point is rooted in Administrative Code § 13-107 (k), which was added in 2004 (*see* L 2004, ch 581) and in which the legislature rendered

“any correction member who is absent without pay for child care leave of absence pursuant to regulations of the New York city department of correction shall be eligible for credit for such period of child care leave provided such member files a [timely] claim for such service credit with the retirement system” (§ 13-107 [k]).

The next year, the legislature amended Retirement and Social Security Law § 513 to, in the Appellate Division’s words,

“expressly . . . make [that leave] benefit available to tier 3 correction officers” (162 AD3d at 591; *see* L 2005, ch 477). That new statutory language tracked the text of Administrative Code § 13-107 (k) insofar as it provided that

“any general member in the uniformed correction force of the New York city department of correction who is absent without pay for a child care leave of absence pursuant to regulations of the New York City department of correction shall be eligible for credit for such period of child care leave provided such member files a [timely] claim for such service credit with the retirement system” (Retirement and Social Security Law § 513 [h]).

That addition, the Appellate Division believed, was engendered by an oversight in which the legislature “‘accidentally omitted from the [2004] bill [enacting Administrative Code § 13-107 (k)]’ ” an express grant of a childcare leave service credit benefit for tier 3 correction officers (*see* 162 AD3d at 591, quoting Senate Introducer’s Mem in Support, Bill Jacket, L 2005, ch 477 at 3). Necessitating that amendment to the Retirement and Social Security Law, the Appellate Division further believed, was a discrepancy between Retirement and Social Security Law article 11 (which, as noted, governs retirement benefits for tier 2 members [*see* Retirement and Social Security Law § 440 (a)]) and Retirement and Social Security Law article 14 (which, as also noted, governs retirement benefits for tier 3 members [*see* Retirement and Social Security Law § 500 (a)]) (*see* 162 AD3d at 591). Specifically, that Court said,

“[t]he Retirement and Social Security Law had to be amended to accomplish the purpose [of making the unpaid childcare leave service credit benefit available to tier 3 members] because [Retirement and Social Security Law] article 14, which governs tier 3 employees, contains definitions of the terms ‘credited service’ and ‘creditable service,’ and expressly defines those terms by reference to Retirement and Social Security Law § 513 (‘Credit for Service’) (*see* Retirement and Social Security Law § 501 [3], [4]). Thus, a service credit not included in Retirement and Social Security Law § 513 would not be available to tier 3 members. (In contrast, article 11 contains a corresponding provi-

sion [‘Credit for Service’] for tier 2 members [*see* Retirement and Social Security Law § 446 (article 11)], but it defines only a few terms, and none of them [is] related to service credit.” (162 AD3d at 591.)

That is, at bottom, the Appellate Division believed that conferral of a childcare leave service credit benefit upon tier 3 correction officers—and, by extension, similarly situated tier 3 police officers—could not have been accomplished through the Administrative Code and required a subsequent amendment to Retirement and Social Security Law § 513 (h) because the Retirement and Social Security Law defines “creditable service”—a phrase that embraces the childcare leave service credit in question—differently for members of tier 2 (through article 11 of the Retirement and Social Security Law) and tier 3 (through article 14 of the Retirement and Social Security Law) (*see* 162 AD3d at 591). A review of the relevant parts of the Retirement and Social Security Law, however, reveals no material distinction in the description of that term. Article 11’s definition of “creditable service” provides, among other things, that “retirement credit may be granted for service with an agency located within the state of New York currently specified in the law as providing retirement credit for service” (Retirement and Social Security Law § 446 [c]).⁶ Article 14’s definition of that phrase contains identical language (*see* Retirement and Social Security Law § 513 [c] [1]).⁷

6. The whole of section 446 (c), which is entitled “Creditable service,” reads as follows:

“A member of a retirement system who is subject to the provisions of this article shall not be eligible to obtain retirement credit for service with a public employer other than the state of New York, a political subdivision thereof, a public benefit corporation, or a participating employer; provided, however, military service with the federal government may be credited pursuant to [Military Law § 243] up to a maximum of four years; and further provided that retirement credit may be granted for service with an agency located within the state of New York currently specified in the law as providing retirement credit for service” (Retirement and Social Security Law § 446 [c]).

7. Section 513 (c) (1), in language substantively identical to that of Retirement and Social Security Law § 446 (c), defines “Creditable service” in this way:

“A member shall not be eligible to obtain credit for service with a public employer other than the state of New York, a political subdivision thereof, a public benefit corporation, or a participat-

(n. cont’d)

Consequently, the notion that a discrepancy in the characterization of creditable service for tier 2 and tier 3 members warranted amendment to Retirement and Social Security Law § 513 (h) to confer the childcare leave service credit benefit in question upon tier 3 PPF members (*see* 162 AD3d at 591) simply is misguided. Moreover, the reference by the Appellate Division to what, for purposes of this appeal, was the irrelevant amendment of Retirement and Social Security Law § 513 (h) is similarly misplaced. Nothing in either definition of creditable service prevents tier 3 PPF members from purchasing service credit for time spent on temporary childcare leave, and nothing in either of those definitional sections conflicts with the childcare leave service credit benefit conferred upon such members in the second subdivision (h) of Administrative Code § 13-218.

Accordingly, the Appellate Division order should be reversed, with costs, and the judgment of Supreme Court reinstated.

RIVERA, J. (dissenting). New York City police officers are hired under a tiered employment structure that classifies officers based on their date of entry into service. On this appeal, plaintiffs argue that, like their peers in tiers 1 and 2, all tier 3 police officers are entitled to credit for time spent on a childcare leave of absence provided for in the Administrative Code of the City of New York. However, tier 3 was enacted in article 14 of the Retirement and Social Security Law as part of a cost containment legislative reform package. Unlike the majority, I cannot interpret New York State's statutory benefit structure as revealing anything other than a legislative intent to limit this credit benefit to tier 1 and 2 police officers. The majority's singular reliance on the phrase "any member" in the Administrative Code begs the question of who is eligible for the benefit, and ignores that the legislature used this phrase at a time when all City police officers were classified in tiers 1 and 2 and that the Retirement and Social Security Law does not expressly provide these benefits to tier 3 police officers.

I.

The New York City Police Pension Fund (NYCPPF) is one of

ing employer; provided, however, military service with the federal government may be credited pursuant to [Military Law § 243] up to a maximum of four years; and further provided that retirement credit may be granted for service with an agency located within the state of New York currently specified in law as providing retirement credit for service."

the public employee pension systems in New York State. The NYCPPF was created pursuant to title 13, chapter 2, subchapter 2 of the Administrative Code of the City of New York (§§ 13-214–13-267.1). Police officers who joined the force prior to July 1, 1973, are classified in tier 1, while officers who joined from July 1, 1973, through July 26, 1976, are tier 2 members (*Lynch v City of New York*, 23 NY3d 757, 761 [2014]). Notably, tier 2 was created “[t]o deal with the ‘steeply mounting cost of public employee pensions’” (*id.* at 762, quoting Governor’s Approval Mem, Bill Jacket, L 1973, ch 383 at 2, 1973 McKinney’s Session Laws of NY at 2343), and tier 2 member benefits are subject to both title 13 of the Administrative Code as well as article 11 of the Retirement and Social Security Law (*see* Retirement and Social Security Law § 440 [a]). Tier 1 member benefits are not subject to any provisions of the Retirement and Social Security Law (*see* Administrative Code of City of NY § 13-214 [27]).

The legislature created tier 3 on July 27, 1976, through “a comprehensive pension reform bill” that enacted article 14 of the Retirement and Social Security Law (*Lynch*, 23 NY3d at 765). Tier 3 was designed to provide uniform benefits for all public employees and to “eliminat[e] the costly special treatment of selected groups which was inherent in the previous programs” (Mem from Robert J. Morgado at 2, Bill Jacket, L 1976, ch 890). Although tier 3 status was meant to encompass all employees hired after July 1, 1976, police officers joining the force between 1976 and 2009 joined as tier 2 employees due to legislative extensions of tier 2 status for this category of public employee approximately every two years until June 2, 2009, when the Governor vetoed the two-year extender for 2009-2011 (*see Lynch*, 23 NY3d at 765-767; Retirement and Social Security Law § 440 [a], [c]). Without the extender in place, new police officers hired after July 1, 2009, were classified as tier 3 members (*see Lynch*, 23 NY3d at 767; Retirement and Social Security Law § 440 [c]).

Under article 14 of the Retirement and Social Security Law (§§ 500-520; *see* 500 [b] [1]), “[i]n the event that there is a conflict between the provisions of this article and the provisions of any other law or code, the provisions of this article shall govern” (Retirement and Social Security Law § 500 [a]). Also, provisions of the Retirement and Social Security Law and the Administrative Code “relating to the reemployment of retired members, transfer of members and reserves between

systems and procedural matters shall apply to members covered under this article” unless inconsistent with Retirement and Social Security Law article 14 (Retirement and Social Security Law § 519 [1]).

In this appeal, plaintiff Patrolman’s Benevolent Association of New York and its president contend that Administrative Code § 13-218 (h), which provides “any member” with a child care leave of absence credit, applies to all New York City police officers, regardless of when they were hired and their tier status and despite language in the Retirement and Social Security Law proscribing such credit for tier 3 officers. The majority agrees, but there is no merit to this cramped interpretation of the broader public employee benefits scheme.

II.

“The primary consideration of courts in interpreting a statute is to ‘ascertain and give effect to the intention of the Legislature’ ” (*Riley v County of Broome*, 95 NY2d 455, 463 [2000], quoting McKinney’s Cons Laws of NY, Book 1, Statutes § 92 [a] at 177). Generally, “the plain meaning of the statutory text is the best evidence of legislative intent” (*People v Cahill*, 2 NY3d 14, 117 [2003], citing *Riley*, 95 NY2d at 463).

However, to determine the intent of the legislature, “a statute . . . must be construed as a whole and . . . its various sections must be considered together and with reference to each other” (*People v Mobil Oil Corp.*, 48 NY2d 192, 199 [1979] [citations omitted]). It is our “obligation to harmonize the various provisions of related statutes and to construe them in a way that renders them internally compatible” (*Matter of Aaron J.*, 80 NY2d 402, 407-408 [1992], citing *Mobil Oil Corp.*, 48 NY2d at 199-200; see also *Gaden v Gaden*, 29 NY2d 80, 86 [1971]; McKinney’s Cons Laws of NY, Book 1, Statutes §§ 97, 98). Put another way, “[a]ll parts of a statute must be harmonized with each other as well as with the general intent of the whole statute, and effect and meaning must, if possible, be given to the entire statute and every part and word thereof” (*People v Pabon*, 28 NY3d 147, 152 [2016], quoting McKinney’s Cons Laws of NY, Book 1, Statutes § 98 [a]). Moreover, when the statutory text appears plain on its face, we must consider related provisions that might render such text ambiguous. “If the language is ambiguous, we may examine the statute’s legislative history” (*Roberts v Tishman Speyer Props., L.P.*, 13 NY3d 270, 286 [2009], citing *Majewski v Broadalbin-Perth Cent. School Dist.*, 91 NY2d 577, 583 [1998]).

This appeal is not the first occasion the Court has interpreted the Retirement and Social Security Law to discern the availability of a benefit, and each time that we have done so, we have been careful not to truncate the analysis (*see e.g. Lynch*, 23 NY3d 757; *Matter of Sutka v Conners*, 73 NY2d 395 [1989]). As the Court explained in *Matter of Sutka*,

“[T]he court’s objective is, of course, to discern and apply the will of the Legislature, not the court’s own perception of what might be equitable. . . . In matters of statutory interpretation generally, and particularly here, legislative intent is the great and controlling principle. Legislative intent may be discerned from the face of a statute, but an apparent lack of ambiguity is rarely, if ever, conclusive. . . . Generally, inquiry must be made of the spirit and purpose of the legislation, which requires examination of the statutory context of the provision as well as its legislative history” (73 NY2d at 403 [citations and internal quotation marks omitted]).

Further, “[w]here, as here, the Legislature has spoken to an issue simultaneously in separate laws, sometimes cross-referencing them, and has repeatedly adopted and amended pertinent provisions piecemeal throughout decades,” “no one clause isolated from its statutory setting could be determinative of a lack of ambiguity or of legislative intent as to the issue presented” (*id.* at 403-404). With this cautionary guidance in mind, I turn to the question before us: whether a statutory framework designed to cut costs evinces a legislative intent to extend the child care leave credit to tier 3 City police officers.

III.

Three main statutory provisions govern the NYCPFF. Title 13, chapter 2, subchapter 2 of the Administrative Code fully governs the benefits and obligations of tier 1 police officers who are members of the NYCPFF (Administrative Code § 13-214 [27] [defining a tier 1 member as “(a) member whose benefits (other than a supplemental retirement allowance) are prescribed by this subchapter and who is not subject to the provisions of article eleven, article fourteen or article fifteen of the retirement and social security law”]). Tier 2 police officers, defined as officers joining the force between July 1, 1973, and July 1, 2009, are subject to Retirement and Social Security

Law article 11 as well as the provisions of the Administrative Code (*see* Retirement and Social Security Law §§ 440 [c]; 440-451). Tier 3 police officers, defined as officers joining the force after July 1, 2009, are subject to Retirement and Social Security Law article 14 (*see* Retirement and Social Security Law §§ 440 [c]; 500 [a]; 500-520). The parties dispute the applicability of the Administrative Code to officers in tier 3.

While Administrative Code § 13-218 generally discusses service credits and their applicability for police officers, Retirement and Social Security Law articles 11 and 14 also have general provisions on service credits. In particular, Retirement and Social Security Law § 513 discusses when and how service may be credited for employees and largely parallels Retirement and Social Security Law § 446 (*compare* Retirement and Social Security Law § 513, *with* Retirement and Social Security Law § 446). Additionally, Retirement and Social Security Law § 501 provides two definitions for “credited” and “creditable” service. “Credited service” is defined as “service which has been credited to a member pursuant to section [513] or which was credited to such member in a public retirement system of the state before such member became subject to this article and which is allowable as previous service pursuant to section [513]” (Retirement and Social Security Law § 501 [3]). “Creditable service” is defined as “service which qualifies to be counted as credited service pursuant to section [513]” (Retirement and Social Security Law § 501 [4]). However, whereas article 14 defines credited and creditable service solely by reference to Retirement and Social Security Law § 513, Retirement and Social Security Law article 11’s “Definitions” section does not provide a definition for credited and creditable service (*see* Retirement and Social Security Law § 450), indicating that the permissible forms of creditable service for tier 2 members under Retirement and Social Security Law article 11 are not confined to the Retirement and Social Security Law. More to the point, Retirement and Social Security Law § 513, which governs credit for service, does not provide a child care leave credit for police officers in tier 3.

Retirement and Social Security Law § 519 (1) provides that

“[a]ny other provision of this chapter, of the state education law or of the administrative code of the city of New York, or rules and regulations thereunder, relating to the reemployment of retired mem-

bers, transfer of members and reserves between systems and procedural matters shall apply to members covered under this article during the duration thereof unless inconsistent herewith.”

Retirement and Social Security Law § 519 (1), then, limits the interaction between article 14 and the Administrative Code by specifically cabining the applicability of the Administrative Code to those enumerated subjects, i.e., reemployment of retired members, transfer of members and reserves between systems, and procedural matters. This Court has “consistently interpreted statutes . . . under the maxim *expressio unius est exclusio alterius* such that ‘where a law expressly describes a particular . . . thing . . . to which it shall apply, an irrefutable inference must be drawn that what is omitted or not included was intended to be omitted or excluded’ ” (*People v Page*, 35 NY3d 199, 206-207 [2020], quoting McKinney’s Cons Laws of NY, Book 1, Statutes § 240). The fact that Retirement and Social Security Law § 519 (1) excludes substantive benefits from its list of Administrative Code provisions that apply to article 14 is therefore an “irrefutable” sign that the legislature did not intend for the substantive benefits provided under the Administrative Code to apply to tier 3 employees.

Administrative Code § 13-218 (h), enacted in 2000, provides a child care leave credit to police officers:

“Notwithstanding the provisions of subdivision c of this section, any member who is absent without pay for child care le[a]ve of absence pursuant to regulations of the New York city police department shall be eligible for credit for such period of child care leave provided such member files a claim for such service credit with the pension fund by December thirty-first, two thousand one or within ninety days following termination of the child care leave, whichever is later, and contributes to the pension fund an amount which such member would have contributed during the period of such child care leave, together with interest thereon. Service credit provided pursuant to this subdivision shall not exceed one year of credit for each period of authorized child care leave. In the event there is a conflict between the provisions of this subdivision and the provisions of any other law or code to the contrary, the provisions of this subdivision shall govern.”

“Membership” of the NYCPPF is defined as, “all persons in city-service, as defined in this subchapter, in positions in the competitive class of the civil service, who shall serve probationary periods, or who shall receive permanent appointments in the police force after the time when this section shall take effect” (Administrative Code § 13-215 [a] [1]; *see also* § 13-214 [3] [“ ‘Member’ shall mean any person included in the membership of the pension fund as provided in section 13-215 of this subchapter”]). “City service” is defined as “service in the police force in the department” (Administrative Code § 13-214 [3]). Section 13-218 (h), which permits out-of-service time spent on child care leave to be credited, therefore conflicts with Retirement and Social Security Law § 513 (a) (2), which prohibits members from receiving “retirement credit for any day that [they are] not on the payroll of the state, a political subdivision thereof, or a participating employer.” Moreover, and critically, no police officers were classified in tier 3 when the legislature enacted Administrative Code § 13-218 (h) as a result of more than two decades of legislative action continuing to place newly hired police officers in tier 2—a practice that continued for nearly a decade after the enactment of section 13-218 (h). Thus, contrary to the majority’s view, there is ambiguity as to whether “any member” as used in the Administrative Code even applies to tier 3 police officers when Retirement and Social Security Law article 14 prohibits such credit and does not adopt the exception in section 13-218 (h).

Articles 11 and 14 of the Retirement and Social Security Law and Administrative Code § 13-218 (h) can be harmonized, however, by contextualizing these various statutory provisions against the backdrop of the intended purpose of tier 3: reduction of the ballooning costs associated with retirement benefits for public employees by eliminating the costly special treatment of selected groups. The legislature’s intent is clear from the structure of the pension scheme, wherein section 13-218 (h)’s more generous benefits apply only to tier 1 and 2 employees (whose numbers are only decreasing over time), and not to new hires who join as tier 3. That interpretation is further supported by legislative enactments of the same child care credit benefit for correction officers.

In 2004, the legislature enacted Administrative Code § 13-107 (k), which provides:

“Notwithstanding the provisions of subdivision c of this section, any correction member who is absent

without pay for child care leave of absence pursuant to regulations of the New York city department of correction shall be eligible for credit for such period of child care leave provided such member files a claim for such service credit with the retirement system by December thirty-first, two thousand four or within ninety days following termination of the child care leave, whichever is later, and contributes to the retirement system an amount which such member would have contributed during the period of such child care leave, together with interest thereon. Service credit provided pursuant to this subdivision shall not exceed one year of credit for each period of authorized child care leave. In the event there is a conflict between the provisions of this subdivision and the provisions of any other law or code to the contrary, the provisions of this subdivision shall govern.”

By the next session, in 2005, the legislature enacted Retirement and Social Security Law § 513 (h), which also provides the same child care credit to tier 3 correction officers with a limitation:

“Notwithstanding any other provision of this section, any general member in the uniformed correction force of the New York city department of correction who is absent without pay for a child care leave of absence pursuant to regulations of the New York city department of correction shall be eligible for credit for such period of child care leave provided such member files a claim for such service credit with the retirement system by December thirty-first, two thousand five or within ninety days of the termination of the child care leave, whichever is later, and contributes to the retirement system an amount which such member would have contributed during the period of such child care leave, together with interest thereon. Service credit provided pursuant to this subdivision shall not exceed one year of credit for each period of authorized child care leave. In the event there is a conflict between the provisions of this subdivision and the provisions of any other law or code to the contrary, the provisions of this subdivision shall govern, provided, however, that the provisions of

this subdivision shall not apply to a member of the uniformed force of the New York city department of correction who is a New York city uniformed correction/sanitation revised plan member.”

There would have been no need to amend the Retirement and Social Security Law if, as the majority concludes, the Administrative Code sets the benefit for all employees irrespective of tier.

The legislative history is particularly illuminating on this point. According to the sponsor’s memorandum, the reason for the 2005 addition to Retirement and Social Security Law § 513 was to expand the child care credit to tier 3 correction officers whose coverage had been “accidentally omitted from the original bill,” which amended only the Administrative Code and therefore only covered officers in tiers 1 and 2 (Sponsor’s Mem, Bill Jacket, L 2005, ch 477 at 3).

In 2012, the legislature created “tier 3 revised,” which applied to police officers as well as correction officers entering service after April 1, 2012 (L 2012, ch 18, § 5). This bill simultaneously amended subdivision (h) of Retirement and Social Security Law § 513 and added the following language: “the provisions of this subdivision shall not apply to a member of the uniformed force of the New York city department of correction who is a New York city uniformed correction/sanitation revised plan member” (Retirement and Social Security Law § 513 [h]; L 2012, ch 18, § 21). Thus, just three years after the Governor’s previous veto of the legislative extension of tier 2, the legislature amended article 14 and eliminated the child care credit benefit for correction officers “in order to equate their benefits with [t]ier 3 police/fire benefits” (Mem in Support, Bill Jacket, L 2012, ch 18 at 10). This amendment to the Retirement and Social Security Law reflects the legislature’s understanding that, to alter the benefits afforded to tier 3 correction officers, they were required to amend the Retirement and Social Security Law and *not* the Administrative Code.*

* The majority states that “the views that a member or certain members of the State Senate expressed with respect to [the Child Care Credit Law of 2000] are of minimal value” (majority op at 526 n 4). Not so. In *Caprio v New York State Dept. of Taxation & Fin.*, we stated that

“[w]hile ‘[t]he Legislature has no power to declare, retroactively, that an existing statute shall receive a given construction when such a construction is contrary to that which the statute would ordinarily have received’ . . . this Court has long stated that,

(n. cont’d)

IV.

The majority adopts a restrictive interpretation of the language in section 13-218, without consideration of the statutory context or the legislative history relevant to the State's integrated public pension system. That approach contravenes *Matter of Sutka's* interpretive methodology and ignores that "[t]ier 3 was a comprehensive retirement program designed to 'provid[e] uniform benefits for all public employees and eliminat[e] the costly special treatment of selected groups . . . inherent in the previous program'" (*Lynch*, 23 NY3d at 765 quoting Mem from Robert J. Morgado [Secretary to the Governor] to Judah Gribetz [Governor's Counsel], Bill Jacket, L 1976, ch 890). Tier 3 was intended to rein in costs, not to extend benefits. But as a result of the majority's holding, the credit allowance is available to tier 3 police officers, even though the legislature expressly adopted a system intended to reduce benefits for those entering service in this tier.

As is oft the case, the legislative scheme represents difficult political and fiscal choices, choices left to the members of our State's legislature, not the courts. I dissent.

Judges STEIN, GARCIA, WILSON and FEINMAN concur; Judge RIVERA dissents and votes to affirm in an opinion in which Chief Judge DiFIORE concurs.

Order reversed, with costs, and judgment of Supreme Court, New York County, reinstated.

'when the Legislature does tell us what it meant by a previous act, its subsequent statement of earlier intent is entitled to very great weight'" (25 NY3d 744, 755 [2015], quoting *Matter of Roosevelt Raceway v Monaghan*, 9 NY2d 293, 304 [1961], and *Matter of Chatlos v McGoldrick*, 302 NY 380, 388 [1951]).

As in *Caprio*, "we cannot say that the legislature has construed the statute in a manner that is contrary to the construction it would ordinarily receive" and, therefore, "due consideration" is owed to the "underlying intent of the" legislature in enacting the prior statute (25 NY3d at 755).

[159 NE3d 228, 134 NYS3d 312]

MARSHA HEWITT, Appellant, v PALMER VETERINARY CLINIC, PC,
Respondent, et al., Defendant.

Argued September 10, 2020; decided October 22, 2020

SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Third Judicial Department, entered December 6, 2018. The Appellate Division affirmed an order of the Supreme Court, Clinton County (John T. Ellis, J.), entered October 18, 2017, which had (1) granted defendant Palmer Veterinary Clinic, PC's motion for summary judgment dismissing the complaint against it; and (2) denied plaintiff's motion for (a) partial summary judgment on the issue of liability; and (b) partial reconsideration of a prior order of that Supreme Court, entered September 25, 2017. The appeal to the Appellate Division brought up for review the order of that Supreme Court entered September 25, 2017, which had, among other things, struck certain allegations from plaintiff's supplemental bills of particulars and denied plaintiff's motion to strike defendant's affirmative defense of apportionment.

Hewitt v Palmer Veterinary Clinic, PC, 167 AD3d 1120, modified.

HEADNOTES

Animals — Knowledge of Vicious Propensity — Liability of Veterinary Clinic — Notice Not Required

1. The vicious propensity notice rule, which has been applied to animal owners who are held to a strict liability standard as well as to certain non-pet owners under a negligence standard, did not apply to defendant veterinary clinic in an action to recover damages brought by plaintiff, a client in defendant's waiting room who was injured by another client's dog, which had just received medical treatment at the clinic. Defendant, whose agents had specialized knowledge relating to animal behavior and the treatment of animals who may be ill, injured, in pain, or otherwise distressed, was uniquely well-equipped to anticipate and guard against the risk of aggressive animal behavior that might occur in its practices—an environment over which it had substantial control, and which potentially might be designed to mitigate this risk. Here, a veterinarian introduced the dog into a purportedly crowded waiting room, where the dog was in close proximity to strangers and their pets—allegedly creating a volatile environment for an animal that had just undergone a medical procedure and may have been in pain. While defendant would not be subject to the same strict liability as the owner of a domestic animal, under the circumstances presented here a negligence claim could lie despite defendant's lack of notice of the dog's vicious propensities.

Pleading — Striking out Matter Contained in Pleading — Claim Raised in Supplemental Bill of Particulars

2. In an action to recover damages brought by plaintiff, a client at defendant veterinary clinic who was injured by another client's dog while in defendant's waiting room, the striking of the allegations in plaintiff's supplemental bills of particulars that defendant was negligent based on a purported failure to use anesthesia or otherwise follow the standard of care in its treatment of the dog did not constitute an abuse of discretion. Those allegations, raised for the first time several years after commencement of the action, introduced a new theory of liability into the case relating to defendant's medical treatment of the dog and the standard of care owed to the patient dog and its owner, as compared with the duty that defendant owed to plaintiff.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d Animals §§ 68–71, 76, 98; AM JUR 2d Pleading § 691.

CARMODY-WAIT 2d Bills of Particulars and Copies of Accounts §§ 36:85, 36:86, 36:88, 36:89.

NY JUR 2d Animals §§ 196, 198; NY JUR 2d Pleading §§ 324, 325.

SIEGEL, NY PRAC § 240.

ANNOTATION REFERENCE

See ALR Index under Dogs; Veterinarians.

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Query: veterinar! & vicious /2 propensity /s negligen!

POINTS OF COUNSEL

Mark Schneider, Plattsburgh, for appellant. I. The Court of Appeals consistently and categorically holds that an *owner* of a dog cannot be held liable in negligence for injuries caused by that dog. However, the Court of Appeals has never held that a *veterinarian* cannot be held liable for *his or her own negligence* when a dog injures a human customer at his or her clinic. Based upon the law, the Court of Appeals should not extend the harsh *Collier/Bard* rule (*Collier v Zambito*, 1 NY3d 444 [2004]; *Bard v Jahnke*, 6 NY3d 592 [2006]) to injuries caused by the negligence of veterinarians and their failure to provide a safe waiting area. (*Bernstein v Penny Whistle Toys, Inc.*, 40 AD3d 224, 10 NY3d 787; *Bard v Jahnke*, 6 NY3d 592; *Moorehead v Alexander*, 28 AD3d 361; *Williams v City of New York*,

306 AD2d 203; *Schwartz v Armand Erpf Estate*, 255 AD2d 35, 94 NY2d 796; *Strunk v Zoltanski*, 62 NY2d 572; *Basso v Miller*, 40 NY2d 233; *Powers v 31 E. 31, LLC*, 24 NY3d 84; *Davis v South Nassau Communities Hosp.*, 26 NY3d 563; *Franks v G & H Real Estate Holding Corp.*, 16 AD3d 619.) II. It is against good public policy to exempt veterinarians from liability for their own negligence. (*Matter of Sprinzen [Nomberg]*, 46 NY2d 623.) III. The Court of Appeals should grant plaintiff's cross motion for partial summary judgment because there is *not* substantial evidence that defendant Palmer Veterinary Clinic, PC was *not* negligent or did maintain its property in a safe condition. (*Winegrad v New York Univ. Med. Ctr.*, 64 NY2d 851; *Olinsky-Paul v Jaffe*, 105 AD3d 1181; *LaFountain v Champlain Val. Physicians Hosp. Med. Ctr.*, 97 AD3d 1060; *Assenza v Horowitz*, 26 Misc 3d 356.) IV. The trial court erred in holding that defendant Palmer Veterinary Clinic, PC's failure to use due care in treating the dog sounded in veterinary malpractice rather than negligence. (*Scott v Uljanov*, 74 NY2d 673; *Bleiler v Bodnar*, 65 NY2d 65; *Estate of Bell v WSNCHS N., Inc.*, 153 AD3d 498; *Giordano v Scherz*, 99 AD3d 968; *Miller v Sullivan*, 214 AD2d 822; *Spatafora v St. John's Episcopal Hosp.*, 209 AD2d 608; *Kenny v Lesser*, 281 AD2d 853.) V. The Third Department erred by not striking defendant Palmer Veterinary Clinic, PC's affirmative defense of contribution under CPLR article 16. (*Gallagher v St. Raymond's R.C. Church*, 21 NY2d 554; *Thomassen v J & K Diner*, 152 AD2d 421; *Richardson v Schwager Assoc.*, 249 AD2d 531; *Arabian v Benenson*, 284 AD2d 422; *Reynolds v Sead Dev. Group*, 257 AD2d 940; *June v Zikakis Chevrolet*, 199 AD2d 907; *Backiel v Citibank*, 299 AD2d 504; *Basso v Miller*, 40 NY2d 233; *Kleeman v Rheingold*, 81 NY2d 270; *Rangolan v County of Nassau*, 96 NY2d 42.)

Burke, Scolamiero & Hurd, LLP, Albany (*Judith Aumand* and *Peter Balouskas* of counsel), for respondent. I. Defendant Palmer Veterinary Clinic, PC cannot be held liable for plaintiff's alleged injuries where plaintiff is not maintaining a strict liability claim and there was no notice of the dog's vicious propensities. (*Doerr v Goldsmith*, 25 NY3d 1114; *Hastings v Sauve*, 21 NY3d 122; *Petrone v Fernandez*, 12 NY3d 546; *Easley v Animal Med. Ctr.*, 161 AD3d 525, 32 NY3d 906; *Christian v Petco Animal Supplies Stores, Inc.*, 54 AD3d 707; *Claps v Animal Haven, Inc.*, 34 AD3d 715; *Sareyani-Coffey v McAleer*, 112 AD3d 907; *Hargro v Ross*, 134 AD3d 1461; *Bernstein v Penny Whistle Toys, Inc.*, 40 AD3d 224, 10 NY3d 787; *Collier v Zambito*, 1 NY3d 444.) II. The strict liability rule is grounded

upon sound public policy firmly rooted in precedent and functions as a common notice requirement. (*Kennet v Sossnitz*, 260 App Div 759, 286 NY 623; *Brown v Willard*, 278 App Div 728, 303 NY 727; *Bloomer v Shauger*, 21 NY3d 917; *Smith v Reilly*, 17 NY3d 895; *Petrone v Fernandez*, 12 NY3d 546; *Bernstein v Penny Whistle Toys, Inc.*, 10 NY3d 787; *Doerr v Goldsmith*, 25 NY3d 1114; *Bard v Jahnke*, 6 NY3d 592; *Bovsun v Sanperi*, 61 NY2d 219.) III. The Court of Appeals should affirm the denial of plaintiff's cross motion for partial summary judgment where defendant Palmer Veterinary Clinic, PC did not have notice of a vicious propensity and plaintiff failed to meet her burden even under an impermissible cause of action for negligence. (*Diaz v New York Downtown Hosp.*, 99 NY2d 542; *Martin v Savage*, 299 AD2d 903; *Ruzycki v Baker*, 301 AD2d 48.) IV. Plaintiff's motion to amend her pleadings to assert negligence was properly denied where negligence is not a recognized cause of action in dog bite cases and was attempted to be raised for the first time after the statute of limitations had run. (*Calamari v Panos*, 131 AD3d 1088; *Robinson v New York City Hous. Auth.*, 89 AD3d 497; *Hyacinthe v Edwards*, 10 AD3d 629.) V. Plaintiff's motion to strike defendant Palmer Veterinary Clinic, PC's CPLR article 16 affirmative defense was properly denied as a matter of law and must be affirmed. (*Smith v Sarkisian*, 63 AD2d 780; *Walter v LeCesse Corp.*, 54 AD2d 1136; *Boehm Dev. Corp. v State of New York*, 42 AD2d 1018; *Saturno v Yanow*, 50 AD2d 1097; *Dougherty v Lupe Constr. Co.*, 98 AD2d 868; *Kopel v Chiulli*, 175 AD2d 102; *Alexander v Seligman*, 131 AD2d 528; *Reape v City of New York*, 272 AD2d 533; *Schwab v Russell*, 231 AD2d 820; *Volpe v Good Samaritan Hosp.*, 213 AD2d 398.)

New York State Trial Lawyers Association, New York City (*Michele S. Mirman* of counsel), for New York State Trial Lawyers Association, amicus curiae. I. The strict liability rule of *Bard v Jahnke* (6 NY3d 592 [2006]) is the minority rule nationwide. (*Doerr v Goldsmith*, 25 NY3d 1114; *Petrone v Fernandez*, 12 NY3d 546.) II. No public policy rule supports the extension of *Bard v Jahnke* (6 NY3d 592 [2006]) to property owners, who are obligated to reasonably inspect and maintain their property. (*Hargro v Ross*, 134 AD3d 1461; *Bernstein v Penny Whistle Toys, Inc.*, 40 AD3d 224, 10 NY3d 787; *Strunk v Zoltanski*, 62 NY2d 572.)

Powers & Santola, LLP, Albany (*Michael J. Hutter* of counsel), and *New York State Academy of Trial Lawyers*, Albany (*Angélique Moreno* of counsel), for New York State Academy of

Trial Lawyers, amicus curiae. I. Plaintiff has established a prima facie negligence claim against defendant Palmer Veterinary Clinic, PC, alleging a breach by defendant of its duty to keep its premises safe for the plaintiff from foreseeable harm caused by the pit bull dog. (*D'Amico v Christie*, 71 NY2d 76; *Basso v Miller*, 40 NY2d 233; *Scurti v City of New York*, 40 NY2d 433; *Salisbury v Wal-Mart Stores*, 255 AD2d 95; *Thomassen v J & K Diner*, 152 AD2d 421, 76 NY2d 771; *Gallagher v St. Raymond's R.C. Church*, 21 NY2d 554; *Ford v Grand Union Co.*, 268 NY 243; *Waldon v Little Flower Children's Serv.*, 1 NY3d 612, 2 NY3d 794; *Maheshwari v City of New York*, 2 NY3d 288; *Pink v Rome Youth Hockey Assn., Inc.*, 28 NY3d 994.) II. While negligence liability may not be imposed upon the owner of a dog or domestic animal when the dog or domestic animal attacks or bites a person, and the victim of the attack or bite is limited to a strict liability claim based upon knowledge of the animal's vicious propensity, there is no principled basis to similarly hold as to the liability of the owner of premises upon which the attack or bite occurred. (*Bard v Jahnke*, 6 NY3d 592; *Doerr v Goldsmith*, 25 NY3d 1114; *Easley v Animal Med. Ctr.*, 161 AD3d 525; *Christian v Petco Animal Supplies Stores, Inc.*, 54 AD3d 707; *Hewitt v Palmer Veterinary Clinic, PC*, 167 AD3d 1120; *Hargro v Ross*, 134 AD3d 1461; *Hastings v Sauve*, 21 NY3d 122; *Bernstein v Penny Whistle Toys, Inc.*, 40 AD3d 224.)

James P. O'Connor, Defense Association of New York, Inc., Jericho (*Andrew Zajac, Rona L. Platt, Brendan T. Fitzpatrick and Jonathan Uejio* of counsel), for the Defense Association of New York, Inc., amicus curiae. The Appellate Division's decision is solidly supported by sound and longstanding precedent; that being the case, its determination should be affirmed. (*Arbegast v Board of Educ. of S. New Berlin Cent. School*, 65 NY2d 161; *Hastings v Sauve*, 21 NY3d 122; *Molloy v Starin*, 191 NY 21; *Lynch v McNally*, 73 NY 347; *Perrotta v Picciano*, 186 App Div 781; *Hosmer v Carney*, 228 NY 73; *Dickson v McCoy*, 39 NY 400; *Benoit v Troy & Lansingburgh R.R. Co.*, 154 NY 223; *Hahnke v Friederich*, 140 NY 224; *Rider v White*, 65 NY 54.)

OPINION OF THE COURT

STEIN, J.

Defendant Palmer Veterinary Clinic, PC treated Vanilla, a dog, for a paw injury at its clinic. That same day, plaintiff

Marsha Hewitt brought her cat to the clinic for an examination. As plaintiff waited in the reception area, a veterinarian returned Vanilla to her owner in the waiting room; the dog had just undergone a medical procedure to remove a broken toenail. At some point after the veterinarian handed Vanilla's leash back to her owner, Vanilla saw plaintiff's cat in its carrier, slipped her collar and—in an apparent attempt to reach the cat—jumped at plaintiff from behind, grabbing her ponytail.

Several months later, plaintiff commenced the instant action against Palmer, alleging that she suffered injuries as a result of the incident.¹ As relevant here, the complaint alleged that Palmer had a duty to provide a safe waiting room, that Palmer breached that duty by failing to exercise due care and by bringing an “agitated, distressed” dog into the waiting area, and that Palmer knew Vanilla had vicious propensities and was in an agitated and aggressive state. Palmer answered, generally denying the allegations and asserting various affirmative defenses, including that the clinic was entitled to have any liability apportioned between itself and the dog's owner under CPLR article 16.

Plaintiff subsequently filed supplemental bills of particulars, wherein she alleged that the clinic was negligent in bringing an agitated and aggressive dog into the waiting room and for failing to adjust the dog's collar to prevent it from getting loose. She also alleged—for the first time—that Palmer was negligent “in not giving an effective pain medication and/or anesthesia to the dog” and “in not following the standard of care [for] dogs after surgery.” Thereafter, plaintiff moved to strike Palmer's CPLR article 16 defense, and Palmer cross-moved to strike plaintiff's supplemental bills of particulars.

Supreme Court agreed with Palmer that plaintiff's allegations regarding the lack of anesthesia and the alleged failure to follow the accepted standard of care for surgery “expand[ed] the theory for recovery based on the medical care that Palmer VC rendered to the dog, for which there was no notice in the [c]omplaint.” Thus, Supreme Court struck those portions of the supplemental bills of particulars and denied the remainder of Palmer's motion. In addition, Supreme Court denied plaintiff's request to strike Palmer's apportionment defense.

1. The dog's owner originally also was named as a defendant in the action, but the parties stipulated to discontinue the action against the owner, without prejudice to the clinic's apportionment defense.

Palmer eventually moved for summary judgment dismissing plaintiff's complaint in its entirety, asserting that it had no prior knowledge of Vanilla's vicious propensities and that such knowledge was a condition predicate to its liability. In support of its motion, Palmer proffered excerpts from the depositions of the veterinarian that treated Vanilla, the clinic's manager, the dog's owner, and plaintiff herself. Palmer asserted that these materials demonstrated that it lacked any notice of Vanilla's alleged vicious propensities.

Plaintiff opposed Palmer's motion for summary judgment and cross-moved for partial summary judgment, arguing that Palmer could be held liable in negligence despite a lack of knowledge of Vanilla's vicious propensities. In support of her motion, plaintiff submitted an affidavit from a veterinary behaviorist and anesthesiologist, who opined that the incident was foreseeable and avoidable through various measures and that Palmer failed to use due care to prevent plaintiff's injury. In response, Palmer submitted an affidavit by its veterinarian majority owner, who asserted that Vanilla's treatment and discharge did not deviate from the accepted standard of care.

Supreme Court granted Palmer's motion for summary judgment, reasoning that Palmer's liability was contingent upon it having had notice of vicious propensities in the same manner as that of a dog owner. Upon plaintiff's appeal, the Appellate Division affirmed, with one Justice concurring in part and dissenting in part (167 AD3d 1120 [3d Dept 2018]). The Appellate Division concluded that Palmer could not be held liable without notice of an animal's vicious propensities, relying on our precedent dismissing claims against animal owners in the absence of proof of such notice (*see generally Doerr v Goldsmith*, 25 NY3d 1114, 1116 [2015]; *Bard v Jahnke*, 6 NY3d 592, 599 [2006]; *Collier v Zambito*, 1 NY3d 444, 446 [2004]). The Appellate Division also rejected plaintiff's additional claims that the court erred by striking certain allegations from her bills of particulars and declining to strike Palmer's apportionment defense. We granted plaintiff leave to appeal, and now modify the order below by denying Palmer's motion for summary judgment.

Plaintiff does not dispute that, under existing precedent, an owner of a dog may be liable for injuries caused by that animal only when the owner had or should have had knowledge of the animal's vicious propensities (*see Collier*, 1 NY3d at 446). "Once such knowledge is established, an owner faces strict liability

for the harm the animal causes as a result of those propensities” (*id.* at 448). We have explained that an “owner’s liability is determined solely by application of the [vicious propensity] rule,” declining to permit a parallel negligence claim in such context (*Bard*, 6 NY3d at 599; see *Petrone v Fernandez*, 12 NY3d 546, 550 [2009]). Neither party in this case has asked us to overrule *Bard*, nor is that line of precedent concerning animal owners directly implicated here.² Plaintiff argues, however, that this rule does not—and should not—apply to Palmer, a veterinary clinic. We agree.

The vicious propensity notice rule has been applied to animal owners who are held to a strict liability standard, as well as to certain non-pet owners—such as landlords who rent to pet owners—under a negligence standard (see *Strunk v Zoltanski*, 62 NY2d 572 [1984]). However, we have recognized that other competing policies and contemporary social expectations may be at play in certain instances where domestic animals cause injuries. For example, we held that the owner of a farm animal “may be liable under ordinary tort-law principles” when that farm animal is allowed to stray from the property on which it is kept (*Hastings v Sauve*, 21 NY3d 122, 125-126 [2013]).

It is undisputed that Palmer owed a duty of care to plaintiff—a client in its waiting room. Palmer is a veterinary clinic, whose agents have specialized knowledge relating to animal behavior and the treatment of animals who may be ill, injured, in pain, or otherwise distressed. An animal in a veterinary office may experience various stressors—in addition to illness or pain—including the potential absence of its owner and exposure to unfamiliar people, animals, and surroundings. Moreover, veterinarians or other agents of a veterinary practice may—either unavoidably in the course of treatment, or otherwise—create circumstances that give rise to a substantial risk of aggressive behavior. Indeed, here, a veterinarian introduced Vanilla into a purportedly crowded waiting room, where the dog was in close proximity to strangers and their pets—allegedly creating a volatile environment for an animal that had just undergone a medical procedure and may have been in pain. Palmer is in the business of treating animals and

2. We need not comment on the concurrence’s description of *Bard v Jahnke* (6 NY3d 592, 599 [2006]) or other precedent relating to the liability of domestic animal owners because, as our concurring colleague acknowledges, this appeal does not involve a dog owner and plaintiff does not seek to hold Palmer strictly liable.

employs veterinarians equipped with specialized knowledge and experience concerning animal behavior—who, in turn, may be aware of, or may create, stressors giving rise to a substantial risk of aggressive behavior. With this knowledge, veterinary clinics are uniquely well-equipped to anticipate and guard against the risk of aggressive animal behavior that may occur in their practices—an environment over which they have substantial control, and which potentially may be designed to mitigate this risk.

[1] Therefore, we conclude that Palmer does not need the protection afforded by the vicious propensities notice requirement, and the absence of such notice here does not warrant dismissal of plaintiff's claim. To be sure, "[w]e do not intend to suggest that [Palmer] would be subject to the same strict liability" as the owner of a domestic animal (*Strunk*, 62 NY2d at 575-576). However, we are satisfied that, under the circumstances presented here, a negligence claim may lie despite Palmer's lack of notice of Vanilla's vicious propensities. Furthermore, viewing the record in the light most favorable to plaintiff, as we must (*see Vega v Restani Constr. Corp.*, 18 NY3d 499, 503 [2012]), questions of fact exist as to whether the alleged injury to plaintiff was foreseeable, and whether Palmer took reasonable steps to discharge its duty of care. Thus, neither party was entitled to summary judgment.

[2] Addressing plaintiff's remaining arguments, we are unpersuaded that the courts erred by striking those portions of plaintiff's supplemental bills of particulars alleging that Palmer was negligent based on a purported failure to use anesthesia or otherwise follow the standard of care in its treatment of Vanilla. Those allegations, raised for the first time several years after commencement of the action, introduced a new theory of liability into the case relating to Palmer's medical treatment of Vanilla and the standard of care owed to the patient dog and its owner, as compared with the duty that Palmer owed to plaintiff. Palmer was not on notice of these claims based upon the original allegations of the complaint and, on this record, the striking of such allegations did not constitute an abuse of discretion (*cf. Davis v South Nassau Communities Hosp.*, 26 NY3d 563, 580 [2015]; *see* CPLR 3043 [b], [c]; *Schonbrun v DeLuke*, 160 AD3d 1100, 1101 [3d Dept 2018]; *Dalrymple v Koka*, 295 AD2d 469, 469 [2d Dept 2002]). Finally, plaintiff's argument that Palmer's apportionment defense should have been stricken lacks merit (*see* CPLR 1601 [1]; *Rangolan v County of Nassau*, 96 NY2d 42, 45 [2001]).

Accordingly, the order of the Appellate Division should be modified, without costs, by denying defendant's motion for summary judgment and, as so modified, affirmed.

WILSON, J. (concurring in result). From time immemorial, humans have domesticated animals. Dogs may have domesticated themselves (and in the process, helped us humans to domesticate ourselves) (see Darcy F. Morey & Rujana Jeger, *From Wolf to Dog: Late Pleistocene Ecological Dynamics, Altered Trophic Strategies, and Shifting Human Perceptions*, 29 *Historical Biology* 895 [2017]). Sometimes domestic animals injure humans. For well over a century, New York allowed persons injured by a domestic animal to sue the animal's owner under either an ordinary negligence theory or a strict liability theory (see *Dickson v McCoy*, 39 NY 400, 401 [1868]; *Benoit v Troy & Lansingburgh R.R. Co.*, 154 NY 223, 227 [1897]; *Hyland v Cobb*, 252 NY 325, 326-327 [1929]). The injured party had a choice. Under rules of ordinary negligence, the victim could seek to prove that the defendant had a duty and failed to use due care in discharging that duty, which proximately caused the victim's injury. Animal owners presumptively had a duty to control their animals, but others might also have such a duty when they "created the very risk . . . which operated to injure [the] plaintiff" (*Strunk v Zoltanski*, 62 NY2d 572, 575 [1984]; see also *Molloy v Starin*, 191 NY 21, 27 [1908] [common carrier liable for injuries caused by animals it was transporting]). Alternatively, if the owner knew that a domestic animal had vicious propensities, the victim could hold the owner strictly liable—that is, the owner of a vicious animal could not escape liability by showing that the owner had taken due care.

That dual approach made sense. Persons negligently injured by a factory machine, car, bicycle, horse or dog could recover without regard to whether the injury was caused by human, machine or animal, so long as duty, negligence and proximate cause were proved. However, if a domestic animal known to have vicious propensities hurt someone, the entire risk was placed on the owner, evidencing a policy against the harboring of vicious animals. That rule persisted until *Bard v Jahnke* (6 NY3d 592 [2006]), in which we held that owners of domestic animals could not be held liable for injuries caused by their animals unless the plaintiff could prove that the owner knew the animal had vicious propensities—that is, under a strict liability theory (*id.* at 599). *Bard*, however, did not disturb the viability of settled law allowing persons injured by animals to

assert ordinary negligence claims against persons other than the animal's owner (see *Benoit*, 154 NY at 228; *Molloy*, 191 NY at 27; *Strunk*, 62 NY2d at 575-576).

I concur with the majority's holding that Ms. Hewitt may proceed against Palmer Veterinary Clinic in negligence. I further agree with the majority's holding that this case does not implicate *Bard*'s rule (subjecting animal owners to strict liability) because Palmer was not the owner of Vanilla, the dog who injured Ms. Hewitt. Because the record presents disputed issues of fact, I further agree with the majority that neither party is entitled to summary judgment. I concur separately to express why prudence and longstanding precedent dictate that *Bard*'s strict liability rule—a rule that has rendered New York an outlier and confounded common sense and fairness in application—should not be extended to persons who are not the owner of the domestic animal causing injury.¹ I note that neither party has asked us to overturn *Bard*—understandably so because its rule does not apply to the facts of this case.

New York has long allowed negligence actions for injuries caused by domestic animals. In *Dickson v McCoy* (39 NY 400 [1868]), we affirmed a damage award for a child injured by a renegade horse. Judge Dwight held that even though

“there is no proof in the case . . . that this horse was vicious and accustomed to attack and injure mankind . . . I regard the allegation as unnecessary, and the absence of proof on the point as not affecting the right to recover. . . . It is not necessary that a horse should be vicious to make the owner responsible for injury done by him through the owner's negligence” (*id.* at 401).

Judge Grover believed that the trial court erred in refusing to charge the jury that there was no evidence that the horse had any vicious propensity, “which required the defendant to exert

1. As the Appellate Division observed in the instant case, *Bard*'s “strict liability rule has not escaped criticism” in our Court (*Hewitt v Palmer Veterinary Clinic, PC*, 167 AD3d 1120, 1121 [3d Dept 2018], citing *Doerr v Goldsmith*, 25 NY3d 1114, 1154-1155 [Fahey, J., dissenting]; *Bard*, 6 NY3d at 601-602 [Smith, J., dissenting]). *Bard* deviated from over a century of precedent and made New York the lone outlier among the 50 states in holding that negligent animal owners may not be held liable unless they know of an animal's vicious propensity; no other state immunizes owners from liability for their own negligence (see *Doerr*, 25 NY3d at 1149 [Fahey, J., dissenting] [(“A) review of the law of other jurisdictions identifies New York as a unique outlier in its rejection of the Restatement (Second) of Torts § 518”).

any greater care over him than prudent men should exercise, in general, over horses kept in the same or a similar locality,” although he noted that “the jury may have based their verdict upon another ground” (*id.* at 402).² That other ground is negligence.

In *Benoit v Troy & Lansingburgh R.R. Co.* (154 NY 223 [1897]), a unanimous Court made clear that the common law allowed both a strict liability action when owners knew of their animals’ vicious propensities *and* an action for negligence if those owners did not take reasonable measures to prevent their animals from causing injuries (*id.* at 225 [Andrews, Ch. J.] [ordering a new trial where “neither (cause of action) was sustained by evidence”]). Likewise, in *Hyland v Cobb* (252 NY 325 [1929]), we stated that “negligence by an owner, even without knowledge concerning a domestic animal’s evil propensity, may create liability” (*id.* at 326-327). In addition, throughout the twentieth century, New York courts have held that persons other than an animal’s owner may be liable in negligence for injuries foreseeably caused by animals in their custody (*see Molloy v Starin*, 191 NY 21, 27 [1908] [holding that a plaintiff could proceed under a negligence theory against a common carrier that transported but did not own the trained bears that injured the plaintiff]). Notice of a domestic animal’s vicious propensity may also render non-pet owners who ordinarily have no duty, such as out-of-possession landlords, liable under a negligence standard (*see Strunk v Zoltanski*, 62 NY2d 572, 575-576 [1984] [“We do not intend to suggest that the landlord would be subject to the same strict liability to which a tenant as harbinger of the dog would be subject . . . but landlords as others must exercise reasonable care not to expose third persons to an unreasonable risk of harm”]).

When *Bard* stated that an injured party could bring a claim in strict liability only against owners of domestic animals, it radically altered New York’s settled law allowing negligence actions against animal owners. It shifted the burden away from owners of domestic animals, who previously had to comply with a duty of care, to parties injured by those animals. Though *Bard* correctly stated the rule, affirmed in *Collier v Zambito* (1

2. Judge Dwight and Judge Grover differed on whether the trial court properly denied the requested jury charge, but the Court was unanimous that the judgment for the plaintiff should be affirmed. Together, their opinions hold that a person injured by a runaway horse may pursue a negligence action against the horse’s owner.

NY3d 444 [2004]), that an owner who knows or has reason to know of an animal's dangerous propensities faces strict liability, it introduced the novel holding that strict liability was the *only* type of liability that an owner of a domestic animal may face. After *Bard*, unless owners had knowledge of their domestic animals' vicious propensities—established by prior acts, behaviors of the animal, or behaviors of its owner which lead to an inference of viciousness (see *Collier*, 1 NY3d at 447)—those owners were insulated from liability. However, *Bard* neither altered nor established any rule as to the liability of non-owners responsible for injury-causing animals.

We have since applied *Bard* to pet owners, with confounding results, but have also recognized that *Bard*'s rule does not apply to immunize others from liability for their own negligence. Since *Bard*, we have declined to extend its strict liability rule to the claim that the owner of a farm animal negligently allowed the animal to stray, causing injury (*Hastings v Sauve*, 21 NY3d 122 [2013]), and the claim that a third-party defendant negligently failed to protect a child from injury by another party's dog (*Bernstein v Penny Whistle Toys, Inc.*, 10 NY3d 787 [2008]).³ In *Hastings*, we distinguished *Bard* on the ground that unlike the animals in *Collier*, *Bard*, and *Bernstein*, the injury was not caused by any “aggressive or threatening behavior by” the wandering cow (*Hastings*, 21 NY3d at 125). Although in *Hastings* we rejected *Bard*'s strict liability rule because it would “immunize defendants who take little or no care to keep their livestock out of the roadway or off of other people's property” (*id.*), only two years later in *Doerr v Goldsmith* (25 NY3d 1114 [2015]) we applied the *Bard* rule to immunize negligent dog owners who deliberately commanded their large, well-trained docile dog to run across a roadway filled with runners, cyclists and rollerbladers, severely injuring a cyclist (*id.* at 1116). Thus, as the dissenters in *Bard* predicted, our application of *Bard*'s rule to animal owners has run “contrary to fairness and common sense,” compelling its “ero[sion]

3. In *Bernstein*, we held that the Appellate Division correctly disallowed the plaintiff's claim against the dog's owner and a toy store operated by the dog's owner “[s]ince there [was] no evidence . . . that the dog's owner had any knowledge of its vicious propensities” (*Bernstein*, 10 NY3d at 788). We provided a separate ground for dismissing the claim against the third party—the adult who had taken the infant plaintiff to the store and allowed the interaction with the dog—stating that “[p]laintiff's claims against third-party defendant were also properly dismissed, because there is no evidence that third-party defendant was negligent” (*id.*).

by ad hoc exceptions” (*Bard*, 6 NY3d at 599 [R.S. Smith, J., dissenting]). The inequity of the *Bard* rule in the context of pet-owner liability sharply cautions against extending that rule a whit.

Under our longstanding, settled precedent, undisturbed by *Bard*, a person injured by an animal may, under ordinary rules of negligence, sue a person other than the animal’s owner. Here, as the majority holds, Palmer unquestionably owes a duty of care to persons waiting in its clinic. Whether injury to such persons caused by an animal patient is foreseeable, and whether a clinic has taken reasonable precautions to discharge its duty are questions of fact—not issues that we can say as a matter of law always exist or always are absent. Because those factual questions are present and unresolved in the instant case, I agree with the majority that Supreme Court’s grant of summary judgment to Palmer was erroneous.⁴ Viewing the facts in the light most favorable to Ms. Hewitt (*see Vega v Res-*

4. I disagree with the majority’s conclusion that Supreme Court did not err in striking those portions of Ms. Hewitt’s supplemental bills of particulars alleging that Palmer was “negligent in not giving an effective pain medication and/or anesthesia to the dog,” and “in not following the standard of care of dogs after surgery.” Palmer failed to make a showing of prejudice or surprise sufficient to overcome CPLR 3025 (b)’s command that leave to amend or supplement a pleading be freely granted. For the most part, the allegations in Ms. Hewitt’s supplemental bill of particulars merely amplified prior statements in Ms. Hewitt’s complaint relating to Vanilla’s condition before the incident—e.g., that the dog was in pain. Two other factors strongly suggest that, at a minimum, Supreme Court should revisit the propriety of the motion to strike. First, Supreme Court’s decision was likely colored by the application of the *Bard* strict liability standard, which we unanimously reject. The stricken portions do not bear on Palmer’s knowledge of Vanilla’s vicious propensities; striking them would have been appropriate were Ms. Hewitt limited to proceeding under a strict liability theory, but the stricken portions are directly related to the claim of negligence pleaded in Ms. Hewitt’s original complaint. We have repeatedly held that a court abuses its discretion in denying a party leave to amend pleadings absent prejudice or surprise resulting from the delay in seeking amendment, and we apply this favorable treatment “even if the amendment substantially alters the theory of recovery,” not just when the amendment adds details consistent with the original theory of recovery (*Kimso Apts., LLC v Gandhi*, 24 NY3d 403, 411 [2014], quoting *Dittmar Explosives v A. E. Ottaviano, Inc.*, 20 NY2d 498, 502-503 [1967]; *see also Fahey v County of Ontario*, 44 NY2d 934, 935 [1978]). Second, because Ms. Hewitt was not Vanilla’s owner, her ability to learn about the nature of the procedure performed by Palmer and Vanilla’s underlying condition(s) would not have been possible except through disclosure; thus, the supplementation of her bill of particulars following receipt of disclosure is not remarkable. Therefore, I would hold that denying Ms. Hewitt leave to amend her pleading and striking portions of her supplemental bill of particulars constituted an abuse of discretion. I agree with the majori-

tani Constr. Corp., 18 NY3d 499, 503 [2012]), the record presents multiple disputed issues of fact relating to, for example, whether the physical facility, practices on discharge, and restraint and supervision of Vanilla were reasonable. The parties dispute, for instance, the nature of Vanilla's behavior and handling during her medical procedure, and how Palmer's employee reported Vanilla's behavior to the dog's owner in the waiting room. It remains for the trier of fact to resolve the issue of whether the exercise of due care under the circumstances would have required any or all of the measures advocated by Ms. Hewitt's expert affiant, for example, delaying Vanilla's return to the waiting room or discharging her through a separate room, checking or adjusting Vanilla's collar, or otherwise preventing Vanilla from coming close to Ms. Hewitt's cat. Thus, neither Palmer nor Ms. Hewitt is entitled to summary judgment (see *Zuckerman v City of New York*, 49 NY2d 557, 562 [1980]).

Chief Judge DiFiore and Judges Garcia and Feinman concur; Judge Wilson concurs in result in an opinion in which Judges Rivera and Fahey concur.

Order modified, without costs, by denying defendant's motion for summary judgment and, as so modified, affirmed.

ty's conclusion that Supreme Court properly declined to strike Palmer's apportionment defense.

[159 NE3d 237, 134 NYS3d 321]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v EVERETT
D. BALKMAN, Appellant.

Argued October 14, 2020; decided November 19, 2020

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Fourth Judicial Department, entered March 22, 2019. The Appellate Division affirmed a judgment of the Monroe County Court (Douglas A. Randall, J.), which had convicted defendant, upon his plea of guilty, of criminal possession of a weapon in the second degree.

People v Balkman, 170 AD3d 1678, reversed.

HEADNOTE

Crimes — Unlawful Search and Seizure — Vehicle Stop — “Similarity Hit” from License Plate Check

In defendant’s prosecution for criminally possessing a handgun observed on the floor of the passenger seat where defendant was sitting in a vehicle stopped by police as a result of a “similarity hit” indicating something similar between the registered owner of the vehicle and a person with an outstanding warrant, defendant’s motion to suppress the evidence obtained from the stop should have been granted because the People failed to meet their burden of presenting evidence sufficient to establish that the stop was lawful. A vehicle stop based on reasonable suspicion will be upheld so long as the intruding officer can point to specific and articulable facts which, along with any logical deductions, reasonably prompted the intrusion. When police stop a vehicle based solely on information generated by running a license-plate number through a government database, the People must present evidence of the content of the information. Where an arrest or search is made without a warrant, the reviewing court must be supplied with the description upon which the police acted and sufficient evidence to make its own independent determination of whether the person arrested or the item seized reasonably fit that description. The People presented no evidence about the content of the “similarity hit”—neither what particular data of the registered owner of the vehicle and the person with the warrant matched, nor what kinds of data matches, in general, result in “similarity hits.” Without such evidence, the suppression court could not independently evaluate whether the officer had reasonable suspicion to make the stop.

RESEARCH REFERENCES

By the Publisher’s Editorial Staff

AM JUR 2d Searches and Seizures §§ 12–14, 60, 116, 129.

CARMODY-WAIT 2d Search and Seizure §§ 173:4, 173:20–
173:26, 173:41, 173:325, 173:336, 173:348.

LAFAVE, ET AL., CRIMINAL PROCEDURE (4th ed) §§ 3.7, 9.4, 10.1, 10.3–10.6.

NY JUR 2d Criminal Law: Procedure §§ 214, 215, 221, 223, 424–427, 492, 503, 516.

ANNOTATION REFERENCE

Use of License Plate Readers. 32 ALR7th Art. 8.

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Query: suppress! /p vehicle /2 stop & “reasonable suspicion” /p license /2 plate /s database

POINTS OF COUNSEL

Timothy P. Donaher, Public Defender, Rochester (Janet C. Somes of counsel), for appellant. Where Officer Adorante stopped the Chevy in which Everett Balkman was riding to investigate a possible warrant, suppression is required because the People failed to establish a lawful basis for, or the reasonableness of, the stop of the vehicle and seizure of its occupants. (*People v Jennings*, 54 NY2d 518; *People v Spencer*, 84 NY2d 749; *People v Rivera*, 187 AD2d 258; *Matter of Muhammad F.*, 94 NY2d 136; *People v Lee*, 126 AD2d 568; *Gilchrist v United States*, 300 A2d 453; *People v May*, 81 NY2d 725; *People v Sobotker*, 43 NY2d 559; *People v Ingle*, 36 NY2d 413; *Delaware v Prouse*, 440 US 648.)

Sandra Doorley, District Attorney, Rochester (Lisa Gray of counsel), for respondent. The police possessed the reasonable suspicion to perform a traffic stop based on information gleaned from the mobile data computer terminal regarding a possible warrant for the registered owner of the vehicle, and accordingly, the Appellate Division properly upheld the trial court’s denial of suppression of the illegal, loaded firearm located in plain view between defendant’s feet. (*People v Brown*, 25 NY3d 973; *People v William*, 19 NY3d 891; *People v Garcia*, 20 NY3d 317; *People v Spencer*, 84 NY2d 749; *People v Cantor*, 36 NY2d 106; *Kabir v County of Monroe*, 16 NY3d 217; *People v Bushey*, 29 NY3d 158; *People v Singleton*, 41 NY2d 402; *People v Jennings*, 54 NY2d 518; *People v Ricks*, 142 AD2d 960, 72 NY2d 923.)

OPINION OF THE COURT

FEINMAN, J.

A police officer stopped a vehicle because his patrol car's mobile data terminal (MDT) notified him that there was a "similarity hit," indicating that something was similar about the registered owner of the vehicle and a person with an outstanding warrant. After observing a chrome handgun on the floor of the front passenger seat where defendant was sitting, the officer arrested defendant, who was neither the registered owner of the vehicle nor the person with the warrant. Defendant moved to suppress the evidence obtained from the stop. Because the People failed to meet their burden to come forward with evidence sufficient to establish that the stop was lawful, that motion should have been granted.

At the suppression hearing below, the officer testified that, while on patrol at approximately 4:10 a.m. in Rochester, he observed a red Chevrolet and, as part of his "routine behavior," manually entered its plate number in his patrol car's MDT. The MDT runs plate numbers through a Department of Motor Vehicles database, returns information on the vehicle's registration and inspection, and further details whether the registered owner has an outstanding arrest warrant or order of protection. Here, the MDT notified the officer of a "similarity hit," that is, that there was some similarity between the vehicle's registered owner and a person with a warrant from the City of Rochester. According to the officer, a "similarity hit" is generated "based on the name of the registered owner, the date of birth[,] and other aliases." He testified that the system considers "certain parameters" when identifying "similarity hits," but he did not know how the Department of Motor Vehicles set those parameters. Nor did he testify as to any specifics of this match.

Acting on the unspecified information he reviewed on the MDT, without more, the officer pulled over the driver of the vehicle. He requested the driver's identification and inquired about the owner of the vehicle. At this point, the officer did not think that the driver was the subject of the "similarity hit" because the driver was female and the registered owner was male. As the officer stepped around the vehicle to look at the registration and inspection stickers, he spotted a handgun on the floor under the front passenger seat, in which defendant was sitting. After defendant was arrested, the officer checked the MDT information and discovered that the person with the warrant did not, in fact, match the vehicle's registered owner or anyone else in the vehicle. The officer did not testify as to

the name, date of birth, or address of the registered owner, or provide the specific identifying facts of the person set forth in the arrest warrant.

County Court denied defendant's motion to suppress the evidence obtained from the stop. The Appellate Division affirmed (170 AD3d 1678 [4th Dept 2019]), and a Judge of this Court granted leave to appeal (34 NY3d 949 [2019]). We now reverse.

Defendant's motion to suppress the evidence obtained from the vehicle stop specifically challenged the sufficiency of the factual predicate for the stop. In the face of that sufficiency challenge, the burden is on the People to come forward with evidence sufficient to establish that the stop was lawful (*see e.g. People v Dodt*, 61 NY2d 408, 415 [1984]; *People v Lypka*, 36 NY2d 210, 214 [1975]). As relevant here, a vehicle stop is lawful if based on a reasonable suspicion that the driver or occupants of the vehicle have committed, are committing, or are about to commit a crime (*People v Hinshaw*, 35 NY3d 427, 430 [2020]). "A stop based on reasonable suspicion will be upheld so long as the intruding officer can point to specific and articulable facts which, along with any logical deductions, reasonably prompted the intrusion" (*People v Brannon*, 16 NY3d 596, 602 [2011] [internal quotation marks and alterations omitted]). Although, ordinarily, a determination of reasonable suspicion involves questions of fact or mixed questions of law and fact—which is beyond our review powers if supported by evidence in the record—the question of whether the People's evidence meets the "minimum showing necessary" to establish reasonable suspicion presents a question of law (*People v McRay*, 51 NY2d 594, 601 [1980]).

While information generated by running a license-plate number through a government database may provide police with reasonable suspicion to stop a vehicle (*see People v Bushey*, 29 NY3d 158, 160 [2017]), the information's sufficiency to establish reasonable suspicion is not presumed (*see Dodt*, 61 NY2d at 416). Thus, when police stop a vehicle based solely on such information, and the defendant, as here, challenges its sufficiency, the People must present evidence of the content of the information (*see id.*). In *Dodt*, for example, we held that the People's probable-cause showing was insufficient because they failed to offer evidence of the content of the teletype communication upon which the police relied to arrest the defendant (*id.* at 412). The officer there stopped and arrested the defendant based on a description of him and his car in a teletype

communication the officer received (*id.* at 412-413). While the officer testified that the teletype included a “general physical description of the subject,” there was no evidence of what that description was (*id.* at 413). We explained that, “[w]here an arrest or search is made without a warrant, the reviewing court must be supplied with the description upon which the police acted and sufficient evidence to make its own independent determination of whether the person arrested or the item seized reasonably fit that description” (*id.* at 415). Therefore, when the police act based on a teletype communication, “the prosecution’s burden is not discharged absent proof regarding the contents of the communication received” (*id.* at 416). Specifically, we held that, with no evidence of the physical description contained in the teletype, or of defendant’s appearance at the time of arrest, the hearing judge had no basis upon which to reach a conclusion that there was probable cause for the arrest (*see id.*).

The reasoning of *Dodt* applies with equal force here. The People presented no evidence about the content of the “similarity hit”—neither what particular data of the registered owner of the vehicle and the person with the warrant matched, nor what kinds of data matches, in general, result in “similarity hits.” Without such evidence, the suppression court could not independently evaluate whether the officer had reasonable suspicion to make the stop.

Accordingly, the Appellate Division order should be reversed, defendant’s motion to suppress granted and the indictment dismissed.

Chief Judge DiFiore and Judges Rivera, Stein, Fahey, Garcia and Wilson concur.

Order reversed, defendant’s motion to suppress granted and indictment dismissed.

[159 NE3d 758, 135 NYS3d 34]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JONATHAN BATTICKS, Appellant.

Argued September 9, 2020; decided October 20, 2020

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered October 30, 2018. The Appellate Division affirmed an amended judgment of the Supreme Court, New York County (Michael R. Sonberg, J.), which had convicted defendant, upon a jury verdict, of assault in the second degree.

People v Batticks, 165 AD3d 591, affirmed.

HEADNOTE

Crimes — Jurors — Discharge of Sworn Juror — Juror’s Reaction to Counsel’s Use of Racial Slur Did Not Render Her Grossly Unqualified

The trial court did not abuse its discretion as a matter of law in giving the jury a curative instruction and forgoing an inquiry pursuant to *People v Buford* (69 NY2d 290 [1987]) of a sworn juror after her mid-trial exclamation that she was “very offen[ded]” by the repetitive use of a racial slur by a codefendant’s counsel while cross-examining the victim. *Buford* set forth a framework for trial courts to determine, pursuant to CPL 270.35 (1), whether a sworn juror must be discharged as grossly unqualified to serve due to facts unknown at the time of selection or where the juror has engaged in misconduct of a substantial nature. A sworn juror is not grossly unqualified and subject to removal merely because the juror is irritated with one of the attorneys or disagrees with the way the evidence is presented, and a juror’s declaration of being emotional about the case is not equivalent to a declaration of actual bias or state of mind preventing the juror from deciding the case solely on the evidence. The record supported the trial court’s findings that the juror’s reaction was caused by counsel’s fifth and gratuitous use of the epithet, and provided no basis to indicate she was grossly unqualified. There was no indication that the juror’s ability to maintain her sworn oath to render an impartial verdict was hampered by exposure to any facts outside the four corners of the evidence. Thus, no probing *Buford* inquiry was needed as all pertinent facts were already before the court, providing a sound basis for its conclusion that her outburst was due to a natural frustration wholly unrelated to her state of mind in evaluating the evidence. The court’s curative instruction was a thorough and sensible approach that addressed each of the concerns raised by counsel and appreciated the outburst for what it was—not an act of substantial misconduct, but a spontaneous outcry prompted by the repetitive use of a racial slur.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d Criminal Law §§ 961, 1186; AM JUR 2d Jury § 223; AM JUR 2d Trial §§ 581, 583, 587, 1405.

CARMODY-WAIT 2d Jury Selection and Supervision §§ 191:42, 191:44, 191:90–191:94.

LAFAVE, ET AL., CRIMINAL PROCEDURE (4th ed) §§ 22.1, 24.9.

NY JUR 2d Criminal Law: Procedure §§ 2607, 2611, 2639–2645, 2870.

ANNOTATION REFERENCE

Misconduct of jury which will authorize or require withdrawal of juror. 86 ALR 928.

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POINTS OF COUNSEL

Janet E. Sabel, The Legal Aid Society, New York City (Jonathan R. McCoy of counsel), for appellant. I. The trial court committed reversible error in refusing to strike juror number six, as requested by counsel, where her violation of the court's instructions and emotional outburst constituted substantial misconduct that revealed an invidious bias against the defense and an obvious inability to be impartial, rendering her grossly unqualified to serve on the jury. (*People v Bailey*, 32 NY3d 70; *People v Buford*, 69 NY2d 290; *People v Rodriguez*, 71 NY2d 214; *People v Kuzdzal*, 31 NY3d 478; *People v Berrios*, 177 AD2d 493; *People v Radtke*, 219 AD2d 739; *People v Johnson*, 217 AD2d 667; *People v Ward*, 129 AD3d 492; *People v Kappen*, 142 AD3d 1106; *People v Bradford*, 300 AD2d 685.) II. The trial court improperly refused to inquire into juror number six's impartiality, despite counsel's explicit and timely request for such an inquiry, where the juror disrupted proceedings to declare that she was highly offended by counsel's usage of the phrase "old nigger" during cross-examination and threatened to leave the trial, where her outburst undercut her ability to remain fair and impartial. (*People v Buford*, 69 NY2d 290; *People v Kuzdzal*, 31 NY3d 478; *People v Brown*, 48 NY2d 388; *People v Fox*, 172 AD2d 218; *People v Mejias*, 21 NY3d 73;

People v Bailey, 32 NY3d 70; *People v Ventura*, 113 AD3d 443; *People v Cargill*, 70 NY2d 687; *People v Anderson*, 70 NY2d 729; *People v Ortiz*, 168 AD3d 482.)

Cyrus R. Vance, Jr., District Attorney, New York City (*Rebecca Hausner* and *Hilary Hassler* of counsel), for respondent. The trial judge fashioned an appropriate remedy to a mid-trial, momentary expression of exasperation by a sworn juror. (*People v Mejias*, 21 NY3d 73; *People v Gray*, 86 NY2d 10; *People v Hicks*, 6 NY3d 737; *People v Person*, 8 NY3d 973; *People v Kuzdzal*, 31 NY3d 478; *People v Buford*, 69 NY2d 290; *Smith v Phillips*, 455 US 209; *People v Paulino*, 131 AD3d 65; *People v Bosket*, 295 AD2d 202; *People v Rodriguez*, 71 NY2d 214.)

OPINION OF THE COURT

Chief Judge DiFiore.

This appeal by defendant presents the issue we found unpreserved on the appeal of his codefendant (*People v Bailey*, 32 NY3d 70, 82 [2018])—namely, whether the trial court abused its discretion as a matter of law in giving the jury a curative instruction and forgoing a *Buford* inquiry (*People v Buford*, 69 NY2d 290 [1987]) of a sworn juror after her mid-trial exclamation that she was “very offen[ded]” by the repetitive use of a racial slur by Bailey’s counsel while cross-examining the victim. Viewed in context, the record supports the trial court’s findings that the juror’s reaction was triggered by counsel’s fifth and gratuitous use of the epithet, and provided no basis to indicate she was grossly unqualified. Since the entire incident unfolded in open court, a *Buford* inquiry of the juror was unnecessary, as the court was able to adequately assess that her outburst was not a transformative one and her sworn oath to be impartial remained intact. The court’s remedy of admonishing the juror and counsel and issuing a carefully crafted curative instruction—which included a mechanism for any juror to advise the court if they could not be fair and impartial due to anything that occurred at trial—was not an abuse of its discretion. Thus, the Appellate Division order should be affirmed.

I.

Defendant Batticks and codefendants Wiggins and Bailey were tried jointly for their assault of Steven Davis while the four men were incarcerated. Davis testified that a verbal dispute with Wiggins preceded the assault. Attempting to “goad” Davis during cross-examination (*Bailey*, 32 NY3d at 73),

Bailey's counsel used Wiggins' various verbal taunts verbatim, including asking Davis four times whether Wiggins had called him an "old [n-word]."¹ Davis, who recalled the younger Wiggins had called him an "old guy," also admitted Wiggins may have used the slur, but said he viewed the slur as "just words."

After changing topics, Bailey's counsel revisited Wiggins' verbal provocations, and—for the fifth time—asked Davis whether Wiggins called him "an old [n-word]." Immediately, juror six stood and said: "Please, I am not going to sit here . . . and hav[e] you say that again. Don't say it again or I am leaving. . . . I find that very offensive." The court immediately reprimanded the juror for her "[in]appropriate" outburst and admonished counsel for repeating the question "a half dozen times," directing him to "[m]ove on" and stop "ask[ing] the same question over and over and over again." Bailey's counsel moved for a mistrial, claiming juror six was grossly unqualified because she was unable to separate the facts from her own "distaste" for the racial slur. The court found the "juror's reaction" was directed solely at "the number of times" the slur was used, not the legitimacy of the questioning. Batticks' counsel moved to strike the juror on the grounds asserted by Bailey.

Finding that juror six was not grossly unqualified, the court denied the defense motions and opted instead to issue the jurors a curative instruction—directing them that it was inappropriate to speak from the jury box, they may not form any opinion of guilt or nonguilt until the case is submitted to them, they were not to hold it against any party if they disliked or disapproved of questions or objections and, if any jurors felt they could not be fair and impartial due to something occurring during the trial, to inform a court officer, who would alert the court. The court advised counsel that juror six would be discharged if she told an officer she could not be fair and impartial. When Bailey's counsel stated that the racial epithet might "come up" in summation, the court cautioned him not to mention the word "fifteen times," adding it could "understand someone being offended by [the slur's] repeated use," since Davis acknowledged Wiggins may have used the word. The court reiterated that, "on its face," juror six's conduct did not indicate "she could not be [fair and impartial], only that she found the

1. Batticks' counsel, who was the first of the three defense counsel to conduct cross-examination of Davis, did not inquire about Wiggins' use of the n-word on cross- or recross-examination of the witness.

repeated use of the phrase distasteful” and refused Batticks’ request to “specifically ask” juror six whether she could “be fair and impartial.” The court issued the promised curative instruction to the jury, adding that it would “assume that all of you still believe that you can be fair and impartial.”

All three defendants were convicted, upon the jury verdicts of second-degree assault. The jury acquitted them of the two top counts and deadlocked on the remaining counts. The Appellate Division affirmed the judgment against Batticks, finding “the trial court properly determined, based on its own observations, that no [*Buford*] inquiry was necessary” (165 AD3d 591, 592 [1st Dept 2018]). A Judge of this Court granted defendant leave to appeal (32 NY3d 1202 [2019]), and we now affirm.

II.

A defendant has a constitutional right to a trial by an impartial jury (*People v Kuzdzal*, 31 NY3d 478, 483 [2018]; NY Const, art I, §§ 2, 6; US Const 6th, 14th Amends), one chosen according to law and in whose selection the parties have participated (*Buford*, 69 NY2d at 297-298). To protect this constitutional right, the legislature has enacted several procedural safeguards in CPL article 270 (*Buford*, 69 NY2d at 298). After the jury is sworn, but before the rendition of the verdict, the court’s authority to discharge an incompetent juror is set forth in CPL 270.35 and is narrowly circumscribed. In *Buford*, we set forth a framework for trial courts to determine, pursuant to CPL 270.35 (1), whether a sworn juror must be discharged as grossly unqualified to serve due to facts unknown at the time of selection or where the juror has engaged in misconduct of a substantial nature. Given the gravity of a juror’s oath, the court’s removal of a sworn juror “places a greater burden upon the moving party” than if a prospective juror “was challenged for cause,” and “is satisfied only when it becomes obvious that a particular juror possesses a state of mind which would prevent the rendering of an impartial verdict” (*Buford*, 69 NY2d at 298 [internal quotation marks and citation omitted]). As this Court has long recognized, “[t]he law prescribes the qualifications of jurors. The court cannot add to, or detract from them. It cannot itself select the jury, directly or indirectly. It cannot in its discretion, or capriciously, set aside jurors as incompetent, whom the law declares are competent” (*Hildreth v City of Troy*, 101 NY 234, 239 [1886]).

A sworn juror is not grossly unqualified and subject to removal “merely because [the juror] is irritated with one of the attorneys or disagrees with the way the evidence is presented” (*Buford*, 69 NY2d at 299). Further, “a juror’s declaration of being emotional about the case” is not equivalent to “a declaration of actual bias” or state of mind preventing the juror from deciding the case solely on the evidence, “as a declaration regarding emotions alone does not render a juror grossly unqualified” (*People v Spencer*, 29 NY3d 302, 311 [2017]).

We review a trial court’s response to allegations of juror impartiality “for abuse of discretion because the trial judge, having the ability to continually observe the jury in court, is in the best position” to assess juror demeanor and bias and “to devise an appropriate remedy” (*Kuzdzal*, 31 NY3d at 485). This unique vantage point demands that courts be afforded wide latitude in investigating allegations of juror bias and in making the “delicate” determination as to whether a juror has become grossly unqualified (*id.*). Under this flexible approach, not every allegation of juror misconduct warrants an intrusive *Buford* inquiry, and we have approved alternate procedures and ameliorative instructions when juror bias or partiality is not in doubt (*id.* at 485-486). In determining whether there are new facts to impugn the jury’s original oath of impartiality or a need to investigate alleged juror misconduct, “the court must consider the content of the allegations, the seriousness of the alleged misconduct or bias, and the credibility of the source” (*id.* at 485, quoting *United States v Angulo*, 4 F3d 843, 847 [9th Cir 1993]). Thus, while a court “must investigate and, if necessary, correct a problem, it must also avoid tainting a jury unnecessarily. . . . In this endeavor, sometimes less is more” (*id.* at 486, quoting *United States v Cox*, 324 F3d 77, 88 [2d Cir 2003]).

In *People v Mejias*, we approved of the court’s issuance of a curative jury instruction without a *Buford* inquiry, where a juror’s note suggested premature jury deliberations, as it did not indicate the “juror’s impartiality was in doubt or that the juror had committed any misconduct” (21 NY3d 73, 79 [2013]). We again deferred to the trial court’s broad discretion in investigating factual issues of juror bias in *Kuzdzal*, approving of the court’s preliminary step of eliciting the spectator’s sworn testimony as to an allegation of juror misconduct—resulting in the court’s threshold finding that the allegation was not credible—which allowed it to rule out the need for a *Buford* in-

quiry. Indeed, a *Buford* inquiry may not always be the best course of action in response to an alleged prejudicial occurrence, and the court may fashion an alternative remedy that simultaneously protects defendants' right to an impartial jury while "ensur[ing] that the jury proceedings [are] not 'jeopardized by unauthorized invasions'" (*Kuzdzal*, 31 NY3d at 486, quoting *Remmer v United States*, 347 US 227, 229 [1954]). As we have reasoned, "[u]nnecessarily confronting sworn jurors with unfounded, irrelevant, or incredible allegations of misconduct may impact the impartiality of the jury, and mandating such an intrusive procedure regardless of the particular circumstances of a case may only encourage untoward tactics intended to disrupt the proceedings" (*id.*).

To be sure, our state courts often resolve incidents of juror annoyance with counsel without a *Buford* inquiry, as an outward expression of irritation does not, without more, indicate impartiality (*see e.g. People v Major*, 143 AD3d 1155 [3d Dept 2016], *lv denied* 28 NY3d 1147 [2017]; *People v Benet*, 45 AD3d 1449 [4th Dept 2007], *lv denied* 10 NY3d 761 [2008]). Likewise, the Second Circuit ruled in *United States v Panebianco* (543 F2d 447, 457 [2d Cir 1976]) that no voir dire was required after two jurors expressed "annoyance" with counsel's questions, instructing that they "were only exhibiting impatience" with defense counsel's questioning

"that had been admittedly 'a little facetious' and repetitious at times. *That jurors react naturally does not mean they are biased.* By reiterating his cautionary instruction to the jury, [the court] did all that was necessary. Under the circumstances this was probably a wiser course than a voir dire and was clearly not an abuse of discretion" (emphasis added).

III.

Applying the foregoing principles, the trial court's measured response here was not an abuse of discretion. The court's findings, which are entitled to deference as the court had the advantage of personally observing juror six's demeanor and body language (*People v Johnson*, 92 NY2d 976, 978 [1998]), are fully supported by the record. Based on its own observations of counsel and juror six's conduct in open court, the court found that the juror's "understand[able]" reaction was triggered by counsel's repetitive use "over and over again" of an of-

fensive racial epithet that was gratuitous, as the witness already “acknowledged” Wiggins may have used the word. There was no indication that the juror’s ability to maintain her sworn oath to render an impartial verdict was hampered by exposure to any facts outside the four corners of the evidence. Thus, no probing *Buford* inquiry was needed to “evaluate the nature of what the juror has seen, heard, or has acquired knowledge of, and assess its importance and its bearing on the case” (69 NY2d at 299), as all pertinent facts were already before the court, providing a sound basis for its conclusion that her outburst was due to a natural frustration wholly unrelated to her state of mind in evaluating the evidence.

In fact, juror six revealed to all in earshot that she felt “very offen[ded]” by counsel’s repetitious use of an extremely pejorative phrase. Her conduct in voicing her personal distaste for that disturbing trial strategy—while a breach of courtroom decorum—did not render her grossly unqualified or equate with a state of mind that prevented her from rendering an impartial verdict. “[E]ach juror inevitably brings to the jury room a lifetime of experience that will necessarily inform her assessment of the witnesses and the evidence. Emotions are natural human responses and the law does not expect jurors to be devoid of such feelings”—so long as they “have the capacity and the will to decide the case based solely on the facts as they find them and the applicable law as instructed by the court” (*Spencer*, 29 NY3d at 311-312 [internal quotation marks and citation omitted]). Juror six’s momentary expression of exasperation after the fifth iteration of the offensive word neither presented any conflict with those basic tenets nor indicated any alteration of her state of mind from the point when she took her solemn oath.²

The court’s curative instruction was a thorough and sensible approach that addressed each of the concerns raised by counsel and appreciated the outburst for what it was—not an act of substantial misconduct, but a spontaneous outcry prompted by the repetitive use of a racial slur. The court immediately

2. Notably, juror six’s boldness in vocalizing her disdain for Bailey’s counsel’s repetition of the slur in a manner the trial court found was unnecessary to “establish[] a fact” or set “the scene” had no real application to the case against Batticks, whose defense was that he was in his cell during the assaults. Nor can one ignore the largely favorable jury verdict for all three defendants—including for Bailey, whose counsel triggered the juror’s outburst.

admonished juror six for her brief disruptive conduct and reset the orderly nature of the proceedings. The court's instruction that jurors should report to the court if they could not remain fair and impartial accomplished—by a less confrontational and broader stroke—the same result that would have been afforded by a *Buford* inquiry of the single juror, and sworn jurors are presumed to have followed those clear directives (*People v Davis*, 58 NY2d 1102 [1983]).³

In sum, the record supports the court's conclusion that juror six's verbalized reaction reflected “understand[able]” exasperation with counsel's tactics and nothing more. The court's swift admonishments advising the juror and counsel to regain appropriate courtroom decorum and its measured “less is more” remedy (*Kuzdzal*, 31 NY3d at 486) in the form of a curative instruction instead of a more particularized inquiry of juror six was not an abuse of discretion on this record.

Accordingly, the order of the Appellate Division should be affirmed.

WILSON, J. (dissenting).

“‘I’m no idealist to believe firmly in the integrity of our courts and in the jury system—that is no ideal to me, it is a living, working reality. Gentlemen, a court is no better than each man of you sitting before me on this jury. A court is only as sound as its jury, and a jury is only as sound as the men who make it up.’” (Harper Lee, *To Kill a Mockingbird* 205 [1982]).

In the more mundane trial underlying this appeal, we have the following *dramatis personae*:

Steven Davis, the complainant: 42-year-old pretrial detainee held on a charge of assault for punching a taxicab driver in the

3. Batticks' belated claim that the curative instruction was “deficient” is unpreserved. So too are Batticks' arguments that juror six's outburst was “criminally sanctionable” and indicated she did not feel “bound by the court's authority” because of her threat to leave. Batticks' trial objection, which did not include a motion for a mistrial, focused on a possible lingering bias from the juror's personal offense at Bailey's counsel's repetitive use of a racial slur, failing to preserve for this Court's review any claim that the juror usurped the role of the court or counsel. Fundamentally, these claims ignore the circumstances of the outburst and unpersuasively attempt to distance this case from *Buford*'s simple tenet that an expression of annoyance with counsel's performance, which is all that we have here, does not render a juror grossly unqualified, equate with bias or provide grounds for an inquiry of the juror's state of mind.

face; previously convicted of “about” seven felonies and four misdemeanors resulting in 17 years of incarceration.

Princesam Bailey, a codefendant: 26 year old in jail for a failed drug test while on parole; previously convicted of two drug-possession and one weapons-possession felonies.

Reginald Wiggins, a codefendant: 19-year-old pretrial detainee held on a charge of assault; no prior convictions.

Jonathan Batticks, a codefendant: 28-year-old pretrial detainee held on a charge of drug possession; two prior felonies, for drug and weapons possession.

(Scene: the Manhattan Detention Complex, formerly known as “the Tombs,” a pretrial detention facility for persons detained while awaiting trial.)

In the midst of cross-examination by defense counsel, who were well on the way to impugning the credibility of the principal witness for the prosecution, a juror ordered counsel to stop the way in which he was cross-examining, informing the court, parties, witness and fellow jurors that she would leave unless counsel stopped. The court ordered counsel to stop. Counsel asked either for a mistrial or, in the alternative, to replace the juror with an alternate or, in the alternative, to inquire privately of the juror whether she could remain unbiased and true to her oath, despite her outburst. The prosecutor stated that she did not object to the replacement of the juror with an alternate. Nevertheless, the court ordered no mistrial, did not seat an alternate, and refused to make any inquiry of the juror, instead telling the entire jury panel that if any of them felt they could not be impartial, they should let a court officer know. None did.

The majority is untroubled by the juror’s disruption of the trial and usurpation of the role of the lawyers and court. If, during oral argument of this appeal, I had told either counsel that I would leave unless counsel ceased a line of argument, counsel would be entitled to my recusal. The Commission on Judicial Conduct might also have something to say about my behavior. A juror’s oath is no less serious than mine. However, were I to make good on my threat, my colleagues would ably and fairly decide the case without me; a juror’s threatened departure runs a risk of mistrial or a successful appeal overturning the verdict.

Directing appellate counsel to stop an argument or suffer my departure never crossed my mind, but I did ask counsel for the

People during oral argument—twice—whether, had she been trying Mr. Batticks’s case and a juror made the same outburst during her cross-examination of a defense witness, she would, at a minimum, want the court to inquire as to the impartiality of that juror. Counsel twice did not answer my question. What seems obvious to me is that this juror’s extraordinary outburst required an inquiry into her impartiality and ability to abide by the juror’s oath; any lawyer, prosecutor or defense attorney should want that inquiry.

Two fundamental errors underlie the majority’s affirmance of the proceedings below. First, the majority has conflated the basis for inquiring *whether* a juror may be unfit to continue to serve with the determination of unfitness. Second, the majority purports to affirm what amounts to mind reading of the juror, certain that her outburst was “natural frustration wholly unrelated to her state of mind in evaluating the evidence” (majority op at 568). In these circumstances, the integrity of the right to trial by an impartial jury required the court to inquire of the juror or, given the agreement of the People and defense counsel, to replace the juror with an alternate.

I.

The People’s narrative, largely resting on Mr. Davis’s testimony, was that Mr. Davis arrived early because he “wanted to be first” in line to exchange old sheets for new at the weekly linen exchange. While the line grew behind Mr. Davis, two unidentified inmates—not any of the defendants, attempted to cut the line at its very front, to which Mr. Davis and another inmate told the “younger kids . . . yo, get out of the way, you all know you have to go to the back.” Then, from somewhere further back in line, an inmate, who turned out to be Mr. Wiggins, “screamed” at Mr. Davis that he was “tired of you . . . old cats.” Mr. Davis said he “ignored it, but [Mr. Wiggins] kept talking,” and when Mr. Davis eventually asked whether Mr. Wiggins was talking to him, and obtained verbal confirmation thereof, Mr. Davis responded, “all right.” Then, when Mr. Wiggins used “a slang term for inviting [me] to . . . suck his privates . . . [a]nd . . . went on to say that he would F me up, he would fuck me up,” Mr. Davis responded that “there is not going to have a need for any of that,” after which Mr. Davis “just stopped the conversation.”

Then, according to Mr. Davis, while he was making his bed and tidying up, Mr. Wiggins came to the door of Mr. Davis’s

cell; Mr. Davis asked, "what's up," and Mr. Wiggins "began swinging on me." Mr. Wiggins did not strike Mr. Davis, but Mr. Davis landed two punches to Mr. Wiggins's face, further testifying "I can fight." To spare the tedium of recounting more of Mr. Davis's testimony, let me summarize it as portraying Mr. Davis as a now reformed, mild-mannered, honest, rule-abiding person, eventually beaten by Mr. Wiggins and his two accomplices, Messrs. Bailey and Batticks, while doing his utmost to avoid any altercation.

In opening argument, Mr. Batticks's counsel made clear that a principal defense would be "that Mr. Davis the complainant in this case is not a credible, believable or reliable witness." On cross-examination, defense counsel proceeded on that strategy, designing numerous questions to show that Mr. Davis was not credible. Among other things, Mr. Davis claimed he was wrongly convicted for the gunpoint robbery and was just borrowing an item that formed the basis of his burglary conviction. He admitted he had 50 disciplinary infractions, which "[o]f course" involved fighting with other inmates, 5 or 10 of which were "assaults." Nevertheless, he continued to attempt to paint himself as someone who "would have apologized" for the linen-exchange incident "because I'm known to do that." Then, after counsel asked whether Mr. Wiggins yelling "suck my frank, something like that," made Mr. Davis a little mad, Mr. Davis responded, "No. I kind of grew out of that." Counsel asked whether Mr. Davis had grown out of fighting, to which he answered, "No, I grew out of applying that particular term and feeling to fight because of that particular term." That answer then provoked the following cross-examination, which is at the heart of this appeal:

"Q But when he called you an old nigger—

"A Old nigger? I don't believe he called me an old nigger. But once again, they're words.

"Q They're words. So he is on the stairwell in front of everybody, about 46 other inmates, calling you an old nigger?

"THE COURT: The testimony is there are ten to fifteen people on the stairs. So I don't know where you got 46 from. . . .

"Q There are several inmates there that day?

“A Yes.

“Q So Mr. Wiggins is yelling these obscenities to you. Right?

“A Yes. He is not really yelling though.

“Q He is not standing next to you? He’s talking?

“A Maybe he was as close as you, maybe closer. He’s not yelling. He is just talking. . . . He’s talking. He’s like, you know, you punks. He is talking. He is not screaming and yelling. He’s just saying what he’s saying.

“[But his testimony on direct was that Wiggins was ‘scream(ing)’ at him, so defense counsel is now making inroads into Davis’s credibility.]

“Q And other people can hear him?

“A Yes. People can hear him.

“Q And he is calling you an old nigger. Right?

“A I don’t recall saying he—him calling me an old nigger. He called me an old something or other.

“Q You gave a statement to Officer Santiago?

“A I don’t recall. If he said old nigger, if he said old dude or old guy, yes, he referred to me as an old person.

“Q You told Officer Santiago that he called you an old nigger?

“A Okay. He may have.

“[Davis retracts his denial that Wiggins called him an ‘old nigger’ when confronted with what he told the officer at the time: this goes both to his credibility generally and to his portrayal of himself as a nonconfrontational victim.]

“Q And this is going on in front of other people. Right?

“A Yes, it is.

“Q And that’s kind of disrespectful to you?

“A Very disrespectful.

“Q Very disrespectful?

“A Absolutely.

“Q And he’s a punk kid?

“A Right.

“[Now counsel has established that Davis believes he was very disrespected by a punk kid, further calling into question Davis’s recitation of the events.]

“Q You are not going to take that?

“A I’m not going to say I’m not going to take that. He is a knotty-nosed kid and he doesn’t—it’s no bother, I might give him a pass.

“Q You might give him a pass?

“A Yes. Like I said, initially that would have been an immediately situation, you know, you say something like that to a guy in jail, where we have this homophobia thing, you say invite some guy to your privates, that’s like me asking for fighting. But like I said—

“Q You are better than that? You are changing your life?

“A I am working on it. It’s a work in progress.

“Q It’s a work in progress?

“A Yes.

“Q Interesting. So he is saying these things to you, he’s disrespected you in front of these people, and you are just blowing it off?

“A Yes. . . .

“Q And you have Mr. Wiggins saying, suck my franks and that’s—. . .

“THE WITNESS: Well, he said I’m going to start throwing franks at you.

“[Counsel’s cross-examination about Wiggins calling Davis an ‘old nigger’ was diverted by Davis focusing, instead on the ‘throwing franks’ insult. Counsel then tries to redirect the cross-examination to the

‘old nigger’ insult, which is what he’d been asking about before Davis took the cross-examination in a different direction.]

“Q I apologize. And he’s calling you an old nigger?”

“A JUROR: Please, I am not going to sit here—

“THE COURT: Ma’am.

“A JUROR:—and having you say that again. Don’t say it again or I am leaving.

“THE COURT: Ma’am, ma’am.

“A JUROR: I find that very offensive.

“THE COURT: Ma’am, that’s not appropriate from you. But, Mr. Hardy, we’ve been here a half dozen times.

“MR. HARDY: Judge—

“THE COURT: I don’t want to hear it again. Okay. You don’t ask the same question over and over and over again. Move on.”

The majority’s conclusion that counsel’s last use of the phrase “old nigger” was “gratuitous” is pure speculation.¹ Indeed, that speculation is contrary to the record. Counsel’s first four uses of the words were required to get Mr. Davis to admit that Wiggins actually called him that. One fair inference from Mr. Davis’s repeated denials and ultimate admission (when confronted with his prior statement to the police) is that he was untruthfully painting himself as having undergone a transformation to a prison pacifist. There is no basis on which to conclude counsel’s next (and final) usage was gratuitous—it was the first time he would have been able to pose a question to Davis based on Davis’s recalcitrant admission, in a cross-examination that may well have been working to discredit Mr.

1. Equally odd is the majority’s citation to our decision in Mr. Bailey’s case for a factual finding by this Court that counsel’s purpose was to “‘goad’ Davis during cross-examination” (majority op at 563-564). As we have said in countless decisions denying ineffective assistance of counsel claims on direct appeal, we cannot surmise as to what counsel’s motives were in pursuing or failing to pursue an argument (*see e.g. People v Maffei*, 35 NY3d 264, 269-270 [2020]). Perhaps counsel was trying to goad Davis, perhaps to have him stake out a position of passive nonviolence that the jury would find incredible, or perhaps simply to catch him in a contradiction between his direct testimony and his report to the police—or perhaps all of the above.

Davis (and, according to the majority, may have worked to some degree even though curtailed by the rogue juror, because the jury acquitted the defendants of the two top counts). The propriety of the court's instruction to counsel to move on is not the question here. Instead, the question is whether the juror's outburst and statement that she would quit if counsel continued provides a basis to question—not decide—her ability to serve impartially.

II.

We have emphasized the “fundamental” role of the jury in our criminal justice system (*People v Kuzdzal*, 31 NY3d 478, 483 [2018]; *People v Branch*, 46 NY2d 645, 652 [1979] [“Nothing is more basic to the criminal process than the right of an accused to a trial by an impartial jury”]). In *People v Buford*, we emphasized the paramount right of criminal defendants, guaranteed by the Federal and New York Constitutions, to trial by an unbiased jury composed of persons qualified to serve (69 NY2d 290, 297-298 [1987]). Jurors take an oath, and receive instructions, admonishing them on their role to listen carefully, evaluate fairly, discuss openly once the case is turned over to them, and return a verdict. They plainly are not to express their views of trial proceedings while trial is conducted, interrupt the proceedings, or threaten to walk out if the trial does not proceed as they like. “To protect this constitutional right in criminal cases, the Legislature has enacted several procedural safeguards (*see*, CPL art 270)” (*id.* at 298). The *Buford* inquiry is a vital tool to protect the right of criminal defendants to a fair trial by an unbiased jury.²

As set out in our recent decision in *Kuzdzal*, courts should engage in a two-step framework for determining whether a seated juror should be removed as “grossly unqualified to serve” or having engaged in “substantial” misconduct (CPL 270.35 [1]). The first step asks whether there is “credible information” suggesting that a juror may be unqualified or engaged in misconduct (*Kuzdzal*, 31 NY3d at 486). If such credible infor-

2. *Buford* involved the People's request to remove a seated juror over the defendant's objection. Whether the majority's observation that the “removal of a sworn juror ‘places a greater burden upon the moving party’ than if a prospective juror ‘was challenged for cause’” (majority op at 565) applies to a defendant's request to remove a seated juror where there is no objection from the People was not briefed or argued by the parties here, and therefore is not before us.

mation exists, the second step is mandatory: “Trial courts, when presented with some credible information indicating that a sworn juror may be grossly unqualified, must conduct a ‘probing and tactful inquiry’ of the juror” (*id.*).

In many cases in which a sitting juror’s conduct is called into question, including several of the examples cited by the majority, the purported transgression does not occur in the plain view of the trial judge.³ The first step—the existence of credible information—reflects the reality that the purported juror transgression is often reported second hand and/or cryptically, sometimes by someone with a connection to a party, or sometimes by a juror who may be upset at how another juror has acted, or sometimes in a jury note that facially suggests no impropriety.⁴ The determination of whether the information is “credible” is an examination of the source of the information. For example, in *Kuzdzal*, a woman who was the defendant’s lifelong friend claimed to have overheard one juror telling another juror that the defendant was a scumbag (*id.* at 481-482). The court ordered an inquiry of the friend; her testimony was inconsistent with objective facts, and she admitted to having been removed from the courtroom by a court officer on a prior day (*id.*). On remand from our Court, the Appellate Division held that the weight of the evidence supported the conclusion that the friend was not credible; hence, no *Buford* inquiry was required (163 AD3d 1439, 1440-1441 [4th Dept 2018]). In *People v Mejias*, a juror sent a note to the court after the close of evidence, and after—by agreement of the parties—the jury began reviewing the trial exhibits (21 NY3d 73, 77 [2013]). We held that the note’s use of the word “we” provided no indication that the juror’s “impartiality was in doubt or that the juror had committed any misconduct,” and therefore “the rationale of *Buford* is not implicated in the circumstances of this case” (*id.* at 76, 79).

3. Similarly, facial gestures, body language or sighs or other audible but nonverbal sounds made by jurors are at best equivocal and would not, without more, provide credible evidence suggesting bias. Here, the juror’s outburst was verbal, definitive and unfiltered. Whether, as the majority states, ordinary “incidents of jury annoyance” do not require a *Buford* inquiry (*United States v Panebianco*, 543 F2d 447 [2d Cir 1976]) is not germane to the extraordinary outburst involved here. In any event, *Panebianco* was decided well before *Buford*, and *Buford* was based on state law, not federal.

4. See *People v Matiash*, 197 AD2d 794 (3d Dept 1993); *People v Terrell*, 149 AD3d 1108, 1109 (2d Dept 2017); *People v Cecunjanin*, 67 AD3d 1072, 1077 (3d Dept 2009); *People v Joaquin*, 138 AD3d 422 (1st Dept 2016); *People v White*, 73 AD3d 820, 821 (2d Dept 2010).

Here, there is no threshold question of the credibility of an allegation that the juror is grossly unqualified or has engaged in misconduct. The juror's outburst occurred in open court, where the judge could observe her behavior directly: he was not required to parse the language of a jury note or assess whether a third party truthfully recounted an overheard conversation. Indeed, the judge's immediate reaction was to tell the juror: "Ma'am, that's not appropriate from you."

The majority's reasoning—that the juror was merely reacting to a word she found offensive and her reaction did not render her unfit—goes to the second step, not the first, unless the majority is claiming that the juror's outburst and threat to walk out contains not even a suggestion of bias or misconduct. The majority's view surely has nothing to do with credibility. Instead, the majority assumes—based on nothing more than surmise—that the juror's wrath did not tarnish her view of the case. But that analysis collapses the two distinct inquiries into one, asking only whether the juror should be removed—not whether she should be examined. This juror's conduct is so patently anathema to the role of jurors that some inquiry must be made of her, tactfully and privately, as our case law demands, to "discharge our 'overriding responsibility' to ensure the public's confidence in the fairness of trials" (*People v Neulander*, 34 NY3d 110, 115 [2019], quoting *People v Crimmins*, 36 NY2d 230, 238 [1975]).

The majority highlights *Buford*'s observation that a juror is not grossly unqualified "merely because she is irritated with one of the attorneys or disagrees with the way the evidence is presented" (*Buford*, 69 NY2d at 299 [emphasis added]). But that bears on whether a juror should be *discharged*, not whether a *Buford* inquiry must be performed. The question is only whether "some credible information" suggests that a juror may no longer be fit to serve because of bias or misconduct (*Kuzdzal*, 31 NY3d at 486). Here, as Mr. Batticks argued, the misconduct indisputably provided some credible evidence of the juror's unfitness to serve.

As the majority notes, the reason the inquiry must be done tactfully and privately is to avoid intruding unnecessarily on the jury's function. However, once step one is satisfied, as I

believe it is here, step two is mandatory.⁵ Although the court conducted no inquiry of the juror, the majority unquestioningly accepts its conclusion that the juror merely demonstrated “natural frustration wholly unrelated to her state of mind.” That conclusion rests on two wholly unsupported assumptions: first, that the juror’s reaction reflected nothing more than “natural frustration,” and second, that her frustration was unrelated to her state of mind (by which the majority presumably means unrelated to her ability to serve in an unbiased manner—even the majority must acknowledge that the cross-examination affected the juror’s state of mind). The juror’s reaction, however, is plainly *unnatural*—try as I might, I can find no other case in any jurisdiction in which a juror interrupted a cross-examination and threatened to walk out unless counsel stopped. The degree of her euphemistically-labelled “frustration” (“wrath” came to my mind) is leagues out of bounds of conduct expected from jurors.⁶ Whether the juror’s gross agita-

5. Because the second step is mandatory if credible evidence suggesting juror bias, impropriety or misconduct exists, the majority’s discussion of the court’s generic instruction is not germane to this appeal (*see* majority op at 568-569). Had the proper inquiry of the juror been made, that instruction might have proved to be all that was required, insufficient, or wholly unnecessary, but the generic instruction cannot supplant the inquiry if the first step is met.

6. Perhaps the majority means that it is natural for any juror to be incensed by the use of the word “nigger” in any context. If so, that view is problematic, for reasons far too fascinating and complex to address meaningfully in a footnote. The following few observations will have to suffice: (1) the use of “nigger” and its variants (most commonly “nigga,” which is likely what Mr. Wiggins said, though transcribed as “nigger”) among African Americans is both prevalent and controversial within and without the community (*see e.g.* Sean Price, *Straight Talk About the N-Word*, Teaching Tolerance [Fall 2011], available at <https://www.tolerance.org/magazine/fall-2011/straight-talk-about-the-nword> [last accessed Sept. 25, 2020]; Dave Sheinin & Krissah Thompson, *Redefining the Word*, Wash Post, Nov. 9, 2014, <https://www.washingtonpost.com/sf/national/2014/11/09/the-n-word-an-entrenched-racial-slur-now-more-prevalent-than-ever/>; Shawn Corey Carter [also known as Jay-Z], *Jigga My Nigga* [Ruff Ryders Entertainment 1999]); (2) whereas all three defendants and Mr. Davis are African American, the juror’s race is unclear, as is the race of counsel, which adds to the complexity in guessing at the cause and implications of the juror’s outburst (*see e.g.* Randall L. Kennedy, *Who Can Say ‘Nigger’? And Other Considerations*, 26 J Blacks in Higher Educ 86-96 [Winter 1999-2000]; John McWhorter, *The Idea That Whites Can’t Refer to the N-Word*, Atlantic, Aug. 27, 2019, <https://www.theatlantic.com/ideas/archive/2019/08/whites-refer-to-the-n-word/596872/>); and (3) Mr. Davis’s recollection of “old” but not “nigger” when spoken by Mr. Wiggins tends to confirm that the word meant nothing between them, filling in as a substitute for “bro” or “homie” or, in whiter English, “fellow.”

tion persisted and might have affected her in deliberations is precisely the question that cannot be answered without an inquiry.⁷

Two additional points peculiar to the facts of this case warrant mention. First, because the juror's outburst occurred in open court in front of all the other jurors, counsel, the witness, spectators and the judge, the usual concern about what the jury might think when one of its number is separated for questioning has little force. In many cases, the information suggesting unfitness is unknown to some or all of the other jurors; individually questioning a juror may cause some surprise and anxiety on the part of the other jurors. That is plainly not the case here, because all the other jurors witnessed the outburst.

Second, if the concern about interfering with the province of the jury were weighty in this case, the court had a ready solution, agreed to by all parties, that would have avoided any inquiry: simply replace the juror with an alternate. Indeed, earlier in the trial a juror failed to show up. The court contacted the juror, found that he had mistakenly gone to work thinking that the court was not in session that day, and instead of either ordering the juror to come to court or delaying the trial one day, the court *sua sponte* discharged the juror and seated an alternate. If we are not worried about summarily replacing a juror merely confused about the court schedule, why should we retain, unexamined, a juror who orders counsel to stop

7. As the majority notes, one defense advanced by Mr. Batticks was that he was not present for either of the attacks on Mr. Davis. Of course, undermining Mr. Davis's credibility would support that defense, so it is not clear why the majority thinks Mr. Batticks's claimed absence rendered him uninterested in attacking Mr. Davis's credibility. More importantly, the prosecution's theory was that Mr. Batticks participated in the assault; his counsel surely had an interest in painting Mr. Davis as incredible. Similarly, the majority claims that the juror's explosion occurred during examination by Mr. Bailey's counsel, and therefore any juror bias or misconduct did not affect Mr. Batticks. But Mr. Batticks and his codefendants were charged with attempted gang assault, which requires the participation of three or more persons; as to at least that count, an acquittal of one would require an acquittal of all. In addition, their cross-examinations of witnesses were coordinated, and in summation they relied on each other's cross-examinations—hardly a surprise in a trial charging several defendants with a joint assault. Mr. Batticks had as much to gain as did Mr. Bailey from the blocked cross-examination of Mr. Davis, and as much to lose from a potentially biased juror.

questioning under the threat she will leave, when ready replacements are available and agreed to?

A *Buford* inquiry would have prevented any need for speculation. It would have clarified the juror's feelings towards the defendants, and either confirmed her ability to serve impartially or led to her discharge and replacement. Either way, Mr. Batticks would have been assured that his jury was fair and unbiased. Because the trial judge neither replaced the juror on consent nor inquired of the juror as to the reason for her outburst and her ability to judge the evidence fairly, Mr. Batticks cannot be confident that he was convicted by a jury willing to decide the case solely on the evidence before it. His constitutional right to a fair trial was violated, and he is owed a new one. We are all owed a system where outlandish behavior by jurors is not tolerated.

Judges STEIN, GARCIA and FEINMAN concur; Judge WILSON dissents in an opinion in which Judges RIVERA and FAHEY concur.

Order affirmed.

[159 NE3d 772, 135 NYS3d 48]

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v REGINALD GOLDMAN, Respondent.

Argued September 10, 2020; decided October 22, 2020

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered April 23, 2019. The Appellate Division (1) reversed, on the law, a judgment of the Supreme Court, Bronx County (Steven L. Barrett, J., at search warrant hearing; Martin Marcus, J., at jury trial and sentencing), which had convicted defendant, upon a jury verdict, of manslaughter in the first degree; (2) granted defendant's motion to suppress DNA evidence obtained by way of a search warrant issued on or about January 31, 2012; and (3) remanded the matter for a new trial.

People v Goldman, 171 AD3d 581, reversed.

HEADNOTES

Crimes — Search Warrant — Compelling Suspect to Provide DNA Evidence through Buccal Swab — Discovery and Hearing Requirements

1. Defendant's constitutional rights were not violated when a neutral magistrate issued a search warrant to obtain DNA evidence from defendant's body by buccal swab as defendant, provided with an opportunity to be heard on the application, other than on the issue of probable cause, directed no argument as to the reasonable nature of the bodily intrusion sought. The three-prong standard set forth in *Matter of Abe A.* (56 NY2d 288 [1982]) for the use of a search warrant pursuant to CPL article 690 for the seizure of corporeal evidence from an uncharged suspect requires the People to demonstrate probable cause to believe the individual committed the crime, a clear indication that material and relevant evidence will be found, and that the means of obtaining the evidence is safe and reliable. *Abe A.* should not be interpreted as creating a mandatory discovery procedure affording defendant access to the supporting affidavit demonstrating the requisite probable cause set forth in CPL article 690, as a matter of constitutional law. Access to that information must first depend on the magnitude of the bodily intrusion sought by the warrant. Given the undisputed utility of DNA identification in the criminal justice system, defendant could not credibly claim that the DNA evidence was unlikely to provide material evidence. Moreover, the buccal swab, a simple and common method for securing DNA, is undeniably safe, consists of a minimal intrusion and involves no discomfort. The constitutional role of the neutral magistrate to determine whether the warrant application set forth probable cause of defendant's commission of the crime and the factual basis for the DNA comparative evidence required no supplemental adversarial process.

Crimes — Evidence — Sufficient Foundation to Authenticate Video

2. In a homicide prosecution arising from an incident in which defendant was alleged to have shot and killed an individual in the territory of a rival group, a redacted version of a YouTube music video entitled “Mobbin Out” and depicting defendant rapping about “run[ning] up” into a rival crew’s “house,” which was admitted at trial as probative of his motive related to territorial gang activity, was sufficiently authenticated to demonstrate that the video accurately represented the subject matter depicted. The foundation necessary to establish authenticity may differ according to the nature of the evidence sought to be admitted. Here, it was significant that defendant did not dispute that he was the individual who appeared in the video reciting certain words. In addition, the video contained distinctive identifying characteristics; it depicted defendant and two of the other individuals who, as indicated by surveillance footage from the night of the shooting, were in the vehicle used during the shooting and in similar attire to what they were wearing that night, and the video’s background demonstrated that it was filmed in defendant’s neighborhood. The video was uploaded close in time to the homicide, and the driver of the vehicle testified that defendant called him the morning after the shooting to declare that the victim was dead and to invite him to attend the filming of a video later that day, establishing the timing of the making of the video. While the driver did not attend the filming, he stated his belief that the name of the video was “Mobbing Out,” affirmed that the admitted video accurately represented what he had previously viewed on YouTube, identified defendant and the two passengers from the video, and confirmed that a social media handle that appeared as text on the video was associated with defendant’s nickname and his group’s name.

RESEARCH REFERENCES

By the Publisher’s Editorial Staff

AM JUR 2d Evidence §§ 954, 974, 976, 977; AM JUR 2d Searches and Seizures §§ 195, 196, 199, 296.
CARMODY-WAIT 2d Search and Seizure §§ 173:119, 173:125, 173:150, 173:153; CARMODY-WAIT 2d Particular Types of Evidence §§ 194:44, 194:70.
LAFAVE, ET AL., CRIMINAL PROCEDURE (4th ed) §§ 3.4, 3.5, 24.4.
NY JUR 2d Criminal Law: Procedure §§ 218–223, 309, 712, 720, 2208, 2216, 2217.

ANNOTATION REFERENCE

See ALR Index under DNA; Search and Seizure; Social Media; Videotapes.

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POINTS OF COUNSEL

Darcel D. Clark, District Attorney, Bronx (Robert C. McIver, Nancy D. Killian and Peter D. Coddington of counsel), for ap-

pellant. I. A valid search warrant based upon probable cause is constitutionally sufficient to obtain a saliva sample from an incarcerated suspect. An adversarial hearing is not necessary prior to the issuance of such warrant. (*Matter of Abe A.*, 56 NY2d 288; *Matter of 381 Search Warrants Directed to Facebook, Inc.* [New York County Dist. Attorney's Off.], 29 NY3d 231; *People v Bilsky*, 95 NY2d 172; *People v Meekins*, 34 AD3d 843; *People v Rawlins*, 10 NY3d 136; *United States v Sechrist*, 640 F2d 81; *People v McNair*, 85 AD3d 693; *People v Smith*, 86 AD2d 251; *Matter of Albany County Dept. of Social Servs. v Rossi*, 62 AD3d 1049; *Davis v Mississippi*, 394 US 721.) II. Defendant's "Mobbin Out" video, available on YouTube, was properly authenticated and admitted at trial. (*People v Price*, 29 NY3d 472; *People v McGee*, 49 NY2d 48; *People v Patterson*, 93 NY2d 80; *People v Ely*, 68 NY2d 520; *United States v Hassan*, 742 F3d 104; *United States v Browne*, 834 F3d 403; *Parker v State of Delaware*, 85 A3d 682; *United States v Damrah*, 412 F3d 618; *United States v Vayner*, 769 F3d 125; *People v Davis*, 28 NY3d 294.)

Robert S. Dean, Center for Appellate Litigation, New York City (*Alexandra L. Mitter* of counsel), for respondent. I. The Appellate Division correctly determined that Reginald Goldman's right to due process was violated when the court denied him an opportunity to be heard on the DNA search warrant before it issued. (*Matter of Abe A.*, 56 NY2d 288; *United States v Dionisio*, 410 US 1; *People v Fomby*, 103 AD3d 28; *Missouri v McNeely*, 569 US 141; *Richards v Wisconsin*, 520 US 385; *Davis v Mississippi*, 394 US 721; *Hayes v Florida*, 470 US 811; *People v Lopez*, 16 NY3d 375; *People v Rosario*, 17 NY3d 501; *People v McNair*, 85 AD3d 693.) II. The Appellate Division correctly determined that the YouTube video was not properly authenticated; alternatively, the video should not have been admitted because it was highly prejudicial and of no probative value. (*People v Griffin*, 20 NY3d 626; *People v McGee*, 49 NY2d 48; *People v Patterson*, 93 NY2d 80; *Zegarelli v Hughes*, 3 NY3d 64; *People v Price*, 29 NY3d 472; *People v Ely*, 68 NY2d 520; *People v Franzese*, 154 AD3d 706; *United States v Vayner*, 769 F3d 125; *People v Wells*, 161 AD3d 1200; *United States v Browne*, 834 F3d 403.)

OPINION OF THE COURT

Chief Judge DiFiore.

In *Matter of Abe A.* (56 NY2d 288 [1982]), we sanctioned the

use of a search warrant pursuant to CPL article 690 for the seizure of corporeal evidence from an uncharged suspect. Since the seizure required a bodily intrusion, the Court, using a Fourth Amendment reasonableness analysis, set forth a three-prong standard, requiring the People to demonstrate probable cause to believe the individual committed the crime, a “clear indication” that material and relevant evidence will be found, and that the means of obtaining the evidence is “safe and reliable.” We explained that, in balancing the need for a search warrant against any unwarranted intrusion, a court “must weigh the seriousness of the crime, the importance of the evidence to the investigation and the unavailability of less intrusive means of obtaining it, on the one hand, against concern for the suspect’s constitutional right to be free from bodily intrusion on the other” (*id.* at 291). Generally, when the corporeal evidence sought is not subject to alteration or destruction, there is no exigency and the search warrant application must be brought on notice to the suspect (*see id.* at 295-296). The primary issue presented by this appeal is whether *Abe A.* and the constitutional right against unreasonable search and seizure require that, prior to a neutral magistrate’s issuance of a search warrant to obtain DNA evidence from a suspect’s body by buccal swab, a suspect must receive—in addition to notice and the opportunity to be heard—discovery as to the demonstration of the probable cause in the warrant application and an adversarial hearing. We hold that there was no violation of any constitutional rights, as defendant, provided with an opportunity to be heard on the issuance of the warrant, directed no argument to the magistrate as to the reasonable nature of the bodily intrusion sought.

I.

Defendant was a member of Young Uptown Boys (YUB), a subset of a larger Bronx crew, Young Gunnaz. At 12:40 a.m. on August 14, 2010, defendant and three other individuals drove into a rival crew’s territory and defendant, exiting the front passenger seat of a vehicle, shot and killed the 16-year-old victim, who happened to be standing outside a residential building. The shooting was captured on surveillance video, and depicted a gold Nissan Maxima, occupied by four individuals. The shooter’s identity could not be determined from the surveillance footage. However, two days after the homicide, police located the driver of the vehicle, KG, who later became a cooperating witness and identified defendant as the shooter.

KG's vehicle was seized and processed for DNA evidence. The Office of Chief Medical Examiner (OCME) tested the evidence and generated DNA profiles, including an unknown profile from Male Donor A on a sample taken from the interior front passenger seat door handle and a mixture of DNA from the front passenger armrest handle. In the meantime, the police obtained surveillance footage from defendant's apartment building, recorded minutes after the shooting, corroborating KG's narrative that the four occupants of the gold Maxima went to the building after the shooting.

On January 31, 2012, the People sought a search warrant to obtain a saliva sample for DNA testing from defendant, who was in custody in Rikers Island on unrelated charges. The supporting affidavit, submitted by the investigating officer, alleged that, based on surveillance footage and information provided by known witnesses based on their direct knowledge, defendant was the shooter who exited the front passenger seat of the Maxima and killed the victim. The application sought an exemplar of defendant's DNA for comparison to the DNA profiles the lab generated from the samples taken from the front passenger area of the Maxima, as evidence of his commission of the murder. The affidavit alleged that a police officer would take the saliva sample and deliver it to OCME and, citing to *Abe A.* and other case law, represented that the method of seizure is safe and reliable.

The People notified counsel who was representing defendant on the unrelated charges of the pending application and that attorney appeared at the hearing on defendant's behalf. At that time, the court noted that, although the People "elected to notify the defense counsel" of the search warrant application, "this is an ex-part[e] application." The court observed that during the proceeding the cooperating witness in this murder investigation would likely be identified on the record, making it "anomalous" that defense counsel would be present. Nonetheless, the court stated that it would "allow [defense counsel] to make your objection to the substantive issues."

Based on *Abe A.*, counsel argued that, where, as here, there is no exigency in the seizure of the DNA evidence, due process required that a suspect be given notice and an opportunity to challenge the search warrant "before his constitutional right to be let alone may be infringed." Notwithstanding the absence of an accusatory instrument, defense counsel also asserted that

the discovery procedure under (former) CPL 240.40¹ should apply—and that he should be permitted to review the warrant application, even if it was only a redacted copy. Counsel directed no argument to either the safety, reliability, or physical discomfort of the method to be used to seize saliva through a buccal swab or whether the swab would “put into the possession of law enforcement authorities a sample from which a wealth of additional, highly personal information could potentially be obtained” (*Birchfield v North Dakota*, 579 US —, —, 136 S Ct 2160, 2177 [2016]). The court then excluded counsel from the remainder of the hearing.

The court signed the search warrant, concluding that there was “probable cause and more” to believe that defendant committed the crime and was the source of the DNA profile in the vehicle. OCME analyzed defendant’s exemplar, compared it to the profile of the primary donor from a mixture taken from the front passenger seat area of the Maxima and concluded that the profiles were the same. In March 2012, defendant was charged by indictment with two counts of murder in the second degree, manslaughter in the first degree and criminal possession of a weapon in the second degree.

Prior to trial, defendant moved to suppress the DNA evidence. He argued that the court refused to hear from his attorney on the issue of probable cause. Defendant, without the benefit of access to the search warrant application, made the conclusory assertion that the application failed to set forth probable cause that he committed the homicide and failed to articulate how the DNA profile related to the homicide investigation. Despite a second opportunity to do so, defendant directed no argument to the safety, reliability, or physical discomfort of the use of the buccal swab to obtain his DNA, the value of DNA comparative evidence or the adequacy of any applicable restrictions on the use of his DNA sample—instead, defendant contested only the “first . . . and second requirements set forth in *Matter of Abe A.*” The court denied the suppression motion, adhering to its conclusion that probable cause had been established to support the issuance of the warrant.

1. CPL article 240, which set forth the obligations of the parties for discovery upon the filing of an accusatory instrument, has since been repealed (L 2019, ch 59, § 1, part LLL, § 1) and replaced by CPL article 245. CPL 240.40 allowed for a court order to seize corporeal evidence from a defendant, upon the People’s motion with notice to the defendant. The procedure is now authorized in the current version of the nontestimonial discovery statute (CPL 245.40 [containing the language of *Abe A.*’s three-prong test]).

At trial, the People sought to introduce a redacted version of a music video in which defendant appeared entitled, “Mobbin Out.” The video, which had been uploaded to YouTube on August 25, 2010, depicted defendant rapping about “run[ning] up” into a rival crew’s “house” and was offered as probative of defendant’s motive. Defendant did not contest that he was the person depicted in the video, but argued that the video was inadmissible on the ground that it was not properly authenticated, as the People could not prove when it had been created. The court held that the video was admissible, subject to connection with KG’s testimony as to the timing of its creation.

KG testified about the murder, including details of defendant’s participation. He also related that defendant called him the morning after the shooting to declare that the victim was dead and to invite him to attend the filming of a video later that day. KG did not attend the filming, but believed that the name of the video was “Mobbing Out.” He affirmed that the video in evidence accurately represented what he had previously viewed on YouTube and identified, from the video, defendant and the two rear-seat passengers who had been in the Maxima at the time of the shooting. He also confirmed that a social media handle that appeared as text on the video was associated with defendant’s nickname—J Smooth—as well as the name of defendant’s crew (YUB).

Defendant was convicted, upon a jury verdict of manslaughter in the first degree. The jury acquitted defendant of second-degree murder.

The Appellate Division reversed, granted defendant’s motion to suppress the DNA evidence and remanded for a new trial (171 AD3d 581 [1st Dept 2019]). The Court held that Supreme Court erred in precluding defense counsel from reviewing the search warrant application and in denying counsel the opportunity to be heard on the issue of probable cause. The Court rejected the People’s argument that *Abe A.* requires notice only for the first level of intrusion—seizure of the person—and held that the due process requirement of notice and an opportunity to be heard is likewise required for the subsequent search and seizure of corporeal evidence. The Court also held that the People failed to adequately authenticate the YouTube video under *People v Price* (29 NY3d 472 [2017]). A Judge of this Court granted the People leave to appeal (33 NY3d 1069 [2019]), and we now reverse.

II.

“The warrant requirement of the State and Federal Constitutions (NY Const., art I, § 12; US Const., 4th Amdt.) is designed to interpose the detached and independent judgment of a neutral Magistrate between the interested viewpoint of those engaged in ferreting out crime and potential encroachments on the sanctity and privacy of the individual” (*People v Hanlon*, 36 NY2d 549, 558 [1975], citing *Johnson v United States*, 333 US 10, 13-14 [1948]). Search warrant applications are usually based “on an ex parte application—by definition not litigated by the parties in the adversarial sense at all” (*People v Bilsky*, 95 NY2d 172, 176 [2000]; see *Heller v New York*, 413 US 483 [1973]). CPL article 690 codifies the constitutional requirements for a search warrant. Corporeal evidence, such as blood or DNA, is subject to seizure pursuant to the warrant if there is both reasonable cause to believe that a person has committed an offense and that the specified evidence to be seized tends to demonstrate that the person committed that offense (see CPL 690.10 [4]). The neutral magistrate makes this probable cause determination as a matter of course. A defendant may later exercise the right to challenge a search warrant based on lack of probable cause through a pretrial suppression motion (see 95 NY2d at 177). “[T]he Fourth Amendment’s proper function is to constrain, not against all intrusions as such, but against intrusions which are not justified in the circumstances, or which are made in an improper manner” (*Schmerber v California*, 384 US 757, 768 [1966]). In seizing corporeal evidence by a bodily intrusion, we must determine “whether the means and procedures employed in taking [the evidence] respected relevant Fourth Amendment standards of reasonableness” (*id.*).

In *Matter of Abe A.*, we addressed whether a court order to obtain a blood sample from an uncharged suspect in a murder investigation, for purposes of performing a blood typing test, was reasonable under the Fourth Amendment. We first concluded that a search warrant pursuant to CPL article 690 was the vehicle to compel a suspect to provide corporeal evidence, and then proceeded to address constitutional concerns arising from a seizure by way of a bodily intrusion. We held that, “Fourth Amendment safeguards should be seen as implicated at two discrete levels. These are, first, ‘the “seizure” of the “person” necessary to bring him into contact with government agents’ and, second, ‘the subsequent search for and seizure of the evidence’ ” (56 NY2d at 295, quoting *United*

States v Dionisio, 410 US 1, 8 [1973]). At the first level, a judicial determination of probable cause was required for the initial seizure of the person, except in cases of exigency (*see* 56 NY2d at 295). We observed that the procedure employed by the People in *Abe A.*, “bringing on its original application on notice to the suspect[,] was no more than is required by such circumstances,” citing to cases where there was an adversarial hearing prior to the issuance of the order authorizing the corporeal search (56 NY2d at 296, citing *United States v Crowder*, 543 F2d 312, 316 [DC Cir 1976] [surgical removal of bullet]), although *Abe A.* itself involved a “routine” blood draw (56 NY2d at 299). It was in that context that we observed, in the absence of exigency, “it is an elementary tenet of due process that the target of the application be afforded the opportunity to be heard in opposition before his or her constitutional right to be left alone may be infringed” (56 NY2d at 296).

As to the “second level of our Fourth Amendment inquiry” required when law enforcement presents the courts with a request for a bodily intrusion, we held that there must be a “clear indication that the intrusion will supply substantial probative evidence” but that facts establishing probable cause would likely establish the necessary relevance (56 NY2d at 297 [internal quotation marks omitted], citing *Schmerber*, 384 US at 770).² “Next, the method by which the authorized intrusion is to be accomplished must be safe, reliable and impose no more physical discomfort than is reasonably necessary” and when “the body is to be invaded, the procedure should be carried out by a qualified physician in accordance with accepted medical standards” (56 NY2d at 297-298, citing *Schmerber*, 384 US at 771-772). Finally, we directed the issuing court to consider the circumstances of the particular case, including the

2. The “clear indication” that material and relevant evidence will be found is not a separate standard under the Fourth Amendment (*see United States v Montoya de Hernandez*, 473 US 531, 540-541 [1985]). Rather, as used in *Schmerber*, it “indicate[s] the necessity for particularized suspicion that the evidence sought might be found within the body of the individual” (*id.* at 540). Thus, there is some degree of overlap between the probable cause (CPL art 690) and “clear indication” standards. Significantly, *Abe A.* predated the advent of DNA evidence. Thus, unlike *Abe A.*, where it was not necessarily clear that a suspect’s blood type would provide probative evidence identifying the perpetrator (*see People v Mountain*, 66 NY2d 197 [1985]), a determination of probable cause to compare DNA evidence of a suspect to a fully developed DNA profile obtained from a relevant crime scene would render the “clear indication” test in *Abe A.* academic.

value of the potential evidence and alternative, less intrusive, means for obtaining it (56 NY2d at 298).

The fundamental Fourth Amendment constitutional protection of a search warrant predicated on probable cause was employed here, narrowing the issue to the crucial factor of the magnitude of the intrusive procedure sought and, on that issue, *Maryland v King* (569 US 435 [2013]) is significant. There, the Court addressed whether it was unreasonable, in the absence of any exigency, to permit a warrantless buccal swab taken by law enforcement authorities for DNA analysis as part of a routine booking procedure pursuant to state law based on the defendant's arrest for a violent felony. The Court noted that even a search for which a warrant is not required must be reasonable, particularly in the "scope and manner of execution" (569 US at 448). The Court characterized the swabbing procedure as a "brief and . . . minimal intrusion" that was "quick and painless" (569 US at 463, 444). Where the defendant had been validly arrested based on probable cause, his "expectations of privacy were not offended by the minor intrusion of a brief swab of his cheeks," given the significant state interests in identifying him (*id.* at 465). It further noted that the "buccal swab is a far more gentle process than a venipuncture to draw blood" (the intrusion in *Abe A.*, which also required medical assistance) (*see id.* at 446, citing *Winston v Lee*, 470 US 753, 760 [1985]). Plainly, then, *King* lays to rest any constitutional concern that the very nature of the bodily intrusion occasioned by a buccal swab would necessitate an *Abe A.* inquiry as to the procedure's safety, reliability and absence of physical discomfort.

Conversely, although an intrusion will typically be deemed reasonable once probable cause has been established, there are certain situations, such as surgery, that "implicate[] expectations of privacy and security of such magnitude that the intrusion may be 'unreasonable' even if likely to produce evidence of a crime" (*Winston*, 470 US at 759). To that end, *United States v Crowder*, which *Abe A.* cited for the proposition that a motion "on notice to the suspect was no more than is required" (56 NY2d at 296) dealt with a substantial bodily intrusion. In *Crowder*, the court held an adversarial proceeding to determine whether the surgical removal of a bullet from the arm of a murder suspect was reasonable. At that hearing, the court heard testimony from a physician, who opined on the risks of the surgery—including the location of the bullet, its proximity

to any nerves in the individual's body and any potential lasting effects (543 F2d at 314). That hearing was addressed largely, if not solely, to the issue of the potential risks posed by the surgery—a matter beyond the ken of the court and requiring expert medical testimony. Under those circumstances, an adversarial fact-finding hearing on the subject of the manner and method of the intrusion is in keeping with *Abe A.*'s requirement of a pre-execution opportunity to be heard, as juxtaposed with the demonstration of basic probable cause in the warrant application mandated by the constitution and CPL article 690. Indeed, the critical difference between an *Abe A.* application and the ordinary ex parte search warrant application is the request for a bodily intrusion, which triggers the requirement of notice and an opportunity to be heard; a more invasive intrusion may require a fact-finding hearing as to the personal risks to the suspect if the seizure is authorized. There is no purpose for such a hearing if the reasonable and minimal nature of the bodily intrusion is well-established and the likelihood that the specified evidence seized in that intrusion possesses an acknowledged probative value, particularly in the context of comparative analysis.

King is also relevant to another important privacy interest that must be considered when corporeal evidence is sought. As noted, our decision in *Abe A.* predated the use of DNA evidence. The blood test at issue in that case “reveal[ed] only one bit of information”—blood type—and did not “put into the possession of law enforcement authorities a sample from which a wealth of additional, highly personal information could potentially be obtained” (*Birchfield*, 579 US —, 136 S Ct at 2177). As *King* explained, the DNA profile sought was developed pursuant to national standards from a particular noncoding region of the chromosomes, which, “while useful and even dispositive for purposes like identity, does not show more far-reaching and complex characteristics like genetic traits” (569 US at 443). In balancing the legitimate government interest at issue in *King* with the respondent's reasonable expectations of privacy, the Court emphasized that the Maryland statute at issue in the case permitted “law enforcement officers [to] analyze DNA for the sole purpose of generating a unique identifying number against which future samples may be matched” and “provide[d] statutory protections that guard against further invasion of privacy” (569 US at 464-465). The Court noted that the statute required “that ‘[o]nly DNA records that directly re-

late[d] to the identification of individuals [could] be collected and stored.’ No purpose other than identification [was] permissible: ‘A person may not willfully test a DNA sample for information that does not relate to the identification of individuals as specified in this subtitle’ ” (*id.* at 465 [citations omitted], quoting Md Code Ann, Pub Safety §§ 2-505 [b] [1]; 2-512 [c]). The Court explained that “a statutory or regulatory duty to avoid unwarranted disclosures generally allays . . . privacy concerns” (*id.* [internal quotation marks and citations omitted]).

In that regard, we note that the Executive Law demands an accredited state laboratory conform to the national DNA index system in developing the DNA profile from limited loci and imposes a similar duty to maintain the confidentiality of the results of DNA testing to avoid unwarranted disclosures (*see* Executive Law §§ 995-c, 995-d; 9 NYCRR 6192.3 [b]; *see also* *Matter of Samy F. v Fabrizio*, 176 AD3d 44, 47 [1st Dept 2019]). Assuming the applicability of those significant statutory safeguards, there is no need for an adversarial hearing to determine whether the collection of a DNA sample amounts to an unreasonable invasion of privacy in a particular case.

The People, of course, always bear the burden of establishing probable cause that defendant committed an offense and that the evidence sought tends to demonstrate defendant’s commission of the offense—the burden applicable to any *ex parte* application for a search warrant. Probable cause is reviewed by the neutral magistrate without the need for an adversarial hearing. Consequently, *Abe A.* should not be interpreted as creating a mandatory discovery procedure affording defendant access to the supporting affidavit demonstrating the requisite probable cause set forth in CPL article 690, as a matter of constitutional law (*see* *People v Castillo*, 80 NY2d 578, 584 [1992]; *People v Liberatore*, 79 NY2d 208, 216 [1992]). This is not to say that a court may not use its discretion to grant discovery in an *Abe A.* application in conducting the reasonableness analysis as to probable cause, after balancing “the seriousness of the crime, the importance of the evidence to the investigation and the unavailability of less intrusive means of obtaining it, on the one hand, against concern for the suspect’s constitutional right to be free from bodily intrusion on the other” (56 NY2d at 291), but access to that information must first depend on the magnitude of the bodily intrusion sought by the warrant (*see* *King*, 569 US at 464; *Crowder*, 543 F2d 312, 316).

[1] It is evident that *Abe A.*'s requirement of notice and an opportunity to be heard in the pre-execution stage of a warrant authorizing the seizure of evidence by bodily intrusion was satisfied in this case. Defense counsel, having received notice of the hearing on the warrant, was given an opportunity to be heard on the application, other than on the issue of probable cause. Counsel failed to direct any argument to the nature of the intrusion, the value of comparative DNA analysis evidence or the sufficiency of the safeguards preventing unwarranted disclosure of the results of his DNA testing, either at the hearing or in his motion to suppress. Given that "the utility of DNA identification in the criminal justice system is already undisputed" (569 US at 442), defendant could not mount a credible claim that the DNA evidence was unlikely to provide material evidence. The buccal swab—now a simple and common method for securing a convicted defendant's DNA for inclusion in a computerized identification index (*see* Executive Law § 995-c)—is undeniably safe, consists of a minimal intrusion and involves no discomfort. The constitutional role of the neutral magistrate to determine whether the warrant application set forth probable cause of defendant's commission of the crime and the factual basis for the DNA comparative evidence required no supplemental adversarial process. Thus, the method and procedures employed in taking the saliva undoubtedly respected relevant Fourth Amendment standards of reasonableness, and defendant's claim that the failure to provide him discovery of the extant probable cause and an adversarial hearing nonetheless warrants the invocation of the exclusionary rule is without constitutional basis.

Since defendant received notice and an opportunity to be heard on the nature of the bodily intrusion to be authorized by, and the evidence to be collected under, the warrant in this case, it is not necessary to address the People's arguments that *Abe A.*'s notice procedure preceding the issuance of a search warrant is no longer required for the minimal intrusion occasioned by a buccal swab or that the notice procedure does not apply to a suspect who is in custody. Supreme Court properly denied the motion to suppress the DNA evidence.

III.

The Appellate Division also concluded that the YouTube video was not properly authenticated under any of the methods cited in *People v Price*. In that case, the People sought to introduce a

still photograph they found on an Internet profile page, which showed the defendant holding a gun, for the purpose of proving that it was the same gun he allegedly used in the charged robbery. Since the People failed to meet their own proposed burden of proof—the witness failed to identify the gun as the one used in the robbery and there was insufficient evidence to establish that the defendant controlled the webpage on which the photo was posted—we held that the photo should not have been admitted due to the absence of a proper foundation (29 NY3d at 480). However, we also recognized that “‘[t]he foundation necessary to establish [authenticity] may differ according to the nature of the evidence sought to be admitted’” (29 NY3d at 476, quoting *People v McGee*, 49 NY2d 48, 59 [1979]).

[2] In the circumstances presented, the YouTube video was sufficiently authenticated to demonstrate that the video “‘accurately represent[ed] the subject matter depicted’” (29 NY3d at 477, quoting *People v Byrnes*, 33 NY2d 343, 347 [1974]). The moving picture evidence at issue here is distinguishable in several respects from the still photograph at issue in *Price*. In addition to the significant fact that defendant did not dispute that he was the individual who appeared in the video reciting certain words, the video contains distinctive identifying characteristics—particularly, it depicts defendant and two of the other individuals who were in the Maxima during the shooting in similar attire to what they were wearing on the night of the homicide and the background demonstrated that it was evidently filmed in defendant’s neighborhood. KG’s testimony also provided evidence pertinent to the timing of the making of the video—including defendant’s admission of his future intent to make the video the next morning (see *People v James*, 93 NY2d 620, 630 [1999])—and the video was uploaded to YouTube close in time to the homicide. In addition, the video was introduced for its relevance to defendant’s motive related to territorial gang activity—which is not an element of the offense—rather than specifically offered for its truth. This case is very similar to *United States v Pettway* (2018 WL 4958962, 2018 US Dist LEXIS 176848 [WD NY, Oct. 15, 2018, No. 1:12-cr-103 (TJM)]), wherein the court addressed the authentication of a YouTube video depicting the defendant, who did not dispute that he was the man depicted in the video, rapping about conduct similar to that involved in the crime. Under the circumstances, the court concluded that a witness’s testimony as to the source of the video and how it was discovered, and

identifying the defendant as the person depicted, was sufficient to allow the jury to conclude that the video was what the government claimed it to be (*Pettway*, 2018 WL 4958962, *6, 2018 US Dist LEXIS 176848, *19; *see also United States v Washington*, 2017 WL 3642112, 2017 US Dist LEXIS 136220 [ND Ill, Aug. 24, 2017, No. 16-cr-477]).

In light of its holding, the Appellate Division did not address defendant's argument that the trial court abused its discretion in determining that the video's probative value outweighed its potential for prejudice (*see People v Brewer*, 28 NY3d 271, 277 [2016]).

Accordingly, the order of the Appellate Division should be reversed, defendant's motion to suppress denied, and the case remitted to the Appellate Division for determination of the facts and issues raised but not determined on appeal to that Court.

FAHEY, J. (concurring in result). I share the view of the majority, detailed in section II of its opinion, that *Matter of Abe A.* (56 NY2d 288 [1982]) and the constitutional right to be free from unreasonable searches and seizures do not "require that, prior to a neutral magistrate's issuance of a search warrant to obtain DNA evidence from a suspect's body by buccal swab, [the] suspect must receive . . . discovery as to the demonstration of the probable cause in the warrant application and an adversarial hearing" (majority op at 585). Consequently, I agree with the majority that "Supreme Court properly denied the motion to suppress the DNA evidence" (*id.* at 594).

I also agree with my dissenting colleagues to the extent they conclude in section III of their writing that the YouTube video central to this matter should not have been admitted into evidence because it was not properly authenticated (*see* dissenting op at 619-620). Applying "the traditional test for authentication to [this] digital [recording] taken from a social media website" (*id.* at 619), I agree with the dissenters that the jury should not have seen the video because "[t]here was [neither] testimony from anyone involved in the video's creation, nor was there any expert testimony as to the video's unaltered state" (*id.* at 619; *see generally People v Price*, 29 NY3d 472, 480 [2017]).

Ultimately, however, I concur in the result because, in my view, the error in admitting the YouTube video into evidence is harmless (*see generally People v Crimmins*, 36 NY2d 230, 241-242 [1975]). The DNA evidence placed defendant in the

automobile used to transport the shooter to and from the crime scene, defendant was identified as the shooter by the driver of that vehicle, and surveillance footage from the apartment building in which defendant lived confirmed the narrative of events described by that cooperating witness at trial.

RIVERA, J. (dissenting). “One of the greatest contributions of American law may be the protection it affords the individual against the power of the government itself” (*Matter of Abe A.*, 56 NY2d 288, 290 [1982]). That protection extends to the individual’s “constitutional right to be free from bodily intrusion” by the government (*id.* at 291). “[I]t is an elementary tenet of due process” that the target of a government search and seizure must ordinarily receive notice and “be afforded the opportunity to be heard in opposition before [their] constitutional right to be left alone may be infringed” (*id.* at 296).

Under the majority’s reasoning, in the ordinary course, a government official may request, unchallenged and in secret, a warrant to excise bodily material from a person not charged with any wrongdoing but suspected of a crime—not because of exigent circumstances but because the proposed method of extraction is minimally intrusive (majority op at 592). Constitutional safeguards prevent the type of routinization of government intrusion sanctioned by the majority.

As a bulwark against governmental abuse of authority, “[t]he notice due process requires [under both the United States and New York State Constitutions] is notice reasonably calculated, under all of the circumstances, to apprise the interested parties of the pendency of the action and afford them an opportunity to present their objections” (*People v Ramos*, 85 NY2d 678, 683-684 [1995]). Issuance of the warrant to collect a sample of defendant Reginald Goldman’s DNA violated his constitutional rights to due process by denying counsel an opportunity to review the warrant application and argue at an evidentiary hearing beforehand against the proposed bodily intrusion (*see Abe A.*, 56 NY2d at 296). Apart from this constitutional violation, there is also the matter of the trial court’s erroneous admission of a redacted music video, despite a lack of authenticating evidence that the video is genuine and unaltered (*People v McGee*, 49 NY2d 48, 59 [1979]). There is no need to remit for further review, as the Appellate Division properly concluded that either error requires reversal of the conviction and a new trial. I dissent.

I.Counsel's Exclusion from the Evidentiary Hearing on the
Warrant Application

According to the prosecutor's theory of its case against defendant Reginald Goldman, defendant was a member of a gang-like "crew" who went looking to scare people with his gun and fatally shot an innocent victim in a neighborhood controlled by a rival crew. As described at trial, the shooting tracked familiar gang behavior: defendant and three others were driving around when defendant directed the driver of the car to stop across from a small group, he then leaned out and away from the car, shouted his crew's initials, and shot at an individual on the street.

The prosecution turned on the testimony of KG, the vehicle driver and the only person to identify defendant as the shooter. Initially, KG named someone other than defendant. Five months later, represented by counsel and having negotiated a cooperation agreement whereby the prosecutor would recommend a noncustodial sentence in exchange for his testimony against defendant, KG recanted and said defendant shot the victim.

An investigating detective applied for a search warrant to obtain a saliva sample from defendant. The detective intended to compare DNA from the saliva sample to DNA collected from KG's car. At the time, defendant was represented by counsel and in custody on an unrelated and unresolved matter. An assistant district attorney gave defendant's counsel notice of the request without providing the warrant application. At the warrant hearing, the court permitted counsel to make a short statement but excluded him from the substantive evidentiary portion of the hearing and refused counsel's request to review the application's contents.

In response to counsel's arguments that, under existing case law, including this Court's decision in *Abe A.*, defendant was entitled to notice and an opportunity to be heard on the merits, the court stated that search warrant applications are generally ex parte and that *Abe A.* only requires notice and opportunity to be heard before a defendant is taken into custody. The court held that *Abe A.*'s protections did not apply before the actual search and seizure of bodily evidence from a defendant. As such, the requirement is inapplicable when, as here, the de-

fendant is already in custody. The court further noted that defendant could controvert the warrant at a later time, but he could not contest the warrant prior to its issuance. The court viewed this as a key distinction between an application for a search warrant against an uncharged individual and the requirements of CPL 240.40, which permits the taking of bodily evidence from someone charged with a crime, upon motion on notice.¹

At the hearing, the following colloquy took place:

“THE COURT: This is in the matter of an application for a search warrant . . . authorizing the seizure of a DNA sample from Reginald Goldman. . . . [T]he district attorney . . . has[,] for reasons that I don’t fully understand, elected to notify the defense counsel of her intent to make this application. It is my view she has no obligation to notify defense counsel about an application for a search warrant as this is an ex-part[e] application. Furthermore, in light of the fact that it is likely the confidential information will either be present on the affidavit or elicited on this record, it is further anomalous to me that the defense counsel is invited to be present and believes that he has a right to be present. At this point I don’t believe that he has a right to be present, but . . . I will allow him to appear in the following limited manner . . . I assume that at this point has he seen this application?

“[ASSISTANT DISTRICT ATTORNEY]: No. And I don’t wish that he does.

“THE COURT: All right. He’s not entitled to see the application because as I said, it’s ex-part[e], but he is here and he was invited to be here and for that reason, I will allow him a short statement in advance of the application. . . .

1. That provision of the Criminal Procedure Law, which has since been repealed and replaced by CPL 245.40, authorized the prosecution to obtain an order “[p]ermit[ing] the taking of samples of blood, hair or other materials from [a defendant’s] body in a manner not involving an unreasonable intrusion thereof or a risk of serious physical injury thereto” but only if “an indictment, superior court information, prosecutor’s information, information, or simplified information charging a misdemeanor is pending” and only by motion on notice to the defendant (CPL 240.40 [2] [b] [v]).

“[COUNSEL]: Thank you, your Honor . . . I represent Mr. Goldman . . . on [matters unrelated to this investigation] . . . Your Honor, it’s my position that . . . such an application . . . should be on notice to counsel . . .

“THE COURT: . . . The fact is that search warrants, at least the way they’ve been applied for in my thirty years doing judicial work, have always been ex-part[e], but you’re here and I’ve given you the opportunity to speak on the record. So it’s beside the point whether you agree or disagree with the ex-part[e] nature of the application . . .

“[COUNSEL]: For the record, I disagree with the Court’s ruling.

“THE COURT: I haven’t made a ruling yet, but why don’t you anticipate the ruling and make your record.

“[COUNSEL]: . . . I cite the Court to *People [v] Latibeaudierre*, 174 Misc 2d 60 [Sup Ct, Queens County 1997, Rotker, J.] a case very similar to the facts here, [where] the People initially sought . . . to compel the defendant who had a case pending . . . to submit a blood sample on an unrelated investigation . . . [A]fter . . . [an] off the record colloquy, the People withdrew [the CPL 240.40 (2) (b)] motion . . . and then sought an ex-part[e] search warrant application much like the People are seeking here, except that in that case they didn’t notify defense counsel and a motion was later brought to challenge the search warrant application and Judge Rotker held that . . . the search warrant application did have to be on notice to counsel. . .

“THE COURT: . . . [Y]ou’re arguing the point that I have disagreed with you. . . . [Y]ou correctly cited [CPL 240.40]. That is available in all circumstances by statute to allow for an application for a saliva sample or other types of DNA sampling, and in my judgment, essentially replaces the need for a search warrant which preceded, as common law requirement, preceded the existence of that statute.

Furthermore, the notice requirement under the statute is implicit because it is by motion. Third, there's nothing in the provisions of the statute that change the right of the People to go by a search warrant if they should wish. Fourth, there's nothing in the nature of this application that mandates that a search warrant be on notice when by its nature it is not on notice. And fifth . . . *[M]atter of Abe A*, 56 NY2d 288 . . . makes a distinction between a seizure of a person necessary to bring them in contact with the government and then the subsequent search or seizure for the evidence. And that's at page 295 and, in fact, I will quote from that, [']turning then to the constitutional issues which confront us on this appeal, Fourth Amendment safeguards should be seen as implicated at two discre[te] levels. These are, first, the seizure of the person necessary to bring them in contact with government agents, and second, subsequent search and seizure of evidence.['] The application of the notice requirement that you're relying on in a search warrant context appears to this Court to be the one in which . . . the party to the seizure is not currently in custody. And that's the first of the seizures that are addressed by the *Abe* Court in that paragraph. Had your client not been in custody as he is, then in order to obtain your client's presence, it would have been appropriate for the People to notify you in order to satisfy the requirements of the Constitution and I think that's what the *Abe* case acknowledges, when your client is not in custody you're entitled to notice. However, this case does not have a first stage seizure. That's because your client is in custody, and therefore, notice to you is totally unnecessary to bring him constitutionally before this Court or before any other body that this Court orders and I do not believe that the *Abe* Court addresses that situation as one in which notice to you is required. . . . So you have an exception to my ruling . . . [T]he actual standard for both are identical. That is probable cause. And furthermore, although the procedures are different, your rights are still insured. You have the right with respect to a search warrant to controvert the

warrant. . . . [T]he search warrant procedures were in effect long before [CPL 240.40] was enacted and although I prefer [CPL 240.40], and I have no general objection to your knowing that this is going to be done, you have to understand that there might be instances in which an application for a DNA sample is based on matters that cannot be fully revealed because there's issues of security, issues of privacy issues that would endanger an individual and in those instances, it might just be that the search warrant procedure which can be more fully protected with redactions is more appropriate. Furthermore, it is my understanding that a [CPL 240.40] application still can be put through with a redacted application if there are confidential facts that are necessary to establish the basis for the search. . . . My understanding is that certain material that has been put in this is confidential at this time and can't be revealed.

"[COUNSEL]: I would ask for a redacted copy. The Court deems that the notice requirement isn't really applicable here, but I would argue that it is applicable and that notice would include allowing me to see the search warrant application.

"THE COURT: At some point you can because . . . you will have the right to controvert the warrant. . . . At some point not too far and it might be a redacted or maybe a full version depending on the circumstances here, but you do still have the right to controvert. In my judgment you don't have the right to do that before the warrant is issued. Again, because I believe this to be fundamentally an ex-part[e] proceeding, and properly so."

The court proceeded with the hearing outside of counsel's presence. The detective applicant was the sole witness and testified that he sought to obtain a saliva sample from defendant in order to compare it to DNA material he had collected from a vehicle believed to be involved in the shooting. He also testified that he had reviewed video surveillance footage of the shooting as well as information provided by "civilian witnesses" that conformed to what he had observed in the surveillance footage. The court concluded that the detective did not need to disclose any information regarding the witnesses' identities as

civilian witnesses are presumptively credible. The detective further testified that one of these unidentified witnesses placed defendant in the front passenger seat of the vehicle during the shooting. The court found probable cause to grant the application.

A cheek swab saliva sample of defendant's DNA was then analyzed and compared against the DNA on the front passenger interior door and armrest handles of KG's car, revealing a match. The judge who granted the search warrant application denied defendant's subsequent motion to suppress his DNA evidence, again concluding probable cause existed for the search. At trial the court admitted testimony that defendant's DNA matched DNA from the interior front passenger door handle of KG's car.

II.

The first question presented in this appeal, and elided by the majority, is whether a court may issue a warrant to obtain bodily material from a person held in custody on an unrelated matter without affording that person the opportunity to challenge the warrant upon proper notice of the basis for the government's request. Until today's holding, our precedent was clear that, absent an exigency, such as a suspect's possible flight or the destruction of evidence, a suspect gets the chance to argue the merits of why the warrant should not issue. And for good reason. The right to speak out against government bodily intrusion—before that intrusion occurs—is manifest in a civilized society.

A.

Constitutional Safeguards Adopted in *Matter of Abe A.* to Protect against Unlawful Government Bodily Intrusions of Suspects

The Fourth Amendment protects “[t]he right of the people to be secure in their persons, houses, papers, and effects, against unreasonable searches and seizures” (US Const 4th Amend; *see also* NY Const, art I, § 12)². The “basic purpose” of the Fourth Amendment “is to safeguard the privacy and security of

2. Although the language of the Fourth Amendment and article I, § 12 of New York's Constitution is identical, “this Court ha[s] not hesitated to expand

(n. cont'd)

individuals against arbitrary invasions by governmental officials” (*Camara v Municipal Court of City and County of San Francisco*, 387 US 523, 528 [1967]). Searches “involv[ing] a compelled physical intrusion” constitute “an invasion of bodily integrity” which “implicates an individual’s ‘most personal and deep-rooted expectations of privacy’” under the Fourth Amendment (*Missouri v McNeely*, 569 US 141, 148 [2013], quoting *Winston v Lee*, 470 US 753, 760 [1985]; see also *Schmerber v California*, 384 US 757, 769-770 [1966]; *Abe A.*, 56 NY2d at 295). These Fourth Amendment protections extend to those in state custody (see *People v Whitaker*, 64 NY2d 347, 351 [1985] [“A person does not lose all 4th Amendment rights once he has been lawfully incarcerated”]).

In *Abe A.*, our Court recognized that the core constitutional due process safeguards of notice and an opportunity to be heard apply prior to a potential infringement of the right to be left alone by the State’s request to extract corporeal evidence (56 NY2d at 296). In that case, the prosecution sought an order compelling an unindicted suspect in a homicide to provide a blood sample. Initially, the prosecution requested that the suspect voluntarily provide the sample, which he repeatedly refused to do. In light of the suspect’s unwillingness to comply, the prosecution sought, on notice, a judicial order compelling him to provide the sample. The court granted the order, expressly finding that there was probable cause that the suspect committed the murder, that the evidence sought was clearly probative, and that the bodily intrusion would be slight. The suspect again refused to comply, and the prosecution sought a contempt order, which the court granted. The Appellate Division reversed and dismissed the order compelling the suspect to provide a blood sample, holding that, as the suspect had not yet been indicted, the contempt order ran afoul of the Fourth Amendment (*Matter of Abe A.*, 81 AD2d 362, 369 [1981]).

Our Court reversed the Appellate Division, adopting an integrated analytic framework entailing a “multifaceted” inquiry. Under that framework,

“a court order to obtain a [sample of a suspect’s bodily material] may issue provided the People establish (1) probable cause to believe the suspect

the rights of New York citizens beyond those required by the Federal Constitution” (*People v Hinshaw*, 35 NY3d 427, 431 [2020]).

has committed the crime, (2) a ‘clear indication’ that relevant material evidence will be found, and (3) the method used to secure it is safe and reliable. In addition, the issuing court must weigh the seriousness of the crime, the importance of the evidence to the investigation and the unavailability of less intrusive means of obtaining it, on the one hand, against concern for the suspect’s constitutional right to be free from bodily intrusion on the other” (56 NY2d at 291).

“Only if this stringent standard is met . . . may the intrusion be sustained” (*id.*).

In reasoning through the constitutional issues presented in *Abe A.*, this Court relied on *United States v Dionisio*, which reaffirmed that “the obtaining of physical evidence from a person involves a potential Fourth Amendment violation at two different levels” (410 US 1, 8 [1973]). “These are, first, ‘the “seizure” of the “person” necessary to bring [the person] into contact with government agents’ and, second, ‘the subsequent search for and seizure of the evidence’ ” (*Abe A.*, 56 NY2d at 295, quoting *Dionisio*, 410 US at 8). “Each deserves separate analysis” (*id.*).

As to the first-level seizure of the person, the Court explained that, absent an exigency, a finding of probable cause is required. The Court further opined that, under the federal and state constitutions, “when the physical evidence whose possession is the *raison d’etre* for detaining a person cannot be altered or destroyed, . . . by definition there can be no exigency to justify exemption from the warrant standard of probable cause” (*id.* at 296, citing US Const 4th, 14th Amends; NY Const, art I, § 12). In explaining the need for a judicial finding of probable cause in advance of issuing a search warrant, the Court further stated that, because there was no exigency in *Abe A.*, the original application in that case was properly brought on notice to the suspect. “After all, when frustration of the purpose of the application is not at risk, it is an elementary tenet of due process that the target of the application be afforded the opportunity to be heard in opposition before [the person’s]

constitutional right to be left alone may be infringed” (*Abe A.*, 56 NY2d at 296 [citation omitted]).³

As this passage makes clear, the Court recognized that the right to be left alone does not solely encompass the right not to be stopped and seized but also includes the “right to be free from bodily intrusion” by the government (*id.* at 291; *cf. Union Pacific R. Co. v Botsford*, 141 US 250, 251 [1891] [“No right is held more sacred, or is more carefully guarded by the common law, than the right of every individual to the possession and control of his own person, free from all restraint or interference of others, unless by clear and unquestionable authority of law The right to one’s person may be said to be a right of complete immunity; to be let alone” (internal quotation marks omitted)]). In the simplest terms, the Court acknowledged the rule that, if the intended purpose of the search—obtaining bodily materials—is not at risk through the suspect’s flight or imminent destruction of the evidence, then due process requires notice and an opportunity for a hearing.

The analysis of the seizure of a person dovetailed with the Court’s discussion of the search for and seizure of a person’s bodily material—the second level of analysis. At that level, additional safeguards are necessary to protect the individual against a government “fishing expedition” for evidence, and the use of unsafe, unreliable methods of compelled bodily intrusion (*Abe A.*, 56 NY2d at 297).

B.

Abe A. Applies to Persons in Custody at the Time of the Warrant Application

As a constitutional matter, a person not charged with but suspected of a crime who is incarcerated on an unrelated matter faces the same threat of an unlawful seizure of bodily ma-

3. Moreover, this holding flatly rejected the argument, pressed by the prosecution in its briefing to the Court in *Abe A.*, that an adversarial hearing exceeded what due process required (*compare* brief for appellants in *Abe A.*, 56 NY2d 288 [1982] at 13 [arguing that the warrant court “went further than constitutionally required by issuing the order only after a full adversarial proceeding in which respondent and his counsel had an opportunity to challenge the sufficiency of the factual showing in advance”], *with Abe A.*, 56 NY2d at 296 [“At this point it seems appropriate to add, since here there was no exigency, that the course followed by the People in bringing on its original application on notice to the suspect was no more than is required by such circumstances”]).

terial as an uncharged suspect at liberty. *Abe A.*'s constitutional safeguards apply because of the nature of the request—intrusion into the body to collect corporeal evidence—not because a defendant is at liberty (*see* 56 NY2d at 291, 297).

The text of *Abe A.* does not support a different conclusion. In *Abe A.*, the Court cited *Matter of Barber v Rubin*, a then-two-year-old Appellate Division decision which ordered a pre-search hearing (*Abe A.*, 56 NY2d at 296, citing *Matter of Barber v Rubin*, 72 AD2d 347, 352 [2d Dept 1980]). In *Barber*, a defendant moved to prohibit the enforcement of a trial court order permitting the extraction of hairs from his head. The defendant argued that “the order, having been granted without a hearing, . . . violated [his] constitutional rights of due process and his protection against unreasonable searches and seizures under the State and Federal Constitutions” (72 AD2d at 349). In response, the Appellate Division ordered an evidentiary hearing to “prob[e] the necessity of the procedure . . . , the probative value of the evidence sought, the degree of invasion into the petitioner’s body, and the harm to which he might be exposed” (*id.* at 349). The Court further noted that it was not deciding whether the Federal Constitution required appellate review prior to submission to the blood test at issue in *Abe A.* because the vehicle for review employed in the case (appeal from conditional contempt) or a CPLR article 78 proceeding both provided pre-intrusion review and were therefore “constitutionally adequate substitute[s]” (56 NY2d at 296 n 3). In other words, the constitutional safeguards are preemptive.

If *Abe A.* meant something other than what it says, the law would trivialize the sanctity of the human body. For example, a person at liberty would have the right to challenge a seizure in advance but not the purpose of the seizure, and a person in custody would have no right to challenge either—but in both cases, the government’s seizure of bodily material is precisely what the individual seeks to avoid. Whether at liberty or in custody, the individual’s challenge is founded on society’s recognition that bodily intrusion by the government is prohibited except when certain “stringent standard[s] [are] met” (*id.* at 291). Individual rights against unlawful bodily intrusion can only be protected prior to the government’s seizure of bodily materials. The majority’s interpretation of *Abe A.* countenances invasions of a person’s body without an ability to contest the probable cause for the invasion in advance, other than, apparently, to challenge the nature of a particularly grievous intrusion (majority op at 591).

Contrary to the majority's adoption of the prosecution's argument, a suppression hearing is not a safeguard against this sort of unlawful government action (*id.* at 589). Such a hearing only provides relief from admission at trial of the material collected; it does not protect against the unlawful search of the person and provides no recourse to someone who is never charged with a crime. Only a pre-search hearing complies with due process as to the search itself.

The prosecution's argument that post-intrusion civil remedies are available for an alleged unlawful deprivation also misses the mark. Those remedies suffer from the same inadequacy as a motion to suppress—none prevent a possible constitutional violation, as they are triggered *after* the government intrusion into the body. They are remedies for a constitutional deprivation, not a safeguard against an unlawful taking of bodily material. They certainly do not protect individuals whom the government never charges. And yet, “the sole group for whom the Fourth Amendment’s protections ought to be most jealously guarded [are] people who are innocent of the State’s accusations” (*Maryland v King*, 569 US 435, 482 [2013, Scalia, J., dissenting]). Moreover, successfully pursuing such remedies may be an impossibility for vast numbers of individuals whose DNA has been collected, particularly those who are low-income (*see* Michael T. Risher, *Racial Disparities in Databanking of DNA Profiles in Race and the Genetic Revolution: Science, Myth, and Culture* 51 [Sheldon Krinsky & Kathleen Sloan eds 2011] [(F)ew arrestees, no matter how innocent, will be likely ever to return to court to wade through the process of getting their samples and profiles removed. This is particularly true for those without the resources to hire a lawyer to assist them”]; Julie Samuels et al., *Collecting DNA From Arrestees: Implementation Lessons*, 270 Nat’l Inst Just J 18, 23 [(“O)ur interviews with state crime laboratories suggest that when individuals bear the burden of initiating the expungement process, very few expungements actually occur and profiles are retained of individuals who were never formally charged with a qualifying offense or whose case resulted in acquittal or dismissal”]).

C.

Abe A.’s Workable Safeguards Apply to All Seizures of Bodily
Evidence

According to the majority, a pre-intrusion, adversarial fact-finding hearing is necessary only where the safety of the bodily intrusion is at issue, meaning only when the intrusion is so “extreme” in nature that it is unreasonable, notwithstanding the finding of probable cause. As the argument goes, because the buccal swab at issue here is a “brief and . . . minimal intrusion” (majority op at 591), defendant was not entitled to a hearing to challenge this method of extraction.

The majority’s attempt to draw a distinction between an ex parte warrant hearing and the procedure required by *Abe A.* based on this minimal-versus-extreme intrusion was implicitly rejected by the *Abe A.* Court. In fact, the Court described the blood draw at issue there as “hardly less routine than taking one’s temperature” (56 NY2d at 299), and yet adopted the very analysis for that type of extraction eschewed here by the majority.

Because *Abe A.* does not support the majority’s intended outcome, the majority turns to the United States Supreme Court’s decision in *King* (569 US at 466) for support. Neither the prosecution nor defendant, nor any judge to have considered defendant’s case, has so much as mentioned *King*. That is unsurprising, as *King* does not shed light on the real issue presented in this appeal, i.e., whether defendant should have received notice and opportunity to be heard at an adversarial proceeding on the warrant request to extract his bodily material (the same procedure sanctioned by this Court in *Abe A.*). *King* was concerned with the constitutionality of Maryland’s routine, warrantless collection of arrestees’ DNA, a scheme New York has not adopted (*see* Executive Law § 995-c [3] [a] [permitting routine collection of DNA only “subsequent to conviction and sentencing”]). Indeed, the decision turned on the privacy interests of arrestees, but *Abe A.* concerns the rights of a suspect—a person who has not been arrested on probable cause of having committed the crime that underlies the warrant application.

That a prosecutor might easily meet the burden of showing that buccal swabs are safe and reliable only means that *Abe A.* is workable (majority op at 590 n 2). As noted in *Abe A.*, “most

often facts which would establish probable cause will also tend to establish the high degree of relevance the nontestimonial evidence sought would have” (56 NY2d at 297 [citation omitted]).

Contrary to the majority’s suggestion, collecting an individual’s DNA via buccal swab is not a trivial event. A bodily intrusion is no less constitutionally significant because it is uncomfortable rather than painful, or because it can be accomplished by a nonphysician. Indeed, *Abe A.* requires that the manner of seizing bodily evidence be the least intrusive means possible. Ease of removal alone, then, does not dictate the legal analysis (see e.g. *Abe A.*, 56 NY2d at 299 [stating that due process protections are warranted even for the taking of blood which is “hardly less routine than taking one’s temperature”]; *Barber*, 72 AD2d at 352-353 [holding that the State must satisfy due process concerns before a suspect’s “right to be left alone” may be infringed, even when infringement entails mere extraction of strands of hair]; cf. *Arizona v Hicks*, 480 US 321, 325 [1987] [holding that moving an object a few inches nonetheless constitutes a search and “is much more than trivial for purposes of the Fourth Amendment” because “(a) search is a search”]).

The United States Supreme Court has recognized that the taking of blood and skin samples, even when easily extracted without surgical assistance, “constitute[] the type of ‘severe, though brief, intrusion upon cherished personal security’ that is subject to constitutional scrutiny” (*Cupp v Murphy*, 412 US 291, 295 [1973], quoting *Terry v Ohio*, 392 US 1, 24-25 [1968]; see also *King*, 569 US at 446 [quoting *Cupp* for the proposition that using a buccal swab to obtain DNA samples is a search under the Fourth Amendment]). “[S]earches involving intrusions beyond the body’s surface” implicate “[t]he interests in human dignity and privacy which the Fourth Amendment protects” (*Schmerber*, 384 US at 769-770; see also *Winston v Lee*, 470 US 753, 760 [1985] [bodily intrusions implicate the “most personal and deep-rooted expectations of privacy”]; *McNeely*, 569 US at 148 [holding that “a compelled physical intrusion” to obtain bodily evidence is “an invasion of bodily integrity” implicating individuals’ expectations of privacy]). The material extracted from defendant here contains the genetic, biological, and chemical essence of a human being. Indeed, “[o]ne can think of few subject areas more personal and more likely to implicate privacy interests than that of one’s . . . genetic make-up” (*Norman-Bloodsaw v Lawrence Berkeley Lab.*,

135 F3d 1260, 1269 [9th Cir 1998]). A person's genetic material contains not only a blueprint of their most intimate details—the basic building blocks of their physical characteristics, their propensity for certain diseases and medical conditions—but also carries with it similarly private information about their close and distant relatives. The collection of bodily material containing such a treasure trove of private information is deeply concerning (*see King*, 569 US at 482 [Scalia, J., dissenting] ["Perhaps the construction of such a genetic panopticon is wise. But I doubt that the proud men who wrote the charter of our liberties would have been so eager to open their mouths for royal inspection"]). Yet the majority minimizes these privacy concerns, deeming a buccal swab to be a "gentle process," less invasive than drawing blood (majority op at 591, quoting *King*, 569 US at 446). But "why are the privacy-related concerns not . . . weighty when an intrusion into the body is at stake?" (*King*, 569 US at 469 [Scalia, J., dissenting] [internal quotation marks and emphasis omitted].) After all, the "Fourth Amendment lists 'persons' first among the entities protected against unreasonable searches and seizures" (*id.* [emphasis omitted]). That material, even if contained in saliva, is entitled to the same safeguards against unlawful government collection as a blood sample or hair follicle (*see Abe A.*, 56 NY2d at 299; *Barber*, 72 AD2d at 352-353; *Schmerber*, 384 US at 769).

D.

Abe A. Guarantees the Right to Notice and a Meaningful Opportunity to be Heard at an Adversarial Hearing before Bodily Evidence May be Seized

If the *Abe A.* safeguards are workable, then why discard them? Now we reach the nub of the problem: the majority rejects the idea that, absent an exigency, government should present its evidence in an adversarial hearing on a request for corporeal evidence. But as explained in *Abe A.*, that is what the Constitution requires. The majority views such a hearing as unnecessary—apparently counsel has nothing to add on the question of whether the court should issue a warrant permitting a bodily invasion of a suspect. The majority assumes participation by a neutral magistrate is all that is needed to protect an individual's rights. But, of course, that is not the case. Obviously, the government official requesting the warrant will not argue against their interest, and so our system as-

sumes that the adversarial nature of the proceeding will sharpen the presentation of arguments that inform and aid the neutral decisionmaker.

The question presented on this appeal is not whether a government official may seek a warrant upon probable cause—that of course is the government’s burden, well established under the law, recognized by the prosecution and defendant here, and not in dispute. Nor is there doubt that an official may seek a warrant *ex parte*. That, too, is a well understood and accepted practice and a necessary tool of law enforcement. Nor is the issue whether a suspect of a crime is entitled to discovery on a warrant application, a characterization invented by the majority. At the time of the warrant request, defendant was an uncharged suspect in the shooting, so “discovery,” as that legal term is commonly understood, had no application to his situation. Rather, the issue in this appeal concerns the basic right to be notified of the government’s request for corporeal evidence and to be afforded an opportunity to speak against it.

The majority determines that defendant received notice and an opportunity to be heard and so declines to address the prosecution’s express, preserved grounds for reversal that no notice is required for a buccal swab or for a suspect in custody (majority *op* at 594). That is a striking conclusion, especially since the majority explains how defendant was denied access to the warrant application and was not permitted to question the prosecution’s witness or controvert the warrant in any way because the judge excluded counsel from the evidentiary hearing (*id.* at 586-587). Nonetheless, the majority suggests that the stringent *Abe A.* test is not implicated because “[d]efense counsel, having received notice of the hearing on the warrant, was given an opportunity to be heard on the application, other than on the issue of probable cause” (*id.* at 594). But the question of probable cause—exactly the issue counsel sought to address during the hearing—is central to the *Abe A.* inquiry (56 NY2d at 291).

Contrary to the majority’s selective references to the record, counsel did not have an opportunity to be heard on whether the warrant should issue. The judge predetermined that issue and made clear that counsel had no right to be heard on the merits of the application, essentially showing counsel to the courtroom door. From the beginning, the judge made abundantly clear his view that counsel was not authorized to so much as attend the hearing: “At this point I don’t believe that [defense counsel] has a right to be present, but . . . I will al-

low him to appear in the following limited manner: . . . I will allow him a short statement in advance of the application.” This proved to be a meaningless exercise: “I disagree with you as you know, with respect to the fact that you should be noticed. I think that it is not true that you should be noticed or even present frankly, as will be evident in the fact that you’ll be excused momentarily while the application for the search warrant is made.” As the record makes clear, counsel was only permitted to address why he should participate in the hearing. An opportunity to argue for an opportunity to argue is not due process (see *Ramos*, 85 NY2d at 683-684; *Mullane v Central Hanover Bank & Trust Co.*, 339 US 306, 314 [1950] [notice must be “reasonably calculated, under all the circumstances, to apprise interested parties of the pendency of the action and afford them an opportunity to present their objections”]; *Lankford v Idaho*, 500 US 110, 126 n 22 [1991] [“In a variety of contexts, our cases have repeatedly emphasized the importance of giving the parties sufficient notice to enable them to identify the issues on which a decision may turn”]).

Of course, nothing in the *Abe A.* framework forecloses the government from making a showing that its application and the evidence in support, or any part of it, should not be revealed to counsel and the suspect. The government knows how to argue that divulging certain information to a suspect presents the risk of destruction of evidence or witness intimidation and, in the case of a suspect at liberty, the possibility of flight from the jurisdiction (see e.g. *People v Liberatore*, 79 NY2d 208, 215 [1992] [“We have noted that where the disclosure of the identity of an informant is pertinent to establishing probable cause for arrest and search, an ex parte in camera hearing with respect to the existence of the informant and the alleged communication from that person strikes a proper balance between the defendant’s rights and the competing interests of the State”]; *People v Castillo*, 176 AD2d 609, 609 [1st Dept 1991] [“(T)he People moved for a protective order denying disclosure to the defense of the affidavit supporting the search warrant on the ground that this information might reveal the identity of the confidential informant and pose a safety risk to the individual’s life”], *affd* 80 NY2d 578 [1992]). A judge considering the warrant application may be persuaded by these arguments, but the judge cannot, as was done here, refuse to allow counsel to object on the merits when no such showing of exigency has been made. And while the nature of

the bodily evidence at issue here meant—as in *Abe A.*—that there was no risk of destruction and, therefore, no exigency justifying the seizure of defendant’s bodily material without notice or an opportunity to be heard, that will not always be the case for all bodily evidence (see e.g. *Schmerber*, 384 US at 770-771 [holding that the warrantless drawing of blood from individual suspected of drunk driving was justified because of the rapidly diminishing presence of alcohol in blood]).

Clearly, then, law enforcement may protect its investigatory process. Exclusion of counsel from warrant hearings may frequently be appropriate, but, in the case of warrants for corporeal evidence, it is not the constitutional default that the majority assumes. Indeed, the majority never confronts the fact that society tolerates ex parte warrants based upon a careful balancing of the rights of the individual against legitimate government interests. But, “when frustration of the purpose of the application is not at risk, it is an elementary tenet of due process that the target of the application be afforded the opportunity to be heard in opposition before [their] constitutional right to be left alone may be infringed” (*Abe A.*, 56 NY2d at 296). I cannot see how the risks that support issuance of an ex parte warrant exist as a matter of law when the suspect is in custody. It is baffling that, under the majority analysis, someone under government control cannot object before collection of their DNA, even though that person presents absolutely no risk of flight and could not possibly destroy the bodily evidence the government seeks. But, if a legitimate government interest is jeopardized by the procedure adopted in *Abe A.*, then the government need only carry its burden to demonstrate as much.

Defendant was entitled to, and denied, the opportunity to challenge the search warrant at an adversarial hearing upon notice of the warrant application’s contents, before issuance of the warrant and collection of defendant’s DNA.⁴ The assistant district attorney could have explained, but did not, that the ev-

4. Because *Abe A.*’s analytic framework applies regardless of an individual’s custodial status, I have no occasion to consider whether, in the context of a warrant application for bodily evidence, a person in custody retains some privacy interest against a first-level “seizure” conducted solely to accomplish a second-level search and seizure of the evidence (*Abe A.*, 56 NY2d at 295; see also *Whitaker*, 64 NY2d at 351 [“A person does not lose all 4th Amendment rights once he has been lawfully incarcerated”]; *People v Hall*, 10 NY3d 303, 318 [2008, Ciparick, J., concurring]; *King*, 569 US at 469-470 [Scalia, J., dissenting]).

idence should remain confidential, a burden squarely placed on the applicant for the warrant. Accordingly, the Appellate Division properly granted defendant's motion to suppress.

III.

Even though the majority incorrectly holds that the collection of defendant's DNA was constitutional, defendant is still entitled to a new trial based on the court's improper admission of a prejudicial, unauthenticated redacted music video.

A.

The Prosecutor's Authentication Evidence

Over counsel's objection, the court admitted into evidence a redacted video that the prosecutor argued depicted defendant singing lyrics to a song titled "Mobbin' Out," the full version of which was uploaded first to YouTube 11 days after the shooting and then to the website World Star Hip Hop two weeks later. As redacted, the video depicts several young men gathered on the street, walking along to lyrics that reference gang violence. According to the prosecutor, the video established motive by showing defendant rapping about how his crew operated—going into an area and hopping out (of a car) to attack a victim rather than in the course of a drive-by shooting. The prosecutor argued that the described conduct mirrored the crime, that the video supported the prosecution's theory that there was a rivalry between defendant's and another crew, and that the two individuals KG identified as seated in the car's backseat were known to defendant as they are also visible in the video.

To authenticate the video, the prosecution presented testimony from KG and a detective that the redacted video was an accurate representation of what they had viewed on the Internet. KG further testified that he received, but declined, an invitation from defendant to attend the filming of a music video shortly after the crime and which he presumed was the video he viewed before trial in the assistant district attorney's office. Both witnesses testified that defendant's nickname and crew affiliations were included in the video and identified him lip-syncing to lyrics about violent actions.⁵

The court concluded that defendant's invitation to KG to participate in filming a music video combined with the uploading

5. Counsel objected on the grounds that preclusion was appropriate because of the prosecutor's belated disclosure (after jury selection and before opening statements) despite her knowledge of the video prior to trial, and

(n. cont'd)

of the video to YouTube by an unknown person 11 days later were sufficient to authenticate the redacted video. During its final charge, the court instructed the jury that the video could not be used as propensity evidence.

B.

The Prosecutor Failed to Establish the Redacted Video was
Unaltered

“In determining whether a proper foundation has been laid for the introduction of real evidence, the accuracy of the object itself is the focus of inquiry” (*McGee*, 49 NY2d at 59). There must be proof that the proffered evidence “is genuine and that there has been no tampering with it” (*id.*). That proof may be direct or circumstantial, and reasonable inferences are permissible as long as they are not “too tenuous and amorphous” (*Price*, 29 NY3d at 481, citing *People v Patterson*, 93 NY2d 80, 85 [1999]). While courts have identified some recognized methods for authentication, these serve as nonexclusive examples of the means to establish reliability and authenticity. The trial court makes a threshold determination as to reliability based on the specific facts of the case and the intended purpose of the item to be authenticated (*People v Julian*, 41 NY2d 340, 343 [1977]). Essentially, the question presented to the trial court is whether the evidence proffered is a fair and accurate representation of what the party offering the evidence claims it to be. For example, that an audio recording accurately captures the contents of a conversation, that a video accurately depicts how an event transpired, or that a still or moving image accurately represents what the eye perceived when the image was recorded (*see Price*, 29 NY3d at 476; *Patterson*, 93 NY2d at 84; *People v Ely*, 68 NY2d 520, 528-529 [1986]; *People v Byrnes*, 33 NY2d 343, 347 [1974]).

“[A] videotape may be authenticated by the testimony of a witness to the recorded events or of an operator or installer or

that the lyrics were prejudicial and not probative. Counsel also argued that the video was irrelevant to the prosecutor’s stated purpose for seeking to admit it. The court stated that, with redactions, there was limited prejudice to defendant and that the video corroborated evidence about defendant’s membership in a gang. At trial, counsel again objected to the video’s admission, arguing that the prosecution’s proffered evidence did not authenticate the video because no information established the manner and time of the video’s creation nor its accuracy. In any case, it was inadmissible propensity evidence.

maintainer of the equipment that the videotape accurately represents the subject matter depicted” (*Patterson*, 93 NY2d at 84). Here, the prosecutor did not rely on these traditional methods of authentication. Instead, the prosecutor’s evidence consisted of testimony from KG and a detective that the video shown in court accurately reflected the video they had viewed on the websites, and KG’s testimony that, the day after the shooting, defendant “asked [him] to come down for his video shoot and stuff” and that KG saw a music video posted on YouTube after the shooting depicting defendant which KG believed was the one that defendant had invited him to participate in filming. But KG had no firsthand knowledge that the video was ever made and, if it was, that the prosecution’s trial exhibit was in fact that video. Moreover, he did not testify as to whether the video he watched online had been altered before it was uploaded.⁶ Simply stated, the evidence failed to establish the origins of the video and that the images and sounds therein were unaltered.

Defendant argues that the video was manipulated because the lyrics appear lip-synced, meaning that the singing was added post-production after the video was recorded. The prosecution’s reply is telling. Rather than deny that the video is lip-synced and point to supporting record evidence, the reply distracts and says that whether the video was lip-synced is a weight of the evidence argument.⁷ That is a fundamental misunderstanding of New York’s authentication jurisprudence. Whether defendant actually sang the lyrics heard in the video or intended their addition post-production goes to the core foundational authentication question of whether the video accurately depicts defendant’s actions (*McGee*, 49 NY2d at 59; *Price*, 29 NY3d at 476). The fact is that the record contains no evidence as to who wrote or sang those lyrics and whether, at

6. Although the prosecutor claims that a video would be tremendously difficult to fake, no evidence was offered at trial to support this bare assertion.

7. The prosecution cites two out-of-state cases for this proposition. As to *People v Gray*, the authentication evidence proffered there (testimony establishing that the video played in court was the same as the one viewed online, rather than establishing that the video accurately represented what it purported to depict) is indistinguishable from the authentication evidence held insufficient by this Court in *Price*. *People v Torres* is an unpublished case, which the California court has instructed “must not be cited or relied on by a court or a party in any other action” (Cal Rules of Ct rule 8.1115 [a]). I have no basis to ignore the wishes of that court and do not consider the case, notwithstanding the reference in the prosecution’s briefing.

the time the video was recorded, defendant was lip-syncing the same words as heard in the video. Nor was there evidence that defendant was even present for post-production editing.

The majority's assertion that defendant did not dispute his presence in the video or that he was "reciting certain words" is belied by the fact that defendant objected to the video on authentication grounds. In any case, appearing to recite certain words does not mean that defendant actually recited the exact words heard in the redacted video, which of course was the point of its admission. The primary purpose of authentication is to ensure the evidence admitted for the jury's consideration is genuine and unaltered (*id.*; *McGee*, 49 NY2d at 59 ["Accuracy or authenticity is established by proof that the offered evidence is genuine and that there has been no tampering with it" (citation omitted)]). As *Patterson* warns, "the obligation and need for responsible accuracy and careful reliability should not be sacrificed to some of the whims and weaknesses of fast moving and rapidly changing technology" (93 NY2d at 84).

The prosecution's alternative response, that the video was also offered to show that defendant knew the passengers in KG's car, does not address the accuracy of the video itself. In any case, this purpose could have been achieved by the admission of properly authenticated still shots, rather than the redacted video which, as I discuss below, prejudicially depicted defendant as embracing a gangster lifestyle. Moreover, KG's identification of two individuals in the video, who he testified were passengers in his car at the time of the shooting, does not support admission of the gang-related evidence present in the imagery and lyrics of the video. The point was not lost on the trial judge, who required redactions of various images and corresponding audio in the full-length video.

Although in *Price* we did not announce an authentication rule to address the unique aspects of social media images, a comparison of the proffer here with the proffer in that case is instructive. In *Price*, the prosecutor intended to move into evidence a photograph appearing to depict the defendant holding money and a gun nearly identical to the one used in the charged robbery. The prosecutor argued that the photograph would be authenticated by testimony that a detective obtained the photograph from a social media profile whose username contained the defendant's surname and on which page there were multiple other photographs of the defendant. Additionally, the prosecutor relied on the testimony of the victim that

the gun looked like the one used in the robbery and the testimony of the detective that the individual in the photograph was the defendant. (*Price*, 29 NY3d at 474-475.) “However, the detective admitted that she did not know who took the photograph, when it was taken, where it was taken, or under what circumstances it was taken. Nor did she know whether the photograph had been altered or was a genuine depiction of that which it appeared to depict” (*id.* at 475).

Both the majority and concurrence in *Price* applied the traditional test for authentication to a digital image taken from a social media website and found the evidence insufficient. The majority held that the prosecution was required “to demonstrate that the photograph was a fair and accurate representation of that which it purported to depict” (*Price*, 29 NY3d at 480). Since the prosecution did not present testimony as to the photograph’s accuracy from someone present when it was taken, nor expert testimony establishing that the photograph was unaltered, the majority held that the prosecution had failed to satisfy any of the traditional authentication methods (*id.* at 478-479). The evidence could not satisfy the alternative test proposed by the prosecution because the prosecutor failed to produce any evidence that the defendant controlled the social media accounts that had uploaded the video (*see id.* at 479). In my concurrence, I concluded the proffer fell short because it failed to establish that the defendant had dominion and control over the webpage at issue.

As in *Price*, the prosecution here did not satisfy the traditional test for authentication. There was no testimony from anyone involved in the video’s creation, nor was there any expert testimony as to the video’s unaltered state. The fact that the prosecutor here could not establish that defendant posted the unredacted video to YouTube and World Star Hip Hop, or that he had dominion and control over the accounts that uploaded the video to those sites, only further confirms that on this record it was error to admit the redacted video (*see id.* at 479 [noting that, even under the proposed alternative test, the authentication requirement “cannot be satisfied solely by proof that defendant’s surname and picture appears (sic) on the profile page” containing the incriminating photograph of the defendant]).

Nor does the evidence suffice under the prosecution’s proposed multifactor authentication rule. First, the factors listed are generally considered under the traditional methods

for authentication (*see e.g. Patterson*, 93 NY2d at 84 [noting that “videotapes . . . are ordinarily admissible under standard evidentiary rubrics” for authentication, “including technically acceptable self-authentication techniques”]). Confusingly, although the prosecution states that the factors are intended to be non-exclusive, with no one factor afforded dispositive weight, the first factor proposed here asks whether the evidence was authenticated under traditional means. However, as the prosecution acknowledges, if the traditional test is satisfied, no more is required and the analysis ends (*see id.*; *Price*, 29 NY3d at 477-478; *McGee*, 49 NY2d at 59-60). The prosecutor could not satisfy, and did not even rely on, traditional methods of authentication. The other proposed factors do not establish that the video was unaltered.

The majority’s reliance on three cases from other jurisdictions to support their conclusion that the video was authenticated is misplaced, as each is distinguishable on the facts, rendering them wholly irrelevant to our analysis. In each case, the proffered authentication evidence was stronger than the proffered evidence at defendant’s trial. In *United States v Pettway*, a witness “explained the source of the video, how he discovered it, and identified Defendant as the person depicted in the video” and at least one witness testified that he recognized the defendant’s voice on the video (2018 WL 4958962, *6, 2018 US Dist LEXIS 176848, *19 [WD NY, Oct. 15, 2018, No. 1:12-cr-103 (TJM)]). Nothing close to that type of linkage evidence was presented at defendant Goldman’s trial. In *United States v Washington*, the defendant admitted he was in a music video recorded a month before he was arrested (2017 WL 3642112, *2, 2017 US Dist LEXIS 136220, *5 [ND Ill, Aug. 24, 2017, No. 16-cr-477]).⁸ Similarly, in the lone New York case cited by the majority, *People v Franzese*, the video was authenticated “by the defendant’s own admissions about the video made in a phone call while he was housed at Rikers Island,” a YouTube certification indicating when the video was posted, and testimony from an officer who viewed the video at about that time (154 AD3d 706, 707 [2d Dept 2017]).

The majority also asserts that the purpose for which the redacted video was offered is relevant to the authentication in-

8. The court ultimately granted defendant’s motion to exclude the YouTube music video because the lyrics and images were more likely to be unfairly prejudicial than probative (*Washington*, 2017 WL 3642112, *6, 2017 US Dist LEXIS 136220, *17-18).

quiry but never explains how that matters to the foundational question of the redacted video's authenticity. Either the prosecutor presented evidence that the video is accurate and unaltered or failed to do so. The prosecutor did not establish that the words to the song were recorded live rather than added post-production (indeed, it seems clear that they were), and no evidence established either that it was defendant's voice or that he was lip-syncing the words actually heard in the redacted video. Thus, to the extent that the video was admitted for the purpose of establishing that defendant rapped about things he had actually done, nothing demonstrated the redacted video's authenticity.

In my view, our sister high court in New Jersey adopted the right approach in *State v Skinner* (218 NJ 496, 95 A3d 236 [2014]). The court held that "rap lyrics . . . may not be used as evidence of motive and intent except when such material has a direct connection to the specifics of the offense for which it is offered in evidence and the evidence's probative value is not outweighed by its apparent prejudice" (218 NJ at 525, 95 A3d at 253). Just so here, where the video and the lyrics do not showcase or describe the crime for which defendant was convicted nor his involvement in the shooting.

The court's admission of the video was an abuse of discretion as a matter of law (*see Patterson*, 93 NY2d at 84 [noting that a trial court's "decision to admit or exclude videotape evidence . . . may be disturbed by this Court . . . when no legal foundation has been proffered"], citing *Prince*, *Richardson on Evidence* § 4-214 [Farrell 11th ed 1995]). The redacted video tainted the jury's deliberative process by depicting defendant as glorifying street violence and embracing gang life. The redacted video is no more than propensity evidence that suggested to the jurors defendant's penchant for the behavior lionized by these lyrics or his guilt based on his gang association. Indeed, the prosecutor argued in summation that the video was an example of life imitating art. The fact that the jury requested to see the video during its deliberations confirms its highly prejudicial influence on the jury (*see e.g. People v Ruppnarine*, 140 AD3d 1204, 1205 [3d Dept 2016] [opining that the jury's request to have portion of the transcript reread demonstrated its focus on prejudicial statements by prosecutor]).

That prejudicial effect was not ameliorated by the evidence against defendant. The DNA evidence showed only that defendant had been in KG's vehicle at some point but not exactly

when. Indeed, KG admitted that defendant had been in his vehicle several times in the weeks preceding the shooting. Nor did surveillance footage identify defendant as the shooter. Instead, one eyewitness testified that someone in a white tee shirt—an outfit the witness described as the “basic uniform” of youths during the summer—fired the gun. The prosecution’s case turned entirely on the testimony of KG, who testified in exchange for leniency and whose version of events—including his initial identification of someone else as the shooter—changed after he entered into the cooperation agreement with the prosecution.

IV.

To be clear, the majority has upset established precedent in two areas of law. First, the majority has sanctioned the government’s *ex parte* request to remove genetic material from a suspect, without a showing of a risk of flight or destruction of the potential evidence, because the bodily intrusion is “minimal” (majority *op* at 592). This reductive analysis effectively normalizes bodily invasions as routine procedures, untethered from the legitimate needs of law enforcement based on the facts of the case. Second, the majority has eroded our rule of authentication by tolerating evidence without proof of its unaltered state.

I would therefore affirm the Appellate Division’s order reversing defendant’s conviction and ordering a new trial because he was denied the basic notice and opportunity to be heard in opposition to the State’s request to take a sample of his DNA, and the erroneous admission of the unauthenticated video was an abuse of discretion as a matter of law that was not harmless.

Judges STEIN, GARCIA and FEINMAN concur; Judge FAHEY concurs in result in an opinion; Judge RIVERA dissents and votes to affirm in an opinion in which Judge WILSON concurs.

Order reversed, defendant’s motion to suppress denied, and case remitted to the Appellate Division, First Department, for determination of the facts and issues raised but not determined on appeal to that Court.